MICHIGAN VEHICLE CODE

Act 300 of 1949

AN ACT to provide for the registration, titling, sale, transfer, and regulation of certain vehicles operated upon the public highways of this state or any other place open to the general public or generally accessible to motor vehicles and distressed vehicles; to provide for the licensing of dealers; to provide for the examination, licensing, and control of operators and chauffeurs; to provide for the giving of proof of financial responsibility and security by owners and operators of vehicles; to provide for the imposition, levy, and collection of specific taxes on vehicles, and the levy and collection of sales and use taxes, license fees, and permit fees; to provide for the regulation and use of streets and highways; to create certain funds; to provide penalties and sanctions for a violation of this act; to provide for civil liability of manufacturers, the manufacturers of certain devices, the manufacturers of automated technology, upfitters, owners, and operators of vehicles and service of process on residents and nonresidents; to regulate the introduction and use of certain evidence; to regulate and certify the manufacturers of certain devices; to provide for approval and certification of installers and servicers of certain devices; to provide for the levy of certain assessments; to provide for the enforcement of this act; to provide for the creation of and to prescribe the powers and duties of certain state and local agencies; to impose liability upon the state or local agencies; to provide appropriations for certain purposes; to repeal all other acts or parts of acts inconsistent with this act or contrary to this act; and to repeal certain parts of this act on a specific date.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 281, Eff. Sept. 27, 1957 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 137, Imd. Eff. May 29, 1980 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1987, Act 154, Eff. Dec. 1, 1987 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1991, Act 98, Imd. Eff. Aug. 9, 1991 ;-- Am. 2000, Act 282, Imd. Eff. July 10, 2000 ;-- Am. 2000, Act 408, Eff. Mar. 28, 2001 ;-- Am. 2002, Act 554, Eff. Oct. 1, 2002 ;-- Am. 2010, Act 10, Imd. Eff. Mar. 8, 2010 ;-- Am. 2013, Act 231, Eff. Mar. 27, 2014 ;-- Am. 2016, Act 32, Eff. June 6, 2016
Compiler's Notes: In OAG 6480, issued November 23, 1987, the Attorney General stated: “It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987.”

The People of the State of Michigan enact:

Chapter I
WORDS AND PHRASES DEFINED

257.1 Michigan vehicle code; words and phrases defined.

Sec. 1.

The following words and phrases as defined in this chapter and as herein enumerated when used in this act shall, for the purpose of this act, have the meanings respectively ascribed to them in this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949
Transfer of Power: See MCL 16.338.

257.1a "Accessory" and "adequate in-person services" defined.

Sec. 1a.

As used in this act:

(a) "Accessory" means any accessory, equipment, additional part or replacement part for a vehicle for which a certificate of title is required to be issued under this act.

(b) "Adequate in-person services" means providing in-person service options, without the requirement of an advance appointment, on each day and at each location a secretary of state branch office is open for services in this state. The in-person services provided must allow for same-day transactions to be completed.

History: Add. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

257.1b “Ambulance” defined.

Sec. 1b.

"Ambulance" means a privately or publicly owned motor vehicle for highway use that is specially designed or constructed and equipped, and is intended to be used for and is maintained or operated for the transportation of persons who are sick, injured, wounded, or otherwise incapacitated or helpless, including dual purpose police patrol cars and funeral coaches or hearses, and which is equipped according to section 7 of Act No. 258 of the Public Acts of 1968, as amended, being section 257.1207 of the Michigan Compiled Laws.

History: Add. 1975, Act 100, Eff. July 1, 1976

257.1c “Articulated bus” defined.

Sec. 1c.

"Articulated bus" means a vehicle designed for carrying passengers and comprised of 2 sections permanently joined by a hinge mechanism or articulated joint allowing vertical and horizontal relative movement as well as a weathertight passage for riders moving from 1 section of the bus to the other.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988
Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.1d “Alcoholic liquor” defined.

Sec. 1d.

"Alcoholic liquor" means any liquid or compound, whether or not medicated, proprietary, patented, and by whatever name called, containing any amount of alcohol including any liquid or compound described in section 105(2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1105.

History: Add. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 62, Eff. May 3, 2004

257.2 "Authorized emergency vehicle" defined; additional definitions.

Sec. 2.

(1) "Authorized emergency vehicle" means any 1 of the following:

(a) Vehicles of the fire department, police vehicles, ambulances, privately owned motor vehicles of volunteer or paid fire fighters, or volunteer members of an emergency rescue unit if authorized by the chief of an organized fire department, a county sheriff, or the director of the department of state police, or privately owned motor vehicles of volunteer or paid members of a life support agency licensed by the department of licensing and regulatory affairs if authorized by the life support agency.

(b) For purposes of section 698(5)(c) during an emergency, a vehicle owned and operated by a federally recognized nonprofit charitable organization that is used exclusively for assistance during that emergency.

(c) For purposes of section 653a, a road service vehicle giving a visual signal by means of a flashing, rotating, or oscillating red or amber light. As used in this subdivision, "road service vehicle" means a vehicle that is clearly marked and readily recognizable as a vehicle used to assist disabled vehicles.

(2) As used in this section:

(a) "Emergency rescue unit" means an entity with training in a specialized discipline exceeding the level of training for medical first responders.

(b) "Life support agency" means that term as defined in section 20906 of the public health code, 1978 PA 368, MCL 333.20906.

(c) "Medical first responder" means that term as defined in section 20906 of the public health code, 1978 PA 368, MCL 333.20906.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1956, Act 11, Imd. Eff. Mar. 9, 1956 ;-- Am. 1975, Act 100, Eff. July 1, 1976 ;-- Am. 1976, Act 347, Imd. Eff. Dec. 21, 1976 ;-- Am. 1997, Act 8, Imd. Eff. May 16, 1997 ;-- Am. 2004, Act 19, Eff. June 2, 2004 ;-- Am. 2011, Act 231, Imd. Eff. Nov. 22, 2011

257.2a "Automotive recycler" defined.

Sec. 2a.

"Automotive recycler" means a person who engages in business primarily for the purpose of selling at retail salvage vehicle parts and secondarily for the purpose of selling at retail salvage motor vehicles or manufacturing or selling a product of gradable scrap metal.

History: Add. 1993, Act 300, Eff. Jan. 1, 1994

257.2b Additional definitions.

Sec. 2b.

(1) "Automated driving system" means hardware and software that are collectively capable of performing all aspects of the dynamic driving task for a vehicle on a part-time or full-time basis without any supervision by a human operator.

(2) "Automated motor vehicle" means a motor vehicle on which an automated driving system has been installed, either by a manufacturer of automated driving systems or an upfitter that enables the motor vehicle to be operated without any control or monitoring by a human operator. Automated motor vehicle does not include a motor vehicle enabled with 1 or more active safety systems or operator assistance systems, including, but not limited to, a system to provide electronic blind spot assistance, crash avoidance, emergency braking, parking assistance, adaptive cruise control, lane-keeping assistance, lane departure warning, or traffic jam and queuing assistance, unless 1 or more of these technologies alone or in combination with other systems enable the vehicle on which any active safety systems or operator assistance systems are installed to operate without any control or monitoring by an operator.

(3) "Automated technology" means technology installed on a motor vehicle that has the capability to assist, make decisions for, or replace a human operator.

(4) "Automated vehicle roadway" means a segment of a roadway that has been designated by the state transportation department for an automated vehicle roadway system.

(5) "Automated vehicle roadway lane" means any lane or ramp on an automated vehicle roadway designated for the exclusive use of motor vehicles by the state transportation department as described under section 665c.

(6) "Automated vehicle roadway system" means a hardware and software system that is capable of facilitating the deployment and operation of an automated motor vehicle or a vehicle equipped with varying levels of automated technology while traveling through a segment of roadway that has been designated for such a system by the state transportation department.

(7) "Automated vehicle roadway system provider" means an entity that designs, installs, constructs, operates, or maintains an automated vehicle roadway system.

(8) "Automatic crash notification technology" means a vehicle service that integrates wireless communications and vehicle location technology to determine the need for or to facilitate emergency medical response in the event of a vehicle crash.

(9) "Dynamic driving task" means all of the following, but does not include strategic aspects of a driving task, including, but not limited to, determining destinations or waypoints:

(a) Operational aspects, including, but not limited to, steering, braking, accelerating, and monitoring the vehicle and the roadway.

(b) Tactical aspects, including, but not limited to, responding to events, determining when to change lanes, turning, using signals, and other related actions.

(10) "Manufacturer of automated driving systems" means a manufacturer or subcomponent system producer recognized by the secretary of state that develops or produces automated driving systems or automated vehicles.

(11) "Mobility research center" means a nonprofit entity that has the ability to receive and accept from any federal, state, or municipal agency, foundation, public or private agency, entity, or individual a grant, contribution, or loan for or in aid of the planning, construction, operation, upgrade, or financing of a facility for testing advanced transportation systems, including, but not limited to, connected or automated technology or automated motor vehicles to increase mobility options.

(12) "Motor vehicle manufacturer" means a person that has manufactured and distributed motor vehicles in the United States that are certified to comply with all applicable federal motor vehicle safety standards and that has submitted appropriate manufacturer identification

information to the National Highway Traffic Safety Administration as provided in 49 CFR part 566. As used in this section, section 665a, and section 665b only, motor vehicle manufacturer also includes a person that satisfies all of the following:

(a) Has manufactured automated motor vehicles in the United States that are certified to comply with all applicable federal motor vehicle safety standards.

(b) Has operated automated motor vehicles using a test driver and with an automated driving system engaged on public roads in the United States for at least 1,000,000 miles.

(c) Has obtained an instrument of insurance, surety bond, or proof of self-insurance in the amount of at least $10,000,000.00, and has provided evidence of that insurance, surety bond, or self-insurance to the department in a form and manner required by the department.

(13) "On-demand automated motor vehicle network" means a digital network or software application used to connect passengers to automated motor vehicles, not including commercial motor vehicles, in participating fleets for transportation between points chosen by passengers, for transportation between locations chosen by the passenger when the automated motor vehicle is operated by the automated driving system.

(14) "Participating fleet" means any of the following:

(a) Vehicles that are equipped with automated driving systems that are operating on the public roads and highways of this state in a SAVE project as provided in section 665b.

(b) Vehicles that are supplied or controlled by a motor vehicle manufacturer, and that are equipped with automated driving systems that are operating on the public roads and highways of this state in an on-demand automated motor vehicle network.

(15) "SAVE project" means an initiative that authorizes eligible motor vehicle manufacturers to make available to the public on-demand automated motor vehicle networks as provided in section 665b.

(16) "Upfitter" means a person that modifies a motor vehicle after it was manufactured by installing an automated driving system in that motor vehicle to convert it to an automated motor vehicle. Upfitter includes a subcomponent system producer recognized by the secretary of state that develops or produces automated driving systems.

History: Add. 2013, Act 231, Eff. Mar. 27, 2014 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2022, Act 179, Imd. Eff. July 25, 2022

257.2c "Automated speed enforcement system" and "automated speed enforcement system operator" defined.

Sec. 2c.

(1) "Automated speed enforcement system" means an electronic traffic sensor system that does both of the following:

(a) Automatically detects a vehicle exceeding the posted speed limit using a lidar system or another technology that must not be either of the following:

(i) A radar system.

(ii) Less capable than a lidar system.

(b) Produces a recorded image of the vehicle described in subdivision (a) that shows all of the following:

(i) A clear and legible identification of the vehicle's registration plate.

(ii) The location where the recorded image was taken.

(iii) The date and time when the recorded image was taken.

(2) "Automated speed enforcement system operator" means an individual trained and certified to operate and monitor an automated speed enforcement system by the automated speed enforcement unit within the state transportation department.

History: Add. 2024, Act 164, Eff. Apr. 2, 2025

257.3 “Axle” defined.

Sec. 3.

"Axle" means the common axis of rotation of 1 or more wheels whether power driven or freely rotating, and whether in 1 or more segments and regardless of the number of wheels carried thereon.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.3a "Basic driver improvement course" defined.

Sec. 3a.

"Basic driver improvement course" means a course of study that satisfies all of the following conditions:

(a) It meets or exceeds the curriculum standards set forth in the defensive driving course instructor manual, eighth edition, published by the national safety council.

(b) It provides documented evidence from a federal, state, or local government agency of course effectiveness in reducing collisions, moving violations, or both.

(c) It includes not less than 4 hours of instruction.

(d) It contains such other information as is approved by the secretary of state, with or without supporting DVD material, and that is offered over the internet or through classroom instruction.

History: Add. 2008, Act 568, Eff. Dec. 31, 2010 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013

257.4 “Bicycle” defined.

Sec. 4.

"Bicycle" means a device propelled by human power upon which a person may ride, having either 2 or 3 wheels in a tandem or tricycle arrangement, all of which are over 14 inches in diameter.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1971, Act 151, Imd. Eff. Nov. 22, 1971 ;-- Am. 1975, Act 209, Imd. Eff. Aug. 25, 1975 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.4a “Birthday” defined.

Sec. 4a.

"Birthday" shall mean any anniversary of the original date of birth, and all persons born on February 29 shall be deemed, for the purposes of this act, to have been born on March 1.

History: Add. 1953, Act 215, Eff. Oct. 2, 1953

257.4b “Bus” defined.

Sec. 4b.

"Bus" means a motor vehicle designed for carrying 16 or more passengers, including the driver. Bus does not include a school bus.

History: Add. 1964, Act 89, Eff. Aug. 28, 1964 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1988, Act 346, Imd. Eff. Oct. 25, 1988

257.4c “Buy back vehicle” defined.

Sec. 4c.

"Buy back vehicle" means a motor vehicle reacquired by a manufacturer as the result of an arbitration proceeding, pursuant to a customer satisfaction policy adopted by the manufacturer, or under 1986 PA 87, MCL 257.1401 to 257.1410, or a similar law of another state.

History: Add. 2002, Act 652, Eff. Jan. 1, 2003

257.5 "Business district" and "commercial business" defined.

Sec. 5.

(1) "Business district" means an area contiguous to a highway where the total widths of the adjacent buildings in use for commercial business open to the general public on both sides occupy 50% or more of the total frontage on both sides for a distance of 600 feet or more.

(2) As used in this section, "commercial business" does not include a home-based business conducted from a residence or domicile, but does include a multi-use building in which a commercial business open to the general public is operated on the ground floor and residential apartments exist on upper floors.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2006, Act 85, Eff. Nov. 9, 2006

257.5a “Cancellation” defined.

Sec. 5a.

"Cancellation" means that a license or registration is annulled and terminated because of some error or defect or because the licensee or registrant is no longer entitled to such license or registration, but the cancellation of a license or registration is without prejudice and application for a new license or registration may be made at any time after such cancellation.

History: Add. 1951, Act 270, Eff. Sept. 28, 1951

257.6 "Chauffeur" defined.

Sec. 6.

(1) Except as otherwise provided in subsection (3), "chauffeur" means any of the following:

(a) A person who operates a motor vehicle as a motor carrier under the motor carrier act, 1933 PA 254, MCL 475.1 to 479.42, or a motor carrier of passengers as defined in section 3 of the motor bus transportation act, 1982 PA 432, MCL 474.103.

(b) A person who is employed for the principal purpose of operating a motor vehicle with a GVWR of 10,000 pounds or more.

(c) A person who operates a bus or school bus.

(2) For purposes of subsection (1)(b), a person shall be considered to be employed for the principal purpose of operating a motor vehicle when the person's employment customarily involves transporting for gain or hire any merchandise for display, sale, or delivery.

(3) "Chauffeur" does not include any of the following:

(a) A farmer or an employee of a farmer operating a vehicle exclusively in connection with the farming operations of the farmer.

(b) A fire fighter or a member of a fire department operating an ambulance.

(c) Emergency medical services personnel operating an ambulance. As used in this subdivision, "emergency medical services personnel" means that term as defined in section 20904 of the public health code, 1978 PA 368, MCL 333.20904.

(d) State transportation department employees whose work consists of operating vehicles with a gross vehicle weight rating of 10,000 pounds or more for the purpose of transporting highway and bridge maintenance materials and supplies for all aspects of state trunkline maintenance, including winter maintenance and facilities maintenance.

(e) County road commission employees and other employees of local units of government who do not drive their own vehicles and whose work consists of hauling road building materials and supplies for the road commission or for other municipal purposes.

(f) A person operating a motor vehicle for a volunteer program who only receives reimbursement for the costs of operating the motor vehicle.

(g) A person who operates a motor home for personal pleasure.

(h) A parent or parent's designee for the purpose of transporting pupils to or from school and school related events.

(i) A transportation network company driver.

(j) A limousine driver.

(k) A taxicab driver.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 154, Imd. Eff. June 12, 1980 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990 ;-- Am. 1992, Act 134, Eff. Oct. 1, 1992 ;-- Am. 1992, Act 297, Imd. Eff. Dec. 18, 1992 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2016, Act 348, Eff. Mar. 21, 2017

257.6a “Civil infraction” defined.

Sec. 6a.

"Civil infraction" means an act or omission prohibited by law which is not a crime as defined in section 5 of Act No. 328 of the Public Acts of 1931, as amended, being section 750.5 of the Michigan Compiled Laws, and for which civil sanctions may be ordered.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979

257.6b “Civil infraction determination” defined.

Sec. 6b.

"Civil infraction determination" means a determination that a person is responsible for a civil infraction by 1 of the following:

(a) An admission of responsibility for the civil infraction.

(b) An admission of responsibility for the civil infraction, "with explanation".

(c) A preponderance of the evidence at an informal hearing or formal hearing on the question under section 746 or 747.

(d) A default judgment, for failing to appear as directed by a citation or other notice, at a scheduled appearance under section 745(3) (b) or (4), at a scheduled informal hearing under section 746, or at a scheduled formal hearing under section 747.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979

257.6c “Civic event” defined.

Sec. 6c.

"Civic event" means a convention, conference, pageant, parade, special athletic contest, commemoration, gathering, assemblage, or similar function.

History: Add. 1987, Act 151, Imd. Eff. Oct. 29, 1987

257.6d “Collector plate” defined.

Sec. 6d.

"Collector plate" means a plate that contains a reproduction of every characteristic of a specific registration plate except for the number and letter characters, which shall be determined by the secretary of state, and that is sold as described in section 811g. A collector plate is not a registration plate.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000

257.7 "Commercial vehicle" defined.

Sec. 7.

"Commercial vehicle" includes all motor vehicles used for the transportation of passengers for hire, or constructed or used for transportation of goods, wares, or merchandise, and all motor vehicles designed and used for drawing other vehicles that are not constructed to carry a load independently or any part of the weight of a vehicle or load being drawn. Commercial vehicle does not include a limousine operated by a limousine driver, a taxicab operated by a taxicab driver, or a personal vehicle operated by a transportation network company driver.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2016, Act 348, Eff. Mar. 21, 2017

257.7a “Commercial motor vehicle” defined.

Sec. 7a.

(1) "Commercial motor vehicle" means a motor vehicle or combination of motor vehicles used in commerce to transport passengers or property if 1 or more of the following apply:

(a) It is designed to transport 16 or more passengers, including the driver.

(b) It has a gross vehicle weight rating or gross vehicle weight, whichever is greater, of 26,001 pounds or more.

(c) It has a gross combination weight rating or gross combination weight, whichever is greater, of 26,001 pounds or more, inclusive of towed units with a gross vehicle weight rating or gross vehicle weight, whichever is greater, of more than 10,000 pounds.

(d) A motor vehicle carrying hazardous material and on which is required to be posted a placard as defined and required under 49 CFR parts 100 to 199.

(2) A commercial motor vehicle does not include a vehicle used exclusively to transport personal possessions or family members for nonbusiness purposes.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2015, Act 11, Eff. July 8, 2015

Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.7b "Commercial quadricycle" defined.

Sec. 7b.

"Commercial quadricycle" means a vehicle that satisfies all of the following:

(a) The vehicle has fully operative pedals for propulsion entirely by human power.

(b) The vehicle has at least 4 wheels and is operated in a manner similar to a bicycle.

(c) The vehicle has at least 6 seats for passengers.

(d) The vehicle is designed to be occupied by a driver and powered either by passengers providing pedal power to the drive train of the vehicle or by a motor capable of propelling the vehicle in the absence of human power.

(e) The vehicle is used for commercial purposes.

(f) The vehicle is operated by the owner of the vehicle or an employee of the owner of the vehicle.

History: Add. 2015, Act 127, Imd. Eff. July 15, 2015

257.8 "Commissioner" defined.

Sec. 8.

"Commissioner" means the commissioner of Michigan state police of this state, acting directly or through his duly authorized officers, agents and employees.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.8a "Conviction" defined.

Sec. 8a.

"Conviction" means any of the following:

(a) A final conviction, the payment of a fine, a plea of guilty or nolo contendere if accepted by the court, or a finding of guilt for a criminal law violation or a juvenile adjudication,

probate court disposition, or juvenile disposition for a violation that if committed by an adult would be a crime, regardless of whether the penalty is rebated or suspended.

(b) A conviction defined in federal law under 49 CFR 383.5, regarding the operation of a commercial motor vehicle or the operation of a noncommercial motor vehicle operated by a person licensed to operate a commercial motor vehicle.

History: Add. 1967, Act 226, Eff. Nov. 2, 1967 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1998, Act 356, Eff. Oct. 1, 1999 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004

257.8b "Controlled substance" defined.

Sec. 8b.

"Controlled substance" means a controlled substance or controlled substance analogue as defined in section 7104 of the public health code, Act No. 368 of the Public Acts of 1978, being section 333.7104 of the Michigan Compiled Laws.

History: Add. 1976, Act 285, Eff. Apr. 1, 1977 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994

Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.9 "County jail" defined.

Sec. 9.

"County jail" as referred to in this act shall be construed to mean the county jail of any county where the violation of any of the provisions of this act occur.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1985, Act 53, Imd. Eff. June 14, 1985

257.10 "Cross-walk" defined.

Sec. 10.

"Cross-walk" means: (a) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or in the absence of curbs from the edges of the traversable highway.

(b) Any portion of a highway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.11 “Dealer” defined.

Sec. 11.

(1) Except as otherwise provided in this section, "dealer" means a person who is 1 or more of the following:

(a) A person who in a 12-month period did 1 or more of the following:

(i) Engaged in the business of purchasing, selling, exchanging, brokering, leasing, or dealing in vehicles of a type required to be titled under this act.

(ii) Engaged in the business of purchasing, selling, exchanging, brokering, or dealing in salvageable parts of 5 or more vehicles.

(iii) Engaged in the business of buying 5 or more vehicles to sell vehicle parts or process into scrap metal.

(b) A person engaged in the actual remanufacturing of engines or transmissions.

(2) There is a rebuttable presumption that a person who in a 12-month period buys and sells, exchanges, brokers, leases, or deals in 5 or more vehicles, or buys and sells, exchanges, brokers, or deals in salvageable parts for 5 or more vehicles, or buys 5 or more vehicles to sell vehicle parts or to process into scrap metal is engaged in a business of being a dealer as described in subsection (1).

(3) Dealer does not include any of the following:

(a) A financial institution, as defined in section 10 of 1909 PA 99, MCL 129.40, or an entity wholly owned by 1 or more financial institutions.

(b) A bank holding company.

(c) A person who buys or sells remanufactured vehicle engine and transmission salvageable vehicle parts or who receives in exchange used engines or transmissions if the primary business of the person is the selling of new vehicle parts and the person is not engaged in any other activity that requires a dealer license under this act.

(d) For purposes of dealer licensing, a person who negotiates the lease of a vehicle of a type required to be titled under this act for a lease term of less than 120 days.

(e) A person whose business is the financing of the purchase, sale, or lease of vehicles of a type required to be titled under this act and that is not otherwise engaged in activities of a dealer as described in subsection (1).

(f) An employee or agent of a dealer acting in the scope of his or her employment or agency.

(g) An insurer, as defined in section 106 of the insurance code of 1956, 1956 PA 218, MCL 500.106.

(h) A person engaged in leasing vehicles solely for commercial or other nonhousehold use.

(i) A lessor selling 1 or more off lease vehicles.

(j) A person who has received a vehicle under section 252g(3)(a) for the purpose of selling that vehicle to a dealer licensed under this act.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1990, Act 154, Imd. Eff. June 28, 1990 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2003, Act 37, Imd. Eff. July 3, 2003 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009

257.11a “Demonstrator” defined.

Sec. 11a.

"Demonstrator" means a motor vehicle used by a prospective customer or a motor vehicle dealer or his agent for testing and demonstration purposes.

History: Add. 1975, Act 314, Imd. Eff. Dec. 22, 1975

257.11b “Dealer license” defined.

Sec. 11b.

"Dealer license" means an authorization from the secretary of state for a person to engage in business as a dealer.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.12 “Department” defined.

Sec. 12.

"Department" means the department of state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 139, Eff. May 1, 1979

257.12a “Distressed vehicle” defined.

Sec. 12a.

"Distressed vehicle" means a vehicle that has a major component part that has been wrecked, destroyed, damaged, stolen, or missing to the extent that the total estimated cost of repairs to rebuild or reconstruct the vehicle, including parts and labor, is equal to or exceeds 75% of the actual cash value of the vehicle in its predamaged condition. The estimated costs of the repair parts shall be determined by using the current published retail cost of original manufacturer equipment parts or an estimate of the actual cost of the repair parts. The estimated labor costs shall be computed by using the hourly rate and time allocations which are reasonable and commonly assessed in the repair industry in the community where the repairs are performed. For the purpose of this section, "actual cash value" means the retail dollar value of a vehicle as determined by an objective vehicle evaluation using local market resources such as dealers or want ads or by an independent vehicle evaluation or appraisal service or by a current issue of a nationally recognized used vehicle guide for financial institution appraisal purposes in this state.

History: Add. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1993, Act 300, Eff. July 1, 1994

257.12b “Distressed vehicle transporter” defined.

Sec. 12b.

"Distressed vehicle transporter" means a person engaged in the business of buying vehicles for sale only to a used vehicle parts dealer or a vehicle scrap metal processing dealer. A distressed vehicle transporter shall not sell major components or other parts for vehicle repair purposes, and shall not dismantle vehicles.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.12c "Digital network" defined.

Sec. 12c.

"Digital network" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.13 “Driver” defined.

Sec. 13.

"Driver" means every person who drives or is in actual physical control of a vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.13a “Elected gross weight” defined.

Sec. 13a.

Elected gross weight means the empty weight of a vehicle or combination of vehicles, fully equipped for service, plus the weight of the maximum load which the owner has elected to carry on such vehicle or combination of vehicles.

History: Add. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967

257.13b “Empty weight” defined.

Sec. 13b.

Empty weight means the shipping weight of a vehicle as furnished by the manufacturer or in lieu thereof, the scale weight taken from a weight receipt furnished by the weighmaster operating scales approved and sealed by the state department of agriculture. For commercial vehicles empty weight shall also mean fully equipped for the use for which the vehicle is intended.

History: Add. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967

257.13c “Electric personal assistive mobility device” defined.

Sec. 13c.

"Electric personal assistive mobility device" means a self-balancing nontandem 2-wheeled device, designed to transport only 1 person at a time, having an electrical propulsion system with average power of 750 watts or 1 horsepower and a maximum speed on a paved level surface of not more than 15 miles per hour.

History: Add. 2002, Act 494, Imd. Eff. July 3, 2002

257.13d "Electric carriage" defined.

Sec. 13d.

"Electric carriage" means a horse-drawn carriage that has been retrofitted to be propelled by an electric motor instead of by a horse and that is used to provide taxi service.

History: Add. 2013, Act 36, Imd. Eff. May 21, 2013

257.13e "Electric bicycle" defined.

Sec. 13e.

"Electric bicycle" means a device upon which an individual may ride that satisfies all of the following:

(a) The device is equipped with all of the following:

(i) A seat or saddle for use by the rider.

(ii) Fully operable pedals for human propulsion.

(iii) An electric motor of not greater than 750 watts.

(b) The device falls within 1 of the following categories:

(i) Class 1 electric bicycle. As used in this subparagraph, "class 1 electric bicycle" means an electric bicycle that is equipped with an electric motor that provides assistance only when the rider is pedaling and that disengages or ceases to function when the electric bicycle reaches a speed of 20 miles per hour.

(ii) Class 2 electric bicycle. As used in this subparagraph, "class 2 electric bicycle" means an electric bicycle that is equipped with a motor that propels the electric bicycle to a speed of no more than 20 miles per hour, whether the rider is pedaling or not, and that disengages or ceases to function when the brakes are applied.

(iii) Class 3 electric bicycle. As used in this subparagraph, "class 3 electric bicycle" means an electric bicycle that is equipped with a motor that provides assistance only when the rider is pedaling and that disengages or ceases to function when the electric bicycle reaches a speed of 28 miles per hour.

History: Add. 2017, Act 139, Eff. Jan. 28, 2018

257.13f "Electric skateboard" defined.

Sec. 13f.

"Electric skateboard" means a wheeled device that has a floorboard designed to be stood upon when riding that is no more than 60 inches long and 18 inches wide, is designed to transport only 1 person at a time, has an electrical propulsion system with power of no more than 2,500 watts, and has a maximum speed on a paved level surface of not more than 25 miles per hour. An electric skateboard may have handlebars and, in addition to having an electrical propulsion system with power of no more than 2,500 watts, may be designed to also be powered by human propulsion.

History: Add. 2018, Act 204, Eff. Sept. 18, 2018 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019

257.14 "Established place of business" defined.

Sec. 14.

(1) Except as provided in subsections (2), (3), and (4), "established place of business" means premises actually occupied either continuously or at regular periods by a dealer or manufacturer at which the dealer or manufacturer keeps its books and records and at which the dealer or manufacturer transacts a large share of its business.

(2) For a class (a) or class (b) dealer, "established place of business" means premises that meet all of the following requirements:

(a) The premises contain, except as otherwise provided in this act, a permanently enclosed building or structure that is either owned, leased, or rented by the dealer; the building or

structure is not a residence, tent, temporary stand, or any temporary quarters; the building or structure is continuously occupied in good faith for the purpose of selling, buying, trading, leasing, or otherwise dealing in motor vehicles; all books, records, and files necessary to conduct the business of a class (a) or class (b) dealer are maintained in the building or structure; and the building or structure houses an office of at least 150 square feet in size, equipped with standard office furniture, working utilities, a working restroom, and a working telephone listed in the name of the business on the dealer's license.

(b) The premises have land space of not less than 1,300 square feet to accommodate the display of a minimum of 10 vehicles of the kind and type that the dealer is licensed to sell and an additional 650 square feet for customer parking.

(c) The display and customer parking areas described in subdivision (b) are adequately surfaced and well-lit during business hours.

(d) The premises are identified by an exterior sign displaying the name of the dealership that is permanently affixed to the building or land with letters clearly visible from the roadway.

(e) The premises contain a conspicuous posting of the dealer's regular hours of operation. The posted hours must not be less than 30 hours per week for not less than 48 weeks per year. Fifteen of the 30 hours per week must be between the hours of 8 a.m. and 5 p.m., Monday through Friday. The dealer may change its posted hours of operation to be less than 30 hours per week for not more than 4 weeks per year if the dealer notifies the department not less than 7 days prior to the change. The department shall waive the 7-day notification requirement under this subdivision for good cause, including, but not limited to, a medical emergency or other extenuating circumstances.

(f) The premises contain a registered repair facility on site for the repair and servicing of motor vehicles of a type sold at the established place of business, unless the dealer has entered into a written servicing agreement with a registered repair facility at a location that is located within a 10-mile radius of the established place of business. If repairs are conducted under a servicing agreement, the dealer shall conspicuously post the servicing agreement in the dealer's office.

(g) The premises meet all applicable zoning requirements and any other applicable municipal requirements.

(3) For a wholesaler, "established place of business" means premises that meet all of the following requirements:

(a) The premises contain a permanently enclosed building or structure that is either owned, leased, or rented and is not a commercial mailbox, tent, temporary stand, or other temporary quarters. Beginning January 1, 2024, the permanently enclosed building or structure must be heated and electrified.

(b) Until December 31, 2023, all books, records, and files necessary to conduct the business of the wholesaler are maintained in the building or structure described in subdivision (a). Beginning January 1, 2024, all books, records, and files necessary to conduct the business of the wholesaler are maintained in an office that meets all of the following requirements:

(i) Is not less than 8 feet by 8 feet with a door.

(ii) Has no fewer than 4 rigid walls.

(iii) Has working utilities including, but not limited to, lighting and telephone that are listed in the name of the business on the wholesaler's license.

(iv) Has a working restroom.

(v) Has standard office furniture including, but not limited to, a desk and a locking filing cabinet.

(c) The premises are not used for the display of vehicles. However, the premises may be used for the storage of vehicles purchased by the wholesaler before sale to a licensed vehicle dealer.

(d) The premises are identified by an exterior sign displaying the name of the wholesaler that is permanently affixed to the building or land with letters clearly visible from the roadway.

(e) The premises meet all applicable zoning requirements and any other applicable municipal requirements.

(f) The premises contain a conspicuous posting of the wholesaler's regular hours of operation that include at least 15 regular business hours each week between the hours of 8 a.m. and 5 p.m., Monday through Friday.

(g) If a wholesaler receives its initial license on or after January 1, 2023, the premises are not located within 200 feet of an established place of business for another licensed wholesaler.

(4) For a used or secondhand vehicle parts dealer, vehicle scrap metal processor, vehicle salvage pool operator, distressed vehicle transporter, broker, and automotive recycler, "established place of business" means premises that meet all of the following requirements:

(a) Beginning January 1, 2024, the premises contain a permanently enclosed building or structure that is heated and electrified and that is either owned, leased, or rented by the business and that is not a commercial mailbox, tent, temporary stand, or other temporary quarters.

(b) Beginning January 1, 2024, all books, records, and files necessary to conduct the business of the dealer, processor, operator, transporter, broker, or recycler are maintained in an office that meets all of the following requirements:

(i) Is not less than 8 feet by 8 feet with a door.

(ii) Has no fewer than 4 rigid walls.

(iii) Has working utilities including, but not limited to, lighting and telephone that are listed in the name of the business on the dealer's, processor's, operator's, transporter's, broker's, or recycler's license.

(iv) Has a working restroom.

(v) Has standard office furniture including, but not limited to, a desk and a locking filing cabinet.

(c) The premises are identified by an exterior sign displaying the name of the dealer, processor, operator, transporter, broker, or recycler that is permanently affixed to the building or land with letters clearly visible from the roadway.

(d) The premises meet all applicable zoning requirements and any other applicable municipal requirements.

(e) The premises contain a conspicuous posting of the business's regular hours of operation. The posted hours must not be less than 15 hours per week for not less than 48 weeks per year. Five of the 15 hours per week must be between the hours of 8 a.m. and 5 p.m., Monday through Friday.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2021, Act 90, Eff. Dec. 14, 2021 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.14a “Executive” or “manufacturer's vehicle” defined.

Sec. 14a.

"Executive" or "manufacturer's vehicle" means a motor vehicle provided by a manufacturer for the use and possession of an employee of the manufacturer, which is titled to the manufacturer, or which is driven with special manufacturer's plates as provided in section 244.

History: Add. 1975, Act 314, Imd. Eff. Dec. 22, 1975

257.15 “Explosives” defined.

Sec. 15.

"Explosives" means any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities, or packing that an ignition by fire, friction, by concussion, by percussion, or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructible effects on contiguous objects or of destroying life or limb.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.16 “Farm tractor” defined.

Sec. 16.

"Farm tractor" means every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines, and other implements of husbandry.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.17 “Flammable liquid” defined.

Sec. 17.

"Flammable liquid" means any liquid which has a flash point of 70° F., or less, as determined by a tagliabue or equivalent closed-cup test device.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.17a “Foreign salvage vehicle dealer” defined.

Sec. 17a.

"Foreign salvage vehicle dealer" means a person who is a licensed dealer in another state and is engaged in this state in the business of purchasing, selling, or otherwise dealing on a wholesale basis in salvageable parts or vehicles of a type required to have a salvage or scrap certificate of title under this act.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.17b “Fund-raising registration plate” and “state-sponsored goal” defined.

Sec. 17b.

"Fund-raising registration plate" means a registration plate that contains a design or logo representing a symbol for a Michigan university or state-sponsored goal and is issued by the secretary of state to raise funds for the respective Michigan university or state-sponsored goal. As used in this section, "state-sponsored goal" means the purpose for which a state-sponsored fund-raising registration plate is authorized under section 811e.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000

257.17c "Flood vehicle" defined.

Sec. 17c.

"Flood vehicle" means a vehicle that was submerged in water to the point that water entered the passenger compartment or trunk over the sill of the trunk floor pan or doorsill or a vehicle acquired by an insurance company as part of the settlement of a water damage claim.

History: Add. 2002, Act 485, Eff. Oct. 1, 2002

257.18 Definitions, F.

Sec. 18.

(1) "Foreign vehicle" means a vehicle of a type required to be registered under this act and brought into this state from another state, territory, or country other than in the ordinary course of business by or through a manufacturer or dealer, and not registered in this state.

(2) "Former section 625(1) or (2)" means section 625(1) or (2) as amended by Act No. 391 of the Public Acts of 1978, Act No. 515 of the Public Acts of 1980, Act No. 309 of the Public Acts of 1982, or Act No. 109 of the Public Acts of 1987.

(3) "Former section 625b" means section 625b as amended by Act No. 285 of the Public Acts of 1976, Act No. 515 of the Public Acts of 1980, Act No. 309 of the Public Acts of 1982, or Act No. 109 of the Public Acts of 1987.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992

257.18a "Freeway" defined.

Sec. 18a.

"Freeway" means a divided arterial highway for through traffic with full control of access and with all crossroads separated in grade from pavements for through traffic.

History: Add. 1961, Act 164, Eff. Sept. 8, 1961

257.18b "Gross combination weight rating" or "GCWR" and "gross vehicle weight rating" or "GVWR" defined.

Sec. 18b.

(1) "Gross combination weight rating" or "GCWR" means a value specified by the manufacturer of the power unit if that value is displayed on the federal motor vehicle safety standard (FMVSS) certification label required by the National Highway Traffic Safety Administration.

(2) "Gross vehicle weight rating" or "GVWR" means the sum of the gross vehicle weight ratings, or the sum of the gross vehicle weights of the power unit and the towed unit or units, or any combination of the gross vehicle weight ratings and the gross vehicle weights of power unit and towed unit or units that produces the highest value. The gross combination weight rating of the power unit shall not be used in determining whether the vehicle is a commercial motor vehicle when that power unit is not towing another unit.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 2015, Act 11, Eff. July 8, 2015
Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.19 "Gross weight" defined.

Sec. 19.

"Gross weight" means the weight of a vehicle without load plus the weight of any load thereon.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.19a "Disabled person" and "person with disabilities" defined.

Sec. 19a.

"Disabled person" or "person with disabilities" means a person who is determined by a physician, a physician assistant, or an optometrist as specifically provided in this section licensed to practice in this state to have 1 or more of the following physical characteristics:

(a) Blindness as determined by an optometrist, a physician, or a physician assistant.

(b) Inability to walk more than 200 feet without having to stop and rest.

(c) Inability to do both of the following:

(i) Use 1 or both legs or feet.

(ii) Walk without the use of a wheelchair, walker, crutch, brace, prosthetic, or other device, or without the assistance of another person.

(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.

(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American heart association and approved by the department of public health.

(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.

(g) The persistent reliance upon an oxygen source other than ordinary air.

History: Add. 1977, Act 19, Eff. Oct. 1, 1977 ;-- Am. 1978, Act 64, Imd. Eff. Mar. 14, 1978 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1994, Act 432, Imd. Eff. Jan. 6, 1995 ;-- Am. 1996, Act 198, Imd. Eff. May 17, 1996 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2002, Act 618, Imd. Eff. Dec. 23, 2002

257.19b “Hazardous material” defined.

Sec. 19b.

"Hazardous material" means explosives, flammable gas, flammable compressed gas, nonflammable compressed gas, flammable liquid, oxidizing material, poisonous gas, poisonous liquid, irritating material, etiologic material, radioactive material, corrosive material, or liquefied petroleum gas.

History: Add. 1978, Act 57, Imd. Eff. Mar. 10, 1978

257.20 “Highway or street” defined.

Sec. 20.

"Highway or street" means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.20a "Historic vehicle" defined.

Sec. 20a.

"Historic vehicle" means a vehicle that is over 25 years old and that is owned solely as a collector's item and for participation in club activities, exhibitions, tours, parades, and similar uses, including mechanical testing, but is not used for general transportation. For purposes of this section, use of the vehicle during the period from Memorial Day weekend through Labor Day each year is considered an exhibition.

History: Add. 1996, Act 404, Eff. Dec. 21, 1996 ;-- Am. 2012, Act 239, Imd. Eff. June 29, 2012 ;-- Am. 2024, Act 34, Imd. Eff. Apr. 2, 2024

257.20b "High-occupancy vehicle" or "HOV" defined.

Sec. 20b.

"High-occupancy vehicle" or "HOV" means any motor vehicle carrying no fewer than 2 occupants including the driver of the vehicle.

History: Add. 2008, Act 304, Imd. Eff. Dec. 9, 2008

257.20c "High-occupancy vehicle lane" or "HOV lane" defined.

Sec. 20c.

"High-occupancy vehicle lane" or "HOV lane" means any designated lane or ramp on a highway designated for the exclusive or preferential use of a public transportation vehicle or

private motor vehicles carrying no fewer than a specified number of occupants, including the driver of the vehicle.

History: Add. 2008, Act 304, Imd. Eff. Dec. 9, 2008

257.20d "Ignition interlock device," "breath alcohol ignition interlock device," or "BAIID" defined.

Sec. 20d.

"Ignition interlock device" or "breath alcohol ignition interlock device" or "BAIID" means an alcohol concentration measuring device that prevents a motor vehicle from being started at any time without first determining through a deep lung sample the operator's alcohol level, calibrated so that the motor vehicle cannot be started if the breath alcohol level of the operator, as measured by the test, reaches a level of 0.025 grams per 210 liters of breath, and to which all of the following apply:

(a) The device meets or exceeds the model specifications for breath alcohol ignition interlock devices (BAIID), 78 FR 26849 – 26867 (May 8, 2013) or any subsequent model specifications.

(b) The device utilizes alcohol-specific electrochemical fuel sensor technology.

(c) As its anticircumvention method, the device installation uses a positive-negative-positive air pressure test requirement, a midtest hum tone requirement, or any other anticircumvention method or technology that first becomes commercially available after July 31, 2007 and that is approved by the department as equally or more effective.

History: Add. 2008, Act 462, Eff. Oct. 31, 2010 ;-- Am. 2016, Act 32, Eff. June 6, 2016
Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.21 “Implement of husbandry” defined.

Sec. 21.

"Implement of husbandry" means a vehicle or trailer in use for the exclusive function of serving agricultural, horticultural, or livestock operations. Implement of husbandry includes a farm tractor, self-propelled application-type vehicle, farm wagon, farm trailer, a vehicle or trailer adapted for lifting or carrying another implement of husbandry being used in agricultural production, or any substantially similar equipment used to transport products necessary for agricultural production.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 13, Imd. Eff. Mar. 25, 1964 ;-- Am. 1967, Act 93, Imd. Eff. June 21, 1967 ;-- Am. 1985, Act 32, Imd. Eff. June 13, 1985 ;-- Am. 2012, Act 589, Eff. Mar. 28, 2013 ;-- Am. 2017, Act 94, Eff. Oct. 11, 2017

257.22 “Intersection” defined.

Sec. 22.

"Intersection" means: (a) The area embraced within the prolongation or connection of the lateral curb lines, or, if none, then the lateral boundary lines of the roadways of 2 highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(b) Where a highway includes 2 roadways 30 feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes 2 roadways 30 feet or more apart, then every crossing of 2 roadways of such highways shall be regarded as a separate intersection.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.23 "Judgment" defined.

Sec. 23.

"Judgment" means any judgment which shall become final by expiration without appeal of the time within which an appeal might have been perfected, or by final affirmation on appeal, rendered by a court of competent jurisdiction of any state or of the United States, upon a cause of action arising out of the ownership, maintenance, or use of any motor vehicle, for damages, including damages for care and loss of services, because of bodily injury to or death of any person, or for damages because of injury to or destruction of property, including the loss of use thereof, or upon a cause of action on an agreement of settlement for such damages.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.23a "Juvenile adjudication" defined.

Sec. 23a.

"Juvenile adjudication" means either of the following:

(a) A finding of juvenile delinquency under chapter 403 of title 18 of the United States code, 18 U.S.C. 5031 to 5040 and 5042.

(b) The entry of a judgment or order of disposition by a court of another state that states or is based upon a finding that a juvenile has violated a law of another state, which violation would have been a criminal offense if committed by an adult in that state.

History: Add. 1993, Act 359, Eff. Sept. 1, 1994

257.23b "Juvenile disposition" defined.

Sec. 23b.

"Juvenile disposition" means the entry of an order of disposition for a juvenile found to be within the court's jurisdiction under chapter XIIA of 1939 PA 288, MCL 712A.1 to 712A.32.

History: Add. 1998, Act 356, Eff. Oct. 1, 1999

257.24 "Laned roadway" defined.

Sec. 24.

"Laned roadway" means a roadway which is divided into 2 or more clearly marked lanes for vehicular traffic.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.24a "Leased vehicle" defined.

Sec. 24a.

"Leased vehicle" means a motor vehicle for which a person is granted possession for a contracted period of time and in return for a contracted sum.

History: Add. 1975, Act 314, Imd. Eff. Dec. 22, 1975

257.24b "Late model vehicle" defined.

Sec. 24b.

"Late model vehicle" means a vehicle weighing 8,000 pounds or less, manufactured in the current model year or the 5 model years immediately preceding the current model year, or, if over 8,000 pounds, a vehicle manufactured in the current model year or the 15 model years immediately preceding the current model year.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.24c "Law of another state" defined.

Sec. 24c.

"Law of another state" means a law or ordinance enacted by another state or by a local unit of government in another state.

History: Add. 1991, Act 99, Eff. Jan. 1, 1992

257.25 "License" defined.

Sec. 25.

"License" means any driving privileges, license, temporary instruction permit, commercial learner's permit, or temporary license issued under the laws of this state pertaining to the licensing of persons to operate motor vehicles.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 2015, Act 11, Eff. July 8, 2015

257.25a "Autocycle" defined.

Sec. 25a.

"Autocycle" means a motorcycle that is equipped with safety belts, rollbar or roll hoops, handlebars or a steering wheel, and equipment otherwise required on a motorcycle, has not more than 3 wheels in contact with the roadway at any 1 time, and is not equipped with a straddle seat.

History: Add. 1984, Act 328, Imd. Eff. Dec. 26, 1984 ;-- Am. 2017, Act 94, Eff. Oct. 11, 2017 ;-- Am. 2018, Act 564, Eff. Mar. 29, 2019

257.25b "Low-speed vehicle" defined.

Sec. 25b.

"Low-speed vehicle" means a self-propelled motor vehicle to which both of the following apply:

(a) The vehicle conforms to the definition of low-speed vehicle under 49 CFR 571.3(b).
(b) The vehicle meets the standard for low-speed vehicles under 49 CFR 571.500.

History: Add. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2006, Act 377, Imd. Eff. Sept. 27, 2006

257.25c "Limousine" defined.

Sec. 25c.

"Limousine" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.25d "Limousine driver" defined.

Sec. 25d.

"Limousine driver" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.26 “Limited access highway” defined.

Sec. 26.

"Limited access highway" means every highway, street, or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only, and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.27 “Local authorities” defined.

Sec. 27.

"Local authorities" means every municipal and other local board or body having authority to enact laws relating to traffic under the constitution and laws of this state.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.27a “Major component part” defined.

Sec. 27a.

"Major component part" means 1 of the following parts of a vehicle:
(a) The engine.
(b) The transmission.
(c) The right or left front fender.
(d) The hood.
(e) A door allowing entrance to or egress from the vehicle's passenger compartment of the vehicle.
(f) The front or rear bumper.

(g) The right or left rear quarter panel.
(h) The deck lid, tailgate, or hatchback.
(i) The trunk floor pan.
(j) The cargo box of a pickup.
(k) The frame, or if the vehicle has a unitized body, the supporting structure or structures that serve as the frame.
(l) The cab of a truck.
(m) The body of a passenger vehicle.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.28 “Manufacturer” defined.

Sec. 28.

"Manufacturer" means a person, firm, corporation or association engaged in the manufacture of new motor vehicles, trailers or trailer coaches or semi-trailers, as a regular business.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.29 “Maximum axle load” defined.

Sec. 29.

"Maximum axle load" means the gross weight over the axle which includes vehicles and load.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.30 “Metal tire” defined.

Sec. 30.

"Metal tire" means every tire the surface of which in contact with the highway is wholly or partly of metal or other hard, non-resilient material.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.30a Repealed. 1978, Act 568, Eff. Jan. 6, 1979.

Compiler's Notes: The repealed section defined “mobile home”.

257.30b “Michigan university” defined.

Sec. 30b.

"Michigan university" means any of the following institutions of higher education:
(a) Central Michigan University.
(b) Eastern Michigan University.
(c) Ferris State University.
(d) Grand Valley State University.

(e) Lake Superior State University.
(f) Michigan State University.
(g) Michigan Technological University.
(h) Northern Michigan University.
(i) Oakland University.
(j) Saginaw Valley State University.
(k) University of Michigan - Ann Arbor.
(l) University of Michigan - Dearborn.
(m) University of Michigan - Flint.
(n) Wayne State University.
(o) Western Michigan University.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000

257.30c "Modified agriculture vehicle" defined.

Sec. 30c.

"Modified agriculture vehicle" means a vehicle that satisfies both of the following conditions:

(a) It has been modified from its original use so that the transport of agricultural commodities is the vehicle's primary purpose.

(b) It is certified by the United States department of transportation and United States environmental protection agency for road use before being modified as described in subdivision (a).

History: Add. 2012, Act 252, Imd. Eff. July 2, 2012

257.31 “Motorcycle” defined.

Sec. 31.

"Motorcycle" means a motor vehicle that has a saddle or seat for the use of the rider and is designed to travel on not more than 3 wheels in contact with the ground. Motorcycle includes an autocycle, but does not include a tractor.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2017, Act 94, Eff. Oct. 11, 2017

257.32 Repealed. 1976, Act 439, Imd. Eff. Jan. 13, 1977.

Compiler's Notes: The repealed section defined “motor driven cycle”.

257.32a “Motor home” defined.

Sec. 32a.

"Motor home" means a motor vehicle constructed or altered to provide living quarters, including permanently installed cooking and sleeping facilities, and is used for recreation, camping, or other noncommercial use.

History: Add. 1976, Act 26, Imd. Eff. Feb. 27, 1976

257.32b "Moped" defined.

Sec. 32b.

(1) "Moped" means a 2- or 3-wheeled vehicle to which both of the following apply:

(a) It is equipped with a motor that does not exceed 100 cubic centimeters piston displacement and cannot propel the vehicle at a speed greater than 30 miles per hour on a level surface.

(b) Its power drive system does not require the operator to shift gears.

(2) Moped does not include an electric bicycle.

History: Add. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1983, Act 91, Imd. Eff. June 16, 1983 ;-- Am. 2012, Act 424, Imd. Eff. Dec. 21, 2012 ;-- Am. 2017, Act 139, Eff. Jan. 28, 2018

257.33 "Motor vehicle" defined.

Sec. 33.

"Motor vehicle" means every vehicle that is self-propelled, but for purposes of chapter 4, motor vehicle does not include industrial equipment such as a forklift, a front-end loader, or other construction equipment that is not subject to registration under this act. Motor vehicle does not include a power-driven mobility device when that power-driven mobility device is being used by an individual with a mobility disability. Motor vehicle does not include an electric patrol vehicle being operated in compliance with the electric patrol vehicle act, 1997 PA 55, MCL 257.1571 to 257.1577. Motor vehicle does not include an electric personal assistive mobility device. Motor vehicle does not include an electric carriage. Motor vehicle does not include a commercial quadricycle. Motor vehicle does not include an electric bicycle. Motor vehicle does not include an electric skateboard.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 1995, Act 140, Imd. Eff. July 10, 1995 ;-- Am. 1997, Act 56, Imd. Eff. July 1, 1997 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002 ;-- Am. 2013, Act 36, Imd. Eff. May 21, 2013 ;-- Am. 2015, Act 127, Imd. Eff. July 15, 2015 ;-- Am. 2017, Act 139, Eff. Jan. 28, 2018 ;-- Am. 2018, Act 204, Eff. Sept. 18, 2018 ;-- Am. 2018, Act 391, Eff. Mar. 19, 2019

257.33a “New motor vehicle” defined.

Sec. 33a.

"New motor vehicle" means a motor vehicle which is not and has not been a demonstrator, executive or manufacturer's vehicle, leased vehicle, or a used or secondhand vehicle.

History: Add. 1975, Act 314, Imd. Eff. Dec. 22, 1975

257.33b “Nonprofit recycling center” defined.

Sec. 33b.

"Nonprofit recycling center" means a nonprofit facility designed and operated solely for receiving, storing, processing, and transferring source-separated recyclable materials such as paper, metal, glass, food waste, office paper, and plastic that are kept separate and apart from residential, commercial, and institutional solid waste by the generator of the waste for the purposes of collection, disposition, and recycling.

History: Add. 1995, Act 129, Imd. Eff. June 30, 1995

257.34 “Nonresident” defined.

Sec. 34.

"Nonresident" means every person who is not a resident of this state.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.35 “Nonresident operating privilege” defined.

Sec. 35.

"Nonresident operating privilege" means the privilege conferred upon a nonresident by the laws of this state pertaining to the operation by him of a motor vehicle, or the use of a motor vehicle owned by him, in this state.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.35a “Operate” or “operating” defined.

Sec. 35a.

"Operate" or "operating" means 1 or more of the following:

(a) Being in actual physical control of a vehicle. This subdivision applies regardless of whether or not the person is licensed under this act as an operator or chauffeur.

(b) Causing an automated motor vehicle to move under its own power in automatic mode upon a highway or street regardless of whether the person is physically present in that automated motor vehicle at that time. This subdivision applies regardless of whether the person is licensed under this act as an operator or chauffeur. As used in this subdivision, "causing an automated motor vehicle to move under its own power in automatic mode" includes engaging the automated technology of that automated motor vehicle for that purpose.

History: Add. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 2013, Act 231, Eff. Mar. 27, 2014

257.35b “Older model vehicle” defined.

Sec. 35b.

"Older model vehicle" means a vehicle weighing 8,000 pounds or less, manufactured in the sixth model year immediately preceding the current model year, or manufactured in any model year before that model year; or, if more than 8,000 pounds, a vehicle manufactured in a model year preceding the fifteenth model year before the current model year.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.35c “Off lease vehicle” defined.

Sec. 35c.

"Off lease vehicle" means a motor vehicle leased for a term of more than 30 days that the lessee elects to purchase.

History: Add. 2002, Act 652, Eff. Jan. 1, 2003

257.36 “Operator” or “operating” defined.

Sec. 36.

"Operator" means a person, other than a chauffeur, who does either of the following:
(a) Operates a motor vehicle upon a highway or street.
(b) Operates an automated motor vehicle upon a highway or street.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2013, Act 231, Eff. Mar. 27, 2014

257.36a “Owner-operator” defined.

Sec. 36a.

"Owner-operator" means an individual who holds the legal title of a commercial vehicle and who leases the commercial vehicle under a lease or arrangement whereby the individual is employed by the lessee to operate the leased vehicle.

History: Add. 1969, Act 309, Imd. Eff. Aug. 14, 1969

257.36b "Out-of-service" defined.

Sec. 36b.

"Out-of-service" means a declaration by an authorized enforcement officer of a state, a local unit of government of a state, the United States, Canada, or the United Mexican States that an operator, a commercial motor vehicle, or a motor carrier operation is out-of-service under 49 CFR 386.72, 392.5, 395.13, or 396.9, or a substantially similar law or ordinance, or the North American uniform out-of-service criteria.

History: Add. 2011, Act 159, Imd. Eff. Sept. 30, 2011

257.36c "Other on-track equipment" defined.

Sec. 36c.

"Other on-track equipment" means any car, rolling stock, or other device that, alone or coupled to another device, is operated on stationary rails.

History: Add. 2018, Act 393, Eff. Mar. 19, 2019

257.37 “Owner” defined.

Sec. 37.

"Owner" means any of the following:
(a) Any person, firm, association, or corporation renting a motor vehicle or having the exclusive use thereof, under a lease or otherwise, for a period that is greater than 30 days.
(b) Except as otherwise provided in section 401a, a person who holds the legal title of a vehicle.
(c) A person who has the immediate right of possession of a vehicle under an installment sale contract.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1988, Act 125, Imd. Eff. May 23, 1988

257.38 “Parking” defined.

Sec. 38.

"Parking" means standing a vehicle, whether occupied or not, upon a highway, when not loading or unloading except when making necessary repairs.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.38a "Park model trailer" defined.

Sec. 38a.

"Park model trailer" means a vehicle that meets all of the following:

(a) Is built on a single chassis, mounted on wheels, and designed to be towed by a motor vehicle from time to time.

(b) Depending on its size, may require a special highway movement permit under section 719a to be towed on a street or highway.

(c) Is designed to provide recreational, seasonal, or temporary living quarters.

(d) When used as recreational, seasonal, or temporary living quarters, may be connected to utilities necessary for the operation of installed fixtures and appliances.

(e) Is not a mobile home as that term is defined in section 2 of the mobile home commission act, 1987 PA 96, MCL 125.2302.

History: Add. 2009, Act 32, Eff. Dec. 1, 2009

257.39 "Pedestrian" defined.

Sec. 39.

"Pedestrian" means any person afoot. Pedestrian includes an individual with a mobility disability who is using a power-driven mobility device.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2018, Act 391, Eff. Mar. 19, 2019

257.39a “Permanent disability” defined.

Sec. 39a.

"Permanent disability" means a physical characteristic categorized as a disability that significantly limits ambulation or necessitates the use of a wheelchair for mobility, or blindness, for which there is a present medical expectation that the disability will always persist and never significantly improve.

History: Add. 1987, Act 257, Eff. Apr. 1, 1988 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998

257.40 “Person” defined.

Sec. 40.

"Person" means every natural person, firm, copartnership, association, or corporation and their legal successors.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.40a “Pickup camper” defined.

Sec. 40a.

"Pickup camper" means a nonself-propelled recreational vehicle, without wheels for road use, that is designed to rest all of its weight upon, and be attached to, a motor vehicle, and is primarily intended for use as temporary living quarters in connection with recreational, camping, or travel purposes. A pickup camper does not include truck covers or caps consisting of walls and a roof but that do not have floors and facilities for using the camper as a dwelling.

History: Add. 1990, Act 98, Eff. Jan. 1, 1991

257.40b "Personal information" and “highly restricted personal information” defined.

Sec. 40b.

(1) "Personal information" means information that identifies an individual, including the individual's photograph or image, name, address (but not the zip code), driver license number, Social Security number, telephone number, digitized signature, and medical and disability information. Personal information does not include information on driving and equipment-related violations or civil infractions, driver or vehicle registration status, vehicular accidents, or other behaviorally-related information.

(2) "Highly restricted personal information" means an individual's photograph or image, Social Security number, digitized signature, medical and disability information, and source documents presented by an applicant to obtain an operator's or chauffeur's license under section 307(1). Highly restricted personal information also includes the confidential address of an individual certified as a program participant in the address confidentiality program under the address confidentiality program act and the emergency contact information under section 310(13). As used in this subsection, "confidential address" means that term as defined in section 3 of the address confidentiality program act.

History: Add. 1997, Act 100, Imd. Eff. Aug. 7, 1997 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020

257.40c "Platoon" defined.

Sec. 40c.

"Platoon" means a group of individual motor vehicles that are traveling in a unified manner at electronically coordinated speeds.

History: Add. 2016, Act 332, Imd. Eff. Dec. 9, 2016

257.40c[1] "Personal vehicle" defined.

Sec. 40c.

"Personal vehicle" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017
Compiler's Notes: This added section is compiled at MCL 257.40c[1] to distinguish it from another Sec. 40c deriving from 2016 PA 332.

257.41 “Pole-trailer” defined.

Sec. 41.

"Pole-trailer" means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregular shaped loads such as poles, pipes or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.41a “Police book” defined.

Sec. 41a.

"Police book" means a hardcover, bound volume or a record in a form prescribed by the secretary of state that provides a bought and sold record for each vehicle handled by a dealer, contains the information required by section 251, and includes any other information required by law or the secretary of state.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999

257.42 "Police officer" defined.

Sec. 42.

"Police officer" means any of the following:
(a) A sheriff or sheriff's deputy.
(b) A village or township marshal.
(c) An officer of the police department of any city, village, or township.
(d) An officer of the department of state police.
(e) A peace officer or law enforcement officer who is licensed under the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615.
(f) For purposes of enforcing sections 215, 255, 631(1) other than for speed by noncommercial vehicle operators, 717, 719, 719a, 720, 722, 724, 725, and 726, a duly authorized agent of a county road commission meeting the requirements of section 726c. However, an authorized agent of a county road commission shall only enforce sections 215 and 255 with respect to commercial vehicles. Except as provided in section 726c(2), an authorized agent of a county road commission is not required to be licensed under the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615, to enforce any law described in this subdivision.
(g) A transit police officer employed by a public body corporate established and maintained pursuant to an interlocal agreement under the urban cooperation act of 1967, 1967 (Ex Sess) PA 7, MCL 124.501 to 124.512, between a city that is authorized by the laws of this state to appoint or employ law enforcement officers and an authority under the metropolitan transportation authorities act of 1967, 1967 PA 204, MCL 124.401 to 124.426, who is licensed

under the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1983, Act 10, Imd. Eff. Mar. 18, 1983 ;-- Am. 1984, Act 74, Imd. Eff. Apr. 18, 1984 ;-- Am. 1989, Act 173, Imd. Eff. Aug. 22, 1989 ;-- Am. 2012, Act 529, Eff. Mar. 28, 2013 ;-- Am. 2016, Act 304, Eff. Jan. 2, 2017 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.43 “Police station” defined.

Sec. 43.

"Police station" means every county jail; every police station in any city, village, or township; and the headquarters and every regular subpost of the Michigan state police.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1983, Act 10, Imd. Eff. Mar. 18, 1983

257.43a "Preliminary chemical breath analysis" defined.

Sec. 43a.

"Preliminary chemical breath analysis" means the on-site taking of a preliminary breath test from the breath of a person for the purpose of detecting the presence of any of the following within the person's body:

(a) Alcoholic liquor.

(b) A controlled substance, as that term is defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

(c) Any other intoxicating substance, as that term is defined in section 625.

(d) Any combination of the substances listed in subdivisions (a) to (c).

History: Add. 2014, Act 315, Eff. Jan. 12, 2015 ;-- Am. 2015, Act 11, Imd. Eff. Apr. 9, 2015

257.43b "Preliminary oral fluid analysis" defined.

Sec. 43b.

"Preliminary oral fluid analysis" means the on-site taking of a preliminary oral fluid test, performed by a certified drug recognition expert, as that term is defined in section 625t, from the oral fluid of a person for the purpose of detecting the presence of a controlled substance, as that term is defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

History: Add. 2016, Act 243, Eff. Sept. 22, 2016
Compiler's Notes: Enacting section 1 of Act 243 of 2016 provides:"Enacting section 1. This amendatory act shall be known and may be cited as the "Barbara J. and Thomas J. Swift Law"."

257.43c "Power-driven mobility device" defined.

Sec. 43c.

"Power-driven mobility device" means a mobility device powered by a battery, fuel, or other engine and used by an individual with a mobility disability for the purpose of locomotion. Notwithstanding any other provision of this act, the requirements of this act apply

to a power-driven mobility device while that device is being operated on a street, road, or highway in this state.

History: Add. 2018, Act 391, Eff. Mar. 19, 2019

257.44 “Private driveway” and “private road” defined.

Sec. 44.

(1) "Private driveway" means any piece of privately owned and maintained property which is used for vehicular traffic, but is not open or normally used by the public.

(2) "Private road" means a privately owned and maintained road, allowing access to more than 1 residence or place of business, which is normally open to the public and upon which persons other than the owners located thereon may also travel.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1974, Act 138, Imd. Eff. June 5, 1974

257.44a “Probate court disposition” defined.

Sec. 44a.

"Probate court disposition" means the entry of an order of disposition for a juvenile found to be within the court's jurisdiction under chapter XIIA of 1939 PA 288, MCL 712A.1 to 712A.32.

History: Add. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1998, Act 356, Eff. Oct. 1, 1999

257.45 “Proof of financial responsibility” defined.

Sec. 45.

"Proof of financial responsibility" means proof of ability to respond in damages for liability, on account of accidents occurring subsequent to the effective date of the proof, arising out of the ownership, maintenance, or use of a motor vehicle, in the amount of $20,000.00 because of bodily injury to or death of 1 person in any one accident, and, subject to said limit for 1 person, in the amount of $40,000.00 because of bodily injury to or death of 2 or more persons in any one accident, and in the amount of $10,000.00 because of injury to or destruction of property of others in any one accident.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 155, Eff. Sept. 13, 1958 ;-- Am. 1971, Act 191, Imd. Eff. Dec. 20, 1971

257.45a “Prosecuting attorney” defined.

Sec. 45a.

"Prosecuting attorney", except as the context otherwise requires, means the attorney general, the prosecuting attorney of a county, or the attorney representing a local unit of government.

History: Add. 1991, Act 99, Eff. Jan. 1, 1992

257.46 "Railroad" defined.

Sec. 46.

"Railroad" means a carrier of persons or property on cars operated on stationary rails. Railroad does not include a streetcar or a street railway system.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.47 “Railroad sign or signal” defined.

Sec. 47.

"Railroad sign or signal" means any sign, signal, or device erected by authority of a statute or public body or official and intended to give notice of the presence of railroad tracks or structures or the approach of a railroad train.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 98, Eff. Sept. 13, 1958

257.48 "Railroad track" defined.

Sec. 48.

"Railroad track" means a stationary rail owned or used by a railroad. Railroad track does not include a stationary rail used by a streetcar or that is part of a street railway system.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.49 "Railroad train" defined.

Sec. 49.

"Railroad train" means an engine or other motor, with or without cars coupled to the engine or motor, operated on railroad tracks.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.49a "Recreational vehicle" defined.

Sec. 49a.

"Recreational vehicle" means a new or used vehicle that has its own motive power or is towed by a motor vehicle; is primarily designed to provide temporary living quarters for recreational, camping, travel, or seasonal use; complies with all applicable federal vehicle regulations; and does not require a special highway movement permit under section 719a to be operated or towed on a street or highway. The term includes, but is not limited to, a motor home, travel trailer, park model trailer that does not require a special highway movement permit under section 719a, or pickup camper.

History: Add. 2009, Act 32, Eff. Dec. 1, 2009

257.50 “Registration” defined.

Sec. 50.

"Registration" means a registration certificate, plate, adhesive tab, or other indicator of registration issued under this act for display on a vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978

257.50a “Residence address” defined.

Sec. 50a.

"Residence address" means the place that is the settled home or domicile at which a person legally resides as defined in section 11 of the Michigan election law, 1954 PA 116, MCL 168.11.

History: Add. 1999, Act 118, Eff. Apr. 1, 2000 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.51 Repealed. 2006, Act 85, Eff. Nov. 9, 2006.

Compiler's Notes: The repealed section pertained to "residence district" defined.

257.51a “Resident” defined.

Sec. 51a.

"Resident" means every person who resides in this state and establishes that he or she is legally present in the United States. This definition applies to the provisions of this act only.

History: Add. 1968, Act 106, Imd. Eff. June 7, 1968 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.52 “Revocation” defined.

Sec. 52.

(1) "Revocation" means that the operator's or chauffeur's license and privilege to operate a motor vehicle on the public highways are terminated and shall not be renewed or restored until the later of the following:

(a) The expiration of not less than 1 year after the license was revoked.

(b) The expiration of not less than 5 years after the date of a subsequent revocation occurring within 7 years after the date of a prior revocation.

(2) If a license has been revoked, an application for a new license may be presented and acted upon by the secretary of state as provided in section 303.

(3) When referring to a dealer license, "revocation" means that a person's authorization to engage in business as a dealer is terminated and shall not be restored or renewed, except that an application for a new license may be considered at the discretion of the secretary of state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and

liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.53 "Right-of-way" defined.

Sec. 53.

"Right-of-way" means the privilege of the immediate use of the highway.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.54 "Road tractor" defined.

Sec. 54.

"Road tractor" means every motor vehicle designed and used for drawing other vehicles and not so constructed as to carry any load thereon either independently or any part of the weight of the vehicle or load so drawn.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.55 "Roadway" defined.

Sec. 55.

"Roadway" means that portion of a highway improved, designed, or ordinarily used for vehicular travel. In the event a highway includes 2 or more separate roadways, the term "roadway", as used herein, shall refer to any such roadway separately, but not to all such roadways collectively.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.56 "Safety zone" defined.

Sec. 56.

"Safety zone" means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected and so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.56a "Salvage vehicle" defined.

Sec. 56a.

"Salvage vehicle" means a vehicle for which a salvage certificate has been issued by the secretary of state.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.56b "Salvageable part" defined.

Sec. 56b.

"Salvageable part" means a major component part of a late model vehicle or a vehicle manufactured in the current model year, if the part is serviceable to the extent that it can be reused.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.56c "Salvage vehicle agent" defined.

Sec. 56c.

"Salvage vehicle agent" means a person employed by a licensed automotive recycler, used or secondhand vehicle parts dealer, or foreign salvage vehicle dealer and authorized by the secretary of state to buy, sell, acquire, or otherwise deal in distressed, late model vehicles, scrap vehicles, or salvageable parts through a salvage pool.

History: Add. 1993, Act 300, Eff. July 1, 1994

257.57 "School bus" defined.

Sec. 57.

"School bus" means every motor vehicle, except station wagons, with a manufacturers' rated seating capacity of 16 or more passengers, including the driver, owned by a public, private, or governmental agency and operated for the transportation of children to or from school, or privately owned and operated for compensation for the transportation of children to or from school.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 22, Eff. Aug. 28, 1964 ;-- Am. 1981, Act 112, Imd. Eff. July 17, 1981 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011
Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.57a "School crossing" defined.

Sec. 57a.

"School crossing" means a crosswalk designated by the department of state highways and transportation, a county road commission, or a local authority as a place to be used by school children for crossing a street or highway.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978

257.57b “School crossing guard” defined.

Sec. 57b.

"School crossing guard" means a person 17 years of age or older authorized to supervise children using a school crossing as provided in section 613c.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978 ;-- Am. 2003, Act 212, Imd. Eff. Nov. 26, 2003

257.57c Repealed. 2002, Act 534, Eff. Oct. 1, 2002.

Compiler's Notes: The repealed section pertained to definition of school transportation vehicle.

257.57d “Scrap certificate of title” defined.

Sec. 57d.

"Scrap certificate of title" means a document issued by the secretary of state evidencing ownership of a scrap vehicle, which may be assigned only to a scrap metal processor, an automotive recycler, used or secondhand vehicle parts dealer, or a foreign salvage vehicle dealer and reassignable only to a vehicle scrap metal processor.

History: Add. 1993, Act 300, Eff. July 1, 1994

257.57e “Scrap vehicle” defined.

Sec. 57e.

"Scrap vehicle" means a vehicle that is wrecked, destroyed, damaged, or that has a major component part stolen or missing to the extent that the total estimated cost of repairs to rebuild or reconstruct the vehicle, including parts and labor, is equal to or greater than 91% of the actual cash value of the vehicle in its predamaged condition or any vehicle that comes into this state with a scrap title or comparable certificate of title. The estimated cost of the repair parts shall be determined by using the current published retail cost of original manufacturer equipment parts or an estimate of the actual cost of the repair parts. The estimated labor costs shall be computed by using the hourly rate and time allocations which are reasonable and commonly assessed in the repair industry in the community where the repairs are performed. For the purpose of this section, "actual cash value" means the retail dollar value of a vehicle as determined by an objective vehicle evaluation using local market resources such as dealers or want ads or by an independent vehicle evaluation or vehicle appraisal service or by a current issue of a nationally recognized used vehicle guide for financial institution appraisal purposes in this state.

History: Add. 1993, Act 300, Eff. July 1, 1994

257.58 “Secretary of state” defined.

Sec. 58.

"Secretary of state" means the secretary of state of this state, acting directly or through his duly authorized deputy, investigators, agents and employees.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.58b "Security interest,""security agreement,""secured party,""debtor,""financing statement," and "termination statement" defined.

Sec. 58b.

"Security interest", "security agreement", "secured party", "debtor", "financing statement", and "termination statement" as used in this act mean those terms as defined in the uniform commercial code, 1962 PA 174, MCL 440.1101 to 440.11102.

History: Add. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 2000, Act 353, Eff. Mar. 28, 2001

257.58c "Serious impairment of a body function" defined.

Sec. 58c.

"Serious impairment of a body function" includes, but is not limited to, 1 or more of the following:

(a) Loss of a limb or loss of use of a limb.
(b) Loss of a foot, hand, finger, or thumb or loss of use of a foot, hand, finger, or thumb.
(c) Loss of an eye or ear or loss of use of an eye or ear.
(d) Loss or substantial impairment of a bodily function.
(e) Serious visible disfigurement.
(f) A comatose state that lasts for more than 3 days.
(g) Measurable brain or mental impairment.
(h) A skull fracture or other serious bone fracture.
(i) Subdural hemorrhage or subdural hematoma.
(j) Loss of an organ.

History: Add. 2001, Act 134, Eff. Feb. 1, 2002

257.59 "Semi-trailer" defined.

Sec. 59.

"Semi-trailer" means every vehicle with or without motive power, other than a pole-trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle. Semi-trailer does not include any implement of husbandry.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2012, Act 589, Eff. Mar. 28, 2013

257.59a "Shoulder" and "ditch slope" defined.

Sec. 59a.

"Shoulder" means that portion of the highway contiguous to the roadway generally extending the contour of the roadway, not designed for vehicular travel but maintained for the temporary accommodation of disabled or stopped vehicles otherwise permitted on the roadway.

"Ditch slope" is that portion of the highway adjacent to the shoulder if one exists or adjacent to the roadway on roads without shoulders, extending to the bottom of the roadside

ditch and is not constructed or maintained for the use of any vehicles except those engaged in construction or maintenance.

History: Add. 1974, Act 152, Imd. Eff. June 12, 1974

257.60 “Sidewalk” defined.

Sec. 60.

"Sidewalk" means that portion of a street between the curb lines, or the lateral lines of roadway, and the adjacent property lines intended for the use of pedestrians.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.61 “Spacings between axles” defined.

Sec. 61.

"Spacings between axles" means the distance from axle center to axle center.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.62 “Special mobile equipment” defined.

Sec. 62.

"Special mobile equipment" means every vehicle not designed or used primarily for the transportation of persons or property and incidentally operated or moved over the highways, including farm tractors, road construction or maintenance machinery, mobile office trailers, mobile tool shed trailers, mobile trailer units used for housing stationary construction equipment, ditch-digging apparatus, and well-boring and well-servicing apparatus. The foregoing enumeration shall be considered partial and shall not operate to exclude other vehicles which are within the general terms of this definition. Although not within the general terms of this definition, the combination of a mobile car crusher trailer permanently attached to a truck tractor or road tractor shall be considered special mobile equipment for purposes of this act.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1962, Act 66, Imd. Eff. Apr. 23, 1962 ;-- Am. 1992, Act 119, Imd. Eff. June 26, 1992

257.62a "Standardized field sobriety test" defined.

Sec. 62a.

"Standardized field sobriety test" means 1 of the standardized tests validated by the National Highway Traffic Safety Administration. A field sobriety test is considered a standardized field sobriety test under this section if it is administered in substantial compliance with the standards prescribed by the National Highway Traffic Safety Administration.

History: Add. 2016, Act 242, Eff. Sept. 22, 2016

257.63 "Streetcar" defined.

Sec. 63.

"Streetcar" means a car other than a railroad train for transporting persons or property operated on stationary rails, including a streetcar operated as part of a street railway system.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.63a "Streetcar track" defined.

Sec. 63a.

"Streetcar track" means a stationary rail owned by a street railway that is part of a street railway system.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.64 “Street or highway” defined.

Sec. 64.

"Street or highway" means the entire width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.64a "Street railway" defined.

Sec. 64a.

"Street railway" means that term as defined under section 507 of the recodified tax increment financing act, 2018 PA 57, MCL 125.4507.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.64b "Street railway system" defined.

Sec. 64b.

"Street railway system" means that term as defined under section 507 of the recodified tax increment financing act, 2018 PA 57, MCL 125.4507.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.65 "State" defined.

Sec. 65.

"State" means any state, territory, or possession of the United States, Indian country as defined in 18 USC 1151, the District of Columbia, the Dominion of Canada, or any province or territory of the Dominion of Canada.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004

257.66 “Suspension” defined.

Sec. 66.

"Suspension" means that the driver's license and privilege to drive a motor vehicle on the public highways are temporarily withdrawn but only during the period of the suspension. When referring to a dealer license, "suspension" means that a person's authorization to engage in business as a dealer is temporarily withdrawn.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 507, Eff. July 1, 1979

257.67 “Tandem axle” defined.

Sec. 67.

"Tandem axle" means 2 axles spaced more than 3 feet 6 inches and less than 9 feet apart.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.67a “Tandem axle assembly” and “tank vehicle” defined.

Sec. 67a.

(1) "Tandem axle assembly" means 2 axles spaced more than 3 feet 6 inches and less than 9 feet apart, 1 axle in front of the other and so attached to the vehicle wherein an attempt is made by connecting mechanism to distribute the weight equally between the 2 axles.

(2) "Tank vehicle" means any commercial motor vehicle that is designed to transport any liquid or gaseous material within a tank or tanks having an individual rated capacity of more than 119 gallons and an aggregate rated capacity of 1,000 gallons or more that are either permanently or temporarily attached to the vehicle or the chassis. If a commercial motor vehicle transports 1 or more tanks manifested either as being empty or containing only residue, those tanks shall not be considered in determining whether the vehicle is a tank vehicle.

History: Add. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 2015, Act 11, Eff. July 8, 2015

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.67b “Temporary disability” defined.

Sec. 67b.

"Temporary disability" means a physical characteristic categorized as a disability that significantly limits ambulation or necessitates the use of a wheelchair for mobility, or blindness, for which there is a present medical expectation that the disability will improve.

History: Add. 1987, Act 257, Eff. Apr. 1, 1988 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998

257.67c "Taxicab" defined.

Sec. 67c.

"Taxicab" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.67d "Taxicab driver" defined.

Sec. 67d.

"Taxicab driver" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.68 “Through highway” defined.

Sec. 68.

"Through highway" means every state trunk line highway, or, any other highway at the entrance to which vehicular traffic from intersecting highways is required by law to stop before entering or crossing the same.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.69 "Traffic" defined.

Sec. 69.

"Traffic" means pedestrians, ridden or herded animals, vehicles, streetcars, and other conveyances either singly or together while using any highway for purposes of travel.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.70 “Traffic control devices” defined.

Sec. 70.

"Traffic control devices" means all signs, signals, markings, and devices not inconsistent with this act placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.71 “Traffic control order” defined.

Sec. 71.

"Traffic control order" means an order officially establishing the location of traffic control devices and traffic control signals on the highways of this state by the authority having jurisdiction over such highway and filed with the county clerk of the county traversed by such highway. A certified copy thereof shall be prima facie evidence in all courts of the issuance of such order.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.72 “Traffic control signal” defined.

Sec. 72.

"Traffic control signal" means any device whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.73 “Trailer” defined.

Sec. 73.

"Trailer" means every vehicle with or without motive power, other than a pole-trailer, designed for carrying property or persons and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle. Trailer does not include any implement of husbandry.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2012, Act 589, Eff. Mar. 28, 2013

257.74 “Trailer coach” defined.

Sec. 74.

"Trailer coach" means every vehicle primarily designed and used as temporary living quarters for recreational, camping, or travel purposes and drawn by another vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 262, Eff. Sept. 28, 1951 ;-- Am. 1978, Act 568, Eff. Jan. 6, 1979

257.74a "Travel trailer," "camping trailer," and "fifth wheel trailer" defined.

Sec. 74a.

(1) "Travel trailer" means a trailer coach, fifth wheel trailer, camping trailer, or other vehicle that is designed to be towed by a motor vehicle; is designed to provide temporary living

quarters for recreational, camping, or travel use; and does not require a special highway movement permit under section 719a to be towed on a street or highway.

(2) As used in this section:

(a) "Camping trailer" means a trailer coach constructed with collapsible side walls that fold for towing and unfold to provide temporary living quarters for recreational, camping, or travel use.

(b) "Fifth wheel trailer" means a trailer coach designed to be towed by a motor vehicle using a towing mechanism that is mounted above or forward of the tow vehicle's rear axle.

History: Add. 2009, Act 32, Eff. Dec. 1, 2009

257.75 “Truck” defined.

Sec. 75.

"Truck" means every motor vehicle designed, used, or maintained primarily for the transportation of property.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.76 “Transporter” defined.

Sec. 76.

"Transporter" means every person engaged in the business of delivering vehicles of a type required to be registered hereunder from a manufacturing, assembling or distributing plant to dealers or sales agents of a manufacturer, and every person certificated by the Michigan public service commission to engage in the business of moving trailer coaches or mobile homes. This section shall not affect duly authorized permit holders.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1961, Act 4, Imd. Eff. Mar. 27, 1961

257.76a "Transportation network company" defined.

Sec. 76a.

"Transportation network company" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.76b "Transportation network company driver" defined.

Sec. 76b.

"Transportation network company driver" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.76c "Transportation network company prearranged ride" defined.

Sec. 76c.

"Transportation network company prearranged ride" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.76d "Transportation network company rider" defined.

Sec. 76d.

"Transportation network company rider" means that term as defined in section 2 of the limousine, taxicab, and transportation network company act.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.77 “Truck tractor” defined.

Sec. 77.

"Truck tractor" means every motor vehicle designed and used primarily for drawing other vehicles, and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn, except that a truck tractor and semitrailer engaged in the transportation of automobiles may transport motor vehicles on part of the power unit.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1985, Act 174, Imd. Eff. Dec. 2, 1985

257.78 “Used or second-hand vehicle” defined.

Sec. 78.

"Used or second-hand vehicle" means any motor vehicle to which a certificate of title and license plates have been issued and which motor vehicle has been registered for use on the highways by a consumer or by a dealer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 238, Eff. Sept. 28, 1951

257.78a “Used vehicle parts dealer” or “used or secondhand vehicle parts dealer” defined.

Sec. 78a.

"Used vehicle parts dealer" or "used or secondhand vehicle parts dealer" means a person engaged in the business of buying or otherwise dealing in vehicles for the purpose of dismantling the vehicles to sell used parts and remaining scrap metal or a person engaged in the business of buying, acquiring, selling, or otherwise dealing in salvageable parts.

History: Add. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.79 “Vehicle” defined.

Sec. 79.

"Vehicle" means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices exclusively moved by human power or used exclusively upon stationary rails or tracks and except, only for the purpose of titling and registration under this act, a mobile home as defined in section 2 of the mobile home

commission act, Act No. 96 of the Public Acts of 1987, being section 125.2302 of the Michigan Compiled Laws.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 568, Eff. Jan. 6, 1979 ;-- Am. 1992, Act 134, Eff. Oct. 1, 1992

257.79a "Vehicle salvage pool" defined.

Sec. 79a.

"Vehicle salvage pool" means a person engaged in the business of storing and displaying damaged or distressed vehicles as an agent or escrow agent of an insurance company.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.79b "Vehicle scrap metal processor" defined.

Sec. 79b.

"Vehicle scrap metal processor" means a dealer engaged in the business of buying or otherwise acquiring vehicles for the purpose of processing and selling the metal for remelting. A vehicle scrap metal processor shall not sell major components or other parts for vehicle repair purposes, unless the vehicle scrap metal processor first obtains a used or secondhand vehicle parts dealer license.

History: Add. 1978, Act 507, Eff. July 1, 1979

257.79c "Wrecker" defined.

Sec. 79c.

"Wrecker" means a truck with a hoist, towing apparatus, or self-loading flatbed, or any combination of these items, permanently affixed to the truck, used to transport not more than 2 vehicles, except for a motor vehicle equipped with a fifth wheel or a motor vehicle that tows the second vehicle on a trailer.

History: Add. 1994, Act 95, Eff. June 1, 1994

257.79d "Work zone" and "temporary traffic control device" defined.

Sec. 79d.

(1) "Work zone" means a portion of a street or highway open to vehicular traffic and adjacent to a barrier, berm, lane, or shoulder of a street or highway within which construction, maintenance, public utility work, reconstruction, repair, resurfacing, or surveying is being conducted by 1 or more individuals and that meets any of the following:

(a) Is between both of the following:

(i) A sign notifying the beginning of work.

(ii) An "end road work" sign or, if no sign is posted, the last temporary traffic control device before the normal flow of traffic resumes.

(b) Is between a "begin work convoy" sign and an "end work convoy" sign.

(c) If a moving or stationary vehicle or equipment exhibiting a rotating beacon or strobe light is used, is between both of the following points:

(i) A point that is 150 feet behind the rear of the vehicle or equipment or that is the point from which the beacon or strobe light is first visible on the street or highway behind the vehicle or equipment, whichever is closer to the vehicle or equipment.

(ii) A point that is 150 feet in front of the front of the vehicle or equipment or that is the point from which the beacon or strobe light is first visible on the street or highway in front of the vehicle or equipment, whichever is closer to the vehicle or equipment.

(2) As used in this section, "temporary traffic control device" means a traffic control device that is installed for a limited time period during construction, maintenance, public utility work, reconstruction, repair, resurfacing, or surveying as described in subsection (1).

History: Add. 2003, Act 315, Eff. Apr. 8, 2004 ;-- Am. 2024, Act 164, Eff. Apr. 2, 2025

257.79e "Wholesaler" defined.

Sec. 79e.

"Wholesaler" means a person who is engaged in the business of selling used vehicles to or purchasing used vehicles from a licensed motor vehicle dealer and who does not sell or offer for sale motor vehicles of any classification to a person other than a licensed motor vehicle dealer.

History: Add. 2004, Act 495, Eff. Jan. 31, 2005
Compiler's Notes: Former MCL 257.79e, which pertained to definition of work zone, was repealed by Act 62 of 2004, Eff. Apr. 8, 2004.

257.79f "Boat lift" defined.

Sec. 79f.

"Boat lift" means a vehicle owned and operated by a marina or watercraft dealer in a commercial boat storage operation with a framework designed to surround or straddle a boat and lift the boat from water or a storage space using a sling and hoisting mechanism. A boat lift shall be specifically designed for and used exclusively to transport a boat between a place of storage and a marina or in and around a marina. Boat lift does not include a boat trailer designed for normal or routine transportation of a watercraft.

History: Add. 2008, Act 539, Imd. Eff. Jan. 13, 2009

257.80 Tenses; definition.

Sec. 80.

The present tense includes the past and future tenses; and the future, the present.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.81 Number and gender; definitions.

Sec. 81.

The singular shall include the plural and the plural shall include the singular; the masculine shall include the feminine and neuter, as requisite.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.82 “Shall” and “may” defined.

Sec. 82.

"Shall" and "may" means shall is mandatory and may is permissive.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.83 "Specialty court", "specialty court program", and "specialty court interlock program" defined.

Sec. 83.

As used in this act:

(a) "Specialty court" or "specialty court program" means any of the following:

(i) A drug treatment court, as that term is defined in section 1060 of the revised judicature act of 1961, 1961 PA 236, MCL 600.1060, in which the participant is an adult.

(ii) A DWI/sobriety court, as that term is defined in section 1084 of the revised judicature act of 1961, 1961 PA 236, MCL 600.1084.

(iii) A hybrid of the programs under subparagraphs (i) and (ii).

(iv) A mental health court, as that term is defined in section 1090 of the revised judicature act of 1961, 1961 PA 236, MCL 600.1090.

(v) A veterans treatment court, as that term is defined in section 1200 of the revised judicature act of 1961, 1961 PA 236, MCL 600.1200.

(b) "Specialty court interlock program" means a program as that term is defined in section 1084 of the revised judicature act of 1961, 1961 PA 236, MCL 600.1084.

History: Add. 2020, Act 383, Eff. Mar. 24, 2021 ;-- Am. 2023, Act 125, Imd. Eff. Sept. 19, 2023

Chapter II
ADMINISTRATION, REGISTRATION, CERTIFICATE OF TITLE AND ANTI-THEFT

257.201 Reference to “division”.

Sec. 201.

When a reference is made in this act to "division", the reference is to the secretary of state or an authorized representative of the secretary of state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 139, Eff. May 1, 1979

257.202 Secretary of state as exclusive state agent.

Sec. 202.

Except as provided in this act, the secretary of state is the exclusive state agent for the administration of the driver license provisions of this act.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 139, Eff. May 1, 1979

257.203 Appointment of employees.

Sec. 203.

Subject to the civil service laws of this state, the secretary of state shall appoint deputies, subordinate officers, clerks, investigators, and other employees as necessary to administer this act.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 139, Eff. May 1, 1979

257.203a Meaning of “commissioner” in MCL 257.301 to 257.327; effect of MCL 257.201 to 257.203a.

Sec. 203a.

(1) As used in sections 301 to 327, "commissioner" means the secretary of state or an authorized representative of the secretary of state.

(2) Sections 201 to 203a shall not alter, modify, or amend the functions, duties, and responsibilities of an elected or appointed state or local official under this act.

History: Add. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 139, Eff. May 1, 1979

257.204 Administration and enforcement of act; establishment of highway patrol prohibited; rules; official seal.

Sec. 204.

(1) Except as provided in this act, the secretary of state shall observe, enforce, and administer this act. The secretary of state shall not establish a highway patrol.

(2) The secretary of state may promulgate rules pursuant to Act No. 306 of the Public Acts of 1969, as amended, being sections 24.201 to 24.315 of the Michigan Compiled Laws, necessary to administer this act.

(3) The secretary of state may adopt an official seal.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 139, Eff. May 1, 1979
Admin Rule: R 257.21 et seq.; R 257.31 et seq.; R 257.181 et seq.; R 257.301 et seq.; R 257.351 et seq.; and R 257.801 et seq. of the Michigan Administrative Code.

257.204a Central file of individual driving records; certified copies as evidence; electronic certification; use of computer-generated certified information; persons who may receive information contained in records maintained by secretary of state.

Sec. 204a.

(1) The secretary of state shall create and maintain a computerized central file that provides an individual historical driving record for a natural person with respect to all of the following:

(a) A license issued to the individual under chapter III.

(b) A conviction, civil infraction determination, or other licensing action that is entered against the individual for a violation of this act or a local ordinance that substantially corresponds to a provision of this act, or that is reported to the secretary of state by another jurisdiction.

(c) A failure of the individual, including a nonresident, to comply with a suspension issued under section 321a.

(d) A cancellation, denial, revocation, suspension, or restriction of the individual's operating privilege, or other licensing action regarding that individual, under this act or that is reported to the secretary of state by another jurisdiction. This subdivision also applies to nonresidents.

(e) An accident in which the individual is involved.

(f) Any driving record requested and received by the secretary of state under section 307.

(g) Any notice given by the secretary of state and the information provided in that notice under section 317(2) or (3).

(h) Any other information received by the secretary of state regarding the individual that is required to be maintained as part of the individual's driving record as provided by law.

(2) A secretary of state certified computer-generated or paper copy of an order, record, or paper maintained in the computerized central file of the secretary of state is admissible in evidence in the same manner as the original and is prima facie proof of the contents of and the facts stated in the original.

(3) An order, record, or paper generated by the computerized central file of the secretary of state may be certified electronically by the generating computer. The certification must be a certification of the order, record, or paper as it appeared on a specific date.

(4) A court or the office of the clerk of a court of this state that is electronically connected by a terminal device to the computerized central file of the secretary of state may receive into and use as evidence in any case the computer-generated certified information obtained by the terminal device from the file. A duly authorized employee of a court of record of this state may order a record for an individual from a secretary of state computer terminal device located in, and under the control of, the court, and certify in writing that the document was produced from the terminal and that the document was not altered in any way.

(5) After receiving a request for information contained in records maintained under this section, the secretary of state shall provide the information, in a form prescribed by the secretary of state, to any of the following:

(a) Another state.

(b) The United States Secretary of Transportation.

(c) The individual who is the subject of the record.

(d) A motor carrier employer or prospective motor carrier employer, but only if the individual who is the subject of the record is first notified of the request as prescribed by the secretary of state.

(e) An authorized agent of an individual or entity listed in subdivisions (a) to (d).

History: Add. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1968, Act 278, Imd. Eff. July 1, 1968 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1996, Act 102, Imd. Eff. Mar. 5, 1996 ;-- Am. 1998, Act 346, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025

257.204b Conviction of attempted violation; effect.

Sec. 204b.

(1) When assessing points, taking licensing or registration actions, or imposing other sanctions under this act for a conviction of an attempted violation of a law of this state, a local ordinance substantially corresponding to a law of this state, or a law of another state substantially corresponding to a law of this state, the secretary of state or the court shall treat the conviction the same as if it were a conviction for the completed offense.

(2) The court shall impose a criminal penalty for a conviction of an attempted violation of this act or a local ordinance substantially corresponding to a provision of this act in the same manner as if the offense had been completed.

History: Add. 1998, Act 347, Eff. Oct. 1, 1999

257.205 Secretary of state; office and branch offices; establishment; employees; bond; liability for loss of money; person appointed to conduct branch office; compensation and expenses.

Sec. 205.

(1) The secretary of state shall maintain an office in the state capitol complex, and in other places in the state as the secretary of state considers necessary to carry out the powers and duties vested in the secretary of state. At least 1 office shall be established in each county of the state and in each city of the state having a population of 10,000 or more, but not within a radius of 5 miles from a county office location. This subsection does not apply in a county having a population of 300,000 or more, nor to contiguous cities having a combined population of 10,000 or more. A person licensed under section 248, is not eligible for appointment to conduct, manage, or be an employee of a branch or fee office of the secretary of state.

(2) A bond may be required of a person in an office established under subsection (1) in an amount that the secretary of state prescribes to cover the safe handling of money received under this act. The secretary of state shall not be held personally liable for a loss of money because of armed robbery, larceny, embezzlement, riot, act of God, or other act of a person resulting in a loss of money which is within the authority and responsibility of the secretary of state as the administrator of this act.

(3) A person appointed to conduct a branch office shall receive compensation fixed by the secretary of state, and necessary expenses of the office. The compensation and expenses shall be paid out of the Michigan transportation fund and shall be deducted from the fund before the fund is certified to the state treasurer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1961, Act 210, Eff. Sept. 8, 1961 ;-- Am. 1969, Act 47, Imd. Eff. July 17, 1969 ;-- Am. 1970, Act 177, Imd. Eff. Aug. 3, 1970 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981

257.205a Plan to fully reopen secretary of state branches; written report.

Sec. 205a.

Within 30 days after the effective date of the amendatory act that added this section, the department shall provide a written report to the senate majority leader, the speaker of the house of representatives, and the chairpersons of the senate and house of representatives appropriations committees detailing the department's plan to reopen all secretary of state's

branches to the general public for in-person services, without the requirement of an appointment. The written report must include, but is not limited to, all of the following:

(a) The number of staff that will return to in-person work.

(b) The manner in which the department will transition returning staff back to in-person work.

(c) The manner in which the department will notify members of the public that secretary of state's branches are open for in-person services, without the requirement of an appointment.

(d) How the department will prioritize customers who were unable to renew essential documents beginning March 24, 2020, due to the closing of the secretary of state's branches and appointment only policy.

(e) The department's plans to ensure the safety of the staff and customers in reopened secretary of state's branches.

(f) Details on hours of operation for reopened secretary of state's branches.

(g) How the department will utilize the use of kiosks and other automated services at reopened secretary of state's branches.

History: Add. 2021, Act 71, Imd. Eff. July 29, 2021

257.206 Forms.

Sec. 206.

The secretary of state may prescribe and provide suitable forms of applications, certificates of title, registration certificates, operators' and chauffeurs' licenses, and all other forms requisite or deemed necessary to carry out the provisions of this act, the enforcement and administration of which are vested in the department.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.207 Administering oaths and acknowledging signatures without fee; certified copy of record; fee; evidence; electronic certification; use of computer-generated certified information.

Sec. 207.

(1) An officer or employee designated by the secretary of state for the purpose of administering the motor vehicle laws shall administer oaths and acknowledge signatures without fee.

(2) The secretary of state and the officers designated by the secretary of state may prepare under the seal of the secretary of state and deliver upon request, a certified copy of a record maintained under this act and charge a fee as set forth in this act.

(3) A certified computer-generated or paper copy of a record maintained under this act shall be admissible in a proceeding in a court in the same manner as the original record and shall be prima facie evidence of the contents of and the facts stated on the record.

(4) An order, record, or paper generated by the computerized central file of the secretary of state may be certified electronically by the generating computer. The certification shall be a certification of the order, record, or paper as it appeared on a specific date.

(5) A court or the office of the clerk of a court of this state that is electronically connected by a terminal device to the computerized central file of the secretary of state may receive into

and use as evidence in any case the computer-generated certified information obtained by the terminal device from the file. A duly authorized employee of a court of record of this state may order a record for an individual from a secretary of state computer terminal device located in, and under the control of, the court, and certify in writing that the document was produced from the terminal and that the document was not altered in any way.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1968, Act 278, Imd. Eff. July 1, 1968 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1996, Act 102, Imd. Eff. Mar. 5, 1996

257.207a Electronic driver license status check; request by approved agency; maintenance of written permission by organization; compliance with safeguards; fee.

Sec. 207a.

(1) The secretary of state may provide an electronic driver license status check of a person who transports clients or provides medical or other health, human, or social services for an organization exempt from taxation under section 501(c)(3) of the internal revenue code. The electronic driver license status check provided by the secretary of state shall identify the person's driver license type and status and shall indicate whether the driver has any points on his or her driving record.

(2) The secretary of state shall process an electronic driver license status check under subsection (1) only if the request is submitted by an agency serving an organization described in subsection (1) that is approved by the secretary of state. An organization exempt from taxation under section 501(c)(3) of the internal revenue code shall provide an approved agency with the driver identification information as prescribed by the secretary of state and certify that the organization has the written permission of the driver to obtain his or her driver license status check under section 208c(3)(m). The written permission shall be maintained by the organization for a period of not less than 5 years.

(3) The secretary of state may require both the organization and the agency to comply with any safeguards the secretary of state considers reasonable or necessary to protect the rights of a driver for whom a status check is requested. Safeguards may include a bond requirement and written designation authorizing disclosure executed under section 208c(3)(m).

(4) The secretary of state shall not charge a fee for an electronic driver license status check submitted by an approved agency. An organization that requests an actual copy of a record shall pay the same fee as any other requester of a record copy.

History: Add. 1998, Act 105, Eff. Mar. 23, 1999

257.208 Destruction of certain records; maintaining of records involving operation of commercial motor vehicles.

Sec. 208.

(1) Except as otherwise specified in this section, the secretary of state may destroy any department records maintained on file for 7 years, including the information contained in the central file maintained under section 204a.

(2) Except as otherwise provided in this section, records of convictions of any offense for which points are provided under section 320a(1)(a), (b), (c), or (g) or section 320a(8) may be destroyed after being maintained on file for 10 years. However, if an individual is convicted of violating section 625, the record of that conviction must be maintained for the life of the individual.

(3) If an individual who is a commercial license holder or a noncommercial license holder who operates a commercial motor vehicle is convicted under a law of this state, a local ordinance that substantially corresponds to a law of this state, or a law of another state that substantially corresponds to a law of this state of any of the following violations, the record of that conviction must be maintained for the life of the individual or until the individual moves to another jurisdiction:

(a) Operating a vehicle in violation of section 625.

(b) Operating a commercial motor vehicle in violation of section 625m.

(c) Leaving the scene of an accident.

(d) Using a vehicle to commit a felony.

(e) Refusing to take an alcohol or controlled substance test required under this act.

(f) Operating a commercial motor vehicle when the individual's operator's or chauffeur's license or vehicle group designation is suspended, revoked, or canceled as a result of prior violations committed while operating a commercial motor vehicle.

(g) Operating a commercial motor vehicle when the individual is disqualified from operating a commercial motor vehicle.

(h) Causing any fatality through the negligent operation of a commercial motor vehicle.

(4) Records of stolen vehicles reported in section 253 may be destroyed after being maintained on file for the year of entry plus 4 years.

(5) Except as otherwise specified in this act, records the secretary of state considers obsolete and of no further service in carrying out the department's powers and duties may be destroyed on that determination.

(6) If a record of suspension under section 321a does not contain a conviction for a violation of section 904 or a local ordinance that substantially corresponds to section 904 during the period of suspension, the secretary of state may destroy the record 180 days after the suspension terminates or as provided in subsections (1) to (5).

(7) The secretary of state may destroy a record maintained under section 204a 180 days after the nonresident driver against whom a civil infraction determination is entered complies with an order or judgment issued under section 907.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1980, Act 460, Imd. Eff. Jan. 15, 1981 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 471, Eff. Apr. 1, 1997 ;-- Am. 1997, Act 100, Imd. Eff. Aug. 7, 1997 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2006, Act 565, Eff. Oct. 31, 2010 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.208a Availability of records to the public.

Sec. 208a.

Records maintained under this act, other than those declared to be confidential by law or which are restricted by law from disclosure to the public, shall be available to the public in

accordance with procedures prescribed in this act, the freedom of information act, 1976 PA 442, MCL 15.231 to 15.246, or other applicable laws.

History: Add. 1997, Act 100, Imd. Eff. Aug. 7, 1997

257.208b Commercial look-up service; records and information maintained by driver education provider or limousine carrier of passengers; disposition of fees; providing file to nongovernmental person or entity; failure to provide information; fines; definitions.

Sec. 208b.

(1) The secretary of state may provide a commercial look-up service of records maintained under this act. For each individual record looked up, the secretary of state shall charge a fee of $15.00 per record. The secretary of state shall process a commercial look-up request only if the request is in a form or format prescribed by the secretary of state. Until October 1, 2027, fees collected under this subsection must be credited to the transportation administration collection fund created in section 810b.

(2) A driver education provider shall subscribe to the commercial look-up service maintained by the secretary of state.

(3) A driver education provider shall maintain on its premises the most current copy of all nonpersonal information related to the driver education provider's driving record and the driving record of each instructor employed by the driver education provider for review by a prospective customer or the parent or guardian of a prospective customer.

(4) A prospective customer or the parent or guardian of a prospective customer may review a copy of all nonpersonal information related to the driving record of the driver education provider or an instructor employed by the driver education provider.

(5) A driver education provider shall include in its contract with each client, as prescribed by the secretary of state, a notice that nonpersonal information related to the driving record of each individual instructor is available for review by the general public. A driver education provider that fails to include the information required by this subsection is responsible for a civil infraction.

(6) A limousine carrier of passengers shall subscribe to the commercial look-up service maintained by the secretary of state.

(7) An individual who drives a limousine for hire for a limousine carrier of passengers shall maintain the most current copy of all nonpersonal information related to the individual's driving record in the limousine available for review by any prospective passenger.

(8) A prospective passenger may review a copy of all nonpersonal information related to the driving record of the driver of a limousine from a limousine carrier of passengers or from the driver of the limousine.

(9) The secretary of state shall not provide an entire computerized central file or other file of records maintained under this act to a nongovernmental person or entity, unless the person or entity pays the prescribed fee for each individual record contained within the computerized file.

(10) A driver education provider that fails to provide the information required to be maintained by this section is responsible for a civil infraction. Each failure to provide information constitutes a separate offense.

(11) A limousine carrier of passengers who fails to provide the information required to be maintained by this section is responsible for a civil infraction. Each failure to provide information constitutes a separate offense.

(12) The driver of a limousine who fails to provide the information required by this section is responsible for a civil infraction. Each failure to provide information constitutes a separate offense.

(13) As used in this section:

(a) "Driver education provider" means that term as defined in section 5 of the driver education provider and instructor act, 2006 PA 384, MCL 256.625.

(b) "Limousine carrier" and "limousine" mean those terms as defined in section 2 of the limousine, taxicab, and transportation network company act, 2016 PA 345, MCL 257.2102.

History: Add. 1997, Act 100, Imd. Eff. Aug. 7, 1997 ;-- Am. 1998, Act 12, Eff. June 1, 1998 ;-- Am. 1998, Act 329, Eff. Oct. 1, 1998 ;-- Am. 2000, Act 159, Imd. Eff. June 14, 2000 ;-- Am. 2005, Act 173, Imd. Eff. Oct. 12, 2005 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 73, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.208c Disclosure of personal information; uses.

Sec. 208c.

(1) Except as provided in this section and in section 232, personal information in a record maintained under this act shall not be disclosed, unless the person requesting the information furnishes proof of identity satisfactory to the secretary of state and certifies that the personal information requested will be used for a permissible purpose identified in this section or in section 232. However, highly restricted personal information shall be used and disclosed only as expressly permitted in section 307 or as otherwise expressly provided by law.

(2) Personal information in a record maintained under this act shall be disclosed by the secretary of state if required to carry out the purposes of federal law or federal regulations.

(3) Personal information in a record maintained under this act may be disclosed by the secretary of state as follows:

(a) For use by a federal, state, or local governmental agency, including a court or law enforcement agency, in carrying out the agency's functions, or by a private person or entity acting on behalf of a governmental agency in carrying out the agency's functions.

(b) For use in connection with matters of motor vehicle and driver safety or auto theft; motor vehicle emissions; motor vehicle product alterations, recalls, or advisories; performance monitoring of motor vehicles; motor vehicle market research activities, including survey research; and the removal of nonowner records from the original records of motor vehicle manufacturers.

(c) For use in the normal course of business by a legitimate business, including the agents, employees, and contractors of the business, but only to verify the accuracy of personal information submitted by an individual to the business or its agents, employees, or contractors, and if the information as so submitted is no longer correct, to obtain the correct information, for the sole purpose of preventing fraud by pursuing legal remedies against, or recovering on a debt against, the individual.

(d) For use in connection with a civil, criminal, administrative, or arbitration proceeding in a federal, state, or local court or governmental agency or before a self-regulatory body, including use for service of process, investigation in anticipation of litigation, and the execution or enforcement of judgments and orders, or pursuant to an order of a federal, state, or local court, an administrative agency, or a self-regulatory body.

(e) For use in legitimate research activities and in preparing statistical reports for commercial, scholarly, or academic purposes by a bona fide research organization, if the personal information is not published, redisclosed, or used to contact individuals.

(f) For use by an insurer or insurance support organization, or by a self-insured entity, or its agents, employees, or contractors, in connection with claims investigating activity, antifraud activity, rating, or underwriting.

(g) For use in providing notice to the owner of an abandoned, towed, or impounded vehicle or for use by the custodian of a vehicle that is considered an abandoned vehicle as defined in sections 252a, 252b, and 252d.

(h) For use either by a private detective or private investigator licensed under the professional investigator licensure act, 1965 PA 285, MCL 338.821 to 338.851, or by a private security guard agency or alarm system contractor licensed under the private security business and security alarm act, 1968 PA 330, MCL 338.1051 to 338.1083, only for a purpose permitted under this section.

(i) For use by an employer, or the employer's agent or insurer, to obtain or verify information relating either to the holder of a commercial driver license that is required under federal law or to the holder of a chauffeur's license that is required under chapter 3.

(j) For use by a car rental business, or its employees, agents, contractors, or service firms, for the purpose of making rental decisions.

(k) For use in connection with the operation of private toll transportation facilities.

(l) For use by a news medium in the preparation and dissemination of a report related in part or in whole to the operation of a motor vehicle or public safety. "News medium" includes a newspaper, a magazine or periodical published at regular intervals, a news service, a broadcast network, a television station, a radio station, a cablecaster, or an entity employed by any of the foregoing.

(m) For any use by an individual requesting information pertaining to himself or herself or requesting in writing that the secretary of state provide information pertaining to himself or herself to the individual's designee. A request for disclosure to a designee, however, may be submitted only by the individual.

(4) Medical and disability information in a record maintained under this act may be used and disclosed for purposes of subsection (3)(a), (d), or (m).

History: Add. 1997, Act 100, Imd. Eff. Aug. 7, 1997 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009

257.208d Resale or redisclosure of personal information; duties of recipient.

Sec. 208d.

(1) An authorized recipient of personal information disclosed under section 208c may resell or redisclose the information only for a use permitted under section 208c.

(2) An authorized recipient of personal information disclosed under section 208c who resells or rediscloses the information shall do both of the following:

(a) Make and keep for a period of not less than 5 years records identifying each person who received personal information from the authorized recipient and the permitted use for which it was obtained.

(b) Allow a representative of the secretary of state, upon request, to inspect and copy records identifying each person who received personal information from the authorized recipient and the permitted use for which it was obtained.

History: Add. 1997, Act 101, Imd. Eff. Aug. 7, 1997

257.209 Application for registration; certificate of title; operator's or other license, investigation.

Sec. 209.

The department shall examine and determine the genuineness, regularity, and legality of every application for registration of a vehicle, for a certificate of title therefor, and for an operator's or chauffeur's license and of any other application lawfully made to the department, and may in all cases make investigation as may be deemed necessary or require additional information, and shall reject any such application if not satisfied of the genuineness, regularity, or legality thereof or the truth of any statement contained therein, or for any other reason, when authorized by law.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.210 Title, registration certificate, permit, license or plate; seizure; possession and custody of plate; security interest.

Sec. 210.

The department is hereby authorized to take possession of any certificate of title, registration certificate, permit, license or registration plate issued by it upon expiration, revocation, cancellation or suspension thereof, or which is fictitious, or which has been unlawfully or erroneously issued, and the department or any agent thereof is authorized to take possession and custody of any registration plate found attached to any motor vehicle for which it was not issued, or when any other unlawful use is being made thereof. Expiration, revocation, cancellation or suspension of a certificate of title does not, in itself, affect the validity of a security interest noted on it.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965

257.211 Synopsis, summary, or compilation of laws relating to vehicles; selling price of compilation; disposition and use of money collected.

Sec. 211.

(1) The secretary of state may publish a synopsis or summary of the laws of this state regulating the operation of vehicles and may deliver a copy without charge as the secretary of state may deem necessary.

(2) The secretary of state may publish a compilation of the laws of this state relating to the ownership and operation of vehicles and other laws relative to the department of state. The secretary of state shall establish a selling price for the compilation and may raise or lower the selling price of the compilation to reflect changes in preparation, printing and distribution costs.

(3) Money collected from the sale of the compilation shall be credited to a revolving fund created by this act, known as the "Michigan department of state publications fund". Money in the fund shall be used to pay preparation, printing and distribution costs incurred by the department in connection with the publication. Money in the fund at the close of a fiscal year shall remain in the fund.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 137, Imd. Eff. May 29, 1980

257.212 Notice; methods.

Sec. 212.

(1) If the secretary of state is authorized or required to give notice under this act or other law regulating the operation of a vehicle, unless a different method of giving notice is otherwise expressly prescribed, notice shall be given either by personal delivery to the person to be notified or by first-class United States mail addressed to the person at the address shown by the record of the secretary of state. The giving of notice by mail is complete upon the expiration of 5 days after mailing the notice.

(2) Any notice required to be provided under this act may be provided by electronic means.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2016, Act 32, Eff. June 6, 2016
Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.213 Officers and investigators; powers.

Sec. 213.

The secretary of state and the officers and investigators of the department whom he or she designates have the following powers:

(a) To inspect any vehicle of a type required to be registered under this act and the salvageable parts of a vehicle of a type required to be registered under this act in any public garage or repair shop or in any place where vehicles are held for sale, lease, dismantling, or wrecking, for the purpose of locating stolen vehicles and parts of stolen vehicles and investigating the title and registration of vehicles. In enforcing the provisions of this subdivision, the secretary of state and the officers and investigators have the powers of peace officers.

(b) To examine the books and records of all persons licensed under this act pertaining to the selling, buying, leasing, dismantling, brokering, or wrecking of vehicles of a type required to be registered under this act, and the payment and collection of tax provided for in this act.

(c) The powers of peace officers for the purpose of enforcing the provisions of chapter 5.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1955, Act 159, Imd. Eff. June 7, 1955 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003

257.214 Badge of authority.

Sec. 214.

(a) The secretary of state shall issue to each person named under section 213 of this act a proper badge of authority designating the position held by the person to whom issued. Every such badge shall display a distinctive serial number.

(b) Neither the secretary of state nor any other person shall issue any such badge to any person who is not a duly employed and acting officer or investigator of said department.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.215 Vehicle unregistered or without certificate of title; operation; misdemeanor, exception.

Sec. 215.

It is a misdemeanor for any person to drive or move or for an owner knowingly to permit to be driven or moved upon any highway any vehicle of a type required to be registered hereunder which is not registered or for which a certificate of title has not been applied for or for which the appropriate fee has not been paid when and as required hereunder, except as provided in subsection (b) of section 217.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 51, Eff. Aug. 28, 1964

257.216 Vehicles subject to registration and certificate of title provisions; pandemic expiration extension.

Sec. 216.

(1) Every motor vehicle, recreational vehicle, trailer, semitrailer, and pole trailer, when driven or moved on a street or highway, is subject to the registration and certificate of title provisions of this act except the following:

(a) A vehicle driven or moved on a street or highway in conformance with the provisions of this act relating to manufacturers, transporters, dealers, or nonresidents.

(b) A vehicle that is driven or moved on a street or highway only for the purpose of crossing that street or highway from 1 property to another.

(c) An implement of husbandry.

(d) Special mobile equipment. The secretary of state may issue a special registration to an individual, partnership, corporation, or association not licensed as a dealer that pays the required fee, to identify special mobile equipment that is driven or moved on a street or highway.

(e) A vehicle that is propelled exclusively by electric power obtained from overhead trolley wires though not operated on rails.

(f) Any vehicle subject to registration, but owned by the government of the United States.

(g) A certificate of title is not required for a trailer, semitrailer, or pole trailer that weighs less than 2,500 pounds.

(h) A vehicle driven or moved on a street or highway, by the most direct route, only for the purpose of securing a scale weight receipt from a weighmaster for purposes of section 801 or obtaining a vehicle inspection by a law enforcement agency before titling or registration of that vehicle.

(i) A certificate of title is not required for a vehicle owned by a manufacturer or dealer and held for sale or lease, even though incidentally moved on a street or highway or used for purposes of testing or demonstration.

(j) A bus or a school bus that is not self-propelled and is used exclusively as a construction shanty.

(k) A certificate of title is not required for a moped.

(l) Except as otherwise provided in subsection (3), for 3 days immediately following the date of a properly assigned title or signed lease agreement from any person other than a dealer, a registration is not required for a vehicle driven or moved on a street or highway for the sole purpose of transporting the vehicle by the most direct route from the place of purchase or lease to a place of storage if the driver has in his or her possession the assigned title showing the date of sale or a lease agreement showing the date of the lease.

(m) A certificate of registration is not required for a pickup camper, but a certificate of title is required.

(n) A new motor vehicle driven or moved on a street or highway only for the purpose of moving the vehicle from an accident site to a storage location if the vehicle was being transported on a railroad car or semitrailer that was involved in a disabling accident.

(o) A boat lift used for transporting vessels between a marina or a body of water and a place of inland storage.

(2) Except as otherwise provided in this subsection, a registration issued to a motor vehicle, recreational vehicle, trailer, semitrailer, or pole trailer, when driven or moved on a street or highway, that expires on or after March 1, 2020 is valid until March 31, 2021. Except as otherwise provided in this subsection, a registration issued to a motor vehicle, recreational vehicle, trailer, semitrailer, or pole trailer, when driven or moved on a street or highway, that expires after March 31, 2021 but before August 1, 2021, is valid until 120 days after the date of the expiration. If the registration issued to a motor vehicle, recreational vehicle, trailer, semitrailer, or pole trailer, when driven or moved on a street or highway, that is used for commercial purposes expires on or after March 1, 2020, the registration is valid until March 31, 2021. If the registration issued to a motor vehicle, recreational vehicle, trailer, semitrailer, or pole trailer, when driven or moved on a street or highway, that is used for commercial purposes expires after March 31, 2021 but before August 1, 2021, the registration is valid until 120 days after the date of the expiration.

(3) Notwithstanding any provision of law to the contrary, until March 31, 2021, a properly assigned title or signed lease agreement from any person other than a dealer is considered proof of registration of the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 69, Eff. Sept. 28, 1951 ;-- Am. 1953, Act 110, Eff. Oct. 2, 1953 ;-- Am. 1957, Act 110, Imd. Eff. May 24, 1957 ;-- Am. 1959, Act 155, Eff. Mar. 19, 1960 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 139, Imd. Eff. June 11, 1968 ;-- Am. 1974, Act 70, Eff. Apr. 1, 1975 ;-- Am. 1976, Act 74, Imd. Eff. Apr. 11, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1981, Act 75, Imd. Eff. June 30, 1981 ;-- Am. 1983, Act 186, Imd. Eff. Oct. 25, 1983 ;-- Am. 1985, Act 32, Imd. Eff. June 13, 1985 ;-- Am. 1988, Act 214, Imd. Eff. June 30, 1988 ;-- Am. 1989, Act 286, Imd. Eff. Dec. 26, 1989 ;-- Am. 1990, Act 98, Eff. Jan. 1, 1991 ;-- Am. 1992, Act 102, Imd. Eff. June 25, 1992 ;-- Am. 1996, Act 141, Imd. Eff. Mar. 25, 1996 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2009, Act 32, Eff. Dec. 1, 2009 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.217 Application for registration and certificate of title; out-of-state vehicle; form; fee; signature of owner; contents; leased pickup truck or vehicle; duties of dealer and person selling or leasing certain vehicles; off lease or buy back vehicle; temporary registration; service fee; imprint on back side of check or bank draft; liability for damages; perfection of security interest; exception for 2021.

Sec. 217.

(1) An owner of a vehicle that is subject to registration under this act shall apply to the secretary of state, on an appropriate form furnished by the secretary of state, for the registration of the vehicle and issuance of a certificate of title for the vehicle. A vehicle brought into this state from another state or jurisdiction that has a rebuilt, salvage, scrap, flood, or comparable certificate of title issued by that other state or jurisdiction must be issued a rebuilt, salvage, scrap, or flood certificate of title by the secretary of state. The application must be accompanied by the required fee. An application for a certificate of title must bear the signature or verification and certification of the owner. The application must contain all of the following:

(a) The owner's name, the owner's bona fide residence, and either of the following:

(i) If the owner is an individual, the owner's mailing address.

(ii) If the owner is a firm, association, partnership, limited liability company, or corporation, the owner's business address.

(b) A description of the vehicle including the make or name, style of body, and model year; the number of miles, not including the tenths of a mile, registered on the vehicle's odometer at the time of transfer; whether the vehicle is a flood vehicle or another state previously issued the vehicle a flood certificate of title; whether the vehicle is to be or has been used as a taxi or police vehicle, or by a political subdivision of this state, unless the vehicle is owned by a dealer and loaned or leased to a political subdivision of this state for use as a driver education vehicle; whether the vehicle has previously been issued a salvage or rebuilt certificate of title from this state or a comparable certificate of title from any other state or jurisdiction; the vehicle identification number; and the vehicle's weight fully equipped, if a passenger vehicle registered in accordance with section 801(1)(a), and, if a trailer coach or pickup camper, in addition to the weight, the manufacturer's serial number, or in the absence of the serial number, a number assigned by the secretary of state. A number assigned by the secretary of state must be permanently placed on the trailer coach or pickup camper in the manner and place designated by the secretary of state.

(c) A statement of the applicant's title and the names and addresses of the holders of security interests in the vehicle and in an accessory to the vehicle, in the order of their priority.

(d) Further information that the secretary of state reasonably requires to enable the secretary of state to determine whether the vehicle is lawfully entitled to registration and the owner entitled to a certificate of title. If the secretary of state is not satisfied as to the ownership of a vehicle having a value over $2,500.00 or that is less than 10 years old, before registering the vehicle and issuing a certificate of title, the secretary of state may require the applicant to file a properly executed surety bond in a form prescribed by the secretary of state and executed by the applicant and a company authorized to conduct a surety business in this state. The bond must be in an amount equal to twice the value of the vehicle as determined by the secretary of state and must be conditioned to indemnify or reimburse the secretary of state, any prior owner, and any subsequent purchaser or lessee of the vehicle and their successors in interest against any expense, loss, or damage, including reasonable attorney fees, because of the issuance of a certificate of title for the vehicle or on account of any defect in the right, title, or interest of the applicant in the vehicle. An interested person has a right of action to recover on the bond for a breach of the conditions of the bond, but the aggregate liability of the surety to all persons must not exceed the amount of the bond. If the secretary of state is not satisfied as to the ownership of a vehicle that is valued at $2,500.00 or less and that is 10 years old or older, the secretary of state shall require the applicant to certify that the applicant is the owner of the vehicle and entitled to register and title the vehicle.

(e) Except as provided in subdivision (f), an application for a commercial vehicle must also have attached a scale weight receipt of the motor vehicle fully equipped as of the time the application is made. A scale weight receipt is not necessary if there is presented with the application a registration receipt of the previous year that shows on its face the empty weight of the motor vehicle as registered with the secretary of state that is accompanied by a statement of the applicant that there has not been structural change in the motor vehicle that has increased the empty weight and that the previous registered weight is the true weight.

(f) An application for registration of a vehicle on the basis of elected gross weight must include a declaration by the applicant specifying the elected gross weight for which application is being made.

(g) If the application is for a certificate of title of a motor vehicle registered in accordance with section 801(1)(p), the application must include the manufacturer's suggested base list price for the model year of the vehicle. The base list price must be the manufacturer's suggested retail price as shown on the label required to be affixed to the vehicle under 15 USC 1232. If the manufacturer's suggested retail price is unavailable, the application must list the purchase price of the vehicle. As used in this subdivision, "purchase price" means that term as defined in section 801.

(2) An applicant for registration of a leased pickup truck or passenger vehicle that is subject to registration under this act, except a vehicle that is subject to a registration fee under section 801g, shall disclose in writing to the secretary of state the lessee's name, the lessee's bona fide residence, and either of the following:

(a) If the lessee is an individual, the lessee's Michigan driver license number or Michigan personal identification number or, if the lessee does not have a Michigan driver license or Michigan personal identification number, the lessee's mailing address.

(b) If the lessee is a firm, association, partnership, limited liability company, or corporation, the lessee's business address.

(3) The secretary of state shall maintain the information described in subsection (2) on the secretary of state's computer records.

(4) Except as provided in subsections (5), (11), and (12), a dealer selling, leasing, or exchanging vehicles required to be titled, within 21 days after delivering a vehicle to the purchaser or lessee, and a person engaged in the sale of vessels required to be numbered by part 801 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80101 to 324.80199, within 21 days after delivering a boat trailer weighing less than 2,500 pounds to the purchaser or lessee, shall apply to the secretary of state for a new title, if required, and transfer or secure registration plates and secure a certificate of registration for the vehicle or boat trailer, in the name of the purchaser or lessee. Subject to subsection (11), the dealer's license may be suspended or revoked in accordance with section 249 for failure to apply for a title when required or for failure to transfer or secure registration plates and certificate of registration within the 21 days required by this section. Subject to subsection (11), if the dealer or person fails to apply for a title when required, and to transfer or secure registration plates and secure a certificate of registration and pay the required fees within 21 days of delivery of the vehicle or boat trailer, a title and registration for the vehicle or boat trailer may subsequently be acquired only on the payment of a late transfer fee of $50.00 for an individual or a dealer other than a dealer subject to section 235b in addition to the fees specified in section 806. Subject to subsection (11), for a used or secondhand vehicle dealer subject to section 235b, the late transfer fee is $100.00 in addition to the fees specified in section 806. The purchaser or lessee of the vehicle or the purchaser of the boat trailer shall sign the application, including, if applicable, the declaration specifying the maximum elected

gross weight as required by subsection (1)(f), and other necessary papers to enable the dealer or person to secure the title, registration plates, and transfers from the secretary of state. If the secretary of state mails or delivers a purchaser's certificate of title to a dealer, the dealer shall mail or deliver the certificate of title to the purchaser not later than 5 days after receiving the certificate of title from the secretary of state. However, as provided under section 238, the secretary of state is not required to issue a paper title to the owner of a vehicle or lienholder if the title is subject to a security interest, and may issue an electronic title as provided under section 222.

(5) Except as provided in subsection (12), a dealer selling or exchanging an off lease or buy back vehicle shall apply to the secretary of state for a new title for the vehicle within 21 days after it receives the certificate of title from the lessor or manufacturer under section 235 or section 235b and transfer or secure registration plates and secure a certificate of registration for the vehicle in the name of the purchaser. Subject to subsection (12), the dealer's license may be suspended or revoked in accordance with section 249 for failure to apply for a title when required or for failure to transfer or secure registration plates and certificate of registration within the 21-day period. Subject to subsection (12), if the dealer or person fails to apply for a title when required, and to transfer or secure registration plates and secure a certificate of registration and pay the required fees within the 21-day time period, a title and registration for the vehicle may subsequently be acquired only on the payment of a late transfer fee of $50.00 for an individual or dealer other than a used or secondhand vehicle dealer subject to section 235b in addition to the fees specified in section 806. Subject to subsection (12), the late transfer fee for a used or secondhand vehicle dealer subject to section 235b is $100.00 in addition to the fees specified in section 806. The purchaser of the vehicle shall sign the application, including, if applicable, the declaration specifying the maximum elected gross weight as required by subsection (1)(f), and other necessary papers to enable the dealer or person to secure the title, registration plates, and transfers from the secretary of state. If the secretary of state mails or delivers a purchaser's certificate of title to a dealer, the dealer shall mail or deliver the certificate of title to the purchaser not later than 5 days after receiving the certificate of title from the secretary of state. However, as provided under section 238, the secretary of state is not required to issue a paper title to the owner of a vehicle if the title is subject to a security interest, and may issue an electronic title as provided under section 222.

(6) If a vehicle is delivered to a purchaser or lessee who has valid Michigan registration plates that are to be transferred to the vehicle, and an application for title, if required, and registration for the vehicle is not made before delivery of the vehicle to the purchaser or lessee, the registration plates must be affixed to the vehicle immediately, and the dealer shall provide the purchaser or lessee with an instrument in writing, on a form prescribed by the secretary of state, which serves as a temporary registration for the vehicle for a period of 30 days from the date the vehicle is delivered.

(7) If the seller does not prepare the credit information, contract note, and mortgage, and the holder, finance company, credit union, or banking institution requires the installment seller to record the lien on the title, the holder, finance company, credit union, or banking institution shall pay the seller a service fee of not more than $10.00. The service fee must be paid from the finance charges and must not be charged to the buyer in addition to the finance charges. The holder, finance company, credit union, or banking institution shall issue its check or bank draft for the principal amount financed, payable jointly to the buyer and seller, and the following must be imprinted on the back side of the check or bank draft:

"Under Michigan law, the seller must record a first lien in favor of (name of lender) _____ on the vehicle with vehicle identification number _____ and title the vehicle only in the name(s) shown on the reverse side."

(8) On the front of the check or draft described under subsection (7), the holder, finance company, credit union, or banking institution shall note the name or names of the prospective owners. Failure of the holder, finance company, credit union, or banking institution to comply with these requirements frees the seller from any obligation to record the lien or from any liability that may arise as a result of the failure to record the lien. A service fee must not be charged to the buyer.

(9) In the absence of actual malice proved independently and not inferred from lack of probable cause, a person who in any manner causes a prosecution for larceny of a motor vehicle; for embezzlement of a motor vehicle; for any crime an element of which is the taking of a motor vehicle without authority; or for buying, receiving, possessing, leasing, or aiding in the concealment of a stolen, embezzled, or converted motor vehicle knowing that the motor vehicle has been stolen, embezzled, or converted, is not liable for damages in a civil action for causing the prosecution. This subsection does not relieve a person from proving any other element necessary to sustain the person's cause of action.

(10) Receipt by the secretary of state of a properly tendered application for a certificate of title on which a security interest in a vehicle is to be indicated is a condition of perfection of a security interest in the vehicle and is equivalent to filing a financing statement under the uniform commercial code, 1962 PA 174, MCL 440.1101 to 440.9994, with respect to the vehicle. When a security interest in a vehicle is perfected, it has priority over the rights of a lien creditor as that term is defined in section 9102 of the uniform commercial code, 1962 PA 174, MCL 440.9102.

(11) Notwithstanding subsection (4), a dealer selling, leasing, or exchanging vehicles, required to be titled, after March 31, 2021 but before August 1, 2021, may apply to the secretary of state for a new title, if required, and transfer or secure registration plates and secure a certificate of registration for the vehicle in the name of the purchaser within 30 days. Both of the following apply to a dealer that complies with this subsection:

(a) The dealer's license must not be suspended or revoked in accordance with section 249 for failure to apply for a title when required or for failure to transfer or secure registration plates and certificate of registration within the 21-day period required under subsection (4).

(b) The secretary of state shall not charge any applicable late fees required under subsection (4) and shall, on the dealer's request, reimburse a late fee charged and collected after March 31, 2021 to the end of the period described under this subsection.

(12) Notwithstanding subsection (5), a dealer selling or exchanging an off lease or buy back vehicle after March 31, 2021 but before August 1, 2021 may apply to the secretary of state for a new title for the vehicle within 30 days after the dealer receives the certificate of title from the lessor or manufacturer under section 235 or 235b and transfer or secure registration plates and secure a certificate of registration for the vehicle in the name of the purchaser. Both of the following apply to a dealer that complies with this subsection:

(a) The dealer's license must not be suspended or revoked in accordance with section 249 for failure to apply for a title when required or for failure to transfer or secure registration plates and certificate of registration within the 21-day period required under subsection (5).

(b) The secretary of state shall not charge any applicable late fees required under subsection (5) and shall, on the dealer's request, reimburse a late fee charged and collected after March 31, 2021 to the end of the period described under this subsection.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1954, Act 112, Eff. Aug. 13, 1954 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1964, Act 51, Eff. Aug. 28, 1964 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 1969, Act 256, Eff. Mar. 20, 1970 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 75, Imd. Eff. June 30, 1981 ;-- Am. 1983, Act 165, Eff. Oct. 1, 1983 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 1989, Act 136, Imd. Eff. June 29, 1989 ;-- Am. 1990, Act 98, Eff. Jan. 1, 1991 ;-- Am. 1992, Act 117, Imd. Eff. June 26, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 1996, Act 59, Imd. Eff. Feb. 26, 1996 ;-- Am. 1998, Act 247, Imd. Eff. July 8, 1998 ;-- Am. 2000, Act 397, Imd. Eff. Jan. 8, 2001 ;-- Am. 2002, Act 552, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2005, Act 36, Imd. Eff. June 7, 2005 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2014, Act 290, Eff. Mar. 31, 2015 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023 ;-- Am. 2023, Act 240, Eff. Feb. 13, 2024
Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.217a Registration plate inscribed with official amateur radio call letters; application; proof; fees; issuance of plate for vehicle bearing registration issued pursuant to MCL 257.801(1)(a) or (p); use on other vehicle as misdemeanor; surrender of registration plate; submission of application; expiration date.

Sec. 217a.

(1) A person who holds an unexpired technician, general, conditional, advanced, or extra class amateur radio license issued by the Federal Communications Commission may apply directly to the secretary of state for a registration plate inscribed with the official amateur radio call letters of the applicant as assigned by the Federal Communications Commission.

(2) The applicant shall prove to the satisfaction of the secretary of state that the applicant holds an unexpired amateur radio license. In addition to the regular registration fee, the applicant shall pay a service fee of $2.00. The $2.00 fee must be credited to the transportation administration collection fund created under section 810b through October 1, 2027. A registration plate may be issued under this section for a motor vehicle that bears a registration taxed under section 801(1)(a) or (p).

(3) If a registration plate issued under this section is used on a vehicle other than the vehicle for which the registration plate was issued, the owner of the registration plate is guilty of a misdemeanor and the registration plate must be surrendered to the secretary of state. A holder of a registration plate whose amateur radio license is not in full force and effect shall immediately surrender the registration plate issued under this section to the secretary of state and obtain a regular registration plate.

(4) An application for a registration plate issued under this section must be submitted to the secretary of state under section 217. The expiration date for plates issued under this section is determined under section 226.

History: Add. 1953, Act 142, Eff. Oct. 2, 1953 ;-- Am. 1955, Act 182, Eff. Oct. 14, 1955 ;-- Am. 1960, Act 97, Eff. Aug. 17, 1960 ;-- Am. 1966, Act 171, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 419, Eff. Mar. 30, 1989 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 73, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.217b Moped; manufacturer's identification number.

Sec. 217b.

A moped and a low-speed vehicle shall have permanently affixed to their frame a manufacturer's identification number.

History: Add. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2000, Act 82, Eff. July 1, 2000

257.217c Acquisition of salvage, distressed, or older model vehicles; issuance of salvage or scrap certificates of title; salvage vehicle inspections; sale of vehicles; notice of designation as salvage vehicle; removal of scrap vehicle from state; determination of repair and labor costs; vehicle inspection fee; audit; "actual cash value" defined.

Sec. 217c.

(1) The secretary of state may conduct periodic reviews of the records of a dealer to determine whether adequate notice is given to a transferee or lessee of a rebuilt salvage vehicle of that vehicle's prior designation as a salvage vehicle. The secretary of state may request an insurance company to provide copies of salvage title documents and claims reports involving major component parts to assist the secretary of state in monitoring compliance with this act.

(2) Except for a late model vehicle that has been stolen and recovered and that has no major component part removed, missing, or destroyed, or damaged and not salvageable, an insurance company licensed to conduct business in this state that acquires ownership of a late model vehicle through the payment of a claim shall proceed under either of the following:

(a) If the insurance company acquires ownership of the vehicle through payment of a claim, the owner of the vehicle must assign the certificate of title to the insurance company which shall do all of the following:

(i) Surrender a properly assigned certificate of title to the secretary of state.

(ii) If the estimated cost of repair, including parts and labor, is equal to or more than 75% but less than 91% of the predamaged actual cash value of the vehicle, apply for a salvage certificate of title, and if the estimated cost of repair, including parts and labor, is equal to or greater than 91% of the predamaged actual cash value of the vehicle, apply for a scrap certificate of title. The insurance company shall not sell the vehicle without first receiving a salvage or scrap certificate of title, which shall be assigned to the buyer. An insurance company may assign a salvage or scrap certificate of the title only to an automotive recycler, used or secondhand vehicle parts dealer, foreign salvage vehicle dealer, or vehicle scrap metal processor.

(b) If after payment of a total loss claim the insurance company permits the owner of the vehicle to retain ownership, the insurance company shall do all of the following:

(i) If the estimated cost of repair, including parts and labor, is equal to or greater than 75% but less than 91% of the predamaged actual cash value of the vehicle, require each owner of the vehicle to sign an application for a salvage certificate of title, or if the estimated cost of

repair, including parts and labor, is equal to or greater than 91% of the predamaged actual cash value of the vehicle, require each owner of the vehicle to sign an application for a scrap vehicle certificate of title.

(ii) Attach the owner's certificate of title to the application for a salvage or scrap certificate of title or have the owner certify that the certificate of title is lost.

(iii) On behalf of the owner, apply to the secretary of state for a salvage or scrap certificate of title in the name of the owner. The owner shall not sell or otherwise dispose of the vehicle without first receiving a salvage or scrap certificate of title, which must be assigned to the buyer. An insurance company may assign a salvage or scrap certificate of title only to an automotive recycler, used or secondhand vehicle parts dealer, foreign salvage vehicle dealer, or vehicle scrap metal processor.

(3) If an insurance company pays a claim for total loss to the owner or lienholder of record as kept by the secretary of state, or both, if applicable, of a vehicle but the owner or lienholder of record as kept by the secretary of state fails to surrender the certificate of title or other document necessary for the transfer of ownership of the vehicle to the insurance company within the expiration of 30 days after the claim payment, the insurance company, without having obtained the surrender of the title or other document otherwise necessary for the transfer of ownership for the vehicle from the owner or lienholder of record as kept by the secretary of state, or both, if applicable, may apply to the secretary of state for a title as provided under this section. The insurance company shall, at the time of application, provide proof of the payment and that the insurance company has requested in writing, by certified mail or by another commercially available delivery service providing proof of delivery, on at least 2 separate occasions that the owner or lienholder of record as kept by the secretary of state surrender to the insurance company the certificate of title or other document necessary for the transfer of ownership to the insurance company. The application must be signed under the penalty of perjury. Subject to subsection (2)(a)(ii), upon meeting the requirements of this subsection, the secretary of state shall issue to the insurance company the appropriate certificate of title free of all liens. Proof of payment of the claim is satisfied only by 1 of the following:

(a) In the case of payment by check, either of the following:

(i) A copy of the front and back of the endorsed check.

(ii) Evidence that the check has cleared the account of the payer.

(b) In the case of payment by electronic transfer, evidence that the payment was charged to the account of the payer.

(4) Except as provided in subsection (3), if an insurance company acquires ownership of a vehicle other than a late model vehicle through payment of damages due to an accident, the company shall surrender a properly assigned title to the buyer upon delivery.

(5) If a dealer acquires ownership of a late model vehicle that is a distressed vehicle from an owner, the dealer shall receive an assigned certificate of title. If the assigned certificate of title is not a salvage or scrap certificate of title, the dealer, other than a vehicle scrap metal processor, shall surrender the assigned certificate of title to the secretary of state, and if the estimated cost of repair, including parts and labor, is equal to or greater than 75% but less than 91% of the predamaged actual cash value of the vehicle, apply for a salvage certificate of title, or if the estimated cost of repair, including parts and labor, is equal to or greater than 91% of the predamaged actual cash value of the vehicle, apply for a scrap certificate of title within 5 days after the dealer receives the assigned certificate of title. The dealer may sell a salvage vehicle to another automotive recycler, used or secondhand vehicle parts dealer, foreign salvage vehicle dealer, or vehicle scrap metal processor by assigning the salvage certificate of

title to the buyer. Unless the vehicle is rebuilt, inspected, and recertified under this section, if the vehicle is sold to a buyer other than a dealer, application must be made for a salvage certificate in the name of the buyer in the manner provided in this act. The dealer may sell a scrap vehicle only to a vehicle scrap metal processor. A vehicle scrap metal processor shall surrender an assigned certificate of title to the secretary of state within 30 days after acquiring a vehicle for which a certificate of title was received. A vehicle scrap metal processor shall surrender an assigned salvage or scrap certificate of title to the secretary of state within 30 days after acquiring a vehicle for which a salvage or scrap certificate of title was received and report that the vehicle was destroyed or scrapped.

(6) An application for a scrap certificate of title must be made on a form prescribed by the secretary of state accompanied by a fee of $15.00. The application must contain all of the following:

(a) The complete name and current address of the owner.

(b) A description of the vehicle, including its make, style of body, model year, fee category or weight, color, and vehicle identification number.

(c) If the vehicle is a late model vehicle, a listing of each major component part that was not salvageable.

(d) Further information as may reasonably be required by the secretary of state.

(7) The scrap certificate of title must authorize the holder of the document to transport but not drive on a highway the vehicle or parts of a vehicle, and assign ownership to a vehicle scrap metal processor, automotive recycler, used or secondhand vehicle parts dealer, or foreign salvage vehicle dealer. A certificate of title must not again be issued for this vehicle. A person shall not rebuild or repair a scrap vehicle and allow it to retain the original vehicle identification number.

(8) If a person, other than a dealer or insurance company that is subject to subsection (2) or (5), acquires ownership of a distressed, late model vehicle, the person must surrender the title or assigned certificate of title to the secretary of state, and if the estimated cost of repair, including parts and labor, is equal to or greater than 75% but less than 91% of the predamaged actual cash value of the vehicle, apply for a salvage certificate of title, or if the estimated cost of repair, including parts and labor, is equal to or greater than 91% of the predamaged actual cash value of the vehicle, apply for a scrap certificate of title before the vehicle may be transported.

(9) An owner of a vehicle may determine that a vehicle is a scrap vehicle or a salvage vehicle without making any determination as to the actual cash value of the vehicle.

(10) If a leasing company, vehicle manufacturer, insurance company not licensed to do business in this state, association, repossession company, self-insured owner, financial institution, governmental entity, or other company, institution, or entity, owns a distressed, late model vehicle, the titleholder shall surrender the title or assigned certificate of title to the secretary of state and apply for a salvage certificate of title if the retail cost of repair, including parts and labor, is equal to or greater than 75% but less than 91% of the predamaged actual cash value of the vehicle, or if the retail cost of repair, including parts and labor, is equal to or greater than 91% of the predamaged actual cash value of the vehicle, apply for a scrap certificate of title, before the vehicle may be transported or sold. If ownership is transferred, the owner must sell the vehicle only to a dealer that is eligible to buy a salvage or scrap vehicle in this state unless the owner complies with subsection (13). When a leasing company, vehicle manufacturer, insurance company not licensed to do business in this state, association, repossession company, self-insured owner, financial institution, governmental entity, or other company, institution, or entity, estimates the repair of a distressed, late model vehicle for the

purpose of determining whether to apply for a salvage or scrap certificate of title, a complete record of the estimate and, if the vehicle is repaired before a transfer of ownership, a complete record of the actual cost of the repairs performed and who performed the repairs must be maintained for a minimum of 5 years by the leasing company, vehicle manufacturer, insurance company not licensed to do business in this state, association, repossession company, self-insured owner, financial institution, governmental entity, or other company, institution, or entity. The estimates and repair records required by this subsection must be available for unannounced inspections by a law enforcement agency or a representative of the secretary of state. The secretary of state may request a leasing company, vehicle manufacturer, insurance company not licensed to do business in this state, association, repossession company, self-insured owner, financial institution, governmental entity, or other company, institution, or entity to provide copies of title documents, repair estimates, claims reports involving major component parts, and actual cash value determination documents to assist the secretary of state in monitoring compliance with this act.

(11) An application for a salvage certificate of title must be made on a form prescribed by the secretary of state accompanied by a fee of $10.00. The application must contain all of the following:

(a) The complete name and current address of the owner.

(b) A description of the vehicle, including its make, style of body, model year, fee category or weight, color, and vehicle identification number.

(c) An estimate of the cost repair, including parts and labor, and an estimate of the predamaged actual cash value of the vehicle.

(d) If the vehicle is a late model vehicle, a listing of each major component part that was not salvageable.

(e) Further information as may reasonably be required by the secretary of state.

(12) The secretary of state shall issue and mail the salvage certificate within 5 business days after the time the application is received at the secretary of state's office in Lansing. Each salvage certificate of title must include a listing of each major component part that was not salvageable.

(13) A salvage certificate of title authorizes the holder of the title to possess, transport, but not drive on a highway, and transfer ownership in, a vehicle. The secretary of state shall not issue a certificate of title or registration plates for a vehicle for which a salvage certificate of title was issued unless a specially trained officer described in subsection (15) certifies all of the following:

(a) That the vehicle identification numbers and parts identification numbers are correct.

(b) That the applicant has proof of ownership of repair parts used.

(c) That the vehicle complies with the equipment standards of this act.

(d) That any repairs performed on the vehicle were done in a workmanlike manner, as certified on a form provided by the department by a properly licensed mechanic in the appropriate specialty. A properly licensed mechanic described in this subdivision must not be the same individual as the specially trained officer making the certification of the vehicle as required under this subsection.

(14) The certification required by subsection (13) must be made on a form prescribed and furnished by the secretary of state in conjunction with the department of state police and must accompany the application that is submitted to the secretary of state for a certificate of title. An application for a certificate of title must contain a description of each salvageable part used to repair the vehicle and any identification number affixed to or inscribed on the part as required by state or federal law. Upon satisfactory completion of the inspection as required by

the secretary of state and other requirements for application, the secretary of state shall issue a certificate of title for the vehicle bearing the legend "rebuilt salvage".

(15) An officer specially trained as provided by the secretary of state and authorized by the secretary of state to conduct a salvage vehicle inspection is any of the following:

(a) An employee of the department of state.

(b) An on-duty or off-duty police officer.

(c) A previously certified police officer who is appointed by the local police agency as a limited enforcement officer to conduct salvage vehicle inspections. The local police agency shall give this officer access to the agency's law enforcement information network system and the authority to confiscate any stolen vehicle or vehicle parts discovered during an inspection. The local police agency may give the officer the authority to arrest a person suspected of having unlawful possession of a stolen vehicle or vehicle parts. The local police agency shall not appoint a previously certified police officer whose certificate has been suspended, revoked, or denied under subsection (16).

(16) The secretary of state shall issue a certificate to an officer who is specially trained as provided by the secretary of state to conduct salvage vehicle inspections. Only a person who has a valid certification from the secretary of state may perform salvage inspections. The secretary of state on the secretary of state's own initiative or in response to complaints shall make reasonable and necessary public or private investigations within or outside of this state and gather evidence against an officer who was issued a certificate and who violated or is about to violate this act or a rule promulgated under this act. Subject to subsection (17), the secretary of state may suspend, revoke, or deny a certificate after an investigation if the secretary of state determines that the officer committed 1 or more of the following:

(a) Violated this act or a rule promulgated under this act.

(b) Was, after an investigation, found responsible for a fraudulent act in connection with the inspection, purchase, sale, lease, or transfer of a salvage vehicle.

(c) Was found guilty of the theft, embezzlement, or misappropriation of salvage vehicle inspection fees.

(d) Performed improper, careless, or negligent salvage vehicle inspections.

(e) Ceased to function as a police officer because of suspension, retirement, dismissal, disability, or termination of employment.

(f) Was convicted of a violation or attempted violation of 1986 PA 119, MCL 257.1351 to 257.1355.

(g) Made a false statement of a material fact in the officer's certification of a salvage vehicle inspection or any record concerning a salvage vehicle inspection.

(h) Charged a fee in excess of the fee described in subsection (26).

(17) If the secretary of state revokes, suspends, or denies a certificate under subsection (16)(a), (d), (g), or (h), the secretary of state shall, at the time of revocation, suspension, or denial, notify the officer and the law enforcement agency on behalf of which the officer is performing inspections of the law enforcement agency's right to appeal the revocation, suspension, or denial. The notification must include a statement that a request for an appeal under this subsection must be made no later than 30 days after the revocation, suspension, or denial. An agency making an appeal under this subsection may request a hearing at the time the appeal is made. The secretary of state or any person designated by the secretary of state to act in the secretary of state's place shall deny or grant an appeal made under this subsection within a reasonable period, in writing or stated in the record if a hearing is held. If the secretary of state revokes a certificate under subsection (16)(a), (d), (g), or (h) and denies an appeal of the

revocation under this subsection, the officer may apply for a new certificate no earlier than 5 years after the revocation.

(18) Upon receipt of the appropriate abstract of conviction from a court and without any investigation, the secretary of state shall immediately revoke the certificate of an officer who has been convicted of a violation or attempted violation of section 413, 414, 415, 535, 535a, or 536a of the Michigan penal code, 1931 PA 328, MCL 750.413, 750.414, 750.415, 750.535, 750.535a, and 750.536a, or has been convicted in federal court or in another state of a violation or attempted violation of a law substantially corresponding to 1 of those sections.

(19) If a dealer acquires ownership of an older model vehicle from an owner, the dealer shall receive an assigned certificate of title and shall retain it as long as the dealer retains the vehicle. A vehicle scrap metal processor shall surrender an assigned certificate of title to the secretary of state within 30 days after the vehicle is destroyed or scrapped.

(20) A dealer selling or assigning a vehicle to a vehicle scrap metal processor shall make a record in triplicate on a form to be provided by the secretary of state in substantially the following form:

Scrap Vehicle Inventory:

SELLER: Dealer name
_____
Dealer address
_____
Dealer license number
_____

PURCHASER: Conveyed to:_____
Date_____
(Vehicle scrap metal processor)
Dealer address
_____
Dealer license number
_____

Vehicles

Model Year	Vehicle Make	VIN	Title Number	Dealer's Stock Number	Color
1._____	_____	___	_____	_____	_____
2._____	_____	___	_____	_____	_____
3._____	_____	___	_____	_____	_____

etc.

One copy must be retained as a permanent record by the dealer, 1 copy must be forwarded with the vehicle to be retained by the vehicle scrap metal processor, and 1 copy must be forwarded to the secretary of state.

(21) A person, other than an automotive recycler, used or secondhand vehicle parts dealer, or a foreign salvage dealer, receiving a salvage certificate of title shall not sell the vehicle to anyone other than 1 of the following:

(a) The vehicle's former owner.

(b) A used or secondhand vehicle parts dealer.

(c) A vehicle scrap metal processor.

(d) A foreign salvage vehicle dealer licensed under this act.

(e) An automotive recycler.

(22) A person receiving a scrap certificate of title shall not sell the vehicle to anyone other than 1 of the following:

(a) An automotive recycler.

(b) A vehicle scrap metal processor.

(c) A foreign salvage vehicle dealer licensed under this act.

(d) A used or secondhand vehicle parts dealer.

(23) The secretary of state may conduct periodic reviews of the records of a dealer to determine whether adequate notice is given to a transferee or lessee of a rebuilt salvage vehicle of that vehicle's prior designation as a salvage vehicle. The secretary of state may request an insurance company to provide copies of salvage title documents and claims reports involving major component parts to assist the secretary of state in monitoring compliance with this act.

(24) A licensed automotive recycler, used or secondhand vehicle parts dealer, vehicle scrap metal processor, vehicle salvage pool operator, distressed vehicle transporter, foreign salvage vehicle dealer, or broker that has removed a scrap vehicle from this state for the purpose of rebuilding the vehicle or selling or leasing the vehicle to a person other than a vehicle scrap metal processor, shall receive an automatic suspension of its dealer license and of any salvage vehicle agent's license assigned to that dealer for a period of 30 days. Upon receipt by the secretary of state of a written request from the dealer, the dealer shall have the right to an immediate hearing on the matter within that 30-day period.

(25) For the purpose of this section, the estimated costs of the repair parts must be determined by using the current published retail cost of original manufacturer equipment parts or an estimate of the actual cost of the repair parts. The estimated labor costs must be computed by using the hourly rate and time allocations that are reasonable and commonly assessed in the repair industry in the community where the repairs are performed.

(26) A police agency shall charge a fee for an inspection of a vehicle under subsection (13). Each local authority with a police agency shall determine the amount of the fee for inspections by that police agency, that must not exceed $100.00. Except as otherwise provided in this subsection, a fee collected under this subsection must be deposited with the local authority for that police agency. The records of the local authority regarding the collection and disposition of inspection fees is subject to review or audit by the local unit of government and must be made available upon request to the department. If an inspection was conducted by an employee of the department of state, the fee must be deposited with the department of state. A fee collected by a local authority must be used for law enforcement purposes related to stolen vehicles, including, but not limited to, equipment and road patrol services that increase the likelihood of recovering stolen vehicles or stolen vehicle parts, and salvage vehicle inspections. A fee collected by the department of state must be used by the department for the administration of the salvage vehicle inspection program and must not lapse to the general fund. A local police agency may compensate an off-duty and limited enforcement police officer for a salvage vehicle inspection.

(27) For the purpose of this section, "actual cash value" means the retail dollar value of a vehicle as determined by an objective vehicle evaluation using local market resources such as dealers or want ads or by an independent vehicle evaluation or vehicle appraisal service or by

a current issue of a nationally recognized used vehicle guide for financial institution appraisal purposes in this state.

History: Add. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1990, Act 96, Eff. Jan. 1, 1991 ;-- Am. 1992, Act 118, Imd. Eff. June 26, 1992 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2015, Act 48, Eff. Sept. 7, 2015 ;-- Am. 2016, Act 369, Eff. Mar. 22, 2017 ;-- Am. 2018, Act 108, Eff. July 4, 2018 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023
Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.217d Special Congressional Medal of Honor registration plate.

Sec. 217d.

(1) The secretary of state shall design and may issue a special Congressional Medal of Honor registration plate for residents of this state awarded the congressional medal of honor.

(2) A special Congressional Medal of Honor registration plate is issued for only 1 vehicle intended for personal use by the applicant.

(3) A recipient of the Congressional Medal of Honor may apply to the secretary of state for a special registration plate on a form prescribed by the secretary of state that must be accompanied by any proof of the applicant having been a Congressional Medal of Honor recipient that the secretary of state may require. The application must not require a service fee under section 804.

(4) A person who qualifies to be issued a special registration plate under this section is entitled to only 1 special registration plate issued under subsection (1) that is exempt from payment of the tax provided in section 801.

(5) A person with disabilities who applies for a special registration plate under this section must be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is disabled as is required for issuance of a permanent windshield placard under section 675.

(6) A special registration plate issued under subsection (1) expires on the birthday of the vehicle owner in a year in which new plates are issued by the secretary of state.

(7) The secretary of state shall deliver or cause to be delivered 1 or more special registration plates issued under this section to the home address of the applicant at no additional cost to the applicant.

History: Add. 1980, Act 124, Imd. Eff. May 21, 1980 ;-- Am. 2000, Act 78, Imd. Eff. Apr. 7, 2000 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.217e Certificate of title for school bus; condition to issuance.

Sec. 217e.

A certificate of title for a school bus shall be issued to a school board that has purchased the school bus by the secretary of state only after a manufacturer's statement of origin has been provided to the secretary of state. If the body and chassis of a school bus are not built by the

same manufacturer, a certificate of title for the school bus shall be issued to a school board by the secretary of state only after a manufacturer's statement of origin has been provided by the body dealer and chassis dealer to the secretary of state.

History: Add. 1986, Act 39, Imd. Eff. Mar. 17, 1986

257.217f Sale, assignment, or other disposition of vehicle for which salvage certificate of title required.

Sec. 217f.

Except as provided in section 248c, a vehicle salvage pool operator or broker shall not sell, assign, or otherwise dispose of a vehicle for which a salvage certificate of title is required, unless a salvage or scrap certificate of title has been issued for the vehicle by the department.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 2015, Act 48, Eff. Sept. 7, 2015

257.217g Pickup camper; manufacturer's identification number.

Sec. 217g.

A pickup camper manufactured for sale in this state after January 1, 1991 shall have a manufacturer's identification number permanently affixed to its door.

History: Add. 1990, Act 98, Eff. Jan. 1, 1991

257.217h Liability of motor vehicle manufacturer.

Sec. 217h.

A motor vehicle manufacturer shall not be liable for any claims or causes of action arising with respect to a vehicle for which a salvage, rebuilt, or scrap certificate of title has been issued.

History: Add. 1993, Act 300, Eff. Jan. 1, 1994

257.217i Issuance of vehicle identification number and certificate of title for assembled vehicles; requirements; safety study; "assembled vehicle" defined.

Sec. 217i.

(1) Notwithstanding any other provision of this act, the secretary of state shall, upon an applicant's payment of the proper fees and submission of all documentation required by the secretary of state, issue a vehicle identification number in the same manner as provided in section 230 and a certificate of title to an assembled vehicle that satisfies all applicable requirements of this act, if the assembled vehicle contains all of the following equipment:

(a) Headlights. As used in this subdivision, "headlights" includes 1 headlight on each side, and high- and low-beam headlights.

(b) Front and rear turn signals.

(c) At least 1 taillight. If the vehicle is equipped with 2 taillights, both taillights shall be in working order.

(d) Registration plate light.

(e) Brake lights.

(f) Horn.

(g) Bright light indicator.

(h) Windshield wipers.

(i) Windshield washers.

(j) Brake equipment as required under section 705.

(k) Safety belts. This subdivision only applies to 1965 and newer model vehicles.

(l) Safety glass windshield. The windshield required under this subdivision shall not be made of plexiglass, shall be of a sufficient size to protect the driver of the vehicle and passengers, shall be free of any cracks or obstructions, and shall be made of a transparent material.

(m) Except as otherwise provided in subdivision (n), adjustable outside rearview mirror on the driver's side.

(n) Outside rearview mirror on each side of the vehicle. This subdivision only applies to a truck with a half-ton or more capacity.

(o) Bumpers. This subdivision only applies to a passenger vehicle. The bumpers required under this subdivision shall be between 14 and 22 inches above the ground when the vehicle is not in 4-wheel drive.

(p) Tires. The tires required by this subdivision shall have 2/32-inch tread, shall not have exposed cord or tread separation, and shall be approved for use by the United States Department of Transportation.

(q) Exhaust. The exhaust required by this subdivision shall be in good working order and shall not produce excessive noise. If the original design of the exhaust included a tailpipe and resonator, the exhaust shall include a tailpipe and resonator.

(r) Differential gear.

(2) The department of state police shall conduct a safety study for the period beginning on January 1, 2019 and ending on December 31, 2020 of vehicles for which a vehicle identification number and certificate of title may be issued under this section. The safety study shall include all of the following:

(a) The number of traffic crash fatalities occurring on public roadways that involved 1 or more of the vehicles described in this section.

(b) The number of serious injuries sustained in traffic crashes occurring on public roadways that involved 1 or more of the vehicles described in this section.

(c) Any other relevant safety data gathered during the period of the study.

(d) Any safety recommendations that the department of state police believes will help increase traffic safety for the vehicles described in this section.

(3) The study required under subsection (2) shall be filed with the governor, the senate majority leader, and the speaker of the house of representatives no later than April 1, 2021.

(4) As used in this section and subject to subsection (3), "assembled vehicle" means 1 or more of the following:

(a) A vehicle that is built from new or used materials or parts by a person not recognized as a manufacturer.

(b) A vehicle that has been altered or modified to the extent that it no longer reflects its original manufacturer configuration.

(c) A vehicle that has had its body replaced with a different style of body unit from another vehicle.

(d) A vehicle that has been assembled from a kit.

(e) An off-road vehicle, regardless of whether the original manufacturer's certificate of origin specifies that the vehicle is an off-road vehicle.

(5) As used in this section, "assembled vehicle" does not include either of the following:
(a) A military surplus vehicle designated by the federal government as off-road use only.
(b) A gray market off-road minitruck.
(c) An all-terrain vehicle that has 4 wheels and is equipped with a straddle seat.

History: Add. 2018, Act 680, Eff. Mar. 28, 2019

257.217m, 257.217n Repealed. 2006, Act 562, Eff. Jan. 1, 2007.

Compiler's Notes: The repealed sections pertained to "Proud to be an American" registration, collector plate, and fund.

257.217o Repealed. 2012, Act 55, Eff. June 30, 2012.

Compiler's Notes: The repealed section pertained to organ and tissue donation education fund.

257.218 Specially constructed, reconstructed, or foreign vehicle; application for registration; fees.

Sec. 218.

(1) If a vehicle to be registered is a specially constructed, reconstructed, or foreign vehicle, that fact shall be stated in the application. With reference to each foreign vehicle which has been previously registered in another state, the owner shall surrender to the secretary of state all registration plates, registration certificates, and certificates of title or other evidence of foreign registration, as are in the owner's possession or under the owner's control, except as provided in subsections (2) and (3).

(2) If the owner in the course of interstate operation of a vehicle desires to retain registration of a vehicle in another state, the owner shall not be required to surrender, but shall submit for inspection, evidence of the foreign registration and the secretary of state, upon a proper showing and upon application and payment of the registration fee, shall register the vehicle in this state.

(3) If the owner of a vehicle previously registered in another state in which the certificate of title or other proof of ownership of a vehicle is in the possession of a holder of a security interest in the vehicle, the owner of the vehicle may apply to the secretary of state for registration of the vehicle for this state after payment of all fees required by this act and submission of proof of ownership of the vehicle to the secretary of state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 337, Imd. Eff. Dec. 23, 1980 ;-- Am. 1983, Act 242, Imd. Eff. Dec. 1, 1983

257.219 Refusal of registration, transfer of registration, certificate of title, or salvage certificate of title; grounds; temporary registration plate.

Sec. 219.

(1) The secretary of state shall refuse issuance of a registration or a transfer of registration upon any of the following grounds:

(a) The application contains a false or fraudulent statement, the applicant has failed to furnish required information or reasonable additional information requested by the secretary of state, or the applicant is not entitled to the registration of the vehicle under this act.

(b) The secretary of state has reasonable ground to believe that the vehicle is a stolen or embezzled vehicle, or that the granting of registration would constitute a fraud against the rightful owner or other person having a valid lien upon the vehicle.

(c) The registration of the vehicle is suspended or revoked for any reason provided in the motor vehicle laws of this state.

(d) At the time of the application, the operator's or chauffeur's license of the owner or co-owner or lessee or co-lessee is suspended, revoked, or denied, except for an applicant who has been issued a license under section 304, or the operator has never been licensed by this state for a third or subsequent violation of section 625 or 625m, a local ordinance substantially corresponding to section 625 or 625m, or a law of another state substantially corresponding to section 625 or 625m, or for a fourth or subsequent suspension or revocation under section 904.

(e) The required fee has not been paid.

(f) The applicant, at the time of applying for registration or a transfer of registration other than a temporary registration issued under section 226b, fails to present a certificate of compliance or waiver for a motor vehicle as required under either part 63 or part 65 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.6301 to 324.6321 and 324.6501 to 324.6539.

(g) The application for registration of a vehicle with an elected gross weight of 55,000 pounds or more is not accompanied with proof of payment of the federal highway use tax levied under the surface transportation assistance act of 1982, Public Law 97-424.

(h) The applicant is a motor carrier subject to an out-of-service order, the applicant has applied for a registration or transfer registration as a subterfuge for a person subject to an out-of-service order, or the applicant's business is operated, managed, controlled by, or affiliated with a person that is ineligible for registration, including, but not limited to, the applicant, a relative or family member of the applicant, or a corporate officer or shareholder of the applicant. As used in this subdivision, "out-of-service order" means that term as defined in 49 CFR 390.5, and also includes an out-of-service order issued under 49 CFR 386.73.

(2) The secretary of state shall refuse issuance of a certificate of title or a salvage certificate of title upon any of the following grounds:

(a) The application contains a false or fraudulent statement, the applicant has failed to furnish required information or reasonable additional information requested by the secretary of state, or the applicant is not entitled to the issuance of a certificate of title or salvage certificate of title under this act.

(b) The secretary of state has reasonable ground to believe that the vehicle is a stolen or embezzled vehicle or that the issuance of a certificate of title or a salvage certificate of title would constitute a fraud against the rightful owner or other person having a valid security interest upon the vehicle.

(c) The required fee has not been paid.

(3) The secretary of state shall not issue a registration for a vehicle for which a temporary registration plate was issued under section 904c until the violation resulting in the issuance of the plate is adjudicated or the vehicle is transferred to a person who is subject to payment of a use tax under section 3 of the use tax act, 1937 PA 94, MCL 205.93.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 84, Imd. Eff. Apr. 7, 1980 ;-- Am. 1982, Act 19, Imd. Eff. Mar. 4, 1982 ;-- Am. 1985, Act 67, Imd. Eff. July 1, 1985 ;-- Am. 1998, Act 346, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2005,

Act 317, Imd. Eff. Dec. 27, 2005 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011 ;-- Am. 2018, Act 74, Eff. June 17, 2018

257.220 Application for original registration or certificate of title; examination of indexes and stolen car records.

Sec. 220.

The department upon receiving application for original registration of a vehicle or any certificate of title shall first check the engine and serial number or vehicle number shown in the application against the indexes of registered motor vehicles and against the index of stolen and recovered motor vehicles required to be maintained by this act.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.221 Application for registration; creation and maintenance of computerized central file; records; preservation; availability; communication impediment designation; requirements; definition.

Sec. 221.

(1) The secretary of state shall create and maintain a computerized central file of all applications for registration of motor vehicles and is not required to retain any other record of the application. The computerized central file must be interfaced with the law enforcement information network as provided in the C.J.I.S. policy council act, 1974 PA 163, MCL 28.211 to 28.215.

(2) The secretary of state shall preserve the records described in subsection (1) for 3 years after the date of registration. The records must be available to state and federal agencies and the friend of the court as provided under section 4 of the C.J.I.S. policy council act, 1974 PA 163, MCL 28.214, and rules promulgated under that section. The records, except for a communication impediment designation, must be available to the public through the secretary of state's commercial look-up service.

(3) If an owner of a motor vehicle meets the requirements under subsection (4), the secretary of state shall allow the owner of a motor vehicle who is applying for a vehicle registration or for renewal of a vehicle registration to elect a communication impediment designation on the application maintained in the central file under subsection (1) to allow a person with access to the law enforcement information network under the C.J.I.S. policy council act, 1974 PA 163, MCL 28.211 to 28.215, to view a communication impediment designation with a motor vehicle registration.

(4) An owner of a motor vehicle seeking an election for a communication impediment designation under subsection (3) shall provide to the secretary of state a certification that meets all of the following:

(a) Is signed by a physician, physician assistant, certified nurse practitioner, audiologist, speech-language pathologist, psychologist, or physical therapist licensed to practice in this state.

(b) Identifies the individual for whom the communication impediment designation is being elected.

(c) Attests to the nature of the communication impediment.

(5) A person who intentionally makes a false statement of material fact or commits or attempts to commit a deception or fraud on a statement described under subsection (4) is

guilty of a misdemeanor punishable by imprisonment for not more than 30 days or a fine of not more than $500.00, or both.

(6) Subject to subsection (7), the secretary of state may cancel or revoke a communication impediment designation elected and maintained under this section if either of the following circumstances applies:

(a) The secretary of state determines that a communication impediment designation was fraudulently or erroneously elected.

(b) The secretary of state determines the communication impediment designation was abused during a traffic stop.

(7) The secretary of state shall provide the owner of a motor vehicle notice and an opportunity to be heard before canceling or revoking a communication impediment designation under subsection (6).

(8) As used in this section, "communication impediment" means the owner of a motor vehicle, or an individual who resides in the same household as the owner of the motor vehicle, has a health condition that may impede communication with a police officer during a traffic stop, including, but not limited to, any of the following:

(a) Deafness or hearing loss.

(b) An autism spectrum disorder.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1997, Act 101, Imd. Eff. Aug. 7, 1997 ;-- Am. 1998, Act 64, Eff. May 13, 1998 ;-- Am. 2020, Act 93, Eff. July 1, 2021 ;-- Am. 2021, Act 104, Eff. Dec. 1, 2021

257.222 Registration certificate; issuance; electronic title; flood, rebuilt, salvage, or scrap certificate of title issued by another state or jurisdiction; delivery; manufacture; contents; coat of arms of state; conduct constituting misdemeanor; penalties; certificate of title for certain vehicles to be different in color; contents of legend.

Sec. 222.

(1) Except as otherwise provided in this act, the secretary of state shall issue a registration certificate when registering a vehicle upon receipt of the required fees. Except as otherwise provided in this act, the secretary of state shall issue a paper certificate of title, unless a security interest is entered electronically under section 238, or may issue a title electronically, upon receipt of the required fees. The secretary of state shall issue a flood, rebuilt, rebuilt salvage, salvage, or scrap certificate of title for a vehicle brought into this state from another state or jurisdiction that has a flood, rebuilt, salvage, or scrap certificate of title issued by that other state or jurisdiction.

(2) The secretary of state shall deliver the registration certificate to the owner. The certificate must contain on its face the date issued, the name and address of the owner, the registration number assigned to the vehicle, and a description of the vehicle as determined by the secretary of state.

(3) The certificate of title must be created in a manner to prohibit as nearly as possible the ability to reproduce, alter, counterfeit, forge, or duplicate the certificate of title without ready detection. The certificate must contain all of the following:

(a) The identical information required on the face of the registration certificate.

(b) If the vehicle is a motor vehicle, the number of miles, not including the tenths of a mile, registered on the vehicle's odometer at the time of transfer.

(c) Whether the vehicle is to be used or has been used as a taxi, as a police vehicle, or by a political subdivision of this state, unless the vehicle is owned by a dealer and loaned or leased to a political subdivision of this state for use as a driver education vehicle.

(d) Whether the vehicle is a salvage vehicle.

(e) If the vehicle has previously been issued a rebuilt certificate of title from this state or a comparable certificate of title from any other state or jurisdiction.

(f) Whether the vehicle has been issued a scrap certificate of title from this state or a comparable certificate of title from any other state or jurisdiction.

(g) Whether the vehicle is a flood vehicle or has previously been issued a flood certificate of title from this state or any other state or jurisdiction.

(h) Whether the owner or co-owner or lessee or co-lessee of the vehicle is subject to registration denial under section 219(1)(d).

(i) A statement of the owner's title and of all security interests in the vehicle or in an accessory on the vehicle as set forth in the application.

(j) The date that the application was filed.

(k) Any other information that the secretary of state may require.

(4) A paper certificate of title must contain a form for assignment of title or interest and warranty of title by the owner with space for the notation of a security interest in the vehicle and in an accessory on the vehicle, which at the time of a transfer must be certified and signed, and space for a written odometer mileage statement that is required upon transfer under section 233a. The certificate of title must include a description of the proper procedure for transferring the title of a motor vehicle and for maintaining records of that transfer as provided under this act, including, but not limited to, the electronic lien title system established under section 241. The certificate of title may also contain other forms that the secretary of state considers necessary to facilitate the effective administration of this act. The certificate must bear the coat of arms of this state.

(5) Except as otherwise provided under this subsection, the secretary of state shall mail or deliver a paper certificate of title to the owner or other person as the owner may direct in a separate instrument, in a form prescribed by the secretary of state. The secretary of state may issue a title electronically. However, as provided under section 238, the secretary of state is not required to issue a paper title to the owner of a vehicle if the title is subject to a security interest.

(6) A person that intentionally reproduces, alters, counterfeits, forges, or duplicates a certificate of title or a document releasing a security interest or that uses a reproduced, altered, counterfeited, forged, or duplicated certificate of title or document releasing a security interest must be punished as follows:

(a) If the intent of reproduction, alteration, counterfeiting, forging, duplication, or use was to commit or aid in the commission of an offense punishable by imprisonment for 1 or more years, the person committing the reproduction, alteration, counterfeiting, forging, duplication, or use is guilty of a misdemeanor punishable by imprisonment for a period equal to that which could be imposed for the commission of the offense the person had the intent to aid or commit. The court may also assess a fine of not more than $10,000.00 against the person.

(b) If the intent of the reproduction, alteration, counterfeiting, forging, duplication, or use was to commit or aid in the commission of an offense punishable by imprisonment for not more than 1 year, the person committing the reproduction, alteration, counterfeiting, forging, duplication, or use is guilty of a misdemeanor punishable by imprisonment for not more than 1 year, or a fine of not more than $1,000.00, or both.

(7) A paper certificate of title for a police vehicle, a vehicle owned by a political subdivision of this state, a salvage vehicle, a rebuilt vehicle, a scrap vehicle, or a flood vehicle must be a different color from the certificate of title for all other vehicles unless the vehicle is loaned or leased to a political subdivision of this state for use as a driver education vehicle.

(8) A scrap certificate of title must contain a legend that the vehicle is not to be titled or registered and is to be used for parts or scrap metal only.

(9) A certificate of title must not be issued for a vehicle that has had a salvage certificate of title unless the certificate of title contains the legend "rebuilt salvage".

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1954, Act 112, Eff. Aug. 13, 1954 ;-- Am. 1958, Act 99, Eff. Sept. 13, 1958 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 1977, Act 287, Eff. Mar. 30, 1978 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 1990, Act 265, Imd. Eff. Oct. 17, 1990 ;-- Am. 1993, Act 300, Eff. July 1, 1994 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2000, Act 397, Imd. Eff. Jan. 8, 2001 ;-- Am. 2002, Act 485, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2004, Act 493, Eff. Oct. 1, 2005 ;-- Am. 2014, Act 290, Eff. Mar. 31, 2015 ;-- Am. 2023, Act 240, Eff. Feb. 13, 2024

257.223 Registration certificate; carrying; electronic accessibility; display; viewing on electronic device; digital photograph; violation as civil infraction.

Sec. 223.

(1) A registration certificate shall at all times be carried in the vehicle to which it refers or shall be carried by or electronically accessible to the person driving or in control of the vehicle, who shall display a paper or electronic copy of the registration certificate upon demand of a police officer.

(2) If a person displays an electronic copy of his or her registration certificate using an electronic device, the police officer shall only view the electronic copy of the registration certificate and shall not manipulate the electronic device to view any other information on the electronic device. A person who displays an electronic copy of his or her registration certificate using an electronic device as provided in this subsection shall not be presumed to have consented to a search of the electronic device. A police officer may require the person to electronically forward the electronic copy of the registration certificate to a specified location provided by the police officer. The police officer may then view the electronic copy of the registration certificate in a setting in which it is safe for the officer to verify that the information contained in the electronic copy of the registration certificate is valid and accurate. This state, a law enforcement agency, or an employee of this state or a law enforcement agency is not liable for damage to or loss of an electronic device that occurs as a result of a police officer's viewing an electronic copy of a registration certificate in the manner provided in this section, regardless of whether the police officer or the owner or operator of the vehicle was in possession of the electronic device at the time the damage or loss occurred.

(3) A digital photograph of a valid registration certificate satisfies the requirements of subsection (1).

(4) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2007, Act 143, Imd. Eff. Nov. 19, 2007 ;-- Am. 2017, Act 59, Eff. Sept. 26, 2017

257.224 Registration plate; digital registration plate; issuance; design; display; limitation on renewal; replacement.

Sec. 224.

(1) Except as otherwise provided in this act regarding tabs or stickers, upon registering a vehicle, the secretary of state shall issue to the owner 1 registration plate.

(2) A registration plate shall display the registration number assigned to the vehicle for which the registration plate is issued; the name of this state, which may be abbreviated; and when the registration plate expires, which may be shown by a tab or sticker furnished by the secretary of state.

(3) A registration plate issued for motor vehicles owned and operated by this state; a state institution; a municipality; a privately incorporated, nonprofit volunteer fire department; or a nonpublic, nonprofit college or university of this state does not expire at any particular time but must be renewed when the registration plate is worn out or is illegible. This registration plate must be assigned upon proper application and payment of the applicable fee and may be used on any eligible vehicle titled to the applicant if a written record is kept of the vehicles upon which the registration plate is used. The written record shall state the time the registration plate is used on a particular vehicle. The record shall be open to inspection by a law enforcement officer or a representative of the secretary of state.

(4) A registration plate issued for a vehicle owned by the civil air patrol as organized under 36 USC 40301 to 40307; a vehicle owned by a nonprofit organization and used to transport equipment for providing dialysis treatment to children at camp; an emergency support vehicle used exclusively for emergencies and owned and operated by a federally recognized nonprofit charitable organization; a vehicle owned and operated by a nonprofit food pantry or nonprofit food bank; a vehicle owned and operated by a nonprofit veterans center; a motor vehicle having a truck chassis and a locomotive or ship's body that is owned by a nonprofit veterans organization and used exclusively in parades and civic events; a vehicle owned and operated by a nonprofit recycling center or a federally recognized nonprofit conservation organization until December 31, 2000; a motor vehicle owned and operated by a senior citizen center; and a registration plate issued for buses including station wagons, carryalls, or similarly constructed vehicles owned and operated by a nonprofit parents' transportation corporation used for school purposes, parochial school, society, church Sunday school, or other grammar school, or by a nonprofit youth organization or nonprofit rehabilitation facility shall be issued upon proper application and payment of the applicable tax provided in section 801(1)(g) or (h) to the applicant for the vehicle identified in the application. The vehicle shall be used exclusively for activities of the school or organization and shall be designated by proper signs showing the school or organization operating the vehicle. The registration plate expires on December 31 in the fifth year following the date of issuance. The registration plate may be transferred to another vehicle upon proper application and payment of a $10.00 transfer fee.

(5) The department shall offer a standard design registration plate that complies with the requirements of this act. The standard design registration plate shall be of a common color scheme and design that is made of fully reflectorized material and shall be clearly visible at night.

(6) No later than 1 year after the effective date of the amendatory act that amended this section, the department shall permit the registrant of a vehicle to display a digital registration plate in lieu of the standard design registration plate described in subsection (5). As used in this subsection "digital registration plate" means an electronic display that is mounted on the rear of a vehicle in place of a registration plate issued by the secretary of state. Any data

collected by the department or by a vendee selected by the department through the use of digital registration plates is the property of the department. Any use of data collected through the use of a digital registration plate is nonexclusive and is governed by this act.

(7) The department may use the Pure Michigan brand or a successor or similar brand that is used in conjunction with this state's promotion, travel, and tourism campaigns or marketing efforts as part of the standard design for registration plates.

(8) The registration plate and the required letters and numerals on the registration plate shall be of sufficient size to be plainly readable from a distance of 100 feet during daylight. The secretary of state may issue a tab or tabs designating the month and year of expiration.

(9) Except as otherwise provided in this subsection, the secretary of state shall issue for every passenger motor vehicle rented without a driver the same type of registration plate as the type of registration plate issued for private passenger vehicles. This subsection does not apply to a special registration plate issued for a vehicle in a fleet under section 801h.

(10) A person shall not operate a vehicle on the public highways or streets of this state displaying a registration plate other than the registration plate issued for the vehicle by the secretary of state, except as provided in this chapter for nonresidents, or by assignment as provided in subsection (3).

(11) The registration plate displayed on a vehicle registered on the basis of elected gross weight shall indicate the elected gross weight for which the vehicle is registered.

(12) Beginning on January 1, 2015, a registration plate issued by the department under this section shall not be renewed 10 years after the date that registration plate was issued. The owner of a vehicle whose registration plate is no longer eligible for renewal under this subsection must obtain a replacement registration plate upon payment of the fee required under section 804. For any alphanumeric series that the department has retired from circulation, upon request of the owner of a vehicle whose registration plate is no longer eligible for renewal under this subsection, the department may issue a new registration plate with the same registration number as was displayed on the expired registration plate as provided under section 803b.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 247, Eff. Mar. 19, 1960 ;-- Am. 1961, Act 25, Imd. Eff. May 11, 1961 ;-- Am. 1965, Act 184, Imd. Eff. July 15, 1965 ;-- Am. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967 ;-- Am. 1970, Act 106, Imd. Eff. July 23, 1970 ;-- Am. 1976, Act 114, Imd. Eff. May 14, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1980, Act 46, Imd. Eff. Mar. 19, 1980 ;-- Am. 1980, Act 153, Imd. Eff. June 11, 1980 ;-- Am. 1980, Act 270, Imd. Eff. Oct. 1, 1980 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 350, Imd. Eff. Dec. 21, 1982 ;-- Am. 1984, Act 173, Imd. Eff. June 29, 1984 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 1994, Act 395, Eff. Mar. 30, 1995 ;-- Am. 1995, Act 129, Imd. Eff. June 30, 1995 ;-- Am. 2006, Act 177, Imd. Eff. June 6, 2006 ;-- Am. 2012, Act 491, Imd. Eff. Dec. 28, 2012 ;-- Am. 2013, Act 179, Eff. Dec. 1, 2013 ;-- Am. 2018, Act 342, Eff. Jan. 14, 2019 ;-- Am. 2018, Act 656, Eff. Mar. 29, 2019

Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.225 Registration plate; attachment to vehicle; legibility; color; distinctive registration plates; name plate, insignia, or advertising device; limitation; historic military vehicle; violation as civil infraction.

Sec. 225.

(1) Except as otherwise provided in this subsection and subsection (6), a registration plate issued for a vehicle shall be attached to the rear of the vehicle. A registration plate issued for a truck tractor or road tractor shall be attached to the front of the vehicle.

(2) A registration plate shall at all times be securely fastened in a horizontal position to the vehicle for which the plate is issued so as to prevent the plate from swinging. The plate shall be attached at a height of not less than 12 inches from the ground, measured from the bottom of the plate, in a place and position that is clearly visible. The plate shall be maintained free from foreign materials that obscure or partially obscure the registration information and in a clearly legible condition. The attachment to the rear of a vehicle of a tow ball, bicycle rack, removable hitch, or any other device designed to carry an object on the rear of a vehicle, including the object being carried, does not violate this subsection.

(3) A registration plate or an expiration tab on the registration plate shall be of a different color designated by the secretary of state with a marked contrast between the color of the registration plate and the numerals or letters on the plate. The secretary of state may provide a distinctive registration plate as a replacement for a standard plate. To honor a special or historical event, the secretary of state may provide a commemorative plate as a replacement for a standard plate.

(4) A person shall not attach a name plate, insignia, or advertising device to a registration plate in a manner that obscures or partially obscures the registration information.

(5) A person shall not operate a motor vehicle that has a name plate, insignia, or advertising device attached to a registration plate in a manner that obscures or partially obscures the registration information.

(6) A registration plate issued for a historic military vehicle that is authorized to be operated on the roads of this state is not required to be attached to the rear or the front of the historic military vehicle unless the historic military vehicle was originally manufactured with lighting and mounting provisions for a registration plate. However, if the registration plate is not attached to the exterior of the historic military vehicle, it shall be present in the historic military vehicle to which it refers and shall be made available upon demand of a police officer. As used in this subsection, "historic military vehicle" means a vehicle, including a trailer, regardless of the vehicle's size, weight, or year of manufacture, that was manufactured for use in any country's military forces and is maintained to represent its military design and markings accurately.

(7) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1980, Act 46, Imd. Eff. Mar. 19, 1980 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1984, Act 132, Imd. Eff. June 1, 1984 ;-- Am. 1995, Act 129, Imd. Eff. June 30, 1995 ;-- Am. 2014, Act 26, Imd. Eff. Mar. 4, 2014 ;-- Am. 2018, Act 147, Eff. Aug. 14, 2018

257.226 Expiration of vehicle or motorcycle registration; duties of secretary of state; issuance of registration; tax; validity of certificate of title; special registration; certification; registration of commercial vehicle, trailer, or semitrailer; assignment or reassignment of expiration date under international registration plan; leased vehicle multiyear registration; pandemic expiration extension.

Sec. 226.

(1) Except as otherwise provided in subsection (13) or (14), a vehicle registration issued by the secretary of state expires on the owner's birthday, unless another expiration date is

provided for under this act or unless the registration is for any of the following vehicles, in which case registration expires on the last day of February:

(a) A commercial vehicle except for a commercial vehicle issued a registration under the international registration plan or a pickup truck or van owned by an individual.

(b) Except for a trailer or semitrailer issued a registration under the international registration plan, a trailer or semitrailer owned by a business, corporation, or person other than an individual; or a pole trailer.

(2) Except as otherwise provided in subsection (13) or (14), the expiration date for a registration issued for a motorcycle is the motorcycle owner's birthday.

(3) The expiration date for a registration bearing the letters "SEN" or "REP" is February 1.

(4) In the case of a vehicle owned by a business, corporation, or an owner other than an individual, the secretary of state may assign or reassign the expiration date of the registration.

(5) The secretary of state shall do all of the following:

(a) After the October 1 immediately preceding the year designated on the registration, issue a registration upon application and payment of the proper fee for a commercial vehicle, other than a pickup or van owned by an individual; or a trailer owned by a business, corporation, or person other than an individual.

(b) Beginning 60 days before the expiration date assigned on an international registration plan registration plate, issue a registration under section 801g upon application and payment of the proper apportioned fee for a commercial vehicle engaged in interstate commerce.

(c) Beginning 45 days before the owner's birthday or, if the owner has requested the expiration date described in subsection (14), 45 days before the expiration date, and 120 days before the expiration date assigned by the secretary of state, issue a registration for a vehicle other than those designated in subsection (1)(a) or (b). However, if an owner whose registration period begins 45 days before the owner's birthday or expiration date will be out of the state during the 45 days immediately preceding expiration of a registration or for other good cause shown cannot apply for a renewal registration within the 45-day period, application for a renewal registration may be made not more than 6 months before expiration.

(6) Except as otherwise provided in this subsection and subsection (14), the secretary of state, upon application and payment of the proper fee, shall issue a registration for a vehicle or a motorcycle to a resident that expires on the owner's birthday or, if applicable, on the expiration date described in subsection (14). If the owner's next birthday is at least 6 months but not more than 12 months in the future, the owner shall receive a registration valid until the owner's next birthday or, if applicable, the expiration date described in subsection (14). If the owner's next birthday is less than 6 months in the future, the owner shall receive a registration valid until the owner's birthday following the owner's next birthday or, if applicable, the expiration date described in subsection (14). The tax required under this act for a registration described in this subsection is either of the following:

(a) For an original registration, the tax must bear the same relationship to the tax required under section 801 for a 12-month registration as the length of the registration bears to 12 months.

(b) For a renewal of a registration, either of the following:

(i) For a registration that is for at least 6 months but not more than 12 months, the same amount as for 12 months.

(ii) For a renewal of a registration that is for more than 12 months, 2 times the amount for 12 months.

Partial months must be considered as whole months in the calculation of the required tax and in the determination of the length of time between the application for a registration and the

owner's next birthday or, if applicable, the expiration date described in subsection (14). The tax required for that registration must be rounded off to whole dollars as provided in section 801.

(7) A certificate of title remains valid until canceled by the secretary of state for cause or upon a transfer of an interest shown on the certificate of title.

(8) The secretary of state, upon request, shall issue special registration for commercial vehicles, valid for 6 months after the date of issue, if the full registration fee exceeds $50.00, on the payment of 1/2 the full registration fee and a service charge as enumerated in section 802(1).

(9) The secretary of state may issue a special registration for each of the following:

(a) A new vehicle purchased or leased outside of this state and delivered in this state to the purchaser or lessee by the manufacturer of that vehicle for removal to a place outside of this state, if a certification is made that the vehicle will be primarily used, stored, and registered outside of this state and will not be returned to this state by the purchaser or lessee for use or storage.

(b) A vehicle purchased or leased in this state and delivered to the purchaser or lessee by a dealer or by the owner of the vehicle for removal to a place outside of this state, if a certification is made that the vehicle will be primarily used, stored, and registered outside of this state and will not be returned to this state by the purchaser or lessee for use or storage.

(10) A special registration issued under subsection (9) is valid for not more than 60 days after the date of issuance, and a fee must be collected for each special registration as provided in section 802(3). The special registration may be in the form determined by the secretary of state. If a dealer makes a retail sale or lease of a vehicle to a purchaser or lessee who is qualified and eligible to obtain a special registration, the dealer shall apply for the special registration for the purchaser or lessee. If a person other than a dealer sells or leases a vehicle to a purchaser or lessee who is qualified and eligible to obtain a special registration, the purchaser or lessee shall appear in person, or by a person exercising the purchaser's or lessee's power of attorney, at an office of the secretary of state and furnish a certification that the person is the bona fide purchaser or lessee or that the person has granted the power of attorney, together with other forms required for the issuance of the special registration and provide the secretary of state with proof that the vehicle is covered by an automobile insurance policy issued under section 3101 of the insurance code of 1956, 1956 PA 218, MCL 500.3101, or proof that the vehicle is covered by a policy of insurance issued by an insurer under section 3163 of the insurance code of 1956, 1956 PA 218, MCL 500.3163. The certification required in this subsection must contain all of the following:

(a) The address of the purchaser or lessee.

(b) A statement that the vehicle is purchased or leased for registration outside of this state.

(c) A statement that the vehicle must be primarily used, stored, and registered outside of this state.

(d) The name of the jurisdiction in which the vehicle is to be registered.

(e) The name and address of the lien holder.

(f) Other information requested by the secretary of state.

(11) In the case of a commercial vehicle, trailer, or semitrailer issued a registration under the international registration plan, the secretary of state in mutual agreement with the owner may assign or reassign the expiration date of the registration. However, the expiration date agreed to must be either March 31, June 30, September 30, or December 31 or beginning on February 19, 2019, the last day of a calendar month. Renewals expiring on or after June 30, 2020 must be for a minimum of at least 12 months if there is a change in the established expiration date.

Notwithstanding the provisions of this subsection, a commercial vehicle, trailer, or semitrailer registration issued under this subsection that expires on or after March 1, 2020 is valid until March 31, 2021. Notwithstanding the provisions of this subsection, a commercial vehicle, trailer, or semitrailer registration issued under this subsection that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(12) The expiration date for a multiyear registration issued for a leased vehicle must be the date the lease expires but must not be for a period longer than 24 months.

(13) A vehicle registration described in subsection (1) or a motorcycle registration described in subsection (2) that expires on or after March 1, 2020 is valid until March 31, 2021. A vehicle registration described in subsection (1) or a motorcycle registration described in subsection (2) that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(14) Beginning October 1, 2022, in the case of a vehicle owned by an individual, upon request of that individual, a vehicle registration issued by the secretary of state expires 2 years after the owner's birthday.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1952, Act 153, Imd. Eff. Apr. 24, 1952 ;-- Am. 1953, Act 179, Imd. Eff. June 8, 1953 ;-- Am. 1955, Act 77, Imd. Eff. May 26, 1955 ;-- Am. 1957, Act 33, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 55, Eff. July 1, 1958 ;-- Am. 1960, Act 85, Imd. Eff. Apr. 25, 1960 ;-- Am. 1962, Act 80, Imd. Eff. Apr. 24, 1962 ;-- Am. 1966, Act 180, Imd. Eff. July 1, 1966 ;-- Am. 1966, Act 348, Imd. Eff. Dec. 21, 1966 ;-- Am. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967 ;-- Am. 1978, Act 78, Imd. Eff. Mar. 22, 1978 ;-- Am. 1978, Act 391, Imd. Eff. Aug. 1, 1978 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1979, Act 25, Imd. Eff. June 6, 1979 ;-- Am. 1980, Act 46, Imd. Eff. Mar. 19, 1980 ;-- Am. 1980, Act 84, Imd. Eff. Apr. 7, 1980 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 254, Imd. Eff. Sept. 30, 1982 ;-- Am. 1983, Act 165, Eff. Oct. 1, 1983 ;-- Am. 1984, Act 324, Imd. Eff. Dec. 26, 1984 ;-- Am. 1986, Act 311, Imd. Eff. Dec. 23, 1986 ;-- Am. 1987, Act 142, Eff. Oct. 1, 1987 ;-- Am. 1989, Act 136, Imd. Eff. June 29, 1989 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 286, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 1992, Act 29, Eff. Jan. 1, 1993 ;-- Am. 1992, Act 297, Eff. Jan. 1, 1993 ;-- Am. 2000, Act 36, Eff. Apr. 1, 2001 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 163, Imd. Eff. June 23, 2004 ;-- Am. 2016, Act 425, Eff. Apr. 4, 2017 ;-- Am. 2018, Act 342, Eff. Jan. 14, 2019 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021 ;-- Am. 2021, Act 112, Eff. Oct. 1, 2022 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."In subsection (10)(e), the words "lien holder" evidently should read "lienholder".

257.226a Temporary registration plates or markers.

Sec. 226a.

(1) Temporary registration plates or markers may be issued to licensed dealers in vehicles and to persons engaged in the sale of vessels required to be numbered by part 801 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80101 to 324.80199, upon application accompanied by the proper fee, for use by purchasers or lessees of vehicles, for a period not to exceed 30 days pending receipt of regular registration plates

from the dealer or person. Only 1 temporary plate or marker may be issued to a purchaser or lessee of a vehicle. If a dealer or person requires a purchaser or lessee of a vehicle or purchaser or lessee of a vessel to pay for a temporary plate or marker, the dealer or person shall not charge the purchaser or lessee more than the dealer or person was charged by the secretary of state for the individual plate or marker. The secretary of state shall determine the composition and design of the temporary registration plates or markers.

(2) A temporary registration plate or marker must show in ink the date of issue, a description of the vehicle for which issued, and any other information required by the secretary of state. A dealer or person shall immediately notify the secretary of state of each temporary registration plate or marker issued by the dealer or person, on a form prescribed by the secretary of state. When the regular plate is attached to a vehicle for which a temporary registration plate or marker was issued, the temporary plate must be destroyed.

(3) All temporary registration plates or markers must be serially numbered and upon issuance the number must be noted on the statement of vehicle sale form or in the case of a boat trailer on a form prescribed by the secretary of state.

(4) A dealer or person, upon demand, shall immediately surrender any temporary registration plates or markers in his or her possession if the secretary of state finds, after investigation, that the dealer or person has violated this section, and the dealer or person shall immediately forfeit any right to the temporary registration plates or markers.

(5) The secretary of state may issue a registration plate upon application and payment of the proper fee to an individual, partnership, corporation, or association who in the ordinary course of business has occasion to legally repossess a vehicle in which a security interest is held. A registration plate issued under this subsection must be used to move and dispose of a vehicle.

(6) The secretary of state may issue a registration plate upon application and payment of the proper fee to an individual, partnership, corporation, or association that in the ordinary course of business has occasion to legally pick up or deliver a vehicle not required to be titled under this act, to legally pick up or deliver a commercial motor vehicle being driven to a facility to undergo aftermarket modification, or to repair or service a vehicle, or to a dealer as defined in section 80102 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80102 to deliver a vessel or trailer to a customer or to and from a boat show or exposition. A registration plate issued under this subsection must be used to move the vehicle.

(7) The secretary of state may issue a registration plate upon application and payment of the proper fee to an individual, partnership, corporation, or association that in the ordinary course of business operates an auto auction, and that in the ordinary course of business has occasion to legally pick up a vehicle that will be offered for sale at the auction, or deliver a vehicle that has been offered for sale at the auction. The registration plate must be used only to move vehicles as provided in this subsection. Auto auctions that apply for a registration plate under this subsection shall furnish a surety bond as required by the secretary of state.

History: Add. 1957, Act 33, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 55, Eff. July 1, 1958 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1968, Act 278, Imd. Eff. July 1, 1968 ;-- Am. 1973, Act 150, Imd. Eff. Nov. 28, 1973 ;-- Am. 1984, Act 227, Imd. Eff. July 30, 1984 ;-- Am. 1989, Act 136, Imd. Eff. June 29, 1989 ;-- Am. 1994, Act 183, Imd. Eff. June 20, 1994 ;-- Am. 1996, Act 59, Imd. Eff. Feb. 26, 1996 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2006, Act 516, Imd. Eff. Dec. 29, 2006 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.226b Temporary registration; duration; form; fee; use of vehicle.

Sec. 226b.

(1) A temporary registration may be issued to an owner of a vehicle. The registration shall be valid for either 30 days or 60 days from date of issue, at the discretion of the owner, and shall be in a form as determined by the secretary of state. A fee shall be collected for each temporary registration as provided in section 802.

(2) A vehicle which has a temporary registration shall not be used for the transportation of passengers for hire or for the transportation of goods, wares, or merchandise or draw other vehicles transporting goods, wares, or merchandise.

History: Add. 1957, Act 33, Eff. Sept. 27, 1957 ;-- Am. 1976, Act 47, Imd. Eff. Mar. 18, 1976 ;-- Am. 1982, Act 19, Imd. Eff. Mar. 4, 1982 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003

257.226c Reflectorized reflector plates, tabs, and stickers.

Sec. 226c.

Beginning with the registration plates manufactured in the year 1970 and succeeding years they shall be treated with an effective and dependable reflective material according to specifications promulgated by the department of administration in conjunction with the department of state highways, the department of state and the department of corrections. In any year during which registration plates are not furnished, the department shall furnish for each annual registration a reflective tab or sticker designating the year of registration.

History: Add. 1969, Act 44, Imd. Eff. July 17, 1969

257.227 Application for renewal of vehicle registration; fee; presentation of certificate of title; waiver; proof of vehicle insurance; transmission of vehicle policy information; disclosure.

Sec. 227.

(1) Application for renewal of a vehicle registration shall be made by the owner upon proper application and by payment of the registration fee for the vehicle, as provided by law.

(2) Every application shall be accompanied by the certificate of title pertaining to the vehicle, showing ownership in the person applying for registration at the time of the application. The secretary of state may waive the presentation of the certificate of title.

(3) Every application for renewal of a motor vehicle registration shall be accompanied by proof of vehicle insurance in a form determined by the secretary of state.

(4) Notwithstanding subsection (3), the secretary of state shall accept as proof of vehicle insurance a transmission of the applicant's vehicle policy information for an insured vehicle for which vehicle registration is sought. The secretary of state may determine in what format and on what timeline the secretary of state will receive vehicle policy information, which shall not be required more frequently than every 14 days. In determining the format under this subsection, the secretary of state shall consult with insurers. The transmission to the secretary of state of the vehicle policy information is proof of insurance to the secretary of state for motor vehicle registration purposes only and is not evidence that a policy of insurance actually exists between an insurer and an individual. Vehicle policy information submitted by an insurer and received by the secretary of state under this subsection is confidential, is not subject to the freedom of information act, 1976 PA 442, MCL 15.231 to 15.246, and shall not be disclosed to any person except the department of community health for purposes of 2006

PA 593, MCL 550.281 to 550.289, or under an order by a court of competent jurisdiction in connection with a claim or fraud investigation or prosecution.

(6) As used in this section, "policy information" means the information an automobile insurer is required to supply to the secretary of state under section 3101a of the insurance code of 1956, 1956 PA 218, MCL 500.3101a.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 1980, Act 459, Imd. Eff. Jan. 15, 1981 ;-- Am. 1982, Act 19, Imd. Eff. Mar. 4, 1982 ;-- Am. 1995, Act 287, Imd. Eff. Jan. 9, 1996 ;-- Am. 2011, Act 92, Eff. Dec. 30, 2011

257.227a Vehicle involved in violation; renewal, replacement, or transfer of registration plate; appearance of owner or representative at branch office required; cancellation of registration; circumstances; notice and opportunity to be heard.

Sec. 227a.

(1) If a court has notified the secretary of state of a vehicle registration number as provided in section 328(4) and the owner has not secured proof that the vehicle involved in the violation is currently insured under chapter 31 of the insurance code of 1956, Act No. 218 of the Public Acts of 1956, being sections 500.3101 to 500.3179 of the Michigan Compiled Laws, the secretary of state shall not renew, replace, or transfer the registration plate of the vehicle involved in the violation or allow the purchase of a new registration plate for the vehicle involved in the violation, until the owner or the owner's representative appears at a branch office and does both of the following:

(a) Shows a certified statement from an automobile insurer on a standard form prescribed by the commissioner of insurance that the vehicle involved in the violation is currently insured under a prepaid noncancelable policy for a period of not less than 6 months under chapter 31 of Act No. 218 of the Public Acts of 1956.

(b) Pays a fee of $50.00 in addition to any other fee required by law, of which $25.00 shall be allocated to the secretary of state to defray the costs of administering this section.

(2) The secretary of state may cancel the registration of a motor vehicle under either of the following circumstances:

(a) The secretary of state receives notice that a court has determined that a vehicle involved in the violation was not insured as required by chapter 31 of Act No. 218 of the Public Acts of 1956, at the time of registration.

(b) The secretary of state receives notice that a court has determined that the owner or the owner's representative presented a certificate of insurance that was forged, altered, fraudulent, or counterfeit when insurance was required by this act.

(3) Before a cancellation occurs under subsection (2), the person who will be affected by the cancellation shall be given notice and an opportunity to be heard.

History: Add. 1995, Act 287, Imd. Eff. Jan. 9, 1996

257.227b Repealed. 2011, Act 92, Eff. Dec. 30, 2011.

Compiler's Notes: The repealed section pertained to private insurance verification board.

257.228 Notification of old and new addresses; violation as civil infraction.

Sec. 228.

(1) If a person, after making application for or obtaining the registration of a vehicle or a certificate of title, moves from the address named in the application as shown upon a registration certificate or certificate of title, the person within 10 days after moving shall notify the secretary of state in writing of the old and new addresses.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.229 Duplicate registration certificate, registration plate, certificate of title, or duplicate certificate of title.

Sec. 229.

(1) If a registration certificate, registration plate, certificate of title, or duplicate certificate of title is lost, mutilated, or becomes illegible, the person entitled to possession of a registration certificate, registration plate, certificate of title, or duplicate certificate of title or the legal representative or successor in interest of that person as shown by the records of the department shall immediately make application for and may obtain a duplicate or a new registration under a new registration number, as determined to be most advisable by the department, upon the applicant furnishing information satisfactory to the department and upon payment of the required fee. Every duplicate certificate of title shall contain the legend: "This is a duplicate certificate and may be subject to the rights of a person under the original certificate", and shall be delivered to the person entitled to possession of a registration certificate or certificate of title under section 222. Upon issuance of a duplicate registration certificate or plate, the previous registration certificate or plate last issued shall be void.

(2) If a certificate of title is lost at the time that ownership of the vehicle is to be transferred to another person, the secretary of state need not issue a duplicate certificate of title if all of the following are met:

(a) The person from whom ownership of the vehicle is to be transferred appears in person at a secretary of state office and supplies evidence satisfactory to the secretary of state of his or her identity and his or her ownership of the vehicle and pays the fee required under section 806.

(b) The person to whom the vehicle is to be transferred, or his or her legal representative, accompanies the person described under subdivision (a) and makes application for an original certificate of title, supplies evidence satisfactory to the secretary of state of his or her identity, and pays the fee required under section 806.

(3) If the secretary of state does not issue a duplicate certificate of title under subsection (2), the secretary of state's records shall indicate the transfer of the vehicle without a surrender of the certificate of title.

(4) As provided under section 238, the secretary of state is not required to issue a duplicate title to the owner of a vehicle if the duplicate title is subject to a security interest.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1988, Act 276, Eff. Jan. 1, 1989 ;-- Am. 2014, Act 290, Eff. Mar. 31, 2015

257.230 Special identifying number after alteration or defacement of serial number; record.

Sec. 230.

(a) The owner of a vehicle, the engine, serial or vehicle number of which has been altered, removed or defaced, may make application accompanied by the required fee in such form as may be prescribed by the secretary of state for a special identifying number. He shall furnish such information as will satisfy the secretary of state that he is the owner, whereupon the secretary of state shall assign a special number for the vehicle, preceded by a symbol indicating this state. A record of special numbers so assigned shall be maintained by the secretary of state.

The owner shall cause said number to be stamped upon the engine or otherwise as directed by the secretary of state, and upon receipt by the secretary of state of a certificate by a peace officer that he has inspected and found said number affixed upon the motor vehicle as directed in a workmanlike manner, together with application for a certificate of title such special number shall be regarded as the identifying number of said vehicle.

(b) This section is not intended to prohibit the restoration by the owner of the identifying number of the vehicle for which the certificate of title has been issued by this state, nor to prevent any manufacturer or importer, or agents, thereof, other than a dealer, from placing or stamping in the ordinary course of business, numbers on vehicles or parts thereof removed or changed and replacing the numbered parts.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.230a Motorcycle without visible vehicle identification number; seizure; procedure; "person" defined.

Sec. 230A.

(1) A police officer who finds a motorcycle that does not have a visible vehicle identification number may seize the motorcycle to determine if the motorcycle is stolen or otherwise in violation of law.

(2) A police officer who seizes a motorcycle under subsection (1) shall do all of the following:

(a) Secure and transport the motorcycle in a manner and to a place that will protect it from damage.

(b) Determine, if possible, whether or not the motorcycle is stolen.

(c) If necessary, facilitate an examination of the motorcycle by a forensic laboratory specialist or other trained specialist to determine if the vehicle identification number can be restored or otherwise located.

(d) Unless otherwise required by law, return the motorcycle to the person from whom it was seized or to the lawful owner, within 30 calendar days after the date of the seizure.

(3) A police agency holding a motor vehicle unlawfully beyond the 30 calendar days prescribed in subsection (2) is liable for damages.

(4) A person may enforce the provisions of this section by filing a civil action in the district court that has jurisdiction of the place where the motorcycle was seized. The district court shall conduct a hearing on the action within 10 days from the date of the filing in a manner prescribed in the revised judicature act of 1961, 1961 PA 236, MCL 600.101 to 600.9948.

(5) A person who prevails in an action authorized under subsection (4) shall be awarded costs and actual attorney fees.

(6) As used in this section, "person" means an individual, partnership, corporation, association, governmental entity, or other legal entity.

History: Add. 2000, Act 408, Eff. Mar. 28, 2001
Compiler's Notes: Section number “Sec. 230A.” at the beginning of this section evidently should read “Sec. 230a.”.

257.231 Registration of replacement engines.

Sec. 231.

The secretary of state is authorized to adopt and enforce such registration rules and regulations as may be deemed necessary and compatible with the public interest with respect to the change or substitution of 1 engine in place of another in any motor vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.232 Furnishing list of information to federal, state, or local governmental agency; contract for sale of lists of driver and motor vehicle records; records maintained in bulk; surveys, marketing, or solicitations; insertion of safeguard in agreement or contract; duties of recipient of personal information; disclosure of list based on driving behavior or sanctions.

Sec. 232.

(1) Upon request, the secretary of state may furnish a list of information from the records of the department maintained under this act to a federal, state, or local governmental agency for use in carrying out the agency's functions, or to a private person or entity acting on behalf of a governmental agency for use in carrying out the agency's functions. The secretary of state may charge the requesting agency a preparation fee to cover the cost of preparing and furnishing a list provided under this subsection if the cost of preparation exceeds $25.00, and use the revenues received from the service to defray necessary expenses. If the secretary of state sells a list of information under this subsection to a member of the state legislature, the secretary of state shall charge the same fee as the fee for the sale of information under subsection (2) unless the list of information is requested by the member of the legislature to carry out a legislative function. The secretary of state may require the requesting agency to furnish 1 or more blank computer tapes, cartridges, or other electronic media and may require the agency to execute a written memorandum of agreement as a condition of obtaining a list of information under this subsection.

(2) The secretary of state may contract for the sale of lists of driver and motor vehicle records and other records maintained under this act in bulk, in addition to those lists distributed at cost or at no cost under this section for purposes permitted by and described in section 208c(3). The secretary of state shall require each purchaser of records in bulk to execute a written purchase contract. Until October 1, 2027, the proceeds from each sale made under this subsection must be credited to the transportation administration collection fund created in section 810b. The secretary of state shall fix a price for the sale of lists or other records maintained in bulk, which may include personal information. The price per 1,000 records is based on the date the records are obtained and must not exceed $25.00 after January 1, 2023.

(3) The secretary of state or any other state agency shall not sell or furnish any list of information under subsection (2) for the purpose of surveys, marketing, or solicitations. The secretary of state shall ensure that personal information disclosed in bulk will be used, rented, or sold solely for uses permitted under this act.

(4) The secretary of state may insert any safeguard the secretary of state considers reasonable or necessary, including a bond requirement, in a memorandum of agreement or purchase contract executed under this section, to ensure that the information provided or sold is used only for a permissible purpose and that the rights of individuals and of the department are protected.

(5) An authorized recipient of personal information disclosed under this section that resells or rediscloses the information for any of the purposes permitted by and described in section 208c(3) shall do both of the following:

(a) Make and keep for a period of not less than 5 years records identifying each person that received personal information from the authorized recipient and the permitted purpose for which it was obtained.

(b) Allow a representative of the secretary of state, upon request, to inspect and copy records identifying each person that received personal information from the authorized recipient and the permitted purpose for which it was obtained.

(6) The secretary of state shall not disclose a list based on driving behavior or sanctions to a nongovernmental agency, including an individual.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1956, Act 230, Eff. Aug. 11, 1956 ;-- Am. 1997, Act 101, Imd. Eff. Aug. 7, 1997 ;-- Am. 2000, Act 192, Eff. Jan. 1, 2001 ;-- Am. 2005, Act 173, Imd. Eff. Oct. 12, 2005 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 73, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2022, Act 223, Imd. Eff. Oct. 14, 2022 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.232a Furnishing name and address of lessee of vehicle to secretary of state or police officer.

Sec. 232a.

A person in the business of leasing or renting a vehicle registered under this act shall furnish, upon request, the name and address of the lessee of the vehicle to the secretary of state or a police officer when needed by the secretary of state or the police officer in the course of an investigation or proceeding for a violation of this act or other felony or misdemeanor.

History: Add. 1977, Act 13, Imd. Eff. May 11, 1977

TRANSFERS OF TITLE OR INTEREST

257.233 Transfer or assignment of title to, or interest in, registered vehicle; disposition of plates; application for new registration certificate; penalty; indorsement on certificate of title; effective date of transfer; submission of secured receipt.

Sec. 233.

(1) If the owner of a registered vehicle transfers or assigns the title or interest in the vehicle, the registration plates issued for the vehicle shall be removed and transferred to the owner's spouse, mother, father, sister, brother, or child to whom title or interest in the vehicle is transferred, or retained and preserved by the owner for transfer to another vehicle upon application and payment of the required fees. A person shall not transfer the plates to a vehicle without applying for a proper certificate of registration describing the vehicle to which the plates are being transferred, except as provided in section 217(4). If the owner of a registered

vehicle acquires another vehicle without transferring or assigning the title or interest in the vehicle for which the plates were issued, the owner may have the plates transferred to the subsequently acquired vehicle upon application and payment of the required fees.

(2) A person shall not purchase or lease another vehicle or an interest in another vehicle with the intent to circumvent the restrictions created by immobilization of a vehicle under this act.

(3) A person shall not transfer or attempt to transfer ownership or right of possession of a vehicle subject to forfeiture or ordered forfeited under this act with the intent to avoid the forfeiture of that vehicle.

(4) During the time a vehicle is subject to a temporary registration plate, vehicle forfeiture, immobilization, registration denial, or the period from adjudication to immobilization or forfeiture under this act, a person shall not without a court order transfer or assign the title or an interest in the vehicle to a person who is not subject to payment of a use tax under section 3 of the use tax act, 1937 PA 94, MCL 205.93.

(5) A person who violates subsection (2), (3), or (4) is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(6) A person whose operator's or chauffeur's license is suspended, revoked, or denied for, or who has never been licensed by this state and was convicted for, a third or subsequent violation of section 625 or 625m, of a local ordinance substantially corresponding to section 625 or 625m, or of a law of another state substantially corresponding to section 625 or 625m, or for a fourth or subsequent suspension or revocation under section 904 shall not purchase, lease, or otherwise acquire a motor vehicle during the suspension, revocation, or denial period. A person who violates this subsection is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $100.00, or both.

(7) If the assigned holder of registration plates applies for a new registration certificate, the application shall be accompanied either by the old registration certificate or by a certificate of title showing the person to be the assigned holder of the registration plates for which the old registration certificate had been issued. A person who fails or neglects to fulfill the requirements of this subsection is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $100.00, or both.

(8) The owner shall indorse on the certificate of title as required by the secretary of state an assignment of the title with warranty of title in the form printed on the certificate with a statement of all security interests in the vehicle or in accessories on the vehicle and deliver or cause the certificate to be mailed or delivered to the purchaser or transferee at the time of the delivery to the purchaser or transferee of the vehicle. The certificate shall show the payment or satisfaction of any security interest as shown on the original title. However, as provided under section 238, the secretary of state is not required to issue a title to the owner of a vehicle if the title is subject to a security interest.

(9) Upon the delivery of a motor vehicle and the transfer, sale, or assignment of the title or interest in a motor vehicle by a person, including a dealer, the effective date of the transfer of title or interest in the vehicle is the date of signature on either the application for title or the assignment of the certificate of title by the purchaser, transferee, or assignee.

(10) A secured receipt that is in a form approved by the department and produced at the time the secured interest is presented with payment in satisfaction of the security interest may be submitted to the department in lieu of the title for purposes of transferring ownership in the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 104, Imd. Eff. Apr. 14, 1958 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1964, Act 51, Eff.

Aug. 28, 1964 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1973, Act 190, Imd. Eff. Jan. 8, 1974 ;-- Am. 1974, Act 111, Imd. Eff. May 21, 1974 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1998, Act 346, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2005, Act 317, Imd. Eff. Dec. 27, 2005 ;-- Am. 2006, Act 599, Imd. Eff. Jan. 3, 2007 ;-- Am. 2014, Act 290, Eff. Mar. 31, 2015

257.233a Transfer of title or interest in vehicle; disclosure of odometer mileage; electronically signed odometer disclosure statement; electronic system; transfer of ownership; "private parties" defined.

Sec. 233a.

(1) Except as otherwise provided in subsection (17), if the owner of a registered motor vehicle transfers the owner's title or interest in that vehicle, the transferor shall present to the transferee before delivery of the vehicle, written disclosure of odometer mileage by means of the certificate of title or a written statement signed by the transferor including the transferor's printed name, containing all of the following:

(a) The odometer reading at the time of transfer, not including the tenths of a mile or kilometer.

(b) The date of transfer.

(c) The transferor's name and current address.

(d) The transferee's name and current address.

(e) The identity of the vehicle, including its make, model, body type, year, and vehicle identification number.

(f) A reference to this section and comparable federal law, and a statement that failing to complete the title or form or providing false information may result in civil liability and civil or criminal penalties being imposed on the transferor.

(g) One of the following:

(i) A statement by the transferor certifying that to the best of the transferor's knowledge the odometer reading reflects the actual mileage of the vehicle.

(ii) If the transferor knows that the odometer reading reflects the amount of mileage in excess of the designed mechanical odometer limit, a statement to that effect.

(iii) If the transfer knows that the odometer reading differs from the mileage and the difference is greater than that caused by odometer calibration error, a statement that the odometer reading does not reflect the actual mileage and should not be relied on. This notice must include a warning notice to alert the transferee that a discrepancy exists between the odometer and the actual mileage.

(h) Space for the signature and printed name of the transferee, and the date of presentation to the transferee.

(2) A certificate of title and a dealer reassignment form must contain a place for the information required by subsection (1)(a) to (h). If the vehicle is not titled or the title does not contain a space for the required information, a written statement must be provided as a separate document.

(3) A dealer selling or exchanging vehicles required to be titled under this act shall present the certificate of title or written statement and any reassigned titles in the dealer's possession to the transferee. The transferee or the transferee's agent shall inspect, print the transferee's or transferee's agent's name on, sign, and date the certificate or statement and return it to the transferor for submission to the secretary of state. If neither the transferee nor transferor is a dealer licensed under this act, completing the odometer information on the certificate of title

must be considered to comply with subsection (1). A person shall not sign an odometer disclosure statement as both the transferor and transferee in the same transaction.

(4) A new or used vehicle dealer shall obtain from the transferor a completed odometer mileage statement that meets the requirements of subsection (1) with each motor vehicle acquired by the dealer. Except as provided in subsection (16), the dealer shall not accept or provide an odometer mileage statement or a title that contains a place for odometer information that has not been completely filled in by the transferor.

(5) The odometer information described in subsection (1) must not be required for any of the following:

(a) Vehicles having a gross vehicle weight rating of more than 16,000 pounds.

(b) A vehicle that is not self-propelled.

(c) A vehicle manufactured in or before the 2010 model year that is transferred at least 10 years after January 1 of the calendar year that is included in the model year in which the vehicle is manufactured.

(d) A vehicle manufactured in or after the 2011 model year that is transferred at least 20 years after January 1 of the calendar year that is included in the model year in which the vehicle was manufactured.

(e) A new vehicle transferred from a manufacturer to a dealer.

(f) A vehicle sold directly by the manufacturer to an agency of the United States in conformity with contractual specifications.

(g) A low-speed vehicle.

(h) A scrap vehicle.

(6) A person shall not alter, set back, or disconnect an odometer; cause or allow an odometer to be altered, set back, or disconnected; or advertise for sale, sell, use, install, or cause or allow to be installed a device which causes an odometer to register other than the actual mileage driven. This subsection does not prohibit the service, repair, or replacement of an odometer if the mileage indicated on the odometer remains the same as before the service, repair, or replacement. If the odometer is incapable of registering the same mileage as before the service, repair, or replacement, the odometer must be adjusted to read zero and a notice in writing must be attached to the left door frame of the vehicle by the owner or the owner's agent specifying the mileage prior to service, repair, or replacement of the odometer and the date on which it was serviced, repaired, or replaced. A person shall not remove, deface, or alter any notice affixed to a motor vehicle under this subsection.

(7) A person who violates subsection (6) is guilty of a felony.

(8) Before executing a transfer of ownership document, a lessor of a leased vehicle shall notify the lessee in writing that ownership of the vehicle is being transferred and that the lessee is required to provide a written statement to the lessor regarding the mileage of the vehicle. This notice must inform the lessee of the penalties for failure to comply with the requirement.

(9) Upon receiving notification from the lessor of a leased vehicle that ownership of the vehicle is to be transferred, the lessee shall furnish to the lessor a written statement regarding the mileage of the vehicle. This statement must be signed by the lessee and must contain all of the following:

(a) The printed name of the person making the statement.

(b) The current odometer reading, not including tenths of miles.

(c) The date of the statement.

(d) The lessee's name and current address.

(e) The lessor's name and current address.

(f) The identity of the vehicle, including its make, model, year, body type, and vehicle identification number.

(g) The date that the lessor notified the lessee of the requirements of this subsection.

(h) The date that the completed disclosure statement was received by the lessor.

(i) The signature of the lessor.

(j) One of the following:

(i) A statement by the lessee certifying that to the best of the lessee's knowledge the odometer reading reflects the actual mileage of the vehicle.

(ii) If the lessee knows that the odometer reading reflects the amount of mileage in excess of the designed mechanical odometer limit, a statement to that effect.

(iii) If the lessee knows that the odometer reading differs from the mileage and that the difference is greater than that caused by odometer calibration error, a statement that the odometer reading is not the actual mileage and should not be relied on.

(10) If the lessor transfers a leased vehicle without obtaining possession of the vehicle, the lessor may indicate on the certificate of title the mileage disclosed by the lessee under subsection (9), unless the lessor has reason to believe that the mileage disclosed by the lessee does not reflect the actual mileage of the vehicle.

(11) A dealer that is required by this section to execute an odometer mileage statement shall retain for 5 years a photostatic, carbon, or other facsimile copy of each odometer mileage statement the dealer issues or receives. The dealer shall retain the odometer mileage statements at the dealer's primary place of business in an order that is appropriate to business requirements and that permits systematic retrieval.

(12) A lessor shall retain, for 5 years following the date of transfer of ownership of each leased vehicle, the odometer mileage statement received from the lessee. The lessor shall retain the odometer mileage statements at the lessor's primary place of business in an order that is appropriate to business requirements and that permits systematic retrieval.

(13) An auction dealer or vehicle salvage pool operator shall establish and retain at the auction dealer's or vehicle salvage pool operator's primary place of business in an order that is appropriate to business requirements and that permits systematic retrieval, for 5 years following the date of sale of each motor vehicle, the following records:

(a) The name and the most recent owner, other than the auction dealer or salvage pool operator.

(b) The name of the buyer.

(c) The vehicle identification number.

(d) The odometer reading, not including the tenths of a mile, on the date the auction dealer or salvage pool operator took possession of the motor vehicle.

(14) A violation of subsection (1) or (6) by any dealer licensed under this act is prima facie evidence of a fraudulent act as provided in section 249.

(15) A person who, with intent to defraud, violates any requirement under subsection (1) or (6), or a dealer that fails to retain for 5 years each odometer mileage statement the dealer receives and each odometer mileage statement furnished by the dealer upon the sale of a vehicle, is liable in an amount equal to 3 times the amount of actual damages sustained or $1,500.00 whichever is greater, and in the case of a successful recovery of damages, the costs of the action together with reasonable attorney fees.

(16) For the purposes of this section, the department may accept an electronically signed odometer disclosure document that complies with all of the following:

(a) Is submitted on a form that is approved by the department.

(b) Is electronically signed using software that provides antitamper and identification verification technology and is approved for this use by the department.

(c) Is otherwise fully compliant with 49 CFR part 580.

(17) The department may establish, implement, and operate an electronic system to process the notification and transfer of a vehicle ownership interest between private parties through an electronic transfer instead of the collection of paper documents otherwise required under this act. If the electronic system is established, a private party that uses the electronic system shall comply with any requirement of this section that the department determines is necessary and provide any information that is required by the department. The department may enter into 1 or more contracts to establish, implement, and operate the electronic system under this subsection. The contract must require the protection of proprietary information contained in the electronic system and other information as protected under this act.

(18) As used in this section, "private parties" means that both a vehicle's buyer and seller are not a dealer.

History: Add. 1974, Act 367, Eff. Apr. 1, 1975 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023 ;-- Am. 2023, Act 240, Eff. Feb. 13, 2024

Compiler's Notes: In subsection (1)(g)(iii), the term “transfer” evidently should read “transferor.”

257.233b Definitions; disclosure by dealer of damage or repair; exception; grounds for revocation.

Sec. 233b.

(1) As used in this section:

(a) "Distributor" means that term as defined in section 3(1) of 1981 PA 118, MCL 445.1563.

(b) "Manufacturer" means that term as defined in section 4(2) of 1981 PA 118, MCL 445.1564.

(c) "Program vehicle" means a motor vehicle from either the current model year or the immediately preceding model year, that was repurchased by a manufacturer or distributor from a rental car company.

(2) Except as provided in this subsection, a new motor vehicle dealer shall disclose in writing to a purchaser or lessee of a new motor vehicle, demonstrator, executive or manufacturer's vehicle, or program vehicle before entering into a sales contract or lease agreement that, after the vehicle completed the manufacturing process, the vehicle was damaged and repaired, including an itemization of repairs, if the dealer has knowledge of the damage and repairs and if the cost of the cumulative repairs, as calculated at the rate of the dealer's authorized warranty rate for labor and parts exceeds either 1 of the following:

(a) Five percent of the manufacturer's suggested retail price of the vehicle.

(b) Seven hundred fifty dollars in surface coating repairs or corrosion protection restoration or a combination of these items. If a new motor vehicle dealer fails to comply with this subsection, the purchaser or lessee shall retain all applicable remedies available under article 2 of the uniform commercial code, 1962 PA 174, MCL 440.2101 to 440.2725.

(3) A dealer in new motor vehicles is not required to disclose to a purchaser or lessee under this act that any glass, tires, wheels, bumpers, audio equipment, in-dash components, or components contained in the living quarters of a motor home that are not required for the operation of the motor home as a motor vehicle were damaged at any time if the damaged item has been replaced with original manufacturer's parts and material.

(4) Repaired damage to a motor vehicle, subject to this section, not exceeding the cost of cumulative repairs as determined pursuant to subsection (2) shall not constitute grounds for revocation of acceptance by the purchaser or lessee. The right of revocation ceases upon the purchaser's or lessee's acceptance of delivery of the vehicle.

History: Add. 1994, Act 305, Eff. Jan. 2, 1995 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003

257.234 Presentation of certificate of title and registration certificate to secretary of state; fees; issuance of new certificate of title and registration certificate; mail or delivery; repossession of license plates; payment of transfer fee; compliance with MCL 257.238.

Sec. 234.

(1) The purchaser or transferee, unless the person is a licensed dealer, shall present or cause to be presented the certificate of title and registration certificate if plates are being transferred to another vehicle, assigned as provided in this act, to the secretary of state accompanied by the fees as provided by law, whereupon a new certificate of title and registration certificate shall be issued to the assignee. The certificate of title shall be mailed or delivered to the owner or another person the owner may direct in a separate instrument in a form the secretary of state shall prescribe.

(2) If the secretary of state mails or delivers a purchaser's or transferee's certificate of title to a dealer, the dealer shall mail or deliver that certificate of title to the purchaser or transferee not more than 5 days after receiving the certificate of title from the secretary of state.

(3) Unless the transfer is made and the fee paid within 15 days, the vehicle is considered to be without registration, the secretary of state may repossess the license plates, and transfer of the vehicle ownership may be effected and a valid registration acquired thereafter only upon payment of a transfer fee of $15.00 in addition to the fee provided for in section 806.

(4) If a security interest is reserved or created at the time of the transfer, the parties shall comply with the requirements of section 238.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 2000, Act 151, Imd. Eff. June 12, 2000 ;-- Am. 2002, Act 552, Eff. Oct. 1, 2002
Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.235 Dealer as transferee of vehicle; requirements; duties; liability of dealer or transferee; transfer of title or interest to another dealer; duties of dealer; dealer reassignment of title form; buy back or off lease vehicle.

Sec. 235.

(1) If the transferee of a vehicle is a new motor vehicle dealer or a used or secondhand vehicle dealer that acquires the vehicle for resale, the dealer is not required to obtain a new registration of the vehicle or forward the certificate of title to the secretary of state, but shall retain and have in the dealer's immediate possession, or, upon providing prior written notice to the department and receiving the department's approval within 7 business days after the department receives the written notice, at a secondary location owned by the dealer that is located within a 15-mile radius, the assigned certificate of title with the odometer information

properly completed, except as otherwise provided in section 235b. A dealer shall obtain a certificate of title for a vehicle that has a salvage certificate of title before the dealer may operate the vehicle under dealer's license plates. Upon transferring title or interest to another person that is not a dealer, the dealer shall complete an assignment and warranty of title upon the certificate of title, salvage certificate of title, or dealer reassignment of title form and apply for a registration and a new title as provided in section 217(4).

(2) The dealer or transferee is liable for all damages arising from the operation of the vehicle while the vehicle is in the dealer's or transferee's possession.

(3) Upon transferring title or interest to another dealer, the dealer shall complete an assignment and warranty of title on the certificate of title, salvage certificate of title, or dealer reassignment of title form and deliver it to the licensed dealer receiving the transfer.

(4) The secretary of state shall prescribe the dealer reassignment of title form. The form must contain the title number of the accompanying title; the name, address, and, if applicable, dealer license number of the transferee; the year, make, model, body type, and vehicle identification number of the vehicle; the name, address, dealer number, and signature of the transferor; an odometer mileage statement as prescribed under section 233a; and any other information the secretary of state requires.

(5) This section does not prohibit a dealer from selling a buy back vehicle while the certificate of title is in the possession of a manufacturer that obtained the certificate of title under the manufacturer's buy back vehicle program. The manufacturer shall mail the certificate of title to the dealer within 5 business days after the manufacturer's receipt of a signed statement from the purchaser of the vehicle acknowledging the purchaser was informed by the dealer that the manufacturer acquired title to the vehicle as the result of an arbitration proceeding, under a customer satisfaction policy adopted by the manufacturer, or under 1986 PA 87, MCL 257.1401 to 257.1410, or a similar law of another state.

(6) This section does not prohibit a dealer from selling an off lease vehicle while the certificate of title is in the possession of a lessor. The lessor shall mail the certificate of title to the dealer within 21 days after the lessor receives the purchase price of the vehicle and any other fees and charges due under the lease.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.235a Licensed dealer or junk dealer purchasing vehicle for purpose of destroying or junking vehicle; acceptance and disposition of certificate of title; fee.

Sec. 235a.

Notwithstanding any other provision of this act or of the use tax act, 1937 PA 94, MCL 205.91 to 205.111, a licensed dealer or junk dealer who purchases a vehicle for the purpose of destroying or junking the vehicle may accept a certificate of title that has been assigned to the transferor by a properly indorsed assignment on the certificate of title as required by the secretary of state. The dealer shall write the word "junk" on the face of the certificate of title above the signature of the dealer or an authorized agent of the dealer and forward the certificate to the secretary of state, together with a fee of $5.00 instead of a fee or tax otherwise applicable. This section does not apply to a transfer unless the fee and certificate of

title are received by the secretary of state within 10 days after the date of the vehicle's purchase by the dealer. A certificate of title shall not again be issued for the vehicle.

History: Add. 1960, Act 79, Eff. Aug. 17, 1960 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 2005, Act 317, Imd. Eff. Dec. 27, 2005
Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.235b Possession of certificate of title by inventory lender for vehicle subject to inventory loan; written agreement; release of certificate of title by used or secondhand vehicle dealer's inventory lender; limitation; failure to release vehicle title; registration with secretary of state; applicability of section to certain licensed dealers; applicability of MCL 257.235; definitions.

Sec. 235b.

(1) A used or secondhand vehicle dealer may voluntarily enter into a written agreement with an inventory lender allowing the inventory lender to retain in its possession the certificate of title for a vehicle that is subject to an inventory loan if all of the following conditions have been met:

(a) The used or secondhand vehicle dealer posts a notice on the used or secondhand vehicle window disclosing the existence of the used or secondhand vehicle dealer's inventory loan for the vehicle. The notice under this subdivision shall include the name, address, telephone number, and internet address of the used or secondhand vehicle inventory lender in a manner and of a size sufficient to alert potential buyers of the existence of inventory loan, contact information for the holder of that inventory loan, and that the inventory lender holds the title to the vehicle in its possession. The notice under this subdivision shall be in a form and manner as prescribed by the secretary of state.

(b) The used or secondhand vehicle dealer maintains a color copy of the certificate of title, either in paper or electronic form, at the used or secondhand vehicle dealer's place of business. The color copy of the certificate of title shall indicate on its face that it is a copy. The color copy of the title and a disclosure or notice of the vehicle inventory lender's possession of the title shall be presented to the buyer at the time of purchase in paper or electronic form.

(c) The used or secondhand vehicle dealer maintains a paper or electronic copy of the inventory loan agreement between the used or secondhand vehicle dealer and the vehicle inventory lender, along with the inventory list, which shall be not more than 5 days old. These documents shall be made available to the secretary of state upon the request of the secretary of state.

(2) A used or secondhand vehicle dealer's inventory lender shall release the certificate of title to the used or secondhand vehicle dealer, the used or secondhand vehicle dealer's designee, or the secretary of state, as applicable, not more than 2 banking business days after the used or secondhand vehicle dealer's inventory lender receives 1 of the following:

(a) The outstanding principal balance and any other fees and charges due on the vehicle under the inventory loan.

(b) A written request from the used or secondhand vehicle dealer with proof of full payment evidencing that the vehicle has been sold to a buyer in the ordinary course of business under section 9320 of the uniform commercial code, 1962 PA 174, MCL 440.9320, or a substantially similar law of another state.

(c) A written request from the purchaser and proof of full payment evidencing that the purchaser's status as a buyer in ordinary course of business under section 9320 of the uniform commercial code, 1962 PA 174, MCL 440.9320, or a substantially similar law of another state.

(d) A written request from the secretary of state.

(3) A used or secondhand vehicle dealer's inventory lender that fails to release a vehicle title as required under subsection (2) may be ordered to pay an administrative fine of $500.00.

(4) A used or secondhand vehicle inventory lender that holds a certificate of title for a vehicle shall register with the secretary of state in a form and manner as prescribed by the secretary of state to provide its location and contact information. No fee shall be charged for registration under this subsection.

(5) This section applies only to dealers licensed under this act that solely sell used or secondhand vehicles and does not apply to a dealer licensed under this act that sells new motor vehicles or both new motor vehicles and used or secondhand vehicles.

(6) Section 235 applies to used or secondhand vehicle dealers under this section only to the extent that section 235 does not conflict with this section.

(7) As used in this section:

(a) "Inventory lender" means a third party engaged in the business of providing financing to a used or secondhand vehicle dealer for the acquisition or retention of vehicles that are held for sale or lease by the used or secondhand vehicle dealer in the ordinary course of the used or secondhand vehicle dealer's business and has filed a financing statement with the secretary of state evidencing the third party's security interest in the used or secondhand vehicle dealer's inventory and the proceeds of that inventory.

(b) "License" means the applicable license under section 248.

History: Add. 2012, Act 498, Eff. Mar. 28, 2013

257.236 Procuring title to vehicle acquired by operation of law; validity of registration upon death of owner; application for title by surviving spouse or heir; proof of death; certification; petition.

Sec. 236.

(1) If ownership of a vehicle passes by operation of law, upon furnishing satisfactory proof of that ownership to the secretary of state, the person acquiring the vehicle may procure a title to the vehicle regardless of whether a certificate of title has ever been issued. Upon death of an owner of a registered vehicle, the license plate assigned to the vehicle, unless the vehicle is destroyed, is a valid registration until the end of the registration year or until the personal representative of the owner's estate transfers ownership of the vehicle.

(2) If an owner of 1 or more vehicles dies and does not leave other property that requires the issuance of letters under section 3103 of the estates and protected individuals code, 1998 PA 386, MCL 700.3103, the owner's surviving spouse, or an heir of the owner in the order specified in section 2103 of the estates and protected individuals code, 1998 PA 386, MCL 700.2103, may apply for a title after providing the secretary of state with proper proof of the death of the registered owner and attaching to the proof a certification that sets forth the fact that the applicant is the surviving spouse or an heir. Upon proper petition, the secretary of state shall provide the applicant with a certificate of title for that vehicle or vehicles, if the total value of the vehicle or vehicles, based on the date of the presented title transfer application, does not exceed the following dollar amount, as applicable:

(a) For calendar years through 2023, $60,000.00.

(b) For the 2024 and 2025 calendar years, $100,000.00.

(c) For the 2026 calendar year and each calendar year thereafter, a dollar amount equal to the product of the dollar amount applicable to the immediately preceding calendar year multiplied by the cost-of-living adjustment factor, rounded to the nearest $1,000.00. Beginning with the dollar amount for the 2026 calendar year and annually thereafter, the department of treasury shall certify and publish the dollar amount applicable for each calendar year no later than September 1 of the prior calendar year.

(3) As used in this section:

(a) "Cost-of-living adjustment factor" means a fraction in which the numerator is the United States Consumer Price Index for the year before the prior calendar year and the denominator is the United States Consumer Price Index for the 2023 calendar year.

(b) "United States Consumer Price Index" means the annual average of the United States Consumer Price Index for all urban consumers as defined and reported by the United States Department of Labor, Bureau of Labor Statistics, or its successor agency.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1961, Act 60, Eff. Sept. 8, 1961 ;-- Am. 1962, Act 72, Eff. Mar. 28, 1963 ;-- Am. 1976, Act 110, Imd. Eff. May 2, 1976 ;-- Am. 1978, Act 544, Eff. July 1, 1979 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1989, Act 189, Imd. Eff. Aug. 24, 1989 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 2000, Act 64, Eff. Apr. 1, 2000 ;-- Am. 2024, Act 2, Eff. May 21, 2024

257.236a Termination of owner's interest by enforcement of security agreement; application for new certificate; certification; holding vehicle for resale; termination of owner's interest by sale pursuant to court process; issuance and contents of new certificate; outstanding certificate.

Sec. 236a.

(1) If the interest of the owner in a vehicle is terminated by the enforcement of a security agreement, the transferee of the owner's interest shall promptly mail or deliver to the secretary of state the last certificate of title if the transferee has possession of the certificate; the application for a new certificate in the form prescribed by the secretary of state; and a certification made by or on behalf of the holder of the security interest so enforced that the vehicle was repossessed, that the interest of the owner was lawfully terminated by enforcement of the security agreement, and whether the owner has delivered the last certificate of title to the transferee of the owner's interest, naming the transferee, or if not, the reason for not naming the transferee, and the location of the certificate of title as known to the owner. If the holder of the security interest succeeds to the interest of the owner and holds the vehicle for resale, the holder need not secure a new certificate of title but, upon transfer to another person, shall promptly mail or deliver to the transferee or to the secretary of state the certificate, if in the holder's possession, a certification, and other documents required to be sent to the secretary of state by the transferee.

(2) If the interest of the owner in a vehicle is terminated by sale pursuant to a levy of execution, attachment, or by other process of a court, the transferee of the owner's interest shall promptly mail or deliver to the secretary of state the last certificate of title, if the transferee has possession of the certificate, the application for a new certificate of title in the form prescribed by the secretary of state, and a certification upon a form prescribed by the secretary of state, made by the officer of the court who conducted the sale, setting forth the date of the sale, the name of the purchaser, and whether the officer of the court has delivered

the certificate of title to the purchaser and if not, the reason for nondelivery and the location of the certificate of title so far as known to the officer of the court.

(3) A person holding a certificate of title in which the interest of the owner named on the certificate has been terminated in the manner provided by subsection (1) or (2), shall mail or deliver the certificate to the secretary of state upon request. The delivery of the certificate pursuant to the request of the secretary of state does not affect the rights of the person surrendering the certificate, and the action of the secretary of state in issuing a new certificate of title as provided in this act is not conclusive upon the rights of an owner or holder of a security interest named in the old certificate.

(4) The secretary of state, upon receipt of an application for a new certificate of title by a transferee in the manner provided by subsection (1) or (2), with proof of the transfer, the required fee, and other documents required by law, shall issue a new certificate of title in the name of the transferee as owner, setting forth all security interests noted on the last certificate of title as having priority over the security agreement so enforced and shall mail or deliver the certificate to the owner. If the outstanding certificate of title is not delivered to the secretary of state, the secretary of state shall make demand for the outstanding certificate of title from the holder.

History: Add. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981

257.237 Transfer of registration; issuance of new registration certificate and certificate of title; filing surrendered certificate of title; retention of records.

Sec. 237.

(1) The secretary of state, upon receipt of a properly endorsed certificate of title and application for transfer of registration accompanied by the required fee, shall transfer the registration thereof under its registration number to the newly acquired vehicle and shall issue a new registration certificate and certificate of title as upon an original registration.

(2) The secretary of state shall retain and appropriately file every surrendered certificate of title, the file to be so maintained as to permit the tracing of title of the vehicles designated in the file for a period of 6 years, except that records of stolen vehicles reported in section 253 may be destroyed after being maintained on file for the year of entry plus 4 years.

(3) The secretary of state shall retain the records for 2 years after the date of notification that a vehicle has been processed for scrap.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1980, Act 460, Imd. Eff. Jan. 15, 1981

257.238 Security interest in vehicle; certificate of title; assignment; termination statement; electronic transactions.

Sec. 238.

(1) When an owner named in a certificate of title creates a security interest in the vehicle described in the certificate or in any accessory on the vehicle, all of the following apply:

(a) The owner shall immediately execute an application in the form prescribed by the department to name the holder of the security interest on the certificate of title, showing the name and address of the holder and deliver the certificate of title, application and the required fee together with a copy of the application, to the holder of the security interest.

(b) The holder of the security interest shall cause the certificate of title, application and fee and the copy of the application to be mailed or delivered to the department.

(c) The department shall indicate on the copy of the application the date and place of filing of the application.

(d) Upon receipt of the certificate of title, application and the required fee, the department shall issue a new certificate in the form provided by section 222 setting forth the name and address of each holder of a security interest in the vehicle or in any accessory on the vehicle for which a termination statement has not been filed and the date on which the application first stating the security interest was filed, and mail the certificate to the owner. However, as provided under this section, the secretary of state is not required to issue a title to the owner of a vehicle if the title is subject to a security interest.

(2) A holder of any kind of a security interest may assign, absolutely or otherwise, the holder's security interest in the vehicle or any accessory thereon to a person other than the owner without affecting the interest of the owner or the validity of the security interest, but any person without notice of the assignment is protected in dealing with the holder of the security interest as the holder thereof.

(3) The assignee of a security interest may have the certificate of title indorsed with the assignee named as the holder of the security interest by providing the department with a copy of the assignment instrument, but the failure of the assignee to do so shall not affect the validity of the security interest of that assignment.

(4) If there is no outstanding obligation and no commitment to make advances, incur obligations, or otherwise give value secured or to be secured by a security interest in a vehicle or an accessory on the vehicle, for which the certificate of title is in possession of a secured party, the secured party may, not more than 14 days after satisfaction of the obligation, execute a termination statement in the form prescribed by the department and mail or deliver the termination statement to the owner or another person as the owner may direct.

(5) If there is no outstanding obligation and no commitment to make advances, incur obligations, or otherwise give value secured or to be secured by a security interest in a vehicle or an accessory on the vehicle, for which the certificate of title is in the possession of another person, the secured party shall, within 14 days after demand but not more than 30 days after demand, execute a termination statement in the form prescribed by the department and mail or deliver the termination statement to the owner or another person as the owner may direct.

(6) The department may require that all transactions concerning vehicle title liens and security interests be conducted by electronic means, as determined by the department. After all liens have been terminated, or for purposes of retitling the vehicle in another state or any other purpose deemed appropriate by the department, the department may issue a paper copy of the vehicle title to the vehicle's owner.

(7) A vehicle sale transaction in which a security interest is entered by electronic means shall include a document recording entry of the electronic security interest and information regarding the financial institution that holds the security interest. At the time a security interest is presented with payment in satisfaction of the security interest, a secured receipt in a form approved by the department and produced at the time the security interest is presented with payment in satisfaction of the security interest may be submitted to the department in lieu of the title for purposes of transferring ownership in the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 248, Eff. Jan. 1, 1965 ;-- Am. 1968, Act 66, Eff. Aug. 1, 1968 ;-- Am. 2014, Act 291, Eff. Mar. 31, 2015

257.239 Certificate of title; failure to endorse or deliver, fine.

Sec. 239.

A person shall not fail or neglect to properly endorse and deliver a certificate of title to a transferee or owner lawfully entitled to the title. A person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.240 Liability for use or ownership of vehicle after transfer of endorsed certificate of title; conditions; violation of subsection (2); civil infraction; fine; towing and storage fees.

Sec. 240.

(1) The owner of a motor vehicle who has made a bona fide sale by transfer of his or her title or interest and who has delivered possession of the vehicle and the certificate of title to that vehicle properly endorsed to the purchaser or transferee is not liable for any damages or a violation of law that subsequently results from the use or ownership of the vehicle by another, if the owner, other than a licensed dealer, satisfies the conditions prescribed under subsection (2).

(2) The owner of a motor vehicle, other than a licensed dealer, shall satisfy 1 of the following conditions:

(a) Accompany the purchaser of the vehicle to a secretary of state branch office to assure that the title of the vehicle being sold is transferred.

(b) Maintain a record of the sale for not less than 18 months. As used in this subdivision, "record of the sale" means either a photocopy of the reassigned title or a form or document that includes the name, address, driver license number, and signature of the person to whom the vehicle is sold and the purchase price and date of sale of the vehicle.

(3) A person who violates subsection (2) is responsible for a civil infraction and shall be ordered to pay a civil fine of $15.00.

(4) A person who violates subsection (2) is presumed to be the last titled owner and to be liable for towing fees and daily storage fees for an abandoned motor vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2004, Act 493, Eff. Oct. 1, 2005

257.241 Electronic lien title system; establishment, implementation, and operation; contracts; participation of secured parties; inclusion of secured interest or other information in electronic file; execution of release; delivery; assignment of ownership by vehicle dealer; admissibility as evidence of security interest; determination of requirements by secretary of state; establishment, implementation, and operation by July 1, 2016; information to be entered beginning October 1, 2016; definitions.

Sec. 241.

(1) The secretary of state may enter into 1 or more contracts under this section to establish, implement, and operate an electronic lien title system to process the notification and release of security interests through electronic file transfers, or as otherwise determined by the secretary

of state, in lieu of the issuance and maintenance of paper documents otherwise required by law. The contract shall contain language that requires the protection of proprietary information contained in the electronic lien title system, and shall ensure that the contract provides for the protection of a competitive free market.

(2) Except for persons who are not normally engaged in the business or practice of financing vehicles, all secured parties are required to participate in the electronic lien title system.

(3) For the purposes of this act, any requirement that a security interest or other information appear on a certificate of title is satisfied by the inclusion of that information in an electronic file maintained in an electronic lien title system. The satisfaction of a security interest may be electronically transmitted to the secretary of state. A secured party shall execute a release of its security interest in a motor vehicle in a manner prescribed by the department not more than 14 days after the secured party receives the payment in satisfaction of the security interest in a motor vehicle. If the certificate of title is in the possession of the motor vehicle owner, the secured party shall deliver the release to the owner of the motor vehicle or as otherwise directed by the owner. However, if the certificate of title is held electronically as provided under section 238, the secured party shall deliver the release of security interest to the department, and the department shall cancel the security interest. If the secured party fails to comply with these requirements for the release of a secured interest, the secured party is liable to the vehicle owner for all damages sustained by the owner due to the failure to comply. The electronic lien title system shall provide a mechanism by which a vehicle dealer may assign ownership of a motor vehicle without proof that the prior security interest was satisfied existing on the electronic lien title system. However, the dealer warrants that the title is free and clear of all liens and assumes responsibility for the satisfaction of the security interest.

(4) A certified copy of the secretary of state's electronic record of a security interest is admissible in any civil, criminal, or administrative proceeding in this state as evidence of the existence of the security interest. If a certificate of title is maintained electronically in the electronic lien title system, a certified copy of the secretary of state's electronic record of the certificate of title is admissible in any civil, criminal, or administrative proceeding in this state as evidence of the existence and contents of the certificate of title.

(5) The secretary of state may determine any requirements necessary to carry out the provisions of this section, including, but not limited to, 1 or more of the following:

(a) Monitoring the reasonable fees charged by service providers or a contractor for the establishment and maintenance of the electronic lien title system.

(b) The qualifications of service providers for participation in the electronic lien title system.

(c) The qualifications for a contractor to enter into a contract with the secretary of state to establish, implement, and operate the electronic lien title system.

(d) Program specifications that a contractor must adhere to in establishing, implementing, and operating the electronic lien title system.

(6) The electronic lien title system shall be established, implemented, and operational no later than July 1, 2016.

(7) The department may require a person to enter evidence of security interests and any related information into the electronic lien title system in lieu of paper documents beginning October 1, 2016.

(8) As used in this section:

(a) "Contractor" means a person who enters into a contract with the secretary of state to establish, implement, and operate the electronic lien title system described in this section.

(b) "Electronic lien title system" means a system to process the notification and release of security interests through electronic file transfers that is established and implemented under this section.

(c) "Service provider" means a person who provides secured parties with software to manage electronic lien and title data as provided under this section.

History: Add. 2014, Act 292, Eff. Mar. 31, 2015
Compiler's Notes: Former MCL 257.241 which pertained to cancellation of certificate of title for dismantled or wrecked car was repealed by Act 507 of 1978, Eff. July 1, 1979.

257.242 Sale of vehicle for salvage.

Sec. 242.

An owner may sell a vehicle to a dealer for salvage by writing on the face of the certificate of title in bold print the word, scrap, along with the signature of the owner or authorized agent, and by then assigning the certificate of title to the dealer purchasing the vehicle. A certificate of title shall not again be issued for the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 100, Eff. Sept. 13, 1958 ;-- Am. 1960, Act 142, Eff. Aug. 17, 1960 ;-- Am. 1978, Act 507, Eff. July 1, 1979

257.242a Regrooved or recut motor vehicle or motorcycle tires; sale or possession with intent to sell prohibited; exception; misdemeanor.

Sec. 242a.

No person shall regroove or recut motor vehicle or motorcycle tires or knowingly sell, offer or expose for sale or have in his possession with intent to sell any motor vehicle or motorcycle tire or any motor vehicle or motorcycle equipped with one or more tires which have been recut or regrooved, except that there shall be no prohibition against the regrooving or recutting of commercial vehicle tires or the sale of regrooved or recut commercial vehicle tires or commercial vehicles equipped with such commercial vehicle tires which are designed and constructed in such a manner that regrooving or recutting is an acceptable and safe practice. A violation of this section shall constitute a misdemeanor.

History: Add. 1966, Act 133, Eff. Jan. 1, 1967

PERMITS TO NONRESIDENT OWNERS

257.243 Nonresident owner of foreign vehicle; registration; exemption; transportation for compensation; temporary permit; agent for secretary of state; pleasure vehicle; business vehicle.

Sec. 243.

(1) A nonresident owner, except as otherwise provided in this section, owning any foreign vehicle of a type otherwise subject to registration under this act may operate or permit the operation of the vehicle within this state without registering the vehicle in, or paying any fees to, this state if the vehicle at all times when operated in this state is duly registered in, and displays upon it a valid registration certificate and registration plate or plates issued for the vehicle in the place of residence of the owner.

(2) A nonresident owner of a foreign vehicle operated within this state for the transportation of persons or property for compensation shall register the vehicle and pay the same fees for its registration as is required with reference to like vehicles owned by residents of this state, except that the department may issue to the nonresident owner a temporary permit authorizing the operation of the foreign vehicle within this state for a period of 72 hours, without registering the vehicle, on the payment of a fee as provided in section 802a of this act. The temporary permit shall be in a form as prescribed by, and shall be displayed on a foreign vehicle in a manner determined by the secretary of state. Each request for a temporary permit under this subsection shall be based on emergency or infrequent need for the permit. The secretary of state may refuse to issue a permit if he or she has reason to believe the applicant has previously forged or misused a permit, has attempted to circumvent the registration laws of this state, or has not demonstrated an emergency or infrequent use.

(3) The secretary of state may designate an owner or registrant having a fleet of motor vehicles currently registered under this act to act as an agent for the secretary of state for the purpose of issuing to himself or herself a temporary registration under this section.

(4) A nonresident owner of a pleasure vehicle otherwise subject to registration under this act shall not operate the vehicle for a period exceeding 90 days without securing registration in this state.

(5) Every nonresident, including any foreign corporation carrying on business within this state and owning and operating in that business any vehicle subject to registration as provided in this chapter, shall register the vehicle and pay the same fee for the registration as is required with reference to like vehicles owned by residents of this state, except as otherwise provided by law.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1960, Act 98, Imd. Eff. Apr. 26, 1960 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990

SPECIAL PLATES TO MANUFACTURERS, TRANSPORTERS, DEALERS

257.244 Operation of vehicle by manufacturer, subcomponent system producer, manufacturer of automated technology, dealer, or transporter with special plate; temporary civic event license plate; unauthorized use of special plate; penalties; surety bond or insurance; number of plates; operation of vehicle with dealer plate by vendee or prospective purchaser; issuance of registration plate to move vehicle, vessel, or trailer.

Sec. 244.

(1) A manufacturer owning a vehicle otherwise required to be registered under this act may operate or move the vehicle on a street or highway primarily for the purposes of transporting or testing or in connection with a golf tournament or a public civic event, if the vehicle displays, as prescribed under section 225, 1 special plate approved by the secretary of state.

(2) A producer of a vehicle subcomponent system essential to the operation of the vehicle or the safety of an occupant may operate or move a motor vehicle on a street or highway solely to transport or test the subcomponent system if the motor vehicle displays, as prescribed under section 225, 1 special plate approved by the secretary of state. To be eligible for the special plate, the subcomponent system producer must be either a recognized subcomponent system producer or must be a subcomponent system producer under contract with a vehicle manufacturer.

(3) Subject to section 665, a manufacturer of automated technology may operate or otherwise move a motor vehicle or an automated motor vehicle on a street or highway solely to transport or test automated technology if the motor vehicle or automated motor vehicle displays, as prescribed under section 225, a special plate approved by the secretary of state.

(4) A dealer owning a vehicle otherwise required to be registered under this act may operate or move the vehicle on a street or highway without registering the vehicle if the vehicle displays, as prescribed under section 225, 1 special plate issued to the owner by the secretary of state. As used in this subsection, "dealer" includes an employee, servant, or agent of the dealer.

(5) A vehicle that has been donated or loaned by a licensed new motor vehicle dealer for use in a golf tournament, charity event, or public civic event may be operated during preparation for and during the event with a temporary civic event license plate.

(6) Subject to all of the following requirements, the secretary of state may issue a temporary civic license plate on application by a licensed new motor vehicle dealer that donates or loans a vehicle under subsection (5) in a form and manner prescribed by the department before the event:

(a) The licensed new motor vehicle dealer must provide in the dealer's application for a temporary civic license plate the name of the event for which the motor vehicle will be used, the date and duration of the event, the number of vehicles to be loaned or donated, the anticipated vehicle identification number or numbers, and any other information required by the department. The application must be accompanied by a $10.00 fee for each temporary civic event license plate for which the licensed new motor vehicle dealer has applied.

(b) Any motor vehicle bearing a temporary civic event license plate authorized under this subsection is restricted to providing services for events for which approval by the department is granted. The approved services may include parades, transportation of visitors or dignitaries to and from event activities, use by event personnel or event volunteers, and any other activity for which a vehicle may be required in furtherance of the approved event.

(c) The use of a temporary civic event license plate is limited to the time set forth in the approved application. When the temporary civic event license plate expires, the licensed new motor vehicle dealer shall remove and destroy the temporary plate.

(7) A transporter may operate or move a vehicle otherwise required to be registered under this act on a street or highway solely to deliver the vehicle if the vehicle displays, as prescribed under section 225, a special plate issued to the transporter under this chapter.

(8) A licensee shall not use a special plate described in this section on service cars or wreckers operated as an adjunct of a licensee's business. A manufacturer, transporter, or dealer making or permitting any unauthorized use of a special plate under this chapter forfeits the right to use special plates and the secretary of state, after notice and a hearing, may suspend or cancel the right to use special plates and require that the special plates be surrendered to or repossessed by this state.

(9) A transporter shall furnish a sufficient surety bond or policy of insurance as protection for public liability and property damage as may be required by the secretary of state.

(10) The secretary of state shall determine the number of plates a manufacturer, dealer, or transporter reasonably needs in its business.

(11) If a vehicle that is required to be registered under this act is leased or sold, the vendee or lessee may operate the vehicle on a street or highway for not more than 72 hours after taking possession if the vehicle has a dealer plate attached as provided under this section. The application for registration must be made in the name of the vendee or lessee before the vehicle is used. The dealer and the vendee or lessee are jointly responsible for the return of the

dealer plate to the dealer within 72 hours. The vendee or lessee that fails to return or the vendor or lessor that fails to use due diligence to procure the dealer plate is guilty of a misdemeanor, and the license of the dealer may be revoked. While using a dealer's plate, a vendee or lessee shall have in the vendee's or lessee's possession proof that clearly indicates the date of sale or lease of the motor vehicle.

(12) A vehicle owned by a dealer and bearing the dealer's plate may be driven on a street or highway for demonstration purposes by a prospective buyer or lessee for a period of 72 hours.

(13) The secretary of state may issue a registration plate upon application and payment of the proper fee to an individual, partnership, corporation, or association that in the ordinary course of business has occasion to legally pick up or deliver a commercial motor vehicle being driven to a facility to undergo aftermarket modification, or to repair or service a vehicle, or to persons defined as watercraft dealers under part 801 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80101 to 324.80199, or to the owner of a marina to deliver a vessel or trailer to a purchaser, to transport a vessel between a body of water and a place of storage, to transport a vessel or trailer to and from a boat show or exposition, to repair, service, or store a vessel or trailer, or to return a vessel or trailer to the customer after repair, service, or storage. A registration plate issued under this subsection must be used to move the vehicle or trailer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1952, Act 67, Eff. Sept. 18, 1952 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1960, Act 107, Eff. Aug. 17, 1960 ;-- Am. 1992, Act 306, Eff. Mar. 31, 1993 ;-- Am. 2000, Act 369, Imd. Eff. Jan. 2, 2001 ;-- Am. 2002, Act 485, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2013, Act 231, Eff. Mar. 27, 2014 ;-- Am. 2024, Act 116, Imd. Eff. July 23, 2024

257.244a Motorcycle dealer license plates; size.

Sec. 244a.

Plates furnished to dealers in motorcycles shall be the same size as otherwise furnished for use on motorcycles.

History: Add. 1961, Act 34, Eff. Sept. 8, 1961

257.245 General distinguishing number and special plates for manufacturer, transporter, or dealer; application; proof; issuance; duration; fee.

Sec. 245.

(1) A manufacturer, transporter, or dealer may apply to the department on the appropriate form for a general distinguishing number and for 1 or more special plates. The applicant shall submit proof of the applicant's status as a bona fide manufacturer, transporter, or dealer as may reasonably be required by the department.

(2) The department, upon granting the application, shall issue a special plate with a general distinguishing number assigned to the applicant and displayed on the special plate. The distinguishing number for a special plate must be different from every other special plate.

(3) A manufacturer or transporter may make application on a form prescribed by the secretary of state for 1 or more special plates, which are valid for 3 years. Upon approval of the application, the fee for 1 or more special plates is 3 times the annual fee assessed under section 803.

(4) A dealer may make application on a form prescribed by the secretary of state for 1 or more special plates, which are valid for the term of the license held by the dealer. Upon approval of the application, the fee for 1 or more special plates is the term of years of the license held by the dealer times the fee assessed under section 803.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1988, Act 276, Eff. Jan. 1, 1989 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.246 Special plates; expiration.

Sec. 246.

Every special plate issued hereunder shall expire on the last day of February of each calendar year.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1960, Act 107, Eff. Aug. 17, 1960 ;-- Am. 1965, Act 277, Imd. Eff. July 21, 1965

257.247 Special plates; manufacturers and transporters, record of uses; inspection by peace officers.

Sec. 247.

Every manufacturer or transporter shall keep a written record of the vehicles upon which such special plates are used and the time during which each set of plates is used on a particular vehicle, which record shall be open to inspection by any peace officer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 55, Eff. July 1, 1958

257.247a, 257.247b Repealed. 1992, Act 306, Eff. Mar. 31, 1993.

Compiler's Notes: The repealed sections pertained to special plates for operation of vehicles in connection with public civic events and official commemorative civic events plates.

DEALERS AND WRECKERS MUST BE LICENSED

257.248 Dealer license; investigation; report; bond or bond renewal certificate; dealer plates; stipulation as to service of process; prohibited conduct; application; supplemental dealer license; eligible used dealer license; classification; requirements applicable to issuance, renewal, and expiration; conduct not requiring separate or supplemental license.

Sec. 248.

(1) The secretary of state shall not grant a dealer license under this section until the secretary conducts an investigation of the applicant's qualifications under this act, except that this subsection does not apply to a license renewal. The secretary of state shall conduct the investigation within 15 days after receiving the application and prepare a report on the investigation.

(2) An applicant for a new vehicle dealer or a used or secondhand vehicle dealer or broker license shall include a properly executed bond or a bond renewal certificate, approved by the secretary of state, with the license application. If a renewal certificate is used, the bond is considered renewed for each succeeding year in the same amount and with the same effect as an original bond. The bond must be in the amount of $25,000.00. The bond must indemnify or reimburse a purchaser, seller, lessee, financing agency, or governmental agency for monetary loss caused through fraud, cheating, or misrepresentation in the conduct of the vehicle business whether the fraud, cheating, or misrepresentation was made by the dealer or by an employee, agent, or salesperson of the dealer. The surety shall make indemnification or reimbursement for a monetary loss only after a judgment based on fraud, cheating, or misrepresentation is entered in a court of record against the licensee or a final order that the licensee has engaged in fraud, cheating, or misrepresentation is issued by the secretary of state after an administrative hearing. The bond must also indemnify or reimburse the state for any sales tax deficiency as provided in the general sales tax act, 1933 PA 167, MCL 205.51 to 205.78, or use tax deficiency as provided in the use tax act, 1937 PA 94, MCL 205.91 to 205.111, for the year in which the bond is in force. The surety shall make indemnification or reimbursement only after a final judgment is entered in a court of record against the licensee or a final order is issued by the secretary of state after an administrative hearing. A dealer or applicant that provides proof that is satisfactory to the secretary of state that a bond similar to the bond required by this subsection is executed and in force is exempt from the bond requirements of this subsection. The aggregate liability of the surety must not exceed the sum of the bond. The surety on the bond may cancel the bond by giving notice in writing to the secretary of state of the cancellation at least 30 days before the effective date of the cancellation and is not liable for a breach of condition occurring after the effective date of the cancellation.

(3) An applicant for a new vehicle dealer or a used or secondhand vehicle dealer license shall apply for not less than 2 dealer plates under section 245 and shall include with the application the proper fee for those plates under section 803.

(4) As a condition precedent to the granting of a license, a dealer must file with the secretary of state an irrevocable written stipulation, authenticated by the applicant, stipulating and agreeing that legal process affecting the dealer, served on the secretary of state or a deputy of the secretary of state, has the same effect as if personally served on the dealer. This appointment remains in force as long as the dealer has any outstanding liability within this state.

(5) A person shall not carry on or conduct the business of buying, selling, brokering, leasing, negotiating a lease, or dealing in 5 or more vehicles of a type required to be titled under this act in a 12-month period unless the person obtains a dealer license from the secretary of state authorizing the carrying on or conducting of that business. A person shall not carry on or conduct the business of buying, selling, brokering, leasing, negotiating a lease, or dealing in 5 or more distressed, late model vehicles or salvageable parts to 5 or more of those vehicles in a 12-month period unless the person obtains a used or secondhand vehicle parts dealer, an automotive recycler, or a salvage pool license from the secretary of state or is an insurance company admitted to conduct business in this state. A person shall not carry on or conduct the business of buying 5 or more vehicles in a 12-month period to process into scrap metal or store or display 5 or more vehicles in a 12-month period as an agent or escrow agent of an insurance company unless the person obtains a dealer license from the secretary of state. A vehicle scrap metal processor that does not purchase vehicles or salvageable parts from unlicensed persons is not required to obtain a dealer license. A person from another state shall

not purchase, sell, or otherwise deal in distressed, late model vehicles or salvageable parts unless the person obtains a foreign salvage vehicle dealer license from the secretary of state under section 248b. A person, including a dealer, shall not purchase or acquire a distressed, late model vehicle or a salvageable part through a salvage pool, auction, or broker without a license as a salvage vehicle agent. The secretary of state shall investigate and seek prosecution, if necessary, of persons allegedly conducting a business without a license.

(6) The application for a dealer license must be in the form prescribed by the secretary of state and signed by the applicant. In addition to any other information required by the secretary of state, the application must include all of the following:

(a) The name of the applicant.

(b) The location of the applicant's established place of business in this state, together with written verification from the appropriate governing or zoning authority that the established place of business meets all applicable municipal and zoning requirements.

(c) The name under which the dealer will conduct business.

(d) If the business is a corporation, the state of incorporation.

(e) If the business is a sole proprietorship or partnership, the name, address, and date of birth of each owner or partner; if the business is a corporation, the name, address, and date of birth of each of the principal officers.

(f) The county in which the applicant will conduct business and the address of each place of business in that county.

(g) If the dealer's business is the sale of new vehicles, the make or makes of those vehicles. Each new vehicle dealer shall send with the application for license a certification that the dealer holds a bona fide contract to act as factory representative, factory distributor, or distributor representative to sell at retail ..... (the make of vehicle to be sold) and that the contract meets the requirements for a dealer agreement under the motor vehicle franchise act, 1981 PA 118, MCL 445.1561 to 445.1583.

(h) A statement of the previous history, record, and associations of the applicant and of each owner, partner, officer, or director of the applicant. The statement must be sufficient to establish to the satisfaction of the secretary of state the business reputation and character of the applicant.

(i) A statement showing whether the applicant has previously applied for a license, the result of the application, and whether the applicant has ever been the holder of a dealer license that was revoked or suspended.

(j) If the applicant is a corporation or partnership, a statement showing whether a partner, employee, officer, or director has been refused a license or has been the holder of a license that was revoked or suspended.

(k) If the application is for a used or secondhand vehicle parts dealer or an automotive recycler, all of the following:

(i) Evidence that the applicant maintains or will maintain an established place of business.

(ii) Evidence that the applicant maintains or will maintain a police book and vehicle parts purchase and sales and lease records as required under this act.

(iii) Evidence of worker's compensation insurance coverage for employees classified under the North American Industry Classification System number 42114, entitled "motor vehicle parts (used) merchant wholesalers" or under the National Council on Compensation Insurance classification code number 3821, entitled "automobile dismantling", if applicable.

(l) A certification that neither the applicant nor another person named on the application is acting as the alter ego of any other person or persons in seeking the license. For the purpose of

this subdivision, "alter ego" means a person that acts for and on behalf of, or in the place of, another person for purposes of obtaining a vehicle dealer license.

(m) A certification that the applicant if the applicant is an individual or sole proprietorship, the partners of the applicant if the applicant is a partnership, the principal officers of the applicant if the applicant is a corporation, or any other individual who is responsible for the daily operations of the dealership, as applicable, has reviewed and understands the requirements of this act, the rules promulgated under this act, the dealer manual published by the secretary of state, and any other applicable material provided by the department.

(n) For an application submitted by or on behalf of an eligible used vehicle dealer for an original license, a certification that within the 6-month period preceding the date of the application, the applicant, the partners of the applicant, or the principal officers of the applicant, as applicable, completed the dealer training program described in section 248l(2). This subdivision does not apply to an application to renew the license of an eligible used vehicle dealer and does not apply to any original license that was granted to an eligible used vehicle dealer before, and that is valid on, March 20, 2019. As used in this subdivision and subdivision (o), "eligible used vehicle dealer" means that term as defined in section 248l.

(o) For an application submitted by or on behalf of an eligible used vehicle dealer for an original or renewal license, a certification that each retail sales location of that dealer has an employee that has completed the dealer training program required under section 248l(3) or (5), as applicable.

(7) A person shall apply separately for a dealer license for each county in which business is to be conducted. Before moving 1 or more places of business or opening an additional place of business, a dealer shall apply to the secretary of state for and obtain a supplemental dealer license. The secretary of state shall not charge a fee for a supplemental dealer license and shall issue a supplemental dealer license only for a location, including a tent, temporary stand, or any temporary quarters, that does not meet the definition of an established place of business, within the county in which the dealer's established place of business is located. A dealer license entitles the dealer to conduct the business of buying, selling, leasing, and dealing in vehicles or salvageable parts in the county covered by the license. The dealer license also entitles the dealer to conduct at any other licensed dealer's established place of business in this state only the business of buying, selling, leasing, or dealing in vehicles at wholesale.

(8) The secretary of state shall classify and differentiate vehicle dealers according to the type of activity they perform. A dealer shall not engage in activities of a particular classification as provided in this act unless the dealer is licensed in that classification. An applicant may apply for a dealer license in 1 or more of the following classifications:

(a) New vehicle dealer.

(b) Used or secondhand vehicle dealer. A used or secondhand vehicle dealer may be eligible for a mobility dealer endorsement under section 248k.

(c) Used or secondhand vehicle parts dealer.

(d) Vehicle scrap metal processor.

(e) Vehicle salvage pool operator.

(f) Distressed vehicle transporter.

(g) Broker.

(h) Foreign salvage vehicle dealer.

(i) Automotive recycler.

(j) Wholesaler.

(9) All of the following apply to the issuance, renewal, and expiration of a dealer license under this section:

(a) A dealer license expires on December 31 of the last year that the license is valid.

(b) A dealer shall renew its dealer license annually. The secretary of state may renew a dealer license for a period of not more than 4 years if the secretary receives a renewal application and payment of the fee required under section 807.

(c) To renew a dealer license, the dealer shall file an application for renewal with the secretary of state at least 30 days before the expiration of its current license.

(d) If a dealer has not renewed its dealer license on or before the expiration date of its current license, the secretary of state within 10 business days after that expiration date must notify the dealer that the secretary of state has not received its renewal application. The notice must include the amount of the late renewal fee.

(e) A dealer may continue to operate its dealer business after the expiration of its dealer license, pending approval of the renewal application, if the renewal application is delivered in person or mailed to the secretary of state on or before the expiration date of the license. If requested by the department, a dealer that mails an application under this subdivision must provide proof of mailing of the renewal application that is satisfactory to the department.

(f) If an application to renew a dealer license is filed with the secretary of state after the expiration of that license, the dealer may operate its dealer business beginning on the date on which the application is delivered or mailed to the secretary of state, pending approval of the renewal application. If requested by the department, a dealer that mails an application under this subdivision must provide proof of mailing of the renewal application that is satisfactory to the department. A dealer shall pay a renewal fee equal to 150% of the normal renewal fee for a renewal described in this subdivision.

(g) If a dealer files an application to renew a dealer license more than 30 days after the expiration of that license, the dealer is considered a new applicant for a dealer license under this section.

(h) The secretary of state shall deposit the late renewal fees collected under subdivisions (d) and (f) in the transportation administration collection fund created in section 810b.

(i) The secretary of state shall not renew a dealer's license if the applicant has not bought or sold more than 5 vehicles during the 12 months preceding the dealer's renewal application.

(10) A dealer may conduct the business of buying, selling, or dealing in motor homes, trailer coaches, trailers, or pickup campers at a recreational vehicle show conducted at a location in this state without obtaining a separate or supplemental license under subsection (7) if all of the following apply:

(a) The dealer is licensed as a new vehicle dealer or used or secondhand vehicle dealer.

(b) The duration of the recreational vehicle show is not more than 14 days.

(c) Not less than 14 days before the beginning date of the recreational vehicle show, the show producer notifies the secretary of state, in a manner and form prescribed by the secretary of state, that the recreational vehicle show is scheduled, the location, dates, and times of the recreational vehicle show, and the name, address, and dealer license number of each dealer participating in the recreational vehicle show.

(11) Notwithstanding section 235, a dealer may advertise or display to the public a vehicle that the dealer has acquired or that is available to the dealer directly from the manufacturer or distributor or the manufacturer's or distributor's subsidiary or affiliate within a reasonable period of time, even though the dealer is still waiting on possession of the vehicle's title. Such a vehicle, if displayed on the dealer's lot, must be placed in a dedicated area at the dealership and arranged in a manner that clearly separates the vehicle from those available for immediate sale to the public with signage placed on the vehicle indicating the vehicle is not available for final sale until the title is in the possession of the dealer.

(12) A dealer may park, store, hold, and repair vehicles owned under 1 dealer license on the lot or property held by the same dealer under a separate dealer license that is located within a 15-mile radius.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1957, Act 281, Eff. Sept. 27, 1957 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1964, Act 166, Imd. Eff. Jan. 1, 1965 ;-- Am. 1966, Act 216, Eff. Mar. 10, 1967 ;-- Am. 1970, Act 123, Imd. Eff. July 23, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. July 1, 1994 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999 ;-- Am. 1999, Act 172, Imd. Eff. Nov. 16, 1999 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005 ;-- Am. 2016, Act 425, Eff. Apr. 4, 2017 ;-- Am. 2018, Act 420, Eff. Mar. 20, 2019 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.248a Vehicle dealer; prohibited advertising or representations; designated business hours.

Sec. 248a.

(1) A motor vehicle dealer shall not advertise or represent a motor vehicle to be a demonstrator, executive or manufacturer's vehicle, leased vehicle, new motor vehicle, or used or secondhand vehicle unless the vehicle so described is as defined in this act.

(2) A motor vehicle dealer shall maintain and adhere to designated business hours that are filed with the secretary of state.

History: Add. 1975, Act 314, Imd. Eff. Dec. 22, 1975 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013

257.248b Foreign salvage vehicle dealer license; form and contents of application; division of dealer licensees into quarter segments; expiration and renewal of license; investigations; stipulation as to service of process.

Sec. 248b.

(1) A person from a foreign state shall not purchase, sell, or otherwise deal in distressed late model motor vehicles or salvageable parts unless the person first obtains a foreign salvage vehicle dealer license from the secretary of state.

(2) The application for a foreign salvage vehicle dealer license shall be in the form prescribed by the secretary of state and shall be signed by the applicant. The application shall include the following:

(a) Name of applicant.

(b) Location of applicant's established place of business in a foreign state.

(c) The name under which business is to be conducted.

(d) If the business is a corporation, the state of incorporation and a copy of the articles of incorporation filed in that state.

(e) Name, address, date of birth, and social security number of each owner or partner and, if a corporation, the name of the principal officers.

(f) A statement of the previous history, record, and associations of the applicant and of each owner, partner, officer, and director, which statement shall be sufficient to establish to the satisfaction of the secretary of state the business reputation and character of the applicant.

(g) A statement showing whether the applicant has previously applied for a license in any other state, the result of the application, and whether the applicant has ever been the holder of a license that was revoked or suspended.

(h) If the applicant is a corporation or partnership, a statement showing whether a partner, employee, officer, or director has been refused a license or has been the holder of a license that was revoked or suspended.

(i) Evidence that the applicant holds the appropriate license to buy, sell, or otherwise deal in distressed, late model vehicles or salvageable parts in a foreign state and actually engages in the business of buying, selling, or otherwise dealing in distressed, late model motor vehicles or salvageable parts in the foreign state.

(j) Evidence that the applicant maintains or will maintain an established place of business.

(k) Evidence that the applicant maintains or will maintain a police book and vehicle parts purchase and sales records as required under this act.

(l) Evidence of worker's compensation insurance coverage for employees classified under the standard industrial classification number 4015, entitled "motor vehicle parts — used" or under the national council on compensation insurance code number 3821, entitled "automobile dismantling", if applicable.

(m) Federal employer tax identification number.

(n) Certification that neither the applicant nor another person named on the application is acting as the alter ego or in the place of or on behalf of any other person or persons in seeking the license. For the purpose of this subdivision, "alter ego" means a person who acts for or on behalf of, or in the place of, another person for purposes of obtaining a vehicle dealer license.

(3) The secretary of state may divide the calendar year into quarters and the total number of dealer licensees into approximately convenient quarter segments. Each dealer license granted under subsection (1) shall expire on the last day of the month in the quarter for the business year in which the license was issued, and may be renewed upon application and payment of the fee required by section 807.

(4) A license shall not be granted until an investigation is made of the applicant's qualifications under this act and a criminal history investigation of the applicant is conducted through a law enforcement informational network. This subsection does not apply to license renewals. The secretary of state shall make the investigations within 15 days after receipt of the application and make a report on the investigations.

(5) A dealer required to be licensed under this section, as a condition precedent to the granting of a license, shall file with the secretary of state an irrevocable written stipulation, authenticated by the applicant, stipulating and agreeing that legal process affecting the dealer, served on the secretary of state or a deputy of the secretary of state, has the same effect as if personally served on the dealer. This appointment remains in force as long as any liability of the dealer remains outstanding within this state.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.248c Sale, transfer, or release of distressed late model vehicle by vehicle salvage pool, auction, or broker; release of vehicle; release statement; notice to owner and lienholder; sale of vehicle for parts.

Sec. 248c.

(1) A vehicle salvage pool, auction, or broker shall not sell, transfer, or release a distressed, late model vehicle to anyone other than 1 or more of the following:

(a) The vehicle's former owner or lienholder of record as kept by the secretary of state, as applicable.

(b) A licensed salvage agent of an automotive recycler.

(c) A licensed salvage agent of a foreign salvage vehicle dealer.

(2) An insurance company may direct a salvage pool that obtains possession of a vehicle to release the vehicle to the owner or lienholder of record as kept by the secretary of state, as applicable. The insurance company shall provide the salvage pool with a release statement under subsection (3) authorizing the salvage pool to release the vehicle to the vehicle's owner or lienholder of record as kept by the secretary of state, as applicable.

(3) A release statement authorizing a salvage pool to release a vehicle to a vehicle's owner or lienholder of record as kept by the secretary of state shall contain the following information:

(a) The claim number relating to the vehicle.

(b) The name and address of the owner of the vehicle.

(c) The vehicle identification number and description of the vehicle.

(d) The signature of an authorized representative of the insurance company.

(4) Upon receiving a release statement concerning a vehicle from an insurance company under subsection (2), a salvage pool shall send a notice to the owner and any lienholder of record as kept by the secretary of state of the vehicle that the vehicle is available for pickup by the owner or lienholder of record as kept by the secretary of state. The notice shall be accompanied by an invoice for any outstanding charges owed to the salvage pool. The notice shall inform the owner and any lienholder of record as kept by the secretary of state that the owner and lienholder of record as kept by the secretary of state have 30 days from the postmarked date of the notice and upon payment of applicable charges to pick up the vehicle from the salvage pool, and shall warn the owner and lienholder of record that failure to redeem the vehicle within 30 days after the postmarked date of the notice will result in the sale of the vehicle and the termination of all rights of the owner and the lienholder of record to the vehicle and the proceeds of a sale under subsection (5). A notice under this subsection shall be sent by the salvage pool to the applicable address on record with the secretary of state by certified mail or by another commercially available delivery service providing proof of delivery.

(5) If the owner or lienholder of record as kept by the secretary of state does not pick up the vehicle within the 30-day period described in subsection (4), the salvage pool may sell the vehicle for parts only to a licensed salvage agent of an automotive recycler or to a licensed salvage agent of a foreign salvage vehicle dealer if the vehicle is a distressed late-model vehicle, or to a licensed salvage agent of an automotive recycler, to a licensed salvage agent of a foreign salvage vehicle dealer, or to a vehicle scrap metal processor if the vehicle is not a distressed late-model vehicle. The salvage pool shall provide the buyer and the secretary of state with a copy of the release statement under subsection (2), proof of notice under subsection (4) to the owner and lienholder of record as kept by the secretary of state, and a bill of sale. The secretary of state shall use the documentation provided to issue the appropriate salvage or scrap certificate of title.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 2015, Act 48, Eff. Sept. 7, 2015 ;-- Am. 2016, Act 448, Eff. Apr. 5, 2017

257.248d Wholesaler; requirements.

Sec. 248d.

All of the following requirements apply to a wholesaler:

(a) A wholesaler shall not advertise vehicles for sale on the internet or any classified listing unless the advertisement clearly discloses the wholesaler's license classification and clearly states that a purchaser must be a licensed vehicle dealer.

(b) A wholesaler shall not buy or sell fewer than 24 vehicles in this state each year to retain possession of a wholesaler license.

(c) A wholesaler shall maintain an established place of business in this state in accordance with the conditions listed in section 14(3).

(d) A wholesaler shall maintain and adhere to designated business hours that are filed with the secretary of state.

(e) A wholesaler shall maintain regular hours of operation at an established place of business that include at least 15 regular business hours per week between the hours of 8 a.m. and 5 p.m., Monday through Friday.

History: Add. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023
Compiler's Notes: Former MCL 257.248d, which pertained to a study pertaining to reducing auto theft and comprehensive premiums, was repealed by Act 304 of 1992, Imd. Eff. Dec. 21, 1992.

257.248e Salvage vehicle agent license.

Sec. 248e.

(1) Beginning January 1, 1994, a person, including a dealer, shall not purchase, acquire, sell, or otherwise deal in distressed, late model vehicles or salvageable parts through a salvage pool without a salvage vehicle agent license from the secretary of state. Only a licensed automotive recycler, licensed used or secondhand vehicle parts dealer, or a licensed foreign salvage vehicle dealer may apply to the secretary of state for a salvage vehicle agent license. A dealer shall not have more than 2 individuals, including himself or herself, licensed as a salvage vehicle agent.

(2) The application for a salvage vehicle agent license shall be in the form prescribed by the secretary of state and shall be signed by both the agent and the dealer who is appointing the individual as a salvage vehicle agent. In addition to other information as may be required by the secretary of state, the application shall include all of the following:

(a) Business name, address, and dealer license number of the dealer-applicant.

(b) Name, address, social security number, and date of birth of the agent-applicant.

(c) A statement of the previous history, record, and associations of the agent, which statement shall be sufficient to establish to the satisfaction of the secretary of state the business reputation and character of the agent.

(d) A statement showing whether the agent has previously applied for a dealer license or an agent's license, the result of the application, and whether the agent has ever been the holder of a dealer license or agent's license that was revoked or suspended in this state or any other state.

(e) A certification that the agent is not acting as the alter ego or in the place or on the behalf of any other person or persons in seeking the license. For the purpose of this subdivision,

"alter ego" means a person who acts for and on behalf of, or in the place of, another person for purposes of obtaining a salvage vehicle agent license.

(3) A dealer shall make a separate application for each agent license and forward the application to the secretary of state along with the application of the dealer for a dealer license. A fee of $50.00 shall accompany each application for an agent license. The license of an agent issues, renews, and expires with the issuance, renewal, and expiration of the license of a dealer. If necessary, a dealer may apply for the license for an agent at any time during the time period that the dealer license is valid.

(4) A license for an agent shall not be granted until an investigation is made of the agent's qualifications under this act, except that this subsection does not apply to license renewals. The secretary of state shall make the investigation within 15 days after receiving the application and make a report on the investigation.

(5) The secretary of state shall issue a license to an agent bearing a full-face photograph of the agent and the following information:

(a) Agent's name and address.

(b) Physical description.

(c) The agent's signature.

(d) The agent's license number.

(e) Name, address, and dealer license number of the dealer for whom the agent may conduct business.

(6) The secretary of state shall maintain a copy or a negative of the photograph for purposes of renewing or issuing duplicate salvage vehicle agent licenses.

(7) A dealer shall immediately notify the secretary of state in writing if there is any factual or material change in the information stated in an agent's license or application for the license.

(8) A dealer may cancel the license of an agent at any time. If a dealer cancels the license of an agent, the dealer shall notify, in writing, the secretary of state within 5 days of the cancellation and forward the canceled license to the secretary of state along with this notice. The dealer shall advise each salvage pool or salvage auction where the dealer does business of the cancellation. An agent's license is automatically canceled, by operation of law, at the end of the employment of the agent by the dealer.

(9) Within 5 days of the cancellation, expiration, suspension, or revocation of the license of an agent, the agent shall surrender the license to the dealer or secretary of state.

(10) If an agent's license becomes lost, mutilated, or illegible, the dealer shall promptly apply to the secretary of state for the issuance of a duplicate license. Application shall be made on a form as prescribed by the secretary of state and be accompanied by a fee of $50.00 and the mutilated or illegible license.

(11) A dealer shall indemnify the secretary of state and any member of the public who suffers or sustains any loss by reason of any violation of this act by an agent that occurs within the actual or apparent scope of the agent's authority during the period that the agent's license is valid.

(12) An agent required to be licensed under this section, as a condition precedent to the granting of a license, shall file with the secretary of state an irrevocable written stipulation, authenticated by the agent applicant, stipulating and agreeing that legal process affecting the agent, served on the secretary of state or a deputy of the secretary of state, has the same effect as if personally served on the agent. This appointment remains in force as long as any liability of the agent remains outstanding within this state.

History: Add. 1993, Act 300, Eff. Jan. 1, 1994

257.248f Vehicle dealer or salvage vehicle agent license; criminal history check; fingerprints; disclosure of information; violation of subsection (7) as misdemeanor; "criminal history record information" defined.

Sec. 248f.

(1) The secretary of state shall not license a person as a vehicle dealer or salvage vehicle agent before requesting a criminal history check of the person and receiving a criminal history report of the person from both the department of state police and federal bureau of investigation.

(2) Each criminal history check required under this section shall be requested, and a criminal history report shall be obtained, from both the department of state police and the federal bureau of investigation.

(3) Each person required to be named on an application shall submit his or her fingerprints for a criminal history check to the department of state police in a format as prescribed by the department of state police. The fees required by the department of state police or the federal bureau of investigation, as applicable, to conduct the criminal history check shall accompany a request for a criminal history check.

(4) The department of state police shall conduct a criminal history check not more than 45 days after receiving a proper request and the required fee for a criminal history check under this section. After conducting the criminal history check and within the same 45-day period, the department of state police shall provide the secretary of state with a report of the criminal history check. The report shall contain public criminal history record information concerning the person who is the subject of the request that is maintained by the department of state police.

(5) If a criminal arrest fingerprint card is subsequently submitted to the department of state police and matches against a fingerprint that was submitted under this section and stored in its automated fingerprint identification system (AFIS) database, the department of state police shall notify the department.

(6) Except as otherwise provided in this act, the secretary of state shall not approve an original vehicle dealer or salvage vehicle agent license before receiving and reviewing the applicable criminal history reports from the department of state police and the federal bureau of investigation.

(7) The secretary of state shall use criminal history record information received under this section to evaluate an applicant's qualifications to receive a vehicle dealer or salvage vehicle agent license under this act. The secretary of state may only discuss a criminal history report or its contents with the following people:

(a) Staff of the secretary of state who are involved in determining whether an applicant's vehicle dealer license or salvage vehicle agent license should be denied, suspended, or revoked.

(b) Staff of the department of state police.

(c) A person who was involved in the prosecution or defense of a criminal matter noted in a criminal history report.

(d) The applicant or his or her attorney.

(8) A person who violates subsection (7) is guilty of a misdemeanor punishable by a fine of not more than $10,000.00.

(9) As used in this section, "criminal history record information" means that term as defined in section 1a of 1925 PA 289, MCL 28.241a.

(10) Except for subsection (5), this section does not apply to a person whose criminal history has previously been investigated by the secretary of state and who is applying for the renewal of a vehicle dealer license or salvage vehicle agent license.

History: Add. 1993, Act 300, Eff. July 1, 1994 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006

257.248g Salvage vehicle agent; duties.

Sec. 248g.

A salvage vehicle agent shall comply with this act and shall do all of the following:

(a) Purchase or acquire salvage vehicles only for the dealer indicated upon his or her agent's license. A salvage vehicle agent shall not be an agent for more than 1 licensed dealer at a given time.

(b) Prominently display his or her agent's license on his or her person at all times when he or she is present at a place where salvage vehicles are purchased, sold, or offered for sale.

(c) Upon demand, immediately display his or her agent's license to a peace officer or an authorized representative of the secretary of state.

(d) Immediately contact the dealer if there is any factual or material change in the information stated in his or her agent's license or license application.

(e) Upon the cancellation, cessation, or transfer of his or her employment, immediately surrender his or her license to the dealer who shall mail the license to the secretary of state for cancellation.

History: Add. 1993, Act 300, Eff. July 1, 1994

257.248h Persons engaged in prohibited conduct; penalties; refusal to issue or renew license; revocation or suspension of license; denial or revocation of license without hearing.

Sec. 248h.

(1) A person that engages in conduct that is prohibited under subsection (2) is subject to 1 or more of the following penalties:

(a) Placement of a limitation on the person's license.

(b) Suspension or revocation of a license.

(c) Denial of an original or renewal application.

(d) A civil fine paid to the department in an amount that does not exceed $25,000.00.

(e) A letter of censure.

(2) The secretary of state may deny the application of a dealer after an appropriate hearing for the licensing of an individual as a salvage vehicle agent and refuse to issue or renew the license of an agent, or may suspend or revoke an agent's license that is already issued, if the secretary of state finds that the dealer, applicant agent, or licensed agent has done 1 or more of the following:

(a) Made a false statement of a material fact in the agent's application.

(b) Violated this chapter or a rule promulgated under this chapter, or assisted others in the violation of this chapter or a rule promulgated under this chapter.

(c) Purchased or acquired a salvage or scrap vehicle or salvageable part for a dealer for which the agent is not licensed, or functioned as an agent for himself or herself alone and without respect to any dealer.

(d) Committed a fraudulent act in connection with purchasing or acquiring or otherwise dealing in vehicles of a type required to be registered under this act or in salvage or scrap vehicles or in vehicle parts.

(e) Engaged in a method, act, or practice that is unfair or deceptive, including the making of an untrue statement of a material fact.

(f) Violated a condition of probation under section 250a.

(g) Failed to comply with the terms of a final cease and desist order under section 250b.

(h) Failed to pay over funds or to surrender or return property received in the course of employment to a dealer or to another person that is entitled to the funds or property.

(i) Acted as a dealer's agent by purchasing, acquiring, selling, or disposing of a vehicle while employed by a licensed dealer without reporting the purchase, acquisition, sale, or disposing of the vehicle to the dealer.

(j) Served in a managerial capacity for a dealer during the time another agent or employee of that dealer, acting under the direction and control of the dealer or licensed agent, committed a violation of this chapter or of a rule promulgated under this chapter or of a similar law in another state or jurisdiction.

(k) Acted for more than 1 party in a transaction without the knowledge of the other parties.

(l) Permitted an unlawful use of the agent's license.

(m) Accepted a commission, bonus, or other valuable consideration for the sale of a vehicle from a person other than the dealer under which the agent is licensed.

(n) Possessed a vehicle or a vehicle part that has been confiscated under section 415 of the Michigan penal code, 1931 PA 328, MCL 750.413, or of a similar law in another state or jurisdiction.

(3) If the secretary of state receives an appropriate abstract of conviction, the secretary of state shall, without providing an opportunity for a hearing, deny the application of a person for a license as a salvage vehicle agent or immediately revoke the license of a person as a salvage vehicle agent for not less than 5 years after the date of the person's last conviction if the applicant or licensee, or a stockholder, officer, director, or partner of the applicant or licensee, is convicted of a violation or attempted violation of section 254 of this act or of section 413, 414, 415, 535, or 535a of the Michigan penal code, 1931 PA 328, MCL 750.413, 750.414, 750.415, 750.535, and 750.535a, or is convicted in federal court or in another state of a violation or attempted violation of a law substantially corresponding to section 254 of this act or of those sections of the Michigan penal code.

(4) If the secretary of state receives an appropriate abstract of conviction from the court, the secretary of state, without providing an opportunity for a hearing, shall deny the application of a person for a license as a salvage vehicle agent or immediately revoke the license of a person as a salvage vehicle agent and shall never issue the person a salvage vehicle agent license if the applicant or licensee has any combination of 2 or more convictions of a violation or attempted violation of section 254 of this act or of section 413, 414, 415, 535, or 535a of the Michigan penal code, 1931 PA 328, MCL 750.413, 750.414, 750.415, 750.535, and 750.535a, or is convicted in federal court or in another state of a violation or attempted violation of a law substantially corresponding to section 254 of this act or of those sections of the Michigan penal code.

History: Add. 1993, Act 300, Eff. July 1, 1994 ;-- Am. 2016, Act 425, Eff. Apr. 4, 2017

257.248i Attending pool or auction selling salvage or scrap titled vehicles.

Sec. 248i.

Except for department of state personnel, insurance company representatives, governmental officials, or law enforcement personnel, a person shall not attend a pool or auction selling salvage or scrap titled vehicles unless the person is licensed under this act as a salvage vehicle agent.

History: Add. 1993, Act 300, Eff. July 1, 1994

257.248j Acting as dealer without license; warning; administrative fine; notice of assessment; actions; informal conference; administrative hearing; payment of administrative fine; reduction.

Sec. 248j.

(1) In addition to any other remedies provided by law, if the secretary of state determines that a person has acted as a dealer without a dealer license, he or she may issue the person a verbal or written warning or assess an administrative fine of not more than $5,000.00 for a first violation, and not more than $7,500.00 for each subsequent violation occurring within 7 years of a prior violation.

(2) If the secretary of state assesses an administrative fine under subsection (1), the secretary of state shall provide notice of the assessment in writing pursuant to section 212. At a minimum, the notice of assessment shall contain all of the following:

(a) A unique identification number.

(b) A description of the alleged violation that is the basis for the assessment, including the date the alleged violation occurred and a reference to the specific section or rule alleged to have been violated.

(c) The administrative fine established for the violation.

(d) A statement indicating that if the fine is not paid, the secretary of state may refer the fine to the department of treasury for collection.

(e) A statement indicating that if the alleged violation is contested, the person has a right to request an informal conference before an administrative hearing, accompanied by simple instructions informing the person how to request or waive the informal conference.

(3) Not later than 20 days after receiving the written notice of assessment, the alleged violator shall do 1 of the following:

(a) Pay the administrative fine to the secretary of state. A payment waives the person's right to an informal conference and an administrative hearing.

(b) Request the secretary of state to conduct an informal conference.

(c) Waive the right to an informal conference and request the secretary of state to conduct an administrative hearing.

(d) If the person is not a licensed dealer, pay the administrative fine to the secretary of state and submit a properly completed dealer license application to the secretary of state.

(4) A person's request for an informal conference or an administrative hearing shall comply with all of the following:

(a) Be in writing.

(b) Be postmarked or received by the department within 20 days after the date the person received the written notice of assessment.

(c) State the name, address, and telephone number of the person requesting the informal conference or administrative hearing.

(d) State the written notice of assessment's unique identification number.

(e) State the reason for the request.

(f) If the request is for an administrative hearing without an informal conference, state the person is waiving his or her right to an informal conference.

(5) If the secretary of state receives a request for an informal conference or an administrative hearing that meets all of the conditions prescribed in subsection (4), the secretary of state shall schedule an informal conference or an administrative hearing, as applicable. If the request fails to meet all of the conditions prescribed in subsection (4), the secretary of state may in writing deny the request. A denial shall be served on the person by first-class mail and shall do both of the following:

(a) State the reason for the denial.

(b) Grant the person 14 days to submit a valid request to the secretary of state.

(6) The secretary of state shall conduct an informal conference under this section within 45 days after receiving a valid request for the conference. The secretary of state shall serve upon the alleged violator, by first-class mail not less than 5 days before the conference, a written notice that includes time, place, and date of the informal conference. The notice shall state that the alleged violator may be represented by an attorney at the informal conference.

(7) After the informal conference, the secretary of state shall evaluate the validity of the assessment of the administrative fine and affirm, modify, or dismiss the assessment. In making the evaluation, the secretary of state may consider 1 or more of the following:

(a) Whether there is reason to believe the alleged violation did in fact occur.

(b) The severity of the alleged violation and its impact on the public.

(c) The number of prior or related violations by the person.

(d) The likelihood of future compliance by the person.

(e) Any other considerations the secretary of state considers appropriate.

(8) Within 20 days after conducting the informal conference, the secretary of state shall serve upon the person by first-class mail a written statement describing whether the assessment of the administrative fine is affirmed, modified, or dismissed and the basis of the action. If the assessment is affirmed or modified, this statement shall also advise the person that he or she will receive a notice of hearing where the validity of the assessment may be contested or he or she may immediately pay the fine to the secretary of state and that payment of the fine will prevent scheduling of an administrative hearing.

(9) A notice of hearing under this section shall be served on the person by first-class mail not less than 5 days before the date scheduled for the administrative hearing and, at a minimum, advise the person of all of the following:

(a) The time, place, and date of hearing.

(b) That an impartial hearing officer will conduct the hearing and allow the person an opportunity to examine the secretary of state's evidence and present evidence in person or in writing.

(c) That the person has a right to be represented by an attorney at the administrative hearing.

(d) The common reasons why the secretary of state could dismiss an assessment of an administrative fine.

(e) That the hearing officer conducting the administrative hearing will be authorized to do all of the following:

(i) Affirm, modify, or dismiss the assessment of an administrative fine.

(ii) Correct any errors in the department's records that relate directly to the assessment.

(iii) Refer or not refer the fine to the department of treasury for collection.

(iv) Take or order any other action or resolution considered appropriate by the hearing officer.

(f) That if the department of treasury takes enforcement action against the person, he or she may seek a review in the court of claims.

(10) The secretary of state shall conduct an administrative hearing under this section pursuant to the contested case provisions of the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328. If an administrative fine assessed under this section is affirmed by the decision of the hearing officer, the hearing officer may assess the person costs of not more than $500.00, to reimburse the secretary of state for proving the validity of the alleged violation, in addition to any other penalties, sanctions, or costs imposed as provided by law.

(11) An administrative fine assessed under this section becomes final upon the first to occur of the following:

(a) The secretary of state does not receive a valid request for an informal conference or an administrative hearing within the time period described in subsection (4).

(b) Twenty days after a person waives his or her right to an administrative hearing.

(c) An administrative hearing decision is served upon the person.

(12) After a person pays the secretary of state the fine imposed, the secretary of state shall forward the money to the department of treasury for deposit in a separate fund within the general fund. Upon appropriation, this money shall be used first to defray the expense of the secretary of state in administering this chapter.

(13) If an administrative fine assessed under this section is not paid within 60 days after it becomes final, the secretary of state may refer the matter to the department of treasury for collection as a state debt through the offset of state tax refunds and may use the services of the department of treasury to levy the salary, wages, or other income or assets of the person as provided by law.

(14) Payment of an administrative fine assessed under this section does not constitute an admission of responsibility or guilt by the person. Payment of an administrative fine assessed under this section does not prevent the secretary of state from charging a violation described in the assessment of the administrative fine in a subsequent or concurrent contested case proceeding conducted by the secretary of state pursuant to the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

(15) If the person submits a properly completed application and appropriate fee for a dealer license within 20 days after an administrative fine under subsection (1) is assessed, and if the secretary of state issues the person a dealer license within 45 days of receiving the properly completed application and fee, the secretary of state shall reduce the amount of the administrative fine by 50%.

(16) The secretary of state shall serve a notice, denial, decision, or statement under this section in compliance with section 212.

(17) An informal conference under this section is not a compliance conference under section 92 of the administrative procedures act of 1969, 1969 PA 306, MCL 24.292.

History: Add. 2002, Act 652, Eff. Jan. 1, 2003

257.248k Mobility dealer endorsement.

Sec. 248k.

(1) The secretary of state may create a mobility dealer endorsement for the purposes of this act. All of the following apply if the secretary of state creates a mobility dealer endorsement under this section:

(a) Only a licensed used or secondhand vehicle dealer is eligible for a mobility dealer endorsement.

(b) The secretary of state shall prescribe the form and content of an application for a mobility dealer endorsement and the application shall require the signature of the applicant.

(c) A mobility dealer is not prohibited from also obtaining a broker license, if that broker license is issued for the sole purpose of brokering new vehicles that are modified by the addition of permanently affixed ambulatory assistance devices.

(2) Notwithstanding any other law of this state, a mobility dealer may do any of the following:

(a) Display, hold in inventory, demonstrate, solicit the sale of, or offer for sale a mobility vehicle, regardless of the chassis make of the mobility vehicle.

(b) If the transaction occurs through or by a franchised dealer of the motor vehicle's chassis line make, arrange for the sale and delivery of a new mobility motor vehicle to a purchaser at the mobility dealer's place of business.

(c) Sell and install mobility equipment and accessories and other goods and services to meet the particular needs of disabled drivers and passengers.

(d) Provide mobility vehicle maintenance and repair services, subject to the following:

(i) Except as provided in subparagraph (ii), a mobility dealer shall not perform repairs on mobility vehicles or other motor vehicles without a license as a repair facility under the motor vehicle service and repair act, 1974 PA 300, MCL 257.1301 to 257.1340.

(ii) A mobility dealer may perform repairs on parts that are unique to a mobility vehicle, do not alter the operating condition of a mobility vehicle, and were not part of the original manufactured motor vehicle without a license as a repair facility under the motor vehicle service and repair act, 1974 PA 300, MCL 257.1301 to 257.1340.

(3) A mobility dealer shall not do any of the following:

(a) Represent that it is engaged in the sale of new motor vehicles.

(b) Sell or transfer, or offer to sell or transfer, a new motor vehicle by assigning the vehicle's certificate of origin.

(c) Sell or offer to sell an adapted vehicle that does not have proof that it has been adapted or modified in compliance with 49 CFR part 568 or 49 CFR part 595.

(4) As used in this section:

(a) "Mobility dealer" means a used or secondhand vehicle dealer that holds an endorsement as a mobility dealer from the department under this section.

(b) "Mobility equipment" means mechanical or electronic devices, parts, or accessories that are specifically designed to facilitate the use of a motor vehicle by an aging or disabled individual, in compliance with 49 CFR part 571, and that are permanently attached to or incorporated in the vehicle.

(c) "Mobility vehicle" means a motor vehicle that is specially designed and equipped to transport an individual with a disability, in compliance with 49 CFR part 568 or 49 CFR part 595, and that meets all of the following:

(i) Is designed and built or modified to allow vehicle ingress and egress for an individual who is in a wheelchair or scooter.

(ii) Is equipped with 1 or more of the following:

(A) An electronic or mechanical wheelchair, scooter, or platform lift that enables an individual to enter or exit the vehicle while occupying a wheelchair or scooter.

(B) An electronic or mechanical wheelchair ramp.

(C) A system to secure a wheelchair or scooter that allows for safe transportation of an individual while he or she is occupying the wheelchair or scooter and that is installed as an integral part or permanent attachment to the vehicle's chassis.

History: Add. 2016, Act 425, Eff. Apr. 4, 2017

257.248l Dealer training programs; requirements; trained individual at each retail location; exceptions; training by qualified trade organizations; application process; compliance monitoring; renewal limitation; fees; dealer training program fund; rules; definitions.

Sec. 248l.

(1) The secretary of state shall establish each of the following dealer training programs for eligible used vehicle dealers:

(a) A prelicensure dealer training program that meets all of the following:

(i) Is available to any individual who is an eligible used vehicle dealer applying for an original dealer license or is a partner or officer of an eligible used vehicle dealer applying for an original dealer license.

(ii) Includes training related to this act and any other subject matter approved by the secretary of state, such as consumer protection and sales and use tax collection. The department may consult with other departments to evaluate and develop course content it considers appropriate.

(b) A training program for designated individuals that meets all of the following:

(i) Is offered at least 2 times each calendar quarter.

(ii) Is available to any designated individual.

(iii) Includes training in transferring vehicle titles, documentation of title transfers, record keeping, and any other subject matter considered appropriate by the secretary of state, such as consumer protection and sales and use tax collection. The department may consult with other departments to evaluate and develop course content it considers appropriate.

(c) A continuing education training program that meets all of the following:

(i) Is conducted at least 2 times in each calendar quarter.

(ii) Includes at least 2 hours of training.

(iii) Includes subject matter considered appropriate by the secretary of state, such as transferring vehicle titles, documentation of title transfers, record keeping, consumer protection, and sales and use tax collection. The department may consult with other departments it considers appropriate to evaluate and develop course content.

(2) In the 6-month period preceding the date of the application for an original eligible used vehicle dealer license, each individual who is the applicant, each partner of the applicant, or each officer of the applicant, as applicable, for the original eligible used vehicle dealer license shall complete the prelicensure dealer training program described in subsection (1)(a). This subsection does not apply to any of the following:

(a) An applicant, or application, for the renewal of an eligible used vehicle dealer license.

(b) The holder of an original eligible used vehicle dealer license that was granted before, and is valid on, March 20, 2019.

(c) The owner, partner, corporate officer, or director of a new vehicle dealer license.

(3) In the 90-day period following the issuance of an original dealer license to an eligible used vehicle dealer, the licensed dealer shall select a designated individual and ensure that he or she completes the training program described in subsection (1)(b). This subsection does not apply if the designated individual has completed the continuing education training program

described in subsection (1)(c). An eligible used vehicle dealer shall select a designated individual for each of its retail sales locations. An eligible used vehicle dealer shall not select the same individual as the designated individual for more than 3 retail sales locations.

(4) Subsection (3) does not apply to the holder of an original or renewal eligible used vehicle dealer license that was granted before, and is valid on, March 20, 2019 until that license is next renewed.

(5) In addition to the training program described in subsection (1)(b), an eligible used vehicle dealer shall ensure that a designated individual completes the continuing education training program described in subsection (1)(c) 1 time in each 24-month period after the date of issuance of its original license.

(6) The training requirements described in subsections (2), (3), and (5) may be satisfied by attending a training program that is conducted by the department or a qualified trade organization approved by the department under subsection (10).

(7) A qualified trade organization may apply to the department for approval to conduct the training programs described in subsection (1). A qualified trade organization shall not conduct a training program described in subsection (1) unless it obtains the approval described in subsection (10). No later than 30 days after the effective date of the amendatory act that added this subsection, the department shall develop and make available an application form.

(8) The department shall establish an application procedure for a qualified trade organization to obtain approval from the department under subsection (10) to conduct the training programs described in subsection (1) that includes all of the following requirements:

(a) Any documentation required for establishing that the applicant is a qualified trade organization.

(b) A training program plan or curriculum for each training program the qualified trade organization intends to conduct that is consistent with the training programs described in subsection (1).

(c) Any other information or requirements the department considers necessary for purposes of approving an application under subsection (10).

(9) The training programs established by the secretary of state under subsection (1) and any training program approved by the department under subsection (10) may be conducted online or by other electronic means.

(10) Not later than 30 days after receiving an application under this section from a qualified trade organization to conduct training programs described in subsection (1), the department shall approve or deny the application. The department shall provide the approval or denial in writing and, if denied, it shall list the reasons for the denial. Regardless of the reason for denial, the applicant may resubmit the application correcting the deficiencies identified by the department in the denial letter. The department shall have 10 business days to review a resubmitted application and either approve or deny the application. If a resubmitted application is denied, the denial must be in writing to the applicant and the applicant must have an opportunity to correct any deficiencies identified by the department in the denial letter.

(11) The department shall periodically monitor all training programs approved under subsection (10) for compliance with the requirements of the training programs described in subsection (1). If a qualified trade organization that has received the approval described in subsection (10) fails to comply with the requirements of the training programs described in subsection (1), the department may, after a hearing conducted in accordance with the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, suspend or revoke the approval.

(12) The department shall not renew the license of an eligible used vehicle dealer unless the application for renewal includes a certification from the dealer that it is in compliance with the training requirements applicable under this section.

(13) The department may charge a qualified trade organization an annual fee for applying for approval under subsection (7). The annual fee described in this subsection is either of the following, as applicable:

(a) An initial application fee of up to $500.00.

(b) An application renewal fee in an amount not to exceed 50% of the initial application fee set by the department under subdivision (a).

(14) A qualified trade organization that received approval under subsection (10) shall do all of the following:

(a) Notify the secretary of state of the date, time, and location of the training program at least 3 days prior to conducting the training program. All training programs must be made available to the secretary of state.

(b) Report to the secretary of state a list of all participants that completed the training program in an electronic format.

(c) Remit to the department a payment of $5.00 per training program participant.

(15) The fees collected by the department under subsection (14) must be deposited in the dealer training program fund created under subsection (16).

(16) The dealer training program fund is created in the state treasury. The state treasurer shall deposit money and other assets received from the department under subsection (15) and from any other source in the fund. The state treasurer shall direct the investment of money in the fund and credit interest and earnings from the investments to the fund.

(17) The department shall expend money from the fund, on appropriation, only to administer this section.

(18) The department may promulgate rules and procedures in accordance with the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, to implement this section.

(19) As used in this section:

(a) "Designated individual" means any of the following individuals, if he or she is selected by an eligible used vehicle dealer to complete a training program described in this section:

(i) An individual who is a licensed eligible used vehicle dealer or a partner or officer of a licensed eligible used vehicle dealer.

(ii) An individual who is an employee of a licensed eligible used vehicle dealer, such as a general manager, a sales manager, or an employee who is responsible for preparing title documents for the dealer.

(b) "Eligible used vehicle dealer" means a person that is licensed as a used or secondhand vehicle dealer, or is applying for licensure as a used or secondhand vehicle dealer, and is not an owner, partner, corporate officer, or director of a licensed new vehicle dealer or seeking licensure as an owner, partner, corporate officer, or director of a new vehicle dealer.

(c) "Fund" means the dealer training program fund created under subsection (16).

(d) "Qualified trade organization" means a bona fide nonprofit membership organization that is based in this state, that has been in existence for at least 5 years, and whose members are primarily eligible used vehicle dealers.

History: Add. 2018, Act 420, Eff. Mar. 20, 2019 ;-- Am. 2022, Act 17, Eff. Apr. 24, 2022

257.249 Denial, suspension, or revocation of license as dealer; grounds.

Sec. 249.

The secretary of state may deny the application of a person for a license as a dealer and refuse to issue the person a license as a dealer, or may suspend or revoke a license already issued, if the secretary of state finds that 1 or more of the following apply:

(a) The applicant or licensee has made a false statement of a material fact in his or her application.

(b) The applicant or licensee has not complied with the provisions of this chapter or a rule promulgated under this chapter.

(c) The applicant or licensee has sold or leased or offered for sale or lease a new vehicle of a type required to be registered under this act without having authority of a contract with a manufacturer or distributor of the new vehicle.

(d) The applicant or licensee has been guilty of a fraudulent act in connection with selling, leasing, or otherwise dealing in vehicles of a type required to be registered under this act.

(e) The applicant or licensee has entered into or is about to enter into a contract or agreement with a manufacturer or distributor of vehicles of a type required to be registered under this act that is contrary to any provision of this act.

(f) The applicant or licensee has no established place of business that is used or will be used for the purpose of selling, leasing, displaying, or offering for sale or lease or dealing in vehicles of a type required to be registered, and does not have proper servicing facilities.

(g) The applicant or licensee is a corporation or partnership, and a stockholder, officer, director, or partner of the applicant or licensee has been guilty of any act or omission that would be cause for refusing, revoking, or suspending a license issued to the stockholder, officer, director, or partner as an individual.

(h) The applicant or licensee has possessed a vehicle or a vehicle part that has been confiscated under section 415 of the Michigan penal code, 1931 PA 328, MCL 750.415. The secretary of state shall conduct a hearing pursuant to the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, before the secretary of state takes any action under this subdivision.

(i) The applicant or licensee has been convicted under section 415 of the Michigan penal code, 1931 PA 328, MCL 750.415.

(j) The applicant or licensee has been convicted of violating 1986 PA 119, MCL 257.1351 to 257.1355.

(k) The established place of business of the applicant or licensee is not in compliance with all applicable zoning requirements and municipal requirements.

(l) The applicant or licensee has engaged in the business of buying, selling, trading, or exchanging new, used, or secondhand motor vehicles or has offered to buy, sell, trade, or exchange, or participate in the negotiation thereof, or attempted to buy, sell, trade, or exchange any motor vehicle or interest in any motor vehicle or any written instrument pertaining to a motor vehicle on a Sunday, as prohibited by 1953 PA 66, MCL 435.251 to 435.254.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1981, Act 115, Imd. Eff. July 17, 1981 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005

257.249a Denial, suspension, or revocation of license as automotive recycler, used or secondhand vehicle parts dealer, vehicle scrap metal processor, or foreign salvage vehicle dealer; grounds.

Sec. 249a.

(1) The secretary of state may deny the application of a person for a license as an automotive recycler, a used or secondhand vehicle parts dealer, a vehicle scrap metal processor, or a foreign salvage vehicle dealer and refuse that person a license as an automotive recycler, a used or secondhand vehicle parts dealer, a vehicle scrap metal processor, or a foreign salvage vehicle dealer, or may suspend or revoke a license already issued, if the secretary of state finds that 1 or more of the following apply:

(a) The applicant or licensee has made a false statement of a material fact in his or her application.

(b) The applicant or licensee has not complied with this act or a rule promulgated under this chapter.

(c) The applicant or licensee has been convicted of violating Act No. 119 of the Public Acts of 1986, being sections 257.1351 to 257.1355 of the Michigan Compiled Laws.

(d) If the applicant or licensee is a foreign salvage vehicle dealer, has had his or her dealer license in another state expire, or has had his or her dealer license in another state revoked, suspended, or canceled.

(e) If the applicant or licensee is an automotive recycler, a used or secondhand vehicle parts dealer, or a foreign salvage vehicle dealer and has no established place of business used for the purpose of selling, displaying, or offering for sale used or secondhand vehicle parts or does not have a vehicle dismantling facility or does not have evidence of worker's compensation insurance coverage for employees classified under the standard industrial classification number 4015, entitled "motor vehicle parts—used" or under the national council on compensation insurance code number 3821, entitled "automobile dismantling", if applicable.

(2) The secretary of state shall deny the application of a person for a license as an automotive recycler, a used or secondhand vehicle parts dealer, a vehicle scrap metal processor, or a foreign salvage vehicle dealer and refuse that person a license as an automotive recycler, a used or secondhand vehicle parts dealer, a vehicle scrap metal processor, or a foreign salvage vehicle dealer, or shall suspend or revoke a license already issued, if the secretary of state finds that 1 or more of the following apply:

(a) The applicant or licensee has been guilty of a fraudulent act in connection with selling or otherwise dealing in major component parts or vehicles of a type required to be registered under this act.

(b) The applicant or licensee has possessed a vehicle or a vehicle part which has been confiscated under section 415 of the Michigan penal code, Act No. 328 of the Public Acts of 1931, being section 750.415 of the Michigan Compiled Laws. The secretary of state shall conduct a hearing pursuant to the administrative procedures act of 1969, Act No. 306 of the Public Acts of 1969, being sections 24.201 to 24.328 of the Michigan Compiled Laws, before the secretary of state takes any action under this subdivision.

(c) The applicant or licensee has been convicted under section 413, 415, 535, 535a, or 536a of Act No. 328 of the Public Acts of 1931, being sections 750.413, 750.415, 750.535, 750.535a, and 750.536a of the Michigan Compiled Laws, or has been convicted in a foreign state of a law or a local ordinance substantially corresponding to section 413, 415, 535, 535a, or 536a of Act No. 328 of the Public Acts of 1931.

(d) The applicant or licensee is a corporation or partnership, and a stockholder, officer, director, or partner of the applicant or licensee has been guilty of any act or omission that would be cause for refusing, revoking, or suspending a license issued to the stockholder, officer, director, or partner as an individual.

(e) Effective July 1, 1994, the applicant or licensee has removed a scrap vehicle from this state for the purpose of rebuilding it or has sold or transferred the vehicle as a unit for purposes of rebuilding it.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.250 Vehicle dealer's licensee; procedure for notification, investigation, denial, suspension, revocation.

Sec. 250.

(1) If the secretary of state receives a complaint against a licensee that merits an investigation, the secretary of state must notify the licensee, and the complaint must be made available to the licensee at no charge. Before denying, revoking, suspending, or refusing to renew a dealer's license the secretary of state shall do all of the following:

(a) Investigate the licensee after a complaint in writing of any person has been filed with the secretary of state.

(b) Set a date for hearing and give the licensee notice of the hearing at least 10 days in advance in the manner herein provided.

(c) Record the hearing proceedings.

(d) Enter a final order with the secretary of state's findings.

(2) A final order of the secretary of state under subsection (1)(d) is final unless, within 30 days after notice of such order is mailed by the secretary of state to the person whose application or license is denied, revoked, suspended or refused, the licensee appeals the final order to the circuit court for the county in which the licensee resides or maintains a place of business or to the circuit court for the county of Ingham. On appeal, the court shall review both law and facts as disclosed by the record, and may in its discretion receive newly discovered evidence, but shall not conduct a hearing de novo. The court may confirm, modify, or set aside such order and make such further orders as justice may require.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.250a Placement of license on probation; conditions

Sec. 250a.

As an alternative or in addition to administrative action under section 248h(1) for a violation or alleged violation of section 248h(2), section 249 for a violation or alleged violation of section 249, section 249a(1) for a violation or alleged violation of section 249a(1), or section 249a(2) for a violation or alleged violation of section 249a(2), the secretary of state may, by written agreement with a person that holds the license described in that section, place that license on probation and include conditions of probation in the agreement.

History: Add. 2016, Act 425, Eff. Apr. 4, 2017

257.250b Cease and desist order.

Sec. 250b.

(1) If the secretary of state determines after notice and opportunity for a hearing that a person has violated this chapter, the secretary of state may issue an order requiring the person to cease and desist from the violation or to take an affirmative action that in the judgment of the secretary of state would carry out the purposes of this act, including, but not limited to, payment of restitution to a customer.

(2) If the secretary of state makes a finding of fact in writing that the public interest will be irreparably harmed by a delay in issuing an order, the secretary of state may issue a temporary cease and desist order. Before issuing a temporary cease and desist order, the secretary of state, when possible, by telephone or otherwise, shall notify the person that violated this chapter of the secretary of state's intention to issue a temporary cease and desist order. A temporary cease and desist order shall include in its terms a provision that states that the secretary of state shall on request hold a hearing within 30 days to determine whether or not the order shall become permanent.

History: Add. 2016, Act 425, Eff. Apr. 4, 2017

257.250c Other lawful remedies and sanctions.

Sec. 250c.

The remedies and sanctions under this chapter are independent and cumulative. The use of a remedy or sanction under this chapter, including, but not limited to, administrative action by the secretary of state under section 248h(2), 249, or 249a(1), an agreement for probation under section 250a, or an order under section 250b, does not bar other lawful remedies and sanctions against a person and does not limit a person's criminal or civil liability under law.

History: Add. 2016, Act 425, Eff. Apr. 4, 2017

257.251 Dealer records; maintenance; manner; contents; odometer mileage statement; delivery of written statement to buyer; conditions to valid sale; maintenance and inspection of dealer records and inventory; inspections; summary suspension of license; order; hearing; rules.

Sec. 251.

(1) Each new vehicle dealer, used vehicle dealer, broker, and wholesaler shall maintain a record in a manner prescribed by the secretary of state of each vehicle of a type subject to titling under this act that is bought, sold, leased, or exchanged by the dealer or received or accepted by the dealer for sale, lease, or exchange. Each dealer, broker, and wholesaler must retain and have in the dealer's, broker's, or wholesaler's immediate possession, or, upon providing prior written notice to the department and receiving the department's approval within 7 business days after the department receives the written notice, at a secondary location owned by the dealer, broker, or wholesaler that is located within a 15-mile radius, each record described in this subsection.

(2) Each record must contain the date of the purchase, sale, lease, or exchange or receipt for the purpose of sale, lease, or exchange, a description of the vehicle, the name and address of the seller, the purchaser or lessee, and the alleged owner or other persons from whom the

vehicle was purchased or received, or to whom it was sold, leased, or delivered. The record must contain a copy of any odometer mileage statement received by the dealer when the dealer purchased or acquired a vehicle and a copy of the odometer mileage statement furnished by the dealer when the dealer sold, leased, or exchanged the vehicle as prescribed in section 233a. If the vehicle is purchased, sold, leased, or exchanged through a broker, the record must include the broker's name and dealer license number and the amount of the broker's fee, commission, compensation, or other valuable consideration paid by the purchaser or lessee or paid by the dealer, or both. The records of all vehicles purchased, sold, leased, or exchanged through a broker maintained by the secretary of state must be in an electronic format determined by the secretary of state. A dealer shall retain for not less than 5 years each odometer mileage statement the dealer receives and each odometer mileage statement furnished by the dealer upon the sale, lease, or exchange of a vehicle. The description of the vehicle, in the case of a motor vehicle, must also include the vehicle identification number and other numbers or identification marks as may be on the vehicle, and must also include a statement that a number has been obliterated, defaced, or changed, if that is the fact. For a trailer or semitrailer, the record must include the vehicle identification number and other numbers or identification marks as may be on the trailer or semitrailer.

(3) Not more than 20 days after the delivery of the vehicle, the seller shall deliver to the buyer in person, by mail to the buyer's last known address, or, with the agreement of the buyer, by electronic delivery, a duplicate of a written statement, on a form prescribed by the secretary of state in conjunction with the department of treasury, describing clearly the name and address of the seller, the name and address of the buyer, the vehicle sold to the buyer, the cash sale price of the vehicle, the cash paid down by the buyer, the amount credited the buyer for a trade-in, a description of the trade-in, the amount charged for vehicle insurance, stating the types of insurance covered by the insurance policy, the amount charged for a temporary registration plate, the amount of any other charge and its purpose, the net balance due from the buyer, and a summary of insurance coverage to be affected. If the vehicle sold is a new motor home, the written statement must contain a description, including the year of manufacture, of every major component part of the vehicle that has its own manufacturer's certificate of origin. The written statement must disclose if the vehicle sold is a vehicle that the seller had loaned or leased to a political subdivision of this state for use as a driver education vehicle. The written statement must be dated, but not later than the actual date of delivery of the vehicle to the buyer. The original and all copies of the prescribed form must contain identical information. The statement is furnished by the seller, signed by the seller or the seller's agent and by the buyer, and filed with the application for new title or registration. Failure of the seller to deliver this written statement to the buyer does not invalidate the sale between the seller and the buyer.

(4) A retail vehicle sale is void unless both of the following conditions are met:

(a) The sale is evidenced by a written memorandum that contains the agreement of the parties and is signed by the buyer and the seller or the seller's agent.

(b) The agreement contains a place for acknowledgment by the buyer of the receipt of a copy of the agreement or actual delivery of the vehicle is made to the buyer.

(5) Subject to subsection (12), each dealer record and inventory, including the record and inventory of a vehicle scrap metal processor not required to obtain a dealer license, is open to inspection by a police officer or an authorized officer or investigator of the secretary of state during reasonable or established business hours.

(6) A dealer licensed as a distressed vehicle transporter shall maintain records in a form as prescribed by the secretary of state. The records must identify each distressed vehicle that is

bought, acquired, and sold by the dealer. The record must identify the person from whom a distressed vehicle was bought or acquired and the dealer to whom the vehicle was sold. The record must indicate if a certificate of title or salvage certificate of title was obtained by the dealer for each vehicle.

(7) A dealer licensed under this act shall maintain records for a period of 5 years. The records must be made available for inspection by the secretary of state or other law enforcement officials. Subject to subsection (12), to determine or enforce compliance with this chapter or other applicable law, the secretary of state or any law enforcement official may inspect a dealer. The secretary of state may issue an order summarily suspending the license of a dealer under section 92 of the administrative procedures act of 1969, 1969 PA 306, MCL 24.292, based on an affidavit by a person familiar with the facts set forth in the affidavit that the dealer has failed to maintain the records required by this act or failed to provide the records for inspection as requested by the secretary of state, or has otherwise hindered, obstructed, or prevented the inspection of records authorized under this section. The dealer that the order is directed to shall comply immediately, but on application to the department shall be afforded a hearing within 30 days under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328. On the basis of the hearing, the summary order must be continued, modified, or held in abeyance not later than 30 days after the hearing.

(8) A dealer licensed as a vehicle salvage pool operator or broker shall maintain records in a form as prescribed by the secretary of state. The records must contain a description of each vehicle or salvageable part stored by the dealer, the name and address of the insurance company or person storing the vehicle or salvageable part, the period of time the vehicle or salvageable part was stored, and the person acquiring the vehicle or salvageable part. In the case of a late model vehicle, a record of the purchase or sale of a major component part of the vehicle must be maintained identifying the part purchased or sold, the name and address of the seller or purchaser, the date of the purchase or sale, and the identification number assigned to the part by the dealer. The record of the purchase or sale of a part must be maintained in or attached to the dealer's police book or hard copy of computerized data entries and reference codes and must be accessible at the dealer's location. In addition, a dealer licensed as a broker shall maintain a record of the odometer mileage reading of each vehicle sold pursuant to an agreement between the broker and the buyer or the broker and the seller. The record of odometer mileage must be maintained for 5 years and contain all of the information required by section 233a.

(9) A dealer licensed as a used vehicle parts dealer or an automotive recycler shall maintain records in a form prescribed by the secretary of state. The records must contain the date of purchase or acquisition of the vehicle, a description of the vehicle including the color, and the name and address of the person from whom the vehicle was acquired. If the vehicle is sold, the record must contain the date of sale and the name and address of the purchaser. The record must indicate if the certificate of title or salvage or scrap certificate of title was obtained by the dealer. In the case of a late model vehicle, a record of the purchase or sale of a major component of the vehicle must be maintained identifying the part purchased or sold, the name and address of the seller or purchaser, the date of the purchase or sale, and the identification number assigned to the part by the dealer, except that a bumper remanufacturer is not required to maintain a record of the purchase of a bumper. However, a bumper remanufacturer shall assign and attach an identification number to a remanufactured bumper and maintain a record of the sale of the bumper. The record of the purchase or sale of a part must be maintained in or attached to the dealer's police book or hard copy of computerized data entries and reference codes and must be accessible at the dealer's location.

(10) A dealer licensed as a vehicle scrap metal processor shall maintain records as prescribed by the secretary of state. As provided in section 217c, the records must contain for a vehicle purchased from a dealer a copy of the scrap vehicle inventory, including the name and address of the dealer, a description of the vehicle acquired, and the date of acquisition. If a vehicle is purchased or acquired from a person other than a dealer, the record must contain the date of acquisition, a description of the vehicle, including the color, the name and address of the person from whom the vehicle was acquired, and whether a certificate of title or salvage or scrap certificate of title was obtained by the dealer.

(11) A dealer licensed as a foreign salvage vehicle dealer shall maintain records in a form prescribed by the secretary of state. The records must contain the date of purchase or acquisition of each distressed vehicle, a description of the vehicle including the color, and the name and address of the person from whom the vehicle was acquired. If the vehicle is sold, the record must contain the date of sale and the name and address of the purchaser. The record must indicate if the certificate of title or salvage or scrap certificate of title was obtained by the dealer. In the case of a late model vehicle, a record of the purchase or sale of each salvageable part purchased or acquired in this state must be maintained and the record must contain the date of purchase or acquisition of the part, a description of the part, the identification number assigned to the part, and the name and address of the person to or from whom the part was purchased, acquired, or sold. The record of the sale, purchase, or acquisition of a part must be maintained in the dealer's police book. The police book must only contain vehicles and salvageable parts purchased in this state or used in the repair of a vehicle purchased in this state. The police book and the records of vehicle part sales, purchases, or acquisitions must be made available at a location within the state for inspection by the secretary of state within 48 hours after a request by the secretary of state.

(12) The secretary of state may make inspections of the records, facilities, and inventories of dealers licensed under section 248 as follows:

(a) For a general compliance inspection, including, but not limited to, a record and inventory inspection, the secretary of state shall provide at least 36 hours written notice of the inspection to the dealer and the inspection must occur during the dealer's reasonable or established business hours. The secretary of state shall maintain a record of each written notice of inspection provided to the dealer and shall maintain proof that actual notice of the inspection was provided to the dealer. As used in this subdivision, "written notice" includes, but is not limited to, notice by email or text.

(b) For the purposes of investigating an official complaint made available to the dealer or a substantive violation of this chapter or other applicable law directly involving the dealer, the secretary of state may make periodic unannounced inspections.

(13) The secretary of state may promulgate rules to implement this section under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 96, Eff. Sept. 13, 1958 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1964, Act 51, Eff. Aug. 28, 1964 ;-- Am. 1965, Act 210, Imd. Eff. July 16, 1965 ;-- Am. 1978, Act 507, Eff. July 1, 1979 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 1990, Act 265, Imd. Eff. Oct. 17, 1990 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. July 1, 1994 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999 ;-- Am. 1998, Act 455, Imd. Eff. Dec. 30, 1998 ;-- Am. 2000, Act 397, Imd. Eff. Jan. 8, 2001 ;-- Am. 2002, Act 491, Imd. Eff. July 3, 2002 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

Admin Rule: R 257.181 et seq. and R 257.251 et seq. of the Michigan Administrative Code.

257.251a Copies of documents.

Sec. 251a.

At the time a document is signed for the sale or lease of a vehicle, the dealer shall provide a copy of each document signed to the person who signed the document.

History: Add. 1990, Act 265, Imd. Eff. Oct. 17, 1990 ;-- Am. 2002, Act 642, Eff. Jan. 1, 2003
Compiler's Notes: Former MCL 257.251a, which pertained to dealer's report as to sales to out of state dealers and purchasers, was repealed by Act 166 of 1962, Eff. Mar. 28, 1963.

257.251b Renting, leasing, or furnishing motorcycle; license to operate required.

Sec. 251b.

A dealer shall not rent, lease, or furnish a motorcycle to a person for use on public streets and highways who is not licensed to operate a motorcycle by the state, if a resident, and by the state in which the person resides, if a nonresident.

History: Add. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.251c Renting, leasing, or furnishing motorcycle; duties of dealer.

Sec. 251c.

The dealer shall maintain in safe operating condition all motorcycles rented, leased, or furnished by him. The dealer, his agents, or employees shall explain the operation of the motorcycle being rented, leased, or furnished and if the dealer, his agent, or employee believes the person to whom the motorcycle is to be rented, leased, or furnished is not competent to operate the motorcycle with competency to himself and to the safety of persons or vehicles on public streets and highways, he shall refuse to rent, lease, or furnish the motorcycle.

History: Add. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.251d Renting, leasing, or furnishing motorcycle; license to operate as condition of use by third party.

Sec. 251d.

A person to whom a motorcycle is rented, leased, or furnished, shall not rent, sublease, or otherwise authorize the use of the motorcycle on public streets and highways to a person who is not licensed to operate a motorcycle in this state, if a resident, and by the state in which the person resides, if a nonresident.

History: Add. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.251e Renting, leasing, or furnishing motorcycle; motor vehicle liability policy.

Sec. 251e.

A dealer renting, leasing, or furnishing a motorcycle shall carry a "motor vehicle liability policy" of the same type and coverage as that outlined in section 520 for each motorcycle

rented, leased, or furnished or, in the alternative, demand and be shown proof that the person renting, leasing, or being furnished a motorcycle carries a motor vehicle liability policy of at least the type and coverage as specified in section 520.

History: Add. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

SPECIAL ANTI-THEFT LAWS

257.252 Reports of stolen and recovered vehicles.

Sec. 252.

A police agency, upon receiving reliable information that any vehicle registered under this act has been stolen, shall immediately report the theft through the law enforcement information network. Upon receiving information that a vehicle previously reported as stolen has been recovered, the police agency shall immediately report the fact of the recovery through the law enforcement information network.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 99, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 157, Imd. Eff. July 1, 1966 ;-- Am. 1968, Act 170, Imd. Eff. June 17, 1968 ;-- Am. 1972, Act 350, Eff. Mar. 1, 1973 ;-- Am. 1980, Act 249, Imd. Eff. July 28, 1980

257.252a Abandoned vehicle; presumption of responsibility; violation; penalty; "abandoned vehicle" defined; notice; duties of police agency; contest by owner; hearing; request; fee; towing and storage charges; secured party; obtaining release of vehicle; inspection; public sale; inability to determine ownership of abandoned vehicle; entry into law enforcement information network.

Sec. 252a.

(1) A person shall not abandon a vehicle in this state. It is presumed that the last titled owner of the vehicle is responsible for abandoning the vehicle unless the person provides a record of the sale as that term is defined in section 240. A person who violates this subsection and who fails to redeem the vehicle before disposition of the vehicle under section 252g is responsible for a civil infraction and shall be ordered to pay a civil fine of $50.00.

(2) As used in this section and sections 252b through 252l, "abandoned vehicle" means any of the following:

(a) A vehicle that has remained on private property without the consent of the owner.

(b) A vehicle that has remained on public property for a period of not less than 48 hours, or on a state trunk line highway as described in section 1 of 1951 PA 51, MCL 247.651, as follows:

(i) If a valid registration plate is affixed to the vehicle, for a period of not less than 18 hours.

(ii) If a valid registration plate is not affixed to the vehicle.

(c) A vehicle, other than a late-model vehicle, to which all of the following apply:

(i) An insurance company has not acquired ownership of the vehicle under section 217c.

(ii) The vehicle cannot be disposed of under section 248c.

(iii) The vehicle has remained in the custody of a vehicle salvage pool or broker site without the consent of the vehicle salvage pool operator or the broker for a period of not less than 60 days.

(3) If a vehicle has remained on public property for the period of time described in subsection (2)(b) so that it qualifies as abandoned, a police agency having jurisdiction over the

vehicle or the agency's designee shall determine whether the vehicle has been reported stolen and may affix a written notice to the vehicle. The written notice shall contain the following information:

(a) The date and time the notice was affixed.

(b) The name and address of the police agency taking the action.

(c) The name and badge number of the police officer affixing the notice.

(d) The date and time the vehicle may be taken into custody and stored at the owner's expense or scrapped if the vehicle is not removed.

(e) The year, make, and vehicle identification number of the vehicle, if available.

(4) If the vehicle is an abandoned vehicle, the police agency or the agency's designee may have the towing agency take the vehicle into custody.

(5) A police agency that has received a vehicle taken into custody as abandoned shall do all of the following:

(a) Recheck to determine if the vehicle has been reported stolen.

(b) Within 24 hours after the vehicle is taken into custody, enter the vehicle as abandoned into the law enforcement information network, and notify the secretary of state through the law enforcement information network that the vehicle has been taken into custody as abandoned. Each notification shall contain the following information:

(i) The year, make, and vehicle identification number of the vehicle, if available.

(ii) The address or approximate location from which the vehicle was taken into custody.

(iii) The date on which the vehicle was taken into custody.

(iv) The date the vehicle is being entered into the law enforcement information network and whether the information is being entered within 24 hours after the vehicle was taken into custody.

(v) The name and address of the police agency that had the vehicle taken into custody.

(vi) The name and business address of the custodian of the vehicle.

(vii) The name of the court that has jurisdiction over the case.

(c) Within 7 days after receiving notice under subdivision (b) that the vehicle has been taken into custody, the secretary of state shall do both of the following:

(i) Send to the last titled owner and secured party, as shown by the records of the secretary of state as described in section 221 or 237, by first-class mail or personal service, notice that the vehicle is considered abandoned. The form for the notice shall be furnished by the secretary of state. Each notice form shall contain the following information:

(A) The year, make, and vehicle identification number of the vehicle if available.

(B) The address or approximate location from which the vehicle was taken into custody.

(C) The date on which the vehicle was taken into custody.

(D) The name and address of the police agency that had the vehicle taken into custody.

(E) The name and business address of the custodian of the vehicle.

(F) The procedure to redeem the vehicle.

(G) The procedure to contest the fact that the vehicle is considered abandoned or the reasonableness of the towing fees and daily storage fees.

(H) A form petition that the owner may file in person or by mail with the specified court that requests a hearing on the police agency's action.

(I) A warning that the failure to redeem the vehicle or to request a hearing within 20 days after the date of the notice may result in the sale of the vehicle and the termination of all rights of the owner and the secured party to the vehicle or the proceeds of the sale.

(ii) Enter the information described in subparagraph (i) on a website maintained by the department for public use in locating vehicles that are removed under this section as

abandoned. The department shall maintain the data on the website for 1 year or until the vehicle is disposed of under this act, whichever occurs first.

(6) The owner may contest the fact that the vehicle is considered abandoned or the reasonableness of the towing fees and daily storage fees by requesting a hearing and posting a bond equal to $40.00 plus the amount of the accrued towing and storage fees. A request for a hearing shall be made by filing a petition with the court specified in the notice described in subsection (5)(c) within 20 days after the date of the notice. Subject to subsection (8), if the owner requests a hearing, the matter shall be resolved after a hearing conducted under sections 252e and 252f. An owner who requests a hearing may obtain release of the vehicle by posting a towing and storage bond in an amount equal to the $40.00 plus the accrued towing and storage fees with the court. The owner of a vehicle who requests a hearing may obtain release of the vehicle by paying a fee of $40.00 to the court and the accrued towing and storage fees instead of posting the towing and storage bond.

(7) Subject to subsection (9), if the owner does not request a hearing under subsection (6), he or she may obtain the release of the vehicle by paying a fee of $40.00 and the accrued towing and storage fees to the custodian of the vehicle. The custodian of the vehicle shall forward $25.00 of the fee to the secretary of state within 30 days after receipt in a manner prescribed by the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(8) The secured party may contest the reasonableness of the towing fees and daily storage fees and request a hearing in the same manner and subject to the same requirements as the owner of the vehicle under subsection (6). If both the owner and the secured party request a hearing to contest the reasonableness of the towing fees and daily storage fees within 20 days after the date of the notice, the court shall dismiss the secured party's petition and proceed with the owner's petition as provided in subsection (6), unless the owner is in default on a contract or agreement with the secured party regarding that vehicle. If the owner is in default on a contract or agreement with the secured party regarding that vehicle, the court shall dismiss the owner's petition and proceed with the secured party's petition in the same manner as provided in subsection (6). If the secured party redeems the vehicle, the owner may only seek damages related to the reasonableness of the towing fees and daily storage fees from the secured party. If the court finds, after a hearing on the reasonableness of the towing fees and daily storage fees, that the owner's or the secured party's challenge was frivolous, the court may award reasonable attorney fees to the custodian of the vehicle.

(9) If the owner does not redeem the vehicle or request a hearing within 10 days after the date of the notice described in subsection (5)(c), the secured party may obtain the release of the vehicle by paying a $40.00 fee plus the accrued charges to the custodian of the vehicle. The custodian of the vehicle shall forward $25.00 of the fee to the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(10) If a vehicle has remained on private property without the consent of the property owner, the owner of the private property may have the vehicle taken into custody as an abandoned vehicle by contacting a local towing agency. A local towing agency is considered a towing agency whose storage lot is located within 15 miles from the border of the local unit of government having jurisdiction over the abandoned vehicle.

(11) Before removing the vehicle from private property, the towing agency shall provide notice by telephone, or otherwise, to a police agency having jurisdiction over the vehicle that the vehicle is being removed. Within 24 hours after receipt of the notice from the towing agency, the police agency shall determine if the vehicle has been reported stolen and enter the vehicle into the law enforcement information network as an abandoned vehicle. Verification

by the police agency of compliance with this section is not necessary and is not a predicate to the entrance of the vehicle into the law enforcement information network.

(12) Within 24 hours after taking the abandoned vehicle into custody, the police agency shall notify the secretary of state through the law enforcement information network that the vehicle has been taken into custody as abandoned. Each notification shall contain the following information:

(a) The year, make, and vehicle identification number of the vehicle if available.

(b) The address or approximate location from which the vehicle was taken into custody.

(c) The date on which the vehicle was taken into custody.

(d) The date the vehicle is being entered into the law enforcement information network and whether the information is being entered within 24 hours after the vehicle was taken into custody.

(e) The name and address of the police agency that had the vehicle taken into custody.

(f) The name and business address of the custodian of the vehicle.

(g) The name of the court that has jurisdiction over the case.

(13) Within 7 days after being notified under subsection(12), the secretary of state shall do both of the following:

(a) Send to the owner and secured party, as shown by the records of the secretary of state, by first-class mail or personal service, notice that the vehicle is considered abandoned. The form for the notice shall be furnished by the secretary of state. Each notice form shall contain the following information:

(i) The year, make, and vehicle identification number of the vehicle if available.

(ii) The location from which the vehicle was taken into custody.

(iii) The date on which the vehicle was taken into custody.

(iv) The name of the towing agency that had the vehicle taken into custody.

(v) The business address of the custodian of the vehicle.

(vi) The procedure to redeem the vehicle.

(vii) The procedure to contest the fact that the vehicle is considered abandoned or the reasonableness of the towing fees and daily storage fees.

(viii) A form petition that the owner may file in person or by mail with the specified court that requests a hearing on the custodian's action.

(ix) A warning that the failure to redeem the vehicle or to request a hearing within 20 days after the date of the notice may result in the sale of the vehicle and the termination of all rights of the owner and the secured party to the vehicle or the proceeds of the sale.

(b) Enter the information described in subdivision (a) on a website maintained by the department for public use in locating vehicles that are removed under this section as abandoned.

(14) The owner may contest the fact that the vehicle is abandoned or, unless the towing fees and daily storage fees are established by contract with the local governmental unit or local law enforcement agency and comply with section 252i, the reasonableness of the towing fees and daily storage fees by requesting a hearing. A request for a hearing shall be made by filing a petition with the court specified in the notice within 20 days after the date of the notice. Subject to subsection (16), if the owner requests a hearing, the matter shall be resolved after a hearing conducted under section 252f. An owner who requests a hearing may obtain release of the vehicle by posting with the court a towing and storage bond in an amount equal to $40.00 plus the accrued towing and storage fees. The owner of a vehicle who requests a hearing may obtain release of the vehicle by paying a fee of $40.00 to the court plus the towing and storage fees instead of posting the towing and storage bond. An owner requesting a hearing but not

taking possession of the vehicle shall post with the court a towing and storage bond in an amount equal to $40.00 plus the accrued towing and storage fees.

(15) Subject to subsection (17), if the owner does not request a hearing, he or she may obtain the release of the vehicle by paying a fee of $40.00 plus the accrued charges to the custodian of the vehicle. The custodian shall forward $25.00 of the fee collected under this subsection to the secretary of state within 30 days after receipt in a manner prescribed by the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(16) The secured party may contest the reasonableness of the towing fees and daily storage fees and request a hearing in the same manner and subject to the same requirements as the owner under subsection (14). If both the owner and the secured party request a hearing to contest the reasonableness of the towing fees and daily storage fees within 20 days after the date of the notice, the court shall dismiss the secured party's petition and proceed with the owner's petition as provided in subsection (14), unless the owner is in default on a contract or agreement with the secured party regarding that vehicle. If the owner is in default on a contract or agreement with the secured party regarding that vehicle, the court shall dismiss the owner's petition and proceed with the secured party's petition in the same manner as provided in subsection (14). If the secured party redeems the vehicle, the owner may only seek damages related to the reasonableness of the towing fees and daily storage fees from the secured party. If the court finds, after a hearing on the reasonableness of the towing fees and daily storage fees, that the owner's or the secured party's challenge was frivolous, the court shall award to the custodian costs, including reasonable attorney fees, against the owner or secured party.

(17) If the owner does not redeem the vehicle or request a hearing within 10 days after the date of the notice, the secured party may obtain the release of the vehicle by paying a fee of $40.00 and the accrued towing and storage fees to the custodian of the vehicle. The custodian shall forward $25.00 of the fee collected under this subsection to the secretary of state within 30 days after receipt in a manner prescribed by the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(18) Not less than 20 days after the disposition of the hearing described in subsection (6) or, if a hearing is not requested, not less than 20 days after the date of the notice, the police agency if the abandoned vehicle is found on public property, or the custodian of the vehicle if the vehicle is found on private property, shall offer the vehicle for sale at a public sale under section 252g.

(19) The custodian of a vehicle described in this section shall allow the owner of the vehicle or a secured party to inspect the vehicle during regular business hours at the location where the vehicle is being held. The custodian of the vehicle may charge the secured party a fee of not more than $75.00 to inspect the vehicle or, if the actual cost necessary to allow the inspection is greater than $75.00, the actual cost necessary to allow the inspection. If the custodian of the vehicle charges the secured party more than $75.00 as provided in this subsection, the custodian shall provide the secured party with an itemized invoice for the actual costs assessed. The custodian of the vehicle shall allow the owner of the vehicle to inspect the vehicle and retrieve personal property from the vehicle without paying a fee for the first visit. After the first visit by the owner to inspect the vehicle or retrieve personal property from the vehicle as provided in this subsection, the custodian may charge the owner of the vehicle a fee of not more than $25.00 for each subsequent visit.

(20) If the ownership of a vehicle that is considered abandoned under this section cannot be determined either because of the condition of the vehicle identification numbers or because a check with the records of the secretary of state as described in section 221 or 237 does not

reveal ownership, the police agency may sell the vehicle at public sale as provided in section 252g not less than 30 days after public notice of the sale has been published.

(21) The secretary of state shall release a vehicle for disposition under section 252b or 252g within 45 days after the vehicle is entered into the law enforcement information network as an abandoned vehicle.

History: Add. 1980, Act 249, Imd. Eff. July 28, 1980 ;-- Am. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 2000, Act 306, Imd. Eff. Oct. 16, 2000 ;-- Am. 2002, Act 649, Imd. Eff. Dec. 23, 2002 ;-- Am. 2004, Act 495, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2015, Act 48, Eff. Sept. 7, 2015 ;-- Am. 2018, Act 347, Eff. Jan. 14, 2019

257.252b Registered and unregistered abandoned scrap vehicles; duties of police agency; release of vehicle; certificate of title or certificate of scrapping; release form; retention of records and photographs; taking registered abandoned scrap vehicle into custody; contest by registered owner; hearing; request; obtaining release of vehicle; fee.

Sec. 252b.

(1) As used in this section:

(a) "Registered abandoned scrap vehicle" means a vehicle that meets all of the following requirements:

(i) Is on public or private property.

(ii) Is 7 or more years old.

(iii) Is apparently inoperable or is extensively damaged, to the extent that the cost of repairing the vehicle so that it is operational and safe as required by section 683 would exceed the fair market value of that vehicle.

(iv) Is currently registered or titled in the state of Michigan or displays current year registration plates from another state.

(b) "Unregistered abandoned scrap vehicle" means a vehicle that meets all of the following requirements:

(i) Is on public or private property.

(ii) Is 7 or more years old.

(iii) Is apparently inoperable or is extensively damaged, to the extent that the cost of repairing the vehicle so that it is operational and safe as required by section 683 would exceed the fair market value of that vehicle.

(iv) Is not currently registered in this state and does not display current year registration plates from another state.

(2) A police agency or the agency's designee or, if the vehicle is on private property, the property owner may have an unregistered abandoned scrap vehicle taken into custody, in which case the police agency shall do all of the following:

(a) Determine if the vehicle has been reported stolen.

(b) Take 2 photographs of the vehicle.

(c) Make a report to substantiate the vehicle as an unregistered abandoned scrap vehicle. The report shall contain the following information:

(i) The year, make, and vehicle identification number if available.

(ii) The date of abandonment.

(iii) The location of abandonment.

(iv) A detailed listing of the damage or the missing equipment.

(v) The reporting officer's name and title.

(vi) The location where the vehicle is being held.

(d) Within 24 hours after taking the vehicle into custody, enter the vehicle into the law enforcement information network.

(3) Within 24 hours, excluding Saturday, Sunday, and legal holidays, after taking the vehicle into custody, the police agency or the agency's designee shall complete a release form and release the vehicle to the towing service or a used vehicle parts dealer or vehicle scrap metal processor, who shall then transmit that release form to the secretary of state and apply for a certificate of scrapping. Upon receipt of the release form and application, the secretary of state shall issue a certificate of title or a certificate of scrapping.

(4) The release form described in subsection (3) shall be furnished by the secretary of state and shall include a certification executed by the applicable police agency or the agency's designee when the abandoned scrap vehicle is released. The certification shall state that the police agency has complied with all the requirements of subsection (2)(b) and (c).

(5) The secretary of state shall retain the records relating to an abandoned scrap vehicle for not less than 2 years. The 2 photographs taken under subsection (2)(b) shall be retained by the police agency or the agency's designee for not less than 2 years. After the certificate of scrapping has been issued, a certificate of title for the vehicle shall not be issued again.

(6) A police agency or the agency's designee or, if the vehicle is on private property, the property owner may have a registered abandoned scrap vehicle taken into custody, in which case the police agency or the towing service shall do all of the following:

(a) Determine if the vehicle has been reported stolen.

(b) Take 2 photographs of the vehicle.

(c) Make a report to substantiate the vehicle as a registered abandoned scrap vehicle. The report shall contain the following information:

(i) The year, make, and vehicle identification number if available.

(ii) The date of abandonment.

(iii) The location of abandonment.

(iv) A detailed listing of the damage or the missing equipment.

(v) The reporting individual's name and title.

(vi) The location where the vehicle is being held.

(d) Within 24 hours after taking the vehicle into custody, cause the vehicle to be entered into the law enforcement information network.

(7) Within 7 days after taking the vehicle into custody, the secretary of state shall send to the last titled owner and secured party, as shown by the records of the secretary of state, by first-class mail or personal service, notice that the vehicle is considered abandoned. The form for the notice shall be furnished by the secretary of state. Each notice form shall contain the following information:

(a) The year, make, and vehicle identification number of the vehicle if available.

(b) The address or approximate location from which the vehicle was taken into custody.

(c) The date on which the vehicle was taken into custody.

(d) The name and address of the police agency that had the vehicle taken into custody. If the vehicle was towed from private property, the notice shall contain the name and address of the custodian of the vehicle.

(e) The business address of the custodian of the vehicle.

(f) The procedure to redeem the vehicle.

(g) The name of the court that has jurisdiction of the case.

(h) The procedure to contest the fact that the vehicle is abandoned or the reasonableness of the towing fees and daily storage fees.

(i) A form petition that the owner may file in person or by mail with the specified court that requests a hearing on the custody of the vehicle.

(j) A warning that the failure to redeem the vehicle or to request a hearing within 20 days after the date of the notice may result in the termination of all rights of the owner and the secured party to the vehicle.

(8) The registered owner of a registered abandoned scrap vehicle may contest the fact that the vehicle is abandoned or the reasonableness of the towing fees and daily storage fees by requesting a hearing. A request for a hearing shall be made by filing a petition with the court specified in the notice in subsection (7) within 20 days after the date of the notice. If the owner requests a hearing, the matter shall be resolved after a hearing conducted under section 252f. An owner who requests a hearing may obtain release of the vehicle by posting a towing and storage bond equal to the $40.00 plus the accrued towing and storage fees with the court. The owner of a vehicle who requests a hearing may obtain release of the vehicle by paying a fee of $40.00 plus the towing and storage fees to the court instead of posting the towing and storage bond.

(9) If the owner does not request a hearing under subsection (7), he or she may obtain the release of the vehicle by paying a fee of $40.00 plus the accrued charges to the custodian of the vehicle. The custodian shall forward $25.00 of the fee collected under this subsection to the secretary of state within 30 days after receipt in a manner prescribed by the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(10) If the owner does not redeem the vehicle or request a hearing within 20 days after the date of the notice described in subsection (7), the secured party may obtain the release of the vehicle by paying a fee of $40.00 plus the accrued charges to the custodian of the vehicle. The custodian shall forward $25.00 of the fee collected under this subsection to the secretary of state within 30 days after receipt in a manner prescribed by the secretary of state, who shall deposit the fee into the abandoned vehicle fund created in section 252h.

(11) Not less than 20 days after the disposition of the hearing described in subsection (8), or if a hearing is not requested, not less than 20 days after the date of the notice described in subsection (7), the police agency or the agency's designee shall follow the procedures established in subsections (3) to (5).

History: Add. 1980, Act 249, Imd. Eff. July 28, 1980 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 2004, Act 495, Eff. Oct. 1, 2005

257.252c Repealed. 2005, Act 142, Eff. Oct. 1, 2005.

Compiler's Notes: The repealed section pertained to removal of vehicle from private property.

257.252d Removal of vehicle from public or private property to place of safekeeping; circumstances; arrival of owner or legally entitled person; duties of police agency; release of vehicle; entry of vehicle as abandoned.

Sec. 252d.

(1) A police agency or a governmental agency designated by the police agency may provide for the immediate removal of a vehicle from public or private property to a place of

safekeeping at the expense of the last titled owner of the vehicle in any of the following circumstances:

(a) If the vehicle is in such a condition that the continued operation of the vehicle upon the highway would constitute an immediate hazard to the public.

(b) If the vehicle is parked or standing upon the highway in such a manner as to create an immediate public hazard or an obstruction of traffic.

(c) If a vehicle is parked in a posted tow away zone.

(d) If there is reasonable cause to believe that the vehicle or any part of the vehicle is stolen.

(e) If the vehicle must be seized to preserve evidence of a crime, or if there is reasonable cause to believe that the vehicle was used in the commission of a crime.

(f) If removal is necessary in the interest of public safety because of fire, flood, storm, snow, natural or man-made disaster, or other emergency.

(g) If the vehicle is hampering the use of private property by the owner or person in charge of that property or is parked in a manner that impedes the movement of another vehicle.

(h) If the vehicle is stopped, standing, or parked in a space designated as parking for persons with disabilities and is not permitted by law to be stopped, standing, or parked in a space designated as parking for persons with disabilities.

(i) If the vehicle is located in a clearly identified access aisle or access lane immediately adjacent to a space designated as parking for persons with disabilities.

(j) If the vehicle is interfering with the use of a ramp or a curb-cut by persons with disabilities.

(k) If the vehicle has been involved in a traffic crash and cannot be safely operated from the scene of the crash.

(2) Unless the vehicle is ordered to be towed by a police agency or a governmental agency designated by a police agency under subsection (1)(a), (d), (e), or (k), if the owner or other person that is legally entitled to possess a vehicle to be towed or removed arrives at the location where the vehicle is located before the actual towing or removal of the vehicle, the vehicle must be disconnected from the tow truck, and the owner or other person that is legally entitled to possess the vehicle may take possession of the vehicle and remove it without interference upon the payment of the reasonable service fee, for which a receipt must be provided.

(3) A police agency that authorizes the removal of a vehicle under subsection (1) shall do all of the following:

(a) Check to determine if the vehicle has been reported stolen before authorizing the removal of the vehicle.

(b) Enter the vehicle into the law enforcement information network as an impounded vehicle within 24 hours after ordering the impound of the vehicle. Except as provided in subsection (5), if the vehicle has not been redeemed by the owner within 7 days after the impound, the towing agency shall notify the police agency of that fact and the police agency shall deem the vehicle abandoned. The police agency shall enter the vehicle into the law enforcement information network as abandoned within 24 hours of notification by the towing agency, and follow the procedures set forth in section 252a.

(4) If an impounded vehicle is released before the police agency enters the vehicle into the law enforcement information network as abandoned, the towing agency or custodian shall notify the police agency that authorized the removal within 24 hours of releasing the impounded vehicle.

(5) A vehicle impounded under subsection (1)(d), (e), or (k) must first be released by the police agency that authorized the removal prior to the towing agency or custodian releasing the vehicle to the vehicle owner.

(6) Not less than 20 days but not more than 30 days after a vehicle has been released under subsection (5), the towing agency or custodian shall notify the police agency to enter the vehicle as abandoned and the police agency shall enter the vehicle into the law enforcement information network as abandoned within 24 hours of receiving notice and follow the procedures set forth in section 252a if the impounded vehicle has not been redeemed.

History: Add. 1980, Act 249, Imd. Eff. July 28, 1980 ;-- Am. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2000, Act 76, Eff. Oct. 1, 2000 ;-- Am. 2004, Act 495, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2022, Act 89, Eff. Aug. 24, 2022

257.252e Jurisdiction to determine propriety of police, towing agency or custodian, or private owner action; venue in district court; use of bond to pay towing or storage fees; exclusive remedies.

Sec. 252e.

(1) The following courts have jurisdiction to determine if a police agency, towing agency or custodian, or private property owner has acted properly in reporting or processing a vehicle under section 252a, 252b(6) to (11), or 252d:

(a) The district court.

(b) A municipal court.

(2) The court specified in the notice prescribed in section 252a(5)(b) or 252b(7) or as provided in section 252d(3)(b) is the court that has territorial jurisdiction at the location from where the vehicle was removed, impounded, or considered abandoned. Venue in the district court is governed by section 8312 of the revised judicature act of 1961, 1961 PA 236, MCL 600.8312.

(3) If the owner fails to pay the accrued towing and storage fees, the towing and storage bond posted with the court to secure release of the vehicle under section 252a, 252b, or 252d must be used to pay the towing and storage fees.

(4) The remedies under sections 252 to 254 are the exclusive remedies for the disposition of abandoned vehicles.

History: Add. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 2004, Act 495, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2022, Act 89, Eff. Aug. 24, 2022

257.252f Filing petition; duties of court; hearing; notice; burden; decision; district court magistrate; appeal.

Sec. 252f.

(1) Upon the filing of a petition prescribed in section 252a, 252b, or 252d, signed by the owner of the vehicle that has been taken into custody, or, upon the filing of a petition

prescribed in section 252a signed by the secured party regarding a vehicle that has been taken into custody, the court shall do both of the following:

(a) Schedule a hearing within 30 days for the purpose of determining whether the police agency, towing agency or custodian, or private property owner acted properly.

(b) Notify the owner or the secured party, as applicable, towing agency or custodian, and police agency or if the vehicle was removed from private property, notify the private property owner also of the time and place of the hearing.

(2) At the hearing specified in subsection (1), the police agency, towing agency or custodian, or, if the vehicle was removed from private property, the private property owner shall have the burden of showing by a preponderance of the evidence that it has complied with the requirements of this act in reporting or processing the abandoned vehicle or vehicle removed under section 252d.

(3) After the hearing, the court shall make a decision that includes 1 or more of the following:

(a) A finding that the police agency complied with the procedures established for the processing of an abandoned vehicle or a vehicle removed under section 252a, 252b, or 252d, and an order providing a period of 10 days after the decision for the owner or the secured party, if applicable, to redeem the vehicle. If the owner or the secured party does not redeem the vehicle within 10 days, the police agency shall dispose of the vehicle under section 252b or 252g. The court shall forward $25.00 of the fee collected under section 252b or 252g to the secretary of state within 30 days after the court's decision in a manner prescribed by the secretary of state. The towing and storage fees and $15.00 of the fee collected under section 252b or 252g shall be forwarded to the towing agency.

(b) A finding that the police agency did not enter the vehicle as abandoned into the law enforcement information network within 24 hours after the vehicle was taken into custody as required by section 252a(5)(b) or (12). After making the finding, the court shall issue an order directing that the vehicle immediately be released to the owner or the secured party, if applicable, and directing 1 of the following:

(i) That the police agency reimburse the owner or the secured party, if applicable, for the storage charges accrued before the police agency entered the vehicle into the law enforcement information network as required by section 252a(5)(b) or (12) if the owner or the secured party paid the accrued storage charges.

(ii) If the owner or the secured party has not paid the accrued storage charges but has posted a fee or bond with the court, that the police agency shall pay directly to the owner or secured party the amount of the storage charges accrued before the police agency entered the vehicle into the law enforcement information network as required by section 252a(5)(b) or 252a(12) plus interest no later than 10 days after the date of the order. The court shall release the bond posted by the owner or secured party in full to the custodian after the court has received notice from the police agency that the police agency has issued the payment required by this subparagraph to the owner or secured party.

(c) A finding that the police agency improperly determined that the vehicle was abandoned. After making the finding, the court shall issue an order directing that the vehicle be immediately released to the owner and directing the custodian to reimburse the owner for the accrued towing and storage charges, if the owner paid the accrued towing and storage charges. The court shall order the police agency to reimburse the custodian for accrued towing and storage charges paid to the owner under this subdivision. If the owner has not paid the accrued towing and storage charges, the court shall order the police agency to pay the accrued towing and storage charges. The court shall also order the police agency to pay any other fees

associated with recovering the vehicle, or to reimburse the owner for any other fees associated with recovering the vehicle paid by the owner. The court shall also order any fee or bond posted by the owner to be returned to the owner.

(d) A finding that the towing fees and daily storage fees were reasonable.

(e) A finding that the towing fees and daily storage fees were unreasonable and issue an order directing the towing agency or custodian of the vehicle to provide the last titled owner of the vehicle or the secured party, if applicable, with an appropriate reduction or refund.

(f) A finding that the owner of the real property complied with the provisions of section 252k or 252l.

(g) A finding that the owner of the real property did not comply with the provisions of section 252k or 252l, and issue an order requiring the owner of the real property to reimburse the last titled owner of the vehicle or the secured party, if applicable, for the accrued towing and storage charges.

(h) A finding that the towing agency did not comply with the procedures established for the proper removal and reporting of an abandoned vehicle removed under section 252a(11), 252b, or 252d. After making the finding, the court shall issue an order directing that the vehicle immediately be released to the owner or the secured party, if applicable, and directing 1 of the following:

(i) That the towing agency reimburse the owner or the secured party, if applicable, for the storage charges accrued before the police agency entered the vehicle into the law enforcement information network as required by section 252a(5)(b) or (12), if the owner or the secured party paid the accrued storage charges.

(ii) If the owner or the secured party, if applicable, has not paid the accrued towing and storage charges but has posted a fee or bond with the court, that the bond and storage charges accrued before the police agency entered the vehicle into the law enforcement information network as required by section 252a(5)(b) or (12) be returned to the owner or the secured party, and that the remainder of any fee posted with the court be paid to the custodian.

(i) A finding that the towing agency did comply with the procedures established for the proper removal and reporting of an abandoned vehicle removed under section 252a(11), 252b, or 252d.

(4) A hearing under this section shall be conducted by a district court magistrate, if a district court magistrate has been appointed by the court. The appeal of a district court magistrate's decision under this section shall be heard by a judge of the district court.

History: Add. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 2004, Act 495, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2018, Act 347, Eff. Jan. 14, 2019

257.252g Manner of conducting public sale; application of money received; priority; absence of bidders; acquisition of distressed vehicle; application for salvage certificate of title; canceling entry in law enforcement information network; obtaining original bill of sale.

Sec. 252g.

(1) Subject to section 252a(18), a public sale for a vehicle and its contents that has been determined to be abandoned under section 252a or removed under section 252d shall be conducted in the following manner:

(a) It shall be under the control of the police agency. However, a police agency may designate the custodian of the vehicle or a third party to conduct the auction.

(b) It shall be open to the public and consist of open auction bidding or bidding by sealed bids. If sealed bids are received, the person submitting the bid shall receive a receipt for the bid from the police agency or the agency's designee or, if the vehicle is being sold under section 252a(18), the custodian of the vehicle.

(c) Except as otherwise provided in sections 252a(18) and (19) and 252b(7), it shall be held not less than 5 days after public notice of the sale has been published.

(d) Except as otherwise provided in this subdivision, the public notice shall be published at least once in a newspaper having a general circulation within the county in which the vehicle was abandoned. The public notice shall give a description of the vehicle for sale and shall state the time, date, and location of the sale. The requirements of this subdivision may be satisfied by publishing a notice of the public auction once in a newspaper having a general circulation within the county in which the auction is to occur, if the notice states that the auction is an abandoned vehicle auction, lists the date, time, and location of the auction, and provides a website address where a complete description of each vehicle to be auctioned appears for not less than 5 consecutive days before the date of the auction. As used in this subdivision, "complete description" means a description of the vehicle's model year, manufacturer make, model name, and vehicle identification number.

(2) The money received from the public sale of the vehicle shall be applied in the following order of priority:

(a) Accrued towing and storage charges. However, if the money received from the public sale does not satisfy the accrued towing and storage charges, the towing company may collect the balance of those unpaid fees from the last titled owner, subject to section 252i.

(b) Expenses incurred by the police agency or the custodian of the vehicle.

(c) Payment of the $40.00 abandoned vehicle fee described in section 252f(3)(a).

(d) Any extra money shall be sent to the department of treasury's unclaimed property division to be disbursed as follows:

(i) To the secured party, if any, in the amount of the debt outstanding on the vehicle.

(ii) Remainder to the owner. A reasonable attempt shall be made to mail the remainder to the last titled owner. If delivery of the remainder cannot be accomplished, the remainder shall become the property of the unit of government governing the location from which the vehicle was towed.

(3) If there are no bidders on the vehicle, the police agency or the custodian of the vehicle may do 1 of the following:

(a) Turn the vehicle over to the towing firm or the custodian of the vehicle to satisfy charges against the vehicle. However, if the value of the vehicle does not satisfy the towing fees and accrued daily storage fees, the custodian of the vehicle may collect the balance of those unpaid fees from the last titled owner, subject to section 252i.

(b) Obtain title to the vehicle for the police agency or the unit of government the police agency represents, by doing the following:

(i) Paying the towing and storage charges.

(ii) Applying for title to the vehicle.

(c) Hold another public sale under subsection (1).

(4) A person who acquires ownership of a vehicle under subsection (1) or (3) that has been designated as a distressed vehicle shall apply for a salvage certificate of title within 15 days after obtaining the vehicle.

(5) Upon disposition of the vehicle, the police agency or towing agency or custodian shall provide the secretary of state and the police agency, if that police agency did not conduct the

sale, with the vehicle's disposition and the name of the agency that disposed of it and the police agency shall cancel the entry in the law enforcement information network.

(6) Not less than 25 days after the date of notice required under section 252a, if the police agency does not provide a copy of the bill of sale by the police agency for the abandoned vehicle to the towing agency or custodian or police agency's designee, the towing agency or custodian or police agency designee may obtain an original of the bill of sale by submitting an application to the secretary of state in a form as determined by the secretary of state.

History: Add. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 2004, Act 493, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2018, Act 347, Eff. Jan. 14, 2019

257.252h Abandoned vehicle fund; creation; sources of funding; investment; interest and earnings; money remaining in fund; expenditures.

Sec. 252h.

(1) The abandoned vehicle fund is created within the state treasury.

(2) The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and other earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) The department of state shall expend money from the fund, upon appropriation, to administer the provisions of this act relating to abandoned vehicles.

History: Add. 2004, Act 495, Eff. Oct. 1, 2005

257.252i Towing and storage fees.

Sec. 252i.

(1) A towing service, custodian of a vehicle, or both, shall not be precluded from the recovery of towing fees or, subject to subsection (2), storage fees from the last titled owner of a vehicle deemed abandoned under section 252a or section 252b, or removed under section 252d.

(2) If a vehicle is released for disposition under section 252b or section 252g, the amount of storage fees that may be collected is whichever 1 of the following is the least amount:

(a) The daily storage rate established by contract or agreement with the law enforcement agency or unit of government that authorized the towing and storage of the vehicle.

(b) The daily storage rate charged by the storage facility.

(c) $1,000.00.

(3) Subsection (2) does not apply to a commercial vehicle or to a vehicle that is owned or leased by an entity other than an individual.

History: Add. 2004, Act 493, Eff. Oct. 1, 2005

257.252j Abandoned vehicles; number and placement of vehicles on private property.

Sec. 252j.

Sections 252a and 252b do not apply to a vehicle that is owned by the same person who owns the private real property on which the vehicle is located and do not prohibit or preempt a local unit of government from regulating the number and placement of vehicles on private property.

History: Add. 2004, Act 493, Eff. Oct. 1, 2005

257.252k Towing or removing vehicle without owner's consent; notice; requirements.

Sec. 252k.

Except as otherwise provided in section 252l, an owner or lessor of private real property shall post a notice that meets all of the following requirements before authorizing the towing or removal of a vehicle from the real property without the consent of the owner or other person who is legally entitled to possess the vehicle:

(a) The notice shall be prominently displayed at each point of entry for vehicular access to the real property. If the real property lacks curbs or access barriers, not less than 1 notice shall be posted for each 100 feet of road frontage.

(b) The notice clearly indicates in letters not less than 2 inches high on a contrasting background that unauthorized vehicles will be towed away at the owner's expense.

(c) The notice provides the name and telephone number of the towing service responsible for towing or removing vehicles from that property.

(d) The notice is permanently installed with the bottom of the notice located not less than 4 feet from the ground and is continuously maintained on the property for not less than 24 hours before a vehicle is towed or removed.

History: Add. 2004, Act 493, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009

257.252l Applicability of MCL 257.252k.

Sec. 252l.

Section 252k does not apply to any of the following:

(a) Real property that is appurtenant to and obviously part of a single- or dual-family residence.

(b) An instance when notice is personally given to the owner or other legally entitled person in control of a vehicle that the area where the vehicle is parked is reserved or otherwise unavailable to unauthorized vehicles and that the vehicle is subject to towing or removal from the private real property without the consent of the owner or other legally entitled person in control of the vehicle.

(c) A vehicle removed from private property under section 252d.

History: Add. 2004, Act 493, Eff. Oct. 1, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009

257.252m Notification of civil fines and sanctions.

Sec. 252m.

For a period of 1 year beginning on the effective date of the amendatory act that added this section, the secretary of state shall insert notification of the civil fines and sanctions that may be imposed for the violation of sections 240 and 252a(1) into all mailings concerning motor vehicle registration renewal notices and new vehicle title documents.

History: Add. 2004, Act 493, Eff. Oct. 1, 2005

257.253 Report of stolen vehicle; filing; transferring certificate of title; record of stolen or abandoned vehicles not reported or recovered; availability; reports by other states of stolen and recovered vehicles; abandoned vehicle; notification of owner and lienholder.

Sec. 253.

(1) The secretary of state, upon receiving a report of a stolen vehicle, shall file the report with the records of the secretary of state and shall not transfer the certificate of title of the vehicle to a person other than the owner's insurance company until officially notified that the vehicle has been recovered.

(2) The secretary of state shall maintain a record of all vehicles stolen or abandoned that have not been reported as recovered and make the record available to every sheriff, the director of the department of state police, and all police departments. The record shall also be made available to proper officials in every state.

(3) It shall be the duty of the secretary of state to file reports of stolen and recovered motor vehicles reported by other states.

(4) In the case of abandoned vehicles, the secretary of state shall check the sheriff's report immediately with the stolen car report file and notify the owner, and the last known lienholder, if any, as shown by the record, by registered mail, that the car is now an abandoned car and held in custody by the officer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 460, Imd. Eff. Jan. 15, 1981

257.254 False statement in application for certificate of title or in assignment of title; possession of stolen vehicle; penalties.

Sec. 254.

Any person who shall knowingly make any false statement of a material fact, either in his or her application for the certificate of title required by this act, or in any assignment of that title, or who, with intent to procure or pass title to a motor vehicle which he or she knows or has reason to believe has been stolen, shall receive or transfer possession of the same from or to another, or who shall have in his or her possession any vehicle which he or she knows or has reason to believe has been stolen, and who is not an officer of the law engaged at the time in the performance of his or her duty as such officer, is guilty of a felony, punishable by a fine of not more than $5,000.00, or by imprisonment for not more than 10 years, or both. This provision shall not be exclusive of any other penalties prescribed by any law for the larceny of the unauthorized taking of a vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1990, Act 98, Eff. Jan. 1, 1991
Constitutionality: The language of this section “or who shall have in his possession any motor vehicle which he knows or has reason to believe has been stolen, and who is not an officer of the law engaged at that time in the performance of his duty as such officer” must necessarily be treated as either surplusage or deemed inconsistent with the intent of MCL 257.1 et seq. and deleted from it. People v Morton, 384 Mich 38; 179 NW2d 379 (1970).

OFFENSES AGAINST REGISTRATION LAWS AND CANCELLATION OF REGISTRATION

257.255 Valid registration plate required; printed or electronic copy; exceptions; violation of subsection (1) as civil infraction or misdemeanor; penalty; nonpayment of apportioned fee under international registration plan as misdemeanor; penalty; impoundment; towing and storage costs; care of load in vehicle; impounded vehicle subject to lien; hearing; certification of unpaid judgment; foreclosure sale; pandemic expiration extension.

Sec. 255.

(1) Except as otherwise provided in this chapter, a person shall not operate, nor shall an owner knowingly permit to be operated, upon any highway, a vehicle required to be registered under this act unless, except as otherwise provided in this subsection, no later than 30 days after the vehicle is registered or the vehicle's registration is renewed, a valid registration plate issued for the vehicle by the department for the current registration year is attached to and displayed on the vehicle as required by this chapter. For purposes of this subsection, a printed or electronic copy of a valid registration or verification of a valid registration through the L.E.I.N. is proof that the vehicle is registered or that the vehicle's registration has been renewed. A registration plate is not required for a wrecked or disabled vehicle, or vehicle destined for repair or junking, that is being transported or drawn on a highway by a wrecker or a registered motor vehicle. The 30-day period described in this subsection does not apply to the first registration of a vehicle after a transfer of ownership or to a transfer registration under section 809.

(2) Except as otherwise provided in this section, a person who violates subsection (1) is responsible for a civil infraction. However, if the vehicle is a commercial vehicle that is required to be registered according to the schedule of elected gross vehicle weights under section 801(1)(k), the person is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $500.00, or both.

(3) A person who operates a vehicle licensed under the international registration plan and does not have a valid registration due to nonpayment of the apportioned fee is guilty of a misdemeanor, punishable by imprisonment for not more than 90 days, or by a fine of not more than $100.00, or both. In addition, a police officer may impound the vehicle until a valid registration is obtained. If the vehicle is impounded, the towing and storage costs of the vehicle, and the care or preservation of the load in the vehicle are the owner's responsibility. Vehicles impounded are subject to a lien in the amount of the apportioned fee and any fine and costs incurred under this subsection, subject to a valid lien of prior record. If the apportioned fee, fine, and costs are not paid within 90 days after impoundment, then following a hearing before the judge or magistrate who imposed the fine and costs, the judge or magistrate shall certify the unpaid judgment to the prosecuting attorney of the county in which the violation occurred. The prosecuting attorney shall enforce the lien by foreclosure sale in accordance with the procedure authorized by law for chattel mortgage foreclosures.

(4) A noncommercial vehicle registration described in subsection (1) that expires on or after March 1, 2020 but is renewed on or before March 31, 2021 is not in violation of this section. A noncommercial vehicle registration described in subsection (1) that expires after March 31, 2021 but before August 1, 2021, but is renewed within 120 days after the date of the expiration is not in violation of this section. A commercial vehicle registration described in subsection (1) that expires on or after March 1, 2020 but is renewed on or before March 31, 2021 is not in violation of this section. A commercial vehicle registration described in subsection (1) that expires after March 31, 2021 but before August 1, 2021, but is renewed within 120 days after the date of the expiration is not in violation of this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1961, Act 26, Imd. Eff. May 11, 1961 ;-- Am. 1962, Act 58, Eff. Mar. 28, 1963 ;-- Am. 1963, Act 88, Eff. Sept. 6, 1963 ;-- Am. 1984, Act 330, Imd. Eff. Dec. 26, 1984 ;-- Am. 1987, Act 34, Eff. Aug. 26, 1987 ;-- Am. 2003, Act 9, Eff. Sept. 1, 2003 ;-- Am. 2018, Act 64, Eff. June 12, 2018 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021
Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.256 Unlawful lending or use of certificate of title, registration certificate, registration plate, special plate, or permit; unlawful carrying or display of registration certificate or plate; violation as misdemeanor; penalty; unlawful display of registration plate on commercial vehicle.

Sec. 256.

(1) A person shall not lend to another person, or knowingly permit the use of, any certificate of title, registration certificate, registration plate, special plate, or permit issued to him or her if the person receiving or using the certificate of title, registration certificate, registration plate, special plate, or permit would not be entitled to the use thereof. A person shall not carry or display upon a vehicle any registration certificate or registration plate not issued for the vehicle or not otherwise lawfully used under this act.

(2) Except as otherwise provided in this section, a person who violates this section is guilty of a misdemeanor, punishable by imprisonment for not more than 90 days, or by a fine of not more than $100.00, or both.

(3) A person who displays upon a commercial vehicle which is required to be registered according to the schedule of elected gross vehicle weights under section 801(1)(k) any registration plate not issued for the vehicle or not otherwise lawfully used under this act is guilty of a misdemeanor, punishable by imprisonment for not more than 90 days, or by a fine of not more than $500.00, or both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1987, Act 34, Eff. Aug. 26, 1987

257.257 Altering, forging, or falsifying documents; violation; penalty.

Sec. 257.

(1) A person who commits any of the following acts is guilty of a felony:

(a) Alters with fraudulent intent a certificate of title, registration certificate, or registration plate issued by the department.

(b) Forges or counterfeits a certificate of title, registration certificate, or registration plate purporting to have been issued by the department.

(c) Alters or falsifies with fraudulent intent or forges an assignment upon a certificate of title.

(d) Holds or uses a certificate of title, registration certificate, or registration plate knowing that it has been altered, forged, or falsified.

(e) Knowingly possesses, sells, or offers for sale a stolen, false, or counterfeit certificate of title, registration certificate, registration plate, registration decal, or registration tab.

(f) Fraudulently indicates on a certificate of title that there is no security interest on record for the vehicle.

(g) Forges or counterfeits a letter from the holder of a security interest in a vehicle stating that the security interest has been released.

(2) A person who is convicted of a second violation of this section shall be punished by imprisonment for not less than 2 years or more than 7 years, or by a fine of not less than $1,500.00 or more than $7,000.00, or both.

(3) A person who is convicted of a third or subsequent violation of this section shall be punished by imprisonment for not less than 5 years or more than 15 years, or by a fine of not less than $5,000.00 or more than $15,000.00, or both.

(4) A person who is convicted of a violation of subsection (1)(f) or (g), in addition to any other penalty, shall pay restitution to the holder of a security interest in the vehicle in the amount of the outstanding lien on the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1992, Act 309, Eff. Mar. 31, 1993 ;-- Am. 2014, Act 289, Eff. Mar. 31, 2015

257.258 Registration or certificate of title; grounds for cancellation; elected gross weight violations; penalty; notice; hearing.

Sec. 258.

(1) The secretary of state may cancel, revoke, or suspend the registration of a vehicle, a certificate of title, registration certificate, or registration plate if any of the following apply:

(a) The secretary of state determines that the registration, certificate of title, or plate was fraudulently or erroneously issued.

(b) The secretary of state determines that the licensee has made or is making an unlawful use of his or her registration certificate, plate, or certificate of title.

(c) A registered vehicle has been dismantled or wrecked.

(d) The secretary of state determines that the required fee has not been paid and it is not paid upon reasonable notice or demand.

(e) A registration certificate or registration plate is knowingly displayed upon a vehicle other than the one for which it was issued.

(f) The secretary of state determines that the owner has committed an offense under this act involving the registration or certificate of title.

(g) The secretary of state is authorized to do so under this act.

(h) Upon receiving notification from another state or foreign country that a certificate of title issued by the secretary of state has been surrendered by the owner in conformity with the laws of that state or foreign country.

(i) It is shown by satisfactory evidence that delivery of a motor vehicle in the possession of a dealer was not made to the applicant registered under this act. The money paid for registration and license fees may be refunded to the party who applies for the refund.

(j) The owner is a motor carrier subject to an out-of-service order. As used in this subdivision, "out-of-service order" means that term as defined in 49 CFR 390.5, and also includes an out-of-service order issued under 49 CFR 386.73. A law enforcement officer may also confiscate a registration plate issued to a motor carrier described in this subdivision.

(2) If the licensee's offense consists of hauling on the registered vehicle a gross weight more than 1,000 pounds in excess of the elected gross weight specified on the owners' registration

certificate, the registration shall be canceled and the vehicle shall not again be operated on the highways, roads, or streets until it is registered again and new plates are issued. The new registration fee shall be computed on the basis of twice the difference between the original registration fee and the registration fee applicable to the gross weight constituting the violation of the elected gross weight. One-half of the new registration fee shall be a penalty. The period of the new registration fee shall not extend beyond the termination date of the canceled registration certificate. The new registration fee shall not exceed the maximum gross weight of the vehicle or combination of vehicles as determined by the number of axles and the legal weight applicable to those axles as specified by section 722. The gross weight of a vehicle or combination of vehicles may be determined by weighing the individual axles or group of axles, and the total weight on all axles is the gross vehicle weight.

(3) Before the secretary of state makes a cancellation under subsection (1)(a), (b), (e), (f), or (g), the person affected by the cancellation shall be given notice and an opportunity to be heard.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1968, Act 214, Eff. Nov. 15, 1968 ;-- Am. 1969, Act 309, Imd. Eff. Aug. 14, 1969 ;-- Am. 1998, Act 347, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2018, Act 74, Eff. June 17, 2018

257.259 Evidence of registration; title; dealers' or wreckers' licenses; return to state on cancellation or suspension; failure or refusal to surrender unlawful.

Sec. 259.

(1) All registration plates, certificates of title, registration certificates or the license of any dealer or wrecker, are the property of this state, shall contain information required by this act, and shall be made in a manner and bear information and be in a configuration as prescribed by the department. When the department cancels or suspends the registration of a vehicle or a certificate of title or the license of any dealer or wrecker as authorized by this act, the owner or person in possession of the same shall immediately return the evidence of the canceled or suspended registration, title, or license to the department.

(2) It is unlawful for any person to fail or refuse to surrender to the department upon demand any registration plate, registration, certificate of title, or license of any dealer as required in this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 2015, Act 11, Eff. July 8, 2015

Chapter III
OPERATOR'S AND CHAUFFEUR'S LICENSE

257.301 Valid operator's or chauffeur's license required; group designation and indorsements; surrender of other valid licenses; notice; number of licenses permitted; certifying nonpossession of valid license; pandemic expiration extension.

Sec. 301.

(1) Except as provided in this act, an individual shall not drive a motor vehicle on a highway in this state unless that individual has a valid operator's or chauffeur's license with the appropriate group designation and indorsements for the type or class of vehicle being driven or

towed. A resident of this state holding a commercial driver license group indorsement issued by another state shall apply for a license transfer within 30 days after establishing domicile in this state.

(2) An individual shall not receive a license to operate a motor vehicle until that individual surrenders to the secretary of state all valid licenses to operate a motor vehicle issued to that individual by this or any state or certifies that he or she does not possess a valid license. The secretary of state shall notify the issuing state that the licensee is now licensed in this state.

(3) An individual shall not have more than 1 valid driver license.

(4) An individual shall not drive a motor vehicle as a chauffeur unless that individual holds a valid chauffeur's license. An individual shall not receive a chauffeur's license until that individual surrenders to the secretary of state a valid operator's or chauffeur's license issued to that individual by this or any state or certifies that he or she does not possess a valid license.

(5) An individual holding a valid chauffeur's license need not procure an operator's license.

(6) An operator's or chauffeur's license that expires on or after March 1, 2020 is valid until March 31, 2021. An operator's or chauffeur's license that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1967, Act 7, Imd. Eff. Apr. 21, 1967 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.302 Operators' and chauffeurs' licenses; persons exempt.

Sec. 302.

The following persons are exempt from obtaining a license under this chapter:

(a) A person serving in the Armed Forces of the United States if furnished with a driver's permit and operating an official motor vehicle in that service or a person who is a military driver and operates a commercial motor vehicle for a military purpose. This exemption applies to active duty military personnel, members of the military reserves, active duty United States Coast Guard personnel, and members of the national guard while on active duty, including, but not limited to, personnel on full-time national guard duty, personnel on part-time national

guard training, and national guard military technicians who are civilians required to wear military uniforms. This exemption does not apply to any of the following:

(i) United States reserve technicians.

(ii) Except as otherwise provided in this subdivision, a person who is a civilian and in the employ of the Armed Forces of the United States.

(b) A person while driving or operating a road roller, a snow motor, road machinery, or a farm tractor or implement of husbandry temporarily drawn, moved, or propelled on a highway, if the person is a citizen of the United States or is otherwise eligible to be issued an operator's license or chauffeur's license under section 307(1).

(c) A nonresident who is not less than 16 years of age and who has been licensed either as an operator or a chauffeur under a law requiring the licensing of operators or chauffeurs in his or her home state and who has in his or her immediate possession either a valid operator's or a valid chauffeur's license issued to him or her in his or her home state.

(d) A nonresident who is over the age of 17 years, whose home state does not require the licensing of operators, may operate a motor vehicle as an operator only, for a period of not more than 90 days in any calendar year, if all of the following apply:

(i) The motor vehicle is registered in the home state or country of the nonresident.

(ii) The nonresident has in his or her immediate possession a registration card evidencing ownership and registration of the motor vehicle in his or her home state or country, or is able at any time or place required to prove lawful possession or the right to operate the motor vehicle and to establish his or her proper identity.

(iii) The nonresident is a citizen of the United States or is otherwise eligible to be issued an operator's license or chauffeur's license under section 307(1).

(e) A person who is a member of the Armed Forces of the United States on official leave, who on the date of his or her orders granting leave possessed an operator's or chauffeur's license, valid except for the expiration date of the license. This exemption applies only to the person's first leave of absence following the expiration of his or her license and exempts the person from the provisions of this act for a period not to exceed 30 days.

(f) A person who is a discharged member of the Armed Forces of the United States, who on the date of his or her discharge possesses an operator's or chauffeur's license, valid except for the expiration date, for a period not to exceed 30 days from date of discharge.

(g) A person who is a member of the Armed Forces of the United States, stationed in this state, who resides in another state and has a valid license issued by the state in which he or she resides.

(h) A person while operating a commercial motor vehicle in the course of a driving test administered by a certified examiner appointed by the secretary of state and while accompanied by the examiner, if the person is a citizen of the United States or is otherwise eligible to be issued an operator's license or chauffeur's license under section 307(1).

(i) A person while operating a commercial motor vehicle who is not disqualified from operating a commercial motor vehicle and who holds a commercial driver license that is issued to him or her by another state or jurisdiction under 49 CFR part 383.

(j) A person with a mobility disability while operating a power-driven mobility device. This subdivision does not apply to a person with a mobility disability while operating a power-driven mobility device on a street, road, or highway in this state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1968, Act 90, Imd. Eff. June 4, 1968 ;-- Am. 1972, Act 89, Imd. Eff. Mar. 20, 1972 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2018, Act 428, Eff. Mar. 20, 2019

257.302a Nonresident using license to operate motor vehicle issued by another country; establishment of unique driver record; reciprocal agreement.

Sec. 302a.

(1) Except as otherwise provided by this act, and as provided in this section, a nonresident operator of a motor vehicle who is the holder of a license to operate a motor vehicle issued by a country other than the United States is not required to obtain a license to operate a passenger vehicle in this state if he or she does not receive compensation for such operation. The nonresident operator may operate a motor vehicle in compliance with otherwise applicable state and federal law using the license to operate a motor vehicle issued by a country other than the United States if the country that issued the nonresident operator's license is a party to an international treaty, convention, or agreement regulating traffic, driving, or the operation of motor vehicles to which the United States or this state is also a party, according to the terms of that treaty, convention, or agreement. If the issuing country is not a party to a treaty, convention, or agreement described in this subsection, the nonresident operator may operate a motor vehicle using the license issued by his or her home country if he or she would otherwise be able to satisfy the requirements of section 307(1) except for any requirement to establish an address in this state or residency. While operating a passenger vehicle in this state, a nonresident operator who is the holder of a license to operate a motor vehicle issued by a country other than the United States shall have in his or her immediate possession his or her valid license to operate a motor vehicle issued by that country and, if no English translation appears on the front or back of the license, 1 of the following:

(a) A valid international driving permit.

(b) If the license to operate a motor vehicle is issued by a country that does not permit the issuance of an international driving permit, a document containing a photo and an English translation that substantially corresponds to an international driving permit, which shall be used solely to properly identify the individual appearing on the license for the purpose of enforcing this act.

(2) The secretary of state shall establish a unique driver record for an individual upon receipt of an abstract of conviction for any offense committed in violation of this act by that individual who is operating a motor vehicle in this state as provided in subsection (1). The operation of a motor vehicle in this state by an individual who possesses a valid license to operate a motor vehicle issued by a country other than the United States is subject to this act.

(3) An individual for whom a unique driver record has been created under subsection (2) is subject to all fees, fines, restrictions, and enforcement as if he or she were licensed under this act.

(4) Nothing in this section prohibits the secretary of state from entering into a reciprocal agreement and exchanging letters confirming the extension of privileges to operate vehicles with another country.

(5) The secretary of state shall publish on its website a list of the countries with which it has entered into a reciprocal agreement described in subsection (4).

History: Add. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2016, Act 138, Eff. Mar. 29, 2017

257.303 Operator's or chauffeur's license; issuance; prohibitions; revocation; denial of license; multiple convictions or civil infractions; "felony in which a motor vehicle was used" defined.

Sec. 303.

(1) The secretary of state shall not issue a license under this act to any of the following individuals:

(a) An individual, as an operator, who is less than 18 years of age, except as otherwise provided in this act.

(b) An individual, as a chauffeur, who is less than 18 years of age, except as otherwise provided in this act.

(c) An individual whose license is suspended, revoked, denied, or canceled in any state. If the suspension, revocation, denial, or cancellation is not from the jurisdiction that issued the last license to the individual, the secretary of state may issue a license after the expiration of 5 years from the effective date of the most recent suspension, revocation, denial, or cancellation.

(d) An individual who in the opinion of the secretary of state is afflicted with or suffering from a physical or mental disability or disease that prevents the individual from exercising reasonable and ordinary control over a motor vehicle while operating the motor vehicle on the highways.

(e) An individual who is unable to understand highway warning or direction signs in the English language.

(f) An individual who is unable to pass a knowledge, skill, or ability test administered by the secretary of state in connection with issuing an original operator's or chauffeur's license, original motorcycle indorsement, or an original or renewal of a vehicle group designation or vehicle indorsement.

(g) A nonresident, including, but not limited to, a foreign exchange student.

(h) An individual who has failed to answer a citation or notice to appear in court or for any matter pending or fails to comply with an order or judgment of the court, including, but not limited to, paying all fines, costs, fees, and assessments, in violation of section 321a, until that individual answers the citation or notice to appear in court or for any matter pending or complies with an order or judgment of the court, including, but not limited to, paying all fines, costs, fees, and assessments, as provided under section 321a.

(i) An individual not licensed under this act who has been convicted of, has received a juvenile disposition for, or has been determined responsible for a crime or civil infraction described in section 319, 324, or 904. An individual shall be denied a license under this subdivision for the length of time corresponding to the period of the licensing sanction that would have been imposed under section 319, 324, or 904 if the individual had been licensed at the time of the violation.

(j) An individual not licensed under this act who is determined to have violated section 624a or 624b. The individual shall be denied a license under this subdivision for a period of time that corresponds to the period of the licensing sanction that would have been imposed under those sections had the individual been licensed at the time of the violation.

(k) An individual whose commercial driver license application is canceled under section 324(2).

(l) Unless otherwise eligible under section 307(1), an individual who is not a citizen of the United States.

(2) On receiving the appropriate records of conviction, the secretary of state shall revoke the operator's or chauffeur's license of an individual and deny issuance of an operator's or

chauffeur's license to an individual who has any of the following, whether under a law of this state, a local ordinance that substantially corresponds to a law of this state, a law of another state that substantially corresponds to a law of this state, or, beginning October 31, 2010, a law of the United States that substantially corresponds to a law of this state:

(a) Any combination of 2 convictions within 7 years for reckless driving in violation of section 626 before October 31, 2010 or, beginning October 31, 2010, 626(2).

(b) Any combination of 2 or more convictions within 7 years for any of the following:

(i) A felony in which a motor vehicle was used.

(ii) A violation or attempted violation of section 601b(2) or (3), section 601c(1) or (2), section 602a(4) or (5), section 617, section 653a(3) or (4), or section 904(4) or (5).

(iii) Negligent homicide, manslaughter, or murder that results from the operation of a vehicle or an attempt to commit any of those crimes.

(iv) A violation or attempted violation of section 479a(4) or (5) of the Michigan penal code, 1931 PA 328, MCL 750.479a.

(c) Any combination of 2 convictions within 7 years for any of the following or a combination of 1 conviction for a violation or attempted violation of section 625(6) and 1 conviction for any of the following within 7 years:

(i) A violation or attempted violation of section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(ii) A violation or attempted violation of section 625m.

(iii) A violation or attempted violation of former section 625b.

(d) One conviction for a violation or attempted violation of section 315(5), section 601b(3), section 601c(2), section 602a(4) or (5), section 617, section 625(4) or (5), section 653a(4), section 904(4) or (5), or, beginning October 31, 2010, section 626(3) or (4).

(e) One conviction of negligent homicide, manslaughter, or murder that results from the operation of a vehicle or an attempt to commit any of those crimes.

(f) One conviction for a violation or attempted violation of section 479a(4) or (5) of the Michigan penal code, 1931 PA 328, MCL 750.479a.

(g) Any combination of 3 convictions within 10 years for any of the following or 1 conviction for a violation or attempted violation of section 625(6) and any combination of 2 convictions for any of the following within 10 years, if any of the convictions resulted from an arrest on or after January 1, 1992:

(i) A violation or attempted violation of section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(ii) A violation or attempted violation of section 625m.

(iii) A violation or attempted violation of former section 625b.

(3) The secretary of state shall revoke a license under subsection (2) notwithstanding a court order unless the court order complies with section 323.

(4) Except as otherwise provided under section 304, the secretary of state shall not issue a license under this act to an individual whose license has been revoked under this act or revoked and denied under subsection (2) until all of the following occur, as applicable:

(a) The later of the following:

(i) The expiration of not less than 1 year after the license was revoked or denied.

(ii) The expiration of not less than 5 years after the date of a subsequent revocation or denial occurring within 7 years after the date of any prior revocation or denial.

(b) For a denial under subsection (2)(a), (b), (c), and (g), the individual rebuts by clear and convincing evidence the presumption that results from the prima facie evidence that the individual is a habitual offender. The convictions that resulted in the revocation and denial constitute prima facie evidence that the individual is a habitual offender.

(c) The individual meets the requirements of the department.

(5) The secretary of state shall deny issuing a vehicle group designation to an individual under either of the following circumstances:

(a) The individual has been disqualified by the United States Secretary of Transportation from operating a commercial motor vehicle.

(b) Beginning on and after January 30, 2012, the individual does not meet the requirements of the federal regulations under 49 CFR parts 383 and 391 by refusing to certify the type of commercial motor vehicle operation the individual intends to perform and, if required, fails to present to the secretary of state a valid medical certification.

(6) Multiple convictions or civil infraction determinations that result from the same incident must be treated as a single violation for purposes of denial or revocation of a license under this section.

(7) As used in this section, "felony in which a motor vehicle was used" means a felony during the commission of which the individual operated a motor vehicle and while operating the vehicle presented real or potential harm to individuals or property and 1 or more of the following circumstances existed:

(a) The vehicle was used as an instrument of the felony.

(b) The vehicle was used to transport a victim of the felony.

(c) The vehicle was used to flee the scene of the felony.

(d) The vehicle was necessary for the commission of the felony.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1961, Act 123, Eff. Sept. 8, 1961 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1983, Act 216, Imd. Eff. Nov. 11, 1983 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1996, Act 587, Eff. June 1, 1997 ;-- Am. 1998, Act 351, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2001, Act 103, Eff. Oct. 1, 2001 ;-- Am. 2001, Act 159, Eff. Feb. 1, 2002 ;-- Am. 2002, Act 422, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2005, Act 142, Imd. Eff. Sept. 29, 2005 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2008, Act 462, Eff. Oct. 31, 2010 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 306, Imd. Eff. Oct. 1, 2012 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2024, Act 42, Eff. Apr. 2, 2025

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of

this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.303a Suspension, revocation, denial, disqualification, or cancellation of license by another state.

Sec. 303a.

Except as otherwise provided in this act, the suspension, revocation, denial, disqualification, or cancellation of an operator's license, chauffeur's license, or commercial driver license by another state or the United States shall run concurrently with a suspension, revocation, denial, disqualification, or cancellation of an operator's license, chauffeur's license, or commercial driver license by this state that is imposed for the same offense.

History: Add. 2006, Act 298, Imd. Eff. July 20, 2006
Compiler's Notes: Former MCL 257.303a, which pertained to mental or physical infirmities or disabilities, was repealed by Act 76 of 1989, Imd. Eff. June 16, 1989.

257.304 Restricted license; issuance; conditions; carrying and displaying restricted license; order; prohibition; completion of specialty court interlock program and certificate as evidence of abstinence; "certificate" defined; imposition of license sanctions; completion of specialty court program; exemption from immobilization or forfeiture; applicability of section.

Sec. 304.

(1) Except as provided in subsection (3), the secretary of state shall issue a restricted license to an individual whose license was suspended or restricted under section 319 or revoked or denied under section 303 based on either of the following:

(a) Two or more convictions for violating section 625(1) or (3) or a local ordinance of this state that substantially corresponds to section 625(1) or (3).

(b) One conviction for violating section 625(1) or (3) or a local ordinance of this state that substantially corresponds to section 625(1) or (3), preceded by 1 or more convictions for violating a local ordinance or law of another state that substantially corresponds to section 625(1), (3), or (6), or a law of the United States that substantially corresponds to section 625(1), (3), or (6).

(2) A restricted license issued under subsection (1) must not be issued until after the individual's operator's or chauffeur's license has been suspended or revoked for 45 days and the judge assigned to a specialty court certifies to the secretary of state that both of the following conditions have been met:

(a) The individual has been admitted into a specialty court interlock program.

(b) An ignition interlock device approved, certified, and installed as required under sections 625k and 625l has been installed on each motor vehicle owned or operated, or both, by the individual.

(3) A restricted license must not be issued under subsection (1) if the individual is otherwise ineligible for an operator's or chauffeur's license under this act, unless the individual's ineligibility is based on 1 or more of the following:

(a) Section 303(1)(h) or (j).

(b) Section 303(2)(c)(i) or (iii).

(c) Section 303(2)(g)(i) or (iii).

(d) Section 319(4), (5), (6), (7), (8)(a) to (e), or (9).

(e) Section 320(1)(d).

(f) Section 321a(1) or (2).

(g) Section 323c.

(h) Section 625f.

(i) Section 904(10).

(j) Section 82105a(2) of the natural resources and environmental protection act, 1994 PA 451, MCL 324.82105a.

(k) Section 3177 of the insurance code of 1956, 1956 PA 218, MCL 500.3177.

(l) Section 10 of the motor vehicle accident claims act, 1965 PA 198, MCL 257.1110.

(4) A restricted license issued under subsection (1) permits the individual to whom it is issued to operate only the vehicle equipped with an ignition interlock device described in subsection (2)(b), to take any driving skills test required by the secretary of state, and to drive to and from any combination of the following locations or events:

(a) In the course of the individual's employment or occupation if the employment or occupation does not require a commercial driver license.

(b) To and from any combination of the following:

(i) The individual's residence.

(ii) The individual's work location.

(iii) An alcohol, drug, or mental health education and treatment as ordered by the court.

(iv) Alcoholics Anonymous, Narcotics Anonymous, or other court-ordered self-help programs.

(v) Court hearings and probation appointments.

(vi) Court-ordered community service.

(vii) An educational institution at which the individual is enrolled as a student.

(viii) A place of regularly occurring medical treatment for a serious condition or medical emergency for the individual or a member of the individual's household or immediate family.

(ix) Alcohol or drug testing as ordered by the court.

(x) An ignition interlock service provider as required.

(xi) At the discretion of the judge, the custodian of a minor child may drive to and from the facilities of a provider of day care services at which the custodian's minor child is enrolled, or an educational institution at which the custodian's minor child is enrolled as a student for the purposes of classes, academic meetings or conferences, and athletic or other extracurricular activities sanctioned by the educational institution in which the minor child is a participant. As used in this subparagraph, "minor child" means an individual who is less than 18 years of age.

(5) While driving with a restricted license, the individual shall carry proof of the individual's destination and the hours of any employment, class, or other reason for traveling and shall display that proof on a peace officer's request.

(6) Except as otherwise provided in this section, a restricted license issued under subsection (1) is effective until a hearing officer orders an unrestricted license under section 322. Subject to subsection (7), the hearing officer shall not order an unrestricted license until the later of the following events occurs:

(a) The court notifies the secretary of state that the individual has successfully completed the specialty court program.

(b) The minimum period of license sanction that would have been imposed under section 303 or 319 but for this section has been completed.

(c) The individual demonstrates that the individual has operated with an ignition interlock device for not less than 1 year.

(d) The individual satisfies the requirements of section 303 and R 257.313 of the Michigan Administrative Code.

(7) A hearing officer shall not issue an unrestricted license for at least 1 year if either of the following applies:

(a) The hearing officer determines that the individual consumed any alcohol during the period that the individual's license was restricted under this section, as determined by breath, blood, urine, or transdermal testing unless a second test, administered within 5 minutes after administering the first test, showed an absence of alcohol.

(b) The hearing officer determines that the individual consumed or otherwise used any controlled substance during the period that the individual's license was restricted under this section, except as lawfully prescribed.

(8) In determining whether to order an unrestricted license under subsection (6), the successful completion of the specialty court program and a certificate from the specialty court judge must be considered positive evidence of the petitioner's abstinence while the petitioner participated in the specialty court program. This subsection does not apply to a determination made under subsection (7). As used in this subsection, "certificate" includes, but is not limited to, a statement that the participant has maintained a period of abstinence from alcohol for not less than 6 months at the time the participant completed the specialty court program.

(9) If the secretary of state receives a notification from a specialty court, the secretary of state shall summarily impose 1 of the following license sanctions, as applicable:

(a) Suspension for the full length of time provided under section 319(8). However, a restricted license must not be issued as provided under section 319(8). This subdivision applies if the underlying conviction or convictions would have subjected the individual to a license sanction under section 319(8) if this section did not apply.

(b) A license revocation and denial for the full length of time provided under section 303. The minimum period of license revocation and denial imposed must be the same as if this section did not apply. This subdivision applies if the underlying conviction or convictions would have caused a license revocation and denial under section 303 if this section did not apply.

(10) After the individual completes the specialty court program, the following apply:

(a) The secretary of state shall postpone considering the issuance of an unrestricted license under section 322 for a period of 3 months for each act that would be a minor violation if the individual's license had been issued under section 322(6). As used in this subdivision, "minor violation" means that term as defined in R 257.301a of the Michigan Administrative Code.

(b) The restricted license issued under this section must be suspended or revoked or denied as provided in subsection (9), unless set aside under section 322(5), if any of the following events occur:

(i) The individual operates a motor vehicle without an ignition interlock device that meets the criteria under subsection (2)(b).

(ii) The individual removes, or causes to be removed, an ignition interlock device from a vehicle the individual owns or operates unless the secretary of state has authorized its removal under section 322a.

(iii) The individual commits any other act that would be a major violation if the individual's license had been issued under section 322(6). As used in this subparagraph, "major violation" means that term as defined in R 257.301a of the Michigan Administrative Code.

(iv) The individual is arrested for a violation of any of the following:

(A) Section 625.

(B) A local ordinance of this state or another state that substantially corresponds to section 625.

(C) A law of the United States that substantially corresponds to section 625.

(c) If the individual is convicted of or found responsible for any offense that requires the suspension, revocation, denial, or cancellation of the individual's operator's or chauffeur's license, the restricted license issued under this section must be suspended until the requisite period of license suspension, revocation, denial, or cancellation, as appropriate, has elapsed.

(d) If the individual has failed to pay any court-ordered fines or costs that resulted from the operation of a vehicle, the restricted license issued under this section must be suspended pending payment of those fines and costs.

(11) The vehicle of an individual admitted to the specialty court interlock program whose vehicle would otherwise be subject to immobilization or forfeiture under this act is exempt from both immobilization and forfeiture under sections 625n and 904d if both of the following apply:

(a) The individual is a specialty court interlock program participant in good standing or the individual successfully satisfactorily completes the specialty court interlock program.

(b) The individual does not subsequently violate a law of this state for which vehicle immobilization or forfeiture is a sanction.

(12) This section only applies to individuals arrested for a violation of section 625 on or after January 1, 2011.

History: Add. 2010, Act 155, Eff. Jan. 1, 2011 ;-- Am. 2012, Act 306, Imd. Eff. Oct. 1, 2012 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2013, Act 226, Imd. Eff. Dec. 26, 2013 ;-- Am. 2016, Act 32, Eff. June 6, 2016 ;-- Am. 2017, Act 162, Eff. Feb. 11, 2018 ;-- Am. 2018, Act 48, Imd. Eff. Mar. 1, 2018 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2023, Act 125, Imd. Eff. Sept. 19, 2023 ;-- Am. 2024, Act 42, Eff. Apr. 2, 2025 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025

Compiler's Notes: Former MCL 257.304, which pertained to report of name change, was repealed by Act 172 of 2000, Imd. Eff. June 20, 2000.Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.305, 257.305a Repealed. 1990, Act 188, Eff. Aug. 15, 1990.

Compiler's Notes: The repealed sections pertained to qualifications of school bus drivers.

257.306 Temporary instruction permit; operation of motor vehicle without operator's license or permit; pandemic expiration extension; temporary driver education certificate; motorcycle temporary instruction permit.

Sec. 306.

(1) The secretary of state, on receiving an application for a temporary instruction permit from an individual who is 18 years of age or older, may issue that permit that entitles the applicant, while carrying the permit, to drive a motor vehicle other than a motor vehicle

requiring an indorsement under section 312a or a vehicle group designation under section 312e on the highways for a period of 180 days when accompanied by a licensed adult operator or chauffeur who is actually occupying a seat beside the driver. A temporary instruction permit issued under this subsection that expires on or after March 1, 2020 is valid until March 31, 2021. A temporary instruction permit issued under this subsection that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(2) The secretary of state may issue an original operator's license and designate level 1, 2, or 3 graduated licensing provisions to an individual who is less than 18 years of age, has been licensed in another state or country, and has satisfied the applicable requirements of section 310e. An original operator's license with a designated level 1, 2, or 3 graduated licensing provision issued under this subsection that expires on or after March 1, 2020 is valid until March 31, 2021. An original operator's license with a designated level 1, 2, or 3 graduated licensing provision issued under this subsection that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(3) A student enrolled in a driver education course as that term is defined in section 3 of the driver education provider and instructor act, 2006 PA 384, MCL 256.623, or a motorcycle safety course approved by the department of state may operate a motor vehicle that does not require a group designation under section 312e without holding an operator's license or permit while under the direct supervision of the program instructor.

(4) A student enrolled in a driver education course as that term is defined in section 3 of the driver education provider and instructor act, 2006 PA 384, MCL 256.623, and who has successfully completed 10 hours of classroom instruction and the equivalent of 2 hours of behind-the-wheel training may be issued a temporary driver education certificate furnished by the department of state that authorizes a student to drive a motor vehicle, other than a motor vehicle that requires an indorsement under section 312a or a vehicle group designation under section 312e, when accompanied by a licensed parent or guardian, or when accompanied by a nonlicensed parent or guardian and a licensed adult for the purpose of receiving additional instruction until the end of the student's driver education course. A temporary driver education certificate issued under this subsection that expires on or after March 1, 2020 is valid until March 31, 2021. A temporary driver education certificate issued under this subsection that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(5) Beginning January 1, 2015, the secretary of state, on receiving proper application from an individual 16 or 17 years of age who is enrolled in or has successfully completed an approved motorcycle safety course under section 811a, or an individual who is 18 years of age or older and who holds a valid operator's or chauffeur's license, may issue a motorcycle temporary instruction permit that entitles the applicant, while carrying the permit, to operate a motorcycle on the public streets and highways for a period of 180 days under the following conditions:

(a) The applicant shall operate the motorcycle under the constant visual supervision of a licensed motorcycle operator who is at least 18 years of age.

(b) The applicant shall not operate the motorcycle at night.

(c) The applicant shall not operate the motorcycle with a passenger.

(d) The applicant shall not be eligible for more than 2 motorcycle temporary instruction permits in a 10-year period.

(6) A motorcycle temporary instruction permit issued under subsection (5) that expires on or after March 1, 2020 is valid until March 31, 2021. A motorcycle temporary instruction permit

issued under subsection (5) that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1956, Act 60, Imd. Eff. Apr. 2, 1956 ;-- Am. 1957, Act 141, Imd. Eff. May 28, 1957 ;-- Am. 1972, Act 61, Imd. Eff. Mar. 1, 1972 ;-- Am. 1976, Act 24, Imd. Eff. Feb. 27, 1976 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1979, Act 8, Imd. Eff. May 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1980, Act 335, Imd. Eff. Dec. 23, 1980 ;-- Am. 1982, Act 187, Eff. Jan. 1, 1984 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 1999, Act 40, Imd. Eff. June 9, 1999 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 71, Imd. Eff. Apr. 20, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2014, Act 120, Eff. Jan. 1, 2015 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989. “(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.306a Commercial learner's permit; pandemic expiration extension.

Sec. 306a.

(1) The secretary of state may issue a commercial learner's permit that entitles an individual to drive a vehicle requiring a vehicle group designation or endorsement under section 312e if all of the following apply:

(a) The individual submits a proper application and meets the requirements of 49 CFR part 383.

(b) The individual is 18 years of age or older.

(c) The individual holds a valid operator's or chauffeur's license that is not a restricted license.

(d) The individual passes the knowledge tests for an original vehicle group designation or endorsement, as required by 49 CFR part 383.

(e) If the individual is applying for a hazardous materials endorsement, he or she has been approved for the hazardous materials endorsement by the Federal Transportation Security Administration.

(2) An individual issued a commercial learner's permit under subsection (1), or an equivalent commercial learner's permit issued by another jurisdiction, may operate a vehicle

requiring a vehicle group designation or endorsement under section 312e, if all of the following apply:

(a) The individual has the permit and a valid operator's or chauffeur's license in his or her possession while operating the vehicle on a public roadway.

(b) The individual is accompanied by an instructor certified under the driver education provider and instructor act, 2006 PA 384, MCL 256.621 to 256.705, and all of the following apply:

(i) The instructor has in his or her possession a valid license with a vehicle group designation and any endorsement necessary to operate the vehicle as provided in section 312e.

(ii) The instructor is at all times physically present in the front seat of the vehicle next to the operator or, in the case of a passenger vehicle, directly behind the operator or in the first row behind the operator.

(iii) The instructor has the operator under observation and direct supervision.

(c) The individual shall not operate a vehicle transporting hazardous materials as defined in 49 CFR part 383.

(d) If the individual has a permit to operate a tank vehicle, the individual may only operate an empty tank vehicle and shall not operate any tank vehicle that previously contained hazardous materials unless the tank has been purged of all hazardous material residue.

(e) If the individual has a permit to operate a vehicle designed to carry 16 or more passengers or a school bus, the individual shall not operate a vehicle designed to carry 16 or more passengers or a school bus with any passengers other than the following individuals:

(i) The instructor described in this section.

(ii) Federal or state auditors or inspectors.

(iii) Test examiners.

(iv) Other trainees.

(3) Beginning October 1, 2021, a commercial learner's permit issued under this section is valid for 1 year from the date of issuance.

(4) Notwithstanding subsection (3), a commercial learner's permit issued under this section that expires on or after March 1, 2020 is valid until March 31, 2021. Notwithstanding subsection (3), a commercial learner's permit issued under this section that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

History: Add. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021 ;-- Am. 2022, Act 193, Imd. Eff. Oct. 4, 2022

Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.307 Application for operator's or chauffeur's license to operate noncommercial motor vehicle; documents to be supplied to verify citizenship or identity and legal presence; manner; contents; image and signature; voter registration opt-out; equipment; signature and certification; application fee; duties of secretary of state; donor registry; driving record from another jurisdiction; operation of commercial motor vehicle; application for original, renewal, or upgrade of vehicle group designation or indorsement; verification of identity and citizenship or residency; issuing renewal license by mail or other methods; information manual; Social Security number; electronic access to donor registry; agreements with federal government; termination of license issued by another state; duties of secretary of state; access to prisoner information.

Sec. 307.

(1) If an applicant for an operator's license or chauffeur's license to operate a noncommercial motor vehicle is a citizen of the United States, the applicant shall supply a photographic identity document, a birth certificate, or other sufficient documents as the secretary of state may require, to verify the identity and citizenship of the applicant. If an applicant for an operator's or chauffeur's license is not a citizen of the United States, the applicant shall supply a photographic identity document and other sufficient documents to verify the identity of the applicant and the applicant's legal presence in the United States under subdivision (b). The documents required under this subsection must include the applicant's full legal name, date of birth, and address and residency and demonstrate that the applicant is a citizen of the United States or is legally present in the United States. If the applicant's full legal name differs from the name of the applicant that appears on a document presented under this subsection, the applicant shall present documents to verify the applicant's current full legal name. The secretary of state shall accept as 1 of the required identification documents an identification card issued by the department of corrections to prisoners who are placed on parole or released from a correctional facility, containing the prisoner's legal name, photograph, and other information identifying the prisoner as provided in section 37(4) of the corrections code of 1953, 1953 PA 232, MCL 791.237. An application for an operator's or chauffeur's license must be made in a manner prescribed by the secretary of state and must contain all of the following:

(a) The applicant's full legal name, date of birth, residence address, height, sex, eye color, signature, intent to make an anatomical gift, other information required or permitted on the license under this chapter, and, only to the extent required to comply with federal law, the applicant's Social Security number. The applicant may provide a mailing address if the applicant receives mail at an address different from the applicant's residence address.

(b) If the applicant is not a citizen of the United States, the applicant shall provide, and the department shall verify, documents demonstrating the applicant's legal presence in the United States. Nothing in this act must obligate or be construed to obligate this state to comply with title II of the real ID act of 2005, Public Law 109-13. The secretary of state may adopt rules under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, as are necessary for the administration of this subdivision. A determination by the secretary of state that an applicant is not legally present in the United States may be appealed under section 631 of the revised judicature act of 1961, 1961 PA 236, MCL 600.631. The secretary of state shall not issue an operator's license or a chauffeur's license to an applicant described in this subdivision for a term that exceeds the duration of the applicant's legal presence in the United States.

(c) The following notice must be included to inform the applicant that under sections 509o and 509r of the Michigan election law, 1954 PA 116, MCL 168.509o and 168.509r, the secretary of state is required to use the residence address provided on this application as the applicant's residence address on the qualified voter file for voter registration and voting:

"NOTICE: Michigan law requires that the same address be used for voter registration and driver license purposes. Therefore, if the residence address you provide in this application differs from your voter registration address as it appears on the qualified voter file, the secretary of state will automatically change your voter registration to match the residence address on this application, after which your voter registration at your former address will no longer be valid for voting purposes. A new voter registration card, containing the information of your polling place, will be provided to you by the clerk of the jurisdiction where your residence address is located.".

(d) For an original or renewal operator's or chauffeur's license with a vehicle group designation or indorsement, the names of all states where the applicant has been licensed to drive any type of motor vehicle during the previous 10 years.

(e) For an operator's or chauffeur's license with a vehicle group designation or indorsement, the following certifications by the applicant:

(i) The applicant meets the applicable federal driver qualification requirements under 49 CFR parts 383 and 391 or meets the applicable qualifications of the department of state police under the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(ii) The vehicle in which the applicant will take the driving skills tests is representative of the type of vehicle the applicant operates or intends to operate.

(iii) The applicant is not subject to disqualification by the United States Secretary of Transportation, or a suspension, revocation, or cancellation under any state law for conviction of an offense described in section 312f or 319b.

(iv) The applicant does not have a driver's license from more than 1 state or jurisdiction.

(f) An applicant for an operator's or chauffeur's license with a vehicle group designation and a hazardous material indorsement shall provide the applicant's fingerprints as prescribed by state and federal law.

(g) Only for voter registration transactions under section 493a(6) of the Michigan election law, 1954 PA 116, MCL 168.493a, a space for the applicant to indicate on the application or change of address application whether the applicant is a citizen of the United States.

(h) Only for voter registration transactions under section 493a(6) of the Michigan election law, 1954 PA 116, MCL 168.493a, a space to allow the applicant to indicate that the applicant declines to use the application as a voter registration application.

(i) Beginning June 27, 2021, an applicant for an operator's or chauffeur's license who is a program participant in the address confidentiality program under the address confidentiality program act, 2020 PA 301, MCL 780.851 to 780.873, shall present to the secretary of state the applicant's participation card issued under the address confidentiality program act, 2020 PA 301, MCL 780.851 to 780.873.

(2) An applicant for an operator's or chauffeur's license may have the applicant's image and signature captured or reproduced when the application for the license is made. The secretary of state shall acquire equipment purchased or leased under this section under standard purchasing procedures of the department of technology, management, and budget based on standards and specifications established by the secretary of state. The secretary of state shall not purchase or lease equipment until an appropriation for the equipment has been made by the legislature. A digital photographic image and signature captured under this section must appear on the

applicant's operator's license or chauffeur's license. An individual's digital photographic image and signature shall be used as follows:

(a) By a federal, state, or local governmental agency for a law enforcement purpose authorized by law.

(b) By the secretary of state for a use specifically authorized by law.

(c) By the secretary of state for forwarding to the department of state police the images of individuals required to be registered under the sex offenders registration act, 1994 PA 295, MCL 28.721 to 28.730, on the department of state police providing the secretary of state an updated list of the names of those individuals.

(d) By the secretary of state for forwarding to the department of state police as provided in section 5c of 1927 PA 372, MCL 28.425c.

(e) By the secretary of state for forwarding to the department of licensing and regulatory affairs the images of applicants for an official state registry identification card issued under section 6 of the Michigan Medical Marihuana Act, 2008 IL 1, MCL 333.26426, if the department of licensing and regulatory affairs promulgates rules requiring a photograph as a design element for an official state registry identification card.

(f) As necessary to comply with a law of this state or of the United States.

(3) An application must contain a signature or verification and certification by the applicant, as determined by the secretary of state, and must be accompanied by the proper fee. The secretary of state shall collect the application fee with the application. The secretary of state shall refund the application fee to the applicant if the license applied for is denied, but shall not refund the fee to an applicant who fails to complete the examination requirements of the secretary of state within 90 days after the date of application for a license.

(4) In conjunction with the application for an original or renewal operator's license or chauffeur's license, the secretary of state shall do all of the following:

(a) If the applicant is not a participant in the anatomical gift donor registry program, specifically inquire, either orally or in writing, whether the applicant wishes to participate in the anatomical gift donor registry program under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123. If the secretary of state or an employee of the secretary of state fails to inquire whether an applicant wishes to participate in the anatomical gift donor registry program as required by this subdivision, neither the secretary of state nor the employee is civilly or criminally liable for the failure to make the inquiry.

(b) Provide the applicant with all of the following:

(i) Information explaining the applicant's right to make an anatomical gift in the event of death in accordance with section 310.

(ii) Information describing the anatomical gift donor registry program under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123. The information required under this subparagraph includes the address and telephone number of Michigan's federally designated organ procurement organization as that term is defined in section 10102 of the public health code, 1978 PA 368, MCL 333.10102, or its successor organization.

(iii) Information giving the applicant the opportunity to be placed on the donor registry described in subparagraph (ii).

(c) Provide the applicant with the opportunity to specify on the applicant's operator's or chauffeur's license that the applicant is willing to make an anatomical gift in the event of death in accordance with section 310.

(d) Inform the applicant that, if the applicant indicates to the secretary of state under this section a willingness to have the applicant's name placed on the donor registry described in subdivision (b)(ii), the secretary of state will mark the applicant's record for the donor registry.

(5) The secretary of state may fulfill the requirements of subsection (4) by 1 or more of the following methods:

(a) Providing printed material enclosed with a mailed notice for an operator's or chauffeur's license renewal or the issuance of an operator's or chauffeur's license.

(b) Providing printed material to an applicant who personally appears at a secretary of state branch office, or inquiring orally.

(c) Through electronic information transmittals for operator's and chauffeur's licenses processed by electronic means.

(6) The secretary of state shall maintain a record of an individual who indicates a willingness to have the individual's name placed on the donor registry described in subsection (4)(b)(ii). Information about an applicant's indication of a willingness to have the applicant's name placed on the donor registry that is obtained by the secretary of state under subsection (4) and forwarded under subsection (14) is exempt from disclosure under section 13(1)(d) of the freedom of information act, 1976 PA 442, MCL 15.243. The secretary of state is not required to maintain a record of an individual who does not indicate a willingness to have the individual's name placed on the donor registry described in subsection (4)(b)(ii) or an individual who does not respond to an inquiry under subsection (4)(a).

(7) If an application is received from an individual previously licensed in another jurisdiction, the secretary of state shall request a copy of the applicant's driving record and other available information from the National Driver Register. When received, the driving record and other available information become a part of the driver's record in this state.

(8) If an individual applies for a commercial learner's permit for an original vehicle group designation or indorsement to operate a commercial motor vehicle, the secretary of state may verify the individual's identity, may require proof of Michigan domicile under 49 CFR 383.5, and may verify the individual's proof of United States citizenship or proof of lawful permanent residency as required under 49 CFR 383.71 and 383.73, if that information is not on the individual's Michigan driving record. If an individual applies for a renewal of an operator's or chauffeur's license to operate a commercial motor vehicle, the secretary of state may verify the individual's identity, may require proof of Michigan domicile under 49 CFR 383.5, and may verify the individual's proof of citizenship or lawful permanent residency under 49 CFR 383.71 and 383.73, if that information is not on the individual's Michigan driving record. If an individual applies for an upgrade of a vehicle group designation or indorsement, the secretary of state may verify the individual's identity, may require proof of Michigan domicile under 49 CFR 383.5, and may verify the individual's proof of citizenship or lawful permanent residency under 49 CFR 383.71 and 383.73, if that information is not on the individual's Michigan driving record. The secretary of state shall request the individual's complete driving record from all states where the applicant was previously licensed to drive any type of motor vehicle over the last 10 years before issuing a vehicle group designation or indorsement to the applicant. If the applicant does not hold a valid commercial motor vehicle driver license from a state where the applicant was licensed in the last 10 years, this complete driving record request must be made not earlier than 24 hours before the secretary of state issues the applicant a vehicle group designation or indorsement. For all other drivers, this request must be made not earlier than 10 days before the secretary of state issues the applicant a vehicle group designation or indorsement. If the application is for the renewal of a vehicle group designation or indorsement, and if the secretary of state enters on the individual's driving record maintained under section 204a a notation that the request was made and the date of the request, the secretary of state is required to request the applicant's complete driving record from other states only once under this section. The secretary of state shall also check the

applicant's driving record with the National Driver Register and the federal Commercial Driver's License Information System before issuing that group designation or indorsement.

(9) The secretary of state may issue a renewal operator's or chauffeur's license for 1 additional 4-year period or beginning on July 1, 2021, for 2 additional 4-year periods, or until the individual is no longer determined to be legally present under this section by mail or by other methods prescribed by the secretary of state. The secretary of state may check the applicant's driving record through the National Driver Register and the Commercial Driver's License Information System before issuing a license under this section. The secretary of state shall issue a renewal license only in person if the individual is an individual required under section 5a of the sex offenders registration act, 1994 PA 295, MCL 28.725a, to maintain a valid operator's or chauffeur's license or official state personal identification card. If a license is renewed by mail or by other method, the secretary of state shall issue evidence of renewal to indicate the date the license expires in the future. The department of state police shall provide to the secretary of state updated lists of individuals required under section 5a of the sex offenders registration act, 1994 PA 295, MCL 28.725a, to maintain a valid operator's or chauffeur's license or official state personal identification card.

(10) Upon request, the secretary of state shall provide an information manual to an applicant explaining how to obtain a vehicle group designation or indorsement. The manual must contain the information required under 49 CFR part 383.

(11) The secretary of state shall not disclose a Social Security number obtained under subsection (1) to another person except for use for 1 or more of the following purposes:

(a) Compliance with 49 USC 31301 to 31317 and regulations and state law and rules related to this chapter.

(b) To carry out the purposes of section 466(a) of the social security act, 42 USC 666, in connection with matters relating to paternity, child support, or overdue child support.

(c) To check an applicant's driving record through the National Driver Register and the Commercial Driver's License Information System when issuing a license under this act.

(d) With the department of health and human services, for comparison with vital records maintained by the department of health and human services under part 28 of the public health code, 1978 PA 368, MCL 333.2801 to 333.2899.

(e) As otherwise required by law.

(12) The secretary of state shall not display an individual's Social Security number on the individual's operator's or chauffeur's license.

(13) A requirement under this section to include a Social Security number on an application does not apply to an applicant who demonstrates that the applicant is exempt under law from obtaining a Social Security number.

(14) As required in section 10120 of the public health code, 1978 PA 368, MCL 333.10120, the secretary of state shall maintain the donor registry in a manner that provides electronic access, including, but not limited to, the transfer of data to this state's federally designated organ procurement organization or its successor organization, tissue banks, and eye banks, in a manner that complies with that section.

(15) The secretary of state, with the approval of the state administrative board created under 1921 PA 2, MCL 17.1 to 17.3, may enter into agreements with the United States government to verify whether an applicant for an operator's license or a chauffeur's license under this section who is not a citizen of the United States is authorized under federal law to be present in the United States.

(16) The secretary of state shall not issue an operator's license or a chauffeur's license to an individual holding an operator's license or chauffeur's license issued by another state without

confirmation that the individual is terminating or has terminated the operator's license or chauffeur's license issued by the other state.

(17) The secretary of state shall do all of the following:

(a) Ensure the physical security of locations where operator's licenses and chauffeur's licenses are produced and the security of document materials and papers from which operator's licenses and chauffeur's licenses are produced.

(b) Subject all persons authorized to manufacture or produce operator's licenses or chauffeur's licenses and all persons who have the ability to affect the identity information that appears on operator's licenses or chauffeur's licenses to appropriate security clearance requirements. The security requirements of this subdivision and subdivision (a) may require that licenses be manufactured or produced in this state.

(c) Provide fraudulent document recognition programs to department of state employees engaged in the issuance of operator's licenses and chauffeur's licenses.

(18) The secretary of state shall have electronic access to prisoner information maintained by the department of corrections for the purpose of verifying the identity of a prisoner who applies for an operator's or chauffeur's license under subsection (1).

(19) Subject to this subsection, any printed notice provided to an applicant at the conclusion of a transaction conducted under this section must, if the individual's information will be used for voter registration or voter preregistration under section 493a(2) to (5) of the Michigan election law, 1954 PA 116, MCL 168.493a, include a notice of that use and that the individual will receive a notice mailed under section 493a(2) to (5) of the Michigan election law, 1954 PA 116, MCL 168.493a. If the individual's information has been used for voter registration or preregistration under section 493a(6) of the Michigan election law, 1954 PA 116, MCL 168.493a, the printed notice provided to the applicant must include a notice of that voter registration and the printed notice serves as a receipt verifying the voter registration application.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1958, Act 217, Eff. Sept. 13, 1958 ;-- Am. 1964, Act 260, Imd. Eff. June 3, 1964 ;-- Am. 1967, Act 212, Eff. Nov. 2, 1967 ;-- Am. 1972, Act 357, Imd. Eff. Jan. 9, 1973 ;-- Am. 1975, Act 122, Imd. Eff. July 1, 1975 ;-- Am. 1976, Act 358, Imd. Eff. Dec. 23, 1976 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1982, Act 25, Imd. Eff. Mar. 4, 1982 ;-- Am. 1983, Act 216, Imd. Eff. Nov. 11, 1983 ;-- Am. 1984, Act 30, Eff. Apr. 28, 1984 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 286, Imd. Eff. Dec. 26, 1989 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 1996, Act 205, Eff. Jan. 1, 1997 ;-- Am. 1998, Act 120, Eff. July 3, 1998 ;-- Am. 1998, Act 330, Imd. Eff. Aug. 10, 1998 ;-- Am. 1999, Act 88, Eff. Sept. 1, 1999 ;-- Am. 1999, Act 118, Eff. Apr. 1, 2000 ;-- Am. 2001, Act 159, Imd. Eff. Nov. 6, 2001 ;-- Am. 2002, Act 259, Imd. Eff. May 1, 2002 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2004, Act 502, Imd. Eff. Dec. 29, 2004 ;-- Am. 2005, Act 142, Imd. Eff. Sept. 29, 2005 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2008, Act 36, Imd. Eff. Mar. 17, 2008 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 26, Imd. Eff. Feb. 23, 2012 ;-- Am. 2012, Act 55, Eff. June 30, 2012 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2016, Act 451, Eff. Apr. 5, 2017 ;-- Am. 2017, Act 32, Eff. Aug. 7, 2017 ;-- Am. 2018, Act 177, Eff. Sept. 9, 2018 ;-- Am. 2018, Act 504, Eff. Mar. 27, 2019 ;-- Am. 2018, Act 604, Imd. Eff. Dec. 28, 2018 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2023, Act 260, Eff. June 30, 2025

Compiler's Notes: Section 2 of Act 216 of 1983 provides: “Not later than 2 years after the effective date of this amendatory act, the secretary of state shall report to the legislature regarding the effect on highway safety that eliminating the age requirement under subsection (5) has had.”Section 2 of Act 30 of 1984 provides: “The secretary of state shall implement section 307 as amended by this amendatory act

beginning with operator's and chauffeur's licenses which expire on May 19, 1984."Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989. "(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."Enacting section 1 of Act 330 of 1998 provides:"Enacting section 1. The family independence agency shall request from the federal government an exemption from the provisions regarding the recording of social security numbers added by this 1998 amendatory act, which are intended to be used for the collection of child support, as required by federal law in order for this state to receive certain federal funds. Upon the granting of the exemption, those provisions referred to by this enacting section shall not be utilized or enforced by the state or a local governmental entity."
Admin Rule: R 460.16101 et seq. of the Michigan Administrative Code.

257.307a Operator or chauffeur license containing vehicle group designation; contents.

Sec. 307a.

For an operator or chauffeur license that contains a vehicle group designation, the secretary of state shall issue a license that contains the information required under this act and all of the following information:

(a) The name and address of residence of the licensee.

(b) Date of birth.

(c) Height and sex.

(d) Information required by the United States department of transportation under 49 CFR 383.153.

(e) In accordance with federal regulations, the vehicle group designation and any indorsement or restriction of a commercial motor vehicle the licensee is authorized to operate.

(f) The name of this state.

(g) The expiration date of the license.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011
Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.307b Application by male for operator's license or chauffeur's license; registration of applicant with federal selective service system.

Sec. 307b.

(1) Beginning October 1, 2010, when any male citizen of the United States or a male immigrant to the United States who is less than 26 years of age applies for an operator's license or chauffeur's license, the secretary of state shall, with the applicant's consent, obtain the information that is necessary to register the applicant with the federal selective service system in compliance with the requirements of 50 USC Appx 453, including, but not limited to, the applicant's social security number.

(2) Each application described in subsection (1) shall contain all of the following:

(a) A statement that, if the applicant gives his consent to the secretary of state to provide his registration information to the selective service system, the secretary of state is authorized to provide that information to the selective service system under this section.

(b) The following statement: "If I am less than 18 years of age and give my consent to the secretary of state to provide the information necessary to register me for selective service, I understand that I will automatically be registered for selective service when I become 18 years of age if required by federal law.".

(c) A statement of the criminal penalties and other sanctions that apply for failing to register with selective service.

(d) The following statement: "I acknowledge having been given information regarding the penalties for not registering for selective service.".

(e) A statement appearing in capitalized, bold-faced type that declining to give consent to registration under this section does not affect the applicant's privilege to receive an operator's or chauffeur's license.

(f) A location on the application where the applicant shall indicate that he either consents to forwarding his registration information to the selective service system or that he does not consent to forwarding his registration information to the selective service system.

(3) The secretary of state shall forward the information obtained under subsection (1) to the federal selective service system in a format consistent with selective service system requirements.

(4) The secretary of state shall not forward any information regarding an applicant who is less than 18 years of age to the selective service system under this section unless the applicant gives his consent to provide that information to the selective service system as provided in this section.

History: Add. 2006, Act 642, Eff. Oct. 1, 2010

257.308 Application of minor for operator's license; condition to approval; exception.

Sec. 308.

(1) The secretary of state shall not approve the application of a person who is 17 years of age or less for an operator's license unless the application is signed by the parent or guardian of the applicant and the person has satisfied the appropriate requirements of section 310e, or if the person does not have a parent or guardian, then a license shall not be granted to the person unless the application is signed by another responsible adult and the person has satisfied the appropriate requirements of section 310e.

(2) This section does not apply to minors emancipated under 1968 PA 293, MCL 722.1 to 722.6.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 123, Eff. Sept. 13, 1958 ;-- Am. 1972, Act 49, Imd. Eff. Feb. 19, 1972 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1988, Act 404, Eff. Mar. 30, 1989 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 1999, Act 40, Imd. Eff. June 9, 1999

257.309 Examination of applicant for operator's or chauffeur's license; criminal history check; waiver; exception; certification of licensee applying for renewal of license by mail; examining officers; conducting examinations; report of findings and recommendations; rules; issuance of original operator's or chauffeur's license without vehicle group designation or indorsement; driver skills test; waiver; behind-the-wheel road test; prohibited conduct; penalty; applicant for original motorcycle endorsement; waiver of certain requirements; pandemic expiration extension.

Sec. 309.

(1) Before issuing a license, the secretary of state shall examine each applicant for an operator's or chauffeur's license who at the time of the application is not the holder of a valid, unrevoked operator's or chauffeur's license under a law of this state providing for the licensing of drivers. Before the secretary of state authorizes an individual to administer vehicle group designation or endorsement knowledge tests, that individual must successfully complete both a state and Federal Bureau of Investigation fingerprint-based criminal history check or the equivalent through the department of state police. In all other cases, the secretary of state may waive the examination, except that an examination must not be waived if it appears from the application, from the apparent physical or mental condition of the applicant, or from any other information that has come to the secretary of state from another source, that the applicant does not possess the physical, mental, or other qualifications necessary to operate a motor vehicle in a manner as not to jeopardize the safety of persons or property, or that the applicant is not entitled to a license under section 303. A licensee who applies for the renewal of his or her license by mail under section 307 shall certify to his or her physical capability to operate a motor vehicle. The secretary of state may check the applicant's driving record through the National Driver Register and the Commercial Driver's License Information System before issuing a license under this section.

(2) The secretary of state may appoint sheriffs, their deputies, the chiefs of police of cities and villages that have organized police departments within this state, their duly authorized representatives, employees of the secretary of state, or the secretary of state's duly authorized representatives as examining officers for the purpose of examining applicants for operator's and chauffeur's licenses. An examining officer shall conduct examinations of applicants for operator's and chauffeur's licenses in accordance with this chapter and the rules promulgated by the secretary of state under subsection (3). After conducting an examination an examining officer shall make a written report of his or her findings and recommendations to the secretary of state.

(3) The secretary of state shall promulgate rules under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, for the examination of the applicant's physical and mental qualifications to operate a motor vehicle in a manner as not to jeopardize the safety of persons or property, and shall ascertain whether facts exist that would bar the issuance of a license under section 303. The secretary of state may consider a written medical report and recommendation submitted under section 5139 of the public health code, 1978 PA 368, MCL 333.5139, from the personal physician or optometrist of an applicant, in making the examination regarding the applicant's physical and mental qualifications to operate a motor vehicle under this section and R 257.851 to R 257.855 of the Michigan Administrative Code.

A report received by the secretary of state from a physician or an optometrist under this section is confidential. The secretary of state shall also ascertain whether the applicant has sufficient knowledge of the English language to understand highway warnings or direction signs written in that language. The examination must not include investigation of facts other than those facts directly pertaining to the ability of the applicant to operate a motor vehicle with safety or facts declared to be prerequisite to the issuance of a license under this act.

(4) The secretary of state shall not issue an original operator's or chauffeur's license without a vehicle group designation or indorsement without an examination that includes a driving skills test conducted by the secretary of state or by a designated examining officer under subsection (2) or section 310e. The secretary of state may enter into an agreement with another public or private corporation or agency to conduct a driving skills test conducted under this section. Before the secretary of state authorizes an individual to administer a corporation's or agency's driver skills testing operations or authorizes an examiner to conduct a driving skills test, that individual or examiner must successfully complete both a state and Federal Bureau of Investigation fingerprint-based criminal history check through the department of state police as required by law and as provided under 49 CFR 384.228. In an agreement with another public or private corporation or agency to conduct a driving skills test, the secretary of state shall prescribe the method and examination criteria to be followed by the corporation, agency, or examiner when conducting the driving skills test and the form of the certification to be issued to an individual who satisfactorily completes a driving skills test. An original vehicle group designation or indorsement must not be issued by the secretary of state without a knowledge test conducted by the secretary of state. Except as provided in section 312f(1), an original vehicle group designation or passenger or school bus indorsement must not be issued by the secretary of state without a driving skills test conducted by an examiner appointed or authorized by the secretary of state or an equivalent driving skills test meeting the requirements of 49 CFR part 383 conducted in another jurisdiction.

(5) Except as otherwise provided in this act, the secretary of state may waive the requirement of a driving skills test, knowledge test, or road sign test of an applicant for an original operator's or chauffeur's license without a vehicle group designation or indorsement who at the time of the application is the holder of a valid, unrevoked operator's or chauffeur's license issued by another state or country.

(6) A driving skills test conducted under this section must include a behind-the-wheel road test. Before conducting a behind-the-wheel road test for an applicant seeking a vehicle group designation, including any upgrade to a vehicle group designation, or for any indorsement required to operate a commercial motor vehicle, the examiner shall determine that the applicant was issued his or her commercial learner's permit not less than 14 days before the date of that test and that he or she has that permit in his or her possession.

(7) A person who corrupts or attempts to corrupt a designated examining officer appointed or designated by the secretary of state under this section or section 310e by giving, offering, or promising any gift or gratuity with the intent to influence the opinion or decision of the examining officer conducting the test is guilty of a felony.

(8) A designated examining officer appointed or designated by the secretary of state who conducts a driving skills test under an agreement entered into under this section or section 310e and who varies from, shortens, or in any other way changes the method or examination criteria prescribed in that agreement in conducting a driving skills test is guilty of a felony.

(9) A person who forges, counterfeits, or alters a satisfactorily completed driving skills test certification issued by a designated examining officer appointed or designated by the secretary of state under this section or section 310e is guilty of a felony.

(10) The secretary of state shall waive the requirement of a written knowledge test, road sign test, and driving skills test of an applicant for an original motorcycle endorsement if the person has successfully passed a motorcycle safety course approved by the department as described in sections 811a and 811b.

(11) An operator's or chauffeur's license that expires on or after March 1, 2020 is valid until March 31, 2021. An operator's or chauffeur's license that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1958, Act 123, Eff. Sept. 13, 1958 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 290, Imd. Eff. Oct. 15, 1980 ;-- Am. 1982, Act 25, Imd. Eff. Mar. 4, 1982 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1996, Act 387, Eff. Mar. 31, 1997 ;-- Am. 1996, Act 551, Eff. Apr. 1, 1997 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2012, Act 355, Imd. Eff. Dec. 13, 2012 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2016, Act 23, Eff. May 23, 2016 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021 ;-- Am. 2022, Act 45, Imd. Eff. Mar. 23, 2022

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

Admin Rule: R 257.851 et seq. of the Michigan Administrative Code.

257.310 Operator's or chauffeur's license; issuance; applicant for motorcycle indorsement or vehicle group designation or indorsement; contents of license; fingerprint or finger image; digitized license; information; manufacture; unlawful acts; penalties; temporary driver's permit; medical data; emergency contact information; designation of patient advocate or emancipated status; duplicates of license; emergency medical information card; participation in anatomical gift donor registry; communication impediment designation; revocation; definitions.

Sec. 310.

(1) The secretary of state shall issue an operator's license to each person licensed as an operator and a chauffeur's license to each person licensed as a chauffeur. An applicant for a motorcycle indorsement under section 312a or a vehicle group designation or indorsement shall first qualify for an operator's or chauffeur's license before the indorsement or vehicle group designation application is accepted and processed. An original license or the first

renewal of an existing license issued to a person less than 21 years of age must be portrait or vertical in form and a license issued to a person 21 years of age or over must be landscape or horizontal in form.

(2) The license issued under subsection (1) must contain all of the following:

(a) The distinguishing number permanently assigned to the licensee.

(b) Except as provided in section 310f, the full legal name, date of birth, address of residence, height, eye color, sex, digital photographic image, expiration date, and signature of the licensee.

(c) In the case of a licensee who has indicated his or her wish to participate in the anatomical gift donor registry under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123, a heart insignia on the front of the license.

(d) Physical security features designed to prevent tampering, counterfeiting, or duplication of the license for fraudulent purposes.

(e) If requested by an individual who is a veteran of the armed forces of this state, another state, or the United States, a designation that the individual is a veteran. The designation must be in a style and format considered appropriate by the secretary of state. The secretary of state shall require proof of discharge or separation of service from the armed forces of this state, another state, or the United States, and the nature of that discharge, for the purposes of verifying an individual's status as a veteran under this subdivision. The secretary of state shall consult with the department of military and veterans affairs in determining the proof that must be required to identify an individual's status as a veteran for the purposes of this subsection. The secretary of state may provide the department of military and veterans affairs and agencies of the counties of this state that provide veteran services with information provided by an applicant under this subsection for the purpose of veterans' benefits eligibility referral.

(3) Except as otherwise required under this chapter, other information required on the license under this chapter may appear on the license in a form prescribed by the secretary of state.

(4) The license must not contain a fingerprint or finger image of the licensee.

(5) A digitized license may contain an identifier for voter registration purposes. The digitized license may contain information appearing in electronic or machine-readable codes needed to conduct a transaction with the secretary of state. The information must be limited to the information described in subsection (2)(a) and (b) except for the person's digital photographic image and signature, state of issuance, license expiration date, and other information necessary for use with electronic devices, machine readers, or automatic teller machines and must not contain the driving record or other personal identifier. The license must identify the encoded information.

(6) The license must be manufactured in a manner to prohibit as nearly as possible the ability to reproduce, alter, counterfeit, forge, or duplicate the license without ready detection. In addition, a license with a vehicle group designation must contain the information required under 49 CFR part 383.

(7) Except as provided in subsection (11), a person who intentionally reproduces, alters, counterfeits, forges, or duplicates a license photograph, the negative of the photograph, image, license, or electronic data contained on a license or a part of a license or who uses a license, image, or photograph that has been reproduced, altered, counterfeited, forged, or duplicated is subject to 1 of the following:

(a) If the intent of the reproduction, alteration, counterfeiting, forging, duplication, or use is to commit or aid in the commission of an offense that is a felony punishable by imprisonment for 10 or more years, the person committing the reproduction, alteration, counterfeiting,

forging, duplication, or use is guilty of a felony, punishable by imprisonment for not more than 10 years or a fine of not more than $20,000.00, or both.

(b) If the intent of the reproduction, alteration, counterfeiting, forging, duplication, or use is to commit or aid in the commission of an offense that is a felony punishable by imprisonment for less than 10 years or a misdemeanor punishable by imprisonment for 6 months or more, the person committing the reproduction, alteration, counterfeiting, forging, duplication, or use is guilty of a felony, punishable by imprisonment for not more than 5 years, or a fine of not more than $10,000.00, or both.

(c) If the intent of the reproduction, alteration, counterfeiting, forging, duplication, or use is to commit or aid in the commission of an offense that is a misdemeanor punishable by imprisonment for less than 6 months, the person committing the reproduction, alteration, counterfeiting, forging, duplication, or use is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $2,000.00, or both.

(8) Except as provided in subsections (11) and (16), a person who sells, or who possesses with the intent to deliver to another, a reproduced, altered, counterfeited, forged, or duplicated license photograph, negative of the photograph, image, license, or electronic data contained on a license or part of a license is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not more than $10,000.00, or both.

(9) Except as provided in subsections (11) and (16), a person who is in possession of 2 or more reproduced, altered, counterfeited, forged, or duplicated license photographs, negatives of the photograph, images, licenses, or electronic data contained on a license or part of a license is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not more than $10,000.00, or both.

(10) Except as provided in subsection (16), a person who is in possession of a reproduced, altered, counterfeited, forged, or duplicated license photograph, negative of the photograph, image, license, or electronic data contained on a license or part of a license is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $2,000.00, or both.

(11) Subsections (7)(a) and (b), (8), and (9) do not apply to a minor whose intent is to violate section 703 of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703.

(12) The secretary of state, upon determining after an examination that an applicant is mentally and physically qualified to receive a license, may issue the applicant a temporary driver's permit. The temporary driver's permit entitles the applicant, while having the permit in his or her immediate possession, to operate a motor vehicle upon the highway for a period not exceeding 60 days before the secretary of state has issued the applicant an operator's or chauffeur's license. The secretary of state may establish a longer duration for the validity of a temporary driver's permit if necessary to accommodate the process of obtaining a background check that is required for an applicant by federal law.

(13) An operator or chauffeur may indicate on the license in a place designated by the secretary of state his or her blood type, emergency contact information, immunization data, medication data, or a statement that the licensee is deaf. The secretary of state shall not require an applicant for an original or renewal operator's or chauffeur's license to provide emergency contact information as a condition of obtaining a license. However, the secretary of state may inquire whether an operator or chauffeur would like to provide emergency contact information and, beginning July 1, 2021, shall allow an operator or chauffeur that meets the requirements of subsection (21) to elect a communication impediment designation. Emergency contact information obtained under this subsection must be disclosed only to a state or federal law enforcement agency for law enforcement purposes or to the extent necessary for a medical

emergency. The secretary of state shall develop and shall, in conjunction with the department of state police, implement a process using the L.E.I.N. or any other appropriate system that limits access to law enforcement that would allow law enforcement agencies of this state to access emergency contact information and, beginning July 1, 2021, to view a communication impediment designation that the holder of an operator's license has voluntarily provided to the secretary of state.

(14) An operator or chauffeur may indicate on the license in a place designated by the secretary of state that he or she has designated a patient advocate in accordance with sections 5506 to 5515 of the estates and protected individuals code, 1998 PA 386, MCL 700.5506 to 700.5515.

(15) If the applicant provides proof to the secretary of state that he or she is a minor who has been emancipated under 1968 PA 293, MCL 722.1 to 722.6, the license must bear the designation of the individual's emancipated status in a manner prescribed by the secretary of state.

(16) Subsections (8), (9), and (10) do not apply to a person who is in possession of 1 or more photocopies, reproductions, or duplications of a license to document the identity of the licensee for a legitimate business purpose.

(17) A sticker or decal may be provided by any person, hospital, school, medical group, or association interested in assisting in implementing an emergency medical information card, but must meet the specifications of the secretary of state. An emergency medical information card may contain information concerning the licensee's patient advocate designation, other emergency medical information, or an indication as to where the licensee has stored or registered emergency medical information.

(18) The secretary of state shall inquire of each licensee, in person or by mail, whether the licensee agrees to participate in the anatomical gift donor registry under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123.

(19) A licensee who has agreed to participate in the anatomical gift donor registry under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123, must not be considered to have revoked that agreement solely because the licensee's license has been revoked or suspended or has expired. Enrollment in the donor registry constitutes a legal agreement that remains binding and in effect after the donor's death regardless of the expressed desires of the deceased donor's next of kin who may oppose the donor's anatomical gift.

(20) If an operator's or chauffeur's license is issued to an individual described in section 307(1)(b) who has temporary lawful status, the license must be issued in compliance with 6 CFR 37.21 or in compliance with the process established to comply with 6 CFR 37.71 by the secretary of state.

(21) An operator or chauffeur seeking an election for a communication impediment designation under subsection (13) shall provide to the secretary of state a certification that meets all of the following:

(a) Is signed by a physician, physician assistant, certified nurse practitioner, audiologist, speech-language pathologist, psychologist, or physical therapist licensed to practice in this state.

(b) Identifies the individual for whom the communication impediment designation is being elected.

(c) Attests to the nature of the communication impediment.

(22) A person who intentionally makes a false statement of material fact or commits or attempts to commit a deception or fraud on a statement described under subsection (21) is

guilty of a misdemeanor punishable by imprisonment for not more than 30 days or a fine of not more than $500.00, or both.

(23) Subject to subsection (24), the secretary of state may cancel or revoke a communication impediment designation elected and maintained under this section if either of the following circumstances applies:

(a) The secretary of state determines that a communication impediment designation was fraudulently or erroneously elected.

(b) The secretary of state determines the communication impediment designation was abused during a traffic stop.

(24) The secretary of state shall provide the operator or chauffeur notice and an opportunity to be heard before canceling or revoking a communication impediment designation under subsection (23).

(25) As used in this section:

(a) "Communication impediment" means the operator or chauffeur has a health condition that may impede communication with a police officer during a traffic stop, including, but not limited to, any of the following:

(i) Deafness or hearing loss.

(ii) An autism spectrum disorder.

(b) "Emergency contact information" means the name, telephone number, or address of an individual that is used for the sole purpose of contacting that individual when the holder of an operator's license has been involved in an emergency.

(c) "Temporary lawful status" means that term as defined in 6 CFR 37.3.

(d) "Veteran" means that term as defined in section 1 of 1965 PA 190, MCL 35.61.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 144, Eff. Oct. 2, 1953 ;-- Am. 1957, Act 164, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 217, Eff. Sept. 13, 1958 ;-- Am. 1966, Act 206, Eff. Aug. 1, 1966 ;-- Am. 1967, Act 212, Eff. Nov. 2, 1967 ;-- Am. 1972, Act 357, Imd. Eff. Jan. 9, 1973 ;-- Am. 1976, Act 358, Imd. Eff. Dec. 23, 1976 ;-- Am. 1977, Act 259, Eff. Mar. 30, 1978 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1985, Act 219, Imd. Eff. Jan. 10, 1986 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1988, Act 404, Eff. Mar. 30, 1989 ;-- Am. 1989, Act 286, Imd. Eff. Dec. 26, 1989 ;-- Am. 1996, Act 205, Eff. Jan. 1, 1997 ;-- Am. 1998, Act 226, Imd. Eff. July 3, 1998 ;-- Am. 2001, Act 216, Imd. Eff. Dec. 28, 2001 ;-- Am. 2002, Act 126, Eff. Apr. 22, 2002 ;-- Am. 2002, Act 554, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005 ;-- Am. 2005, Act 141, Imd. Eff. Sept. 29, 2005 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2008, Act 36, Imd. Eff. Mar. 17, 2008 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2013, Act 27, Eff. May 1, 2014 ;-- Am. 2016, Act 4, Imd. Eff. Feb. 2, 2016 ;-- Am. 2016, Act 219, Eff. Sept. 20, 2016 ;-- Am. 2018, Act 177, Eff. Sept. 9, 2018 ;-- Am. 2020, Act 93, Eff. July 1, 2021 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 104, Eff. Dec. 1, 2021

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.310a Repealed. 1978, Act 139, Eff. May 1, 1979.

Compiler's Notes: The repealed section pertained to color of instruction permit or license issued to minor.

257.310b Expired. 1979, Act 66, Eff. Oct. 1, 1980.

Compiler's Notes: The expired section pertained to designation of original license as probationary for 1 year.

257.310c Operator's or chauffeur's license; persons not previously licensed; temporary instruction permit; exception.

Sec. 310c.

(1) The secretary of state shall not issue an operator's or chauffeur's license to a person who is 18 years of age or older and has not been previously licensed in this or any other state or country until 30 days after he or she has obtained a temporary instruction permit.

(2) This section does not apply to a person who is on active duty in the armed forces of the United States if he or she is on furlough and possesses a valid United States government motor vehicle operator's identification card and furlough papers.

History: Add. 1968, Act 263, Eff. Nov. 15, 1968 ;-- Am. 1972, Act 89, Imd. Eff. Mar. 20, 1972 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997

257.310d Designation of license as probationary for 3 years; suspension of license or imposition of probationary terms and conditions; duration; reexamination; extension of probationary period; failure to appear for reexamination; notice; additional provisions.

Sec. 310d.

(1) A license issued under this act to a person not previously licensed in this or in another state shall be designated as probationary for 3 years after the date of issuance. During the first 12 months of probation, the license may be suspended or probationary terms and conditions may be imposed upon failure of the licensee to appear before a magistrate, as provided in this chapter, or upon conviction of the licensee or determination of the licensee's responsibility for a moving violation in this state. The period of suspension or the probationary terms and conditions shall not be for more than 12 months and shall be determined by the secretary of state.

(2) Upon completion of the first 12 months of probation, the secretary of state may require a licensee to be reexamined by the secretary of state if the licensee's driving record contains any of the following:

(a) A conviction or civil infraction determination for a moving violation that was assessed 4 or more points as provided in section 320a.

(b) Three convictions or 3 civil infraction determinations, or a combination of convictions and civil infraction determinations that equals 3, for moving violations.

(c) A total of 6 or more points as provided in section 320a.

(d) A conviction or civil infraction determination for a moving violation and an accident for which the official police report indicates the licensee had been drinking alcoholic liquor.

(e) A conviction or civil infraction determination for a moving violation and an accident for which the official police report indicates a moving violation on the part of the licensee.

(f) Three accidents for which the official police report indicates a moving violation on the part of the licensee.

(g) A suspension under section 625f.

(3) The probationary period shall be extended beyond 3 years and the secretary of state may reexamine a licensee as provided in subsection (2) if any of the following occur and are recorded on the licensee's driving record during the last 10 months of the probationary period:

(a) A moving violation resulting in a conviction or civil infraction determination.

(b) An accident for which the official police report indicates a moving violation on the part of the licensee.

(c) An accident for which the official police report indicates the licensee had been drinking alcoholic liquor.

(d) A license suspension for a reason other than a mental or physical disability.

(4) The probationary period shall be extended under subsection (3) until the licensee completes 10 consecutive months without a moving violation, accident, or suspension enumerated in subsection (3).

(5) Upon completion of a reexamination, the secretary of state may suspend or impose probationary terms and conditions on the license of a probationary licensee, except that a reexamination for subsection (2)(d), (e), or (f) shall not result in a license suspension or the imposition of probationary terms or conditions.

(6) For 24 months immediately after a licensee's probationary period, the secretary of state may require the licensee to be reexamined by the secretary of state if the licensee's driver record has a total of 9 or more points, as provided in section 320a, imposed in a period of 2 years and if the licensee's record contains 1 or more of the following:

(a) A conviction for a violation or attempted violation of any of the following:

(i) Section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(ii) A violation or attempted violation of section 625m.

(iii) Former section 625b.

(iv) A local ordinance substantially corresponding to a conviction described in this subdivision.

(v) A law of another state substantially corresponding to a conviction described in this subdivision.

(b) A suspension of the licensee's license under section 625f.

(c) An accident for which the official police report indicates a moving violation on the part of the licensee.

(d) An accident for which the official police report indicates the licensee had been drinking alcoholic liquor.

(7) Upon completion of a reexamination under subsection (6), the secretary of state may suspend the license of the licensee, except that a reexamination for subsection (6)(c) or (d) shall not result in a license suspension or restriction.

(8) If a licensee fails to appear for a reexamination scheduled by the secretary of state under this section, the licensee's license may be suspended immediately and remain suspended until

the licensee appears for a reexamination by the secretary of state. The secretary of state may restrict, suspend, or revoke a licensee's license based solely on his or her driving record.

(9) Notice of suspension, the imposition of probationary terms or conditions, or a reexamination required under this section shall be given by first-class mail to the last known address of the licensee. The notice shall provide that the suspension or imposition of probationary terms or conditions will be effective 14 days from the date of the notice, unless the probationary licensee requests a reexamination.

(10) For purposes of this section:

(a) Upon conviction for a moving violation, the date of the violation shall be used in determining whether the conviction occurred within the probationary period.

(b) Upon entry of a civil infraction determination for a moving violation, the date of the violation shall be used in determining whether the civil infraction determination occurred within the probationary period.

(c) Information of a reexamination shall not be placed on a driver's record unless the secretary of state suspends a license or imposes probationary terms and conditions.

(d) A suspension shall be considered part of a driving record from the date the suspension is imposed until the suspension is terminated.

(e) The date of the official police report shall be used in determining whether a licensee was driving a motor vehicle involved in an accident for which the official police report indicates a moving violation on the part of the licensee or indicates the licensee had been drinking alcoholic liquor.

History: Add. 1978, Act 545, Eff. Oct. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1998, Act 343, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2015, Act 11, Eff. July 8, 2015

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.310e Graduated licensing.

Sec. 310e.

(1) Except as otherwise provided in this act, an operator's or chauffeur's license issued to a person who is 17 years of age or less shall be in a form as prescribed in section 310, and valid only upon the issuance of a graduated driver license.

(2) The secretary of state shall designate graduated licensing provisions in a manner that clearly indicates that the person is subject to the appropriate provisions described in this section.

(3) Except as otherwise provided in section 303, a person who is not less than 14 years and 9 months of age may be issued a level 1 graduated licensing status to operate a motor vehicle if the person has satisfied all of the following conditions:

(a) Passed a vision test and met health standards as prescribed by the secretary of state.

(b) Successfully completed segment 1 of a driver education course as that term is defined in section 7 of the driver education provider and instructor act, 2006 PA 384, MCL 256.627, including a minimum of 6 hours of on-the-road driving time with the instructor.

(c) Received written approval of a parent or legal guardian.

(4) A person issued a level 1 graduated licensing status may operate a motor vehicle only when accompanied either by a licensed parent or legal guardian or, with the permission of the parent or legal guardian, a licensed driver 21 years of age or older. Except as otherwise provided in this section, a person is restricted to operating a motor vehicle with a level 1 graduated licensing status for not less than 6 months.

(5) A person may be issued a level 2 graduated licensing status to operate a motor vehicle if the person has satisfied all of the following conditions:

(a) Had a level 1 graduated licensing status for not less than 6 months.

(b) Successfully completed segment 2 of a driver education course as that term is defined in section 7 of the driver education provider and instructor act, 2006 PA 384, MCL 256.627.

(c) Not incurred a moving violation resulting in a conviction or civil infraction determination or been involved in an accident for which the official police report indicates a moving violation on the part of the person during the 90-day period immediately preceding application.

(d) Presented a certification by the parent or guardian that the person, accompanied by his or her licensed parent or legal guardian or, with the permission of the parent or legal guardian, any licensed driver 21 years of age or older, has accumulated a total of not less than 50 hours of behind-the-wheel experience including, except as otherwise provided in this subdivision, not less than 10 nighttime hours. The nighttime hours requirement does not apply to a person who has been issued a graduated driver license that permits daylight driving only as provided in R 257.3 of the Michigan Administrative Code.

(e) Successfully completed a secretary of state approved driving skills test. The secretary of state may enter into an agreement with another public or private corporation or agency to conduct this driving skills test. Before the secretary of state authorizes a person to administer a corporation's or agency's driver skills testing operations or authorizes an examiner to conduct a driving skills test, that person or examiner must complete both a state and Federal Bureau of Investigation fingerprint based criminal history check through the department of state police. This subdivision applies to a person 16 years of age or over only if the person has satisfied subdivisions (a), (b), (c), and (d).

(6) A person issued a level 2 graduated licensing status under subsection (5) shall remain at level 2 for not less than 6 months. A person issued a level 2 graduated licensing status under subsection (5) shall not operate a vehicle under the following circumstances:

(a) Between the hours of 10 p.m. and 5 a.m. This subdivision does not apply if either of the following applies:

(i) The person is accompanied by a parent or legal guardian or a licensed driver 21 years of age or older designated by the parent or legal guardian.

(ii) The person is operating the vehicle in the course of his or her employment or while going to or from employment or while going to or from an authorized activity.

(b) With more than 1 passenger in the vehicle who is less than 21 years of age. This subdivision does not apply if any of the following apply:

(i) The person is accompanied by a parent or legal guardian or a licensed driver 21 years of age or older designated by the parent or legal guardian.

(ii) Any additional passengers who are less than 21 years of age are members of his or her immediate family.

(iii) The person is operating the vehicle in the course of his or her employment or while going to or from employment or while going to or from an authorized activity.

(7) The provisions and provisional period described in subsection (4) or (6) shall be expanded or extended, or both, beyond the periods described in subsection (4) or (6) if any of

the following occur and are recorded on the licensee's driving record during the provisional periods described in subsection (4) or (6) or any additional periods imposed under this subsection:

(a) A moving violation resulting in a conviction, civil infraction determination, or probate court disposition.

(b) An accident for which the official police report indicates a moving violation on the part of the licensee.

(c) A license suspension for a reason other than a mental or physical disability.

(d) A violation of subsection (4) or (6).

(8) The provisional period described in subsection (4) shall be extended under subsection (7) until the licensee completes 90 consecutive days without a moving violation, an accident in which a moving violation resulted, suspension, or provisional period violation listed in subsection (7), or until age 18, whichever occurs first. The provisional period described in subsection (6) shall be extended under subsection (7) until the licensee completes 12 consecutive months without a moving violation, suspension, or restricted period violation listed in subsection (7) or until age 18, whichever occurs first.

(9) A person who is not less than 17 years of age may be issued a level 3 graduated licensing status under this subsection if the person has completed 12 consecutive months without a moving violation, an accident in which a moving violation resulted, suspension, or restricted period violation listed in subsection (7) while the person was issued a level 2 graduated licensing status under subsection (5).

(10) Notice shall be given by first-class mail to the last known address of a licensee if the provisions are expanded or extended as described in subsection (7).

(11) A person who violates subsection (4) or (6) is responsible for a civil infraction.

(12) If a person is determined responsible for a violation of subsection (4) or (6), the secretary of state shall send written notification of any conviction or moving violation to a designated parent or guardian of the person.

(13) For purposes of this section:

(a) Upon conviction for a moving violation, the date of the arrest for the violation shall be used in determining whether the conviction occurred within a provisional licensure period under this section.

(b) Upon entry of a civil infraction determination for a moving violation, the date of issuance of a citation for a civil infraction shall be used in determining whether the civil infraction determination occurred within a provisional licensure period under this section.

(c) The date of the official police report shall be used in determining whether a licensee was driving a motor vehicle involved in an accident for which the official police report indicates a moving violation on the part of the licensee or indicates the licensee had been drinking alcoholic liquor.

(14) A person shall have his or her graduated licensing status in his or her immediate possession at all times when operating a motor vehicle, and shall display the card upon demand of a police officer. A person who violates this subsection is responsible for a civil infraction.

(15) As used in this section, "authorized activity" means any of the following:

(a) A school or a school-sanctioned event or activity. For purposes of this subdivision, school means a public or private school, including a home school.

(b) A sporting event or activity, or extracurricular event or activity, that is not school-sanctioned but that is part of an official sports league or association or an official

extracurricular club, or that is paid for as a service offered by a business specializing in those events or activities or training for those events or activities.

(c) A class or program of vocational instruction offered by a college, community college, nonprofit association, or unit of government or by a business specializing in vocational training.

(d) An event or activity sponsored by a religious organization that is tax-exempt under federal law.

(e) Transporting an individual in need of immediate emergency care or personal protection to a health care professional, hospital, police station, domestic violence shelter, or public safety location.

History: Add. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 1999, Act 40, Imd. Eff. June 9, 1999 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001 ;-- Am. 2002, Act 422, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 554, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 71, Imd. Eff. Apr. 20, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2010, Act 268, Eff. Mar. 30, 2011 ;-- Am. 2011, Act 124, Imd. Eff. July 20, 2011 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2019, Act 33, Imd. Eff. June 25, 2019

257.310f Issuance of corrected operator's or chauffeur's license; address confidentiality program participant; renewal; definitions.

Sec. 310f.

(1) Beginning 180 days after the effective date of the amendatory act that added this section, upon receipt of a notice from the department of the attorney general that an individual who has been issued an operator's or chauffeur's license under this act has been certified as a program participant in the address confidentiality program, the secretary of state shall issue a corrected operator's or chauffeur's license to that individual by mailing the license to his or her designated address. Beginning 180 days after the effective date of the amendatory act that added this section, an operator's or chauffeur's license issued under this section or section 310 to a program participant must display the individual's designated address and must not display the individual's residence address.

(2) An individual who is issued a corrected license under this section shall destroy his or her old license and replace it with the corrected license.

(3) Beginning 180 days after the effective date of the amendatory act that added this section, an individual whose certification as a program participant in the address confidentiality program is renewed under the address confidentiality program act may renew a license issued under this section upon payment of the renewal fee under section 811.

(4) As used in this section:

(a) "Address confidentiality program" means a program as that term is defined in section 3 of the address confidentiality program act.

(b) "Designated address" means that term as defined in section 3 of the address confidentiality program act.

(c) "Program participant" means that term as defined in section 3 of the address confidentiality program act.

History: Add. 2020, Act 304, Imd. Eff. Dec. 29, 2020

257.311 Possession of operator's or chauffeur's license or receipt when operating motor vehicle required; display; identification.

Sec. 311.

The licensee shall have his or her operator's or chauffeur's license, or the receipt described in section 311a, in his or her immediate possession at all times when operating a motor vehicle, and shall display the same upon demand of any police officer, who shall identify himself or herself as such.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1983, Act 63, Eff. Mar. 29, 1984

257.311a Issuance of receipt for operator's or chauffeur's license; form; approval; design; effect; expiration of receipt and license; renewal of license.

Sec. 311a.

If the court requires a person who is accused of a misdemeanor or ordinance violation to surrender his or her operator's or chauffeur's license pursuant to section 6 of chapter V of the code of criminal procedure, Act No. 175 of the Public Acts of 1927, being section 765.6 of the Michigan Compiled Laws, or section 4 of Act No. 257 of the Public Acts of 1966, being section 780.64 of the Michigan Compiled Laws, and if the license is not expired, suspended, revoked, or canceled, the court shall issue to the licensee a receipt for the license. The form of the receipt shall be approved or provided by the secretary of state. The form shall be designed so that it may contain a photocopy of an operator's or chauffeur's license. The receipt shall have the effect of granting driving privileges identical to the operator's or chauffeur's license surrendered to the court but that effect shall cease on the date on which the receipt expires, or on the date on which the license expires, whichever date occurs first. If the license expires or will expire while the license is surrendered, the secretary of state may renew the operator's or chauffeur's license pursuant to section 314. The expiration date of the receipt shall be specified by the court on the receipt.

History: Add. 1983, Act 63, Eff. Mar. 29, 1984

257.312 Restricted operator's or chauffeur's license; contents; expiration; suspension or revocation; violation as misdemeanor; exceptions.

Sec. 312.

(1) Upon proper showing of extenuating circumstances and special reasons, or need by an applicant who meets the age qualifications and when accompanied by the fee as provided in this act, the secretary of state may recommend a restricted operator's or chauffeur's license containing conditions and restrictions applicable to the licensee, the type of special mechanical control devices required in a motor vehicle operated by the licensee, and the area, time, or other condition that the secretary of state considers necessary to assure the safe operation of a vehicle by the licensee and under which the licensee may operate a motor vehicle. A license issued to a person who is at least 14 years of age and under 16 years of age shall contain only the conditions determining the hours during which the licensee may drive a motor vehicle and the purpose for which it is to be driven. A license issued to a minor who is at least 14 years of age and under 16 years of age shall be revoked by the secretary of state on the written request of a parent, guardian, or person standing in loco parentis.

(2) An operator's license issued to a person who is at least 14 years of age and under 16 years of age expires on the birthday following issuance of the license or if that birthday is within 6 months after the date of issuance of the license, then 1 year after the date of that birthday.

(3) Upon receiving satisfactory evidence of a violation of the restrictions of the license, the secretary of state may suspend or revoke the license.

(4) A person who violates a restriction imposed in a restricted license issued to that person is guilty of a misdemeanor. This subsection does not apply to a person who is at least 14 years of age and under 16 years of age.

(5) If a motor vehicle is being driven by a person who is at least 14 years of age and under 16 years of age, and that person is accompanied by a parent, guardian, or person standing in loco parentis, the conditions, limitations, and restrictions set forth in this section do not apply.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001

257.312a Motorcycle indorsement; issuance, suspension, revocation, cancellation, or renewal; special restricted license to operate moped; requirements; expiration; duration; fees; violation as civil infraction or misdemeanor; fines or penalty.

Sec. 312a.

(1) An individual, before operating a motorcycle, other than an autocycle, upon a public street or highway in this state, shall procure a motorcycle indorsement on his or her operator's or chauffeur's license. The license must be issued, suspended, revoked, canceled, or renewed in accordance with and governed by this act.

(2) An individual, before operating a moped upon a highway, shall procure a special restricted license to operate a moped unless the individual has a valid operator's or chauffeur's license. A special restricted license to operate a moped may be issued to an individual 15 years of age or older if the individual satisfies the secretary of state that he or she is competent to operate a moped with safety. The secretary of state shall not require a road test before issuance of a special restricted license to operate a moped.

(3) A special restricted license to operate a moped expires on the birthday of the individual it is issued to in the fourth year following the date of issuance. A license must not be issued for a period longer than 4 years. An individual issued a license to operate a moped shall pay $7.50 for an original license and $6.00 for a renewal license. The money received and collected under this subsection must be deposited in the state treasury to the credit of the general fund. The secretary of state shall refund out of the fees collected to each county or municipality, acting as an examining officer, $2.50 for each applicant examined for an original license and $1.00 for a renewal license.

(4) An individual who violates subsection (1) is responsible for a civil infraction or guilty of a misdemeanor punishable as follows:

(a) For a first violation, the individual is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $250.00.

(b) For a violation that occurs after 1 or more prior judgments, the individual is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $500.00, or both.

History: Add. 1956, Act 178, Imd. Eff. Apr. 16, 1956 ;-- Am. 1959, Act 260, Eff. Mar. 19, 1960 ;-- Am. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2013, Act 177, Imd. Eff. Nov. 26, 2013 ;-- Am. 2016, Act 318, Eff. Feb. 7, 2017 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.312b Motorcycle endorsement; examination; motorcycle safety course; waiver of certain tests; 3-wheeled motorcycle; restriction; establishing and conducting driving skills test; rules; audit of motorcycle safety fund; third party motorcycle program; prohibited conduct; violation as felony.

Sec. 312b.

(1) Before a person who is less than 18 years of age is issued an original motorcycle endorsement on an operator's or chauffeur's license, the person shall pass a motorcycle safety course approved by the department as described in sections 811a and 811b.

(2) Before a person who is 18 years of age or older is issued an original motorcycle endorsement on an operator's or chauffeur's license, the person shall pass an examination as required by this section. A person who fails this examination 2 or more times is required to successfully complete a motorcycle safety course approved by the department as described in sections 811a and 811b. Each written examination given an applicant for a motorcycle endorsement on an operator's or chauffeur's license as provided in section 309 shall also include subjects designed to cover a motorcycle. A person shall pass an examination that shall include a driving test designed to test the competency of the applicant for the first motorcycle endorsement on an operator's or chauffeur's license to operate a motorcycle upon the roads and highways of this state with safety to himself or herself and other persons and property. All examinations shall be administered as provided in this act. The requirement of a written knowledge test, road sign test, and motorcycle driving skills test shall be waived for an applicant who has successfully completed a motorcycle safety course approved by the department as described in sections 811a and 811b. The motorcycle safety course skills test shall meet or exceed the motorcycle skills test from the secretary of state. The requirement of a motorcycle driving skills test may be waived if the applicant has a valid license or endorsement to operate a motorcycle from another state.

(3) A motorcycle endorsement issued to a person who operates a 3-wheeled motorcycle other than an autocycle is restricted to operation of that type of motorcycle and does not permit operation of a 2-wheeled motorcycle. The secretary of state shall develop a driving test specifically pertaining to a 3-wheeled motorcycle other than an autocycle.

(4) The secretary of state is responsible for establishing and conducting the motorcycle operator driving skills test and shall promulgate rules under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, for purposes of this subsection. An audit of the motorcycle safety fund shall be conducted by the office of the auditor general to determine compliance with the requirement that funds are being withdrawn only in relation to this act. A copy of the audit shall be transmitted to the legislature upon completion.

(5) The secretary of state may enter into an agreement with another public or private corporation or agency to conduct a driving skills test required under this section. Before the secretary of state authorizes a person to administer a corporation's or agency's driver skills testing operations or authorizes an examiner to conduct a driving skills test, that person or examiner must complete both a state and Federal Bureau of Investigation fingerprint based criminal history check through the department of state police. In an agreement with another public or private corporation or agency to conduct a driving skills test under this section, the secretary of state shall prescribe the method and examination criteria to be followed by the

corporation, agency, or examiner when conducting the driving skills test and the form of the certification to be issued to a person who satisfactorily completes a driving skills test. For administering and overseeing a third party motorcycle testing program, the secretary of state shall be reimbursed from the motorcycle safety fund a total amount that does not exceed 50% of the department's 1995-1996 fiscal year appropriation for motorcycle testing under this section.

(6) A person who corrupts or attempts to corrupt a corporation, agency, or examiner that conducts a driving skills test under an agreement entered into with the secretary of state under this section by giving, offering, or promising any gift or gratuity with the intent to influence the opinion or decision of the corporation, agency, or examiner conducting the driving skills test is guilty of a felony.

(7) A designated examining officer appointed or designated by the secretary of state who conducts a driving skills test under an agreement entered into under this section and who varies from, shortens, or in any other way changes the method or examination criteria prescribed to be followed under that agreement in conducting a driving skills test under this section is guilty of a felony.

(8) A person who forges, counterfeits, or alters a satisfactorily completed driving skills test certification issued by a designated examining officer appointed or designated by the secretary of state under this section is guilty of a felony.

History: Add. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1974, Act 108, Imd. Eff. May 21, 1974 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1982, Act 187, Eff. Jan. 1, 1984 ;-- Am. 1984, Act 328, Imd. Eff. Dec. 26, 1984 ;-- Am. 1987, Act 85, Imd. Eff. June 29, 1987 ;-- Am. 1988, Act 68, Imd. Eff. Mar. 25, 1988 ;-- Am. 1988, Act 495, Eff. Apr. 1, 1989 ;-- Am. 1992, Act 59, Imd. Eff. May 20, 1992 ;-- Am. 1996, Act 345, Imd. Eff. June 28, 1996 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001 ;-- Am. 2003, Act 103, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2013, Act 177, Imd. Eff. Nov. 26, 2013 ;-- Am. 2016, Act 23, Eff. May 23, 2016

Compiler's Notes: Section 2 of Act 187 of 1982 provides:“(1) Except as provided in subsection (2), this amendatory act shall take effect January 1, 1984.“(2) Sections 312b(2) and 811a(3) shall take effect July 1, 1982.”

Admin Rule: R 257.971 et seq. of the Michigan Administrative Code.

257.312c Motorcycle endorsement; application; fees; disposition of money; motorcycle safety and education awareness fund; creation; deposit of money or other assets; investment; interest and earnings; money remaining in fund at close of fiscal year; state treasurer as administrator; "look twice – save a life" program; renewal motorcycle endorsement fee; increase.

Sec. 312c.

(1) Every application for a motorcycle endorsement on an operator's or chauffeur's license for operation of motorcycles as provided in section 312a shall be accompanied by the following fees, which shall be in addition to any other original or renewal operator or chauffeur license fee:

(a) Until January 19, 2018:

Original motorcycle endorsement	$ 13.50
Renewal of motorcycle endorsement	$ 5.00

(b) Beginning January 20, 2018:

Original motorcycle endorsement	$ 16.00

Renewal of motorcycle endorsement $ 7.00

(2) Except as otherwise provided in this subsection, the money received and collected under this section shall be deposited in the state treasury to the credit of the general fund. The secretary of state shall refund out of the fees collected to each county or municipality, acting as an examining officer or examining bureau, $3.00 for each applicant examined for a first endorsement to a 3- or 4-year operator's or chauffeur's license, $2.50 for each original endorsement to a 2-year operator's or chauffeur's license, $1.50 for each renewal endorsement to a 2-year operator's or chauffeur's license, and $1.50 for every other applicant examined whose application is not denied, on the condition, however, that the money refunded shall be paid to the county or local treasurer and is appropriated to the county, municipality, or officer or bureau receiving the money for the purpose of carrying out this act. Ten dollars of each original motorcycle endorsement and $3.00 of each renewal motorcycle endorsement shall be placed in a motorcycle safety fund in the state treasury and shall be used only by the secretary of state for the motorcycle safety education program as provided under section 811a, and $2.50 of each original motorcycle endorsement and $2.00 of each renewal motorcycle endorsement shall be placed in the motorcycle safety and education awareness fund created in subsection (3).

(3) The motorcycle safety and education awareness fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund. The state treasurer shall be the administrator of the fund for auditing purposes. The secretary of state shall expend money from the fund for the purpose of creating and maintaining a "look twice —— save a life" program that promotes motorcycle awareness, safety, and education.

(4) Beginning on October 1, 2018 and ending on December 31, 2019, the renewal motorcycle endorsement fees provided for in subsection (1)(b) are increased by $2.00. The $2.00 provided for in this subsection shall be deposited in the motorcycle safety fund described in subsection (2).

History: Add. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1975, Act 122, Imd. Eff. July 1, 1975 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1982, Act 187, Eff. Jan. 1, 1984 ;-- Am. 1988, Act 495, Eff. Apr. 1, 1989 ;-- Am. 1996, Act 345, Imd. Eff. June 28, 1996 ;-- Am. 2003, Act 103, Eff. Oct. 1, 2003 ;-- Am. 2017, Act 115, Eff. Oct. 25, 2017 ;-- Am. 2017, Act 238, Eff. Mar. 21, 2018

257.312d Reference to operator's or chauffeur's license as including motorcycle or vehicle indorsement or vehicle group designation.

Sec. 312d.

If a reference is made in this act to operator's or chauffeur's license, or both, the reference includes a motorcycle or vehicle indorsement or vehicle group designation under section 312e on the operator's or chauffeur's license.

History: Add. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173

of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.312e Operation of commercial motor vehicle; vehicle group designation; tests; holder of unexpired operator's or chauffeur's license; qualifications and fees for vehicle group designation and endorsement; operation of school bus; exceptions; F vehicle indorsement; knowledge test and driving skills test; disposition of money collected under subsection (7); refund to county or municipality; compliance with MCL 257.303 and 257.319b; requirements for implementing and enforcing federal law.

Sec. 312e.

(1) Except as otherwise provided in this section, an individual, before operating a commercial motor vehicle, shall obtain the required vehicle group designation as follows:

(a) An individual, before operating a combination of motor vehicles with a gross combination weight rating or gross combination weight of 26,001 pounds or more, whichever is greater, inclusive of towed units with a gross vehicle weight rating or gross vehicle weight of more than 10,000 pounds, shall procure a group A vehicle designation on his or her operator's or chauffeur's license. Unless an endorsement or the removal of restrictions is required, an individual licensed to operate a group A vehicle may operate a group B or C vehicle without taking another test.

(b) An individual, before operating a single vehicle having a gross vehicle weight rating or gross vehicle weight of 26,001 pounds or more, whichever is greater, including while towing a vehicle having a gross vehicle weight rating or gross vehicle weight of not more than 10,000 pounds, shall procure a group B vehicle designation on his or her operator's or chauffeur's license. Unless an endorsement or the removal of restrictions is required, an individual licensed to operate a group B vehicle may operate a group C vehicle without taking another test.

(c) An individual, before operating a single vehicle or a combination of vehicles that fits the definition of small vehicle (group C) under 49 CFR 383.91(a)(3) shall procure a group C vehicle designation and a hazardous material or passenger vehicle endorsement on his or her operator's or chauffeur's license.

(2) An applicant for a vehicle group designation shall take knowledge and driving skills tests that comply with minimum federal standards prescribed in 49 CFR part 383 as required under this act and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380.

(3) The license must be issued, suspended, revoked, canceled, or renewed in accordance with this act.

(4) Except as provided in this subsection, all of the following apply:

(a) If an individual operates a group B passenger vehicle while taking his or her driving skills test for a P endorsement, he or she is restricted to operating only group B or C passenger vehicles under that P endorsement. If an individual operates a group B school bus while taking his or her driving skills test for an S endorsement, he or she is restricted to operating only group B or C school buses under that S endorsement. Except as provided in this section, beginning July 8, 2015, the secretary of state shall place on the commercial learner's permit or

commercial driver license the following restriction code as provided under 49 CFR 383.95 and 383.153: not valid to operate a group A passenger commercial motor vehicle.

(b) If an individual operates a group C passenger vehicle while taking his or her driving skills test for a P endorsement, he or she is restricted to operating only group C passenger vehicles under that P endorsement. If an individual operates a group C school bus while taking his or her driving skills test for an S endorsement, he or she is restricted to operating only group C school buses under that S endorsement. Except as provided in this section, beginning July 8, 2015, the secretary of state shall place on the commercial learner's permit or commercial driver license the following restriction code as provided under 49 CFR 383.95 and 383.153: not valid to operate a group A or group B passenger commercial motor vehicle.

(c) An individual who fails the air brake portion of the written or driving skills test provided under section 312f or who takes the driving skills test provided under that section in a commercial motor vehicle that is not equipped with air brakes shall not operate a commercial motor vehicle equipped with air brakes. Except as provided in this section, beginning July 8, 2015, the secretary of state shall place on the commercial learner's permit or commercial driver license the following restriction code as provided under 49 CFR 383.95 and 383.153: CDL not valid for vehicle with air brakes.

(d) Except as provided in this section, beginning July 8, 2015, the secretary of state shall place on a commercial learner's permit or commercial driver license the following restriction codes as provided under 49 CFR 383.95 and 383.153:

(i) For a commercial learner's permit:

(A) No passengers in a commercial motor vehicle bus.

(B) No cargo in a commercial motor vehicle tank vehicle.

(C) Commercial motor vehicle operation with medical variance.

(D) Commercial motor vehicle operation intrastate only.

(ii) For a commercial driver license:

(A) Not valid to operate commercial motor vehicle equipped with full air brakes.

(B) Not valid to operate commercial motor vehicle equipped with manual transmission.

(C) Not valid to operate a group A commercial vehicle tractor-trailer combination connected by fifth wheel.

(D) Commercial motor vehicle operation intrastate only.

(E) Commercial motor vehicle operation with medical variance.

(5) An individual, before operating a commercial motor vehicle, shall obtain the following vehicle endorsements as provided under 49 CFR 383.93 and 383.153:

(a) An individual, before operating a commercial motor vehicle pulling double trailers, shall obtain the appropriate vehicle group designation and a T vehicle endorsement under this act.

(b) An individual applying for a commercial learner's permit to operate an empty tank motor vehicle shall obtain the appropriate vehicle group designation and an N endorsement. An individual, before operating a tank motor vehicle, shall have on a commercial driver license the appropriate vehicle group designation and an N vehicle endorsement under this act.

(c) Until February 6, 2022, an individual, before operating a commercial motor vehicle carrying hazardous materials on which a placard is required under 49 CFR parts 100 to 199, shall procure the appropriate vehicle group designation and an H vehicle endorsement under this act. Beginning February 7, 2022, an individual, before operating a commercial motor vehicle carrying hazardous materials on which a placard is required under 49 CFR parts 100 to 199, shall complete the entry level driver training described and required under 49 CFR part 380 to procure the appropriate vehicle group designation and an H vehicle endorsement under this act.

(d) An individual, before operating a tank motor vehicle carrying hazardous materials, shall obtain the appropriate vehicle group designation and both an N and H vehicle endorsement, which must be designated by the code letter X on the individual's operator's or chauffeur's license.

(e) An individual applying for a commercial learner's permit to operate a passenger commercial motor vehicle that is not a school bus, as set forth in section 306a(2)(e), shall obtain the appropriate commercial vehicle group designation and a P endorsement. An individual, before operating a vehicle that is designed to transport 16 or more passengers including the driver but that is not a school bus must have on a commercial driver license the appropriate vehicle group designation and a P vehicle endorsement under this act. An applicant for a P vehicle endorsement must take the driving skills test in a vehicle designed to transport 16 or more passengers including the driver and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380.

(f) An individual applying for a commercial learner's permit to operate a school bus designed to transport 16 or more passengers, including the driver, as set forth in section 306a(2)(e), who does not currently possess a P endorsement, shall obtain the appropriate vehicle group designation and pass the knowledge tests for both the P and S endorsements. An individual, before operating a school bus, must have on a commercial driver license the appropriate vehicle group designation and both the P and S vehicle endorsements under this act. An applicant for an S vehicle endorsement shall take a driving skills test in a school bus designed to transport 16 or more passengers, including the driver, that represents the same type of vehicle that the applicant intends to operate as a school bus and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380.

(g) An individual who currently possesses a P endorsement and is applying for a commercial learner's permit to operate a school bus designed to transport 16 or more passengers, including the driver, as set forth in section 306(a)(2)(e), shall obtain the appropriate vehicle group designation and pass the knowledge test for the S endorsement. An individual who currently possesses a P endorsement, before operating a school bus designed to transport 16 or more passengers, including the driver, shall obtain the appropriate vehicle group designation, pass the knowledge test for an S endorsement, and obtain an S vehicle endorsement for his or her commercial driver license under this act. An applicant for an S vehicle endorsement shall take a driving skills test in a school bus designed to transport 16 or more passengers, including the driver, that represents the same type of vehicle that the applicant intends to operate as a school bus and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380.

(6) An applicant for an endorsement shall take the knowledge and driving skills tests described and required under 49 CFR part 383 and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380.

(7) The holder of an unexpired operator's or chauffeur's license may be issued a vehicle group designation and endorsement valid for the remainder of the license upon meeting the qualifications of section 312f and payment of the original vehicle group designation fee of $25.00 and an endorsement fee of $5.00 per endorsement, and a corrected license fee of $18.00. An individual required to procure an F vehicle endorsement under subsection (9) shall pay an endorsement fee of $5.00.

(8) Except as otherwise provided in subsections (9) and (10), this section does not apply to a driver or operator of a vehicle under all of the following conditions:

(a) The vehicle is controlled and operated by a farmer or an employee or family member of the farmer.

(b) The vehicle is used to transport agricultural products, farm machinery, farm supplies, or a combination of these items, to or from a farm.

(c) The vehicle is not used in the operation of a common or contract motor carrier.

(d) The vehicle is operated within 150 miles of the farm.

(9) An individual, before driving or operating a combination of vehicles having a gross vehicle weight rating of 26,001 pounds or more on the power unit that is used as described in subsection (8)(a) to (d), shall obtain an F vehicle endorsement. The F vehicle endorsement must be issued upon successful completion of a knowledge test only.

(10) An individual, before driving or operating a single vehicle truck having a gross vehicle weight rating of 26,001 pounds or more or a combination of vehicles having a gross vehicle weight rating of 26,001 pounds or more on the power unit that is used as described in subsection (8)(a) to (d) for carrying hazardous materials on which a placard is required under 49 CFR parts 100 to 199, shall successfully complete both a knowledge test and a driving skills test. Upon successful completion of the knowledge test and driving skills test, the individual shall be issued the appropriate vehicle group designation and any vehicle endorsement necessary under this act.

(11) This section does not apply to a police officer operating an authorized emergency vehicle or to a firefighter operating an authorized emergency vehicle who has met the driver training standards published under the firefighters training council act, 1966 PA 291, MCL 29.361 to 29.377.

(12) This section does not apply to an individual operating a vehicle used exclusively to transport personal possessions or family members for nonbusiness purposes.

(13) The money collected under subsection (7) for a vehicle group designation or endorsement must be deposited in the state treasury to the credit of the general fund. The secretary of state shall refund out of the fees collected to each county or municipality acting as an examining officer or examining bureau $3.00 for each applicant examined for a first designation or endorsement to an operator's or chauffeur's license and $1.50 for each renewal designation or endorsement to an operator's or chauffeur's license, whose application is not denied, on the condition that the money refunded must be paid to the county or local treasurer and is appropriated to the county, municipality, or officer or bureau receiving that money for the purpose of carrying out this act.

(14) Notwithstanding any other provision of this section, an individual operating a vehicle described in subsections (8) and (9) is subject to the provisions of sections 303 and 319b.

(15) This state shall comply with the requirements of the American Association of Motor Vehicle Administrators' AAMVAnet, Incorporated's "Commercial Driver License Information System (CDLIS) State Procedures Manual" that the secretary of state determines are required for implementing and enforcing federal law.

History: Add. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 1, Imd. Eff. Jan. 25, 1980 ;-- Am. 1980, Act 123, Imd. Eff. May 21, 1980 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 1990, Act 67, Imd. Eff. Apr. 27, 1990 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 2000, Act 158, Imd. Eff. June 14, 2000 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2006, Act 212, Imd. Eff. June 19, 2006 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2022, Act 193, Imd. Eff. Oct. 4, 2022

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”In subsection (5)(g)the reference to “section 306(a)(2)(e)” evidently should read “section 306a(2)(e)”.

257.312f Vehicle group designation or endorsement on operator's or chauffeur's license; hazardous material endorsement; vehicle used for farming purposes; age; tests; waiver; seasonal restricted vehicle group designation; conditions prohibiting issuance of commercial learner's permit, vehicle group designation, or vehicle endorsement; cancellation; determining applicability of subsection (5); "farm related service industry" defined.

Sec. 312f.

(1) Except as otherwise provided in this section, an individual shall be not less than 18 years of age before the individual is issued a vehicle group designation or endorsement, other than a motorcycle endorsement, or not less than 21 years of age and has been approved by the Transportation Security Administration for a hazardous material endorsement before the individual is issued a hazardous material endorsement on an operator's or chauffeur's license and, as provided in this section, the individual shall pass a knowledge test and a driving skills test that comply with minimum federal standards prescribed in 49 CFR part 383 and, beginning February 7, 2022, complete the entry level driver training described and required under 49 CFR part 380. The knowledge test and the driving skills test scores must be retained by the secretary of state as provided under 49 CFR 383.135. An individual who is 18 years of age or older operating a vehicle to be used for farming purposes only may obtain an A or B vehicle group designation or an F vehicle endorsement. Each written examination given to an applicant for a vehicle group designation or endorsement must include subjects designed to cover the type or general class of vehicle to be operated. Except as follows, an individual shall pass an examination that includes a driving skills test designed to test competency of the applicant for an original vehicle group designation and passenger endorsement on an operator's or chauffeur's license to drive that type or general class of vehicle upon the highways of this state with safety to persons and property and, beginning February 7, 2022, complete an entry level driver training:

(a) The secretary of state shall waive the driving skills test for an individual operating a vehicle that is used under the conditions described in section 312e(8)(a) to (d) unless the vehicle has a gross vehicle weight rating of 26,001 pounds or more on the power unit and is to be used to carry hazardous materials on which a placard is required under 49 CFR parts 100 to 199.

(b) The driving skills test may be waived if the applicant has a valid license with the appropriate vehicle group designation, passenger vehicle endorsement, or school bus endorsement in another state issued in compliance with 49 USC 31301 to 31317, or if the

individual successfully passes a driving skills test administered in another state that meets the requirements of federal law and the law of this state.

(c) The secretary of state may waive the knowledge test and the driving skills test required under this section for an individual with military commercial motor vehicle experience if the individual, at the time of application, certifies and provides evidence satisfactory to the secretary of state that the individual continuously met all of the requirements under 49 CFR part 383 during the 2-year period immediately preceding the date of application for the commercial driver license.

(d) Beginning February 7, 2022, the secretary of state may waive the entry level driver training required under this section for an individual who, at the time of application, certifies and provides evidence satisfactory to the secretary of state that the individual meets 1 of the exceptions for taking a driving skills test under 49 CFR part 383.

(2) Except for an individual who has held an operator's or chauffeur's license for less than 1 year, the secretary of state shall waive the knowledge test and the driving skills test and issue a 1-year seasonal restricted vehicle group designation to an otherwise qualified applicant to operate a group B or a group C vehicle for a farm related service industry if all of the following conditions are met:

(a) The applicant meets the requirements of 49 CFR 383.77.

(b) The seasons for which the seasonal restricted vehicle group designation is issued are from April 2 to June 30 and from September 2 to November 30 only of a 12-month period or, at the option of the applicant, for not more than 180 days from the date of issuance in a 12-month period.

(c) The commercial motor vehicle for which the seasonal restricted vehicle group designation is issued must be operated only if all the following conditions are met:

(i) The commercial motor vehicle is operated only on routes within 150 miles from the place of business to the farm or farms being served.

(ii) The commercial motor vehicle does not transport a quantity of hazardous materials on which a placard under 49 CFR parts 100 to 199 is required except for the following:

(A) Diesel motor fuel in quantities of 1,000 gallons or less.

(B) Liquid fertilizers in quantities of 3,000 gallons or less.

(C) Solid fertilizers that are not transported with any organic substance.

(iii) The commercial motor vehicle does not require the H, N, P, S, T, or X vehicle endorsement.

(3) A seasonal restricted vehicle group designation under this section must be issued, suspended, revoked, canceled, denied, or renewed in accordance with this act. The secretary of state may renew a seasonal restricted vehicle group designation 1 time per calendar year regardless of whether the seasonal restricted vehicle group designation is expired at the time of renewal.

(4) The secretary of state may enter into an agreement with another public or private corporation or agency to conduct a driving skills test required under this section, section 312e, or 49 CFR part 383 or to provide the entry level driver training described and required under 49 CFR part 380. Before the secretary of state authorizes an individual to administer a corporation's or agency's driver skills testing operations, authorizes an examiner to conduct a driving skills test, or authorizes an entry level driver training provider that meets the requirements of 49 CFR 380.700 to conduct an entry level driving training, that individual, examiner, or entry level driver training provider must complete both a state and Federal Bureau of Investigation fingerprint-based criminal history check through the department of state police.

(5) The secretary of state shall not issue a commercial learner's permit, a vehicle group designation, or a vehicle endorsement to an applicant for an original vehicle group designation or vehicle endorsement under section 312e or may cancel a commercial learner's permit or all vehicle group designations or endorsements on an individual's operator's or chauffeur's license to whom 1 or more of the following apply:

(a) The applicant has had the applicant's license suspended or revoked for a reason other than as provided in section 321a, 515, or 801c or section 30 of the support and parenting time enforcement act, 1982 PA 295, MCL 552.630, in the 36 months immediately preceding application. However, a vehicle group designation may be issued if the suspension or revocation was due to a temporary medical condition or failure to appear at a reexamination as provided in section 320.

(b) The applicant was convicted of or incurred a bond forfeiture in relation to a 6-point violation as provided in section 320a in the 24 months immediately preceding application if the violation occurred while the applicant was operating a commercial motor vehicle, or a violation of section 625(3) or former section 625b, or a local ordinance that substantially corresponds to section 625(3) or former section 625b in the 24 months immediately preceding application, if the applicant was operating any type of motor vehicle.

(c) The applicant is listed on the National Driver Register, the Commercial Driver's License Information System, the driving records of the state in which the applicant was previously licensed, or, beginning November 18, 2024, the National Drug and Alcohol Clearinghouse as being disqualified from operating a commercial motor vehicle or as having a license or driving privilege suspended, revoked, canceled, or denied.

(d) The applicant is listed on the National Driver Register, the Commercial Driver's License Information System, or the driving records of the state in which the applicant was previously licensed as having had a license suspended, revoked, or canceled in the 36 months immediately preceding application if a suspension or revocation would have been imposed under this act had the applicant been licensed in this state in the original instance. This subdivision does not apply to a suspension or revocation that would have been imposed due to a temporary medical condition or under section 321a, 515, or 801c or section 30 of the support and parenting time enforcement act, 1982 PA 295, MCL 552.630.

(e) The applicant is subject to a suspension or revocation under section 319b or would have been subject to a suspension or revocation under section 319b if the applicant had been issued a vehicle group designation or vehicle endorsement.

(f) The applicant has been disqualified from operating a commercial motor vehicle under 49 USC 31301 to 31317 or the applicant's license to operate a commercial motor vehicle has been suspended, revoked, denied, or canceled within 36 months immediately preceding the date of application.

(g) The United States Secretary of Transportation has disqualified the applicant from operating a commercial motor vehicle.

(h) The applicant fails to satisfy the federal regulations promulgated under 49 CFR parts 383 and 391 by refusing to certify the type of commercial motor vehicle operation the applicant intends to perform and fails to present valid medical certification to the secretary of state if required to do so. The requirement of this subdivision is waived from July 1, 2020 to August 31, 2021, pursuant to the Waiver in Response to the COVID-19 National Emergency – For States, CDL Holders, CLP Holders, and Interstate Drivers Operating Commercial Motor Vehicles, or any extension of that waiver issued after August 31, 2021.

(i) The applicant has been disqualified from operating a commercial motor vehicle due to improper or fraudulent testing.

(j) If the secretary of state determines through a governmental investigation that there is reason to believe that a commercial driver license or endorsement was issued as a result of fraudulent or improper conduct in taking a knowledge test or driving skills test required under 49 CFR part 383 or in completing the entry level driver training described and required under 49 CFR part 380, the secretary of state shall require the applicant to retake and successfully pass that test or complete the training. The secretary of state shall cancel any commercial driver license or endorsement issued as a result of the suspect test or training unless the applicant retakes and passes that test or completes the training.

(6) The secretary of state shall not renew or upgrade a vehicle group designation if 1 or more of the following conditions exist:

(a) The United States Secretary of Transportation has disqualified the applicant from operating a commercial motor vehicle.

(b) The applicant is listed on the National Driver Register, the Commercial Driver's License Information System, or, beginning November 18, 2024, the National Drug and Alcohol Clearinghouse as being disqualified from operating a commercial motor vehicle or as having a driver license or driving privilege suspended, revoked, canceled, or denied.

(c) On or after January 30, 2012, the applicant fails to meet the requirements of 49 CFR parts 383 and 391 by refusing to certify the type of commercial motor vehicle operation the applicant intends to perform and fails to present medical certification to the secretary of state if required to do so. The requirement of this subdivision is waived from July 1, 2020 to August 31, 2021, pursuant to the Waiver in Response to the COVID-19 National Emergency – For States, CDL Holders, CLP Holders, and Interstate Drivers Operating Commercial Motor Vehicles, or any extension of that waiver issued after August 31, 2021.

(7) The secretary of state shall only consider bond forfeitures under subsection (5)(b) for violations that occurred on or after January 1, 1990 when determining the applicability of subsection (5).

(8) If an applicant for an original vehicle group designation was previously licensed in another jurisdiction, the secretary of state shall request a copy of the applicant's driving record from that jurisdiction. If 1 or more of the conditions described in subsection (5) exist in that jurisdiction when the secretary of state receives the copy, the secretary of state shall cancel all vehicle group designations on the individual's operator's or chauffeur's license.

(9) The secretary of state shall cancel all vehicle group designations on an individual's operator's or chauffeur's license upon receiving notice from the United States Secretary of Transportation, the National Driver Register, the Commercial Driver's License Information System, or another state or jurisdiction that 1 or more of the conditions described in subsection (5) existed at the time of the individual's application in this state.

(10) The secretary of state shall cancel all vehicle group designations on the individual's operator's or chauffeur's license upon receiving proper notice that the individual no longer meets the federal driver qualification requirements under 49 CFR parts 380, 383, and 391 to operate a commercial motor vehicle in interstate or intrastate commerce, or the individual no longer meets the driver qualification requirements to operate a commercial motor vehicle in intrastate commerce under the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(11) Subsection (5)(a), (b), (d), and (f) does not apply to an applicant for an original vehicle group designation who at the time of application has a valid license to operate a commercial motor vehicle issued by any state in compliance with 49 USC 31301 to 31317.

(12) As used in this section, "farm related service industry" means custom harvesters, farm retail outlets and suppliers, agri-chemical business, or livestock feeders.

History: Add. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1981, Act 92, Imd. Eff. July 2, 1981 ;-- Am. 1984, Act 306, Imd. Eff. Dec. 21, 1984 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1990, Act 67, Imd. Eff. Apr. 27, 1990 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1992, Act 179, Imd. Eff. July 31, 1992 ;-- Am. 1992, Act 180, Eff. Jan. 1, 1993 ;-- Am. 2002, Act 259, Imd. Eff. May 1, 2002 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 473, Eff. Mar. 28, 2013 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2016, Act 58, Imd. Eff. Mar. 29, 2016 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021 ;-- Am. 2021, Act 148, Imd. Eff. Dec. 27, 2021 ;-- Am. 2022, Act 193, Imd. Eff. Oct. 4, 2022 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.312g Transportation of hazardous material; hazardous material endorsement on operator's or chauffeur's license required; violation; penalty.

Sec. 312g.

A person shall not transport or require, permit, or knowingly allow to be transported a hazardous material for which a placard is required under 49 CFR parts 100 to 199 in a commercial motor vehicle if the operator of the vehicle does not have a hazardous material endorsement on his or her operator's or chauffeur's license. A person who violates this section is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $500.00, or both.

History: Add. 2005, Act 179, Imd. Eff. Oct. 20, 2005

Compiler's Notes: Former MCL 257.312g, which pertained to disposition and refund of fees, was repealed by Act 280 of 1989, Imd. Eff. Dec. 26, 1989.

257.312h Vehicle group designation and indorsement on chauffeur's license; additional fees; duration of indorsement; disposition and refund of fees.

Sec. 312h.

(1) A person who is issued an original chauffeur's license as described in section 314(3), upon payment of a vehicle group designation fee as provided under section 312e(7) and $5.00 for each indorsement in addition to any other chauffeur's license fees and compliance with section 312f, may be issued a vehicle group designation and indorsement for the same period.

(2) The money collected under this section shall be deposited in the state treasury to the credit of the general fund. The secretary of state shall refund out of the fees collected to each

county or municipality acting as an examining officer or examining bureau, $2.00 for each applicant examined for a vehicle group designation or indorsement to a first chauffeur's license whose application is not denied, on the condition, however, that the money refunded shall be paid to the county or local treasurer and is appropriated to the county, municipality, or officer or bureau receiving that money for the purpose of carrying out this act.

History: Add. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.312i Pickup truck with fifth wheel assembly and attached semitrailer; R vehicle indorsement required; prohibition; written examination; fee; exemption.

Sec. 312i.

(1) A person, before operating a pickup truck equipped with a fifth wheel assembly with an attached semitrailer designed for recreational living purposes and towing an additional trailer or semitrailer, shall procure an R vehicle indorsement on the operator's or chauffeur's license. An R vehicle indorsement shall not be issued to a person who is 17 years of age or less.

(2) Before a person is issued an original R vehicle indorsement on an operator's or chauffeur's license, the person shall pass a written examination which shall include subjects designed to cover knowledge needed to tow a double trailer combination. All examinations shall be administered as provided in this act.

(3) Every application for an R vehicle indorsement on an operator's or chauffeur's license for operation of a pickup truck as provided in this section shall be accompanied by a fee of $10.00 which shall be in addition to any other original or renewal operator or chauffeur license fee.

(4) A person who is licensed under this act to operate either a group A designated vehicle with a T vehicle indorsement or a group B designated vehicle with a T vehicle indorsement is exempt from the requirements of this section.

History: Add. 1990, Act 75, Imd. Eff. May 17, 1990

257.312j Skills testing of individual holding valid out-of-state commercial learner's permit; pilot program.

Sec. 312j.

(1) The department shall establish a pilot program that, as determined by the department, provides for the skills testing of an individual who holds a valid commercial learner's permit issued by a state other than this state.

(2) An individual who holds a valid commercial learner's permit issued by a state other than this state is not eligible for skills testing as described in subsection (1) unless all of the following are satisfied:

(a) The individual has successfully completed a truck driver training curriculum that has been approved by the department and provided by a person that has been approved to provide truck driver training under the driver education provider and instructor act, 2006 PA 384, MCL 256.621 to 256.705.

(b) The state that issued the commercial learner's permit is a participant in an electronic national commercial driver examination reporting system in which this state is also a participant.

(3) The pilot program described in subsection (1) shall continue until the department adopts curriculum requirements for a person providing instruction to individuals seeking a vehicle group designation or indorsement described in section 312e.

History: Add. 2016, Act 321, Eff. Feb. 20, 2017

257.312k Commercial driver licenses; medical certifications; hazardous material endorsements; pandemic expiration extension.

Sec. 312k.

(1) Notwithstanding any other provisions in this act, all of the following apply:

(a) A commercial driver license that expires on or after March 1, 2020 is valid until March 31, 2021. A commercial driver license that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

(b) Medical certification for operator's or chauffeur's license holders with a group designation required under 49 CFR 391.45 that expires on or after March 1, 2020 is valid until March 31, 2021. Medical certification for operator's or chauffeur's license holders with a group designation required under 49 CFR 391.45 that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration. This subdivision does not apply to either of the following:

(i) A medical certification for operator's or chauffeur's license holders with a group designation required under 49 CFR 391.45 that was not valid before March 1, 2020.

(ii) An individual issued a medical certification for operator's or chauffeur's license holders with a group designation required under 49 CFR 391.45 who, since his or her last medical certificate was issued, has been diagnosed with a medical condition that would disqualify the individual from operating in interstate commerce, or who, since his or her last medical certificate was issued, has developed a condition that requires an exemption or Skill Performance Evaluation from the Federal Motor Carrier Safety Administration.

(c) Hazardous material endorsements that expire on or after March 1, 2020 are valid until October 29, 2020. A security threat assessment required under 49 CFR 1572.13(a) that is valid on or after March 1, 2020 is valid until October 29, 2020. An individual with a hazardous material endorsement that is extended for 180 days under this subdivision must initiate a security threat assessment with the National Highway Traffic Safety Administration at least 60 days before the expiration of the hazardous material endorsement.

(2) This section does not affect the secretary of state's authority to revoke or suspend an operator's or chauffeur's license or a group designation or indorsement under this act.

History: Add. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021
Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.313 Operator's or chauffeur's license; loss, destruction, mutilation, or illegibility; duplicate; proof.

Sec. 313.

(1) Except as provided in subsection (2) and section 812, if an operator's or chauffeur's license issued under this chapter is lost, destroyed, or mutilated, or becomes illegible, the person to whom the license was issued may obtain a duplicate upon the payment of the fee required in section 812, upon furnishing proof satisfactory to the secretary of state that the license has been lost, destroyed, or mutilated, or has become illegible, and upon certifying that the license is not being held by a court as a condition of that person's recognizance. The secretary of state may check the applicant's driving record through the national driver register and the commercial driver license information system before issuing a license under this section.

(2) Subsection (1) does not apply if the operator's or chauffeur's license is destroyed pursuant to section 625g(1)(b)(iii).

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1983, Act 63, Eff. Mar. 29, 1984 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004

257.314 Operator's or chauffeur's license; duration; expiration; identification of licensee less than 21; renewal; extension; pandemic expiration extension.

Sec. 314.

(1) Except as otherwise provided in this section, an operator's license and chauffeur's license expire on the birthday of the individual to whom the license is issued in the fourth year following the date of the issuance of the license or on the date the individual is no longer considered to be legally present in the United States under section 307, whichever is earlier, unless suspended or revoked before that date. A license must not be issued for a period longer than 4 years. An individual holding a license at any time 12 months before the expiration of his or her license may apply for a new license as provided for in this chapter. A knowledge test for an original group designation or indorsement may be taken at any time during this period and the results are valid for 12 months. A license renewed under this subsection must be renewed for the time remaining on the license before its renewal combined with the 4-year renewal period.

(2) The first operator's license issued to an individual who at the time of application is less than 20-1/2 years of age expires on the licensee's twenty-first birthday or on the date the individual is no longer considered to be legally present in the United States under section 307, whichever is earlier, unless suspended or revoked.

(3) The first chauffeur's license issued to an individual expires on the licensee's birthday in the fourth year following the date of issuance or on the date the individual is no longer considered to be legally present in the United States under section 307, whichever is earlier, unless the license is suspended or revoked before that date. The chauffeur's license of an individual who at the time of application is less than 20-1/2 years of age expires on the licensee's twenty-first birthday or on the date the individual is no longer considered to be legally present in the United States under section 307, whichever is earlier, unless suspended or revoked. A subsequent chauffeur's license expires on the birthday of the individual to whom the license is issued in the fourth year following the date of issuance of the license or on the date the individual is no longer considered to be legally present in the United States under section 307, whichever is earlier, unless the license is suspended or revoked before that date.

(4) An individual may apply for an extension of his or her driving privileges if he or she is out of state on the date that his or her operator's or chauffeur's license expires. The extension may extend the license for 180 days beyond the expiration date or not more than 2 weeks after the applicant returns to Michigan, whichever occurs first. This subsection does not apply to an individual who fails to meet the requirements of 49 CFR parts 383 and 391 with regard to medical certification documentation requirements.

(5) The secretary of state may issue a renewal operator's or chauffeur's license to an individual who will be out of state for more than 180 days beyond the expiration date of his or her operator's or chauffeur's license, if the secretary of state has a digital image of the individual on file. The applicant for this renewal shall submit a statement evidencing a vision examination in accordance with the rules promulgated by the secretary of state under section 309 and any other statement required by this act or federal law. An individual is not eligible for consecutive renewals of a license under this subsection. This subsection does not apply to an individual who fails to meet the requirements of 49 CFR parts 383 and 391 with regard to medical certification documentation requirements, or an individual with a hazardous material endorsement on his or her operator's or chauffeur's license.

(6) The secretary of state may check the applicant's driving record through the National Driver Register and the Commercial Driver's License Information System before issuing a renewal under this section.

(7) Notwithstanding the provisions of this section, an operator's or chauffeur's license that expires on or after March 1, 2020 is valid until March 31, 2021. Notwithstanding the provisions of this section, an operator's or chauffeur's license that expires after March 31, 2021 but before August 1, 2021 is valid until 120 days after the date of the expiration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1967, Act 78, Eff. Jan. 1, 1968 ;-- Am. 1970, Act 124, Imd. Eff. July 23, 1970 ;-- Am. 1972, Act 357, Imd. Eff. Jan. 9, 1973 ;-- Am. 1974, Act 56, Imd. Eff. Apr. 1, 1974 ;-- Am. 1975, Act 122, Imd. Eff. July 1, 1975 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1982, Act 30, Eff. Mar. 15, 1982 ;-- Am. 1984, Act 289, Eff. Mar. 29, 1985 ;-- Am. 1985, Act 67, Imd. Eff. July 1, 1985 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 2000, Act 173, Imd. Eff. June 20, 2000 ;-- Am. 2002, Act 554, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802,

and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

Admin Rule: R 257.851 et seq. of the Michigan Administrative Code.

257.314a Repealed. 1978, Act 139, Eff. May 1, 1979.

Compiler's Notes: The repealed section provided for 3-year license to phase in 4-year license.

257.314b Repealed. 2004, Act 362, Imd. Eff. Oct. 4, 2004.

Compiler's Notes: The repealed section pertained to two-year license for certain licensed drivers.

257.315 Operator's and chauffeur's license; change of address; notice; use of residence address on qualified voter file; failure to report change; violation; penalty; nonappealability.

Sec. 315.

(1) An operator or chauffeur who changes his or her residence before the expiration of a license granted under this chapter shall immediately notify the secretary of state of his or her new residence address. A change of address notification shall be in a manner prescribed by the secretary of state and may include notification by personally appearing at a branch office of the secretary of state or other location designated by the secretary of state, or a notification by mail, telephone, electronically, by submitting a voter registration application unless the person registers to vote in a city, village, or township that prohibits the operation of motor vehicles by law or ordinance, or by any other means prescribed by the secretary of state. The secretary of state shall provide the person changing his or her residence address the notice required by section 307(1)(c) that, under sections 509o and 509r of the Michigan election law, 1954 PA 116, MCL 168.509o and 168.509r, the secretary of state is required to use the residence address provided on this change of address application as the person's residence address on the qualified voter file for voter registration and voting. However, a person may submit to the secretary of state a mailing address that is different than his or her residence address.

(2) Upon receiving a change of address notification, the secretary of state shall change the person's driver license record to indicate the new residence address. The secretary of state shall provide the person with a new license or a label or some other mechanism containing the new residence address. Upon receipt of the label or other mechanism, the person shall affix the label or mechanism to his or her operator's or chauffeur's license as prescribed by the secretary

of state. If the secretary of state furnished the person with a new license, the person shall destroy his or her old license and replace it with the new license.

(3) If a person fails to report a change of his or her residence address as required under this section and subsequently there is no response to a notice mailed to the residence address shown by the record of the secretary of state or if the person has provided the secretary of state a mailing address different from his or her residence address and there is no response to a notice mailed to that mailing address, the secretary of state may immediately suspend or revoke his or her license. A person who fails to report a change of his or her residence address is responsible for a civil infraction.

(4) A person shall not knowingly report a change of address to the secretary of state for himself or herself that is not his or her residence address. A person shall not knowingly report a change of address to the secretary of state for another person without the consent of the other person. A person who is convicted of a violation of this subsection is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of $1,000.00, or both. Upon receiving the abstract of a conviction under this subsection, the secretary of state may suspend the person's operator's or chauffeur's license for 6 months. The secretary of state shall not issue a restricted license to the person during the suspension.

(5) Upon a second or subsequent conviction under subsection (4), a person is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of $5,000.00, or both. Upon receiving the abstract of a second or subsequent conviction under subsection (4), the secretary of state shall revoke the person's operator's or chauffeur's license.

(6) The suspension or revocation of an operator's or chauffeur's license under subsection (4) or (5) is not appealable under section 323.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 206, Eff. Aug. 1, 1966 ;-- Am. 1999, Act 118, Eff. Apr. 1, 2000 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.316 Operator's or chauffeur's license; filing and indexing applications; records.

Sec. 316.

The secretary of state shall file each application for an operator's or chauffeur's license and index the application by name and number. The secretary of state shall maintain suitable records of licenses issued, applications for licenses denied, and a record of licenses which have been revoked, canceled, or suspended. The secretary of state shall note upon those records each conviction, civil infraction determination, and probate court finding of the person to whom the license is granted, as provided in this act, and shall preserve those records for not less than 6 years after the date of application.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004

257.316a Repealed. 1990, Act 188, Eff. Aug. 15, 1990.

Compiler's Notes: The repealed section pertained to qualifications of school bus drivers and substitutes.

CANCELLATION, SUSPENSION, OR REVOCATION OF LICENSES

257.317 Suspension or revocation of right of nonresident to operate vehicle in state; forwarding certified copy of record; notification to other states.

Sec. 317.

(1) The secretary of state may suspend, deny, or revoke the right of a nonresident to operate a motor vehicle in this state for a cause for which the license of a resident driver may be suspended, denied, or revoked. A nonresident who drives a motor vehicle on a highway when the privilege to drive has been suspended, revoked, or denied by the secretary of state is guilty of a misdemeanor punishable as provided in section 904.

(2) The secretary of state, on receiving a record of the conviction, civil infraction determination, suspension, revocation, or forfeiture of bail in this state of a nonresident of a violation the record of which is required to be maintained under section 204a, shall forward a certified copy of the record to the motor vehicle administrator or other appropriate officer in the state in which the individual is a resident.

(3) Within 10 days after an appeal is completed or the appeal period has expired if an appeal is not made in a conviction, civil infraction determination, or bond forfeiture entered against a nonresident in this state for a violation committed while operating a commercial motor vehicle or any violation for a commercial driver license holder regardless of vehicle type, except a parking violation, the secretary of state shall notify the motor vehicle administration or other appropriate officer of the state where the nonresident is licensed of that conviction, determination, or forfeiture.

(4) If the secretary of state suspends, revokes, cancels, or denies the driving privileges of a nonresident for 60 days or more and that nonresident is licensed by another state to operate a commercial motor vehicle, the secretary of state shall, within 10 days after the effective date of the suspension, revocation, cancellation, or denial, forward a notification about that suspension, revocation, cancellation, or denial to the motor vehicle administrator or other appropriate officer of the state where the nonresident is licensed to operate a motor vehicle. A notice given under this subsection must include both the denial, if any, and the violation that caused the suspension, revocation, cancellation, or denial of the nonresident's driving privileges.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1967, Act 226, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2018, Act 566, Eff. Mar. 28, 2019 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021

257.318 Suspension or revocation of license of person convicted or determined responsible for violation in another state; failure to comply with interstate compact.

Sec. 318.

(1) The secretary of state may suspend or revoke the license issued under this act upon receiving notice of the conviction of that person in another state of an offense in that state, or the determination of responsibility of that person in an administrative adjudication in another state for a violation in that state which, if committed in this state, would be grounds for the suspension or revocation of the license of an operator or chauffeur.

(2) The secretary of state shall suspend a license issued under this act upon receiving notice of the license holder's failure to comply with a citation issued by another state until the

secretary of state receives satisfactory evidence of compliance from the other state. This subsection does not apply unless the governor of this state has entered into an interstate compact requiring the suspension described in this subsection. The secretary of state may only share the information described in this subsection to verify driving privileges or licensure status, to report a conviction or withdrawal, or to ensure compliance with 49 CFR 384.209.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2018, Act 566, Eff. Mar. 28, 2019

257.319 Suspension of license; crimes; violations; waiver; restricted license; "prior conviction" as used in subsection (8); 2 or more convictions; appeal.

Sec. 319.

(1) The secretary of state shall immediately suspend an individual's license as provided in this section on receiving a record of the individual's conviction for a crime described in this section, whether the conviction is under a law of this state, a local ordinance that substantially corresponds to a law of this state, a law of another state that substantially corresponds to a law of this state, or, beginning October 31, 2010, a law of the United States that substantially corresponds to a law of this state.

(2) The secretary of state shall suspend the individual's license for 1 year for any of the following crimes:

(a) Fraudulently altering or forging documents pertaining to motor vehicles in violation of section 257.

(b) A violation of section 413 of the Michigan penal code, 1931 PA 328, MCL 750.413.

(c) A felony in which a motor vehicle was used. As used in this section, "felony in which a motor vehicle was used" means a felony during the commission of which the individual convicted operated a motor vehicle and while operating the vehicle presented real or potential harm to individuals or property and 1 or more of the following circumstances existed:

(i) The vehicle was used as an instrument of the felony.

(ii) The vehicle was used to transport a victim of the felony.

(iii) The vehicle was used to flee the scene of the felony.

(iv) The vehicle was necessary for the commission of the felony.

(d) A violation of section 602a(2) or (3) or section 479a(2) or (3) of the Michigan penal code, 1931 PA 328, MCL 750.479a.

(e) Beginning October 31, 2010, a violation of section 601d.

(3) The secretary of state shall suspend the individual's license for 90 days for any of the following crimes:

(a) Failing to stop and disclose identity at the scene of an accident resulting in injury in violation of section 617a.

(b) A violation of section 601b(2), section 601c(1), section 653a(3), section 626 before October 31, 2010, or, beginning October 31, 2010, section 626(2).

(c) Malicious destruction resulting from the operation of a vehicle under section 382(1)(b), (c), or (d) of the Michigan penal code, 1931 PA 328, MCL 750.382.

(4) The secretary of state shall suspend the individual's license for 30 days for malicious destruction resulting from the operation of a vehicle under section 382(1)(a) of the Michigan penal code, 1931 PA 328, MCL 750.382.

(5) For perjury or making a false certification to the secretary of state under any law requiring the registration of a motor vehicle or regulating the operation of a vehicle on a

highway, or for conduct prohibited under section 324(1) or a local ordinance that substantially corresponds to section 324(1), the secretary of state shall suspend the individual's license as follows:

(a) If the individual has no prior conviction for an offense described in this subsection within 7 years, for 90 days.

(b) If the individual has 1 or more prior convictions for an offense described in this subsection within 7 years, for 1 year.

(6) For a violation of section 414 of the Michigan penal code, 1931 PA 328, MCL 750.414, the secretary of state shall suspend the individual's license as follows:

(a) If the individual has no prior conviction for that offense within 7 years, for 90 days.

(b) If the individual has 1 or more prior convictions for that offense within 7 years, for 1 year.

(7) For a violation of section 624a or 624b, the secretary of state shall suspend the individual's license as follows:

(a) If the individual has 1 prior conviction for an offense described in section 624a or 624b, for 90 days. The secretary of state may issue the individual a restricted license after the first 30 days of suspension.

(b) If the individual has 2 or more prior convictions for an offense described in section 624a or 624b, for 1 year. The secretary of state may issue the individual a restricted license after the first 60 days of suspension.

(8) The secretary of state shall suspend the individual's license for a violation of section 625 or 625m as follows:

(a) For 180 days for a violation of section 625(1) or (8) before October 31, 2010 or, beginning October 31, 2010, section 625(1)(a) or (b) or (8) if the individual has no prior convictions within 7 years. The secretary of state may issue the individual a restricted license during a specified portion of the suspension, except that the secretary of state shall not issue a restricted license during the first 30 days of suspension.

(b) For 90 days for a violation of section 625(3) if the individual has no prior convictions within 7 years. However, if the individual is convicted of a violation of section 625(3), for operating a vehicle when, due to the consumption of a controlled substance or a combination of alcoholic liquor and a controlled substance, the individual's ability to operate the vehicle was visibly impaired, the secretary of state shall suspend the individual's license under this subdivision for 180 days. The secretary of state may issue the individual a restricted license during all or a specified portion of the suspension.

(c) For 30 days for a violation of section 625(6) if the individual has no prior convictions within 7 years. The secretary of state may issue the individual a restricted license during all or a specified portion of the suspension.

(d) For 90 days for a violation of section 625(6) if the individual has 1 or more prior convictions for that offense within 7 years.

(e) For 180 days for a violation of section 625(7) if the individual has no prior convictions within 7 years. The secretary of state may issue the individual a restricted license after the first 90 days of suspension.

(f) For 90 days for a violation of section 625m if the individual has no prior convictions within 7 years. The secretary of state may issue the individual a restricted license during all or a specified portion of the suspension.

(g) Beginning October 31, 2010, for 1 year for a violation of section 625(1)(c) if the individual has no prior convictions within 7 years or not more than 2 convictions within 10

years. The secretary of state may issue the individual a restricted license, except that the secretary of state shall not issue a restricted license during the first 45 days of suspension.

(h) Beginning October 31, 2010, the department shall order an individual convicted of violating section 625(1)(c) not to operate a motor vehicle under a restricted license issued under subdivision (g) unless the vehicle is equipped with an ignition interlock device approved, certified, and installed as required under sections 625k and 625l. The ignition interlock device may be removed after the interlock device provider provides the department with verification that the individual has operated the vehicle with no instances of reaching or exceeding a blood alcohol level of 0.025 grams per 210 liters of breath. This subdivision does not prohibit the removal of the ignition interlock device for any of the following:

(i) A start-up test failure that occurs within the first 2 months after installation of the device. As used in this subdivision, "start-up test failure" means that the ignition interlock device has prevented the motor vehicle from being started. Multiple unsuccessful attempts at 1 time to start the vehicle are treated as 1 start-up test failure only under this subparagraph.

(ii) A start-up test failure occurring more than 2 months after installation of the device, if not more than 15 minutes after detecting the start-up test failure the individual delivers a breath sample that the ignition interlock device analyzes as having an alcohol level of less than 0.025 grams per 210 liters of breath.

(iii) A retest prompted by the device, if not more than 5 minutes after detecting the retest failure the individual delivers a breath sample that the ignition interlock device analyzes as having an alcohol level of less than 0.025 grams per 210 liters of breath.

(i) Beginning October 31, 2010, if an individual violates the conditions of the restricted license issued under subdivision (g) or operates or attempts to operate a motor vehicle with a blood alcohol level of 0.025 grams per 210 liters of breath, the secretary of state shall impose an additional like period of suspension and restriction as prescribed under subdivision (g). This subdivision does not require an additional like period of suspension and restriction for any of the following:

(i) A start-up test failure within the first 2 months after installation of the ignition interlock device. As used in this subdivision, "start-up test failure" means that the ignition interlock device has prevented the motor vehicle from being started. Multiple unsuccessful attempts at 1 time to start the vehicle are treated as 1 start-up test failure only under this subparagraph.

(ii) A start-up test failure occurring more than 2 months after installation of the device, if not more than 15 minutes after detecting the start-up test failure the individual delivers a breath sample that the ignition interlock device analyzes as having an alcohol level of less than 0.025 grams per 210 liters of breath.

(iii) Any retest prompted by the device, if not more than 5 minutes after detecting the retest failure the individual delivers a breath sample that the ignition interlock device analyzes as having an alcohol level of less than 0.025 grams per 210 liters of breath.

(9) For a violation of section 367c of the Michigan penal code, 1931 PA 328, MCL 750.367c, the secretary of state shall suspend the individual's license as follows:

(a) If the individual has no prior conviction for an offense described in this subsection within 7 years, for 6 months.

(b) If the individual has 1 or more convictions for an offense described in this subsection within 7 years, for 1 year.

(10) For a violation of section 315(4), the secretary of state may suspend the individual's license for 6 months.

(11) Except as provided in subsection (13), a suspension under this section must be imposed notwithstanding a court order unless the court order complies with section 323.

(12) If the secretary of state receives records of more than 1 conviction of an individual that results from the same incident, a suspension must be imposed only for the violation to which the longest period of suspension applies under this section.

(13) The secretary of state may waive a restriction, suspension, or revocation of an individual's license imposed under this act if the individual submits proof that a court in another state revoked, suspended, or restricted his or her license for a period equal to or greater than the period of a restriction, suspension, or revocation prescribed under this act for the violation and that the revocation, suspension, or restriction was served for the violation, or may grant a restricted license.

(14) The secretary of state shall not issue a restricted license to an individual whose license is suspended under this section unless a restricted license is authorized under this section and the individual is otherwise eligible for a license.

(15) The secretary of state shall not issue a restricted license to an individual under subsection (8) that would permit the individual to operate a commercial motor vehicle.

(16) Except as provided in subsection (15), a restricted license issued under this section must permit the individual to whom it is issued to take any driving skills test required by the secretary of state and to operate a vehicle under 1 or more of the following circumstances:

(a) In the course of the individual's employment or occupation.

(b) To and from any combination of the following:

(i) The individual's residence.

(ii) The individual's work location.

(iii) An alcohol or drug education or treatment program as ordered by the court.

(iv) The court probation department.

(v) A court-ordered community service program.

(vi) An educational institution at which the individual is enrolled as a student.

(vii) A place of regularly occurring medical treatment for a serious condition for the individual or a member of the individual's household or immediate family.

(viii) An ignition interlock service provider as required.

(17) While driving with a restricted license, the individual shall carry proof of his or her destination and the hours of any employment, class, or other reason for traveling and shall display that proof on a peace officer's request.

(18) Subject to subsection (20), as used in subsection (8), "prior conviction" means a conviction for any of the following, whether under a law of this state, a local ordinance that substantially corresponds to a law of this state, or a law of another state that substantially corresponds to a law of this state:

(a) Except as provided in subsection (19), a violation or attempted violation of any of the following:

(i) Section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(ii) Section 625m.

(iii) Former section 625b.

(b) Negligent homicide, manslaughter, or murder that results from the operation of a vehicle or an attempt to commit any of those crimes.

(c) Beginning October 31, 2010, a violation of section 601d or section 626(3) or (4).

(19) Except for purposes of the suspensions described in subsection (8)(c) and (d), only 1 violation or attempted violation of section 625(6), a local ordinance that substantially corresponds to section 625(6), or a law of another state that substantially corresponds to section 625(6) may be used as a prior conviction.

(20) If 2 or more convictions described in subsection (18) are convictions for violations arising out of the same transaction, only 1 conviction must be used to determine whether the individual has a prior conviction.

(21) Any period of suspension or restriction required under this section is not subject to appeal to the secretary of state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1967, Act 226, Eff. Nov. 2, 1967 ;-- Am. 1976, Act 285, Eff. Apr. 1, 1977 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 159, Eff. Mar. 31, 1982 ;-- Am. 1981, Act 222, Imd. Eff. Jan. 5, 1982 ;-- Am. 1982, Act 64, Eff. Mar. 30, 1983 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1986, Act 177, Imd. Eff. July 7, 1986 ;-- Am. 1988, Act 205, Eff. July 1, 1988 ;-- Am. 1988, Act 406, Eff. Mar. 30, 1989 ;-- Am. 1991, Act 93, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1996, Act 587, Eff. June 1, 1997 ;-- Am. 1998, Act 347, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 118, Eff. Apr. 1, 2000 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2000, Act 152, Imd. Eff. June 12, 2000 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2001, Act 103, Eff. Oct. 1, 2001 ;-- Am. 2001, Act 134, Eff. Feb. 1, 2002 ;-- Am. 2001, Act 159, Eff. Feb. 1, 2002 ;-- Am. 2002, Act 422, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2008, Act 462, Eff. Oct. 31, 2010 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011 ;-- Am. 2010, Act 267, Eff. June 30, 2011 ;-- Am. 2012, Act 306, Imd. Eff. Oct. 1, 2012 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2016, Act 32, Eff. June 6, 2016 ;-- Am. 2016, Act 358, Eff. Jan. 1, 2018 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”Section 2 of Act 205 of 1988 provides: “This amendatory act shall take effect July 1, 1988 and apply to violations which occur on or after that date.”Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.319a Repealed. 2002, Act 534, Eff. Oct. 1, 2002.

Compiler's Notes: The repealed section pertained to suspension of class 1, class 2, or class 3 indorsement on license.

257.319b Suspension or revocation of commercial learners permits or vehicle group designations on operator's or chauffeur's license; notice of conviction, bond forfeiture, civil infraction determination, violation of law, or refusal to submit to chemical test; period of suspension or revocation; denial, cancellation, or revocation of hazardous material indorsement; notice of security risk; applicability of conditions; definitions.

Sec. 319b.

(1) The secretary of state shall immediately suspend or revoke, as applicable, all commercial learners permits or vehicle group designations on the operator's or chauffeur's license of an individual upon receiving notice of a conviction, bond forfeiture, or civil infraction determination of the individual, or notice that a court or administrative tribunal has found the individual responsible, for a violation described in this subsection of a law of this state, a local ordinance substantially corresponding to a law of this state while the individual was operating a commercial motor vehicle, or a law of another state substantially corresponding to a law of this state, or notice that the individual has refused to submit to a chemical test of the individual's blood, breath, or urine for the purpose of determining the amount of alcohol or presence of a controlled substance or both in the individual's blood, breath, or urine while the individual was operating a commercial motor vehicle as required by a law or local ordinance of this or another state. The period of suspension or revocation is as follows:

(a) Suspension for 60 days, to run consecutively with any commercial driver license action imposed under this section, if the individual is convicted of or found responsible for 1 of the following while operating a commercial motor vehicle:

(i) Two serious traffic violations arising from separate incidents within 36 months.

(ii) A violation of section 667, 668, 669, or 669a.

(iii) A violation of motor carrier safety regulations 49 CFR 392.10 or 392.11, as adopted by section 1a of the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11a.

(iv) A violation of section 57 of the pupil transportation act, 1990 PA 187, MCL 257.1857.

(v) A violation of motor carrier safety regulations 49 CFR 392.10 or 392.11 while operating a commercial motor vehicle other than a vehicle covered under subparagraph (iii) or (iv).

(vi) A violation of commercial motor vehicle fraudulent testing law.

(b) Suspension for 120 days, to be served consecutively with a 60-day suspension imposed under subdivision (a)(i), if the individual is convicted of or found responsible for 1 of the following arising from separate incidents within 36 months while operating a commercial motor vehicle:

(i) Three serious traffic violations.

(ii) Any combination of 2 violations described in subdivision (a)(ii).

(c) Suspension for 1 year, to run consecutively with any commercial driver license action imposed under this section, if the individual is convicted of or found responsible for 1 of the following:

(i) A violation of section 625(1), (3), (4), (5), (6), (7), or (8), section 625m, or former section 625(1) or (2), or former section 625b, while operating a commercial or noncommercial motor vehicle.

(ii) Leaving the scene of an accident involving a commercial or noncommercial motor vehicle operated by the individual.

(iii) Except for a felony described in 49 CFR 383.51(b)(9), a felony in which a commercial or noncommercial motor vehicle was used.

(iv) A refusal of a peace officer's request to submit to a chemical test of the individual's blood, breath, or urine to determine the amount of alcohol or presence of a controlled substance or both in the individual's blood, breath, or urine while the individual was operating a commercial or noncommercial motor vehicle as required by a law or local ordinance of this state or another state.

(v) Operating a commercial motor vehicle in violation of a suspension, revocation, denial, or cancellation that was imposed for previous violations committed while operating a commercial motor vehicle.

(vi) Causing a fatality through the negligent or criminal operation of a commercial motor vehicle, including, but not limited to, the crimes of motor vehicle manslaughter, motor vehicle homicide, and negligent homicide.

(vii) A violation of commercial motor vehicle fraudulent testing law.

(viii) Any combination of 3 violations described in subdivision (a)(ii) arising from separate incidents within 36 months while operating a commercial motor vehicle.

(d) Suspension for 3 years, to run consecutively with any commercial driver license action imposed under this section, if the individual is convicted of or found responsible for an offense enumerated in subdivision (c)(i) to (vi) in which a commercial motor vehicle was used if the vehicle was carrying hazardous material required to have a placard under 49 CFR parts 100 to 199.

(e) Revocation for life, to run consecutively with any commercial driver license action imposed under this section, but with eligibility for reissue of a group vehicle designation after not less than 10 years and after approval by the secretary of state, if the individual is convicted of or found responsible for 2 violations or a combination of any 2 violations arising from 2 or more separate incidents involving any of the following:

(i) Section 625(1), (3), (4), (5), (6), (7), or (8), section 625m, or former section 625(1) or (2), or former section 625b, while operating a commercial or noncommercial motor vehicle.

(ii) Leaving the scene of an accident involving a commercial or noncommercial motor vehicle operated by the licensee.

(iii) Except for a felony described in 49 CFR 383.51(b)(9), a felony in which a commercial or noncommercial motor vehicle was used.

(iv) A refusal of a request of a police officer to submit to a chemical test of the individual's blood, breath, or urine for the purpose of determining the amount of alcohol or presence of a controlled substance or both in the individual's blood while the individual was operating a commercial or noncommercial motor vehicle in this state or another state.

(v) Operating a commercial motor vehicle in violation of a suspension, revocation, denial, or cancellation that was imposed for previous violations committed while operating a commercial motor vehicle.

(vi) Causing a fatality through the negligent or criminal operation of a commercial motor vehicle, including, but not limited to, the crimes of motor vehicle manslaughter, motor vehicle homicide, and negligent homicide.

(f) Revocation for life if an individual is convicted of or found responsible for any of the following:

(i) One violation of a felony in which a commercial motor vehicle was used and that involved the manufacture, distribution, or dispensing of a controlled substance or possession with intent to manufacture, distribute, or dispense a controlled substance.

(ii) A conviction of any offense described in subdivision (c) or (d) after having been approved for the reissuance of a vehicle group designation under subdivision (e).

(iii) A conviction of a violation of chapter LXXXIII-A of the Michigan penal code, 1931 PA 328, MCL 750.543a to 750.543z.

(2) The secretary of state shall immediately deny, cancel, or revoke a hazardous material indorsement on the operator's or chauffeur's license of an individual with a vehicle group designation upon receiving notice from a federal government agency that the individual poses a security risk warranting denial, cancellation, or revocation under the uniting and strengthening America by providing appropriate tools required to intercept and obstruct terrorism (USA PATRIOT ACT) act of 2001, Public Law 107-56. The denial, cancellation, or revocation cannot be appealed under section 322 or 323 and remains in effect until the

secretary of state receives a federal government notice that the individual does not pose a security risk in the transportation of hazardous materials.

(3) The secretary of state shall immediately suspend or revoke, as applicable, all commercial learners permits or vehicle group designations on an individual's operator's or chauffeur's license upon receiving notice of a conviction, bond forfeiture, or civil infraction determination of the individual, or notice that a court or administrative tribunal has found the individual responsible, for a violation of section 319d(4) or 319f, a local ordinance substantially corresponding to section 319d(4) or 319f, or a law or local ordinance of another state, the United States, Canada, the United Mexican States, or a local jurisdiction of either of these countries substantially corresponding to section 319d(4) or 319f, while operating a commercial motor vehicle. The period of suspension or revocation, that must run consecutively with any commercial driver license action imposed under this section, is as follows:

(a) Suspension for 180 days if the individual is convicted of or found responsible for a violation of section 319d(4) or 319f while operating a commercial motor vehicle.

(b) Suspension for 180 days if the individual is convicted of or found responsible for a violation of section 319d(4) or 319f while operating a commercial motor vehicle that is either carrying hazardous material required to have a placard under 49 CFR parts 100 to 199 or designed to carry 16 or more passengers, including the driver.

(c) Suspension for 2 years if the individual is convicted of or found responsible for 2 violations, in any combination, of section 319d(4) or 319f while operating a commercial motor vehicle arising from 2 or more separate incidents during a 10-year period.

(d) Suspension for 3 years if the individual is convicted of or found responsible for 3 or more violations, in any combination, of section 319d(4) or 319f while operating a commercial motor vehicle arising from 3 or more separate incidents during a 10-year period.

(e) Suspension for 3 years if the individual is convicted of or found responsible for 2 or more violations, in any combination, of section 319d(4) or 319f while operating a commercial motor vehicle carrying hazardous material required to have a placard under 49 CFR parts 100 to 199, or designed to carry 16 or more passengers, including the driver, arising from 2 or more separate incidents during a 10-year period.

(4) The secretary of state shall suspend or revoke, as applicable, any privilege to operate a commercial motor vehicle as directed by the federal government or its designee.

(5) For the purpose of this section only, a bond forfeiture or a determination by a court of original jurisdiction or an authorized administrative tribunal that an individual has violated the law is considered a conviction.

(6) The secretary of state shall suspend or revoke a vehicle group designation under subsection (1) or deny, cancel, or revoke a hazardous material indorsement under subsection (2) notwithstanding a suspension, restriction, revocation, or denial of an operator's or chauffeur's license or vehicle group designation under another section of this act or a court order issued under another section of this act or a local ordinance substantially corresponding to another section of this act.

(7) A conviction, bond forfeiture, or civil infraction determination, or notice that a court or administrative tribunal has found an individual responsible for a violation described in this subsection while the individual was operating a noncommercial motor vehicle counts against the individual who holds a license to operate a commercial motor vehicle the same as if the individual had been operating a commercial motor vehicle at the time of the violation. For the purpose of this subsection, a noncommercial motor vehicle does not include a recreational vehicle used off-road. This subsection applies to the following state law violations or a local

ordinance substantially corresponding to any of those violations or a law of another state or out-of-state jurisdiction substantially corresponding to any of those violations:

(a) Operating a vehicle in violation of section 625.

(b) Refusing to submit to a chemical test of the individual's blood, breath, or urine for the purpose of determining the amount of alcohol or the presence of a controlled substance or both in the individual's blood, breath, or urine as required by a law or local ordinance of this or another state.

(c) Leaving the scene of an accident.

(d) Using a vehicle to commit a felony.

(8) When determining the applicability of conditions listed in this section, the secretary of state shall consider only violations that occurred after January 1, 1990.

(9) When determining the applicability of conditions listed in subsection (1)(a) or (b), the secretary of state shall count only from incident date to incident date.

(10) As used in this section:

(a) "Felony in which a commercial motor vehicle was used" means a felony during the commission of which the individual convicted operated a commercial motor vehicle and while the individual was operating the vehicle 1 or more of the following circumstances existed:

(i) The vehicle was used as an instrument of the felony.

(ii) The vehicle was used to transport a victim of the felony.

(iii) The vehicle was used to flee the scene of the felony.

(iv) The vehicle was necessary for the commission of the felony.

(b) "Serious traffic violation" means any of the following:

(i) A traffic violation that occurs in connection with an accident in which an individual died.

(ii) Reckless driving.

(iii) Excessive speeding as defined in regulations promulgated under 49 USC 31301 to 31317.

(iv) Improper lane use.

(v) Following too closely.

(vi) Operating a commercial motor vehicle without obtaining any vehicle group designation on the individual's license.

(vii) Operating a commercial motor vehicle without either having an operator's or chauffeur's license in the individual's possession or providing proof to the court, not later than the date by which the individual must appear in court or pay a fine for the violation, that the individual held a valid vehicle group designation and indorsement on the date that the citation was issued.

(viii) Operating a commercial motor vehicle while in possession of an operator's or chauffeur's license that has a vehicle group designation but does not have the appropriate vehicle group designation or indorsement required for the specific vehicle group being operated or the passengers or type of cargo being transported.

(ix) Beginning October 28, 2013, a violation of section 602b(2) or (3) or, beginning on the effective date of the amendatory act that added section 602b(8), a violation of section 602b(2).

(x) Any other serious traffic violation as defined in 49 CFR 383.5 or as prescribed under this act.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 1991, Act 93, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1996, Act 404, Eff. Dec. 21, 1996 ;-- Am. 1998, Act 356, Eff. Oct. 1, 1999 ;-- Am. 2002, Act 259, Imd. Eff. May 1, 2002 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004,

Act 62, Imd. Eff. Apr. 13, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 306, Imd. Eff. Oct. 1, 2012 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2023, Act 39, Eff. June 30, 2023

Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989. "(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."MCL 257.319b, as amended by 2008 PA 463, contains no changes from the 2006 PA 298 amendment.

257.319c Providing United States department of transportation with information pertaining to operator's or chauffeur's license with vehicle group designation; notification of motor vehicle administrator or other appropriate officer.

Sec. 319c.

(1) The secretary of state shall provide the United States department of transportation with the following information pertaining to an operator's or chauffeur's license with a vehicle group designation:

(a) A notice of the issuance of an operator's or chauffeur's license with a vehicle group designation within 10 days after the issuance of the license.

(b) A notice of a suspension, revocation, or denial of a license within 10 days after the suspension, revocation, or denial.

(2) Within 10 days after receiving a record of conviction, civil infraction determination, or forfeiture of bail in this state of a nonresident driver of a commercial motor vehicle for a violation under the motor vehicle laws of this state, other than a parking violation, the secretary of state shall notify the motor vehicle administrator or other appropriate officer in the state in which the person is licensed.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004

Compiler's Notes: Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.319d Operation of commercial motor vehicle by person with certain alcohol content; out-of-service order; violations; penalty.

Sec. 319d.

(1) A person, whether licensed or not, shall not operate a commercial motor vehicle within this state with an alcohol content of 0.015 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(2) A peace officer who has reasonable cause to believe that a person was operating a commercial motor vehicle within the state with an alcohol content of 0.015 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, as measured by a preliminary chemical breath analysis or a chemical test provided under section 625a, shall order the person out-of-service immediately for 24 hours, which shall begin upon issuance of the order.

(3) A peace officer shall immediately order a person who refuses to submit to a preliminary chemical breath analysis requested or a chemical test provided under section 625a out-of-service for 24 hours, which shall begin when the order is issued.

(4) A person ordered out-of-service as described in this section shall not operate a commercial motor vehicle within this state during the 24-hour out-of-service period.

(5) A peace officer who issues an out-of-service order under this section shall provide for the safe and expeditious disposition of a product carried by a commercial motor vehicle that is hazardous or would result in damage to the vehicle, human health, or the environment.

(6) Failure to comply with subsection (1) is not a civil infraction or criminal violation of this act.

(7) A person who violates subsection (4) is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $100.00, or both.

History: Add. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 404, Eff. Dec. 21, 1996 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.319e Repealed. 2020, Act 376, Eff. Oct. 1, 2021.

Compiler's Notes: The repealed section pertained to the automatic suspension of license upon notification of certain convictions.

257.319f Operation of commercial motor vehicle in violation of out-of-state service order; prohibition; suspension; "commercial motor vehicle" defined.

Sec. 319f.

(1) A person shall not operate a commercial motor vehicle in this state in violation of an out-of-service order.

(2) Except as otherwise provided in this subsection, the secretary of state shall immediately suspend all vehicle group designations on the operator's or chauffeur's license of a person convicted of violating a driver out-of-service or vehicle out-of-service order as required under 49 CFR 383.51.

(3) A person who violates an out-of-service order shall be ordered to pay a civil fine as required under section 907.

(4) As used in this section, "commercial motor vehicle" means that term as defined in section 7a and any motor vehicle having a GVWR or GCWR of 10,001 pounds or more.

History: Add. 1996, Act 404, Eff. Dec. 21, 1996 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

257.319g Prohibitions; violations; civil infraction.

Sec. 319g.

(1) An employer shall not knowingly allow, permit, authorize, or require a driver to operate a commercial motor vehicle in violation of any of the following:

(a) Section 667, 668, 669, 669a, or 670 or a federal, state, or local law or regulation pertaining to railroad-highway grade crossings.

(b) Motor carrier safety regulations 49 CFR 392.10 or 392.11, as adopted by section 1a of the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11a.

(c) Section 57 of the pupil transportation act, 1990 PA 187, MCL 257.1857.

(d) Motor carrier safety regulations 49 CFR 392.10 or 392.11, as adopted by section 31 of the motor bus transportation act, 1982 PA 432, MCL 474.131.

(e) Motor carrier safety regulations 49 CFR 392.10 or 392.11 while operating a commercial motor vehicle other than a vehicle covered under subdivision (b), (c), or (d).

(f) Transportation security regulations 49 CFR parts 1570 and 1572 or motor carrier safety regulations 49 CFR parts 383 and 384 that regulate who may operate a commercial motor vehicle that is used to transport hazardous material.

(g) A federal regulation or state law or local ordinance pertaining to an out-of-service order.

(2) Except as otherwise provided for violations listed under subsection (1)(a) and (g), a person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine under section 907.

History: Add. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 495, Eff. Jan. 31, 2005 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

257.320 Investigation or reexamination of person; notice; restricting, suspending, revoking, or imposing other terms and conditions on license; service of notice; suspension of license for more than 1 year prohibited; reexamination; failure to appear for scheduled reexamination; prohibited restricted license.

Sec. 320.

(1) The secretary of state after notice as provided in this section may conduct an investigation or reexamination of a person, based upon 1 or more of the following:

(a) The secretary of state has reason to believe that the person is incompetent to drive a motor vehicle or is afflicted with a mental or physical infirmity or disability rendering it unsafe for that person to drive a motor vehicle.

(b) The person, as a driver, has in 1 or more instances been involved in an accident resulting in the death of a person.

(c) The person, within a 24-month period, has been involved in 3 accidents resulting in personal injury or damage to the property of a person, and the official police report indicates a moving violation on the part of the driver in each of the accidents.

(d) The person has charged against him or her a total of 12 or more points as provided in section 320a within a period of 2 years, or a total of 6 or more points as provided in section 320a(q) within a period of 2 years.

(e) The person has been convicted of violating restrictions, terms, or conditions of the person's license.

(2) The secretary of state, upon good cause, or based solely on the licensed operator's or chauffeur's driving record, may restrict, suspend, revoke, or impose other terms and conditions on the license of a person subject to an investigation or reexamination and require the immediate surrender of the license of that person. The secretary of state shall, in all cases, prescribe the period of restriction, suspension, revocation, or other terms and conditions.

(3) Service of notice shall be made by regular mail to the last known address of the licensee as shown on the most recent license application or change of address on the license as provided by section 315.

(4) A license shall not be suspended under this section for a period of more than 1 year.

(5) The reexamination may be held by the secretary of state pursuant to this section notwithstanding any restriction, suspension, revocation, or denial of a license under this section, section 303 or 319, chapter V, section 625 or 625b, or under any other law of this state. A suspension ordered pursuant to this section shall be in addition to other suspensions.

(6) If a licensed operator or chauffeur fails to appear for a reexamination scheduled by the secretary of state pursuant to this section, the licensed operator's or chauffeur's license may be suspended immediately and shall remain suspended until the licensed operator or chauffeur appears for a reexamination by the secretary of state. However, the secretary of state may restrict, suspend, or revoke the license based solely on the licensed operator's or chauffeur's driving record.

(7) Notwithstanding any other provision of this act, the secretary of state shall not issue a restricted license to a person to operate a commercial motor vehicle when a vehicle group designation is required to operate that vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 180, Eff. Sept. 13, 1958 ;-- Am. 1967, Act 132, Eff. Nov. 2, 1967 ;-- Am. 1968, Act 332, Eff. Jan. 1, 1969 ;-- Am. 1974, Act 316, Imd. Eff. Dec. 15, 1974 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.320a Recording date of conviction, civil infraction determination, or probate court disposition and number of points; interview; violation committed in another state.

Sec. 320a.

(1) Not more than 5 days after receipt of a properly prepared abstract from a court of this state or another state, the secretary of state shall record the date of conviction, civil infraction determination, or probate court disposition, and the number of points for each, based on the following formula, except as otherwise provided in this section and section 629c:

(a) Manslaughter, negligent homicide, or a felony resulting from the operation of a motor vehicle, ORV, or snowmobile	6 points
(b) A violation of section 601b(2) or (3), 601c(1) or (2), or 653a(3) or (4) or, beginning October 31, 2010, a violation of section 601d	6 points
(c) A violation of section 625(1), (4), (5), (7), or (8), section 81134 or 82127(1) of the natural resources and environmental protection act, 1994 PA 451, MCL 324.81134 and 324.82127, or a law or ordinance substantially corresponding to section 625(1), (4), (5), (7), or (8), or section 81134 or 82127(1) of the natural resources and environmental protection act, 1994 PA 451, MCL 324.81134 and 324.82127	6 points
(d) Failing to stop and disclose identity at the scene of an accident when required by law	6 points
(e) Operating a motor vehicle in violation of section 626	6 points
(f) Fleeing or eluding an officer	6 points
(g) A violation of section 627(6) pertaining to speed in a work zone described in that section by exceeding the lawful maximum by more than 15 miles per hour	5 points
(h) A violation of any law or ordinance pertaining to speed by exceeding the lawful maximum by more than 15 miles per hour	4 points
(i) A violation of section 625(3) or (6), section 82127(3) of the natural resources and environmental protection act, 1994 PA 451, MCL 324.82127, or a law or ordinance substantially corresponding to section 625(3) or (6) or section 82127(3) of the natural resources and environmental protection act, 1994 PA 451, MCL 324.82127	4 points
(j) A violation of section 626a or a law or ordinance substantially corresponding to section 626a	4 points
(k) A violation of section 627(6) pertaining to speed in a work zone described in that section by exceeding the lawful maximum by more than 10 but not more than 15 miles per hour	4 points
(l) Beginning October 31, 2010, a moving violation resulting in an at-fault collision with another vehicle, an individual, or any other object	4 points
(m) Careless driving in violation of section 626b or a law or ordinance substantially corresponding to section 626b	3 points
(n) A violation of any law or ordinance pertaining to speed by exceeding the lawful maximum by more than 10 miles per hour but not more than 15 miles per hour	3 points
(o) A violation of section 653a(2)	2 points

(p) A violation of any law or ordinance pertaining to speed by exceeding the lawful maximum by more than 5 miles per hour but not more than 10 miles per hour	2 points
(q) A violation of any law or ordinance pertaining to speed by exceeding the lawful maximum by more than 1 mile per hour but not more than 5 miles per hour	1 point
(r) Disobeying a traffic signal or stop sign, or improper passing	3 points
(s) A violation of section 624a, 624b, or a law or ordinance substantially corresponding to section 624a or 624b	2 points
(t) A violation of section 310e(4) or (6) or a law or ordinance substantially corresponding to section 310e(4) or (6)	2 points
(u) All other moving violations pertaining to the operation of motor vehicles reported under this section	2 points
(v) A refusal by an individual less than 21 years of age to submit to a preliminary breath test required by a peace officer under section 625a	2 points
(w) A violation of section 627(6) pertaining to speed in a work zone described in that section by exceeding the lawful maximum by 10 miles per hour or less	3 points
(x) A third or subsequent violation of section 602b	2 points
(y) A second violation of section 602b	1 point

(2) Points must not be entered for a violation of section 310e(14), 311, 602c, 625m, 627c, 658, 682(5), 710d, 717, 719, 719a, or 723.

(3) Points must not be entered for bond forfeitures.

(4) Points must not be entered for overweight loads or for defective equipment.

(5) If more than 1 conviction, civil infraction determination, or probate court disposition results from the same incident, points must be entered only for the violation that receives the highest number of points under this section.

(6) If an individual has accumulated 9 points as provided in this section, the secretary of state may call the individual in for an interview as to the individual's driving ability and record after due notice as to time and place of the interview. If the individual fails to appear as provided in this subsection, the secretary of state shall add 3 points to the individual's record.

(7) If an individual violates a speed restriction established by an executive order issued during a state of energy emergency as provided by 1982 PA 191, MCL 10.81 to 10.89, the secretary of state shall enter points for the violation under subsection (1).

(8) The secretary of state shall enter 6 points on the record of an individual whose license is suspended or denied under section 625f. However, if a conviction, civil infraction determination, or probate court disposition results from the same incident, additional points for that offense must not be entered.

(9) If a Michigan driver commits a violation in another state that would be a civil infraction if committed in this state, and a conviction results solely because of the failure of the Michigan driver to appear in that state to contest the violation, on receipt of the abstract of conviction by the secretary of state, the violation must be noted on the Michigan driver's record, but points must not be assessed against the Michigan driver license.

History: Add. 1958, Act 180, Eff. Sept. 13, 1958 ;-- Am. 1960, Act 82, Eff. Aug. 17, 1960 ;-- Am. 1963, Act 34, Eff. Sept. 6, 1963 ;-- Am. 1965, Act 41, Imd. Eff. May 25, 1965 ;-- Am. 1965, Act 351, Imd. Eff.

July 23, 1965 ;-- Am. 1968, Act 332, Eff. Jan. 1, 1969 ;-- Am. 1974, Act 28, Imd. Eff. Mar. 2, 1974 ;-- Am. 1975, Act 24, Imd. Eff. Apr. 15, 1975 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 25, Eff. Mar. 31, 1981 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 72, Imd. Eff. June 30, 1981 ;-- Am. 1981, Act 159, Eff. Mar. 31, 1982 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1982, Act 533, Eff. Mar. 30, 1983 ;-- Am. 1987, Act 154, Eff. Dec. 1, 1987 ;-- Am. 1991, Act 93, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 94, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 1996, Act 471, Eff. Apr. 1, 1997 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 350, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 21, Eff. Oct. 1, 2000 ;-- Am. 1999, Act 40, Imd. Eff. June 9, 1999 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2001, Act 103, Eff. Oct. 1, 2001 ;-- Am. 2002, Act 149, Eff. July 1, 2002 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2003, Act 315, Eff. Apr. 8, 2004 ;-- Am. 2004, Act 62, Imd. Eff. Apr. 13, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2004, Act 495, Imd. Eff. Dec. 29, 2004 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 58, Eff. July 1, 2010 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 592, Eff. Mar. 28, 2013 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018 ;-- Am. 2018, Act 349, Eff. Feb. 13, 2019 ;-- Am. 2023, Act 39, Eff. June 30, 2023 ;-- Am. 2026, Act 66, Imd. Eff. July 23, 2026

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."In OAG 6480, issued November 23, 1987, the Attorney General stated: "It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987."

257.320b Driver safety school; establishment; supervision; courses; referrals; voluntary attendance; staying imposition of sentence; fee; approval of school.

Sec. 320b.

(1) A driver safety school may be established in a county by an advisory board consisting of the superintendent of schools of the largest school district in the county who shall act as chairperson and fiscal agent, the county superintendent of schools, a judge of the family division of circuit court, the prosecuting attorney, the sheriff, the chief of police of the largest city in the county; and a judge of a court having jurisdiction over traffic offenses or civil infractions, and 2 citizens at large, who shall be appointed by the county board of commissioners. A school so established shall be conducted under the supervision of the superintendent of public instruction and pursuant to the rules prescribed by the superintendent.

(2) Courses, as prescribed by the superintendent of public instruction, shall be offered for the purpose of developing good driving habits and promoting highway traffic safety. The courses shall be open to the following persons:

(a) A person who is referred to a school by a court having jurisdiction over traffic violations after 2 or more convictions or civil infraction determinations of a moving traffic violation within a 12-month period and who, in the determination of the court, is in need of the remedial education.

(b) A person who, after a hearing as provided in section 320, is referred to a school by the secretary of state.

(c) A person who voluntarily chooses to attend.

(3) For the purpose of referral as provided in this section, the court, after entry of judgment of conviction for a misdemeanor, may stay the imposition of sentence until the violator has attended the school. A person referred to a school by a court or by the secretary of state may attend any school in the state which has been established in conformity with this section.

(4) A fee not to exceed $10.00 may be charged for attendance at the school. The fees shall be established by the advisory board and shall be used to defray the cost of instruction, materials, and clinical services.

(5) A person shall not be referred to a school which has not been approved by the advisory board and the superintendent of public instruction.

History: Add. 1957, Act 230, Eff. Sept. 27, 1957 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1998, Act 358, Eff. Oct. 1, 1999
Admin Rule: R 340.431 et seq. of the Michigan Administrative Code.

257.320c Issuance of license after suspension or revocation; examination; qualifications; exception.

Sec. 320c.

Before a license is issued to a person whose license has been suspended or revoked, the person may be examined in a manner prescribed by the secretary of state and shall be required to meet all of the qualifications prescribed in section 309. An examination shall not be required if the license has been suspended pursuant to section 321a.

History: Add. 1966, Act 174, Imd. Eff. July 1, 1966 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983
Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.320d Basic driver improvement course; eligibility; database; use; fees; basic driver improvement course fund; study; report; approval of basic driver improvement course sponsors; security bond; surety; prohibited acts or practices; sanctions; "approved sponsor" defined.

Sec. 320d.

(1) Notwithstanding section 320a, the secretary of state shall not enter the points corresponding to a moving violation committed in this state by an individual the secretary of state determines to be eligible under this section on the individual's driving record or make information concerning that violation available to any insurance company if the individual attends and successfully completes a basic driver improvement course under this section and an approved sponsor provides a certificate of successful completion of that course to the secretary of state not more than 60 days after the date on which the secretary of state notified the individual that the individual was eligible to take a basic driver improvement course. This subsection does not apply to an individual who completes a court-ordered basic driver improvement course as described in subsection (17).

(2) The secretary of state shall determine if an individual is eligible under subsection (3) to attend a basic driver improvement course upon receipt of an abstract of a moving violation. If the secretary of state determines that an individual is eligible to attend a basic driver improvement course, the secretary of state shall do all of the following:

(a) Notify the individual of the individual's eligibility by first-class mail at the individual's last known address as indicated on the individual's operator's or chauffeur's license and inform

the individual of the manner and time within which the individual is required to attend and complete a basic driver improvement course.

(b) Provide all eligible participants with information on how to access a list of approved sponsors and basic driver improvement course locations, including the secretary of state's website address and telephone number to call for more information.

(c) If an approved sponsor does not provide notice of successful completion of the course by the individual within the time prescribed in subsection (1), the secretary of state shall enter the points required under section 320a.

(3) Except as provided in subsection (17), an individual is ineligible to take a basic driver improvement course if any of the following apply:

(a) The violation occurred while the individual was operating a commercial motor vehicle or was licensed as a commercial driver while operating a noncommercial motor vehicle.

(b) The violation is a criminal offense.

(c) The violation is a violation for which 4 or more points may be assessed under section 320a.

(d) The violation is a violation of section 626b, 627(9), 627a, or 682.

(e) The individual was cited for more than 1 moving violation arising from the same incident.

(f) The individual's license was suspended under section 321a(2) in connection with the violation.

(g) The individual previously successfully completed a basic driver improvement course.

(h) The individual has 3 or more points on the individual's driving record.

(i) The individual's operator's or chauffeur's license is restricted, suspended, or revoked, or the individual was not issued an operator's or chauffeur's license.

(4) Except as provided in subsection (17), an individual is not eligible to take a basic driver improvement course for a second or subsequent violation an individual receives within the time allowed under subsection (1).

(5) The secretary of state shall maintain a computerized database of the following:

(a) Individuals who have attended a basic driver improvement course.

(b) Individuals who have successfully completed a basic driver improvement course.

(6) The database maintained under subsection (5) must only be used for determining eligibility under subsections (3) and (4). The secretary of state shall only make the information contained in the database available to approved sponsors under subsection (10). Information in this database concerning an individual must be maintained for the life of that individual.

(7) An individual shall be charged a fee of not more than $100.00 by an approved sponsor to participate in a basic driver improvement course and, if applicable, to obtain a certificate in a form as approved by the secretary of state demonstrating that the individual successfully completed the course. An approved sponsor shall remit a portion of the fee, as determined annually by the secretary of state, to cover the costs of implementing and administering this course program.

(8) Fees remitted to the department under subsection (7) by an approved sponsor must be credited to the basic driver improvement course fund created under subsection (9).

(9) The basic driver improvement course fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. Money in the fund at the close of the fiscal year remains in the fund and does not lapse to the general fund. The secretary of state is the administrator of the fund for auditing purposes. The secretary of state shall expend money from the fund, upon appropriation, only to pay the costs of administering this section.

(10) An approved sponsor shall conduct a study of the effect, if any, that the successful completion of its basic driver improvement course has on reducing collisions, moving violations, or both for students completing its course in this state. An approved sponsor shall conduct this study every 5 years on each of the course delivery modalities employed by the approved sponsor. The secretary of state shall make all of the following information available to the approved sponsor for that purpose, subject to applicable state and federal laws governing the release of information:

(a) The number of individuals who successfully complete a basic driver improvement course under this section.

(b) The number of individuals who are eligible to take a basic driver improvement course under this section but who do not successfully complete that course.

(c) The number and type of moving violations committed by individuals after successfully completing a basic driver improvement course under this section in comparison to the number and type of moving violations committed by individuals who have not taken a basic driver improvement course.

(11) The secretary of state shall report on the findings of all studies conducted under subsection (10) to the standing committees of the house of representatives and senate on transportation issues.

(12) The secretary of state shall approve basic driver improvement course sponsors, and enter into an agreement with approved sponsors, if the basic driver improvement course offered by that sponsor satisfies the requirements listed in section 3a.

(13) A sponsor seeking to be an approved sponsor shall submit to the secretary of state an application on a form prescribed by the secretary of state along with a properly executed security bond in the principal sum of $20,000.00 with good and sufficient surety. Every sponsor that is an approved sponsor on March 28, 2013 also shall submit to the secretary of state a security bond described in this subsection. The bond must indemnify or reimburse the secretary of state or an individual taking the sponsor's basic driver improvement course for monetary loss caused through fraud, cheating, or misrepresentation in the conduct of the sponsor's business where the fraud, cheating, or misrepresentation was made by the sponsor or by an employee, agent, instructor, or salesperson of the sponsor. The surety shall make indemnification or reimbursement for a monetary loss only after judgment based on fraud, cheating, or misrepresentation has been entered in a court of record against the sponsor. The aggregate liability of the surety must not exceed the sum of the bond. The surety on the bond may cancel the bond by giving 30 days' written or electronic notice to the secretary of state and after giving notice is not liable for a breach of condition occurring after the effective date of the cancellation.

(14) An approved sponsor shall not engage in a deceptive or unconscionable method, act, or practice, including, but not limited to, all of the following:

(a) Using, adopting, or conducting business under a name that is the same as, like, or deceptively similar to the name of another approved sponsor.

(b) Except as otherwise provided in this subsection, using the words "state", "government", "municipal", "city", or "county" as part of the name of the approved sponsor.

(c) Advertising, representing, or implying that an approved sponsor is supervised, recommended, or endorsed by, or affiliated or associated with, or employed by, or an agent or representative of this state, the secretary of state, or a bureau of the secretary of state.

(d) Advertising or publicizing under a name other than the approved sponsor's full business name as identified on the sponsor's application to be an approved sponsor.

(e) Advertising that the sponsor is open for business before the sponsor becomes an approved sponsor.

(f) Soliciting business on the premises of any facility rented, leased, owned, or used by the secretary of state.

(g) Misrepresenting the quantity or quality of the instruction provided by, or the requirements for, a basic driver improvement course.

(h) Failing to promptly restore any deposit, down payment, or other payment that a person is entitled to after an agreement is rescinded, canceled, or otherwise terminated as required under the agreement or applicable law.

(i) Taking advantage of a student's or potential student's inability to reasonably protect the student's or potential student's interest because of a disability, illiteracy, or inability to understand the language of an agreement, if the sponsor knows or reasonably should have known of the student's or potential student's inability.

(j) Failing to honor a term of an agreement.

(k) Falsifying a document, agreement, record, report, or certificate associated with a basic driver improvement course.

(15) Except as otherwise provided in this act, the secretary of state may impose 1 or more of the sanctions listed under subsection (16) if the secretary of state determines that an approved sponsor did 1 or more of the following:

(a) Failed to meet a requirement under this act or an agreement established under this act.

(b) Violated this act or an agreement established under this act.

(c) Made an untrue or misleading statement of a material fact to the secretary of state or concealed a material fact in connection with an application or record under this act.

(d) Permitted fraud or engaged in a fraudulent method, act, or practice in connection with a basic driver improvement course, or induced or countenanced fraud or a fraudulent method, act, or practice in connection with a basic driver improvement course.

(e) Engaged in an unfair or deceptive method, act, or practice or made an untrue statement of a material fact.

(f) Violated a suspension or an order issued under this act.

(g) Failed to maintain good moral character as defined and determined under 1974 PA 381, MCL 338.41 to 338.47, in connection with its business operations.

(16) After the secretary of state determines that an approved sponsor committed a violation listed in subsection (15), the secretary of state may impose upon the approved sponsor 1 or more of the following sanctions:

(a) Denial of an application for approval as a basic driver improvement course sponsor.

(b) Suspension or revocation of the approval of an approved sponsor.

(c) A requirement to take the affirmative action determined necessary by the secretary of state, including, but not limited to, payment of restitution to a student or to an injured person.

(17) An individual who is ordered by a court to complete a basic driver improvement course shall take the basic driver improvement course whether or not the individual is eligible under subsections (3) and (4). The secretary of state shall enter the points required under section 320a for an individual who completes a court-ordered basic driver improvement course but is not otherwise eligible under subsections (3) and (4).

(18) As used in this section, "approved sponsor" means a sponsor of a basic driver improvement course that is approved by the secretary of state under subsection (12) and whose approved status is not suspended or revoked under subsection (16).

History: Add. 2008, Act 568, Eff. Dec. 31, 2010 ;-- Am. 2010, Act 289, Imd. Eff. Dec. 16, 2010 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2023, Act 39, Eff. June 30, 2023

257.320e Payment of reinstatement fee for suspended, revoked, or restricted operator's or chauffeur's license; waiver of fee; assessment of points and licensing action by secretary of state; judicial review of administrative licensing sanction.

Sec. 320e.

(1) Except as otherwise provided in subsection (2) or (3), an individual whose operator's or chauffeur's license is suspended, revoked, or restricted under section 303, 319, 320, 324, 625, 625b, 625f, or 904 shall pay a license reinstatement fee of $125.00 to the secretary of state before a license is issued or returned to the individual. The increase in the reinstatement fee from $60.00 to $125.00 must be imposed for a license that is issued or returned on or after October 1, 1991 regardless of when the license was suspended, revoked, or restricted. Of the increase in the reinstatement fee from $60.00 to $125.00, $25.00 must be allocated to the department of state, $10.00 must be deposited by the department of treasury in the drunk driving prevention equipment and training fund created under section 625h(1), and $30.00 must be deposited by the department of treasury in the drunk driving caseflow assistance fund created under section 625h(5). The fee must be waived if the license was suspended or restricted because of the individual's mental or physical infirmity or disability.

(2) An individual whose operator's or chauffeur's license is suspended, revoked, or restricted under section 319(7) shall pay a license reinstatement fee of $125.00 to the secretary of state before a license is issued or returned to the individual. The fee must be waived if the license was suspended or restricted because of the individual's mental or physical infirmity or disability.

(3) Except as provided in subsection (4), an individual whose operator's or chauffeur's license is suspended as provided in section 321c shall pay a license reinstatement fee of $85.00 to the secretary of state before a license is issued or returned to the person. The fee must be deposited in the state general fund and must be used to defray the expenses of the secretary of state in processing the suspension and reinstatement of driver licenses under this section.

(4) Beginning October 1, 2021, the secretary of state shall waive the reinstatement fee for an individual whose operator's or chauffeur's license was suspended, revoked, or restricted for reasons that are no longer eligible for the suspension, revocation, or restriction of an operator's or chauffeur's license under this act. The secretary of state shall immediately reinstate an operator's or chauffeur's license that was suspended, revoked, or restricted for reasons that are no longer eligible under this act.

(5) The secretary of state shall assess points and take licensing action, including suspending, revoking, or denying a license under this act, according to the law in effect at the time of the conspiracy to commit the offense or at the time the offense was committed or attempted or the civil infraction occurred. If 1 or more of the convictions involved in a licensing sanction is a violation or attempted violation of this act committed or attempted after January 1, 1992, the secretary of state shall apply the law in effect after January 1, 1992.

(6) Judicial review of an administrative licensing sanction under section 303 must be governed by the law in effect at the time the offense was committed or attempted. If 1 or more of the convictions involved in an administrative licensing sanction is a violation or attempted violation of this act committed or attempted after January 1, 1992, judicial review of that sanction must be governed by the law in effect after January 1, 1992.

History: Add. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1983, Act 18, Imd. Eff. Mar. 29, 1983 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1991, Act 98, Eff. Oct. 1, 1991 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 240, Eff. Jan. 1, 1997 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 346, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025
Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.321 Surrender of license; replacement.

Sec. 321.

Upon suspending or revoking a license, the department shall require that the license be surrendered to and be destroyed by the department. At the end of the suspension period, the licensee may obtain a replacement license.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002

257.321a Failure to answer citation or notice to appear in court; failure to comply with order or judgment; notice and duration of suspension; exceptions; effect of failure to appear; giving copy of information transmitted to secretary of state to person; driver license reinstatement fees; failure to answer out-state citation, comply with out-state order or judgment, or appear in court or administrative tribunal under MCL 257.732; parking or standing of vehicle; resolution of outstanding matters regarding notices, orders, or citations; "a serious offense involving a motor vehicle" defined.

Sec. 321a.

(1) Except as provided in subsection (2), 28 days or more after an individual fails to answer a citation, or a notice to appear in court for a violation for which license suspension is allowed under this act or a local ordinance that substantially corresponds to a violation for which license suspension is allowed under this act, or fails to comply with an order or judgment of the court for a violation for which license suspension is allowed under this act, including, but not limited to, paying all fines, costs, fees, and assessments, the court shall give notice by mail at the last known address of the individual that if the individual fails to appear or fails to comply with the order or judgment within 14 days after the notice is issued, the secretary of state shall suspend the individual's operator's or chauffeur's license. If the individual fails to appear or fails to comply with the order or judgment within the 14-day period, the court shall, within 14 days, inform the secretary of state, who shall immediately suspend the license of the individual. The secretary of state shall immediately notify the individual of the suspension by regular mail at the individual's last known address.

(2) If an individual is charged with, or convicted of, a violation of section 625, section 626, any driving violation under this act that causes injury, death, or serious impairment of a body function of another individual, a serious offense involving a motor vehicle, or a local ordinance that substantially corresponds to section 625(1), (2), (3), (6), or (8) or 626, and the

individual fails to answer a citation or a notice to appear in court, or a notice to appear for any matter pending, or fails to comply with an order or judgment of the court, including, but not limited to, paying all fines, costs, and crime victim rights assessments, the court shall immediately give notice by first-class mail sent to the individual's last known address that if the individual fails to appear within 7 days after the notice is issued, or fails to comply with the order or judgment of the court, including, but not limited to, paying all fines, costs, and crime victim rights assessments, within 14 days after the notice is issued, the secretary of state shall suspend the individual's operator's or chauffeur's license. If the individual fails to appear within the 7-day period, or fails to comply with the order or judgment of the court, including, but not limited to, paying all fines, costs, and crime victim rights assessments, within the 14-day period, the court shall immediately inform the secretary of state who shall immediately suspend the individual's operator's or chauffeur's license and notify the individual of the suspension by first-class mail sent to the individual's last known address.

(3) A suspension imposed under subsection (1) or (2) remains in effect until both of the following occur:

(a) The secretary of state is notified by each court in which the individual failed to answer a citation or notice to appear or failed to pay a fine or cost that the individual has answered that citation or notice to appear or paid that fine or cost.

(b) The individual has paid to the court a $45.00 driver license clearance fee for each failure to answer a citation or failure to pay a fine or cost.

(4) For the purposes of subsection (3)(a), the court shall give to the individual a copy of the information being transmitted to the secretary of state. Upon showing that copy, the individual must not be arrested or issued a citation for driving on a suspended license, on an expired license, or without a license on the basis of any matter resolved under subsection (3)(a), even if the information being sent to the secretary of state has not yet been received or recorded by the department.

(5) For each fee received under subsection (3)(b), the court shall transmit the following amounts on a monthly basis:

(a) Fifteen dollars to the secretary of state. The money received by the secretary of state under this subdivision must be deposited in the state general fund and must be used to defray the expenses of the secretary of state in processing the suspension and reinstatement of driver licenses under this section.

(b) Fifteen dollars to 1 of the following, as applicable:

(i) If the matter is before the circuit court, to the treasurer of the county for deposit in the general fund.

(ii) If the matter is before the district court, to the treasurer of the district funding unit for that court, for deposit in the general fund. As used in this section, "district funding unit" means that term as defined in section 8104 of the revised judicature act of 1961, 1961 PA 236, MCL 600.8104.

(iii) If the matter is before a municipal court, to the treasurer of the city in which the municipal court is located, for deposit in the general fund.

(c) Fifteen dollars to the juror compensation reimbursement fund created in section 151d of the revised judicature act of 1961, 1961 PA 236, MCL 600.151d.

(6) The secretary of state shall immediately suspend the operator's and chauffeur's license of an individual licensed to operate a commercial motor vehicle, or an individual who operates a commercial motor vehicle without a license to operate that vehicle, if the individual fails to answer an out-state citation, or a notice to appear in a court or an authorized administrative tribunal for a violation reportable to the secretary of state under section 732, or fails to comply

with an order or judgment of an out-state court or an authorized administrative tribunal reportable to the secretary of state under section 732, or fails to appear or fails to comply with the out-state court or an authorized administrative tribunal order or judgment reportable to the secretary of state under section 732, including, but not limited to, paying all fines, costs, fees, and assessments. For a suspension imposed under this subsection, the secretary of state shall immediately notify the individual of the suspension by regular mail at the individual's last known address.

(7) A suspension imposed under subsection (6) remains in effect until the secretary of state is notified by the court or authorized administrative tribunal of the other state in which the individual failed to answer a citation, or notice to appear, or failed to pay a fine or cost, that the individual has answered that citation or notice to appear or has paid the fine or cost.

(8) The secretary of state shall not suspend the individual's license under subsection (6) if the individual fails to appear in response to a citation issued for, or fails to comply with an order or judgment involving, the parking or standing of a vehicle.

(9) The secretary of state, on being informed of the failure of an individual to appear or comply as provided in subsection (6), shall not issue a license to the individual or renew a license for the individual until the court or authorized administrative tribunal of the other state informs the secretary of state that the individual has resolved all outstanding matters regarding the notices, orders, or citations.

(10) As used in this section, "a serious offense involving a motor vehicle" means a felony or misdemeanor punishable by at least 93 days in jail, during the commission of which the individual operated a motor vehicle in a manner that presented real or potential harm to a person or property and 1 or more of the following circumstances apply to the offense:

(a) The motor vehicle was used as an instrument of the offense.

(b) The motor vehicle was used to transport a victim of the offense.

(c) The motor vehicle was used to flee the scene of the offense.

(d) The motor vehicle was necessary for the commission of the offense.

History: Add. 1968, Act 332, Eff. Jan. 1, 1969 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 205, Eff. July 1, 1988 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1995, Act 55, Eff. Jan. 1, 1996 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1998, Act 343, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2002, Act 741, Eff. Jan. 1, 2003 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2012, Act 13, Eff. May 16, 2012 ;-- Am. 2017, Act 235, Eff. Jan. 1, 2018 ;-- Am. 2017, Act 236, Eff. Jan. 1, 2018 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021

Compiler's Notes: Section 2 of Act 205 of 1988 provides: “This amendatory act shall take effect July 1, 1988 and apply to violations which occur on or after that date.”Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989. “(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.321b Suspended or revoked license; destruction.

Sec. 321b.

Any policeman, law enforcing agent, or judicial officer who is informed by an official communication from the secretary of state that the secretary of state has suspended or revoked an operator's, moped, or chauffeur's license under the provisions of this act, shall obtain and destroy the suspended or revoked license.

History: Add. 1968, Act 332, Eff. Jan. 1, 1969 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002

257.321c Notification by friend of the court of failure to appear for hearing, comply with repayment plan order, or respond to license suspension notice; duty of secretary of state to suspend operator's or chauffeur's license; duration; transmission of fees; amounts.

Sec. 321c.

(1) If a friend of the court notifies the secretary of state that a licensee has failed to appear for a hearing, comply with a repayment plan order, or respond to a license suspension notice under the support and parenting time enforcement act, 1982 PA 295, MCL 552.601 to 552.650, the secretary of state shall immediately suspend the operator's or chauffeur's license of the licensee and shall notify the licensee of the suspension by first-class mail.

(2) If a person's license is suspended under subsection (1), the secretary of state shall not issue a license to the person if the person's license is already suspended, revoked, or denied or if the person does not have a license to suspend until the person is in compliance with subsection (3) and other provisions of this act.

(3) A suspension imposed under subsection (1) or (2) remains in effect until all of the following occur:

(a) The person obtains a certificate from the friend of the court showing that the person is complying with the custody, parenting time, or support order, and provides that certificate to the secretary of state.

(b) The person pays to the circuit court clerk a $45.00 driver license clearance fee.

(c) The person pays the reinstatement fee imposed under section 320e.

(4) Unless a person's license is otherwise suspended, revoked, denied, or canceled, the license is immediately reinstated on satisfaction of the requirements of subsection (3). The secretary of state shall reissue the operator's or chauffeur's license of a person whose suspension is rescinded under subsection (3) within 30 days after receipt of the certificate obtained under subsection (3)(a), evidence of the payment of the fee under subsection (3)(b), and the fee imposed under section 320e.

(5) For each fee received under subsection (3)(b), the clerk shall transmit the following amounts on a monthly basis:

(a) Fifteen dollars to the secretary of state. The secretary of state shall deposit money received under this subdivision in the general fund. The money must be expended to defray the expenses of the secretary of state in processing the suspension and reinstatement of driver licenses under this section.

(b) Thirty dollars to the treasurer of the county. The treasurer shall deposit money received under this subdivision in the county friend of the court fund created in section 2530 of the revised judicature act of 1961, 1961 PA 236, MCL 600.2530.

History: Add. 1996, Act 240, Eff. Jan. 1, 1997 ;-- Am. 2009, Act 194, Imd. Eff. Dec. 28, 2009 ;-- Am. 2020, Act 127, Imd. Eff. July 1, 2020

257.322 Hearing officer; appointment; powers and duties as to appeals from final determination of secretary of state.

Sec. 322.

(1) The secretary of state shall appoint a hearing officer to hear appeals from persons aggrieved by a final determination of the secretary of state denying an application for an operator's or chauffeur's license, suspending, restricting, or revoking an operator's or chauffeur's license, or other license action.

(2) The appeal shall be in writing and filed with the secretary of state within 14 days after the final determination. Upon notice of the appeal, the hearing officer shall require production of all documents filed in the matter, together with a transcript of any testimony taken.

(3) In a hearing or matter properly before the hearing officer, he or she may do any of the following:

(a) Issue subpoenas to compel attendance of witnesses.

(b) Issue process to compel attendance.

(c) Punish for contempt any witness failing to appear or testify in the same manner as provided by the rules and practice in the circuit court.

(d) Swear witnesses, administer oaths, and exemplify records in any matter before the officer.

(e) Take additional testimony he or she considers appropriate.

(4) A verbatim record shall be made of the hearing.

(5) After a hearing, the hearing officer may affirm, modify, or set aside a final determination of the secretary of state denying an application for an operator's or chauffeur's license, suspending, restricting, or revoking an operator's or chauffeur's license, or any other license action. The hearing officer shall include his or her findings of fact and conclusions of law in the record.

(6) Except as provided in subsection (7), if a person whose license has been denied or revoked under section 303(2)(c), (d), or (g) applies for a license or reinstatement of a license after the time period specified in section 303(4) has elapsed, the hearing officer may issue a restricted license to that person, setting restrictions upon operating a vehicle as the hearing officer determines are appropriate. If the hearing officer issues a restricted license following a hearing held after October 1, 1999, he or she shall do both of the following:

(a) Require a properly installed and functioning ignition interlock device on each motor vehicle the person owns or intends to operate, the costs of which shall be borne by the person whose license is restricted.

(b) Condition issuance of a restricted license upon verification by the secretary of state that an ignition interlock device has been installed.

(7) The hearing officer shall not issue a restricted license under subsection (6) that would permit the person to operate a commercial motor vehicle that hauls hazardous material.

(8) If the hearing officer issues a restricted license to a person who intends to operate a vehicle owned by his or her employer, the secretary of state shall notify the employer of the employee's license restriction that requires the installation of an ignition interlock device. An employer who receives notice under this subsection is not required to install an ignition interlock device on the employer-owned vehicle. This subsection does not apply to a vehicle

that is operated by a self-employed individual who uses the vehicle for both business and personal use.

(9) If the hearing officer issues a restricted license requiring an ignition interlock device, the initial period for requiring the device shall be not less than 1 year.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1976, Act 9, Imd. Eff. Feb. 13, 1976 ;-- Am. 1998, Act 340, Eff. Oct. 1, 1999 ;-- Am. 2001, Act 159, Imd. Eff. Nov. 6, 2001 ;-- Am. 2008, Act 462, Eff. Oct. 31, 2010
Transfer of Power: See MCL 16.129.

257.322a Ignition interlock device; removal; issuance of order required.

Sec. 322a.

A person who is issued a restricted license by the department requiring an ignition interlock device shall not remove the device or cause the device to be removed unless the department has issued an order authorizing its removal.

History: Add. 2008, Act 462, Eff. Oct. 31, 2010

257.323 Denial, revocation, suspension, or restriction of operator or chauffeur's license, vehicle group designation, or indorsement; final determination; petition for review of determination; order setting cause for hearing; service of order, petition, and affidavits on secretary of state's office; testimony and examination; order affirming, modifying, or setting aside restriction, suspension, or denial; conditions; restricted driving privileges; vehicle owned by employer; notification; other requirements.

Sec. 323.

(1) A person aggrieved by a final determination of the secretary of state denying the person an operator's or chauffeur's license, a vehicle group designation, or an indorsement on a license or revoking, suspending, or restricting an operator's or chauffeur's license, vehicle group designation, or an indorsement may petition for a review of the determination in the circuit court in the county where the person was arrested if the denial or suspension was imposed under section 625f or under the order of a trial court under section 328 or, in all other cases, in the circuit court in the person's county of residence. The person shall file the petition within 63 days after the determination is made except that for good cause shown the court may allow the person to file petition within 182 days after the determination is made. As provided in section 625f, a peace officer aggrieved by a determination of a hearing officer in favor of a person who requested a hearing under section 625f may, with the prosecuting attorney's consent, petition for review of the determination in the circuit court in the county where the arrest was made. The peace officer shall file the petition within 63 days after the determination is made except that for good cause shown the court may allow the peace officer to file the petition within 182 days after the determination is made.

(2) Except as otherwise provided in this section, the circuit court shall enter an order setting the cause for hearing for a day certain not more than 63 days after the order's date. The order, a copy of the petition that includes the person's full name, current address, birth date, and driver's license number, and all supporting affidavits must be served on the secretary of state's office in Lansing not less than 20 days before the date set for the hearing. If the person is seeking a review of the record prepared under section 322 or section 625f, the service upon the secretary of state must be made not less than 50 days before the date set for the hearing.

(3) The court may take testimony and examine all the facts and circumstances relating to the denial, suspension, or restriction of the person's license under sections 303(1)(d), 320, or 904(10) or (11), a licensing action under section 310d, or a suspension for a first violation under section 625f. The court may affirm, modify, or set aside the restriction, suspension, or denial, except the court shall not order the secretary of state to issue a restricted or unrestricted chauffeur's license that would permit the person to drive a commercial motor vehicle that hauls a hazardous material. The court shall enter the order and the petitioner shall file a certified copy of the order with the secretary of state's office in Lansing within 7 days after entry of the order.

(4) Except as otherwise provided in this section, in reviewing a determination resulting in a denial, suspension, restriction, or revocation under this act, the court shall confine its consideration to a review of the record prepared under section 322 or 625f or the driving record created under section 204a for a statutory legal issue, and may determine that the petitioner is eligible for full driving privileges or, if the petitioner is subject to a revocation under section 303, may determine that the petitioner is eligible for restricted driving privileges. The court shall set aside the secretary of state's determination only if 1 or more of the following apply:

(a) In determining whether a petitioner is eligible for full driving privileges, the petitioner's substantial rights have been prejudiced because the determination is any of the following:

(i) In violation of the Constitution of the United States, the state constitution of 1963, or a statute.

(ii) In excess of the secretary of state's statutory authority or jurisdiction.

(iii) Made upon unlawful procedure resulting in material prejudice to the petitioner.

(iv) Not supported by competent, material, and substantial evidence on the whole record.

(v) Arbitrary, capricious, or clearly an abuse or unwarranted exercise of discretion.

(vi) Affected by other substantial and material error of law.

(b) In determining whether a petitioner is eligible for review of a revocation or denial under section 303, or whether a petitioner is eligible for restricted driving privileges, all of the following apply:

(i) The petitioner's substantial rights have been prejudiced as described in subdivision (a).

(ii) All of the following are satisfied:

(A) The revocation or denial occurred at least 1 year after the petitioner's license was revoked or denied, or, if the petitioner's license was previously revoked or denied within the 7 years preceding the most recent revocation or denial, at least 5 years after the most recent revocation or denial, whichever is later.

(B) The court finds that the petitioner meets the department's requirements under the rules promulgated by the department under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.238. For purposes of this sub-subparagraph only, the court may take additional testimony to supplement the record prepared under section 322 or 625f or the driving record created under section 204a, but shall not expand the record.

(C) If the revocation or denial was under section 303(2)(a), (b), (c), or (g), the petitioner rebuts by clear and convincing evidence the presumption that he or she is a habitual offender, and establishes to the court's satisfaction that he or she is likely to adhere to any requirements imposed by the court. For purposes of this sub-subparagraph, the conviction that resulted in the revocation and any record of denial of reinstatement by the department are prima facie evidence that the petitioner is a habitual offender. For purposes of this sub-subparagraph only, the court may take additional testimony to supplement the record prepared under section 322 or 625f or the driving record created under section 204a, but shall not expand the record.

(5) If the court determines that a petitioner is eligible for restricted driving privileges under subsection (4)(b), the court shall issue an order that includes, but is not limited to, all of the following:

(a) The court's findings under section 303 and R 257.1 to R 257.1727 of the Michigan Administrative Code.

(b) A requirement that each motor vehicle operated by the petitioner be equipped with a properly installed and functioning ignition interlock device for a period of not less than 1 year before the petitioner will be eligible to return to the secretary of state for a hearing. The petitioner shall bear the cost of an ignition interlock device required under this subdivision. A restricted license must not be issued to the petitioner until the secretary of state has verified that 1 or more ignition interlock devices, if applicable, have been installed as required by this subdivision.

(c) A method by which the court will verify that the petitioner maintains no-fault insurance for each vehicle described in subdivision (b) as required by chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179.

(d) A requirement that a restricted license issued to the petitioner must not permit the petitioner to operate a commercial motor vehicle that hauls hazardous materials.

(e) A provision that the secretary of state shall revoke the petitioner's restricted license if any of the following occur:

(i) The petitioner violates the restrictions on his or her license.

(ii) The petitioner violates subdivision (b).

(iii) The petitioner removes, or causes to be removed, an ignition interlock device required under subdivision (b), unless the secretary of state has authorized the removal under section 322a.

(iv) The petitioner commits an act that would be a major violation if the petitioner's license had been issued under section 322(6) or consumes alcohol or a controlled substance without a prescription. As used in this subparagraph, "major violation" means that term as defined in R 257.301a of the Michigan Administrative Code.

(v) The petitioner is arrested for a violation of section 625 or a local ordinance, law of this state or another state, or law of the United States that substantially corresponds to section 625.

(6) If the court determines that a petitioner is eligible for restricted driving privileges under this section and the petitioner intends to operate a vehicle owned by his or her employer, the court shall notify the employer of the petitioner's obligation under subsection (5)(b). This subsection does not require an employer who receives a notice under this subsection to install an ignition interlock device on a vehicle. This subsection does not apply to a vehicle that is operated by a self-employed individual who uses the vehicle for both business and personal use.

(7) If a court determines that a petitioner is eligible for restricted driving privileges, the secretary of state shall not issue a restricted license to the petitioner until he or she has satisfied any other applicable requirements of state or federal law, and shall not issue a restricted license to the petitioner if the order granting eligibility for restricted driving privileges does not comply with subsection (5).

(8) If a court determines that a petitioner is eligible for restricted driving privileges, the court shall notify the department of its determination through the issuance of an order under subsection (5) and shall not retain jurisdiction over a license issued under this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1953, Act 120, Eff. Oct. 2, 1953 ;-- Am. 1958, Act 113, Eff. Sept. 13, 1958 ;-- Am. 1978, Act 57, Imd. Eff. Mar. 10, 1978 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1981, Act 71, Imd. Eff. June 30, 1981 ;-- Am. 1982,

Act 310, Eff. Mar. 30, 1983 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1998, Act 346, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2001, Act 159, Imd. Eff. Nov. 6, 2001 ;-- Am. 2016, Act 117, Eff. Aug. 15, 2016 ;-- Am. 2018, Act 99, Eff. July 1, 2018

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."Section 2 of Act 346 of 1988 provides:"(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989."(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989."(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act."Section 2 of Act 173 of 1989 provides:"(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

Transfer of Power: See MCL 16.129.

257.323a Petition for order staying revocation or suspension of license; ex parte order; provisions inapplicable to violation of financial responsibility act.

Sec. 323a.

(1) A person who is aggrieved by a final determination of the secretary of state suspending or revoking the operator's or chauffeur's license of the person may, within 63 days after the determination, petition the circuit court for the county in which the conviction or civil infraction determination resulting in the license being suspended or revoked was entered, or the circuit court for the county of residence of the person if the license was suspended or revoked as provided in section 318, or for the accumulation of 12 or more points as provided in sections 320 and 320a, for an order staying the revocation or suspension of the license. Except as provided in subsection (2), the court may enter an ex parte order staying the suspension or revocation subject to terms and conditions prescribed by the court until the determination of an appeal to the secretary of state or of an appeal or a review by the circuit court, or for a lesser time which the court considers proper, except that the court shall not enter an ex parte order staying the suspension or revocation of a person who drives a truck or truck tractor, including a trailer, which hauls hazardous material.

(2) The court shall not enter an ex parte order staying the suspension, denial, or revocation if the order is based upon a claim of undue hardship.

(3) This section shall not apply to a suspension for a violation of the financial responsibility act contained in chapter V.

History: Add. 1960, Act 78, Eff. Aug. 17, 1960 ;-- Am. 1961, Act 19, Imd. Eff. May 10, 1961 ;-- Am. 1978, Act 57, Imd. Eff. Mar. 10, 1978 ;-- Am. 1978, Act 139, Eff. May 1, 1979 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or

initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.323b Cancellation of minor's license.

Sec. 323b.

The license of a minor shall be canceled by the secretary of state upon the written request of the custodial parent or parents or legal guardian of the minor. The secretary of state may reduce the graduated driver license level or delay advancement to the next level of a minor upon the written request of the custodial parent or parents or legal guardian of the minor.

History: Add. 1965, Act 306, Eff. Mar. 31, 1966 ;-- Am. 1972, Act 49, Imd. Eff. Feb. 19, 1972 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001

257.323c Restricted license; issuance by circuit court; limitations; exceptions; condition.

Sec. 323c.

(1) A person denied a license to operate a motor vehicle or whose license for that purpose has been suspended by the secretary of state under section 625f has a right to a review of the matter in circuit court as provided in sections 323 and 323a. Except as provided in this section, the court may order the secretary of state to issue to the person a restricted license permitting the person to drive only to and from the person's residence and work location; in the course of the person's employment or occupation; to and from an alcohol or drug education program or treatment program as ordered by a court; to and from the person's residence and the court probation department, or a court-ordered community service program, or both; to and from the person's residence and an educational institution at which the person is enrolled as a student; or pursuant to a combination of these restrictions. The restricted license shall permit the driver to take any driving skills test required by the secretary of state. If the denial, suspension, or revocation of a person's license or vehicle group designation under section 625f occurred in connection with the operation of a commercial motor vehicle, the court shall not order the secretary of state to issue a restricted license that would permit the person to operate a commercial motor vehicle. The court shall not order the secretary of state to issue a restricted operator's or chauffeur's license that would permit a person to operate a commercial motor vehicle hauling hazardous material. The court shall not order the secretary of state to issue a restricted license unless the person states under oath and the court finds that the person is unable to take public transportation to and from his or her work location, place of alcohol or drug education or treatment, or educational institution, and does not have a family member or other person able to provide transportation. The court order and license shall indicate the person's work location and the approved route or routes and permitted times of travel. For purposes of this section, "work location" includes, as applicable, either or both of the following:

(a) The specific place or places of employment.

(b) The territory or territories regularly visited by the person in pursuance of the person's occupation.

(2) If the person's license has been suspended pursuant to section 625f within the immediately preceding 7-year period, a restricted license shall not be issued.

(3) Notwithstanding any other provision of this section, the court shall not issue a restricted license to a person who has accumulated over 24 points, as provided in section 320a, within the 2-year period preceding the date of the suspension of his or her license.

(4) Notwithstanding any other provision of this act, the court shall not issue a restricted license to a person to operate a commercial motor vehicle when a vehicle group designation is required to operate that vehicle.

History: Add. 1968, Act 335, Eff. Nov. 15, 1968 ;-- Am. 1978, Act 57, Imd. Eff. Mar. 10, 1978 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004
Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.323d Drug case information management fund; creation; purpose; expenditure; crediting and investing money; reversion; distribution of amounts by state court administrator; reimbursement of costs.

Sec. 323d.

(1) The drug case information management fund is created as a separate fund in the state treasury. The purpose of the fund is to help defray the costs of complying with requirements for the timely management and reporting to the secretary of state of information concerning cases involving an attempt to violate, a conspiracy to violate, or a violation of part 74 or section 17766a of the public health code, Act No. 368 of the Public Acts of 1978, being sections 333.7401 to 333.7461 and 333.17766a of the Michigan Compiled Laws, or of a local ordinance that prohibits conduct prohibited under part 74 or section 17766a of Act No. 368 of the Public Acts of 1978. Money in the fund shall be expended only as provided in subsection (3).

(2) The state treasurer shall credit the drug case information management fund with the money collected from license reinstatement fees as provided in section 320e(2). The state treasurer may invest money contained in the drug case information management fund in any manner authorized by law for the investment of state money. However, an investment shall not interfere with any apportionment, allocation, or payment of money as required by this section. The state treasurer shall credit all earnings from the fund to the fund. Money in the fund at the end of the fiscal year shall remain in the fund and shall not revert to the general fund.

(3) The state court administrator, at the direction of the supreme court and upon confirmation of the amount by the state treasurer, shall distribute from the drug case information management fund the total amount available in a fiscal year to each circuit of the circuit court, each district of the district court, and each probate court as provided in this subsection. The state court administrator, after reimbursement of costs as provided in this subsection, shall distribute the balance of the drug case information management fund annually after costs are disbursed to each circuit of the circuit court, each district of the district court, and each probate court in an amount determined by multiplying the amount available for distribution by a fraction, the numerator of which is the number of cases in which the defendant was charged with an attempt to violate, a conspiracy to violate, or a violation of part 74 or section 17766a of Act No. 368 of the Public Acts of 1978, or a local ordinance that prohibits conduct prohibited under part 74 or section 17766a of Act No. 368 of the Public Acts of 1978, in the prior calendar year in that circuit of the circuit court, that district of the district court, or that probate court, as certified by the state court administrator, and the denominator

of which is the total number of cases in all circuits of the circuit court, all districts of the district court, and all probate courts in which the defendant was charged with an attempt to violate, a conspiracy to violate, or a violation of part 74 of section 17766a of Act No. 368 of the Public Acts of 1978, or a local ordinance that prohibits conduct prohibited under part 74 or section 17766a of Act No. 368 of the Public Acts of 1978. The state court administrative office shall be reimbursed annually from the drug case information management fund for all reasonable costs associated with the administration of this section, including judicial and staff training, on-site management assistance, forms development and conversion, and software development and conversion.

History: Add. 1993, Act 359, Eff. Sept. 1, 1994

VIOLATION OF LICENSE PROVISIONS

257.324 Prohibited conduct; void or canceled license.

Sec. 324.

(1) A person shall not do any of the following:

(a) Display, or cause or permit to be displayed, or have in possession an operator's or chauffeur's license knowing the operator's or chauffeur's license to be fictitious or to have been canceled, revoked, suspended, or altered.

(b) Lend to or knowingly permit use of, by one not entitled to its use, the operator's or chauffeur's license issued to the person lending or permitting the use of the operator's or chauffeur's license.

(c) Display or to represent as one's own any operator's or chauffeur's license not issued to the person displaying the operator's or chauffeur's license.

(d) Fail or refuse to surrender to the department upon demand, any operator's or chauffeur's license which has been suspended, canceled, or revoked as provided by law.

(e) Use a false or fictitious name or give a false or fictitious address in an application for an operator's or chauffeur's license, or any renewal or duplicate of an operator's or chauffeur's license, or knowingly make a false statement or knowingly conceal a material fact or otherwise commit a fraud in making an application.

(f) Alter or otherwise cause to be altered any operator's or chauffeur's license so as to knowingly make a false statement or knowingly conceal a material fact in order to misrepresent as one's own the operator's or chauffeur's license.

(g) Use or have in possession in committing a crime an operator's or chauffeur's license that has been altered or that is used to knowingly make a false statement or to knowingly conceal a material fact in order to misrepresent as one's own the operator's or chauffeur's license.

(h) Furnish to a peace officer false, forged, fictitious, or misleading verbal or written information identifying the person as another person, if the person is detained for a violation of this act or of a local ordinance substantially corresponding to a provision of this act.

(i) Commit fraud related to the testing for or issuance of a commercial driver license or permit.

(j) Fail to schedule a retest appointment within 30 days after receiving the secretary of state's retest notification.

(2) An operator's or chauffeur's license issued to a person under this chapter upon an application that is untrue, or that contains false statements as to any material matters, or that was obtained by fraud in the testing for or issuance of the license, is void from the date of issuance. The operator or chauffeur who was issued the license is considered unlicensed and

the license issued shall be returned upon request or order of the department. A person whose commercial driver license application is voided or canceled under this subsection, including as required under 49 CFR part 383, shall not reapply for a commercial driver license except as follows:

(a) Not sooner than 60 days after an application is voided or canceled.

(b) If the person obtained the license by fraud in the testing for or issuance of the commercial driver license or commercial learner's permit, not sooner than 365 days after the permit or license is canceled.

(c) If the person failed to schedule a retesting for a new commercial learner's permit or commercial driver license within 30 days after receiving the notification by the secretary of state for retesting, until the driver meets the department's requirements for applying for a new commercial learner's permit or commercial driver license.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1967, Act 17, Eff. Nov. 2, 1967 ;-- Am. 1985, Act 79, Eff. Oct. 1, 1985 ;-- Am. 2001, Act 159, Eff. Feb. 1, 2002 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2015, Act 11, Eff. July 8, 2015

257.325 Causing or permitting unlicensed minor to drive.

Sec. 325.

An individual shall not cause or knowingly permit any minor to drive a motor vehicle upon a highway as an operator, unless the minor has first obtained a license to drive a motor vehicle under the provisions of this chapter. An individual who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1972, Act 49, Imd. Eff. Feb. 19, 1972 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.326 Operation of vehicle in violation of act; owner's permission prohibited.

Sec. 326.

No person shall knowingly authorize or permit a motor vehicle owned by him or under his control to be driven by any person in violation of any of the provisions of this act.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.327 Unlicensed chauffeur; employment prohibited.

Sec. 327.

No person shall knowingly employ any chauffeur to operate a motor vehicle who is not licensed as provided in this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.328 Producing evidence of motor vehicle insurance upon request of police officer; violation as civil infraction; electronic copy; certificate of insurance as prima facie evidence that insurance in force; contents; presentation of proof of insurance to court; civil infraction determination; surrendering license unless proof of insurance submitted to court; suspension of license by secretary of state; order; fee; renewal, transfer, or replacement of registration plate; producing false evidence as misdemeanor; penalty; points; section inapplicable to owner or operator of motor vehicle registered in other state or foreign country or province.

Sec. 328.

(1) The owner of a motor vehicle who operates or permits the operation of the motor vehicle on the highways of this state or the operator of the motor vehicle shall produce, under subsection (2), on the request of a police officer, evidence that the motor vehicle is insured under chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179. Subject to section 907(14), an owner or operator of a motor vehicle who fails to produce evidence of insurance on request under this subsection or who fails to have motor vehicle insurance for the vehicle as required under chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179, is responsible for a civil infraction. If an individual displays an electronic copy of his or her certificate of insurance using an electronic device, the police officer shall only view the electronic copy of the certificate of insurance and shall not manipulate the electronic device to view any other information on the electronic device. An individual who displays an electronic copy of his or her certificate of insurance using an electronic device as provided in this subsection is not presumed to have consented to a search of the electronic device. A police officer may require the individual to electronically forward the electronic copy of the certificate of insurance to a specified location provided by the police officer. The police officer may then view the electronic copy of the certificate of insurance in a setting in which it is safe for the officer to verify that the information contained in the electronic copy of the certificate of insurance is valid and accurate. This state, a law enforcement agency, or an employee of this state or a law enforcement agency is not liable for damage to or loss of an electronic device that occurs as a result of a police officer's viewing an electronic copy of a certificate of insurance in the manner provided in this section, regardless of whether the police officer or the owner or operator of the vehicle was in possession of the electronic device at the time the damage or loss occurred.

(2) A certificate of insurance, in paper or electronic form and issued by an insurance company, that certifies that the security that meets the requirements of sections 3101 and 3102 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 and 500.3102, is in force is prima facie evidence that insurance is in force for the motor vehicle described in the certificate of insurance until the expiration date shown on the certificate. The certificate, in addition to describing the motor vehicles for which insurance is in effect, must, if applicable, state the name of each individual named on the policy, policy declaration, or a declaration certificate whose operation of the vehicle would cause the liability coverage of that insurance to become void.

(3) If, before the appearance date on a citation issued under subsection (1), the defendant submits proof to the court that the motor vehicle had insurance meeting the requirements of sections 3101 and 3102 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 and 500.3102, at the time the violation of subsection (1) occurred, all of the following apply:

(a) The court shall not assess a fine or costs.

(b) The court shall not forward an abstract of the court record to the secretary of state.

(c) The court may assess a fee of not more than $25.00 that shall be paid to the court funding unit.

(4) If an owner or operator of a motor vehicle is determined to be responsible for a violation of subsection (1), the court in which the civil infraction determination is entered may require the individual to surrender his or her operator's or chauffeur's license unless proof that the vehicle has insurance that meets the requirements of sections 3101 and 3102 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 and 500.3102, is submitted to the court. If the court requires the license to be surrendered, the court shall order the secretary of state to suspend the individual's license. The court shall immediately destroy the license and shall forward an abstract of the court record to the secretary of state as required by section 732. On receipt of the abstract, the secretary of state shall suspend the individual's license beginning with the date on which the individual is determined to be responsible for the civil infraction for a period of 30 days or until proof of insurance that meets the requirements of sections 3101 and 3102 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 and 500.3102, is submitted to the secretary of state, whichever occurs later. An individual who submits proof of insurance to the secretary of state under this subsection shall pay a service fee of $25.00 to the secretary of state. The individual shall not be required to be examined under section 320c and shall not be required to pay a replacement license fee.

(5) If an owner or operator of a motor vehicle is determined to be responsible for a violation of subsection (1), the court in which the civil infraction determination is entered shall notify the secretary of state of the vehicle registration number and the year and make of the motor vehicle being operated at the time of the violation. A notification under this subsection must be made on the abstract or on a form approved by the supreme court administrator. On receipt, the secretary of state shall immediately enter this information in the records of the department. The secretary of state shall not renew, transfer, or replace the registration plate of the vehicle involved in the violation or allow the purchase of a new registration plate for the vehicle involved in the violation until the owner meets the requirements of section 227a or unless the vehicle involved in the violation is transferred or sold to a person other than the owner's spouse, mother, father, sister, brother, or child.

(6) An owner or operator of a motor vehicle who knowingly produces false evidence under this section is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(7) Points must not be entered on a driver's record under section 320a for a violation of this section.

(8) This section does not apply to the owner or operator of a motor vehicle that is registered in a state other than this state or a foreign country or province.

History: Add. 1980, Act 459, Imd. Eff. Jan. 15, 1981 ;-- Am. 1995, Act 287, Imd. Eff. Jan. 9, 1996 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2015, Act 135, Eff. Jan. 5, 2016 ;-- Am. 2020, Act 376, Eff. Oct. 1, 2021

257.329 Possessing, selling, or offering for sale a stolen, false, or counterfeit certificate of insurance; penalty.

Sec. 329.

(1) A person who knowingly possesses, sells, or offers for sale a stolen, false, or counterfeit certificate of insurance is guilty of a felony.

(2) A person who is convicted of a second violation of this section shall be punished by imprisonment for not less than 2 years or more than 7 years, or by a fine of not less than $1,500.00 or more than $7,000.00, or both.

(3) A person who is convicted of a third or subsequent violation of this section shall be punished by imprisonment for not less than 5 years or more than 15 years, or by a fine of not less than $5,000.00 or more than $15,000.00, or both.

History: Add. 1992, Act 309, Eff. Mar. 31, 1993

Chapter IV
CIVIL LIABILITY ACT

CIVIL LIABILITY OF OWNERS AND OPERATORS OF MOTOR VEHICLES

257.401 Civil actions; liability of owner; liability of lessor; construction of subsections (3) and (4); "motor vehicle" defined; liability for off lease vehicle; exception for shared vehicle owner and peer-to-peer car sharing program.

Sec. 401.

(1) This section must not be construed to limit the right of a person to bring a civil action for damages for injuries to either person or property resulting from a violation of this act by the owner or operator of a motor vehicle or the owner or operator's agent or servant. Except as otherwise provided in this section, the owner of a motor vehicle is liable for an injury caused by the negligent operation of the motor vehicle whether the negligence consists of a violation of a statute of this state or the ordinary care standard required by common law. The owner is not liable unless the motor vehicle is being driven with the owner's express or implied consent or knowledge. It is presumed that the motor vehicle is being driven with the knowledge and consent of the owner if it is driven at the time of the injury by the owner's spouse, father, mother, brother, sister, son, daughter, or other immediate member of the family.

(2) A person engaged in the business of leasing motor vehicles that is the lessor of a motor vehicle under a lease that provides for the use of the motor vehicle by the lessee for a period that is greater than 30 days, or a dealer acting as agent for that lessor, is not liable at common law for damages for injuries to either person or property resulting from the operation of the leased motor vehicle, including damages that occur after the expiration of the lease if the vehicle is in the possession of the lessee.

(3) Notwithstanding subsection (1), a person engaged in the business of leasing motor vehicles that is the lessor of a motor vehicle under a lease that provides for the use of the motor vehicle by the lessee for a period of 30 days or less is liable for an injury caused by the negligent operation of the leased motor vehicle only if the injury occurred while the leased motor vehicle was being operated by an authorized driver under the lease agreement or by the lessee's spouse, father, mother, brother, sister, son, daughter, or other immediate family member. Unless the lessor, or the lessor's agent, was negligent in the leasing of the motor vehicle, the lessor's liability under this subsection is limited to $20,000.00 because of bodily injury to or death of 1 individual in any 1 accident and $40,000.00 because of bodily injury to or death of 2 or more individuals in any 1 accident.

(4) A person engaged in the business of leasing motor vehicles as provided under subsection (3) shall notify a lessee that the lessor is liable only up to the maximum amounts provided for

in subsection (3), and only if the leased motor vehicle was being operated by the lessee or other authorized driver or by the lessee's spouse, father, mother, brother, sister, son, daughter, or other immediate family member, and that the lessee may be liable to the lessor up to amounts provided for in subsection (3), and to an injured person for amounts awarded in excess of the maximum amounts provided for in subsection (3).

(5) Subsections (3) and (4) must not be construed to expand or reduce, except as otherwise provided by this act, the liability of a person engaged in the business of leasing motor vehicles or to impair that person's right to indemnity or contribution, or both.

(6) As used in subsections (3), (4), and (5), "motor vehicle" means a self-propelled device by which a person or property may be transported on a public highway. Motor vehicle does not include a bus, power shovel, road machinery, agricultural machinery, or other machinery or vehicle not designed primarily for highway transportation. Motor vehicle also does not include a device that moves on or is guided by a track.

(7) A lessee in possession of an off lease vehicle, and not the dealer of the vehicle, is liable as the owner of the vehicle for any damages awarded for an injury to a person or property resulting from the operation of the vehicle. The dealer of an off lease vehicle may be liable at common law for damages awarded for an injury to a person or property resulting from the operation of the vehicle only if the dealer is in possession of the vehicle and the certificate of title and has acknowledged possession of the certificate of title to the lessor.

(8) The liability imposed on an owner under subsection (1) does not apply to a shared vehicle owner or a peer-to-peer car sharing program during a car sharing period. As used in this subsection, "car sharing period", "peer-to-peer car sharing program", and "shared vehicle owner" mean those terms as defined in section 3 of the peer-to-peer car sharing program act.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1988, Act 125, Imd. Eff. May 23, 1988 ;-- Am. 1995, Act 98, Imd. Eff. June 22, 1995 ;-- Am. 2002, Act 652, Eff. Jan. 1, 2003 ;-- Am. 2024, Act 225, Eff. Oct. 17, 2025

Constitutionality: The guest passenger exception to the owners liability statute is unconstitutional. Manistee Bank & Trust Company v McGowan, 394 Mich 655; 232 NW2d 636 (1975).

257.401a “Owner” defined.

Sec. 401a.

As used in this chapter, "owner" does not include a person engaged in the business of leasing motor vehicles who is the lessor of a motor vehicle pursuant to a lease providing for the use of the motor vehicle by the lessee for a period that is greater than 30 days.

History: Add. 1988, Act 125, Imd. Eff. May 23, 1988

257.402 Rear end collision; prima facie evidence of negligence.

Sec. 402.

(a) In any action, in any court in this state when it is shown by competent evidence, that a vehicle traveling in a certain direction, overtook and struck the rear end of another vehicle proceeding in the same direction, or lawfully standing upon any highway within this state, the driver or operator of such first mentioned vehicle shall be deemed prima facie guilty of

negligence. This section shall apply, in appropriate cases, to the owner of such first mentioned vehicle and to the employer of its driver or operator.

(b) This section may not be invoked by the owner of any vehicle, the rear of which was struck under the circumstances above mentioned, if the accident occurred between 1 hour after sunset and 1 hour before sunrise, and the vehicle so struck did not, at the time, have a lighted lamp or lantern reasonably visible to the drivers of vehicles approaching from the rear.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.403 Nonresident vehicle operators; service of process, manner, record; service upon defendant, certification; taxable costs; application of section.

Sec. 403.

(a) Service of summons in any action against a person, who at the time of such service is a nonresident of this state, growing out of any accident or collision in which such person may have been involved while operating a motor vehicle upon a public highway of this state or in which a motor vehicle owned by him may have been involved while being operated with his consent, express or implied, on such public highway, may be made upon the secretary of state as the true and lawful attorney of such person with the same legal force as if served on him personally within this state. Service of such summons shall be made by leaving a copy thereof with the secretary of state, or his deputy, who shall keep a record of each such process and the day and hour of service, and such service shall be sufficient service upon such nonresident, provided that notice of such service and a copy of the summons are forthwith either served upon the defendant personally by the sheriff or constable of the county in which he resides or sent by registered mail by the plaintiff or his attorney to the defendant. If personal service of such notice and copy of summons is had upon the defendant the officer making the service shall so certify in his return which shall be filed with the court having jurisdiction of said cause, or if service be made by registered mail then the plaintiff or his attorney shall make an affidavit showing that he has made service of the notice of summons upon the defendant by registered mail as herein provided and the affiant shall attach thereto a true copy of the summons and notice so served and the registry receipt of the defendant and shall file the affidavit and attached papers with the court having jurisdiction of the cause. The court in which the action is pending may order such extension of time as may be necessary to afford the defendant reasonable opportunity to defend the action.

The death of the nonresident shall not operate to revoke the appointment by the nonresident of the secretary of state as his true and lawful attorney upon whom may be served the summons in an action against him growing out of any such accident or collision; and in event of his death, any action growing out of such accident or collision may be commenced or prosecuted against his executor or administrator duly appointed by the state, territory or district of the United States or foreign country in which the nonresident was domiciled at the time of his death, and service of the summons shall be made upon the secretary of state, and personal service of such notice and the copy of the summons be had upon his executor or administrator in like manner with the same force and effect as service upon such nonresident during his lifetime.

Any action or proceeding pending in any court of this state, in which the court shall have obtained jurisdiction of such nonresident pursuant to the provision of this statute, shall not abate by reason of the death of such nonresident, but his executor or administrator duly appointed in the state, territory or district of the United States or foreign country in which he was domiciled at the time of his death, shall, upon the application of the plaintiff in the action,

and upon such notice as the court may prescribe, be brought in and substituted in the place of the decedent, and the action or proceeding shall continue.

(b) The court shall include as taxable costs, in addition to other legal costs, against the plaintiff in case the defendant shall prevail in such suit, the actual traveling expenses of the defendant from his residence to the place of trial and return not to exceed the sum of $100.00.

(c) The provisions of this section shall apply to actions commenced in all courts of this state having civil jurisdiction, including justice courts.

(d) Any service of process made on the secretary of state under this section shall be accompanied by an affidavit by the plaintiff or his attorney setting forth that the defendant is a nonresident of this state, and if known, the last known nonresident address of the defendant.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1954, Act 16, Eff. Aug. 13, 1954 ;-- Am. 1967, Act 79, Eff. Nov. 2, 1967

257.403a Nonresident; definition.

Sec. 403a.

As used in section 403, the term "nonresident" shall include any person who was, at the time of the accident or event, a resident of the state of Michigan but who removed from the state before the commencement of the action or proceeding.

History: Add. 1957, Act 92, Eff. Sept. 27, 1957

257.404 Service of process; place.

Sec. 404.

In any tort action for the recovery of damages to person or property resulting from the operation of 1 or more motor vehicles, where the action is brought in the county where the cause of action arose, process from any court of record may be served anywhere within the state where the party upon whom service is to be made may be found.

History: Add. 1954, Act 16, Eff. Aug. 13, 1954

Chapter V
FINANCIAL RESPONSIBILITY ACT

ADMINISTRATION

257.501 Financial responsibility act; administration, rules and regulations.

Sec. 501.

The secretary of state through the director of driver services or his authorized agent shall administer and enforce the provisions of this chapter and may make rules and regulations necessary for its administration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967

257.502 Operating record; certified abstract inadmissible as evidence.

Sec. 502.

(a) The secretary of state shall upon request and upon payment of the required fee furnish any person a certified abstract of the operating record of any person subject to the provisions of this chapter, which abstract shall also fully designate the motor vehicles, if any, registered in the name of such person, and, if there be no record in the office of the secretary of state of any conviction of such person of violating any law relating to the operation of a motor vehicle or any injury or damage caused by such person, the secretary of state shall so certify.

(b) Such record shall not be admissible as evidence in any action, civil or criminal, arising out of a motor vehicle accident.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.502a Proof of compliance with laws of another state.

Sec. 502a.

Proof of compliance with the financial responsibility laws of another state may be submitted to the secretary of state in lieu of the proof of financial responsibility required by this chapter if the accident for which proof of financial responsibility is required under this chapter occurred in the state with whose laws there was compliance.

History: Add. 1966, Act 247, Eff. Mar. 10, 1967

WRITTEN REPORTS OF ACCIDENTS

257.503 Access to motor vehicle accident report; prohibitions; violation; penalty; definitions.

Sec. 503.

(1) For 30 days after the date a motor vehicle accident report is filed with a law enforcement agency, a person may only access the report if the person or organization files a statement indicating that from the time the person or organization is granted access to the report until 30 days after the date the report is filed, the person or organization acknowledges that the person or organization is prohibited from doing either of the following:

(a) Using the report for any direct solicitation of an individual, vehicle owner, or property owner listed in the report.

(b) Disclosing any personal information contained in the report to a third party for commercial solicitation of an individual, vehicle owner, or property owner listed in the report.

(2) A person that knowingly violates this section is guilty of a crime punishable as follows:

(a) For a first violation, a misdemeanor punishable by a fine of not more than $30,000.00.

(b) For a second or subsequent violation, a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $60,000.00, or both.

(3) As used in this section:

(a) "Direct solicitation" means "direct solicitation to provide a service" as that term is defined in section 410b of the Michigan penal code, 1931 PA 328, MCL 750.410b.

(b) "Law enforcement agency" means any of the following:

(i) The department of state police.

(ii) The county sheriff's office.

(iii) The police department of a local unit of government.

(c) "Local unit of government" means a state university or college or a county, city, village, or township.

(d) "Motor vehicle accident" means an occurrence involving a motor vehicle that results in damage to property or injury to an individual.

(e) "Personal information" means information that identifies an individual, including the individual's name, address, driver license number, social security number, and telephone number.

(f) "Report" means a report completed by an officer of a law enforcement agency that indicates that a motor vehicle accident occurred.

History: Add. 2013, Act 218, Eff. Jan. 1, 2014
Compiler's Notes: Former MCL 257.503, which pertained to report of accident by person owning or operating vehicle where person is killed or injured, was repealed by Act 67 of 1971, Eff. Oct. 1, 1971.

257.503a-257.503c Repealed. 1971, Act 67, Eff. Oct. 1, 1971.

SECURITY FOLLOWING ACCIDENT

257.504 Repealed. 1971, Act 138, Eff. Oct. 1, 1971.

257.504a-257.510 Repealed. 1971, Act 67, Eff. Oct. 1, 1971.

PROOF OF FINANCIAL RESPONSIBILITY FOR THE FUTURE

257.511 Nonpayment of judgment; certification to secretary of state; nonresidents.

Sec. 511.

(1) If a person fails within 30 days to satisfy a judgment, the clerk of the court, or of the judge of a court that has no clerk, in which the judgment is rendered shall forward to the secretary of state immediately upon the request of the plaintiff or plaintiff's attorney after the expiration of 30 days an abstract of the court record of the judgment properly certified, on forms supplied by the department.

(2) Failure, refusal, or neglect to comply with subsection (1) constitutes misconduct in office and is grounds for removal from office.

(3) If the defendant named in an abstract of court record reported to the secretary of state under subsection (1) is a nonresident, the secretary of state shall transmit a certified copy of the abstract of court record to the official in charge of issuing licenses and registration certificates of the state in which the defendant resides.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.512 Nonpayment of judgment; suspension of registration and nonresident's operating privilege.

Sec. 512.

The secretary of state upon receipt of a certified abstract of court record of a judgment rendered in this state or any other state shall forthwith suspend the license and registration and

any nonresident's operating privilege of any person against whom such judgment was rendered, except as otherwise provided in this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 140, Eff. Aug. 28, 1964

257.512a Nonpayment of judgment; finding as to insurer, effect.

Sec. 512a.

No license, registration or nonresident's operating privilege of any person shall be suspended under the provisions of this chapter if the secretary of state finds that an insurer was obligated to pay the judgment upon which the suspension is based, at least to the extent and for the amounts required in this chapter, but has not paid the judgment for any reason. A finding by the secretary of state that an insurer is obligated to pay a judgment is not binding upon the insurer and shall have no legal effect whatever except for the purpose of administering this section. Whenever in any judicial proceedings it is determined by any final judgment, decree or order that an insurer is not obligated to pay any judgment, the secretary of state, notwithstanding any contrary finding theretofore made by him, shall forthwith suspend as provided in section 512 the license and registration and any nonresident's operating privilege of any person against whom the judgment was rendered.

History: Add. 1964, Act 140, Eff. Aug. 28, 1964

257.513 Duration of suspension of license, registration, and nonresident's operating privilege; satisfaction of judgment.

Sec. 513.

(a) The license, registration and nonresident's operating privilege shall remain so suspended and shall not be renewed, nor shall any license or registration be thereafter issued in the name of the person, including any person not previously licensed unless and until the judgment is satisfied in full or he files an installment repayment agreement as provided in section 515 and, notwithstanding the provisions of section 528, maintains proof of financial responsibility as provided in section 517 until the judgment is satisfied in full.

(b) Judgments shall be deemed to be satisfied in full under this section if not renewed prior to the expiration of the statute of limitations.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1952, Act 17, Eff. Sept. 18, 1952 ;-- Am. 1964, Act 171, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 1972, Act 274, Imd. Eff. Oct. 19, 1972

257.514 When judgments deemed satisfied.

Sec. 514.

Judgments herein referred to shall, for the purpose of this chapter only, be deemed satisfied:

1. When $20,000.00 is credited upon any judgment or judgments rendered in excess of that amount because of bodily injury to or death of 1 person as the result of any one accident; or

2. When, subject to such limit of $20,000.00 because of bodily injury to or death of 1 person, the sum of $40,000.00 is credited upon any judgment or judgments rendered in excess

of that amount because of bodily injury to or death of 2 or more persons as the result of any one accident; or

3. When $10,000.00 is credited upon any judgment or judgments rendered in excess of that amount because of injury to or destruction of property of others as a result of any one accident.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 155, Eff. Sept. 13, 1958 ;-- Am. 1971, Act 191, Imd. Eff. Dec. 20, 1971

257.515 Installment payment of judgment; default.

Sec. 515.

(a) A judgment debtor upon due notice to the judgment creditor may apply to the court in which such judgment was rendered for the privilege of paying such judgment in installments and the court, in its discretion and without prejudice to any other legal remedies which the judgment creditor may have, may so order and fix the amounts and times of payment of the installments. A true copy of the order shall be filed with the secretary of state. In lieu of a court order for installment payments, the judgment debtor and judgment creditor may make an agreement in writing, a copy of which shall be filed with the secretary of state, for the payment of the judgment in installments.

(b) The secretary of state shall not suspend a license, registration, or nonresident's operating privilege, and shall restore any license, registration, or nonresident's operating privilege suspended following non-payment of a judgment, when the judgment debtor gives proof of financial responsibility and obtains an order, or written agreement, permitting the payment of the judgment in installments, and while the payment of any installment is not in default.

(c) If the judgment debtor fails to pay any installments as specified by the order, or written agreement, then upon notice of the default, the secretary of state shall forthwith suspend the license, registration, or nonresident's operating privilege of the judgment debtor until the judgment is satisfied, as provided in this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 140, Eff. Aug. 28, 1964

257.515a Restoration of license or registration after nonpayment of installment; limitation.

Sec. 515a.

The secretary of state shall not restore a license, registration or nonresident's operating privilege of any person more than twice within a 2-year period following nonpayment of the installment agreement, judgment, order or other written agreement contemplated in section 515 of this chapter.

History: Add. 1966, Act 247, Eff. Mar. 10, 1967

257.516 Repealed. 1976, Act 101, Imd. Eff. Apr. 27, 1976.

Compiler's Notes: The repealed section pertained to suspension of license and registration.

257.517 Proof of financial responsibility; alternative methods.

Sec. 517.

Proof of financial responsibility when required under this chapter may be given by filing:

1. A certificate of insurance as provided in section 518 or section 519; or
2. A bond as provided in section 523; or
3. A certificate of deposit of money or securities as provided in section 524.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.518 Proof of financial responsibility; certificate of insurance.

Sec. 518.

(a) Proof of financial responsibility may be furnished by filing with the secretary of state the written certificate of any insurance carrier duly authorized to do business in this state certifying that there is in effect a motor vehicle liability policy for the benefit of the person required to furnish proof of financial responsibility. Such certificate shall give the effective date of such motor vehicle liability policy, which date shall be the same as the effective date of the certificate, and shall designate by explicit description or by appropriate reference all motor vehicles covered thereby, unless the policy is issued to a person who is not the owner of a motor vehicle.

(b) No motor vehicle shall be or continue to be registered in the name of any person required to file proof of financial responsibility unless such motor vehicle is so designated in such a certificate.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.518a Commercial quadricycle; liability insurance; minimum limit.

Sec. 518a.

The owner of a commercial quadricycle shall furnish bodily injury and property damage liability insurance with a minimum combined single limit of $2,000,000.00 for all persons injured or for property damage.

History: Add. 2015, Act 126, Imd. Eff. July 15, 2015

257.518b Satisfaction of financial responsibility requirements; types of automobile insurance; applicability of section to insurance obtained by transportation network company driver or transportation network company.

Sec. 518b.

(1) All of the following types of automobile insurance satisfy the financial responsibility requirements of this chapter:

(a) During the time that a transportation network company driver is logged on to the transportation network company's digital network and is available to receive transportation requests but is not engaged in a transportation network company prearranged ride, all of the following types of automobile insurance:

(i) Residual third party automobile liability insurance as required under chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179, in the amount of at least $50,000.00 per person for death or bodily injury, $100,000.00 per incident for death or bodily injury, and $25,000.00 for property damage.

(ii) Personal protection insurance and property protection insurance in the amounts and of the types of coverage required by chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179.

(b) During the time that a transportation network company driver is engaged in a transportation network company prearranged ride, all of the following types of automobile insurance:

(i) Residual third party automobile liability insurance with a minimum combined single limit of $1,000,000.00 for all bodily injury or property damage.

(ii) Personal protection insurance and property protection insurance in the amounts and of the types of coverage required by chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179.

(2) This section only applies to automobile insurance obtained by a transportation network company driver or a transportation network company.

History: Add. 2016, Act 348, Eff. Mar. 21, 2017

257.519 Proof of financial responsibility; nonresident, compliance of insurance carrier.

Sec. 519.

(a) The nonresident owner of a motor vehicle not registered in this state may give proof of financial responsibility by filing with the secretary of state a written certificate or certificates of an insurance carrier authorized to transact business in the state in which the motor vehicle, or motor vehicles, described in such certificate is registered, or if such nonresident does not own a motor vehicle, then in the state in which the insured resides, provided such certificate otherwise conforms with the provisions of this chapter, and the secretary of state shall accept the same upon condition that said insurance carrier complies with the following provisions with respect to the policies so certified:

1. Said insurance carrier shall execute a power of attorney authorizing the secretary of state to accept service on its behalf of notice or process in any action arising out of a motor vehicle accident in this state;

2. Duly adopt a resolution providing that its policies shall be deemed to be varied to comply with the law of this state relating to the terms of motor vehicle liability policies issued therein; and

3. Agree to accept as final and binding any final judgment duly rendered in any action arising out of a motor vehicle accident in any court of competent jurisdiction in this state.

(b) If any insurance carrier not authorized to transact business in this state, which has qualified to furnish proof of financial responsibility, defaults in any said undertakings or agreements, the secretary of state shall not thereafter accept as proof any certificates of said carrier whether theretofore filed or thereafter tendered as proof, so long as such default continues.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951

257.520 Motor vehicle liability policy; definition; contents; coverage; limits; conditions; excess or additional coverage; reimbursement; proration; binder or indorsement.

Sec. 520.

(a) A "motor vehicle liability policy" as used in this chapter, shall mean an owner's or an operator's policy of liability insurance, certified as provided in section 518 or section 519 as

proof of financial responsibility, and issued, except as otherwise provided in section 519, by an insurance carrier duly authorized to transact business in this state, to or for the benefit of the person named therein as insured.

(b) Such owner's policy of liability insurance:

(1) Shall designate by explicit description or by appropriate reference all motor vehicles with respect to which coverage is thereby to be granted; and

(2) Shall insure the person named therein and any other person, as insured, using any such motor vehicle or motor vehicles with the express or implied permission of such named insured, against loss from the liability imposed by law for damages arising out of the ownership, maintenance or use of such motor vehicle or motor vehicles within the United States of America or the Dominion of Canada, subject to limits exclusive of interest and costs, with respect to each such motor vehicle, as follows: $20,000.00 because of bodily injury to or death of 1 person in any 1 accident and, subject to said limit for 1 person, $40,000.00 because of bodily injury to or death of 2 or more persons in any 1 accident, and $10,000.00 because of injury to or destruction of property of others in any 1 accident;

(3) When a certificate is filed showing that a policy or policies have been issued covering all motor vehicles owned by the insured but not insuring such person when operating any motor vehicle not owned by him, it shall be unlawful for such person to operate any motor vehicle not owned by him or not covered by such certificate.

(c) Such operator's policy of liability insurance shall insure the person named as insured therein against loss from the liability imposed upon him by law for damages arising out of the use by him of any motor vehicle not owned by him, within the same territorial limits and subject to the same limits of liability as are set forth above with respect to an owner's policy of liability insurance.

(d) Such motor vehicle liability policy shall state the name and address of the named insured, the coverage afforded by the policy, the policy period, and the limits of liability, and shall contain an agreement or be indorsed that insurance is provided thereunder in accordance with the coverage defined in this chapter as respects bodily injury and death or property damage, or both, and is subject to all the provisions of this chapter.

(e) Such motor vehicle liability policy need not insure any liability under any workmen's compensation law nor any liability on account of bodily injury to or death of an employee of the insured while engaged in the employment, other than domestic, of the insured, or while engaged in the operation, maintenance or repair of any such motor vehicle nor any liability for damage to property owned by, rented to, in charge of, or transported by the insured.

(f) Every motor vehicle liability policy shall be subject to the following provisions which need not be contained therein:

(1) The liability of the insurance carrier with respect to the insurance required by this chapter shall become absolute whenever injury or damage covered by said motor vehicle liability policy occurs; said policy may not be cancelled or annulled as to such liability by any agreement between the insurance carrier and the insured after the occurrence of the injury or damage; no statement made by the insured or on his behalf and no violation of said policy shall defeat or void said policy, and except as hereinafter provided, no fraud, misrepresentation, assumption of liability or other act of the insured in obtaining or retaining such policy, or in adjusting a claim under such policy, and no failure of the insured to give any notice, forward any paper or otherwise cooperate with the insurance carrier, shall constitute a defense as against such judgment creditor.

(2) The satisfaction by the insured of a judgment for such injury or damage shall not be a condition precedent to the right or duty of the insurance carrier to make payment on account of such injury or damage.

(3) If any person shall secure final judgment against the insured for loss or damage covered by any such policy and if such judgment is not satisfied within 30 days after it shall have become final, then such judgment creditor shall be entitled to recover under the terms of such policy in the same manner and to the same extent as the insured, except as hereinafter provided.

(4) The insurance carrier shall have the right to settle any claim covered by the policy, and if such settlement is made in good faith, the amount thereof shall be deductible from the limits of liability specified in subparagraph (2) of paragraph (b) of this section.

(5) The policy, the written application therefor, if any, and any rider or indorsement which does not conflict with the provisions of this chapter, shall constitute the entire contract between the parties.

(6) The insurance carrier shall not be liable on any judgment if it has not had prompt notice of and reasonable opportunity to appear in and defend the action in which such judgment was rendered, or if the judgment has been obtained through collusion between the judgment creditor and the insured.

(g) Any policy which grants the coverage required for a motor vehicle liability policy may also grant any lawful coverage in excess of or in addition to the coverage specified for a motor vehicle liability policy and such excess or additional coverage shall not be subject to the provisions of this chapter. With respect to a policy which grants such excess or additional coverage the term "motor vehicle liability policy" shall apply only to that part of the coverage which is required by this section.

(h) Any motor vehicle liability policy may provide that the insured shall reimburse the insurance carrier for any payment the insurance carrier would not have been obligated to make under the terms of the policy except for the provisions of this chapter.

(i) Any motor vehicle liability policy may provide for the prorating of the insurance thereunder with other valid and collectible insurance.

(j) The requirements for a motor vehicle liability policy may be fulfilled by the policies of 1 or more insurance carriers which policies together meet such requirements.

(k) Any carrier authorized to issue motor vehicle liability policies may, pending the issuance of such a policy, execute an agreement, to be known as a "binder", or may, in lieu of such a policy, issue an indorsement to an existing policy. Every such binder or indorsement shall be subject to the provisions of this section and shall be construed to provide indemnity or insurance in like manner and to the same extent as a motor vehicle liability policy.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 219, Eff. Oct. 14, 1955 ;-- Am. 1958, Act 155, Eff. Sept. 13, 1958 ;-- Am. 1966, Act 247, Eff. Mar. 10, 1967 ;-- Am. 1971, Act 138, Eff. Oct. 1, 1971

257.521 Motor vehicle liability policy; notice of termination.

Sec. 521.

When an insurance carrier has certified a motor-vehicle liability policy under section 518 or section 519, the insurance so certified shall not be cancelled or terminated until at least 10 days after a notice of cancellation or termination of the insurance so certified shall be filed in the office of the secretary of state, except that such a policy subsequently procured and certified shall, on the effective date of its certification, terminate the insurance previously certified with respect to any motor vehicle designated in both certificates.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.522 Automobile insurance policies unaffected by chapter.

Sec. 522.

(a) This chapter shall not be held to apply to or affect policies of automobile insurance against liability which may now or hereafter be required by any other law of this state, and such policies, if they contain an agreement or are endorsed to conform with the requirements of this chapter, may be certified as proof of financial responsibility under this chapter.

(b) This chapter shall not be held to apply to or affect policies insuring solely the insured named in the policy against liability resulting from the maintenance or use by persons in the insured's employ or on his behalf of motor vehicles not owned by the insured.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.523 Bond as proof of financial responsibility; satisfaction of judgment.

Sec. 523.

(a) The bond of a surety company, duly authorized to transact business within the state, or a bond, with at least 2 individual sureties, each owning real estate within this state, which real estate shall be scheduled in the bond and approved by a judge of a court of record which said bond shall be conditioned for the payment of the amounts specified herein may be accepted as proof of financial responsibility, and such bond shall be filed with the register of deeds of the county where such property is located, and a true copy thereof shall be filed with the secretary of state, and shall not be cancelable except after 10 days' written notice to the secretary of state. Such bonds shall constitute a lien in favor of the state upon the real estate so scheduled or any surety, which lien shall exist in favor of any holder of a final judgment against the person who has filed such proof on account of damage to property or injury to, including death of a person or persons resulting from the ownership, maintenance, use or operation hereafter of a motor vehicle, upon the filing of notice to that effect by the secretary of state in the office of the register of deeds of the county where such real estate is located.

(b) If such judgment rendered against the principal on the surety company or real estate individual bond given under the provisions of this chapter shall not be satisfied within 30 days after it has become final as hereinbefore provided, the judgment creditor may, for his own use and benefit and at his sole expense, bring an action or actions in the name of the state against the company or person executing such bond, including an action or proceeding to foreclose any lien that may exist upon the real estate of a person who has executed such bond in like manner as foreclosure of a mortgage in chancery.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951

257.524 Money or securities as proof.

Sec. 524.

(a) The certificate of the state treasurer that the person named therein has deposited with him a sum of money or securities for money approved by him in the amounts as specified herein shall be taken as proof of financial responsibility. The state treasurer shall accept any such deposits and issue a certificate therefor, and the secretary of state shall accept such

certificate if accompanied by evidence that there are no unsatisfied judgments against the depositor registered in the office of the county clerk of the county where the depositor resides.

(b) Such deposit shall be held by the state treasurer to satisfy, in accordance with the provisions of this chapter, any execution on a judgment issued against such person making the deposit, for damages, including damages for care and loss of services, because of bodily injury to or death of any person, or for damages because of injury to or destruction of property, including the loss of use thereof, resulting from the ownership, maintenance, use, or operation of a motor vehicle after such deposit was made. Money or securities so deposited shall not be subject to attachment or execution unless such attachment or execution shall arise out of a suit for damages as aforesaid.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.525 Owners' proof for others.

Sec. 525.

Whenever any person required to give proof of financial responsibility hereunder is or later becomes an operator in the employ of any owner, or is or later becomes a member of the immediate family or household of the owner, the secretary of state shall accept proof given by such owner in lieu of proof by such other person to permit such other person to operate a motor vehicle for which the owner has given proof as herein provided. In like manner the secretary of state shall accept the certificate of self-insurance issued by him to any owner under the provisions of this act in lieu of proof of financial responsibility which would otherwise be required of any person employed as an operator by such owner to permit such person to operate motor vehicles of such self-insured owner. The secretary of state, shall designate the restrictions imposed by this section on the face of such person's license.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.526 Substitution of proof.

Sec. 526.

The secretary of state shall consent to the cancellation of any bond or certificate of insurance or the secretary of state shall direct and the state treasurer shall return any money or securities to the person entitled thereto upon the substitution and acceptance of other adequate proof of financial responsibility pursuant to this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.527 Other proof required.

Sec. 527.

Whenever any proof of financial responsibility filed under the provisions of this chapter no longer fulfills the purposes for which required, the secretary of state shall for the purpose of this chapter require other proof as required by this chapter, and shall suspend the license and registration or the nonresident's operating privilege pending the filing of such other proof.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.528 Cancellation of bond or certificate of insurance, returning money or securities deposited as proof of financial responsibility, or waiving requirement of filing proof; conditions; certification; refusal of application by person whose proof is cancelled or returned; reestablishment of proof.

Sec. 528.

(1) The secretary of state shall upon request consent to the immediate cancellation of a bond or certificate of insurance, or the secretary of state shall direct and the state treasurer shall return to the person entitled to the money or securities, money or securities deposited pursuant to this chapter as proof of financial responsibility, or the secretary of state shall waive the requirement of filing proof, in any of the following events:

(a) After 3 years from the date the proof was required if, during the 3-year period before the request, the secretary of state has not received a record of a conviction or a forfeiture of bail which would require the suspension or revocation of the license, registration, or nonresident's operating privilege of the person by or for whom the proof was furnished.

(b) If the person on whose behalf the proof was filed is deceased or if the person is permanently disabled and unable to operate a motor vehicle.

(c) If the person who has given proof surrenders the license and registration to the secretary of state.

(2) The secretary of state shall not consent to the cancellation of a bond or the return of money or securities if an action for damages upon a liability covered by the proof is pending, a judgment upon the liability is unsatisfied, or if the person who has filed the bond or deposited the money or securities has within 1 year immediately preceding the request been involved as an operator or owner in a motor vehicle accident resulting in injury or damage to the person or property of others. A certification of the applicant as to the nonexistence of the facts described in this subsection, that the applicant has been released from liability, or has been finally adjudicated not to be liable for the injury or damage, shall be sufficient evidence of the nonexistence of those facts, in the absence of evidence to the contrary, in the records of the secretary of state.

(3) If a person whose proof has been canceled or returned under subsection (1)(c) applies for a license or registration within a period of 3 years from the date proof was originally required, the application shall be refused unless the applicant reestablishes the proof for the remainder of the 3-year period.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 171, Eff. Aug. 28, 1964 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981

VIOLATION OF PROVISIONS OF ACT

257.529 Transfer of registration.

Sec. 529.

This chapter shall not prevent the owner of a motor vehicle, the registration of which has been suspended hereunder, from effecting a bona fide transfer of such motor vehicle to another person whose rights or privileges are not suspended under this chapter nor prevent the registration of such motor vehicle by such transferee. This chapter shall not in anywise affect the rights of any conditional vendor, chattel mortgagee, or lessor of a motor vehicle registered in the name of another as owner who becomes subject to the provisions of this chapter.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.530 Surrender of license and registration upon suspension or for lack of sufficient proof.

Sec. 530.

Any person whose license or registration shall have been suspended as herein provided, or whose policy of insurance or bond, when required under this chapter, shall have been cancelled or terminated, or who shall neglect to furnish other proof upon request of the secretary of state shall immediately return his license and registration to the secretary of state. If any person wilfully fails to return to the secretary of state the license or registration provided herein, the secretary of state shall forthwith direct any peace officer to secure possession thereof and to return the same to the secretary of state.

History: 1949, Act 300, Eff. Sept. 23, 1949

GENERAL PROVISIONS

257.531 Repealed. 2012, Act 204, Eff. Jan. 1, 2013.

Compiler's Notes: The repealed section pertained to certificate of self-insurance.

257.532 Availability of other security.

Sec. 532.

Nothing in this chapter shall be construed as preventing the plaintiff in any action at law from relying for security upon the other processes provided by law.

History: 1949, Act 300, Eff. Sept. 23, 1949

Chapter VI
OBEDIENCE TO AND EFFECT OF TRAFFIC LAWS

257.601 Applicability of chapter to operations on highways; exceptions.

Sec. 601.

The provisions of this chapter relating to the operation of vehicles refer exclusively to the operation of vehicles upon highways except where a different place is specifically referred to in a given section.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.601a Private road open to general public; contract; enforcement of act; cost and posting of signs; contracts not affected; "private road that is open to the general public" defined.

Sec. 601a.

(1) A county, city, township, or village may contract with a person who owns or is in charge of a private road that is open to the general public, at that person's request or with that person's consent, to enforce provisions of this act on that private road.

(2) Subject to subsection (1) and section 906, a peace officer may enter upon a private road that is open to the general public to enforce provisions of this act if signs meeting the requirements of the Michigan manual of uniform traffic control devices are posted on the private road.

(3) The owner or person in charge of a private road open to the general public who enters into a contract as described in subsection (1) is responsible for the cost and the posting of signs described in subsection (2).

(4) This section does not affect a contract entered into between a county, city, township, or village and the person who owns or is in charge of a private road open to the general public before December 29, 2006.

(5) As used in this section, "private road that is open to the general public" does not include a road that is under the control of a mobility research center, regardless of whether a private research entity or a corporation is using the road under an agreement with the mobility research center.

History: Add. 2006, Act 549, Imd. Eff. Dec. 29, 2006 ;-- Am. 2011, Act 115, Imd. Eff. July 20, 2011 ;-- Am. 2016, Act 334, Imd. Eff. Dec. 9, 2016

Compiler's Notes: Former MCL 257.601a, which pertained to certain vehicle owned and operated by state and local authorities and vehicles transporting hazardous materials, was repealed by Act 248 of 1995, Imd. Eff. Dec. 27, 1995.

257.601b Moving violation in work zone, emergency scene, school zone, or school bus zone; penalties; exceptions; definitions.

Sec. 601b.

(1) Notwithstanding any other provision of this act, a person responsible for a moving violation in a work zone, at an emergency scene, or in a school zone during the period beginning 30 minutes before school in the morning and through 30 minutes after school in the afternoon, or in a school bus zone is subject to a fine that is double the fine otherwise prescribed for that moving violation.

(2) A person who commits a moving violation in a work zone or a school bus zone for which not fewer than 3 points are assigned under section 320a and as a result causes injury to another person in the work zone or school bus zone is guilty of a misdemeanor punishable by a fine of not more than $1,000.00 or imprisonment for not more than 1 year, or both.

(3) A person who commits a moving violation in a work zone or school bus zone for which not fewer than 3 points are assigned under section 320a and as a result causes death to another person in the work zone or school bus zone is guilty of a felony punishable by a fine of not more than $7,500.00 or by imprisonment for not more than 15 years, or both.

(4) Subsections (2) and (3) do not apply if the injury or death was caused by the negligence of the injured or deceased person in the work zone or school bus zone.

(5) As used in this section:

(a) "Emergency scene" means a traffic accident, a serious incident caused by weather conditions, or another occurrence along a highway or street for which a police officer, firefighter, or emergency medical personnel are summoned to aid an injured victim.

(b) "Moving violation" means an act or omission prohibited under this act or a local ordinance substantially corresponding to this act that occurs while a person is operating a motor vehicle, and for which the person is subject to a fine.

(c) "School bus zone" means the area lying within 20 feet of a school bus that has stopped and is displaying 2 alternately flashing red lights at the same level, except as described in section 682(2).

(d) "School zone" means that term as defined in section 627a.

History: Add. 1996, Act 320, Imd. Eff. June 25, 1996 ;-- Am. 2001, Act 103, Eff. Oct. 1, 2001 ;-- Am. 2003, Act 314, Imd. Eff. Jan. 9, 2004 ;-- Am. 2008, Act 296, Imd. Eff. Oct. 8, 2008 ;-- Am. 2011, Act 60, Eff. July 1, 2011

257.601c Moving violation causing injury or death to person operating implement of husbandry on highway.

Sec. 601c.

(1) A person who commits a moving violation that has criminal penalties and as a result causes injury to a person operating an implement of husbandry on a highway in compliance with this act is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(2) A person who commits a moving violation that has criminal penalties and as a result causes death to a person operating an implement of husbandry on a highway in compliance with this act is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not more than $7,500.00, or both.

(3) As used in this section, "moving violation" means an act or omission prohibited under this act or a local ordinance substantially corresponding to this act that occurs while a person is operating a motor vehicle, and for which the person is subject to a fine.

History: Add. 2001, Act 103, Eff. Oct. 1, 2001

257.601d Person who commits moving violation that is the proximate cause of death of another person or serious impairment of body function; penalty; other violations; "moving violation" defined.

Sec. 601d.

(1) A person who commits a moving violation while operating a vehicle upon a highway or other place open to the general public, including, but not limited to, an area designated for the parking of motor vehicles, is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $2,000.00, or both, if the moving violation was the proximate cause of the death of another person.

(2) A person who commits a moving violation while operating a vehicle upon a highway or other place open to the general public, including, but not limited to, an area designated for the parking of motor vehicles, that causes serious impairment of a body function to another person is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $500.00, or both.

(3) This section does not prohibit the person from being charged with, convicted of, or punished for any other violation of law.

(4) As used in this section, "moving violation" means an act or omission prohibited under this act or a local ordinance substantially corresponding to this act that involves the operation of a motor vehicle, and for which a fine may be assessed.

History: Add. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2016, Act 46, Eff. June 13, 2016 ;-- Am. 2018, Act 566, Eff. Mar. 28, 2019

257.602 Compliance with order or direction of police officer.

Sec. 602.

A person shall not refuse to comply with a lawful order or direction of a police officer when that officer, for public interest and safety, is guiding, directing, controlling, or regulating traffic on the highways of this state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1975, Act 209, Imd. Eff. Aug. 25, 1975

257.602a Failure to stop at signal of police or conservation officer; penalty; subsection (1) inapplicable unless officer in uniform and vehicle identified; violation of subsection (1) as felony; conviction for conduct arising out of same transaction; "serious injury" defined.

Sec. 602a.

(1) A driver of a motor vehicle who is given by hand, voice, emergency light, or siren a visual or audible signal by a police or conservation officer, acting in the lawful performance of his or her duty, directing the driver to bring his or her motor vehicle to a stop shall not willfully fail to obey that direction by increasing the speed of the motor vehicle, extinguishing the lights of the motor vehicle, or otherwise attempting to flee or elude the officer. This subsection does not apply unless the police or conservation officer giving the signal is in uniform and the officer's vehicle is identified as an official police or department of natural resources vehicle.

(2) Except as provided in subsection (3), (4), or (5), an individual who violates subsection (1) is guilty of fourth-degree fleeing and eluding, a felony punishable by imprisonment for not more than 2 years or a fine of not more than $500.00, or both.

(3) Except as provided in subsection (4) or (5), an individual who violates subsection (1) is guilty of third-degree fleeing and eluding, a felony punishable by imprisonment for not more than 5 years or a fine of not more than $1,000.00, or both, if 1 or more of the following circumstances apply:

(a) The violation results in a collision or accident.

(b) A portion of the violation occurred in an area where the speed limit is 35 miles an hour or less, whether that speed limit is posted or imposed as a matter of law.

(c) The individual has a prior conviction for fourth-degree fleeing and eluding, attempted fourth-degree fleeing and eluding, or fleeing and eluding under a current or former law of this state prohibiting substantially similar conduct.

(4) Except as provided in subsection (5), an individual who violates subsection (1) is guilty of second-degree fleeing and eluding, a felony punishable by imprisonment for not more than 10 years or a fine of not more than $5,000.00, or both, if 1 or more of the following circumstances apply:

(a) The violation results in serious injury to an individual.

(b) The individual has 1 or more prior convictions for first-, second-, or third-degree fleeing and eluding, attempted first-, second-, or third-degree fleeing and eluding, or fleeing and eluding under a current or former law of this state prohibiting substantially similar conduct.

(c) The individual has any combination of 2 or more prior convictions for fourth-degree fleeing and eluding, attempted fourth-degree fleeing and eluding, or fleeing and eluding under a current or former law of this state prohibiting substantially similar conduct.

(5) If the violation results in the death of another individual, an individual who violates subsection (1) is guilty of first-degree fleeing and eluding, a felony punishable by imprisonment for not more than 15 years or a fine of not more than $10,000.00, or both.

(6) A conviction under this section does not prohibit a conviction and sentence under any other applicable provision, except section 479a(2), (3), (4), or (5) of the Michigan penal code, 1931 PA 328, MCL 750.479a, for conduct arising out of the same transaction.

(7) As used in this section, "serious injury" means a physical injury that is not necessarily permanent, but that constitutes serious bodily disfigurement or that seriously impairs the functioning of a body organ or limb. Serious injury includes, but is not limited to, 1 or more of the following:

(a) Loss of a limb or use of a limb.

(b) Loss of a hand, foot, finger, or thumb or use of a hand, foot, finger, or thumb.

(c) Loss of an eye or ear or use of an eye or ear.

(d) Loss or substantial impairment of a bodily function.

(e) Serious visible disfigurement.

(f) A comatose state that lasts for more than 3 days.

(g) Measurable brain damage or mental impairment.

(h) A skull fracture or other serious bone fracture.

(i) Subdural hemorrhage or hematoma.

History: Add. 1966, Act 203, Eff. Sept. 1, 1966 ;-- Am. 1968, Act 160, Eff. Nov. 15, 1968 ;-- Am. 1981, Act 159, Eff. Mar. 31, 1982 ;-- Am. 1988, Act 406, Eff. Mar. 30, 1989 ;-- Am. 1996, Act 587, Eff. June 1, 1997 ;-- Am. 1998, Act 347, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999

257.602b Holding or using a mobile electronic device while operating a motor vehicle; prohibited; exception for commercial motor vehicle and school bus; "use a mobile electronic device" defined; situational exceptions; violation as civil infraction; fine; local ordinances superseded; multiple violations penalty and enforcement; sunset applicability; definitions.

Sec. 602b.

(1) Except as otherwise provided in this section, an individual shall not hold or use a mobile electronic device while operating a motor vehicle. This subsection does not apply to an individual operating a commercial motor vehicle or a school bus.

(2) Except as otherwise provided in this section, an individual shall not hold or use a mobile electronic device while operating a commercial motor vehicle or a school bus. As used in this subsection, "use a mobile electronic device" means 1 or more of the following:

(a) Using a mobile electronic device to do any task, including, but not limited to, any of the following:

(i) Send or receive a telephone call.

(ii) Send, receive, or read a text message.

(iii) View, record, or transmit a video.

(iv) Access, read, or post to a social networking site.

(b) Reaching for a mobile electronic device in a manner that requires a driver to maneuver so that the driver is no longer in a seated driving position, restrained by a seat belt that is installed as required by 49 CFR 393.93 and adjusted in accordance with the vehicle manufacturer's instructions.

(3) Subsections (1) and (2) do not apply to any of the following situations:

(a) The use of a mobile electronic device by a law enforcement officer, firefighter, emergency medical technician, paramedic, operator of an authorized emergency vehicle, or similarly engaged paid or volunteer public safety first responder during the performance of that individual's official duties, or a public utility employee or contractor acting within the scope of that individual's employment when responding to a public utility emergency.

(b) The use of a mobile electronic device for emergency purposes, including calling or texting a 9-1-1 system, or making an emergency call to a law enforcement agency, health care provider, fire department, or other emergency services agency or entity to report to appropriate authorities any of the following:

(i) A fire, traffic accident, serious road hazard, or medical or hazardous materials emergency.

(ii) An operator of another motor vehicle who is driving in a reckless or otherwise unsafe manner or who appears to be driving under the influence of alcohol or drugs.

(iii) A crime being committed.

(c) The use of a global positioning or navigation feature of a mobile electronic device if information is not entered by hand into the global positioning or navigation system feature of the mobile electronic device.

(d) The use of a mobile electronic device in a voice-operated or hands-free mode if the operator of the motor vehicle does not use the operator's hands to operate the device, except for either of the following:

(i) Using a single button press, tap, or swipe to activate or deactivate a feature or function of the mobile electronic device or to select a telephone number or name.

(ii) Using a mobile electronic device that is integrated into a motor vehicle and utilizes the user interfaces that are permanently installed into the motor vehicle.

(e) The use of a mobile electronic device used for the sole purpose of continuously recording or broadcasting video inside or outside of a motor vehicle.

(f) The use of a mobile electronic device that is placed in a mount and used in any manner as described in subdivisions (a) to (e).

(4) Except as provided in subsection (6), an individual who violates subsection (1) is responsible for a civil infraction and must be ordered to do the following:

(a) For a first violation, pay a $100.00 civil fine or perform 16 hours of community service, or both.

(b) For a second or subsequent violation, pay a $250.00 civil fine or perform 24 hours of community service, or both.

(5) Except as provided in subsection (6), an individual who violates subsection (2) is responsible for a civil infraction and must be ordered to do the following:

(a) For a first violation, pay a $200.00 civil fine or perform 32 hours of community service, or both.

(b) For a second or subsequent violation, pay a $500.00 civil fine or perform 48 hours of community service, or both.

(6) If an individual is involved in an accident for which the individual is at fault when the individual violates this section, any civil fine ordered must be double the amount that would otherwise be ordered under subsection (4) or (5), as applicable.

(7) This section supersedes all local ordinances regulating the use of a mobile electronic device while operating a motor vehicle in motion on a highway or street, except that a unit of local government may adopt an ordinance or enforce an existing ordinance substantially corresponding to this section.

(8) If an individual is responsible for 3 or more civil infractions for violations of subsection (1) within a 3-year period, a court shall order the individual to complete a basic driver improvement course within a reasonable time as determined by the court. This subsection does not apply to a violation of subsection (2).

(9) A police officer enforcing this section may treat a violation of this section as the primary or sole reason for issuing a citation to a driver. A police officer shall not search a motor vehicle or the driver or passenger in the motor vehicle solely because of a violation of this section.

(10) This section does not apply to any of the following:

(a) A level 3, 4, or 5 automated driving system, as described in "J3016: Taxonomy and Definitions for Terms Related to Driving Automation Systems for On-Road Motor Vehicles", April 2021 edition, published by SAE International, or an automated vehicle equipped with an automated driving system as described in this subdivision, during testing or operation with the automated driving system engaged.

(b) Viewing or using in a hands-free manner a device mounted in a vehicle for displaying information related to testing or operating an automated driving system or automated technology.

(c) Operating, or programming the operation of, an automated motor vehicle while testing or operating the automated motor vehicle without a human operator while the automated driving system is engaged.

(11) This section does not apply beginning 5 years after the effective date of the amendatory act that added subsection (12).

(12) As used in this section:

(a) "Hold" means to physically support with any part of the hands, arms, or shoulders.

(b) "Mobile electronic device" means an electronic device that is not permanently installed in a motor vehicle, including, but not limited to, a device capable of text messaging, voice communication, entertainment, navigation, accessing the internet, or producing email. Mobile electronic device does not include either of the following:

(i) A radio designed for the Citizens Band Service or the Amateur Radio Service of the Federal Communications Commission or a commercial 2-way radio communications device or equipment permanently installed in a motor vehicle.

(ii) A medical device that is designed to be worn, including, but not limited to, an insulin pump.

(c) "Operate" means to drive or assume physical control of a motor vehicle on a public way, street, road, or highway, including operation while temporarily stationary because of traffic, road conditions, a traffic light, or a stop sign. Operate does not include a motor vehicle that is lawfully parked.

(d) "Social networking site" means any web-based service that allows individuals to construct a profile within a founded system and communicate with other users of the site for social or amusement purposes.

(13) Except as otherwise provided in subsection (2), as used in this section, "use a mobile electronic device" means using a mobile electronic device to do any task, including, but not limited to, any of the following:

(i) Send or receive a telephone call.

(ii) Send, receive, or read a text message.

(iii) View, record, or transmit a video.

(iv) Access, read, or post to a social networking site.

History: Add. 2010, Act 60, Eff. July 1, 2010 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2013, Act 36, Imd. Eff. May 21, 2013 ;-- Am. 2013, Act 231, Eff. Mar. 27, 2014 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2023, Act 41, Eff. June 30, 2023

257.602c Individual issued level 1 or 2 graduated license; use of cellular telephone prohibited; exceptions; violation as civil infraction; local ordinance; report; "Kelsey's Law."

Sec. 602c.

(1) Except as provided in this section, and in addition to the requirements of section 602b, an individual issued a level 1 or level 2 graduated license under section 310e shall not use a cellular telephone while operating a motor vehicle upon a highway or street. For purposes of this subsection, "use" means to initiate a call, answer a call, or listen to or engage in verbal communication through the cellular telephone.

(2) Subsection (1) does not apply to an individual who is using a cellular telephone to do any of the following:

(a) Report a traffic accident, medical emergency, or serious road hazard.

(b) Report a situation in which the individual believes the individual's personal safety is in jeopardy.

(c) Report or avert the perpetration or potential perpetration of a criminal act against the individual or another individual.

(3) An individual who violates this section is responsible for a civil infraction.

(4) This section supersedes all local ordinances regulating the use of a cellular telephone by an individual issued a level 1 or level 2 graduated license while operating a motor vehicle in motion on a highway or street, except that a unit of local government may adopt an ordinance or enforce an existing ordinance substantially corresponding to this section.

(5) Forty-two months after the effective date of the amendatory act that added this subsection, the department of state police shall submit a report, using available data, to the senate majority leader, speaker of the house of representatives, and governor that includes all of the following information related to violations of this section and section 602b:

(a) The number of citations given.

(b) The race and ethnicity of the individuals given citations.

(c) The number of each of the following caused by violations of this section or section 602b:

(i) Vehicle crashes.

(ii) Serious injuries.

(iii) Deaths.

(6) This section may be known as "Kelsey's law".

History: Add. 2012, Act 592, Eff. Mar. 28, 2013 ;-- Am. 2023, Act 40, Eff. June 30, 2023

257.603 Applicability of chapter to government vehicles; exemption of authorized emergency vehicles; conditions; exemption of police vehicles not sounding audible signal; exemption of persons, vehicles, and equipment working on surface of highway.

Sec. 603.

(1) The provisions of this chapter applicable to the drivers of vehicles upon the highway apply to the drivers of all vehicles owned or operated by the United States, this state, or a county, city, township, village, district, or any other political subdivision of the state, subject to the specific exceptions set forth in this chapter with reference to authorized emergency vehicles.

(2) The driver of an authorized emergency vehicle when responding to an emergency call, but not while returning from an emergency call, or when pursuing or apprehending a person who has violated or is violating the law or is charged with or suspected of violating the law may exercise the privileges set forth in this section, subject to the conditions of this section.

(3) The driver of an authorized emergency vehicle may do any of the following:

(a) Park or stand, irrespective of this act.

(b) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.

(c) Exceed the prima facie speed limits so long as he or she does not endanger life or property.

(d) Disregard regulations governing direction of movement or turning in a specified direction.

(4) The exemptions granted in this section to an authorized emergency vehicle apply only when the driver of the vehicle while in motion sounds an audible signal by bell, siren, air horn, or exhaust whistle as may be reasonably necessary, except as provided in subsection (5), and when the vehicle is equipped with at least 1 lighted lamp displaying a flashing, oscillating, or rotating red or blue light visible under normal atmospheric conditions from a distance of 500 feet in a 360 degree arc unless it is not advisable to equip a police vehicle operating as an authorized emergency vehicle with a flashing, oscillating or rotating light visible in a 360 degree arc. In those cases, a police vehicle shall display a flashing, oscillating, or rotating red or blue light visible under normal atmospheric conditions from a distance of 500 feet to the front of the vehicle. Only police vehicles that are publicly owned shall be equipped with a flashing, oscillating, or rotating blue light that when activated is visible under normal atmospheric conditions from a distance of 500 feet in a 360 degree arc.

(5) A police vehicle shall retain the exemptions granted in this section to an authorized emergency vehicle without sounding an audible signal if the police vehicle is engaged in an emergency run in which silence is required.

(6) The exemptions provided for by this section apply to persons, teams, motor vehicles, and other equipment while actually engaged in work upon the surface of a highway but do not apply to those persons and vehicles when traveling to or from work. The provisions of this chapter governing the size and width of vehicles do not apply to vehicles owned by public highway authorities when the vehicles are proceeding to or from work on public highways.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1958, Act 133, Imd. Eff. Apr. 18, 1958 ;-- Am. 1962, Act 188, Eff. Mar. 28, 1963 ;-- Am. 1964, Act 7, Imd. Eff. Mar. 20, 1964 ;-- Am. 1975, Act 100, Eff. July 1, 1976 ;-- Am. 1976, Act 347, Imd. Eff. Dec. 21, 1976 ;-- Am. 1996, Act 587, Eff. June 1, 1997

257.604 Riding animal or driving animal-drawn vehicle on roadway; rights and duties.

Sec. 604.

A person riding an animal or driving an animal-drawn vehicle upon a roadway shall be granted all of the rights and shall be subject to all the duties, criminal penalties, and civil

sanctions applicable to the driver of a vehicle by this chapter, except those provisions of this chapter which by their very nature may not have application.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.605 Applicability and uniformity of provisions; local laws and regulations; payment and allocation of civil fines; issuance of more than 1 citation; equipment violations; "local law" defined.

Sec. 605.

(1) This chapter and chapter VIII apply uniformly throughout this state and in all political subdivisions and municipalities in the state. A local authority shall not adopt, enact, or enforce a local law that provides lesser penalties or that is otherwise in conflict with this chapter or chapter VIII.

(2) A local law or portion of a local law that imposes a criminal penalty for an act or omission that is a civil infraction under this act, or that imposes a criminal penalty or civil sanction in excess of that prescribed in this act, is in conflict with this act and is void to the extent of the conflict.

(3) Except for a case in which the citation is dismissed pursuant to subsection (4), proceeds of a civil fine imposed by a local authority for violation of a local law regulating the operation of a commercial motor vehicle and substantially corresponding to a provision of this act shall be paid to the county treasurer and allocated as follows:

(a) Seventy percent to the local unit of government in which the citation is issued.

(b) Thirty percent for library purposes as provided by law.

(4) The owner or operator of a commercial motor vehicle shall not be issued more than 1 citation for each violation of a code or ordinance regulating the operation of a commercial motor vehicle and substantially corresponding to a provision of sections 683 to 725a of the Michigan vehicle code, 1949 PA 300, MCL 257.683 to 257.725a, within a 24-hour period. If the owner or operator of a commercial motor vehicle is issued a citation for an equipment violation pursuant to section 683 that does not result in the vehicle being placed out of service, the court shall dismiss the citation if the owner or operator of that commercial motor vehicle provides written proof to the court within 14 days after the citation is issued showing that the defective equipment indicated in the citation has been repaired.

(5) As used in this section, "local law" includes a local charter provision, ordinance, rule, or regulation.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2000, Act 97, Imd. Eff. May 15, 2000 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

257.606 Regulation of streets or highways under jurisdiction of local authority and within reasonable exercise of police power; accepted engineering practices as basis for regulations; stop sign or traffic control device requiring state trunk line highway traffic to stop; approval; posting signs giving notice of local traffic regulations; providing by ordinance for impounding of motor vehicle parked contrary to local ordinance; bond or cash deposit.

Sec. 606.

(1) This chapter does not prevent a local authority with respect to streets or highways under the jurisdiction of the local authority and within the reasonable exercise of the police power from doing any of the following:

(a) Regulating the standing or parking of vehicles.

(b) Regulating the impoundment or immobilization of vehicles whose owner has failed to answer 6 or more parking violation notices or citations regarding illegal parking.

(c) Regulating traffic by means of police officers or traffic control signals.

(d) Regulating or prohibiting processions or assemblages on the highways or streets.

(e) Designating particular highways as 1-way highways and requiring that all vehicles on those highways be moved in 1 specific direction, or designating particular highways as 2-way highways.

(f) Designating any highway as a through highway and requiring that all vehicles stop before entering or crossing the through highway; designating any intersection as a stop intersection and requiring all vehicles to stop at 1 or more entrances to the intersection; or designating any intersection as a yield intersection and requiring all vehicles to yield the right of way at 1 or more entrances to the intersection.

(g) Restricting the use of highways as authorized in section 726.

(h) Regulating the operation of bicycles and requiring the registration and licensing of bicycles, including the requirement of a registration fee.

(i) Regulating or prohibiting the turning of vehicles at intersections.

(j) Adopting other traffic regulations as are specifically authorized by this chapter.

(2) All traffic regulations described in subsection (1) shall be based on standard and accepted engineering practices as specified in the Michigan manual on uniform traffic control devices.

(3) A local authority shall not erect or maintain a stop sign or traffic control device that requires the traffic on any state trunk line highway to stop before entering or crossing any intersecting highway unless approval in writing has been first obtained from the director of the state transportation department.

(4) An ordinance or regulation enacted under subsection (1)(a), (d), (e), (f), (g), (i), or (j) are not enforceable until signs giving notice of the local traffic regulations are posted upon or at the entrance to the highway or street or part of the highway or street affected, as may be most appropriate, and are sufficiently legible as to be seen by an ordinarily observant person. The posting of signs giving the notice is not required for a local ordinance that does not differ from the provisions of this act regulating the parking or standing of vehicles or for ordinances of general application throughout the jurisdiction of the municipalities enacting the ordinances that prohibit, limit, or restrict all night parking or parking during the early morning hours, if signs, approximately 3 feet by 4 feet, and sufficiently legible as to be seen by an ordinarily observant person, giving notice of these ordinances relating to all night parking or parking during the early morning hours, are posted on highways at the corporate limits of the municipality.

(5) A local authority, in providing by ordinance for the impounding of any motor vehicle parked contrary to a local ordinance, shall not require a bond or cash deposit by the owner of the motor vehicle in excess of $500.00 in order to recover the possession of the motor vehicle pending final adjudication of the case.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1952, Act 254, Eff. Sept. 18, 1952 ;-- Am. 1955, Act 165, Imd. Eff. June 13, 1955 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018 ;-- Am. 2018, Act 440, Eff. Mar. 21, 2019

257.606a Maintenance of highway by state or local government; duty; immunity from tort liability; exception.

Sec. 606a.

(1) The state transportation department, a board of county road commissioners, a county board of commissioners, and a county, city, or village have no duty to maintain any highway under their jurisdiction in a condition reasonably safe and convenient for the operation of low-speed vehicles.

(2) The state transportation department, a board of county road commissioners, a county board of commissioners, and a county, city, or village are immune from tort liability for injuries or damages sustained by any person arising in any way out of the operation or use of a low-speed vehicle on maintained or unmaintained highways, shoulders, and rights-of-way over which the state transportation department, the board of county road commissioners, the county board of commissioners, or the county, city, or village has jurisdiction. The immunity provided by this subsection does not apply to actions which constitute gross negligence. Gross negligence is defined as conduct so reckless as to demonstrate a substantial lack of concern for whether an injury results.

History: Add. 2000, Act 82, Eff. July 1, 2000

257.606b On-demand automated motor vehicle network; operation.

Sec. 606b.

(1) As provided in this act, an on-demand automated motor vehicle network may be operated on a highway, road, or street in this state.

(2) A local unit of government shall not impose a local fee, registration, franchise, or regulation upon an on-demand automated motor vehicle network. This subsection does not apply after December 31, 2027. Nothing in this section limits local authority, or state authority over roads and rights-of-way, with respect to communications networks or facilities.

History: Add. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2022, Act 232, Imd. Eff. Dec. 13, 2022

257.607 Realty owners' regulation of traffic on private property.

Sec. 607.

Nothing in this act shall be construed to prevent the owner of real property used by the public for purposes of vehicular travel by permission of the owner and not as a matter of right from prohibiting such use nor from requiring other or different or additional conditions than those specified in this act or otherwise regulating such use as may seem best to such owner.

History: 1949, Act 300, Eff. Sept. 23, 1949

TRAFFIC SIGNS, SIGNALS, AND MARKINGS

257.608 Uniform system of traffic control devices; manual.

Sec. 608.

The state transportation department and department of state police shall adopt a manual and specifications for a uniform system of traffic control devices consistent with the provisions of

this chapter for use upon highways within this state. The manual shall correlate with and so far as possible conform to the federal manual then current as approved by the United States Department of Transportation, Federal Highway Administration, and may be revised whenever necessary to carry out the provisions of this act. It is the policy of this state to achieve, insofar as is practicable, uniformity in the design, shape, and color scheme of traffic signs, signals, and guide posts erected and maintained upon the streets and highways within this state with other states. Definitions and meanings found in the manual adopted under this section are supplemental to the definitions in chapter I. However, if a definition or meaning found in the manual adopted under this section conflicts with a definition in chapter I, the definition in chapter I prevails.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018

257.609 Traffic control devices; placement and maintenance; restrictions; county road commission, permission, costs.

Sec. 609.

(1) The state transportation department shall place or require to be placed, and maintain or require to be maintained, upon all state highways traffic control devices as it considers necessary to indicate and carry out the provisions of this chapter or to regulate, warn, or guide traffic. A traffic control device placed and maintained under this subsection shall conform to the most current Michigan manual on uniform traffic control devices.

(2) A local authority shall not place or maintain a traffic control device upon a trunk line highway under the jurisdiction of the state transportation department, except by the latter's permission, or upon a county road without the permission of the county road commission having jurisdiction over that road. With the approval of the state transportation department, the board of county road commissioners of a county, at its option, may install and maintain traffic control devices conforming to the Michigan manual on uniform traffic control devices if the cost would be less than that estimated by the state transportation department and bill the state transportation department for its share of the cost of installation.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 76, Eff. Oct. 2, 1953 ;-- Am. 1968, Act 98, Imd. Eff. June 7, 1968 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018

257.610 Traffic control devices; placement and maintenance by local authorities and county road commissions; compliance with manual; failure to comply with statutory provisions; sale, purchase, or manufacture of devices.

Sec. 610.

(1) Local authorities and county road commissions in their respective jurisdictions shall place and maintain the traffic control devices upon highways under their jurisdiction that they consider necessary to indicate and to carry out the provisions of this chapter or local traffic ordinances or to regulate, warn, or guide traffic. All traffic control devices shall conform to the Michigan manual on uniform traffic control devices.

(2) The state transportation department shall withhold from any incorporated village, city, or county that fails to comply with sections 606, 608, 609, 612, and 613, the share of fuel and vehicle tax revenue that would otherwise be due the incorporated village, city, or county under section 10 of 1951 PA 51, MCL 247.660. Notice of failure to comply, and 1 year's time to comply after notice, shall first be given.

(3) A person, firm, or corporation shall not sell or offer for sale to local authorities and local authorities shall not purchase or manufacture any traffic control device that does not conform to the Michigan manual on uniform traffic control devices, except with the permission of the director of the state transportation department.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 245, Eff. Oct. 14, 1955 ;-- Am. 1972, Act 72, Imd. Eff. Mar. 9, 1972 ;-- Am. 2016, Act 448, Eff. Jan. 5, 2018

257.611 Traffic control devices; obedience required; exception; avoiding obedience by driving on public or private property; violation as civil infraction.

Sec. 611.

(1) The driver of a vehicle or operator of a streetcar shall not disobey the instructions of a traffic control device placed in accordance with this chapter unless at the time otherwise directed by a police officer.

(2) The driver of a vehicle shall not, for the purpose of avoiding obedience to a traffic control device placed in accordance with this chapter, drive upon or through private property, or upon or through public property which is not a street or highway.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 75, Imd. Eff. Apr. 11, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.611a Direction of traffic in work zone; conditions; failure to comply; violation as civil infraction.

Sec. 611a.

(1) An owner or employee of an entity performing construction, maintenance, surveying, or utility work within a work zone may direct traffic within that work zone if both of the following apply:

(a) The department of transportation, the local authority, or the county road commission, within its respective jurisdiction, authorizes that owner or employee to direct traffic due to safety or work requirements. The authorization shall be issued in the manner considered appropriate by the department of transportation, the local authority, or the county road commission, and may be general or specific. The authorization may establish the conditions under which the owner or employee may direct traffic, and may allow the owner or employee to direct traffic in disregard of an existing traffic control device.

(b) The owner or employee is properly trained, equipped, and attired in conformance with the manual of uniform traffic control devices authorized under section 608.

(2) The operator of a motor vehicle who fails to comply with the directions of an owner or employee directing traffic under this section, including a direction made in disregard of an existing traffic control device, is responsible for a civil infraction.

History: Add. 2008, Act 298, Imd. Eff. Oct. 8, 2008

257.612 Traffic control signals; location; red arrow and yellow arrow indications; colors; traffic control signal at place other than intersection; stopping at sign, marking, or signal; violation of subsection (1) or (2) as civil infraction; approaching person using wheelchair or device to aid walking; violation of subsection (4) as misdemeanor; location of sign prohibiting turn on red signal; additional sign; location of temporary traffic control signal.

Sec. 612.

(1) When traffic is controlled by traffic control signals, not fewer than 1 signal shall be located over the traveled portion of the roadway so as to give vehicle operators a clear indication of the right-of-way assignment from their normal positions approaching the intersection. The vehicle signals shall exhibit different colored lights successively, 1 at a time, or with arrows. Red arrow and yellow arrow indications have the same meaning as the corresponding circular indications, except that they apply only to vehicle operators intending to make the movement indicated by the arrow. The following colors shall be used, and the terms and lights shall indicate and apply to vehicle operators as follows:

(a) If the signal exhibits a green indication, vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at that place prohibits either turn. Vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians and bicyclists lawfully within the intersection or an adjacent crosswalk at the time the signal is exhibited.

(b) If the signal exhibits a steady yellow indication, vehicular traffic facing the signal shall stop before entering the nearest crosswalk at the intersection or at a limit line when marked, but if the stop cannot be made in safety, a vehicle may be driven cautiously through the intersection.

(c) If the signal exhibits a steady red indication, the following apply:

(i) Vehicular traffic facing a steady red signal alone shall stop before entering the crosswalk on the near side of the intersection or at a limit line when marked or, if there is no crosswalk or limit line, before entering the intersection and shall remain standing until a green indication is shown, except as provided in subparagraph (ii).

(ii) Vehicular traffic facing a steady red signal, after stopping before entering the crosswalk on the near side of the intersection or at a limit line when marked or, if there is no crosswalk or limit line, before entering the intersection, may make a right turn from a 1-way or 2-way street into a 2-way street or into a 1-way street carrying traffic in the direction of the right turn or may make a left turn from a 1-way or 2-way street into a 1-way roadway carrying traffic in the direction of the left turn, unless prohibited by sign, signal, marking, light, or other traffic control device. The vehicular traffic shall yield the right of way to pedestrians and bicyclists lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(d) If the signal exhibits a steady green arrow indication, vehicular traffic facing the green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by the arrow or other movement permitted by other indications shown at the same time. The vehicular traffic shall yield the right-of-way to pedestrians and bicyclists lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(2) If a traffic control signal is erected and maintained at a place other than an intersection, the provisions of this section apply except for those provisions that by their nature cannot apply. Any stop required shall be made at a sign or marking on the pavement indicating where

the stop shall be made, but in the absence of a sign or marking, the stop shall be made at the signal.

(3) A person who violates subsection (1) or (2) is responsible for a civil infraction.

(4) A vehicle operator who approaches a person using a wheelchair or a device to aid the person to walk at a crosswalk or any other pedestrian crossing shall take necessary precautions to avoid accident or injury to the person using the wheelchair or device. A person who violates this subsection is guilty of a misdemeanor.

(5) A sign prohibiting a turn on a red signal as provided in subsection (1)(c)(ii) shall be located above or adjacent to the traffic control signal or as close as possible to the point where the turn is made, or at both locations, so that 1 or more of the signs are visible to a vehicle operator intending to turn, at the point where the turn is made. An additional sign may be used at the far side of the intersection in the direct line of vision of the turning vehicle operator.

(6) Subject to federal law, a temporary traffic control signal may be located on, over, or adjacent to the traveled portion of the roadway.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 245, Eff. Oct. 14, 1955 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1975, Act 287, Eff. Mar. 31, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 105, Eff. July 31, 1988 ;-- Am. 1990, Act 33, Eff. Apr. 1, 1991 ;-- Am. 2006, Act 339, Imd. Eff. Aug. 15, 2006 ;-- Am. 2014, Act 386, Imd. Eff. Dec. 18, 2014

257.613 Applicability of regular traffic control signals to pedestrians; special pedestrian control signals; violation as civil infraction.

Sec. 613.

(1) If special pedestrian control signals are not utilized, the regular traffic control signals as indicated in section 612 shall apply to pedestrians as follows:

(a) Green indication. Pedestrians facing the signal may proceed across the roadway within a marked or unmarked crosswalk.

(b) Steady yellow indication. Pedestrians facing the signal are advised that there is insufficient time to cross the roadway and a pedestrian then starting to cross shall yield the right of way to all vehicles.

(c) Steady red indication. Pedestrians facing the signal shall not enter the highway unless they can do so safely and without interfering with vehicular traffic.

(d) Red with arrow. Pedestrians facing the signal shall not enter the highway unless they can do so safely without interfering with vehicular traffic.

(2) If special pedestrian control signals are installed, they shall be placed at the far end of each crosswalk and shall indicate a "walk" or "don't walk" interval. These special signals shall apply to pedestrians only to the exclusion of a regular traffic control signal or signals which may be present at the same location, as follows:

(a) Walk interval—Pedestrians facing the signal may proceed across the highway in the direction of the signal and shall be given the right of way by the drivers of all vehicles.

(b) Don't walk (steady burning or flashing) interval—A pedestrian shall not start to cross the highway in the direction of the signals, but a pedestrian who has partially completed crossing on the walk interval of the signal shall proceed to a sidewalk or safety island while the don't walk interval of the signal is showing.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 245, Eff. Oct. 14, 1955 ;-- Am. 1956, Act 71, Eff. Aug. 11, 1956 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.613a School crossings; establishment; basis; determination; notice; erection of school crossing signs.

Sec. 613a.

(1) Except as provided in subsections (2) and (3), the state transportation department, a county road commission, or a local authority shall establish school crossings considered necessary for the safety of schoolchildren on streets and highways under its jurisdiction. The establishment of a school crossing shall be based upon a traffic and engineering study conducted by the authority having jurisdiction, in consultation with the superintendent of the school district.

(2) If considered necessary under subsection (1) or pursuant to a traffic and engineering study conducted under subsection (4), a school crossing shall be established within a safe distance from a school located on a street or highway on which the speed limit is 25 miles or more per hour.

(3) Upon request of the superintendent of the school district, the following individuals shall meet at not less than 5-year intervals to consider whether a traffic and engineering study should be conducted to determine whether a school crossing is required under subsection (2):

(a) The superintendent of the school district in which the school is located or his or her designee.

(b) The head of the local authority having jurisdiction to maintain the road or his or her designee or, if there is no local authority, an individual designated by the director of the state transportation department.

(c) The chief of police of the local unit of government in which the road is located or his or her designee or, if the local unit of government does not have a police department, the county sheriff or his or her designee.

(4) If the individuals described in subsection (3) determine by unanimous vote that a traffic and engineering study should be conducted, the individuals shall notify the authority having jurisdiction to maintain the road in writing of that determination. If the authority is notified under this subsection that a traffic and engineering study should be conducted, the authority shall conduct the study.

(5) Having established a school crossing, the state transportation department, county road commission, or local authority shall erect school crossing signs, in conformance with the manual of uniform traffic control devices provided for in section 608, on streets or highways under its jurisdiction.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978 ;-- Am. 2004, Act 201, Imd. Eff. July 13, 2004
Popular Name: The Jasmine Miles Schoolchildren Safety Act

257.613b School crossing guard; stationing; time period; color and design of outer vest; stopping vehicular traffic with hand held stop sign; authority.

Sec. 613b.

(1) When assigned, a school crossing guard shall be stationed at a school crossing during time periods established jointly by the superintendent of the school district and the head of the law enforcement agency having immediate jurisdiction.

(2) While on duty, a school crossing guard shall wear an outer vest of a color and design which conforms with the standards of the manual of uniform traffic control devices provided for in section 608.

(3) A school crossing guard while on duty at a school crossing shall when necessary stop vehicular traffic. This shall be done by use of a hand held stop sign which conforms to the standards for the sign in the manual of uniform traffic control devices or as approved by the department of state highways and transportation. School crossing guards shall have the authority only at their assigned crossings and only during their assigned duty times.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978

257.613c School crossing guard; responsibility of local law enforcement agency; instruction required; approval and conduct of courses.

Sec. 613c.

(1) School crossing guards shall be the responsibility of the local law enforcement agency having immediate jurisdiction of the crossing.

(2) A person shall receive a minimum of 4 hours instruction before performing the duties of a school crossing guard. Two hours of additional instruction shall be given annually to a school crossing guard before the beginning of each school year. The courses of instruction shall be approved by the department of education and the department of state police and conducted by the local law enforcement agency having jurisdiction or its designee.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978

257.613d Failure to stop for school crossing guard holding stop sign in upright position; misdemeanor; presumption.

Sec. 613d.

(1) A driver of a motor vehicle who fails to stop when a school crossing guard is in a school crossing and is holding a stop sign in an upright position visible to approaching vehicular traffic is guilty of a misdemeanor.

(2) In a proceeding for a violation of this section, proof that the particular vehicle described in the citation, complaint, or warrant was used in the violation, together with proof that the defendant named in the citation complaint or warrant was the registered owner of the vehicle at the time of the violation, constitutes in evidence a presumption that the registered owner of the vehicle was the driver of the vehicle at the time of the violation.

History: Add. 1978, Act 227, Imd. Eff. June 14, 1978

257.614 Flashing red or yellow signals; violation as civil infraction.

Sec. 614.

(1) If flashing red or yellow signals are used, they shall require obedience by vehicular traffic as follows:

(a) Flashing red (stop signal). When a red lens is illuminated by rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(b) Flashing yellow (caution signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past the signal only with caution.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.615 Signs or lights resembling traffic-control devices or emergency vehicles; commercial advertising on traffic signs; prohibition; public nuisance; removal; placement of street decorations and banners.

Sec. 615.

(a) Except with authority of a statute or of a duly authorized public body or official, no person shall place, maintain, or display along any highway or upon any structure in or over any highway any sign, signal, marking, device, blinking, oscillating or rotating light or lights, decoration or banner which is or purports to be or is in imitation of or resembles or which can be mistaken for a traffic control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any traffic control device or any railroad sign or signal, and no person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

(b) No person shall place, maintain or display along any highway any blinking, oscillating or rotating light or lights sufficiently similar in color and design that they may be mistaken for the distinguishing lights authorized by law for emergency vehicles or that creates a hazard for the safety of drivers using said highways.

(c) Every such prohibited sign, signal, marking, device, decoration or banner is hereby declared to be a public nuisance and the authority having jurisdiction over the highway is hereby empowered to remove the same or cause to be removed without notice.

(d) Decorations or banners which may be placed over the traveled portion of any street or highway shall be placed not closer than 10 feet on either side of traffic lights or signals and shall be so placed as to not obstruct a clear view of such traffic lights or signals.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 245, Eff. Oct. 14, 1955 ;-- Am. 1957, Act 112, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 98, Eff. Sept. 13, 1958

257.616 Repealed. 2016, Act 111, Eff. Aug. 8, 2016.

Compiler's Notes: The repealed section pertained to prohibition against interference with traffic-control devices or railroad signs or signals.

257.616a Portable signal preemptive device; prohibitions; penalties; exceptions; definitions.

Sec. 616a.

(1) Except as provided in subsections (3) and (4), a person shall not do any of the following:

(a) Possess a portable signal preemption device.

(b) Use a portable signal preemption device.

(c) Sell a portable signal preemption device to a person other than a person described in subsection (3).

(d) Purchase a portable signal preemption device for use other than a duty as described in subsections (3) and (4).

(2) A person who violates subsection (1) is guilty of a crime as follows:

(a) A person who violates subsection (1)(a) is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $5,000.00, or both.

(b) Except as provided in subdivisions (c), (d), and (e), a person who violates subsection (1)(b) is guilty of a felony punishable by imprisonment for not more than 2 years or a fine of not more than $10,000.00, or both.

(c) A person who violates subsection (1)(b), which violation results in a traffic accident, is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not more than $15,000.00, or both.

(d) A person who violates subsection (1)(b), which violation results in the serious impairment of a body function, is guilty of a felony punishable by imprisonment for not more than 10 years or a fine of not more than $20,000.00, or both.

(e) A person who violates subsection (1)(b), which violation results in the death of another, is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not more than $25,000.00, or both.

(f) A person who violates subsection (1)(c) or (d) is guilty of a felony punishable by imprisonment for not more than 2 years or a fine of not more than $10,000.00, or both.

(3) This section does not apply to any of the following:

(a) A law enforcement agency in the course of providing law enforcement services.

(b) A fire station or a firefighter in the course of providing fire prevention or fire extinguishing services.

(c) An emergency medical service or ambulance in the course of providing emergency medical transportation or ambulance services.

(d) An operator, passenger, or owner of an authorized emergency vehicle in the course of his or her emergency duties.

(4) Subsection (1)(a) does not apply to either of the following:

(a) A mail or package delivery service or employee or agent of a mail or package delivery service in the course of shipping or delivering a portable signal preemption device.

(b) An employee or agent of a portable signal preemption device manufacturer or retailer in the course of his or her employment in providing, selling, manufacturing, or transporting a portable signal preemption device to an individual or agency described in this subsection.

(5) As used in this section:

(a) "Portable signal preemption device" means a device that, if activated by a person, is capable of changing a traffic control signal to green out of sequence.

(b) "Serious impairment of a body function" means that term as defined in section 58c.

History: Add. 2004, Act 25, Eff. June 14, 2004

ACCIDENTS

257.617 Accident resulting in serious impairment of body function or death; stopping required; reporting to police agency or officer; violation as felony; penalty.

Sec. 617.

(1) The driver of a vehicle who knows or who has reason to believe that he or she has been involved in an accident upon public or private property that is open to travel by the public shall immediately stop his or her vehicle at the scene of the accident and shall remain there until the requirements of section 619 are fulfilled or immediately report the accident to the nearest or most convenient police agency or officer to fulfill the requirements of section 619(a) and (b) if there is a reasonable and honest belief that remaining at the scene will result in further harm. The stop shall be made without obstructing traffic more than is necessary.

(2) Except as provided in subsection (3), if the individual violates subsection (1) and the accident results in serious impairment of a body function or death, the individual is guilty of a felony punishable by imprisonment for not more than 5 years or by a fine of not more than $5,000.00, or both.

(3) If the individual violates subsection (1) following an accident caused by that individual and the accident results in the death of another individual, the individual is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not more than $10,000.00, or both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1956, Act 22, Eff. Aug. 11, 1956 ;-- Am. 1958, Act 35, Eff. Sept. 13, 1958 ;-- Am. 1975, Act 170, Eff. Mar. 31, 1976 ;-- Am. 1989, Act 267, Eff. Mar. 29, 1990 ;-- Am. 2001, Act 159, Eff. Feb. 1, 2002 ;-- Am. 2005, Act 3, Imd. Eff. Apr. 1, 2005

257.617a Accident; personal injury; reporting to police agency or officer; stopping required; penalty; suspension of license.

Sec. 617a.

(1) The driver of a vehicle who knows or who has reason to believe that he has been involved in an accident upon public or private property that is open to travel by the public shall immediately stop his or her vehicle at the scene of the accident and shall remain there until the requirements of section 619 are fulfilled or immediately report the accident to the nearest or most convenient police agency or officer to fulfill the requirements of section 619(a) and (b) if there is a reasonable and honest belief that remaining at the scene will result in further harm. The stop shall be made without obstructing traffic more than is necessary.

(2) If an individual violates subsection (1) and the accident results in injury to any individual, the individual is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(3) The secretary of state shall suspend the operator's or chauffeur's license of an individual convicted of violating this section as provided in section 319.

History: Add. 1975, Act 170, Eff. Mar. 31, 1976 ;-- Am. 2005, Act 3, Imd. Eff. Apr. 1, 2005

257.618 Accidents; damage to vehicles; stopping required; reporting to police agency or officer; penalty.

Sec. 618.

(1) The driver of a vehicle who knows or who has reason to believe that he has been involved in an accident upon public or private property that is open to travel by the public shall immediately stop his or her vehicle at the scene of the accident and shall remain there until the requirements of section 619 are fulfilled or immediately report the accident to the nearest or most convenient police agency or officer to fulfill the requirements of section

619(a) and (b) if there is a reasonable and honest belief that remaining at the scene will result in further harm. The stop shall be made without obstructing traffic more than is necessary.

(2) If an individual violates the requirements of subsection (1) and the accident results in damage to a vehicle operated by or attended by any individual, the individual is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $100.00, or both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 35, Eff. Sept. 13, 1958 ;-- Am. 2005, Act 3, Imd. Eff. Apr. 1, 2005

257.618a Vehicle accident; removal from main traveled portion of roadway or streetcar track; conditions; violation of subsection (1) as civil infraction; removal by law enforcement agency, public agency, or department; liability; "gross negligence" defined; reimbursement.

Sec. 618a.

(1) Unless the operator of a motor vehicle involved in an accident knows or reasonably should know that serious impairment of a bodily function or death has resulted from the accident, the operator or any other occupant of the motor vehicle who possesses a valid driver license shall remove the motor vehicle from the main traveled portion of the roadway into a safe refuge on the shoulder, emergency lane, or median or to a place otherwise removed from the roadway, and, if the motor vehicle is located in a place that would block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track, away from the streetcar track, if both of the following apply:

(a) Moving the motor vehicle may be done safely.

(b) The motor vehicle is capable of being normally and safely operated and can be operated under its own power in its customary manner without further damage or hazard to the traffic elements or to the roadway.

(2) A person who violates subsection (1) is responsible for a civil infraction.

(3) The operator or any other person who removes a motor vehicle from the main traveled portion of the roadway as provided in this section before the arrival of a police officer is not prima facie at fault regarding the cause of the traffic accident solely by reason of moving the motor vehicle as provided in this section.

(4) The decision of the operator or any other person to remove or not to remove a motor vehicle from the main traveled portion of the roadway as provided in this section is not admissible in a civil action as evidence that a serious impairment of bodily function has or has not resulted from the accident.

(5) A law enforcement agency or police officer may, without the consent of the owner or operator and with the assistance of the state transportation department, other road agencies, fire department, emergency management, other local public safety agencies, street railway, or towing or recovery companies under the direction of any of those entities remove and dispose of motor vehicles and cargoes of vehicles involved in accidents, including any personal property, from the main traveled portion of a roadway and the right-of-way if the vehicle, cargo, or personal property is blocking the roadway or right-of-way or may otherwise endanger public safety, or from the streetcar track if the motor vehicle, cargo, or personal property is blocking the streetcar track or may delay or interfere with the movement of a streetcar on a streetcar track.

(6) Except as otherwise provided in this subsection, an entity that moves a motor vehicle, cargo, or personal property as described in subsection (5), and any of the entity's officers, employees, or agents, or anyone acting in good faith under, and within the scope of, the authority conferred under subsection (5), is not liable for any damages or claims that may arise from the exercise or the failure to exercise any authority granted under subsection (5). This subsection does not apply to the transport of a motor vehicle from the scene of an accident, or if the conduct of the individual acting under the authority conferred under subsection (5) constitutes gross negligence. As used in this subsection, "gross negligence" means that term as defined in section 606a.

(7) The owner or carrier, if any, of a motor vehicle, cargo, or personal property removed or disposed of under subsection (5) shall reimburse the public agency, departments, street railway, and towing companies, if any, for all documented reasonable costs incurred in that removal and disposal.

History: Add. 2010, Act 10, Imd. Eff. Mar. 8, 2010 ;-- Am. 2014, Act 303, Eff. Jan. 7, 2015 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.619 Accidents; duties of driver.

Sec. 619.

The driver of a vehicle who knows or who has reason to believe that he or she has been involved in an accident with an individual or with another vehicle that is operated or attended by another individual shall do all of the following:

(a) Give his or her name and address, and the registration number of the vehicle he or she is operating, including the name and address of the owner, to a police officer, the individual struck, or the driver or occupants of the vehicle with which he or she has collided.

(b) Exhibit his or her operator's or chauffeur's license to a police officer, individual struck, or the driver or occupants of the vehicle with which he or she has collided.

(c) Render to any individual injured in the accident reasonable assistance in securing medical aid or arrange for or provide transportation to any injured individual.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1958, Act 35, Eff. Sept. 13, 1958 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2005, Act 3, Imd. Eff. Apr. 1, 2005

257.620 Accidents; attended or unattended vehicle; stopping; report.

Sec. 620.

The driver of any vehicle which collides upon either public or private property with any vehicle which is attended or unattended shall immediately stop and shall then and there either locate and notify the operator or owner of such vehicle of the name and address of the driver and owner of the vehicle striking the vehicle or, if such owner cannot be located, shall forthwith report it to the nearest or most convenient police officer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1967, Act 71, Eff. Nov. 2, 1967

257.621 Accidents; fixtures on or adjacent to highway; notification of owner; exhibition of driver's license; reports.

Sec. 621.

(a) The driver of any vehicle involved in an accident resulting only in damage to fixtures legally upon or adjacent to a highway shall take reasonable steps to locate and notify the owner or person in charge of such property of such accident and of his name and address and of the registration number of the vehicle he is driving and shall upon request exhibit his operator's or chauffeur's license and, if such owner cannot be found, shall forthwith report such accident to the nearest or most convenient police officer.

(b) The officer receiving such report or his commanding officer shall forward each individual report to the director of state police on forms prescribed by him which shall be completed in full by the investigating officer. The director of state police shall analyze each report relative to the cause of the reported accident and shall prepare for public use the information compiled from the reports.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 171, Eff. Mar. 10, 1967 ;-- Am. 1967, Act 3, Imd. Eff. Mar. 9, 1967

257.622 Report of accidents resulting in death, personal injury, or property damage; forms; analysis; use; retention.

Sec. 622.

The driver of a motor vehicle involved in an accident that injures or kills any person, or that damages property to an apparent extent totaling $1,000.00 or more, shall immediately report that accident at the nearest or most convenient police station, or to the nearest or most convenient police officer. The officer receiving the report, or his or her commanding officer, shall immediately forward each report to the director of the department of state police on forms prescribed by the director of the department of state police. The forms shall be completed in full by the investigating officer. The director of the department of state police shall analyze each report relative to the cause of the reported accident and shall prepare information compiled from reports filed under this section for public use. A copy of the report under this section and copies of reports required under section 621 shall be retained for at least 3 years at the local police department, sheriff's department, or local state police post making the report.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 171, Eff. Mar. 10, 1967 ;-- Am. 1967, Act 3, Imd. Eff. Mar. 9, 1967 ;-- Am. 1991, Act 168, Imd. Eff. Dec. 19, 1991 ;-- Am. 2003, Act 66, Eff. Jan. 1, 2004

257.622a Ignition interlock device; installation included in crash report.

Sec. 622a.

The crash report form required by this chapter shall include, when applicable, whether an ignition interlock device was installed in a vehicle involved in a crash.

History: Add. 1998, Act 340, Eff. Oct. 1, 1999

257.623 Accidents; reports by garagekeepers or repairmen.

Sec. 623.

The person in charge of any garage or repair shop to which is brought any motor vehicle which shows evidence of having been involved in an accident or having been struck by any bullet shall report the same to the nearest police station or sheriff's office immediately after such motor vehicle is received, giving the engine number, registration number and the name and address of the owner, and/or operator of such vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.624 Report not available for use in court action; purpose of report; authorization and purpose of scientific studies and research; use of data; disclosures; liability; penalty.

Sec. 624.

(1) A report required by this chapter shall not be available for use in a court action, but a report shall be for the purpose of furnishing statistical information regarding the number and cause of accidents.

(2) The office of highway safety planning may authorize scientific studies and research for the reduction of death, injury, and property losses. All information, records of interviews, written reports, statements, notes, memoranda, or other data collected pursuant to the scientific studies and research conducted by the state, or by other persons, agencies, or organizations authorized by the office of highway safety planning shall be used solely for the purpose of medical or scientific research and shall not disclose the name or identity of a person unless the person authorizes, in writing, the use of his or her name or identity. If a subject of the research study is deceased, the executor or heir of the deceased person may authorize, in writing, the disclosure of the deceased's name or identity. The furnishing of information to the office of highway safety planning or to a representative of an authorized study or research project shall not subject a person, hospital, sanitarium, rest home, nursing home, or other person or agency furnishing the information to any action for damages or other relief. The information, records, reports, statements, notes, memoranda, or other data shall not be admissible as evidence in a court or before any other tribunal, board, agency, or person. A person participating in an authorized study or research project shall not disclose, directly or indirectly, the information so obtained except in strict conformity with the research project.

(3) A person who discloses information in violation of subsection (2) is guilty of a misdemeanor, punishable by a fine of not less than $50.00.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 26, Imd. Eff. Mar. 7, 1980

257.624a Transportation or possession of alcoholic liquor in open or uncapped container open or upon which seal broken; violation as misdemeanor; exception; subsections (1) and (2) inapplicable to passenger in commercial quadricycle; definitions.

Sec. 624a.

(1) Except as provided in subsections (2) and (5), a person who is an operator or occupant shall not transport or possess alcoholic liquor in a container that is open or uncapped or upon which the seal is broken within the passenger area of a vehicle upon a highway, or within the passenger area of a moving vehicle in any place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, in this state.

(2) Except as otherwise provided in subsection (5), a person may transport or possess alcoholic liquor in a container that is open or uncapped or upon which the seal is broken

within the passenger area of a vehicle upon a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles in this state, if the vehicle does not have a trunk or compartment separate from the passenger area, and the container is in a locked glove compartment, behind the last upright seat, or in an area not normally occupied by the operator or a passenger.

(3) A person who violates this section is guilty of a misdemeanor. As part of the sentence, the person may be ordered to perform community service and undergo substance abuse screening and assessment at his or her own expense as described in section 703(1) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703. A court shall not accept a plea of guilty or nolo contendere for a violation of this section from a person charged solely with a violation of section 625(6).

(4) This section does not apply to a passenger in a chartered vehicle authorized to operate by the state transportation department.

(5) Except as otherwise provided in this subsection, unless prohibited by local ordinance, subsections (1) and (2) do not apply to a passenger in a commercial quadricycle. A passenger in a commercial quadricycle shall not transport or possess alcoholic liquor other than beer, wine, spirits, or a mixed spirits drink.

(6) As used in this section:

(a) "Glove compartment" means a recess with a hinged and locking door in the dashboard of a motor vehicle.

(b) "Passenger area" means the area designed to seat the operator and passengers of a motor vehicle while it is in operation and any area that is readily accessible to the operator or a passenger while in his or her seating position, including the glove compartment.

History: Add. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 349, Eff. Oct. 1, 1999 ;-- Am. 2012, Act 306, Imd. Eff. Oct. 1, 2012 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015

257.624b Transport or possession of alcoholic liquor by person less than 21 years of age.

Sec. 624b.

(1) An individual less than 21 years of age shall not knowingly transport or possess alcoholic liquor in a motor vehicle as an operator or occupant unless the individual is employed by a licensee under the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1101 to 436.2303, a common carrier designated by the liquor control commission under the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1101 to 436.2303, the liquor control commission, or an agent of the liquor control commission and is transporting or having the alcoholic liquor in a motor vehicle under the individual's control during regular working hours and in the course of the individual's employment. This section does not prevent an individual less than 21 years of age from knowingly transporting alcoholic liquor in a motor vehicle if an individual at least 21 years of age is present inside the motor vehicle. An individual who violates this subsection is guilty of a misdemeanor. As part of the sentence, the individual may be ordered to perform community service and undergo substance abuse screening and assessment at his or her own expense as described in section 703(1) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703.

(2) Within 30 days after the conviction for a violation of subsection (1) by the operator of a motor vehicle, which conviction has become final, the arresting law enforcement officer or the officer's superior may make a complaint before the court from which the warrant was issued. The complaint must be under oath and must describe the motor vehicle in which alcoholic

liquor was possessed or transported by the operator, who is less than 21 years of age, in committing the violation and requesting that the motor vehicle be impounded as provided in this section. Upon the filing of the complaint, the court shall issue to the owner of the motor vehicle an order to show cause why the motor vehicle should not be impounded. The order to show cause must fix a date and time for a hearing, that is not less than 10 days after the issuance of the order. The order must be served by delivering a true copy to the owner not less than 3 full days before the date of hearing or, if the owner cannot be located, by sending a true copy by certified mail to the last known address of the owner. If the owner is a nonresident of the state, service may be made upon the secretary of state as provided in section 403.

(3) If the court determines upon the hearing of the order to show cause, from competent and relevant evidence, that at the time of the commission of the violation the motor vehicle was being driven by the individual less than 21 years of age with the express or implied consent or knowledge of the owner in violation of subsection (1), and that the use of the motor vehicle is not needed by the owner in the direct pursuit of the owner's employment or the actual operation of the owner's business, the court may authorize the impounding of the vehicle for a period of not less than 15 days or more than 30 days. The court's order authorizing the impounding of the vehicle must authorize a law enforcement officer to take possession without other process of the motor vehicle wherever located and to store the vehicle in a public or private garage at the expense and risk of the owner of the vehicle. The owner of the vehicle may appeal the order to the circuit court and the provisions governing the taking of appeals from judgments for damages apply to the appeal. This section does not prevent a bona fide lienholder from exercising rights under a lien.

(4) A person who knowingly transfers title to a motor vehicle for the purpose of avoiding this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

(5) A law enforcement agency, upon determining that an individual less than 18 years of age allegedly violated this section, shall notify the parent or parents, custodian, or guardian of the individual as to the nature of the violation if the name of a parent, guardian, or custodian is reasonably ascertainable by the law enforcement agency. The notice required by this subsection must be made not later than 48 hours after the law enforcement agency determines that the individual who allegedly violated this section is less than 18 years of age and may be made in person, by telephone, or by first-class mail.

History: Add. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 349, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

DRIVING WHILE INTOXICATED, AND RECKLESS DRIVING

257.625 Operating motor vehicle while intoxicated; "operating while intoxicated" defined; operating motor vehicle when visibly impaired; penalties for causing death or serious impairment of a body function; operation of motor vehicle by person less than 21 years of age; "any bodily alcohol content" defined; requirements; controlled substance; costs; enhanced sentence; guilty plea or nolo contendere; establishment of prior conviction; special verdict; public record; burden of proving religious service or ceremony; ignition interlock device; definitions; prior conviction; violations arising out of same transaction.

Sec. 625.

(1) A person, whether licensed or not, shall not operate a vehicle on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state if the person is operating while intoxicated. As used in this section, "operating while intoxicated" means any of the following:

(a) The person is under the influence of alcoholic liquor, a controlled substance, or other intoxicating substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance.

(b) The person has an alcohol content of 0.08 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under subsection (28), the person has an alcohol content of 0.10 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(c) The person has an alcohol content of 0.17 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(2) The owner of a vehicle or a person in charge or in control of a vehicle shall not authorize or knowingly permit the vehicle to be operated on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of motor vehicles, within this state by a person if any of the following apply:

(a) The person is under the influence of alcoholic liquor, a controlled substance, other intoxicating substance, or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance.

(b) The person has an alcohol content of 0.08 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under subsection (28), the person has an alcohol content of 0.10 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(c) The person's ability to operate the motor vehicle is visibly impaired due to the consumption of alcoholic liquor, a controlled substance, or other intoxicating substance, or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance.

(3) A person, whether licensed or not, shall not operate a vehicle on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state when, due to the consumption of alcoholic liquor, a controlled substance, or other intoxicating substance, or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance, the person's ability to operate the vehicle is visibly impaired. If a person is charged with violating subsection (1), a finding of guilty under this subsection may be rendered.

(4) A person, whether licensed or not, who operates a motor vehicle in violation of subsection (1), (3), or (8) and by the operation of that motor vehicle causes the death of another person is guilty of a crime as follows:

(a) Except as provided in subdivisions (b) and (c), the person is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not less than $2,500.00 or more than $10,000.00, or both. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered to be forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(b) If the violation occurs while the person has an alcohol content of 0.17 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, and within 7 years of a prior conviction, the person is guilty of a felony punishable by imprisonment for not more than 20 years or a fine of not less than $2,500.00 or more than $10,000.00, or both. The

judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered to be forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(c) If, at the time of the violation, the person is operating a motor vehicle in a manner proscribed under section 653a and causes the death of a police officer, firefighter, or other emergency response personnel, the person is guilty of a felony punishable by imprisonment for not more than 20 years or a fine of not less than $2,500.00 or more than $10,000.00, or both. This subdivision applies regardless of whether the person is charged with the violation of section 653a. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered to be forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(5) A person, whether licensed or not, who operates a motor vehicle in violation of subsection (1), (3), or (8) and by the operation of that motor vehicle causes a serious impairment of a body function of another person is guilty of a crime as follows:

(a) Except as provided in subdivision (b), the person is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not less than $1,000.00 or more than $5,000.00, or both. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered to be forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(b) If the violation occurs while the person has an alcohol content of 0.17 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, and within 7 years of a prior conviction, the person is guilty of a felony punishable by imprisonment for not more than 10 years or a fine of not less than $1,000.00 or more than $5,000.00, or both. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered to be forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(6) A person who is less than 21 years of age, whether licensed or not, shall not operate a vehicle on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state if the person has any bodily alcohol content. As used in this subsection, "any bodily alcohol content" means either of the following:

(a) An alcohol content of 0.02 grams or more but less than 0.08 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under subsection (28), the person has an alcohol content of 0.02 grams or more but less than 0.10 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(b) Any presence of alcohol within a person's body resulting from the consumption of alcoholic liquor, other than consumption of alcoholic liquor as a part of a generally recognized religious service or ceremony.

(7) A person, whether licensed or not, is subject to the following requirements:

(a) He or she shall not operate a vehicle in violation of subsection (1), (3), (4), (5), or (8) while another person who is less than 16 years of age is occupying the vehicle. A person who violates this subdivision is guilty of a crime punishable as follows:

(i) Except as provided in subparagraph (ii), a person who violates this subdivision is guilty of a misdemeanor and must be sentenced to pay a fine of not less than $200.00 or more than $1,000.00 and to 1 or more of the following:

(A) Imprisonment for not more than 1 year.

(B) Community service for not less than 30 days or more than 90 days.

(ii) If the violation occurs within 7 years of a prior conviction or after 2 or more prior convictions, regardless of the number of years that have elapsed since any prior conviction, a person who violates this subdivision is guilty of a felony and must be sentenced to pay a fine of not less than $500.00 or more than $5,000.00 and to either of the following:

(A) Imprisonment under the jurisdiction of the department of corrections for not less than 1 year or more than 5 years.

(B) Probation with imprisonment in the county jail for not less than 30 days or more than 1 year and community service for not less than 60 days or more than 180 days. Not less than 48 hours of this imprisonment must be served consecutively.

(iii) A term of imprisonment imposed under subparagraph (ii)(A) or (B) must not be suspended unless the defendant agrees to participate in a specialty court program and successfully completes the program.

(b) He or she shall not operate a vehicle in violation of subsection (6) while another person who is less than 16 years of age is occupying the vehicle. A person who violates this subdivision is guilty of a misdemeanor punishable as follows:

(i) Except as provided in subparagraph (ii), a person who violates this subdivision may be sentenced to 1 or more of the following:

(A) Community service for not more than 60 days.

(B) A fine of not more than $500.00.

(C) Imprisonment for not more than 93 days.

(ii) If the violation occurs within 7 years of a prior conviction or after 2 or more prior convictions, regardless of the number of years that have elapsed since any prior conviction, a person who violates this subdivision must be sentenced to pay a fine of not less than $200.00 or more than $1,000.00 and to 1 or more of the following:

(A) Imprisonment for not less than 5 days or more than 1 year. This term of imprisonment must not be suspended unless the defendant agrees to participate in a specialty court program and successfully completes the program.

(B) Community service for not less than 30 days or more than 90 days.

(c) In the judgment of sentence under subdivision (a)(i) or (b)(i), the court may, unless the vehicle is ordered to be forfeited under section 625n, order vehicle immobilization as provided in section 904d. In the judgment of sentence under subdivision (a)(ii) or (b)(ii), the court shall, unless the vehicle is ordered to be forfeited under section 625n, order vehicle immobilization as provided in section 904d.

(d) This subsection does not prohibit a person from being charged with, convicted of, or punished for a violation of subsection (4) or (5) that is committed by the person while violating this subsection. However, points shall not be assessed under section 320a for both a violation of subsection (4) or (5) and a violation of this subsection for conduct arising out of the same transaction.

(8) A person, whether licensed or not, shall not operate a vehicle on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state if the person has in his or her body any amount of a controlled substance listed in schedule 1 under section 7212 of the public health code, 1978 PA 368, MCL 333.7212, or a rule promulgated under that section, or of a controlled substance described in section 7214(a)(iv) of the public health code, 1978 PA 368, MCL 333.7214.

(9) If a person is convicted of violating subsection (1) or (8), all of the following apply:

(a) Except as otherwise provided in subdivisions (b) and (c), the person is guilty of a misdemeanor punishable by 1 or more of the following:

(i) Community service for not more than 360 hours.

(ii) Imprisonment for not more than 93 days, or, if the person is convicted of violating subsection (1)(c), imprisonment for not more than 180 days.

(iii) A fine of not less than $100.00 or more than $500.00, or, if the person is guilty of violating subsection (1)(c), a fine of not less than $200.00 or more than $700.00.

(b) If the violation occurs within 7 years of a prior conviction, the person must be sentenced to pay a fine of not less than $200.00 or more than $1,000.00 and 1 or more of the following:

(i) Imprisonment for not less than 5 days or more than 1 year.

(ii) Community service for not less than 30 days or more than 90 days.

(c) If the violation occurs after 2 or more prior convictions, regardless of the number of years that have elapsed since any prior conviction, the person is guilty of a felony and must be sentenced to pay a fine of not less than $500.00 or more than $5,000.00 and to either of the following:

(i) Imprisonment under the jurisdiction of the department of corrections for not less than 1 year or more than 5 years.

(ii) Probation with imprisonment in the county jail for not less than 30 days or more than 1 year and community service for not less than 60 days or more than 180 days. Not less than 48 hours of the imprisonment imposed under this subparagraph must be served consecutively.

(d) A term of imprisonment imposed under subdivision (b) or (c) must not be suspended unless the defendant agrees to participate in a specialty court program and successfully completes the program.

(e) In the judgment of sentence under subdivision (a), the court may order vehicle immobilization as provided in section 904d. In the judgment of sentence under subdivision (b) or (c), the court shall, unless the vehicle is ordered to be forfeited under section 625n, order vehicle immobilization as provided in section 904d.

(f) In the judgment of sentence under subdivision (b) or (c), the court may impose the sanction permitted under section 625n.

(10) A person who is convicted of violating subsection (2) is guilty of a crime as follows:

(a) Except as provided in subdivisions (b) and (c), a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not less than $100.00 or more than $500.00, or both.

(b) If the person operating the motor vehicle violated subsection (4), a felony punishable by imprisonment for not more than 5 years or a fine of not less than $1,500.00 or more than $10,000.00, or both.

(c) If the person operating the motor vehicle violated subsection (5), a felony punishable by imprisonment for not more than 2 years or a fine of not less than $1,000.00 or more than $5,000.00, or both.

(11) If a person is convicted of violating subsection (3), all of the following apply:

(a) Except as otherwise provided in subdivisions (b) and (c), the person is guilty of a misdemeanor punishable by 1 or more of the following:

(i) Community service for not more than 360 hours.

(ii) Imprisonment for not more than 93 days.

(iii) A fine of not more than $300.00.

(b) If the violation occurs within 7 years of 1 prior conviction, the person must be sentenced to pay a fine of not less than $200.00 or more than $1,000.00, and 1 or more of the following:

(i) Imprisonment for not less than 5 days or more than 1 year.

(ii) Community service for not less than 30 days or more than 90 days.

(c) If the violation occurs after 2 or more prior convictions, regardless of the number of years that have elapsed since any prior conviction, the person is guilty of a felony and must be sentenced to pay a fine of not less than $500.00 or more than $5,000.00 and either of the following:

(i) Imprisonment under the jurisdiction of the department of corrections for not less than 1 year or more than 5 years.

(ii) Probation with imprisonment in the county jail for not less than 30 days or more than 1 year and community service for not less than 60 days or more than 180 days. Not less than 48 hours of the imprisonment imposed under this subparagraph must be served consecutively.

(d) A term of imprisonment imposed under subdivision (b) or (c) must not be suspended unless the defendant agrees to participate in a specialty court program and successfully completes the program.

(e) In the judgment of sentence under subdivision (a), the court may order vehicle immobilization as provided in section 904d. In the judgment of sentence under subdivision (b) or (c), the court shall, unless the vehicle is ordered to be forfeited under section 625n, order vehicle immobilization as provided in section 904d.

(f) In the judgment of sentence under subdivision (b) or (c), the court may impose the sanction permitted under section 625n.

(12) If a person is convicted of violating subsection (6), all of the following apply:

(a) Except as otherwise provided in subdivision (b), the person is guilty of a misdemeanor punishable by 1 or both of the following:

(i) Community service for not more than 360 hours.

(ii) A fine of not more than $250.00.

(b) If the violation occurs within 7 years of 1 or more prior convictions, the person may be sentenced to 1 or more of the following:

(i) Community service for not more than 60 days.

(ii) A fine of not more than $500.00.

(iii) Imprisonment for not more than 93 days.

(13) In addition to imposing the sanctions prescribed under this section, the court may order the person to pay the costs of the prosecution under the code of criminal procedure, 1927 PA 175, MCL 760.1 to 777.69.

(14) A person sentenced to perform community service under this section must not receive compensation and must reimburse the state or appropriate local unit of government for the cost of supervision incurred by the state or local unit of government as a result of the person's activities in that service.

(15) If the prosecuting attorney intends to seek an enhanced sentence under this section or a sanction under section 625n based on the defendant having 1 or more prior convictions, the prosecuting attorney shall include on the complaint and information, or an amended complaint and information, filed in district court, circuit court, municipal court, or family division of circuit court, a statement listing the defendant's prior convictions.

(16) If a person is charged with a violation of subsection (1), (3), (4), (5), (7), or (8) or section 625m, the court shall not permit the defendant to enter a plea of guilty or nolo contendere to a charge of violating subsection (6) in exchange for dismissal of the original charge. This subsection does not prohibit the court from dismissing the charge on the prosecuting attorney's motion.

(17) A prior conviction must be established at sentencing by 1 or more of the following:

(a) A copy of a judgment of conviction.

(b) An abstract of conviction.

(c) A transcript of a prior trial or a plea-taking or sentencing proceeding.

(d) A copy of a court register of actions.

(e) A copy of the defendant's driving record.

(f) Information contained in a presentence report.

(g) An admission by the defendant.

(18) Except as otherwise provided in subsection (20), if a person is charged with operating a vehicle while under the influence of a controlled substance or other intoxicating substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance in violation of subsection (1) or a local ordinance substantially corresponding to subsection (1), the court shall require the jury to return a special verdict in the form of a written finding or, if the court convicts the person without a jury or accepts a plea of guilty or nolo contendere, the court shall make a finding as to whether the person was under the influence of a controlled substance or other intoxicating substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance at the time of the violation.

(19) Except as otherwise provided in subsection (20), if a person is charged with operating a vehicle while his or her ability to operate the vehicle was visibly impaired due to his or her consumption of a controlled substance or other intoxicating substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance in violation of subsection (3) or a local ordinance substantially corresponding to subsection (3), the court shall require the jury to return a special verdict in the form of a written finding or, if the court convicts the person without a jury or accepts a plea of guilty or nolo contendere, the court shall make a finding as to whether, due to the consumption of a controlled substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance, the person's ability to operate a motor vehicle was visibly impaired at the time of the violation.

(20) A special verdict described in subsections (18) and (19) is not required if a jury is instructed to make a finding solely as to either of the following:

(a) Whether the defendant was under the influence of a controlled substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance at the time of the violation.

(b) Whether the defendant was visibly impaired due to his or her consumption of a controlled substance or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance at the time of the violation.

(21) If a jury or court finds under subsection (18), (19), or (20) that the defendant operated a motor vehicle under the influence of or while impaired due to the consumption of a controlled substance or a combination of a controlled substance, an alcoholic liquor, or other intoxicating substance, the court shall do both of the following:

(a) Report the finding to the secretary of state.

(b) On a form or forms prescribed by the state court administrator, forward to the department of state police a record that specifies the penalties imposed by the court, including any term of imprisonment, and any sanction imposed under section 625n or 904d.

(22) Except as otherwise provided by law, a record described in subsection (21)(b) is a public record and the department of state police shall retain the information contained on that record for not less than 7 years.

(23) In a prosecution for a violation of subsection (6), the defendant bears the burden of proving that the consumption of alcoholic liquor was a part of a generally recognized religious service or ceremony by a preponderance of the evidence.

(24) The court may order as a condition of probation that a person convicted of violating subsection (1) or (8), or a local ordinance substantially corresponding to subsection (1) or (8),

shall not operate a motor vehicle unless that vehicle is equipped with an ignition interlock device approved, certified, and installed as required under sections 625k and 625l.

(25) As used in this section:

(a) "Intoxicating substance" means any substance, preparation, or a combination of substances and preparations other than alcohol or a controlled substance, that is either of the following:

(i) Recognized as a drug in any of the following publications or their supplements:

(A) The official United States Pharmacopoeia.

(B) The official Homeopathic Pharmacopoeia of the United States.

(C) The official National Formulary.

(ii) A substance, other than food, taken into a person's body, including, but not limited to, vapors or fumes, that is used in a manner or for a purpose for which it was not intended, and that may result in a condition of intoxication.

(b) "Prior conviction" means a conviction for any of the following, whether under a law of this state, a local ordinance substantially corresponding to a law of this state, a law of the United States substantially corresponding to a law of this state, or a law of another state substantially corresponding to a law of this state, subject to subsection (27):

(i) Except as provided in subsection (26), a violation or attempted violation of any of the following:

(A) This section, except a violation of subsection (2), or a violation of any prior enactment of this section in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(B) Section 625m.

(C) Former section 625b.

(ii) Negligent homicide, manslaughter, or murder resulting from the operation of a vehicle or an attempt to commit any of those crimes.

(iii) Section 601d or 626(3) or (4).

(26) Except for purposes of the enhancement described in subsection (12)(b), only 1 violation or attempted violation of subsection (6), a local ordinance substantially corresponding to subsection (6), or a law of another state substantially corresponding to subsection (6) may be used as a prior conviction.

(27) If 2 or more convictions described in subsection (25) are convictions for violations arising out of the same transaction, only 1 conviction must be used to determine if the person has a prior conviction.

(28) Not later than 30 days after this state no longer receives annual federal highway construction funding conditioned on compliance with a national blood alcohol limit, the state treasurer shall certify that fact. The state treasurer shall publish a certification under this subsection on the department of treasury's website.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1954, Act 10, Eff. Aug. 13, 1954 ;-- Am. 1956, Act 34, Eff. Aug. 11, 1956 ;-- Am. 1958, Act 113, Eff. Sept. 13, 1958 ;-- Am. 1976, Act 285, Eff. Apr. 1, 1977 ;-- Am. 1978, Act 57, Imd. Eff. Mar. 10, 1978 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 309, Eff. Mar. 30, 1983 ;-- Am. 1987, Act 109, Eff. Mar. 30, 1988 ;-- Am. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1994, Act 448, Eff. May 1, 1995 ;-- Am. 1994, Act 449, Eff. May 1, 1995 ;-- Am. 1996, Act 491, Eff. Apr. 1, 1997 ;-- Am. 1998, Act

350, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2006, Act 564, Imd. Eff. Jan. 3, 2007 ;-- Am. 2008, Act 341, Eff. Jan. 1, 2009 ;-- Am. 2008, Act 462, Eff. Oct. 31, 2010 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2012, Act 543, Eff. Mar. 31, 2013 ;-- Am. 2013, Act 23, Imd. Eff. May 9, 2013 ;-- Am. 2014, Act 219, Eff. Sept. 24, 2014 ;-- Am. 2017, Act 153, Eff. Feb. 6, 2018 ;-- Am. 2020, Act 383, Eff. Mar. 24, 2021 ;-- Am. 2021, Act 80, Eff. Nov. 21, 2021 ;-- Am. 2021, Act 85, Imd. Eff. Sept. 24, 2021

Compiler's Notes: Section 2 of Act 309 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

Popular Name: Heidi's Law

257.625a Arrest without warrant; circumstances; preliminary chemical breath analysis; provisions; operator ordered out-of-service; refusal of commercial motor vehicle operator to submit to chemical breath analysis as misdemeanor; penalty; provisions applicable to chemical tests and analysis; evidence; availability of test results; admissibility of refusal to submit to chemical test; definitions.

Sec. 625a.

(1) A peace officer may arrest a person without a warrant under either of the following circumstances:

(a) The peace officer has reasonable cause to believe the person was, at the time of an accident in this state, the operator of a vehicle involved in the accident and was operating the vehicle in violation of section 625 or a local ordinance substantially corresponding to section 625.

(b) The person is found in the driver's seat of a vehicle parked or stopped on a highway or street within this state if any part of the vehicle intrudes into the roadway and the peace officer has reasonable cause to believe the person was operating the vehicle in violation of section 625 or a local ordinance substantially corresponding to section 625.

(2) A peace officer who has reasonable cause to believe that a person was operating a vehicle upon a public highway or other place open to the public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state and that the person by the consumption of alcoholic liquor, a controlled substance, or other intoxicating substance or a combination of them may have affected his or her ability to operate a vehicle, or reasonable cause to believe that a person was operating a commercial motor vehicle within the state while the person's blood, breath, or urine contained any measurable amount of alcohol, a controlled substance, or any other intoxicating substance or while the person had any detectable presence of alcoholic liquor, a controlled substance or any other intoxicating substance, or any combination of them, or reasonable cause to believe that a person who is less than 21 years of age was operating a vehicle upon a public highway or other place open to the public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state while the person had any bodily alcohol content as that term is defined in section 625(6), may require the person to submit to a preliminary chemical breath analysis. The following provisions apply to a preliminary chemical breath analysis administered under this subsection:

(a) A peace officer may arrest a person based in whole or in part upon the results of a preliminary chemical breath analysis.

(b) The results of a preliminary chemical breath analysis are admissible in a criminal prosecution for a crime enumerated in section 625c(1) or in an administrative hearing for 1 or more of the following purposes:

(i) To assist the court or hearing officer in determining a challenge to the validity of an arrest. This subparagraph does not limit the introduction of other competent evidence offered to establish the validity of an arrest.

(ii) As evidence of the defendant's breath alcohol content, if offered by the defendant to rebut testimony elicited on cross-examination of a defense witness that the defendant's breath alcohol content was higher at the time of the charged offense than when a chemical test was administered under subsection (6).

(iii) As evidence of the defendant's breath alcohol content, if offered by the prosecution to rebut testimony elicited on cross-examination of a prosecution witness that the defendant's breath alcohol content was lower at the time of the charged offense than when a chemical test was administered under subsection (6).

(c) A person who submits to a preliminary chemical breath analysis remains subject to the requirements of sections 625c, 625d, 625e, and 625f for purposes of chemical tests described in those sections.

(d) Except as provided in subsection (5), a person who refuses to submit to a preliminary chemical breath analysis upon a lawful request by a peace officer is responsible for a civil infraction.

(3) A peace officer shall use the results of a preliminary chemical breath analysis conducted under this section to determine whether to order a person out-of-service under section 319d. A peace officer shall order out-of-service as required under section 319d a person who was operating a commercial motor vehicle and who refuses to submit to a preliminary chemical breath analysis as provided in this section. This section does not limit use of other competent evidence by the peace officer to determine whether to order a person out-of-service under section 319d.

(4) A person who was operating a commercial motor vehicle and who is requested to submit to a preliminary chemical breath analysis under this section must be advised that refusing a peace officer's request to take a test described in this section is a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $100.00, or both, and will result in the issuance of a 24-hour out-of-service order.

(5) A person who was operating a commercial motor vehicle and who refuses to submit to a preliminary chemical breath analysis upon a peace officer's lawful request is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $100.00, or both.

(6) The following provisions apply to chemical tests and analysis of a person's blood, urine, or breath, other than a preliminary chemical breath analysis:

(a) The amount of alcohol or presence of a controlled substance or other intoxicating substance in a driver's blood or urine or the amount of alcohol in a person's breath at the time alleged as shown by chemical analysis of the person's blood, urine, or breath is admissible into evidence in any civil or criminal proceeding and is presumed to be the same as at the time the person operated the vehicle.

(b) A person arrested for a crime described in section 625c(1) must be advised of all of the following:

(i) If he or she takes a chemical test of his or her blood, urine, or breath administered at the request of a peace officer, he or she has the right to demand that a person of his or her own choosing administer 1 of the chemical tests.

(ii) The results of the test are admissible in a judicial proceeding as provided under this act and will be considered with other admissible evidence in determining the defendant's innocence or guilt.

(iii) He or she is responsible for obtaining a chemical analysis of a test sample obtained at his or her own request.

(iv) If he or she refuses the request of a peace officer to take a test described in subparagraph (i), a test must not be given without a court order, but the peace officer may seek to obtain a court order.

(v) Refusing a peace officer's request to take a test described in subparagraph (i) will result in the suspension of his or her operator's or chauffeur's license and vehicle group designation or operating privilege and in the addition of 6 points to his or her driver record.

(c) A sample or specimen of urine or breath must be taken and collected in a reasonable manner. Only a licensed physician, or an individual operating under the delegation of a licensed physician under section 16215 of the public health code, 1978 PA 368, MCL 333.16215, qualified to withdraw blood and acting in a medical environment, may withdraw blood at a peace officer's request to determine the amount of alcohol or presence of a controlled substance or other intoxicating substance in the person's blood, as provided in this subsection. Liability for a crime or civil damages predicated on the act of withdrawing or analyzing blood and related procedures does not attach to a licensed physician or individual operating under the delegation of a licensed physician who withdraws or analyzes blood or assists in the withdrawal or analysis in accordance with this act unless the withdrawal or analysis is performed in a negligent manner.

(d) A chemical test described in this subsection must be administered at the request of a peace officer having reasonable grounds to believe the person has committed a crime described in section 625c(1). A person who takes a chemical test administered at a peace officer's request as provided in this section must be given a reasonable opportunity to have a person of his or her own choosing administer 1 of the chemical tests described in this subsection within a reasonable time after his or her detention. The test results are admissible and must be considered with other admissible evidence in determining the defendant's innocence or guilt. If the person charged is administered a chemical test by a person of his or her own choosing, the person charged is responsible for obtaining a chemical analysis of the test sample.

(e) If, after an accident, the driver of a vehicle involved in the accident is transported to a medical facility and a sample of the driver's blood is withdrawn at that time for medical treatment, the results of a chemical analysis of that sample are admissible in any civil or criminal proceeding to show the amount of alcohol or presence of a controlled substance or other intoxicating substance in the person's blood at the time alleged, regardless of whether the person had been offered or had refused a chemical test. The medical facility or person performing the chemical analysis shall disclose the results of the analysis to a prosecuting attorney who requests the results for use in a criminal prosecution as provided in this subdivision. A medical facility or person disclosing information in compliance with this subsection is not civilly or criminally liable for making the disclosure.

(f) If, after an accident, the driver of a vehicle involved in the accident is deceased, a sample of the decedent's blood must be withdrawn in a manner directed by the medical examiner to determine the amount of alcohol or the presence of a controlled substance or other intoxicating

substance, or any combination of them, in the decedent's blood. The medical examiner shall give the results of the chemical analysis of the sample to the law enforcement agency investigating the accident and that agency shall forward the results to the department of state police.

(g) The department of state police shall promulgate uniform rules in compliance with the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, for the administration of chemical tests for the purposes of this section. An instrument used for a preliminary chemical breath analysis may be used for a chemical test described in this subsection if approved under rules promulgated by the department of state police.

(7) The provisions of subsection (6) relating to chemical testing do not limit the introduction of any other admissible evidence bearing upon any of the following questions:

(a) Whether the person was impaired by, or under the influence of, alcoholic liquor, a controlled substance or other intoxicating substance, or a combination of alcoholic liquor, a controlled substance, or other intoxicating substance.

(b) Whether the person had an alcohol content of 0.08 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under section 625(28), the person had an alcohol content of 0.10 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(c) If the person is less than 21 years of age, whether the person had any bodily alcohol content within his or her body. As used in this subdivision, "any bodily alcohol content" means either of the following:

(i) An alcohol content of 0.02 grams or more but less than 0.08 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under section 625(28), the person had an alcohol content of 0.02 grams or more but less than 0.10 grams or more per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(ii) Any presence of alcohol within a person's body resulting from the consumption of alcoholic liquor, other than the consumption of alcoholic liquor as a part of a generally recognized religious service or ceremony.

(8) If a chemical test described in subsection (6) is administered, the test results must be made available to the person charged or the person's attorney upon written request to the prosecution, with a copy of the request filed with the court. The prosecution shall furnish the results at least 2 days before the day of the trial. The prosecution shall offer the test results as evidence in that trial. Failure to fully comply with the request bars the admission of the results into evidence by the prosecution.

(9) A person's refusal to submit to a chemical test as provided in subsection (6) is admissible in a criminal prosecution for a crime described in section 625c(1) only to show that a test was offered to the defendant, but not as evidence in determining the defendant's innocence or guilt. The jury must be instructed accordingly.

(10) As used in this section:

(a) "Controlled substance" means that term as defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

(b) "Intoxicating substance" means that term as defined in section 625.

History: Add. 1960, Act 148, Eff. Aug. 17, 1960 ;-- Am. 1964, Act 104, Eff. Aug. 28, 1964 ;-- Am. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1971, Act 154, Eff. Mar. 30, 1972 ;-- Am. 1978, Act 572, Eff. Mar. 30,

1979 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1993, Act 229, Imd. Eff. Nov. 5, 1993 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1996, Act 491, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 351, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2013, Act 23, Imd. Eff. May 9, 2013 ;-- Am. 2014, Act 315, Eff. Jan. 12, 2015 ;-- Am. 2015, Act 11, Imd. Eff. Apr. 9, 2015 ;-- Am. 2017, Act 153, Eff. Feb. 6, 2018 ;-- Am. 2021, Act 80, Eff. Nov. 21, 2021 ;-- Am. 2021, Act 85, Imd. Eff. Sept. 24, 2021

Constitutionality: The provision in the implied consent act for the admission in a prosecution involving driving under the influence of intoxicating liquor or a controlled substance of the results of a chemical analysis of a blood sample drawn for the purpose of medical treatment from a driver of a vehicle involved in an accident, and the requirement in the act that the medical facility or person performing the analysis must release the results to a prosecuting attorney who requests the results for use in the prosecution are constitutionally valid. People v Perlos, 436 Mich 305; 462 NW2d 310 (1990).

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.625b Arraignment of person arrested for misdemeanor violation; pretrial conference; advising accused of maximum penalty before acceptance of plea; screening, assessment, and rehabilitative services; assessment for medication-assisted treatment; action by secretary of state pending appeal.

Sec. 625b.

(1) A person arrested for a misdemeanor violation of section 625(1), (3), (6), (7), or (8) or section 625m or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8) or section 625m must be arraigned on the citation, complaint, or warrant not more than 14 days after the arrest for the violation or, if an arrest warrant is issued or reissued, not more than 14 days after the issued or reissued arrest warrant is served, whichever is later. The court shall not dismiss a case or impose any other sanction for a failure to comply with this time limit. The time limit does not apply to a violation of section 625(1), (3), (7), or (8) or section 625m punishable as a felony or a violation of section 625(1), (3), (6), (7), or (8) or section 625m joined with a felony charge.

(2) The court shall schedule a pretrial conference between the prosecuting attorney, the defendant, and the defendant's attorney in each case in which the defendant is charged with a misdemeanor violation of section 625(1), (3), (6), (7), or (8) or section 625m or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8) or section 625m. The pretrial conference must be held not more than 35 days after the person's arrest for the violation or, if an arrest warrant is issued or reissued, not more than 35 days after the issued or reissued arrest warrant is served, whichever is later. If the court has only 1 judge who sits in more than 1 location in that district, the pretrial conference must be held not more than 42 days after the person's arrest for the violation or, if an arrest warrant is issued or reissued, not more than 42 days after the date the issued or reissued arrest warrant is served, whichever is later. The court shall not dismiss a case or impose any other sanction for a failure to comply with the applicable time limit. The 35- and 42-day time limits do not apply to a violation of section 625(1), (3), (7), or (8) or section 625m punishable as a felony or a violation of section 625(1), (3), (6), (7), or (8) or section 625m joined with a felony charge. The court shall order the defendant to attend the pretrial conference and may accept a plea by the defendant at the

conclusion of the pretrial conference. The court may adjourn the pretrial conference upon the motion of a party for good cause shown. Not more than 1 adjournment shall be granted to a party, and the length of an adjournment must not exceed 14 days.

(3) Except for delay attributable to the unavailability of the defendant, a witness, or material evidence or due to an interlocutory appeal or exceptional circumstances, but not a delay caused by docket congestion, the court shall finally adjudicate, by a plea of guilty or nolo contendere, entry of a verdict, or other final disposition, a case in which the defendant is charged with a misdemeanor violation of section 625(1), (3), (6), (7), or (8) or section 625m or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8) or section 625m, within 77 days after the person is arrested for the violation or, if an arrest warrant is issued or reissued, not more than 77 days after the date the issued or reissued arrest warrant is served, whichever is later. The court shall not dismiss a case or impose any other sanction for a failure to comply with this time limit. The 77-day time limit does not apply to a violation of section 625(1), (3), (7), or (8) or section 625m punishable as a felony or a violation of section 625(1), (3), (6), (7), or (8) or section 625m joined with a felony charge.

(4) Before accepting a plea of guilty or nolo contendere under section 625 or a local ordinance substantially corresponding to section 625(1), (2), (3), (6), or (8), the court shall advise the accused of the maximum possible term of imprisonment and the maximum possible fine that may be imposed for the violation and shall advise the defendant that the maximum possible license sanctions that may be imposed will be based upon the master driving record maintained by the secretary of state under section 204a.

(5) Before imposing sentence for a violation of section 625(1), (3), (4), (5), (6), (7), or (8) or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8), the court shall order the person to undergo screening and assessment by a person or agency designated by the office of substance abuse services to determine whether the person is likely to benefit from rehabilitative services, including alcohol or drug education and alcohol or drug treatment programs. Except as otherwise provided in this subsection, the court may order the person to participate in and successfully complete 1 or more appropriate rehabilitative programs as part of the sentence. If the person was convicted under section 625(1)(c) or has 1 or more prior convictions, the court shall order the person to participate in and successfully complete 1 or more appropriate rehabilitative programs as part of the sentence, including, but not limited to, an alcohol treatment program or a self-help program for a period of not less than 1 year. The treatment plan must be devised from an assessment performed by an appropriately licensed alcohol assessor and approved by the court. If the person has 2 or more prior convictions, the court shall order the person to undergo an assessment that uses a standardized evidence-based instrument performed by a provider or other licensed or certified substance use disorder professional to determine whether he or she has a diagnosis for alcohol dependence and would likely benefit from a United States Food and Drug Administration approved medication-assisted treatment that is indicated for the treatment of alcohol dependence, as specified in the most recent Diagnostic and Statistical Manual of Mental Disorders published by the American Psychiatric Association. A person may request an independent assessment that uses a standardized evidence-based instrument and that is performed by a provider or other licensed or certified substance use disorder professional to determine whether he or she has a diagnosis for alcohol dependence and would likely benefit from a United States Food and Drug Administration approved medication-assisted treatment that is indicated for the treatment of alcohol dependence, as specified in the most recent Diagnostic and Statistical Manual of Mental Disorders published by the American Psychiatric Association. A court shall grant a request for an independent assessment and shall consider the results of the independent

assessment along with the assessment required under this subsection when determining if the court will refer the person to a rehabilitative program that offers 1 or more forms of United States Food and Drug Administration-approved medications for the treatment of alcohol dependence. Only a provider may recommend that a person take medication-assisted treatment. A person always maintains the right to refuse ingestion or injection of medication. Only a provider may determine the type, dosage, and duration of the medication-assisted treatment. If the person refuses to take the medication-assisted treatment, the court shall not hold that person in contempt. As used in this subsection, "provider" means an individual with prescribing authority under the public health code, 1978 PA 368, MCL 333.1101 to 333.25211, who regularly communicates with the treatment team during the defendant's recovery and who has training or experience that demonstrates the provider's ability to treat and manage patients with alcohol dependency. If no other identified funding source is available, the person shall pay for the costs of the screening, assessment, or assessments, as applicable, and rehabilitative services ordered under this subsection. This subsection does not require the person to successfully complete an ordered rehabilitative program before driving a vehicle with an ignition interlock device on a restricted license. As used in this subsection, "other licensed or certified substance use disorder professional" means an individual or organization licensed or credentialed in this state to treat substance use disorders, including individuals certified by the Michigan certification board for addiction professionals and individuals who have training in providing assessments for alcohol dependency.

(6) If the judgment and sentence are appealed to circuit court, the court may ex parte order the secretary of state to stay the suspension, revocation, or restricted license issued by the secretary of state pending the outcome of the appeal.

History: Add. 1966, Act 243, Eff. Mar. 10, 1967 ;-- Am. 1976, Act 285, Eff. Apr. 1, 1977 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 309, Eff. Mar. 30, 1983 ;-- Am. 1987, Act 109, Eff. Mar. 30, 1988 ;-- Am. 1991, Act 93, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1998, Act 357, Eff. Oct. 1, 1999 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2008, Act 462, Eff. Oct. 31, 2010 ;-- Am. 2018, Act 657, Eff. Mar. 28, 2019

Compiler's Notes: Section 2 of Act 309 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.625c Consent to chemical tests; persons not considered to have given consent to withdrawal of blood; administration of tests; definitions.

Sec. 625c.

(1) A person who operates a vehicle upon a public highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state is considered to have given consent to chemical tests of his or her blood, breath, or urine for the purpose of determining the amount of alcohol or presence of a controlled substance or other intoxicating substance, or any combination of them, in his or her blood or urine or the amount of alcohol in his or her breath in all of the following circumstances:

(a) If the person is arrested for a violation of section 625(1), (3), (4), (5), (6), (7), or (8), section 625a(5), or section 625m or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8), section 625a(5), or section 625m.

(b) If the person is arrested for a violation of section 601d, section 626(3) or (4), or manslaughter, or murder resulting from the operation of a motor vehicle, and the peace officer had reasonable grounds to believe the person was operating the vehicle in violation of section 625.

(2) A person who is afflicted with hemophilia, diabetes, or a condition requiring the use of an anticoagulant under the direction of a physician is not considered to have given consent to the withdrawal of blood.

(3) The tests shall be administered as provided in section 625a(6).

(4) As used in this section:

(a) "Controlled substance" means that term as defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

(b) "Intoxicating substance" means that term as defined in section 625.

History: Add. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1998, Act 350, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2014, Act 315, Eff. Jan. 12, 2015

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.625d Refusal to submit to chemical test; court order; report to secretary of state; form.

Sec. 625d.

(1) If a person refuses the request of a peace officer to submit to a chemical test offered under section 625a(6), a test shall not be given without a court order, but the officer may seek to obtain the court order.

(2) A written report shall immediately be forwarded to the secretary of state by the peace officer. The report shall state that the officer had reasonable grounds to believe that the person had committed a crime described in section 625c(1), and that the person had refused to submit to the test upon the request of the peace officer and had been advised of the consequences of the refusal. The form of the report shall be prescribed and furnished by the secretary of state.

History: Add. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1968, Act 335, Eff. Nov. 15, 1968 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 2014, Act 315, Eff. Jan. 12, 2015

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.625e Refusal to submit to chemical test pursuant to MCL 257.625d; request for hearing; notice.

Sec. 625e.

(1) If a person refuses to submit to a chemical test pursuant to section 625d, the peace officer shall immediately notify the person in writing that within 14 days of the date of the notice the person may request a hearing as provided in section 625f. The form of the notice shall be prescribed and furnished by the secretary of state.

(2) The notice shall specifically state that failure to request a hearing within 14 days will result in the suspension of the person's license or permit to drive. The notice shall also state that there is not a requirement that the person retain counsel for the hearing, though counsel would be permitted to represent the person at the hearing.

History: Add. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1968, Act 335, Eff. Nov. 15, 1968 ;-- Am. 1976, Act 9, Imd. Eff. Feb. 13, 1976 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 104, Eff. Jan. 1, 1992

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.625f Effect of failure to request hearing; hearing procedure; notice; authority of hearing officer; scope of hearing; finding; record; licensing sanctions; judicial review; notice to motor vehicle administrator of another state.

Sec. 625f.

(1) If a person who refuses to submit to a chemical test pursuant to section 625d does not request a hearing within 14 days after the date of notice pursuant to section 625e, the secretary of state shall impose the following license sanctions:

(a) If the person was operating a vehicle other than a commercial motor vehicle, suspend or deny the person's operator's or chauffeur's license or permit to drive, or nonresident operating privilege, for 1 year or, for a second or subsequent refusal within 7 years, for 2 years. If the person is a resident without a license or permit to operate a vehicle in the state, the secretary of state shall not issue the person a license or permit for 1 year or, for a second or subsequent refusal within 7 years, for 2 years.

(b) If the person was operating a commercial motor vehicle, for the first refusal, suspend all vehicle group designations on the person's operator's or chauffeur's license or permit or nonresident privilege to operate a commercial motor vehicle or, if the person is a resident without a license or permit to operate a commercial motor vehicle in the state, not issue the person an operator's or chauffeur's license with vehicle group designations, for 1 year.

(c) If the person was operating a commercial motor vehicle, for a second or subsequent refusal that occurred in a separate incident from and within 10 years of a prior refusal, revoke all vehicle group designations on the person's operator's or chauffeur's license or permit or nonresident privilege to operate a commercial motor vehicle or, if the person is a resident without a license or permit to operate a commercial motor vehicle in the state, not issue the person an operator's or chauffeur's license with vehicle group designations, for not less than 10 years and until the person is approved for the issuance of a vehicle group designation.

(d) If the person was operating a commercial motor vehicle and was arrested for an offense enumerated in section 625c other than a violation of section 625a(5) or 625m, impose the license sanction described in subdivision (a) and the license sanction described in subdivision (b) or (c), as applicable.

(2) If a hearing is requested, the secretary of state shall hold the hearing in the same manner and under the same conditions as provided in section 322. Not less than 5 days' notice of the hearing shall be mailed to the person requesting the hearing, to the peace officer who filed the report under section 625d, and if the prosecuting attorney requests receipt of the notice, to the prosecuting attorney of the county where the arrest was made. The hearing officer may administer oaths, issue subpoenas for the attendance of necessary witnesses, and grant a reasonable request for an adjournment. Not more than 1 adjournment shall be granted to a party and the length of an adjournment shall not exceed 14 days. A hearing under this subsection shall be scheduled to be held within 45 days after the date of arrest for the violation. The hearing officer shall not impose any sanction for a failure to comply with these time limits.

(3) Except for delay attributable to the unavailability of the defendant, a witness, or material evidence, or due to an interlocutory appeal or exceptional circumstances, but not a delay caused by docket congestion, a hearing shall be finally adjudicated within 77 days after the date of arrest. The hearing officer shall not impose any sanction for a failure to comply with this time limit.

(4) The hearing shall cover only the following issues:

(a) Whether the peace officer had reasonable grounds to believe that the person had committed a crime described in section 625c(1).

(b) Whether the person was placed under arrest for a crime described in section 625c(1).

(c) If the person refused to submit to the test upon the request of the officer, whether the refusal was reasonable.

(d) Whether the person was advised of the rights under section 625a(6).

(5) A person shall not order a hearing officer to make a particular finding on any issue enumerated in subsection (4)(a) to (d).

(6) The hearing officer shall make a record of a hearing held pursuant to this section. The record shall be prepared and transcribed in accordance with section 86 of the administrative procedures act of 1969, 1969 PA 306, MCL 24.286. Upon notification of the filing of a petition for judicial review pursuant to section 323 and not less than 10 days before the matter is set for review, the hearing officer shall transmit to the court in which the petition was filed the original or a certified copy of the official record of the proceedings. Proceedings at which evidence was presented need not be transcribed and transmitted if the sole reason for review is to determine whether the court will order the issuance of a restricted license. The parties to the proceedings for judicial review may stipulate that the record be shortened. A party unreasonably refusing to stipulate to a shortened record may be taxed by the court in which the petition is filed for the additional costs. The court may permit subsequent corrections to the record.

(7) If the person who requested a hearing does not prevail, the secretary of state shall impose the following license sanctions after the hearing:

(a) If the person was operating a vehicle other than a commercial motor vehicle, suspend or deny issuance of a license or driving permit or a nonresident operating privilege of the person for 1 year or, for a second or subsequent refusal within 7 years, for 2 years. If the person is a resident without a license or permit to operate a vehicle in the state, the secretary of state shall not issue the person a license or permit for 1 year or, for a second or subsequent refusal within

7 years, for 2 years. The person may file a petition in the circuit court of the county in which the arrest was made to review the suspension or denial as provided in section 323.

(b) If the person was operating a commercial motor vehicle, impose the sanction prescribed under subsection (1)(b) or (1)(c), as applicable. The person may file a petition in the circuit court of the county in which the arrest was made to review the suspension or denial as provided in section 323.

(c) If the person was operating a commercial motor vehicle and was arrested for an offense enumerated in section 625c other than a violation of section 625a(5) or 625m, impose the license sanctions described in subdivisions (a) and (b).

(8) If the person who requested the hearing prevails, the peace officer who filed the report under section 625d may, with the consent of the prosecuting attorney, file a petition in the circuit court of the county in which the arrest was made to review the determination of the hearing officer as provided in section 323.

(9) When it has been finally determined that a nonresident's privilege to operate a vehicle in the state has been suspended or denied, the department shall give notice in writing of the action taken to the motor vehicle administrator of the state of the person's residence and of each state in which he or she has a license to operate a motor vehicle.

History: Add. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1968, Act 335, Eff. Nov. 15, 1968 ;-- Am. 1976, Act 9, Imd. Eff. Feb. 13, 1976 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”

257.625g Duties of peace officer if person refuses chemical test or if test reveals unlawful alcohol content or presence of controlled substance or other intoxicating substance; test results; duration of temporary license or permit; definitions.

Sec. 625g.

(1) If a person refuses a chemical test offered under section 625a(6), the peace officer who requested the person to submit to the chemical test shall comply with subdivisions (a) and (b). If a person submits to the chemical test or a chemical test is performed under a court order and the test reveals an unlawful alcohol content, or the presence of a controlled substance or other intoxicating substance, or any combination of them, the peace officer who requested the person to submit to the test shall do all of the following, other than subdivision (b)(i):

(a) On behalf of the secretary of state, immediately confiscate the person's license or permit to operate a motor vehicle and, if the person is otherwise eligible for a license or permit, issue a temporary license or permit to the person. The temporary license or permit must be on a form provided by the secretary of state.

(b) Except as provided in subsection (2), immediately do all of the following:

(i) Forward a copy of the written report of the person's refusal to submit to a chemical test required under section 625d to the secretary of state.

(ii) Notify the secretary of state by means of the law enforcement information network that a temporary license or permit was issued to the person.

(iii) Destroy the person's driver license or permit.

(2) If a person submits to a chemical test offered under section 625a(6) that requires an analysis of blood or urine and a report of the results of that chemical test is not immediately available, the peace officer who requested the person to submit to the test shall comply with subsection (1)(a) and (b)(ii) and indicate in the notice under subsection (1)(b)(ii) that a subsequent chemical test is pending. If the report reveals an unlawful alcohol content, or the presence of a controlled substance or other intoxicating substance, or any combination of them, the peace officer who requested the person to submit to the test shall immediately comply with subsection (1)(b)(iii). If the report does not reveal an unlawful alcohol content, or the presence of a controlled substance or other intoxicating substance, or any combination of them, the peace officer who requested the person to submit to the test shall immediately notify the person of the test results and immediately return the person's license or permit by first-class mail to the address provided at the time of arrest.

(3) A temporary license or permit issued under this section is valid for 1 of the following time periods:

(a) If the case is not prosecuted, for the earlier of 90 days after issuance or until the person's license or permit is suspended under section 625f. The prosecuting attorney shall notify the secretary of state if a case referred to the prosecuting attorney is not prosecuted. The arresting law enforcement agency shall notify the secretary of state if a case is not referred to the prosecuting attorney for prosecution.

(b) If the case is prosecuted, until the criminal charges against the person are dismissed, the person is acquitted of those charges, or the person's license or permit is suspended, restricted, or revoked.

(4) As used in this section:

(a) "Controlled substance" means that term as defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

(b) "Intoxicating substance" means that term as defined in section 625.

(c) "Unlawful alcohol content" means any of the following, as applicable:

(i) If the person tested is less than 21 years of age, 0.02 grams or more of alcohol per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(ii) If the person tested was operating a commercial motor vehicle within this state, 0.04 grams or more of alcohol per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

(iii) If the person tested is not a person described in subparagraph (i) or (ii), 0.08 grams or more of alcohol per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under section 625(28), 0.10 grams or more of alcohol per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine.

History: Add. 1967, Act 253, Eff. Nov. 2, 1967 ;-- Am. 1980, Act 515, Eff. Apr. 1, 1981 ;-- Am. 1991, Act 95, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2013, Act 23, Imd. Eff. May 9, 2013 ;-- Am. 2014, Act 315, Eff. Jan. 12, 2015 ;-- Am. 2017, Act 153, Eff. Feb. 6, 2018 ;-- Am. 2021, Act 80, Eff. Nov. 21, 2021 ;-- Am. 2021, Act 85, Imd. Eff. Sept. 24, 2021

Admin Rule: R 325.2651 et seq. of the Michigan Administrative Code.

257.625h Drunk driving prevention equipment and training fund; drunk driving caseflow assistance fund.

Sec. 625h.

(1) The drunk driving prevention equipment and training fund is created as a separate fund in the state treasury. Money in the fund shall be expended only as provided in subsection (2). The state treasurer shall credit to the fund all money received for that purpose under section 320e, and as otherwise provided by law. The state treasurer shall invest money in the fund in the same manner as surplus funds are invested under section 143 of 1855 PA 105, MCL 21.143. Earnings from the fund shall be credited to the fund. Money in the fund at the end of the fiscal year shall remain in the fund, and shall not revert to the general fund.

(2) The department of state police shall administer the fund. Money in the fund shall be used only to administer the fund, to purchase and maintain breath alcohol testing equipment, and to provide training to law enforcement personnel of this state in the use of that breath alcohol testing equipment.

(3) The department of treasury shall, before November 1 of each year, notify the department of state police of the balance in the fund at the close of the preceding fiscal year.

(4) The department of state police shall promulgate rules to implement subsection (2).

(5) The drunk driving caseflow assistance fund is created as a separate fund in the state treasury. The purpose of the fund is to promote the timely disposition of cases in which the defendant is charged with a violation of any of the following or a local ordinance substantially corresponding to any of the following:

(a) Section 625 or 625m.

(b) Section 80176, 81134, 81135, or 82127 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80176, 324.81134, 324.81135, and 324.82127.

(6) Money in the fund shall be expended only as provided in subsection (8).

(7) The state treasurer shall credit the drunk driving caseflow assistance fund with deposits of proceeds from the collection of revenue from license reinstatement fees as provided for in section 320e, and all income from investment credited to the fund by the state treasurer. The state treasurer may invest money contained in the drunk driving caseflow assistance fund in any manner authorized by law for the investment of state money. However, an investment shall not interfere with any apportionment, allocation, or payment of money as required by this section. The state treasurer shall credit to the fund all income earned as a result of an investment. Money in the fund at the end of the fiscal year shall remain in the fund and shall not revert to the general fund.

(8) The state court administrator, at the direction of the supreme court and upon confirmation of the amount by the state treasurer, shall distribute from the drunk driving caseflow assistance fund the total amount available in a fiscal year to each district of the district court and each municipal court as provided in this section. The state court administrator, after reimbursement of costs as provided in this subsection, shall distribute the balance of the drunk driving caseflow assistance fund annually to each district of the district court and each municipal court in an amount determined by multiplying the amount available for distribution by a fraction, the numerator of which is the number of cases in which the defendant was charged with a violation enumerated in subsection (5) in the prior calendar year in that district of the district court or that municipal court as certified by the state court administrator and the denominator of which is the total number of cases in all districts of the district court and all municipal courts in which the defendant was charged with a violation enumerated in subsection (5) in the calendar year. The state court administrative office shall be reimbursed annually from the drunk driving caseflow assistance fund for all reasonable costs associated with the administration of this section, including judicial and staff training, on-site management assistance, and software development and conversion.

History: Add. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 98, Eff. Oct. 1, 1991 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1996, Act 59, Imd. Eff. Feb. 26, 1996 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."Another Sec. 6a, as added by Act 104 of 1991, was originally compiled at MCL 257.625h[1] to distinguish it from this Sec. 6a, as added by Act 310 of 1983. Former MCL 257.625h[1], which pertained to preliminary chemical breath analysis, was repealed by Act 104 of 1991, Eff. Jan. 1, 1992.

257.625i Michigan annual drunk driving audit; preparation; contents; report; evaluation of 1998 legislation.

Sec. 625i.

(1) The department of state police shall prepare an annual report that shall be designated the Michigan annual drunk driving audit. The secretary of state, circuit court, district court, family division of circuit court, municipal courts, and local units of government in this state shall cooperate with the department of state police to provide information necessary for the preparation of the report. A copy of the report prepared under this subsection shall be submitted to the governor, the secretary of the senate, the clerk of the house of representatives, and the secretary of state on July 1 of each year. The report shall contain for each county in the state all of the following information applicable to the immediately preceding calendar year:

(a) The number of alcohol related motor vehicle crashes resulting in bodily injury, including a breakdown of the number of those injuries occurring per capita of population and per road mile in the county.

(b) The number of alcohol related motor vehicle crashes resulting in death, including the breakdown described in subdivision (a).

(c) The number of alcohol related motor vehicle crashes, other than those enumerated in subdivisions (a) and (b), including the breakdown described in subdivision (a).

(d) The number of arrests made for violations of section 625(1) or local ordinances substantially corresponding to section 625(1).

(e) The number of arrests made for violations of section 625(3) or local ordinances substantially corresponding to section 625(3).

(f) The number of arrests made for violations of section 625(6) or local ordinances substantially corresponding to section 625(6).

(g) The number of arrests made for violations of section 625(4) or (5).

(h) The number of arrests made for violations of section 625(7).

(i) The number of arrests made for violations of section 625(8).

(j) The number of operator's or chauffeur's licenses suspended pursuant to section 625f.

(k) The number of arrests made for violations of section 625m or local ordinances substantially corresponding to section 625m.

(2) The secretary of state shall compile a report of dispositions of charges for violations of section 625(1), (3), (4), (5), (6), (7), or (8) or section 625m or section 33b(1) or (2) of former 1933 (Ex Sess) PA 8, section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or local ordinances substantially corresponding to section 625(1), (3), (6), or (8) or section 625m or section 33b(1) or (2) of former 1933 (Ex Sess) PA 8, or section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, by

each judge for inclusion in the annual report. The report compiled by the secretary of state shall include information regarding all of the following:

(a) The number of dismissals granted.

(b) The number of convictions entered.

(c) The number of acquittals entered.

(d) The average length of imprisonment imposed.

(e) The average length of community service imposed in lieu of imprisonment.

(f) The average fine imposed.

(g) The number of vehicles ordered immobilized under section 904d.

(h) The number of vehicles ordered forfeited under section 625n.

(3) The secretary of state shall include in the compilation under subsection (2) the number of licenses suspended, revoked, or restricted for those violations.

(4) The department of state police shall enter into a contract with the university of Michigan transportation research institute, under which the university of Michigan transportation research institute shall evaluate the effect and impact of the 1998 legislation addressing drunk and impaired driving in this state and report its findings to the governor and the legislature not later than October 1, 2002.

History: Add. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 211, Eff. Nov. 1, 1994 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 354, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003

Compiler's Notes: Section 2 of Act 310 of 1982 provides: "All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date."

257.625j Repealed. 1991, Act 98, Eff. Jan. 1, 1992.

Compiler's Notes: The repealed section pertained to the Michigan drunk driving task force.

257.625k Ignition interlock device manufacturer; certification; approval; requirements; rules; cost; notice to department by certifying laboratory; list of manufacturers; BAIID manufacturer; approval of BAIID service center; inspections; prohibited conduct by individual; installation requirements; installer qualifications and requirements; approval; renewal.

Sec. 625k.

(1) An ignition interlock device (BAIID) manufacturer seeking certification of a device in this state shall do all of the following:

(a) Complete an application to the department for certification of the BAIID.

(b) Submit a report from a department-approved or National Highway Traffic Safety Administration-approved laboratory certifying that the BAIID meets or exceeds the model specifications for BAIIDs, 78 FR 26849 – 26867 (May 8, 2013), or any subsequent version. Subject to subsection (5), the department shall provide a list of all manufacturers of approved certified devices to each person who is approved to be issued a restricted license that permits the person to drive a vehicle only if equipped with a BAIID. The department shall rotate the order of the providers with each list provided under this subsection. Any model of an ignition

interlock device certified by a department-approved laboratory as complying with the model specifications for breath alcohol ignition interlock devices (BAIIDs), 57 FR 11772-11787 (April 7, 1992), that was installed in a vehicle before the effective date of the amendatory act that added this subdivision may be used in this state for the 24 months after the effective date of the amendatory act that added this subdivision.

(c) Ensure that a BAIID is capable of recording a digital image of the individual providing the sample, and record the time and date the sample was provided on or logically associated with the digital image. A BAIID presented to the department for certification may include additional technological features, including, but not limited to, the ability to remotely report information collected by the device.

(d) Agree to ensure proper record keeping in a format approved by the department and provide testimony relating to any aspect of the installation, service, repair, use, removal, or interpretation of any report or information recorded in the data storage system of a device or performance of any other duties required by this act at no cost on behalf of the state or any political subdivision of the state.

(2) The secretary of state shall promulgate rules to implement this section in compliance with the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

(3) The manufacturer of an ignition interlock device shall bear the cost of that device's certification.

(4) A laboratory that certifies an ignition interlock device as provided in this section shall immediately notify the department of that certification.

(5) The department shall not include the manufacturer of a certified ignition interlock device on the list of manufacturers published under subsection (1) unless the manufacturer complies with all of the following:

(a) The manufacturer has filed copies of all of the following with the department:

(i) A bond executed as provided in section 625o or a letter of credit.

(ii) Proof of liability insurance issued by an insurance company authorized to do business in this state specifying all of the following:

(A) That the policy is current and shall remain valid during the duration of device approval.

(B) The name and model number of the device model covered by the policy.

(C) That the policy has a minimum coverage of $1,000,000.00 per occurrence and $3,000,000.00 in the aggregate.

(D) That the policy will indemnify the department and any other person injured as a result of any defects in manufacture, materials, design, calibration, installation, or operation of the device.

(iii) An affidavit that the ignition interlock device meets or exceeds all of the following conditions:

(A) Meets the definition in section 20d.

(B) Is set to periodically take samples while the vehicle is in operation. After the vehicle is in operation, the device requires a first retest sample within 5 to 15 minutes of the operator starting the vehicle. The device prompts second and subsequent retests within 15 to 45 minutes of the first retest. The operator of the vehicle is afforded not more than 5 minutes to provide a passing retest sample for each retest prompted by the device. The device accepts multiple attempts to provide a retest sample without initiating a lockout. If the device detects an alcohol content of 0.025 grams or more per 210 liters of breath in the person who offers a breath sample or if a breath sample is not given within the allotted time the device does all of the following:

(I) Emits a visible or audible warning signal.

(II) Renders the vehicle inoperable as soon as the vehicle is no longer being operated, requiring the operator to provide a breath sample containing a breath alcohol level of less than 0.025 grams per 210 liters of breath before the vehicle may be restarted.

(III) Disables the free restart as defined by the National Highway Traffic Safety Administration standards.

(IV) Activates a violation reset. The device initiates an audible or visual cue that warns the driver that the device will enter a permanent lockout in 5 days.

(b) Agrees to have service locations within 50 miles of any location within this state. A manufacturer may request a waiver of this requirement from the secretary of state if the manufacturer is unable to secure an installation facility within 50 miles of any location in this state. Subject to review, the secretary of state may determine whether the manufacturer's waiver request shall be approved. The secretary of state shall only approve a waiver of the 50-mile requirement and designate a location not meeting the 50-mile requirement as a service center if the service center employs a BAIID certified installer who shall perform any installation or service to a BAIID at that location. If the secretary of state approves a waiver of the 50-mile requirement, that waiver applies only to the approved location. A manufacturer shall make a separate request for a waiver of the 50-mile requirement for any additional installation facility not meeting the 50-mile requirement.

(c) Agrees to provide an ignition interlock device without cost to a person whose gross income for the immediately preceding tax year based on his or her state income tax return was less than 150% of the official poverty line for that same tax year established in the poverty guidelines issued by the secretary of health and human services under 42 USC 9902. A person in whose vehicle an ignition interlock device is installed without cost under this subdivision shall pay a maintenance fee to the installer of not more than $2.00 per day.

(d) Agrees to comply with the reporting requirements of the secretary of state.

(e) Agrees to periodically monitor installed ignition interlock devices and if monitoring indicates that the device has been circumvented, tampered with, or that a person with a breath alcohol level of 0.025 or more grams per 210 liters of breath has attempted to operate the motor vehicle, or both, to communicate all of the relevant information concerning these facts to the secretary of state, and to the court if appropriate.

(6) A manufacturer that has made a filing under subsection (5) shall immediately notify the department if the device no longer meets the requirements of subsection (5).

(7) Upon the request of the department, the BAIID manufacturer shall, at no cost to this state, provide the department with not less than 2 BAIIDs for each model that is certified under this section for demonstration and training purposes by the department.

(8) Upon the request of the department, the BAIID manufacturer shall, at no cost to this state, install 1 of each device that is certified under this section in a vehicle provided by the department. Any service performed under this subsection, including, but not limited to, installation, maintenance, calibration, or removal, shall be completed at no cost to this state.

(9) Upon the request of the department, for each BAIID model approved by the department, the BAIID manufacturer shall provide a total of not less than 10 hours of training to department employees at no cost to this state. This training shall be held at the times and locations within the state designated by the department. The training shall be designed to familiarize department employees with the installation, operation, service, repair, and removal of the BAIIDs and include the training and instructions that a BAIID installer will give to customers. The BAIID manufacturer shall also provide the department, upon request, with the following information:

(a) A detailed description of the device, including complete instructions for installation, operation, service, repair, and removal of the BAIID.

(b) Complete technical specifications, including detailed explanations and definitions of all data log entries.

(10) A BAIID manufacturer shall notify the department not less than 15 days before implementation of any modification, upgrade, or alteration to any hardware, software, or firmware of a device certified for use in this state. The notification shall include both of the following:

(a) A description and explanation of the modification, upgrade, or alteration and proof satisfactory to the department that these modifications, upgrades, or alterations do not adversely affect the ability of the device to satisfy the requirements of this section and section 625l.

(b) A comprehensive plan of action for the phasing out of the use of the current device. This plan of action must be approved by the department prior to the implementation of the plan of action.

(11) Any equipment in the possession of the department that was retained for certification of the device shall be modified, upgraded, or altered simultaneously with the implementation of a plan of action under subsection (10). The department, in its discretion, may retain a BAIID device regardless of whether the device is no longer the current version or model of that device.

(12) Material modifications to a certified BAIID device may require recertification under this section as determined by the department.

(13) A BAIID manufacturer shall apply to the department annually for recertification of BAIID devices it manufactures.

(14) The department is responsible for approving BAIID service centers for operation in this state. The department shall not approve a BAIID service center unless all of the following conditions are satisfied:

(a) Only service centers that are BAIID manufacturer and vendor approved shall install, service, or remove BAIIDs approved for use in this state.

(b) Except as provided in subdivision (d), beginning July 1, 2016, a BAIID shall only be installed, serviced, or removed in a motor vehicle repair facility. As used in this subdivision, "motor vehicle repair facility" means that term as defined in section 2 of the motor vehicle service and repair act, 1974 PA 300, MCL 257.1302.

(c) A service center shall be located in a fixed facility within this state.

(d) A business that installs, services, or removes a BAIID, including a BAIID manufacturer's corporate office located in this state, that is installing, repairing, or removing BAIID devices on the effective date of the amendatory act that amended this section may install, service, and remove BAIIDs in this state without being certified as a motor vehicle repair facility under the motor vehicle service and repair act, 1974 PA 300, MCL 257.1302 to 257.1340, if the business employs a certified BAIID installer to perform any installation, service, or removal of a BAIID.

(e) Each service center shall have not less than 1 individual who is a mechanic and who possesses a specialty certification in BAIID service under section 10(1)(j) of the motor vehicle service and repair act, 1974 PA 300, MCL 257.1310, and holds a BAIID certification under this section to work as a BAIID installer.

(f) Each service center shall maintain and make available for inspection records that prove that each certified BAIID installer working at the service center has been properly trained by the BAIID manufacturer to service the BAIID for which the center is a vendor.

(g) Each service center shall provide a designated waiting area for customers that is separate from the area in which BAIIDs are installed or serviced.

(h) Only certified BAIID installers and representatives of the BAIID manufacturer or the department shall be allowed to observe the installation or removal of a BAIID.

(i) Adequate security measures shall be taken to ensure that unauthorized personnel are not allowed access to proprietary materials of BAIID manufacturers or files of customers.

(j) BAIID manufacturer service centers shall install, maintain, service, and remove all BAIIDs handled by that service center and perform any other services determined necessary by the department for using those BAIIDs in this state.

(k) The BAIID manufacturer shall inform the department of a change in its service center's business address 15 days prior to the date of any relocation.

(l) BAIIDs approved for use in this state shall only be serviced by service centers located within this state, unless the customer is unable to return to this state for service because of a significant personal hardship.

(m) If a BAIID is serviced by a service center outside of this state, the BAIID service provider shall ensure that all of the following requirements are met:

(i) The BAIID operates using the same firmware that is used for devices in this state.

(ii) The data recorded by the BAIID remain intact on the device for later retrieval by a service center in this state or the data are transferred to a BAIID manufacturer database for review.

(n) Service centers shall make the addresses of their locations available to the department.

(o) BAIIDs for use in this state shall be installed and shall be removed only in a service center approved by the department for installing that device under this subsection.

(p) Each application for approval shall be for a single service center. A separate service center application is required for each additional service center.

(q) Before issuance of approval, the department may require an on-site evaluation to ensure compliance with the requirements of this section and section 625l.

(r) The department's approval of a service center shall be for a period of 1 year. The renewal process shall be the same as the initial service center approval process under this section.

(15) The department may conduct inspections of a manufacturer or a BAIID service center to ensure compliance with this act and rules promulgated to implement this act. The manufacturer shall pay for the actual costs to the department in conducting an inspection under this subsection.

(16) An individual shall not install, service, or remove a BAIID in this state without being certified by the department under this section.

(17) All BAIID installations shall be done in a workmanlike manner by a BAIID certified installer at an approved service center and shall be in accordance with the standards set forth in this section and with the requirements of the manufacturer. All BAIIDs installed shall be in working order and shall perform in accordance with the standards set forth in this act. All connections shall be covered with a tamper seal.

(18) Upon completion of the installation of a BAIID required under this act, the approved BAIID certified installer shall provide the customer with installation verification in the form and format designated by the department.

(19) A manufacturer shall ensure that BAIID certified installers meet the following requirements:

(a) Possess the appropriate certification from the department under this section.

(b) Possess and maintain all necessary training and skills required to install, examine, troubleshoot, and verify the proper operation of BAIIDs.

(c) Possess the tools, test equipment, and manuals needed to install, inspect, download, calibrate, repair, maintain, service, and remove BAIID devices.

(d) Provide all persons who will use the vehicle with written and hands-on training regarding the operation of a vehicle equipped with the BAIID and ensure that each of those persons demonstrates a properly delivered alveolar breath sample and an understanding of how the abort test feature works.

(20) An individual who has been convicted of an alcohol-related driving offense or any offense classified as a felony in this state or elsewhere within 5 years before the date of filing an application for approval as a BAIID certified installer is not eligible for approval as a BAIID certified installer under this act.

(21) The following requirements apply to a BAIID certified installer under this act:

(a) Be not less than 18 years of age.

(b) Possess a valid driver license.

(c) Be a motor vehicle mechanic as defined in section 2 of the motor vehicle service and repair act, 1974 PA 300, MCL 257.1302, and possess a specialty certification in BAIID service under section 10(1)(j) of the motor vehicle service and repair act, 1974 PA 300, 257.1310.

(d) Be certified as a BAIID installer under this section.

(22) To be certified as a BAIID installer under this section, the individual shall meet all of the following requirements:

(a) Possess a specialty certification in BAIID installation under section 10(1)(j) of the motor vehicle service and repair act, 1974 PA 300, MCL 257.1310.

(b) Properly complete and file a BAIID installer application form with the department.

(c) Beginning 180 days after the effective date of the amendatory act that added this subdivision, be a mechanic who is certified as a mechanic with a specialty certification in BAIID service under section (10)(1)(j) of the motor vehicle service and repair act, 1974 PA 300, MCL 257.1310, and hold a BAIID certification under this section.

(d) Submit a criminal history report certified by the department of state police within the immediately preceding 30 days.

(e) Meet the requirements of the department for certification under this act.

(23) Each application for approval shall be for a single BAIID installer. A separate BAIID installer application is required for each additional BAIID installer.

(24) The department's approval of a BAIID installer is for 1 year. The renewal process shall be the same as the initial BAIID installer approval process under this section.

History: Add. 1987, Act 109, Eff. Mar. 30, 1988 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1998, Act 340, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2008, Act 461, Eff. Oct. 31, 2010 ;-- Am. 2016, Act 32, Eff. June 6, 2016

Admin Rule: R 257.1001 et seq. of the Michigan Administrative Code.

Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.625l Ignition interlock device; warning label; prohibited conduct; violation as misdemeanor; penalty; impoundment of motor vehicle.

Sec. 625l.

(1) The manufacturer of an ignition interlock device shall design a warning label, and the person who has an ignition interlock device shall promptly affix that label to each ignition interlock device upon installation. The label shall contain a warning that any person tampering

with, circumventing, or otherwise misusing the device is guilty of a misdemeanor punishable as provided by law.

(2) A person who is only permitted to operate a motor vehicle equipped with an ignition interlock device shall not operate a motor vehicle on which an ignition interlock device is not properly installed.

(3) A person who has an ignition interlock device installed and whose driving privilege is restricted shall not request, solicit, or allow any other person to blow into an ignition interlock device or to start a vehicle equipped with the device for the purpose of providing the person whose driving privilege is restricted with an operable vehicle.

(4) A person shall not blow into an ignition interlock device or start a motor vehicle equipped with the device for the purpose of providing an operable vehicle to a person who has an interlock device installed and whose driving privilege is restricted.

(5) A person shall not tamper with or circumvent the operation of an ignition interlock device.

(6) A person who violates subsection (2), (3), (4), or (5) is guilty of a misdemeanor punishable by imprisonment for not more than 6 months or a fine of not more than $5,000.00, or both.

(7) If a law enforcement officer detains the operator of a motor vehicle for violating a law of this state or a local ordinance and the operator is a person required to only operate a motor vehicle with an ignition interlock device properly installed, but no ignition interlock device is properly installed on the motor vehicle, the law enforcement officer shall impound the motor vehicle. If a motor vehicle impounded under this subsection is individually or jointly owned by the operator, the law enforcement officer shall do all of the following:

(a) Immediately confiscate the motor vehicle registration plate and destroy it.

(b) Issue a temporary registration plate for the vehicle in the same manner prescribed by the secretary of state for temporary registration plates issued under section 226a or 226b.

(c) Place the temporary registration plate issued under subdivision (b) on the motor vehicle in the manner prescribed by the secretary of state.

(d) Notify the secretary of state through the law enforcement information network in a form prescribed by the secretary of state that the registration plate was destroyed and a temporary registration plate was issued to the motor vehicle.

(8) A temporary registration plate issued under this section is valid until the charges for violating subsection (2) are dismissed, the person pleads guilty or no contest to the charge, or the person is found guilty of or is acquitted of the charge.

(9) If the motor vehicle impounded under this section is not owned individually or jointly by the operator, the law enforcement officer shall impound the motor vehicle by contacting a local towing agency. The motor vehicle shall only be returned to the registered owner.

(10) The owner of a motor vehicle impounded under this section is liable for the expenses incurred in the removal and storage of the motor vehicle whether or not it is returned to him or her. The motor vehicle shall be returned to the owner only if the owner pays the expenses of removal and storage. If redemption is not made or the vehicle is not returned as described under this subsection, it shall be considered an abandoned vehicle and disposed of under section 252a.

History: Add. 1987, Act 109, Eff. Mar. 30, 1988 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1998, Act 340, Eff. Oct. 1, 1999 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2008, Act 461, Eff. Oct. 31, 2010 ;-- Am. 2016, Act 32, Eff. June 6, 2016

Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.625m Operation of commercial motor vehicle by person with certain alcohol content; arrest without warrant; violation as misdemeanor or felony; sentence; suspension of term prohibited; prior conviction.

Sec. 625m.

(1) A person, whether licensed or not, who has an alcohol content of 0.04 grams or more but less than 0.08 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine or, beginning 5 years after the state treasurer publishes a certification under section 625(28), an alcohol content of 0.04 grams or more but less than 0.10 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, shall not operate a commercial motor vehicle within this state.

(2) A peace officer may arrest a person without a warrant under either of the 2 following circumstances:

(a) The peace officer has reasonable cause to believe that the person was, at the time of an accident, the driver of a commercial motor vehicle involved in the accident and was operating the vehicle in violation of this section or a local ordinance substantially corresponding to this section.

(b) The person is found in the driver's seat of a commercial motor vehicle parked or stopped on a highway or street within this state if any part of the vehicle intrudes into the roadway and the peace officer has reasonable cause to believe the person was operating the vehicle in violation of this section or a local ordinance substantially corresponding to this section.

(3) Except as otherwise provided in subsections (4) and (5), a person who is convicted of a violation of this section or a local ordinance substantially corresponding to this section is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $300.00, or both, together with costs of the prosecution.

(4) A person who violates this section or a local ordinance substantially corresponding to this section within 7 years of 1 prior conviction may be sentenced to imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(5) A person who violates this section or a local ordinance substantially corresponding to this section within 10 years of 2 or more prior convictions is guilty of a felony and must be sentenced to pay a fine of not less than $500.00 or more than $5,000.00 and to either of the following:

(a) Imprisonment under the jurisdiction of the department of corrections for not less than 1 year or more than 5 years.

(b) Probation with imprisonment in the county jail for not less than 30 days or more than 1 year and community service for not less than 60 days or more than 180 days. Not less than 48 hours of the imprisonment imposed under this subdivision must be served consecutively.

(6) A term of imprisonment imposed under subsection (4) or (5) must not be suspended.

(7) Subject to subsection (9), as used in this section, "prior conviction" means a conviction for any of the following, whether under a law of this state, a local ordinance substantially corresponding to a law of this state, or a law of another state substantially corresponding to a law of this state:

(a) Except as provided in subsection (8), a violation or attempted violation of any of the following:

(i) This section.

(ii) Section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of

intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(iii) Former section 625b.

(iv) Section 601d or section 626(3) or (4).

(b) Negligent homicide, manslaughter, or murder resulting from the operation of a vehicle or an attempt to commit any of those crimes.

(8) Only 1 violation or attempted violation of section 625(6), a local ordinance substantially corresponding to section 625(6), or a law of another state substantially corresponding to section 625(6) may be used as a prior conviction.

(9) If 2 or more convictions described in subsection (7) are convictions for violations arising out of the same transaction, only 1 conviction must be used to determine if the person has a prior conviction.

History: Add. 1991, Act 94, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1996, Act 491, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 347, Eff. Oct. 1, 1999 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2013, Act 23, Imd. Eff. May 9, 2013 ;-- Am. 2017, Act 153, Eff. Feb. 6, 2018 ;-- Am. 2021, Act 80, Eff. Nov. 21, 2021 ;-- Am. 2021, Act 85, Imd. Eff. Sept. 24, 2021

257.625n Forfeiture of vehicle or return to lessor.

Sec. 625n.

(1) Except as otherwise provided in this section and section 304 and in addition to any other penalty provided for in this act, the judgment of sentence for a conviction for a violation of section 625(1) described in section 625(9)(b) or (c), a violation of section 625(3) described in section 625(11)(b) or (c), a violation of section 625(4), (5), or (7), or a violation of section 904(4) or (5), or, beginning October 31, 2010, a violation of section 626(3) or (4), may require 1 of the following with regard to the vehicle used in the offense if the defendant owns the vehicle in whole or in part or leases the vehicle:

(a) Forfeiture of the vehicle if the defendant owns the vehicle in whole or in part.

(b) Return of the vehicle to the lessor if the defendant leases the vehicle.

(2) The vehicle may be seized under a seizure order issued by the court having jurisdiction upon a showing of probable cause that the vehicle is subject to forfeiture or return to the lessor.

(3) The forfeiture of a vehicle is subject to the interest of the holder of a security interest who did not have prior knowledge of or consent to the violation.

(4) Within 14 days after the defendant's conviction for a violation described in subsection (1), the prosecuting attorney may file a petition with the court for the forfeiture of the vehicle or to have the court order return of a leased vehicle to the lessor. The prosecuting attorney shall give notice by first-class mail or other process to the defendant and his or her attorney, to all owners of the vehicle, and to any person holding a security interest in the vehicle that the court may require forfeiture or return of the vehicle.

(5) If a vehicle is seized before disposition of the criminal proceedings, a defendant who is an owner or lessee of the vehicle may move the court having jurisdiction over the proceedings to require the seizing agency to file a lien against the vehicle and to return the vehicle to the owner or lessee pending disposition of the criminal proceedings. The court shall hear the

motion within 7 days after the motion is filed. If the defendant establishes at the hearing that he or she holds the legal title to the vehicle or that he or she has a leasehold interest and that it is necessary for him or her or a member of his or her family to use the vehicle pending the outcome of the forfeiture action, the court may order the seizing agency to return the vehicle to the owner or lessee. If the court orders the return of the vehicle to the owner or lessee, the court shall order the defendant to post a bond in an amount equal to the retail value of the vehicle, and shall also order the seizing agency to file a lien against the vehicle.

(6) Within 14 days after notice by the prosecuting attorney is given under subsection (4), the defendant, an owner, lessee, or holder of a security interest may file a claim of interest in the vehicle with the court. Within 21 days after the expiration of the period for filing claims, but before or at sentencing, the court shall hold a hearing to determine the legitimacy of any claim, the extent of any co-owner's equity interest, the liability of the defendant to any co-lessee, and whether to order the vehicle forfeited or returned to the lessor. In considering whether to order forfeiture, the court shall review the defendant's driving record to determine whether the defendant has multiple convictions under section 625 or a local ordinance substantially corresponding to section 625, or multiple suspensions, restrictions, or denials under section 904, or both. If the defendant has multiple convictions under section 625 or multiple suspensions, restrictions, or denials under section 904, or both, that factor shall weigh heavily in favor of forfeiture.

(7) If a vehicle is forfeited under this section, the unit of government that seized the vehicle shall sell the vehicle pursuant to the procedures under section 252g(1) and dispose of the proceeds in the following order of priority:

(a) Pay any outstanding security interest of a secured party who did not have prior knowledge of or consent to the commission of the violation.

(b) Pay the equity interest of a co-owner who did not have prior knowledge of or consent to the commission of the violation.

(c) Satisfy any order of restitution entered in the prosecution for the violation.

(d) Pay any outstanding accrued towing and storage fees.

(e) Pay the claim of each person who shows that he or she is a victim of the violation to the extent that the claim is not covered by an order of restitution.

(f) Pay any outstanding lien against the property that has been imposed by a governmental unit.

(g) Pay the proper expenses of the proceedings for forfeiture and sale, including, but not limited to, expenses incurred during the seizure process and expenses for maintaining custody of the property, advertising, and court costs.

(h) The balance remaining after the payment of items (a) through (g) shall be distributed by the court having jurisdiction over the forfeiture proceedings to the unit or units of government substantially involved in effecting the forfeiture. Seventy-five percent of the money received by a unit of government under this subdivision shall be used to enhance enforcement of the criminal laws and 25% of the money shall be used to implement the William Van Regenmorter crime victim's rights act, 1985 PA 87, MCL 780.751 to 780.834. A unit of government receiving money under this subdivision shall report annually to the department of management and budget the amount of money received under this subdivision that was used to enhance enforcement of the criminal laws and the amount that was used to implement the William Van Regenmorter crime victim's rights act, 1985 PA 87, MCL 780.751 to 780.834.

(8) The court may order the defendant to pay to a co-lessee any liability determined under subsection (6). The order may be enforced in the same manner as a civil judgment.

(9) The return of a vehicle to the lessor under this section does not affect or impair the lessor's rights or the defendant's obligations under the lease.

(10) A person who knowingly conceals, sells, gives away, or otherwise transfers or disposes of a vehicle with the intent to avoid forfeiture or return of the vehicle to the lessor under this section is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both.

(11) The failure of the court or prosecutor to comply with any time limit specified in this section does not preclude the court from ordering forfeiture of a vehicle or its return to a lessor, unless the court finds that the owner or claimant suffered substantial prejudice as a result of that failure.

(12) The forfeiture provisions of this section do not preclude the prosecuting attorney from pursuing a forfeiture proceeding under any other law of this state or a local ordinance substantially corresponding to this section.

History: Add. 1996, Act 491, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 349, Eff. Oct. 1, 1999 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011

257.625o Ignition interlock device; sale, lease, or installation in vehicle; surety bond.

Sec. 625o.

(1) A person shall not sell, lease, or install in a vehicle in this state an ignition interlock device unless the manufacturer of the device has obtained an executed bond described in subsection (2) or a renewal certificate for that bond.

(2) The bond required under subsection (1) shall be in the amount of $50,000.00 with a surety approved by the department and shall be conditioned to indemnify or reimburse a person who has an ignition interlock device installed on his or her vehicle for monetary loss caused by the manufacturer's fraud, cheating, misrepresentation, or defaulting on a contractual obligation, whether the fraud, cheating, misrepresentation, or defaulting was done by the manufacturer or by an employee or agent of the manufacturer.

(3) The surety on the bond described in subsection (2) is required to make indemnification or reimbursement for a monetary loss only after final judgment has been entered in a court of record against the manufacturer or an employee or agent of the manufacturer. The surety on the bond may cancel the bond upon 30 days' written notice to the department and is not liable for a loss arising from an event that occurs after the effective date of the cancellation.

History: Add. 1998, Act 340, Eff. Oct. 1, 1999

257.625p Operation of commercial quadricycle by person with certain alcohol content; prohibition; violation as misdemeanor; penalty.

Sec. 625p.

(1) A person, whether licensed or not, who has an alcohol content of greater than 0.00 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine shall not operate a commercial quadricycle within this state.

(2) A person who is convicted of a violation of this section or a local ordinance substantially corresponding to this section is guilty of a misdemeanor punishable by 1 of the following:

(a) If the person has an alcohol content of at least 0.04 grams per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, imprisonment for not more than 93 days or a fine of not more than $300.00, or both, together with costs of the prosecution.

(b) If the person has an alcohol content of greater than 0.00 grams, but less than 0.04 grams, per 100 milliliters of blood, per 210 liters of breath, or per 67 milliliters of urine, a fine of not more than $300.00, together with costs of the prosecution.

History: Add. 2015, Act 126, Imd. Eff. July 15, 2015

257.625q Compliance with MCL 257.625k; investigation and determination by secretary of state; decertification of installer; notice to manufacturer; violation; penalty; suspension or revocation of manufacturer certification; removal from list of approved certified BAIIDs; summary suspension or revocation; hearing; rules.

Sec. 625q.

(1) The secretary of state may investigate a BAIID installer's compliance with section 625k and shall suspend, revoke, or deny an individual's certification as a BAIID installer under section 625k if the secretary of state determines that 1 or more of the following apply:

(a) The BAIID installer violated section 625k or a rule promulgated under section 625k.

(b) The BAIID installer committed a fraudulent act in connection with the installation, monitoring, servicing, or removal of a BAIID.

(c) The BAIID installer performed improper, careless, or negligent inspection, installation, monitoring, servicing, or removal of the BAIID.

(d) The BAIID installer made a false statement of a material fact regarding his or her actions in inspecting, installing, monitoring, servicing, or removing a BAIID.

(2) The department shall notify a manufacturer within 14 days of the date the department decertifies an installer that one of the manufacturer's installers has been decertified.

(3) A person who knowingly provides false information to the department under section 625k(4) or (5) is guilty of a felony punishable by imprisonment for not less than 5 years or more than 10 years or a fine of not less than $5,000.00 or more than $10,000.00, or both, together with costs of the prosecution.

(4) A person who negligently provides false information to the department under section 625k(4) or (5) is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both, together with costs of the prosecution.

(5) A person who knowingly fails to comply with section 625k(6) is guilty of a felony punishable by imprisonment for not less than 5 years or more than 10 years or a fine of not less than $5,000.00 or more than $10,000.00, or both, together with the costs of prosecution.

(6) A person who negligently fails to comply with section 625k(6) is guilty of a misdemeanor punishable by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both, together with the costs of prosecution.

(7) The department may suspend or revoke the certification of a manufacturer and its device from the list of approved certified BAIIDs for any of the following reasons:

(a) The manufacturer, the manufacturer's BAIIDs, or the manufacturer's installer or service provider no longer complies with the requirements of section 625k or 625l or the relevant rules promulgated under section 625k or 625l.

(b) The manufacturer or the installer and service provider authorized to install and service the manufacturer's BAIIDs have failed to submit reports required under section 625k or the relevant rules promulgated under section 625k in a timely manner in the form prescribed by the department.

(8) Before removing a manufacturer from the list of manufacturers of approved certified BAIIDs under section 625k, the administrator shall give the manufacturer written notice of the reasons for the removal.

(9) The notice issued under subsection (8) shall also indicate that suspension or revocation will occur 30 days after the date of the notice unless the manufacturer establishes, to the satisfaction of the administrator, that both of the following apply:

(a) The conditions set forth in subsection (7)(a) and (b) no longer exist.

(b) The manufacturer, the manufacturer's BAIIDs, or the manufacturer's installer or service provider, as applicable, is complying with the requirements of section 625k or 625l and the relevant rules promulgated under section 625k or 625l.

(10) The administrator may order a summary suspension or revocation of the certification of a manufacturer and its device from the list of approved certified BAIIDs under section 625k for the following reasons:

(a) Repeated failure to submit reports in a timely manner.

(b) Repeated failure to report violations as required by the applicable administrative rules.

(c) Repeated submission of inaccurate violation reports or annual reports to the department.

(d) The manufacturer, installer, or service provider has provided an individual with a bypass code.

(e) The manufacturer, installer, or service provider has shown or instructed an individual how to tamper with or circumvent a BAIID.

(f) The manufacturer, installer, or service provider has provided a sample to start a vehicle for an individual, in an attempt to circumvent a BAIID.

(g) The manufacturer, installer, or service provider has allowed an individual other than the individual specified in section 625k(14)(h) to observe the installation or removal of a BAIID.

(h) The BAIID no longer meets the National Highway Safety Traffic Administration's standards or no longer meets the requirements of section 625k or 625l.

(11) The manufacturer to whom a summary order is directed shall immediately comply with that order but, upon application to the department, shall be afforded a hearing by the department within 30 days after the date of the application. On the basis of a hearing under this subsection, the order shall be continued, modified, or held in abeyance not later than 30 days after the hearing is held.

(12) The secretary of state may promulgate rules to implement this section in compliance with the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

History: Add. 2016, Act 32, Eff. June 6, 2016
Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.625r Authority of peace officer certified as drug recognition expert to require person to submit to preliminary oral fluid analysis; arrest; admissibility of results; refusal; ordering person out of service.

Sec. 625r.

(1) A peace officer who is certified as a drug recognition expert as that term is defined in section 625t in a county participating in the roadside drug testing pilot program under section 625t who has reasonable cause to believe that a person was operating a vehicle upon a highway or other place open to the public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state and that the person by the consumption of a controlled substance, may have affected his or her ability to operate a

vehicle, or reasonable cause to believe that a person had in his or her body any amount of a controlled substance listed in schedule 1 under section 7212 of the public health code, 1978 PA 368, MCL 333.7212, or a rule promulgated under that section, or of a controlled substance described in section 7214(a)(iv) of the public health code, 1978 PA 368, MCL 333.7214, may require the person to submit to a preliminary oral fluid analysis administered under this subsection.

(2) A peace officer who is certified as a drug recognition expert as that term is defined in section 625t in a county participating in the roadside drug testing pilot program under section 625t may arrest a person in whole or in part upon the results of a preliminary oral fluid analysis.

(3) The results of a preliminary oral fluid analysis are admissible in a criminal prosecution for a crime enumerated in section 625c(1) or in an administrative hearing for 1 or more of the following purposes:

(a) To assist the court or hearing officer in determining a challenge to the validity of an arrest. This subdivision does not limit the introduction of other competent evidence offered to establish the validity of an arrest.

(b) As evidence of the presence or nonpresence of a controlled substance in the defendant's oral fluid if offered by the defendant to rebut testimony elicited on cross-examination of a defense witness that a preliminary oral fluid analysis of the defendant's oral fluid showed the presence of a controlled substance that was not found to be present when a chemical test of the defendant's blood or urine was administered under section 625a.

(c) As evidence of the presence or nonpresence of a controlled substance in the defendant's oral fluid if offered by the prosecution to rebut testimony elicited on cross-examination of a prosecution witness that a preliminary oral fluid analysis of the defendant's oral fluid showed no presence of a controlled substance that was found to be present when a chemical test of the defendant's blood or urine was administered under section 625a.

(4) A person who submits to a preliminary oral fluid analysis remains subject to the requirements of sections 625a, 625c, 625d, 625e, and 625f for purposes of chemical tests described in those sections.

(5) A person who refuses to submit to a preliminary oral fluid analysis upon a lawful request by a peace officer is responsible for a civil infraction.

(6) A peace officer who is certified as a drug recognition expert as that term is defined in section 625t in a county participating in the roadside drug testing pilot program under section 625t shall use the results of a preliminary oral fluid analysis conducted under this section to determine whether to order a person out of service under section 319d.

(7) A peace officer who is certified as a drug recognition expert as that term is defined in section 625t in a county participating in the roadside drug testing pilot program under section 625t shall order out of service as required under section 319d a person who was operating a commercial motor vehicle and who refuses to submit to a preliminary oral fluid analysis as provided in this section. This subsection does not limit use of other competent evidence by the peace officer to determine whether to order a person out of service under section 319d.

(8) A person who operates a commercial motor vehicle and who is requested to submit to a preliminary oral fluid analysis under this section by a peace officer who is certified as a drug recognition expert as that term is defined in section 625t in a county participating in the pilot program under section 625t shall be advised that refusing the request is a civil infraction and will result in the issuance of a 24-hour out-of-service order.

(9) A person who operates a commercial motor vehicle and who refuses to submit to a preliminary oral fluid analysis upon the request of a peace officer who is certified as a drug

recognition expert as that term is defined in section 625t in a county participating in the pilot program under section 625t is responsible for a civil infraction.

History: Add. 2016, Act 242, Eff. Sept. 22, 2016

257.625s Testimony of person qualified in administration of standardized field sobriety tests.

Sec. 625s.

A person who is qualified by knowledge, skill, experience, training, or education, in the administration of standardized field sobriety tests, including the horizontal gaze nystagmus (HGN) test, shall be allowed to testify subject to showing of a proper foundation of qualifications. This section does not preclude the admissibility of a nonstandardized field sobriety test if it complies with the Michigan rules of evidence.

History: Add. 2016, Act 242, Eff. Sept. 22, 2016

257.625t Roadside drug testing pilot program.

Sec. 625t.

(1) The department of state police may establish a pilot program in this state for roadside drug testing to determine whether an individual is operating a vehicle while under the influence of a controlled substance in violation of section 625.

(2) A pilot program established under this section shall be for a period of 1 calendar year. The funding of a pilot program established under this section is subject to appropriation.

(3) The department of state police shall develop a written policy for the implementation of the pilot program and the administration of roadside drug testing.

(4) The department of state police may promulgate rules under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, to implement a pilot program established under this section.

(5) Not more than 90 days after the conclusion of a pilot program established under this section, the department of state police shall submit a report to the legislative committees of the senate and house of representatives with primary responsibility for judicial and criminal justice issues. The report shall cover both of the following:

(a) The different types of law enforcement agencies in the pilot program participant counties that engaged in roadside drug testing.

(b) Relevant statistical data, including, but not limited to, the following:

(i) The number of traffic stops resulting in an arrest for operating under the influence of a controlled substance in violation of section 625 as a result of roadside drug testing by a certified drug recognition expert.

(ii) The number and type of convictions resulting from an arrest made based on the result of a roadside drug test by a certified drug recognition expert.

(6) As used in this section:

(a) "Certified drug recognition expert" means a law enforcement officer trained to recognize impairment in a driver under the influence of a controlled substance rather than, or in addition to, alcohol.

(b) "Controlled substance" means that term as defined in section 7104 of the public health code, 1978 PA 368, MCL 333.7104.

History: Add. 2016, Act 243, Eff. Sept. 22, 2016 ;-- Am. 2020, Act 87, Imd. Eff. June 11, 2020
Compiler's Notes: Enacting section 1 of Act 243 of 2016 provides:"Enacting section 1. This amendatory act shall be known and may be cited as the "Barbara J. and Thomas J. Swift Law"."

257.626 Reckless driving on highway, frozen public lake, or parking place; violation as misdemeanor; penalty.

Sec. 626.

(1) A person who violates this section is guilty of reckless driving punishable as provided in this section.

(2) Except as otherwise provided in this section, a person who operates a vehicle upon a highway or a frozen public lake, stream, or pond or other place open to the general public, including, but not limited to, an area designated for the parking of motor vehicles, in willful or wanton disregard for the safety of persons or property is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $500.00, or both.

(3) Beginning October 31, 2010, a person who operates a vehicle in violation of subsection (2) and by the operation of that vehicle causes serious impairment of a body function to another person is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not less than $1,000.00 or more than $5,000.00, or both. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(4) Beginning October 31, 2010, a person who operates a vehicle in violation of subsection (2) and by the operation of that vehicle causes the death of another person is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not less than $2,500.00 or more than $10,000.00, or both. The judgment of sentence may impose the sanction permitted under section 625n. If the vehicle is not ordered forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(5) In a prosecution under subsection (4), the jury shall not be instructed regarding the crime of moving violation causing death.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 3, Eff. Oct. 2, 1953 ;-- Am. 1957, Act 178, Eff. Sept. 27, 1957 ;-- Am. 1965, Act 262, Eff. Mar. 31, 1966 ;-- Am. 2004, Act 331, Eff. Nov. 1, 2004 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011

257.626a Drag races; prohibition on public highways; definition; prima facie evidence; applicability within Silver Lake State Park; "drag race" defined.

Sec. 626a.

(1) A person shall not do either of the following:

(a) Operate a vehicle upon a highway, or any other place open to the general public, including an area designated for the parking of motor vehicles, in a speed or acceleration contest or drag race or to make a speed record.

(b) Assist in a violation of subdivision (a).

(2) The operation of 2 or more vehicles either at speeds in excess of the prima facie lawfully established speed or rapidly accelerating from a common starting point to a speed in excess of the prima facie lawful speed is prima facie evidence of a drag race.

(3) Subsections (1) and (2) do not apply within the Silver Lake State Park scramble area.

(4) As used in this section, "drag race" means the operation of 2 or more vehicles from a point side by side at accelerating speeds in a competitive attempt to out-distance each other over a common selected course or where timing is involved or where timing devices are used in competitive accelerations of speeds by participating vehicles.

History: Add. 1964, Act 206, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 159, Eff. Mar. 10, 1967 ;-- Am. 2021, Act 75, Imd. Eff. July 29, 2021

257.626b Careless or negligent operation of vehicle as civil infraction.

Sec. 626b.

A person who operates a vehicle upon a highway or a frozen public lake, stream, or pond or other place open to the general public including an area designated for the parking of vehicles in a careless or negligent manner likely to endanger any person or property, but without wantonness or recklessness, is responsible for a civil infraction.

History: Add. 1965, Act 262, Eff. Mar. 31, 1966 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.626c Repealed. 2008, Act 463, Eff. Oct. 31, 2010.

Compiler's Notes: The repealed section pertained to operation of vehicle resulting in serious impairment of body function as felony.

SPEED RESTRICTIONS

257.627 Speed limits.

Sec. 627.

(1) An individual operating a vehicle on a highway shall operate that vehicle at a careful and prudent speed not greater than nor less than is reasonable and proper, having due regard to the traffic, surface, and width of the highway and of any other condition existing at the time. An individual shall not operate a vehicle on a highway at a speed greater than that which will permit a stop within the assured, clear distance ahead. A violation of this subsection shall be known and may be referred to as a violation of the basic speed law or "VBSL".

(2) Except as provided in subsection (1), it is lawful for the operator of a vehicle to operate that vehicle on a highway at a speed not exceeding the following:

(a) Fifteen miles per hour on a highway segment within the boundaries of a mobile home park, as that term is defined in section 2 of the mobile home commission act, 1987 PA 96, MCL 125.2302.

(b) Twenty-five miles per hour on a highway segment within a business district.

(c) Twenty-five miles per hour on a highway segment within the boundaries of a public park. A local authority may decrease the speed limit to not less than 15 miles per hour in a public park under its jurisdiction.

(d) Twenty-five miles per hour on a highway segment within the boundaries of a residential subdivision, including a condominium subdivision, consisting of a system of interconnected highways with no through highways and a limited number of dedicated highways that serve as entrances to and exits from the subdivision.

(e) Twenty-five miles per hour on a highway segment that is part of the local street system as designated by a local jurisdiction and approved by the state transportation commission under 1951 PA 51, MCL 247.651 to 247.675, and that is within land that is zoned for residential use by the governing body of an incorporated city or village under the Michigan zoning enabling act, 2006 PA 110, MCL 125.3101 to 125.3702, unless another speed is fixed and posted.

(f) Twenty-five miles per hour on a highway segment with 60 or more vehicular access points within 1/2 mile.

(g) Thirty miles per hour on a highway segment with not less than 50 vehicular access points but no more than 59 vehicular access points within 1/2 mile.

(h) Thirty-five miles per hour on a highway segment with not less than 45 vehicular access points but no more than 49 vehicular access points within 1/2 mile.

(i) Forty miles per hour on a highway segment with not less than 40 vehicular access points but no more than 44 vehicular access points within 1/2 mile.

(j) Forty-five miles per hour on a highway segment with not less than 30 vehicular access points but no more than 39 vehicular access points within 1/2 mile.

(3) An individual operating a truck with a gross weight of 10,000 pounds or more, a truck-tractor, a truck-tractor with a semi-trailer or trailer, or a combination of these vehicles shall not exceed a speed of 35 miles per hour during the period when reduced loadings are being enforced in accordance with this chapter.

(4) Where the posted speed limit is greater than 65 miles per hour, an individual operating a school bus, a truck with a gross weight of 10,000 pounds or more, a truck-tractor, or a truck-tractor with a semi-trailer or trailer or a combination of these vehicles shall not exceed a speed of 65 miles per hour on a limited access freeway or a state trunk line highway.

(5) All of the following apply to the speed limits described in subsection (2):

(a) A highway segment adjacent to or lying between 2 or more areas described in subsection (2)(a), (b), (c), or (d) is not considered to be within the boundaries of those areas.

(b) A highway segment of more than 1/2 mile in length with a consistent density of vehicular access points equal to the number of vehicular access points described in subsection (2)(f), (g), (h), (i), or (j) must be posted at the speed limit specified in the adjoining segment. A separate determination must be made for each adjoining highway segment where vehicular access point density is different.

(c) A speed limit may be posted on highways less than 1/2 mile in length by prorating in 1/10 mile segments the vehicular access point density described in subsection (2)(f), (g), (h), (i), or (j).

(6) An individual operating a vehicle on a highway, when entering and passing through a work zone described in section 79d(a) where a normal lane or part of the lane of traffic has been closed due to highway construction, maintenance, or surveying activities, shall not exceed a speed of 45 miles per hour unless a different speed limit is determined for that work zone by the state transportation department, a county road commission, or a local authority, based on accepted engineering practice. The state transportation department, a county road commission, or a local authority shall post speed limit signs in each work zone described in section 79d(a) that indicate the speed limit in that work zone and shall identify that work zone with any other traffic control devices necessary to conform to the Michigan manual on uniform traffic control devices. An individual operating a vehicle shall not exceed a speed limit established under this section or a speed limit established under section 628. For a work zone that has a speed limit in effect only where workers are present, the state transportation department, a county road commission, or a local authority is authorized to include 1 or more

flashing lights and an illuminated changeable digital message displaying the speed limit on the speed limit sign required under this subsection. As used in this subsection:

(a) "Illuminated changeable digital message" means an electronic message that displays the speed limit in a numerical format.

(b) "Present" means located in proximity to a roadway that is not protected by a guardrail or barrier.

(c) "Speed limit sign" includes, but is not limited to, a sign that displays illuminated changeable digital messages.

(7) The state transportation department, a county road commission, or a local authority shall decrease the speed limit in a hospital highway zone by up to 10 miles per hour upon request of a hospital located within that hospital highway zone. The state transportation department, county road commission, or local authority may decrease the speed limit in a hospital highway zone by more than 10 miles per hour if the decrease is supported by an engineering and safety study. The state transportation department, county road commission, or local authority shall post speed limit signs in a hospital highway zone that indicate the speed limit in that hospital highway zone and shall identify that hospital highway zone with any other traffic control devices necessary to conform to the Michigan manual on uniform traffic control devices. If a change in a sign, signal, or device, is necessitated by a speed limit decrease described in this subsection, the hospital requesting the decrease shall pay the cost of doing so. As used in this subsection, "hospital highway zone" means a portion of state trunk line highway maintained by the state transportation department that has a posted speed limit of at least 50 miles per hour and has 2 or fewer lanes for travel in the same direction, traverses along property owned by a hospital, contains an ingress and egress point from hospital property, and extends not more than 1,000 feet beyond the boundary lines of hospital property in both directions in a municipality.

(8) Subject to subsection (17), the maximum speed limit on all limited access freeways upon which a speed limit is not otherwise fixed under this act is 70 miles per hour, which shall be known as the "limited access freeway general speed limit". The minimum speed limit on all limited access freeways upon which a minimum speed limit is not otherwise fixed under this act is 55 miles per hour.

(9) Subject to subsection (17), the speed limit on all trunk line highways and all county highways upon which a speed limit is not otherwise fixed under this act is 55 miles per hour, which shall be known as the "general speed limit".

(10) Except as otherwise provided in this subsection, the speed limit on all county highways with a gravel or unimproved surface upon which a speed limit is not otherwise fixed under this act is 55 miles per hour, which shall be known as the "general gravel road speed limit". Upon request of a municipality located within a county with a population of 1,000,000 or more, the county road commission, in conjunction with the requesting municipality, may lower the speed limit to 45 miles per hour on the requested road segment and if a sign, signal, or device is erected or maintained, taken down, or regulated as a result of a request by a municipality for a speed limit of 45 miles per hour, the municipality shall pay the costs of doing so. If a municipality located within a county with a population of 1,000,000 or more requests a speed different than the speed described in this subsection, the county road commission, in conjunction with the department of state police and the requesting municipality, may conduct a speed study of free-flow traffic on the fastest portion of the road segment in question for the purpose of establishing a modified speed limit. A speed study conducted under this subsection must be completed between 3 and 14 days after a full gravel road maintenance protocol has been performed on the road segment. A full gravel road maintenance protocol described in this

subsection must include road grading and the application of a dust abatement chemical treatment. Following a speed study conducted under this subsection, the speed limit for the road segment must be established at the nearest multiple of 5 miles per hour to the eighty-fifth percentile of speed of free-flow traffic under ideal conditions for vehicular traffic, and must not be set below the fiftieth percentile speed of free-flow traffic under ideal conditions for vehicular traffic. A speed study conducted under this subsection is the responsibility of the department of state police, and if a sign, signal, or device is erected or maintained, taken down, or regulated as a result of a request by a municipality under this subsection, the municipality shall pay the costs of doing so.

(11) A public record of all traffic control orders establishing statutory speed limits authorized under this section must be filed with the office of the clerk of the county in which the county highway is located or at the office of the city or village clerk or administrative office of the airport, college, or university in which the local highway is located, and a certified copy of the traffic control order is evidence in every court of this state of the authority for the issuance of that traffic control order. The public record filed with the county, city, or village clerk or administrative office of the airport, college, or university must not be required as evidence of authority for issuing a traffic control order in the case of signs temporarily erected or placed at points where construction, maintenance, or surveying activities is in progress. A traffic and engineering investigation is not required for a traffic control order for a speed limit established under subsection (2). A traffic control order must, at a minimum, contain all of the following information:

(a) The name of the road.

(b) The boundaries of the segment of the road on which the speed limit is in effect.

(c) The basis on which the speed limit is in effect.

(d) The section of law, including a reference to the subsection, under which the speed limit is established.

(12) Except for speed limits described in subsections (1), (2)(d), (2)(e), and (9), speed limits established under this section are not valid unless properly posted. In the absence of a properly posted sign, the speed limit in effect is the basic speed law described in subsection (1). Speed limits established under subsection (2)(b), (f), (g), (h), (i), and (j) are not valid unless a traffic control order is filed as described in subsection (11).

(13) Nothing in this section prevents the establishment of a modified speed limit after a speed study as described in section 628. A modified speed limit established under section 628 supersedes a speed limit established under this section.

(14) All signs erected or placed under this section must conform to the Michigan manual on uniform traffic control devices.

(15) If upon investigation the state transportation department or county road commission and the department of state police determine that it is in the interest of public safety, they may order city, village, airport, college, university, and township officials to erect and maintain, take down, or regulate speed limit signs, signals, and devices as directed. In default of an order, the state transportation department or county road commission may cause designated signs, signals, and devices to be erected and maintained, removed, or regulated in the manner previously directed and pay the costs for doing so out of the designated highway fund. An investigation, including a speed study, conducted under this subsection is the responsibility of the department of state police.

(16) An individual who violates a speed limit established under this section is responsible for a civil infraction.

(17) No later than January 5, 2018, the state transportation department and the department of state police shall increase the speed limits on at least 600 miles of limited access freeway to 75 miles per hour if an engineering and safety study and the eighty-fifth percentile speed of free-flowing traffic under ideal conditions of that section contain findings that the speed limit may be raised to that speed, and the department shall increase the speed limit of 900 miles of trunk line highway to 65 miles per hour if an engineering and safety study and the eighty-fifth percentile speed of free-flowing traffic under ideal conditions of that section contain findings that the speed limit may be raised to that speed.

(18) As used in this section:

(a) "Traffic control order" means a document filed with the proper authority that establishes the legal and enforceable speed limit for the highway segment described in the document.

(b) "Vehicular access point" means a driveway or intersecting roadway.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 190, Eff. Sept. 27, 1957 ;-- Am. 1959, Act 76, Eff. Mar. 19, 1960 ;-- Am. 1962, Act 120, Eff. Mar. 28, 1963 ;-- Am. 1966, Act 223, Imd. Eff. July 11, 1966 ;-- Am. 1974, Act 28, Imd. Eff. Mar. 2, 1974 ;-- Am. 1976, Act 190, Imd. Eff. July 8, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1986, Act 92, Eff. June 5, 1986 ;-- Am. 1988, Act 460, Imd. Eff. Dec. 27, 1988 ;-- Am. 1990, Act 165, Imd. Eff. July 2, 1990 ;-- Am. 2003, Act 315, Eff. Apr. 8, 2004 ;-- Am. 2004, Act 62, Imd. Eff. Apr. 13, 2004 ;-- Am. 2006, Act 19, Eff. Nov. 9, 2006 ;-- Am. 2006, Act 85, Eff. Nov. 9, 2006 ;-- Am. 2012, Act 252, Imd. Eff. July 2, 2012 ;-- Am. 2016, Act 445, Imd. Eff. Jan. 5, 2017 ;-- Am. 2019, Act 31, Imd. Eff. June 25, 2019 ;-- Am. 2022, Act 52, Imd. Eff. Mar. 29, 2022 ;-- Am. 2023, Act 212, Imd. Eff. Nov. 22, 2023

257.627a "Regularly scheduled school session," "school," and "school zone" defined; speed limit on highway segment in school zone; time period; exception; state trunk line highway or county highway; school in session year-round; signs; violation as civil infraction.

Sec. 627a.

(1) As used in this section:

(a) "Regularly scheduled school session" means that part of a day scheduled for student instruction until final dismissal of the student body for that day.

(b) "School" means an educational institution operated by a local school district or by a private, denominational, or parochial organization. School does not include either of the following:

(i) An educational institution that the department of education determines has its entire student population in residence at the institution.

(ii) An educational institution to which all students are transported in motor vehicles.

(c) "School zone" means school property on which a school building is located and the adjacent property. A school zone extends not more than 1,000 feet from the school property line in any direction. If 2 or more schools occupy the same property or adjacent properties, 1 of the following applies, as applicable:

(i) If the hours of instruction at the schools are the same, then a single combined school zone shall be established.

(ii) If the hours of instruction at the schools are different, overlapping school zones shall be established.

(2) A school zone speed limit on a highway segment in a school zone, which, except as otherwise provided in this subsection, shall be in force not more than 30 minutes before the

first regularly scheduled school session, rounded to the nearest multiple of 5 minutes, until school commences, and from dismissal until not more than 30 minutes after the last regularly scheduled school session, rounded to the nearest multiple of 5 minutes, may be decreased by not more than 20 miles per hour less than the speed limit normally posted but shall be not less than 25 miles per hour. A school superintendent may begin the 30-minute period before the first regularly scheduled school session described in this subsection at a time that is less than 30 minutes before the first regularly scheduled school session and that extends beyond the time school commences, may begin the 30-minute period after dismissal at a time other than dismissal, and, if a school has an off-campus lunch period, may designate the period provided for off-campus lunch as a period during which the school zone speed limit described in this subsection applies.

(3) School zone speed limits shall not apply to a limited access highway or a highway segment over which a pedestrian overhead walkway is erected, if the walkway is adjacent to school property.

(4) Notwithstanding the requirements for a school zone as defined in subsection (1)(c), if a school is located in an area that requires school children to cross a state trunk line highway or county highway that has a speed limit of 35 miles per hour or more to attend that school, the school superintendent may submit a request to the state transportation commission, county road commission, or local authority having jurisdiction over the roadway, as applicable, for a school crossing as permitted under section 613a. If, based on the traffic engineering studies, the road authority determines the need for a lower speed limit, the road authority may designate the crossing as a school zone. Before submitting a request, the school superintendent shall have completed a school route plan as prescribed by section 7A-1 of the Michigan manual of uniform traffic control devices.

(5) If a school is in session year-round, a sign reading "All Year School" shall be posted on the same signpost as and immediately below the school zone sign.

(6) Louvered signs, digital message signs, and flashing lights may be installed to supplement or replace permanent signs required under this section. Signs erected and maintained as required under this section shall conform to the Michigan manual on uniform traffic control devices.

(7) A person who violates a speed limit established under this section is responsible for a civil infraction.

History: Add. 1978, Act 42, Imd. Eff. Mar. 7, 1978 ;-- Am. 1979, Act 21, Eff. Mar. 27, 1980 ;-- Am. 1980, Act 222, Imd. Eff. July 18, 1980 ;-- Am. 1996, Act 574, Imd. Eff. Jan. 16, 1997 ;-- Am. 2000, Act 110, Imd. Eff. May 22, 2000 ;-- Am. 2005, Act 88, Imd. Eff. July 20, 2005 ;-- Am. 2016, Act 446, Imd. Eff. Jan. 5, 2017

257.627b Repealed. 2006, Act 85, Eff. Nov. 9, 2006.

Compiler's Notes: The repealed section pertained to speed limit for school buses.

257.627c Installation and use of automated speed enforcement systems in work zones; violations; report to legislature.

Sec. 627c.

(1) Beginning 1 year after the effective date of the amendatory act that added section 2c, the state transportation department may install and use or authorize the installation and use of an automated speed enforcement system in a work zone that is not separated from traffic by concrete barriers on a street or highway under the jurisdiction of the state transportation department. The installation and use of automated speed enforcement systems is subject to all of the following:

(a) A sign must be placed 1 mile before the start of a work zone where an automated speed enforcement system is installed and used under this section indicating that the work zone is monitored by an automated speed enforcement system.

(b) A digital display must be placed on or near the automated speed enforcement system that shows the speed of an approaching vehicle as measured by the automated speed enforcement system.

(c) Prioritization must be given to work zones that meet the following factors:

(i) The work zone is active and located on a freeway with a speed limit of 45 miles per hour or more.

(ii) Workers are exposed or there are traffic hazards, including, but not limited to, lane shifts, lane splits, lane width reductions, closed shoulders, and rough pavement.

(iii) The work zone will be active for 30 days or more.

(iv) There are no significant obstructions to line of sight for the automated speed enforcement system.

(d) Automated speed enforcement systems must be used in an equitable manner to avoid causing a disparate impact on specific communities.

(e) Not more than 4 automated speed enforcement systems may be installed and used at the same time within the jurisdiction of a state transportation department region office.

(f) The state transportation department may install and use an automated speed enforcement system only by contracting with a third-party vendor.

(g) An automated speed enforcement system must be activated and detecting vehicle speed for the purpose of enforcing this section only while workers are present in the work zone.

(2) Except for an individual operating a police vehicle, a fire department or fire patrol vehicle, or a public or private ambulance as provided in section 632, if an individual violates an applicable speed limit described in section 627 by exceeding a posted speed limit by 10 miles per hour or more in a work zone while workers are present, on the basis of a recorded image produced by an automated speed enforcement system, all of the following apply:

(a) An individual must be issued a written warning using a form that is created by the automated speed enforcement unit under subsection (7) for either of the following violations as described in this subsection:

(i) A first violation.

(ii) A violation that occurs more than 3 years after that individual's most recent violation.

(b) For a second violation as described in this subsection that occurs less than 3 years after a written warning is issued under subdivision (a), the individual is responsible for a civil infraction and must be ordered to pay a civil fine of not more than $150.00.

(c) For a third or subsequent violation as described in this subsection that occurs less than 3 years after a second or subsequent violation, the individual is responsible for a civil infraction and must be ordered to pay a civil fine of not more than $300.00.

(3) A sworn statement of an automated speed enforcement system operator, based on inspecting a recorded image produced by an automated speed enforcement system, is prima facie evidence of the facts contained in the recorded image. A recorded image indicating a violation must be available for inspection in any proceeding to adjudicate the responsibility for

a violation of this section. A recorded image indicating a violation must be destroyed as soon as the period for contesting the violation has lapsed, including any period for appeals, or as soon as the individual pays the civil fine in full, whichever occurs first.

(4) All of the following apply to a recorded image and any other data collected by an automated speed enforcement system:

(a) The image and data may be used only for the purpose of adjudicating a violation of this section.

(b) Except to the extent necessary to adjudicate a violation of this section, the image and data are confidential and exempt from disclosure under the freedom of information act, 1976 PA 442, MCL 15.231 to 15.246.

(c) The image and data must not be shared with or sold to any private or public third party not involved with installing and using the automated speed enforcement system.

(5) In a proceeding for a violation of this section, prima facie evidence that the vehicle described in the citation issued was operated in violation of this section, together with proof that the individual who was issued the citation was at the time of the violation the registered owner of the vehicle, creates a rebuttable presumption that the registered owner of the vehicle was the individual who committed the violation. The presumption is rebutted if the registered owner of the vehicle files an affidavit by regular mail with the clerk of the court stating that the registered owner was not the operator of the vehicle at the time of the alleged violation or testifies in open court under oath that the registered owner was not the operator of the vehicle at the time of the alleged violation. The presumption also is rebutted if a certified copy of a police report, showing that the vehicle had been reported to the police as stolen before the time of the alleged violation of this section, is presented before the appearance date established on the citation. For purposes of this subsection, the owner of a leased or rented vehicle shall provide the name and address of the individual to whom the vehicle was leased or rented at the time of the violation.

(6) Notwithstanding section 742, a citation for a violation of this section may be executed by the state transportation department or a person designated by the state transportation department by mailing by first-class mail a copy to the address of the registered owner of the vehicle as shown on the records of the secretary of state. The state transportation department shall also file the citation with the court having jurisdiction over the offense. If the summoned individual fails to appear on the date of return set out in the citation mailed under this subsection, the clerk of the court shall enter a default after certifying, on a form furnished by the court, that the defendant has not made a scheduled appearance or has not answered the citation within the time provided by law.

(7) Subject to appropriation, an automated speed enforcement unit is created within the state transportation department composed of individuals appointed by the director of the state transportation department, to do all of the following:

(a) Oversee the implementation and use of automated speed enforcement systems under this section.

(b) Train and certify automated speed enforcement system operators to operate and monitor automated speed enforcement systems and provide sworn statements under subsection (3).

(c) Create a form for the written warning described in subsection (2) and any other new written forms or notices necessary for enforcing this section.

(8) The state transportation department shall develop guidelines for installing and using automated speed enforcement systems. In developing the guidelines, the state transportation department shall consider best practices for installing and using automated speed enforcement systems and recommendations from the manufacturers of automated speed enforcement

systems. The guidelines must include, but are not limited to, procedures for each of the following:

(a) Determining where to place an automated speed enforcement system.

(b) Regular calibration and maintenance of an automated speed enforcement system.

(9) By not later than March 1 of each year after the effective date of the amendatory act that added this section, the state transportation department shall submit to the members of the house of representatives and senate committees with jurisdiction over transportation, and make publicly available on the state transportation department website, a report on the use of automated speed enforcement systems in this state that includes, at a minimum, all of the following:

(a) The number of citations given under this section.

(b) The age and sex of the individuals given citations under this section.

(c) The locations where automated speed enforcement systems are installed and used, and where citations have been given.

(d) An accounting of both of the following relating to automated speed enforcement systems installed and used under this section:

(i) The costs of installing and using.

(ii) The revenue generated.

(10) As used in this section, "present" means located in proximity to a roadway that is not protected by a guardrail or barrier.

History: Add. 2024, Act 164, Eff. Apr. 2, 2025

257.628 Maximum or minimum speed limit; determination; petition by township board; modified speed limit; public record of traffic control order; speed limit signs, signals, or devices; violation as civil infraction; definitions.

Sec. 628.

(1) If the county road commission, the township board, and the department of state police unanimously determine upon the basis of an engineering and traffic investigation that the speed of vehicular traffic on a county highway is greater or less than is reasonable or safe under the conditions found to exist upon any part of the highway, then acting unanimously they may establish a reasonable and safe maximum or minimum speed limit on that county highway that is effective at the times determined when appropriate signs giving notice of the speed limit are erected on the highway. A township board may petition the county road commission or the department of state police for a proposed change in the speed limit. A township board that does not wish to continue as part of the process provided by this subsection shall notify in writing the county road commission. A public record of a traffic control order establishing a modified speed limit authorized under this subsection must be filed at the office of the county clerk of the county in which the limited access freeway or state trunk line highway is located, and a certified copy of a traffic control order is evidence in every court of this state of the authority for the issuance of that traffic control order. As used in this subsection, "county road commission" means the board of county road commissioners elected or appointed under section 6 of chapter IV of 1909 PA 283, MCL 224.6, or, in the case of a charter county with a population of 1,500,000 or more with an elected county executive that does not have a board of county road commissioners, the county executive.

(2) In the case of a county highway, a township board may petition the county road commission, or in counties where there is no road commission but there is a county board of commissioners, the township board may petition the county board of commissioners for any of the following:

(a) A proposed change in the speed limit without the necessity of a speed study consistent with the methods prescribed for establishing speed limits under section 627.

(b) A proposed change in the speed limit consistent with the provisions for establishing speed limits under this section.

(c) The posting of an advisory sign or device for the purpose of drawing the attention of vehicle operators to an unexpected condition on or near the roadway that is not readily apparent to road users.

(3) The state transportation department and the department of state police shall jointly determine any modified maximum or minimum speed limits on limited access freeways or trunk line highways consistent with the requirements of this section. A public record of a traffic control order establishing a modified speed limit authorized under this subsection must be filed at the office of the county clerk of the county in which the limited access freeway or trunk line highway is located, and a certified copy of a traffic control order is evidence in every court of this state of the authority for the issuance of that traffic control order.

(4) A local road authority shall determine any modified speed limits on local highways consistent with the requirements of this section. A public record of a traffic control order establishing a modified speed limit authorized under this subsection must be filed at the office of the city or village or administrative office of the airport, college, or university in which the local highway is located, and a certified copy of the traffic control order is evidence in every court of this state of the authority for the issuance of that traffic control order.

(5) A speed limit established under this section must be determined in accordance with traffic engineering practices that provide an objective analysis of the characteristics of the highway and by the eighty-fifth percentile speed of free-flowing traffic under ideal conditions on the fastest portion of the highway segment for which the speed limit is being posted. The speed limit must be in multiples of 5 miles per hour and rounded to a multiple that is within 5 miles per hour of the eighty-fifth percentile speed. A speed limit established under this section may be set below the eighty-fifth percentile speed if an engineering and safety study demonstrates a situation with hazards to public safety that are not reflected by the eighty-fifth percentile speed, but must not be set below the fiftieth percentile speed.

(6) If a highway segment includes 1 or more features with a design speed that is lower than the speed limit determined under subsection (5), the road authority may post advisory signs.

(7) If upon investigation the state transportation department or county road commission and the department of state police find it in the interest of public safety, they may order township, city, or village officials to erect and maintain, take down, or regulate the speed limit signs, signals, or devices as directed, and in default of an order the state transportation department or county road commission may cause the designated signs, signals, and devices to be erected and maintained, taken down, regulated, or controlled, in the manner previously directed, and pay for the erecting and maintenance, removal, regulation, or control of the sign, signal, or device out of the highway fund designated.

(8) Signs posted under this section must conform to the Michigan manual on uniform traffic control devices.

(9) An individual who violates a speed limit established under this section is responsible for a civil infraction.

(10) As used in subsections (2) to (9), "county road commission" means any of the following:

(a) The board of county road commissioners elected or appointed under section 6 of chapter IV of 1909 PA 283, MCL 224.6.

(b) In the case of the dissolution of the county road commission under section 6 of chapter IV of 1909 PA 283, MCL 224.6, the county board of commissioners.

(c) In the case of a charter county with a population of 1,500,000 or more with an elected county executive that does not have a board of county road commissioners, the county executive.

(d) In the case of a charter county with a population of more than 750,000 but less than 1,000,000 with an elected county executive that does not have a board of county road commissioners, the department of roads.

(11) As used in this section:

(a) "Design speed" means that term as used and determined under "A Policy on Geometric Design of Highways and Streets", seventh ed., 2018, issued by the American Association of State Highway and Transportation Officials.

(b) "Local road authority" means the governing body of a city, village, airport, college, or university.

(c) "Traffic control order" means a document filed with the proper authority that establishes the legal and enforceable speed limit for the highway segment described in the document.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, 1st Ex. Sess., Act 10, Eff. Feb. 3, 1956 ;-- Am. 1956, Act 93, Imd. Eff. Apr. 5, 1956 ;-- Am. 1961, Act 164, Eff. Sept. 8, 1961 ;-- Am. 1963, Act 143, Eff. Sept. 6, 1963 ;-- Am. 1974, Act 28, Imd. Eff. Mar. 2, 1974 ;-- Am. 1974, Act 162, Imd. Eff. June 23, 1974 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 143, Imd. Eff. Nov. 8, 1979 ;-- Am. 1987, Act 154, Eff. Dec. 1, 1987 ;-- Am. 1988, Act 368, Imd. Eff. Dec. 21, 1988 ;-- Am. 1996, Act 320, Imd. Eff. June 25, 1996 ;-- Am. 2000, Act 167, Imd. Eff. June 20, 2000 ;-- Am. 2003, Act 64, Imd. Eff. July 22, 2003 ;-- Am. 2003, Act 65, Imd. Eff. July 22, 2003 ;-- Am. 2006, Act 85, Eff. Nov. 9, 2006 ;-- Am. 2016, Act 447, Imd. Eff. Jan. 5, 2017 ;-- Am. 2024, Act 33, Imd. Eff. Apr. 2, 2024

Compiler's Notes: In OAG 6480, issued November 23, 1987, the Attorney General stated: “It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987.”

257.628a Repealed. 1974, Act 28, Imd. Eff. Mar. 2, 1974.

Compiler's Notes: The repealed section pertained to minimum speed limit on freeways.

257.628b Maximum speed in certain political subdivisions; vehicle, bicycle or other device; snowmobile exception; violation as civil infraction.

Sec. 628b.

(1) Subsection (2) applies only in a political subdivision that prohibits by ordinance, regulation, or resolution the operation of nonemergency motor vehicles in the political subdivision.

(2) Notwithstanding sections 627 and 628, an individual who operates a vehicle, a bicycle, or any other device on a state trunkline highway within a political subdivision described in subsection (1) shall not exceed either of the following speed limits:

(a) Except as otherwise provided in this subdivision and subdivision (b), 15 miles per hour. This subdivision does not apply to a snowmobile.

(b) Within a business district of a political subdivision described in subsection (1), 10 miles per hour.

(3) An individual who violates this section is responsible for a civil infraction.

(4) As used in this section:

(a) "Historic snowmobile" means that term as defined in section 82101 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.82101.

(b) "Snowmobile" means a vehicle that meets all of the following requirements:

(i) Is engine-driven.

(ii) Has an endless belt tread.

(iii) Was originally manufactured solely for operation over snow.

(iv) Is steered by 2 sled-type runners or skis that are in contact with the snow and the distance between the centers of the spindles of which is, except for a historic snowmobile, not more than 48 inches.

History: Add. 2024, Act 76, Imd. Eff. July 8, 2024

257.629 Repealed. 2016, Act 445, Imd. Eff. Jan. 5, 2017.

Compiler's Notes: The repealed section pertained to establishment of prima facie speed limits by local authorities.

257.629a County traffic safety organization; creation, appropriation.

Sec. 629a.

The board of supervisors of any county may create a county traffic safety organization to cooperate with governmental units and officials thereof in the solution of traffic safety problems in the county and to appropriate such sums as it shall deem necessary for the creation and support thereof and to prescribe rules and regulations relative to the duties of such organization and with respect to the expenditure of any such appropriation.

History: Add. 1954, Act 181, Eff. Aug. 13, 1954

257.629b Reduction of maximum speed limit; violation as civil infraction.

Sec. 629b.

(1) The governor may reduce the maximum speed limit on a street, highway, or freeway pursuant to an executive order issued during a state of energy emergency as provided by law.

(2) A person who violates a speed limit established pursuant to this section is responsible for a civil infraction.

History: Add. 1974, Act 28, Imd. Eff. Mar. 2, 1974 ;-- Am. 1975, Act 24, Imd. Eff. Apr. 15, 1975 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1987, Act 154, Eff. Dec. 1, 1987
Compiler's Notes: In OAG 6480, issued November 23, 1987, the Attorney General stated: “It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987.”

257.629c Points and minimum fine; schedule; applicability of subsection (1).

Sec. 629c.

(1) Notwithstanding sections 320a and 907, a person who is determined responsible or responsible "with explanation" for a civil infraction for violating the maximum speed limit on a limited access freeway or part of a limited access freeway upon which the maximum speed limit is 55 miles per hour or more shall be ordered by the court to pay a minimum fine and shall have points entered on his or her driving record by the secretary of state only according to the following schedule, except as otherwise provided in subsections (2) and (3):

Number of miles per hour that the vehicle exceeded the applicable speed limit at the time of the violation	Points	Minimum Fine
1 to 5	0	$10.00
6 to 10	1	$20.00
11 to 15	2	$30.00
16 to 25	3	$40.00
26 or over	4	$50.00

(2) Subsection (1) does not apply to a person operating a vehicle or vehicle combination for which the maximum rate of speed is established pursuant to section 627(5) to (7).

(3) For a violation of a maximum speed limit on a limited access freeway by a person operating a vehicle or vehicle combination described in subsection (2), points shall be assessed under section 320a and fines shall be assessed under section 907.

History: Add. 1987, Act 154, Eff. Dec. 1, 1987 ;-- Am. 1996, Act 320, Imd. Eff. June 25, 1996 ;-- Am. 2006, Act 85, Eff. Nov. 9, 2006

Compiler's Notes: In OAG 6480, issued November 23, 1987, the Attorney General stated: “It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987.”

257.629d Repealed. 2006, Act 231, Eff. Sept. 24, 2006.

Compiler's Notes: The repealed section pertained to highway safety task force.

257.629e Levy, transmittal, and disposition of assessments; annual report; highway safety fund, jail reimbursement program fund, secondary road patrol and training fund; creation; administration; use of money collected; annual report.

Sec. 629e.

(1) Before October 1, 2003, in addition to any fine or cost ordered to be paid under this act, and in addition to any assessment levied under section 907, the judge or district court magistrate shall levy a highway safety assessment of $5.00, a jail reimbursement program assessment of $5.00, and a secondary road patrol and training assessment of $10.00 for each civil infraction determination except for a parking violation or a violation for which the total fine and costs imposed are $10.00 or less. Upon payment of the assessments, the clerk of the

court shall transmit the assessments levied to the department of treasury. Until October 1, 2003, the state treasurer shall deposit the revenue received pursuant to this subsection in the highway safety fund, in the jail reimbursement program fund, and in the secondary road patrol and training fund, and shall report annually to the legislature all revenues received and disbursed under this section. An assessment levied under this subsection shall not be considered a civil fine for purposes of section 909.

(2) A highway safety fund, a jail reimbursement program fund, and a secondary road patrol and training fund are created in the department of treasury. The highway safety fund and the secondary road patrol and training fund shall be administered by the department of state police. The jail reimbursement program fund shall be administered by the department of corrections. Until October 1, 2003, money collected under subsection (1) shall be deposited in the respective funds as provided in subsection (1). Beginning October 1, 2003, money collected under subsection (1) shall be deposited in the justice system fund created in section 181 of the revised judicature act of 1961, 1961 PA 236, MCL 600.181. Money remaining in the respective funds at the end of a fiscal year shall not lapse but shall remain in the respective funds for use for the purposes of the funds. The money deposited in the highway safety fund shall serve as a supplement to, and not as a replacement for, the funds budgeted for the department of state police. The money in the highway safety fund shall be used by the department of state police for the employment of additional state police enlisted personnel to enforce the traffic laws on the highways and freeways of this state. The money in the jail reimbursement program fund shall be used by the department of corrections to reimburse counties for housing and custody of convicted felons pursuant to the requirements of section 35 of chapter IX of the code of criminal procedure, 1927 PA 175, MCL 769.35. The money in the secondary road patrol and training fund shall be used for secondary road patrol and traffic accident grants pursuant to section 77 of 1846 RS 14, MCL 51.77, and for grants under section 14 of the commission on law enforcement standards act, 1965 PA 203, MCL 28.614. The department of state police and the department of corrections shall report annually to the legislature all revenues received and disbursed under this section.

History: Add. 1987, Act 154, Eff. Dec. 1, 1987 ;-- Am. 1991, Act 163, Imd. Eff. Dec. 16, 1991 ;-- Am. 2000, Act 268, Imd. Eff. July 5, 2000 ;-- Am. 2001, Act 213, Imd. Eff. Dec. 27, 2001 ;-- Am. 2003, Act 73, Eff. Oct. 1, 2003

Compiler's Notes: In OAG 6480, issued November 23, 1987, the Attorney General stated: “It is my opinion, therefore, that 1987 PA 154, which fixes maximum speed limit on certain state highways, becomes effective November 29, 1987.”

257.630 Repealed. 1976, Act 439, Imd. Eff. Jan. 13, 1977.

Compiler's Notes: The repealed section pertained to motor-driven cycles.

257.631 Public bridge, causeway, or viaduct; maximum speed, load, or gross weight; violation as civil infraction; assessment of civil fine; exceptions; determination of civil fine; determination of gross weight; investigation; signs; evidence.

Sec. 631.

(1) A person shall not drive a vehicle upon a public bridge, causeway, or viaduct at a speed or with a load which is greater than the maximum speed or load which can be maintained with

safety to the structure, when the structure is signposted as provided in this section. A person who violates this subsection is responsible for a civil infraction.

(2) A person who drives or moves a vehicle or combination of vehicles, or the owner or lessee of a vehicle who causes or allows such a vehicle or combination of vehicles to be loaded and driven or moved, upon a public bridge, causeway, or viaduct when the gross weight of the vehicle or combination of vehicles exceeds the limitations established and signposted pursuant to this section is responsible for a civil infraction and shall be assessed a civil fine as set forth in this subsection. This subsection shall not apply to either of the following:

(a) implements of husbandry operated upon a public bridge, causeway, or viaduct.

(b) The use of a public bridge, causeway, or viaduct by a vehicle or combination of vehicles for a function essential to a farm operation otherwise reasonably inaccessible to vehicles performing the essential agricultural function.

(3) The civil fine assessed under subsection (2) shall be determined as follows:

(a) In the amount equal to 4 cents per pound for each pound of excess load when the excess is more than 2,500 pounds but not more than 3,000 pounds.

(b) In the amount equal to 6 cents per pound for each pound of excess load when the excess is more than 3,000 pounds but not more than 4,000 pounds.

(c) In the amount equal to 8 cents per pound for each pound of excess load when the excess is more than 4,000 pounds but not more than 5,000 pounds.

(d) In the amount equal to 10 cents per pound for each pound of excess load when the excess is more than 5,000 pounds.

(4) For the purpose of this section, the gross weight of a vehicle or combination of vehicles shall be determined as prescribed in section 722(7).

(5) The department of transportation, county road commission, or other authority having jurisdiction of a public bridge, causeway, or viaduct may conduct an investigation of that bridge, causeway, or viaduct. If it is found after investigation that the structure cannot with safety to itself withstand vehicles traveling at the speed or carrying a load otherwise permissible under this chapter, the department, commission, or other authority shall determine and declare the maximum speed of vehicles or load which the structure can withstand, and shall cause or permit suitable signs stating that maximum speed and load limitations to be erected and maintained not more than 50 feet from each end of the structure, and also at a suitable distance from each end of the bridge to enable vehicles to take a different route.

(6) The findings and determination of the department of transportation, county road commission, or other local authority, shall be conclusive evidence of the maximum speed and load which can with safety be maintained on a public bridge, causeway, or viaduct.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 151, Imd. Eff. July 16, 1959 ;-- Am. 1962, Act 112, Eff. Mar. 28, 1963 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1989, Act 173, Imd. Eff. Aug. 22, 1989

Compiler's Notes: In subsection (4), the reference to "section 722(7)" evidently should read "section 722(11)."

257.632 Exemption from speed limitations; police vehicles, fire department or fire patrol vehicles, and ambulances; conditions.

Sec. 632.

The speed limitation set forth in this chapter shall not apply to vehicles when operated with due regard for safety under the direction of the police when traveling in emergencies or in the

chase or apprehension of violators of the law or of persons charged with or suspected of a violation, nor to fire department or fire patrol vehicles when traveling in response to a fire alarm, nor to public or private ambulances when traveling in emergencies. This exemption shall apply only when the driver of the vehicle while in motion sounds an audible signal by bell, siren or exhaust whistle as may be reasonably necessary or when the vehicle is equipped with at least 1 lighted lamp displaying a flashing, oscillating or rotating red or blue light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicles, unless the nature of the mission requires that a law enforcement officer travel without giving warning to suspected law violators. This exemption shall not however protect the driver of the vehicle from the consequences of a reckless disregard of the safety of others.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 164, Imd. Eff. June 21, 1976

257.633 Violation of speed limit; specifications in complaint, citation, summons, or notice; burden of proof.

Sec. 633.

(1) In every charge of a violation of a speed limit in this chapter, the complaint or citation and the summons or notice to appear shall specify the speed at which the respondent is alleged to have driven and the speed limit applicable at the location.

(2) The provisions of this chapter establishing speed limits shall not be construed to relieve the plaintiff in a civil action from the burden of proving negligence on the part of the defendant as the proximate cause of a traffic crash.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2016, Act 446, Imd. Eff. Jan. 5, 2017

DRIVING ON RIGHT SIDE OF ROADWAY—OVERTAKING AND PASSING, ETC.

257.634 Driving on right half of roadway; exceptions; driving on roadway having 2 or more lanes for travel in 1 direction; traveling on freeway having 3 or more lanes for travel in same direction; ordinance regulating same subject matter prohibited; violation as civil infraction.

Sec. 634.

(1) Upon each roadway of sufficient width, the driver of a vehicle shall drive the vehicle upon the right half of the roadway, except as follows:

(a) When overtaking and passing another vehicle proceeding in the same direction under the rules governing that movement.

(b) When the right half of a roadway is closed to traffic while under construction or repair or when an obstruction exists making it necessary to drive to the left of the center of the highway. A driver who is driving on the left half of a roadway under this subdivision shall yield the right-of-way to an oncoming vehicle traveling in the proper direction upon the unobstructed portion of the roadway.

(c) When a vehicle operated by a state agency or a local authority or an agent of a state agency or local authority is engaged in work on the roadway.

(d) Upon a roadway divided into 3 marked lanes for traffic under the rules applicable on the roadway.

(2) Upon a roadway having 2 or more lanes for travel in 1 direction, the driver of a vehicle shall drive the vehicle in the extreme right-hand lane available for travel except as otherwise provided in this section. However, the driver of a vehicle may drive the vehicle in any lane lawfully available to traffic moving in the same direction of travel when the lanes are occupied by a streetcar or vehicles moving in substantially continuous lanes of traffic and in any left-hand lane lawfully available to traffic moving in the same direction of travel for a reasonable distance before making a left turn or to avoid blocking, delaying, or otherwise interfering with the movement of a streetcar on a streetcar track.

(3) This section must not be construed to prohibit a vehicle traveling in the appropriate direction from traveling in any lane of a freeway having 3 or more lanes for travel in the same direction. However, a city, village, township, or county may not enact an ordinance that regulates the same subject matter as any provision of this subsection. The driver of a truck with a gross weight of more than 10,000 pounds, a truck tractor, or a combination of a vehicle and trailer or semitrailer shall drive the vehicle or combination of vehicles only in either of the 2 lanes farthest to the right, except for a reasonable distance when making a left turn or where a special hazard exists that requires the use of an alternative lane for safety reasons.

(4) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1968, Act 260, Eff. Nov. 15, 1968 ;-- Am. 1976, Act 170, Imd. Eff. June 25, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1989 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.635 Passing vehicle proceeding in opposite direction; violation as civil infraction.

Sec. 635.

(1) Drivers of vehicles proceeding in opposite directions shall pass each other to the right, each giving to the other not less than 1/2 of the main traveled portion of the roadway as nearly as possible.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.636 Overtaking and passing of vehicles proceeding in same direction; overtaking a bicycle proceeding in same direction; violation as civil infraction.

Sec. 636.

(1) The following rules govern the overtaking and passing of vehicles proceeding in the same direction, subject to sections 637 to 643a:

(a) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass at a safe distance to the left of that vehicle, and when safely clear of the overtaken vehicle shall take up a position as near the right-hand edge of the main traveled portion of the highway as is practicable.

(b) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle and shall not increase the speed of his or her vehicle until completely passed by the overtaking vehicle.

(2) The driver of a motor vehicle overtaking a bicycle proceeding in the same direction shall pass at a safe distance of at least 3 feet to the left of that bicycle or, if it is impracticable to

pass the bicycle at a distance of 3 feet to the left, at a safe distance to the left of that bicycle at a safe speed, and when safely clear of the overtaken bicycle shall take up a position as near the right-hand edge of the main traveled portion of the highway as is practicable.

(3) Notwithstanding section 640, if it is safe to do so, the driver of a vehicle overtaking a bicycle proceeding in the same direction may overtake and pass the bicycle in a no-passing zone.

(4) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 2018, Act 279, Eff. Sept. 27, 2018 ;-- Am. 2020, Act 263, Eff. Mar. 29, 2021

257.637 Overtaking and passing on right of another vehicle or bicycle; conditions; violation as civil infraction.

Sec. 637.

(1) The driver of a vehicle may overtake and pass upon the right of another vehicle only if 1 or more of the following conditions exist:

(a) When the vehicle overtaken is making or about to make a left turn.

(b) Upon a street or highway with unobstructed pavement not occupied by parked vehicles of sufficient width for 2 or more lines of moving vehicles in each direction and when the vehicles are moving in substantially continuous lanes of traffic.

(c) Upon a 1-way street, or upon a roadway on which traffic is restricted to 1 direction of movement, where the roadway is free from obstructions and of sufficient width for 2 or more lines of moving vehicles and when the vehicles are moving in substantially continuous lanes of traffic.

(2) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting the overtaking and passing in safety. The driver of a vehicle shall not overtake and pass another vehicle upon the right by driving off the pavement or main-traveled portion of the roadway.

(3) The driver of a vehicle overtaking a bicycle proceeding in the same direction shall, when otherwise permitted by this section, pass at a distance of 3 feet to the right of that bicycle or, if it is impracticable to pass the bicycle at a distance of 3 feet to the right, at a safe distance to the right of that bicycle at a safe speed.

(4) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 2018, Act 280, Eff. Oct. 16, 2018
Compiler's Notes: Enacting section 1 of Act 342 of 2018 provides: "Enacting section 1. Enacting section 1 of 2018 PA 280 is repealed."

257.638 Overtaking and passing on left of another vehicle; violation as civil infraction.

Sec. 638.

(1) A vehicle shall not be driven to the left side of the center of a 2-lane highway or in the center lane of a 3-lane highway in overtaking and passing another vehicle proceeding in the same direction unless the left side or center lane is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit the overtaking and passing to be completely

made without interfering with the safe operation of a vehicle approaching from the opposite direction or the vehicle overtaken.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.639 Driving to left side of roadway; limitations; violation as civil infraction.

Sec. 639.

(1) A vehicle shall not be driven to the left side of the roadway under the following conditions:

(a) When approaching the crest of a grade or upon a curve in the highway where the driver's view is obstructed within a distance as to create a hazard in the event another vehicle might approach from the opposite direction.

(b) When the view is obstructed upon approaching within 100 feet of a bridge, viaduct, or tunnel.

(2) The limitations of subsection (1) shall not apply upon a 1-way roadway.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.640 No-passing zones; determination; signs or markings; traffic control devices; violation as civil infraction.

Sec. 640.

(1) The state highway commission and county road commissions shall determine those portions of a highway under their jurisdiction where overtaking and passing or driving to the left of the roadway would be especially hazardous, and by appropriate signs or markings on the roadway shall indicate the beginning and end of those zones in a manner enabling an ordinary observant driver of a vehicle to observe the directions and obey them. A sign shall be placed to the left of the highway on those portions of a highway where additional notice is considered necessary.

(2) The no-passing zones provided for by this section shall be based upon a traffic survey and engineering study. Traffic-control devices installed pursuant to this section shall conform to the state manual and specifications as provided for by section 608.

(3) A person who fails to obey the traffic-control devices installed pursuant to this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 230, Eff. Mar. 19, 1960 ;-- Am. 1965, Act 275, Imd. Eff. July 21, 1965 ;-- Am. 1970, Act 120, Imd. Eff. July 23, 1970 ;-- Am. 1971, Act 224, Imd. Eff. Dec. 30, 1971 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.641 Designating 1-way traffic; signs; driving to right of rotary traffic island; violation as civil infraction.

Sec. 641.

(1) The state highway commissioner may designate any highway or any separate roadway under his jurisdiction for 1-way traffic and shall erect appropriate signs giving notice thereof.

(2) Upon a roadway designated and signposted for 1-way traffic a vehicle shall be driven only in the direction designated.

(3) A vehicle passing around a rotary traffic island shall be driven only to the right of that island.

(4) A person who violates subsection (2) or (3) is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.642 Roadway divided into 2 or more marked lanes; applicable rules; designation as HOV lane; restrictions; exceptions; designation as automated vehicle roadway or lane; violation as civil infraction.

Sec. 642.

(1) If a roadway is divided into 2 or more clearly marked lanes for traffic, the following rules in addition to all other rules that are consistent with this act apply:

(a) A vehicle must be driven as nearly as practicable entirely within a single lane and must not be moved from the lane until the operator has first ascertained that the movement can be safely made.

(b) On a roadway that is divided into 4 or more lanes and provides for 2-way movement of traffic, a vehicle must be operated within the extreme right-hand lane except if overtaking and passing, and must not cross the center line of the roadway except if making a left turn.

(c) On a roadway that is divided into 3 lanes and provides for 2-way movement of traffic, a vehicle must not be operated in the center lane except under any of the following circumstances:

(i) If overtaking and passing another vehicle traveling in the same direction, and the center lane is clear of traffic within a safe distance.

(ii) In preparation for a left turn.

(iii) If the center lane is allocated exclusively to traffic moving in the same direction the vehicle is proceeding and the allocation is designated by official traffic control devices.

(d) Official traffic control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and operators of vehicles shall obey the directions of the traffic control device.

(e) Official traffic control devices may be installed prohibiting the changing of lanes on sections of roadway, and operators of vehicles shall obey the directions of the traffic control devices.

(2) If a lane is designated as an HOV lane by an agency with jurisdiction over the roadway, and is appropriately marked with traffic control devices, the lane must be reserved during the periods indicated for the exclusive use of buses and HOVs. The restrictions imposed on an HOV lane do not apply to any of the following:

(a) An authorized emergency vehicle.

(b) A law enforcement vehicle.

(c) A bus.

(d) A motorcycle.

(3) If a segment of roadway is designated as an automated vehicle roadway or a lane or ramp of an automated vehicle roadway as an automated vehicle roadway lane under section 665c, both of the following must apply:

(a) If a user fee is required under section 665c(1)(c), the user fee is paid.

(b) The motor vehicle or automated motor vehicle complies with any applicable requirements of section 665c(2).

(4) The requirements of subsection (3) apply in addition to other existing rules or regulations governing the use of an automated vehicle roadway or automated vehicle roadway lane that are not inconsistent with subsection (3).

(5) An individual who violates this section is responsible for a civil infraction and may be fined as provided in section 907.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1974, Act 289, Imd. Eff. Oct. 15, 1974 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2008, Act 304, Imd. Eff. Dec. 9, 2008 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2022, Act 179, Imd. Eff. July 25, 2022 ;-- Am. 2023, Act 148, Imd. Eff. Oct. 10, 2023

257.643 Distance between vehicles; violation as civil infraction.

Sec. 643.

(1) The operator of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of the vehicles and the traffic upon and the condition of the highway.

(2) Except as provided in subsection (4), a person shall not operate a motor vehicle with a gross weight, loaded or unloaded, in excess of 5,000 pounds outside the corporate limits of a city or village, within 500 feet of a like vehicle described in this subsection, moving in the same direction, except when overtaking and passing the vehicle.

(3) Except as provided in subsection (4), a distance of not less than 500 feet shall be maintained between 2 or more driven vehicles being delivered from 1 place to another.

(4) Subsections (2) and (3) do not apply to a vehicle in a platoon.

(5) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016

257.643a Leaving space between trucks or truck tractors; passing; exclusion for platoon; violation as civil infraction.

Sec. 643a.

(1) The operator of a truck or truck tractor, when traveling upon a highway outside of a business or residence district, when conditions permit, shall leave sufficient space between the vehicle and another truck or truck tractor so that an overtaking vehicle may enter and occupy the space without danger. This subsection does not prevent the operator of a truck or truck tractor from overtaking and passing another truck, truck tractor, or other vehicle in a lawful manner. This subsection does not apply to a vehicle in a platoon.

(2) When traveling upon a highway, the operator of a truck or truck tractor that is in a platoon shall allow reasonable access for other vehicles to afford those vehicles safe movement among lanes to exit or enter the highway.

(3) A person who violates this section is responsible for a civil infraction.

History: Add. 1957, Act 291, Eff. Sept. 27, 1957 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2018, Act 377, Eff. Mar. 17, 2019

257.643b Leaving space between snowplows; passing exception; violation as civil infraction.

Sec. 643b.

(1) The operator of a vehicle shall not follow a snowplow more closely than 200 feet.

(2) Subsection (1) does not apply when the operator of a vehicle is legally overtaking or passing a snowplow.

(3) The operator of a vehicle that is not a snowplow who approaches a snowplow from the rear that is stopped at or in an intersection shall stop not less than 20 feet from the snowplow.

(4) A person that violates this section is responsible for a civil infraction.

(5) As used in this section, "snowplow" means a vehicle that is all of the following:

(a) Operating on behalf of this state, a county, a county road commission, or a municipality.

(b) Actively engaging in snow and ice removal, snowplowing, salting, or sanding.

(c) Operating lights as described in section 698(5)(d).

History: Add. 2024, Act 72, Imd. Eff. July 8, 2024

257.644 Driving on highway divided into 2 roadways; parking or driving on dividing space, barrier, or section; use of crossovers on limited access highways; violation as civil infraction.

Sec. 644.

(1) When a highway has been divided into 2 roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section constructed to impede vehicular traffic, a vehicle shall be driven only upon the right-hand roadway and a vehicle shall not park or be driven over, across, or within the dividing space, barrier, or section, except through an opening in the physical barrier, dividing section, or space or at a crossover or intersection established by public authority. Crossovers on limited access highways shall not be used except by vehicles described in section 603, road service vehicles while going to or returning from servicing a disabled vehicle, and as otherwise permitted by authorized signs. "Road service vehicles" means vehicles clearly marked and readily recognizable as a vehicle used to assist disabled vehicles.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 184, Imd. Eff. July 1, 1966 ;-- Am. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.645 Driving onto or from limited access roadway; violation as civil infraction.

Sec. 645.

(1) A person shall not drive a vehicle onto or from a limited access roadway except at entrances and exits established by public authority.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.646 Repealed. 1967, Act 277, Eff. Nov. 2, 1967.

Compiler's Notes: The repealed section pertained to limited access highway restrictions on use.

TURNING AND STARTING AND SIGNALS ON STOPPING AND TURNING

257.647 Turning at intersection; violation as civil infraction.

Sec. 647.

(1) The driver of a vehicle intending to turn at an intersection shall do so as follows:

(a) Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(b) Approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line in a manner as not to interfere with the progress of any streetcar, and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered.

(c) Approach for a left turn from a 2-way roadway into a 1-way roadway shall be made in that portion of the right half of the roadway nearest the center line and clear of existing car tracks in use, and by passing to the right of the center line where it enters the intersection. Approach for a left turn from a 1-way roadway into a 2-way roadway shall be made as close as practicable to the left curb or edge of the roadway and by passing to the right of the center line of the roadway being entered.

(d) Where both streets or roadways are 1-way, both the approach for a left turn and a left turn shall be made as close as practicable to the left-hand curb or edge of the roadway.

(e) Local authorities in their respective jurisdictions may cause pavement markers, signs, or signals to be placed within or adjacent to intersections and thereby require and direct that a different course from that specified in this section be traveled by vehicles turning at an intersection. When markers, signs, or signals are so placed, a driver of a vehicle shall not turn a vehicle at an intersection other than as directed and required by those markers, signs, or signals.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.648 Operation of vehicle or bicycle; signals for stopping or turning; signal lamp or mechanical signal device on commercial motor vehicle; violation as civil infraction.

Sec. 648.

(1) The operator of a vehicle or bicycle upon a highway, before stopping or turning from a direct line, shall first determine that the stopping or turning can be made in safety and shall give a signal as required in this section.

(2) Except as otherwise provided in subsection (5), a signal required under this section shall be given either by means of the hand and arm in the manner specified in this section, or by a mechanical or electrical signal device that conveys an intelligible signal or warning to other highway traffic.

(3) When a person is operating a vehicle and signal is given by means of the hand and arm, the operator shall signal as follows:

(a) For a left turn, the operator shall extend his or her left hand and arm horizontally.

(b) For a right turn, the operator shall extend his or her left hand and arm upward.

(c) To stop or decrease speed, the operator shall extend his or her left hand and arm downward.

(4) When a person is operating a bicycle and signal is given by means of the hand and arm, the operator shall signal as follows:

(a) For a left turn, the operator shall extend his or her left hand and arm horizontally.

(b) For a right turn, the operator shall extend his or her left hand and arm upward or shall extend his or her right hand and arm horizontally.

(c) To stop or decrease speed, the operator shall extend his or her left hand and arm downward.

(5) A commercial motor vehicle, other than a commercial motor vehicle in transit from a manufacturer to a dealer, in use on a highway shall be equipped with, and required signal shall be given by, a signal lamp or mechanical signal device when the distance from the center of the top of the steering post to the left outside limit of the body, cab, or load of the commercial motor vehicle exceeds 24 inches, or when the distance from the center of the top of the steering post to the rear limit of the body or load of the commercial vehicle exceeds 14 feet. The measurement from steering post to rear limit applies to a single vehicle or combination of vehicles.

(6) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1954, Act 181, Eff. Aug. 13, 1954 ;-- Am. 1958, Act 166, Eff. Sept. 13, 1958 ;-- Am. 1974, Act 334, Imd. Eff. Dec. 17, 1974 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2014, Act 1, Imd. Eff. Jan. 28, 2014

RIGHT-OF-WAY

257.649 Right of way; rules; violation as civil infraction.

Sec. 649.

(1) The driver of a vehicle approaching an intersection shall yield the right of way to a vehicle that has entered the intersection from a different highway.

(2) When 2 vehicles enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right of way to the vehicle on the right.

(3) The right of way rules in subsections (1) and (2) are modified at through highways and otherwise as provided in subsection (4) and in this chapter.

(4) The driver of a vehicle approaching an intersection that is controlled by a traffic control signal shall do all of the following, if the signal facing the driver exhibits no colored lights or colored lighted arrows, exhibits a combination of colored lights or colored lighted arrows that fails to clearly indicate the assignment of right of way, or the signals are otherwise malfunctioning:

(a) Stop at a clearly marked stop line, or, if there is no clearly marked stop line, stop before entering the crosswalk on the near side of the intersection, or, if there is no crosswalk, stop before entering the intersection.

(b) Yield the right of way to all vehicles in the intersection or approaching on an intersecting road, if those vehicles will constitute an immediate hazard during the time the driver is moving across or within the intersection.

(c) Exercise ordinary care while proceeding through the intersection.

(5) Subsection (4) does not apply to either of the following:

(a) An intersection that is controlled by a traffic control signal that is flashing yellow unless certain events occur, including, but not limited to, activation by an emergency vehicle.

(b) A traffic control signal that is located in a school zone and is flashing yellow only during prescribed periods of time.

(6) The driver of a vehicle approaching a yield sign, in obedience to the sign, shall slow down to a speed reasonable for the existing conditions and shall yield the right of way to a vehicle in the intersection or approaching on another highway so closely as to constitute an immediate hazard during the time the driver would be moving across or within the intersection. However, if required for safety to stop, the driver shall stop before entering the crosswalk on the near side of the intersection or, if there is not a crosswalk, at a clearly marked stop line; but if there is not a crosswalk or a clearly marked stop line, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway.

(7) The driver of a vehicle traveling at an unlawful speed forfeits a right of way that the driver might otherwise have under this section.

(8) Except when directed to proceed by a police officer, the driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop before entering the crosswalk on the near side of the intersection, or if there is not a crosswalk shall stop at a clearly marked stop line; or if there is not a crosswalk or a clearly marked stop line, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway. After having stopped, the driver shall yield the right of way to a vehicle that has entered the intersection from another highway or that is approaching so closely on the highway as to constitute an immediate hazard during the time when the driver would be moving across or within the intersection.

(9) When a vehicle approaches the intersection of a highway from an intersecting highway or street that is intended to be, and is constructed as, a merging highway or street, and is plainly marked at the intersection with appropriate merge signs, the vehicle shall yield right of way to a vehicle so close as to constitute an immediate hazard on the highway about to be entered and shall adjust its speed so as to enable it to merge safely with the through traffic.

(10) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1955, Act 165, Imd. Eff. June 13, 1955 ;-- Am. 1959, Act 234, Eff. Mar. 19, 1960 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2018, Act 109, Eff. July 23, 2018

257.649a Right-of-way; turning left at location other than intersection; violation as civil infraction.

Sec. 649a.

(1) The driver of a vehicle at a location other than an intersection intending to turn to the left across a lane of traffic traveling in the opposite direction shall yield the right-of-way to all vehicles approaching from the opposite direction that are so close to the driver as to constitute an immediate hazard.

(2) An individual who violates this section is responsible for a civil infraction.

History: Add. 2022, Act 92, Imd. Eff. June 6, 2022

257.650 Right-of-way; turning left at intersection; violation as civil infraction.

Sec. 650.

(1) The driver of a vehicle within an intersection intending to turn to the left shall yield the right of way to a vehicle approaching from the opposite direction which is within the intersection or so close to the intersection as to constitute an immediate hazard; but the driver, having so yielded and having given a signal when and as required by this chapter, may make the left turn and the drivers of all other vehicles approaching the intersection from the opposite direction shall yield the right of way to the vehicle making the left turn. At an intersection at which a traffic signal is located, a driver intending to make a left turn shall permit vehicles bound straight through in the opposite direction which are waiting a go signal to pass through the intersection before making the turn.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.651 State trunk line highways; preference at intersections; stop, yield or merge signs.

Sec. 651.

(a) Except where approved traffic signals are used to control traffic, the state highway commissioner shall erect stop, yield or merge signs at every entrance to a state trunk line highway from intersecting highways or streets. However, after a traffic engineering investigation the state highway commission acting jointly with the commissioner of the Michigan state police may give preference to a city street or a county road over a state trunk line highway, and shall erect appropriate signs.

(b) Where 2 or more state trunk line highways intersect or cross, the state highway commissioner and the commissioner of the Michigan state police, acting jointly, shall determine which traffic, if any, shall be given preference and appropriate stop, yield or merge signs shall be erected.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 151, Imd. Eff. July 16, 1959 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967

257.652 Stopping before entering or crossing highway from alley, private road, or driveway; violation as civil infraction.

Sec. 652.

(1) The driver of a vehicle about to enter or cross a highway from an alley, private road, or driveway shall come to a full stop before entering the highway and shall yield right of way to vehicles approaching on the highway.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 234, Eff. Mar. 19, 1960 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.653 Immediate approach of authorized emergency vehicle; duty of driver of another vehicle; duty of streetcar operator; violation as civil infraction.

Sec. 653.

(1) Upon the immediate approach of an authorized emergency vehicle equipped with not less than 1 lighted flashing, rotating, or oscillating lamp exhibiting a red or blue light visible

under normal atmospheric condition from a distance of 500 feet to the front of the vehicle and when the driver is giving audible signal by siren, exhaust whistle, or bell:

(a) The driver of another vehicle shall yield the right of way and shall immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the roadway, clear of an intersection, and shall stop and remain in that position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) The operator of a streetcar shall immediately stop the car, clear of an intersection, and shall keep it in that position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(2) This section does not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of persons using the highway.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1964, Act 7, Imd. Eff. Mar. 20, 1964 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.653a Stationary emergency vehicle giving visual signal; duty of approaching vehicle to exhibit due care and caution; violation; penalty; exception on certain highways.

Sec. 653a.

(1) Upon approaching and passing a stationary authorized emergency vehicle that is giving a visual signal by means of flashing, rotating, or oscillating red, blue, white, or amber lights as permitted by section 698, the driver of an approaching vehicle shall exhibit due care and caution, as required under the following:

(a) On any public roadway with at least 2 adjacent lanes proceeding in the same direction of the stationary authorized emergency vehicle, the driver of the approaching vehicle shall proceed with caution, reduce his or her speed by at least 10 miles per hour below the posted speed limit, and yield the right-of-way by moving into a lane at least 1 moving lane or 2 vehicle widths apart from the stationary authorized emergency vehicle, unless directed otherwise by a police officer. If movement to an adjacent lane or 2 vehicle widths apart is not possible due to weather, road conditions, or the immediate presence of vehicular or pedestrian traffic in parallel moving lanes, the driver of the approaching vehicle shall proceed as required in subdivision (b).

(b) On any public roadway that does not have at least 2 adjacent lanes proceeding in the same direction as the stationary authorized emergency vehicle, or if the movement by the driver of the vehicle into an adjacent lane or 2 vehicle widths apart is not possible as described in subdivision (a), the approaching vehicle shall proceed with due care and caution and reduce his or her speed by at least 10 miles per hour below the posted speed limit, or as directed by a police officer.

(2) Except as provided in this subsection and subsections (3) and (4), a person who violates this section is guilty of a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for not more than 90 days, or both. Beginning 60 days after the effective date of the amendatory act that amended this subsection, except as provided in subsections (3) and (4), a person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of $400.00.

(3) A person who violates this section and causes injury to a police officer, firefighter, or other emergency response personnel in the immediate area of the stationary authorized emergency vehicle is guilty of a felony punishable by a fine of not more than $1,000.00 or imprisonment for not more than 2 years, or both.

(4) A person who violates this section and causes death to a police officer, firefighter, or other emergency response personnel in the immediate area of the stationary authorized emergency vehicle is guilty of a felony punishable by a fine of not more than $7,500.00 or by imprisonment for not more than 15 years, or both.

(5) The operator of a vehicle upon a highway that has been divided into 2 roadways by leaving an intervening space, or by a physical barrier or clearly indicated dividing sections so constructed as to impede vehicular traffic, is not required to proceed with caution, reduce his or her speed, or yield the right-of-way for an authorized emergency vehicle that is stopped across the dividing space, barrier, or section.

History: Add. 2000, Act 458, Eff. Mar. 28, 2001 ;-- Am. 2018, Act 349, Eff. Feb. 13, 2019

257.653b Approaching and passing stationary solid waste collection vehicle, utility service vehicle, or road maintenance vehicle; duty to exhibit due care and caution; exception on certain highways; definitions.

Sec. 653b.

(1) Upon approaching and passing a stationary solid waste collection vehicle, a utility service vehicle, or a road maintenance vehicle that is giving a visual signal by means of flashing, rotating, or oscillating amber lights as permitted by section 698, the driver of an approaching vehicle shall exhibit due care and caution, as required under the following:

(a) On any public roadway with at least 2 adjacent lanes proceeding in the same direction of the stationary solid waste collection vehicle, utility service vehicle, or road maintenance vehicle, the driver of the approaching vehicle shall proceed with caution, reduce his or her speed by at least 10 miles per hour below the posted speed limit, and yield the right-of-way by moving into a lane at least 1 moving lane or 2 vehicle widths apart from the stationary solid waste collection vehicle, utility service vehicle, or road maintenance vehicle, unless directed otherwise by a police officer. If movement to an adjacent lane or 2 vehicle widths apart is not possible due to weather, road conditions, or the immediate presence of vehicular or pedestrian traffic in parallel moving lanes, the driver of the approaching vehicle shall proceed as required in subdivision (b).

(b) On any public roadway that does not have at least 2 adjacent lanes proceeding in the same direction as the stationary solid waste collection vehicle, utility service vehicle, or road maintenance vehicle, or if the movement by the driver of the vehicle into an adjacent lane or 2 vehicle widths apart is not possible as described in subdivision (a), the approaching vehicle shall proceed with due care and caution and reduce his or her speed by 10 miles per hour.

(2) The operator of a vehicle upon a highway that has been divided into 2 roadways by leaving an intervening space, or by a physical barrier or clearly indicated dividing sections so constructed as to impede vehicular traffic, is not required to proceed with caution, reduce his or her speed, or yield the right-of-way for a stationary solid waste collection vehicle, utility service vehicle, or road maintenance vehicle that is stopped across the dividing space, barrier, or section.

(3) As used in this section:

(a) "Road maintenance authority" means any of the following:

(i) The state department of transportation.

(ii) A local authority.

(iii) An entity operating under contract with the state department of transportation or a local authority to provide road construction or road maintenance services.

(b) "Road maintenance vehicle" means a vehicle owned or operated by a road maintenance authority.

(c) "Solid waste" means that term as defined in section 11506 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.11506.

(d) "Solid waste collection vehicle" means a solid waste transporting unit that is used for the curbside collection of municipal solid waste.

(e) "Solid waste hauler" means that term as defined in section 11506 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.11506.

(f) "Solid waste transporting unit" means that term as defined in section 11506 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.11506.

(g) "Utility provider" means an entity that does any of the following and that is regulated as a utility under the laws of this state or of the United States:

(i) Generates or distributes electrical power to the public.

(ii) Generates or distributes natural gas to the public.

(iii) Provides sewage collection services to the public.

(iv) Provides water distribution services to the public.

(v) Provides telephone services to the public.

(vi) Provides cable or video services to the public.

(h) "Utility service vehicle" means a vehicle owned or operated by a utility provider.

History: Add. 2008, Act 464, Imd. Eff. Jan. 9, 2009 ;-- Am. 2018, Act 349, Eff. Feb. 13, 2019

257.654 Vehicles forming part of funeral procession; right-of-way; flags; passing through funeral procession with vehicle as civil infraction.

Sec. 654.

(1) A motor vehicle forming part of a funeral procession, when going to a place of burial, shall have the right of way over all other vehicles except fire apparatus, ambulances, and police patrol vehicles at a street or highway intersection within this state if the vehicle in the funeral procession displays a flag which shall be fluorescent orange in color, and upon which shall be printed, stamped, or stained a black cross, the star of David, or the crescent and star. The lead vehicle and the last vehicle in the funeral procession may carry an additional flag. The flags shall not contain a name embossed or printed on the flag, except the word "funeral".

(2) A person passing through a funeral procession of motor vehicles, designated pursuant to subsection (1), with a vehicle of any kind, is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1952, Act 9, Eff. Sept. 18, 1952 ;-- Am. 1960, Act 105, Eff. Aug. 17, 1960 ;-- Am. 1975, Act 49, Imd. Eff. May 20, 1975 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 148, Eff. Jan. 1, 1980

257.655 Pedestrians on highways; violation as civil infraction.

Sec. 655.

(1) Where sidewalks are provided, a pedestrian shall not walk upon the main traveled portion of the highway. Where sidewalks are not provided, pedestrians shall, when practicable, walk on the left side of the highway facing traffic which passes nearest.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

OPERATION OF BICYCLES, MOTORCYCLES AND TOY VEHICLES

257.656 Violations of MCL 257.656 to 257.661a as civil infractions; duty of parent or guardian; regulations applicable to bicycles and motorcycles.

Sec. 656.

(1) A person who violates any of sections 656 to 661a is responsible for a civil infraction.

(2) The parent of a child or the guardian of a ward shall not authorize or knowingly permit the child or ward to violate this chapter.

(3) The regulations applicable to bicycles under sections 656 to 662 shall apply when a bicycle is operated upon a highway or upon a path set aside for the exclusive use of bicycles, subject to those exceptions stated in sections 656 to 662.

(4) The regulations applicable to motorcycles in sections 656 to 662 shall be considered supplementary to other provisions of this chapter governing the operation of motorcycles.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.657 Rights and duties of persons riding bicycle, electric bicycle, electric skateboard, electric personal assistive mobility device, moped, low-speed vehicle, or commercial quadricycle.

Sec. 657.

Each person riding a bicycle, electric bicycle, electric personal assistive mobility device, electric skateboard, or moped or operating a low-speed vehicle or commercial quadricycle upon a roadway has all of the rights and is subject to all of the duties applicable to the driver of a vehicle under this chapter, except for special regulations in this article and except for the provisions of this chapter that by their nature do not apply.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015 ;-- Am. 2017, Act 139, Eff. Jan. 28, 2018 ;-- Am. 2018, Act 204, Eff. Sept. 18, 2018

257.657a Operation of golf cart on village, city, or township streets or state trunk line highway.

Sec. 657a.

(1) A village or city having a population of fewer than 65,000 individuals based on the most recent federal decennial census may by resolution allow the operation of golf carts on the streets of that village or city, subject to the requirements of this section. A township having a population of fewer than 65,000 individuals based on the most recent federal decennial census may by resolution, unless disapproved by the county board of commissioners under subsection (3), allow the operation of golf carts on the streets of that township, subject to the requirements of this section.

(2) If a village, city, or township allows the operation of golf carts on the streets of that village, city, or township, that village, city, or township may require those golf carts and the operators of those golf carts to be recorded on a list maintained by that village, city, or township. A village, city, or township shall not charge a fee for listing golf carts or the operators of those golf carts.

(3) A county board of commissioners may, by resolution, disapprove the operation of golf carts on the streets of a township located within that county if the county board of commissioners conducts a hearing and determines that 1 or more of the following apply:

(a) The operation of golf carts on the streets of that township would cause significant environmental damage.

(b) The operation of golf carts on the streets of that township would cause a significant concern of public safety.

(4) The county board of commissioners shall provide public notice of a hearing under subsection (3) at least 45 days before the hearing is conducted. The county board of commissioners shall also provide written notice of a hearing under subsection (3) to the township at least 45 days before the hearing is conducted.

(5) An individual shall not operate a golf cart on any street unless the individual is at least 16 years old and is licensed to operate a motor vehicle.

(6) The operator of a golf cart shall comply with the signal requirements of section 648 that apply to the operation of a vehicle.

(7) An individual operating a golf cart on a roadway shall ride as near to the right side of the roadway as practicable, exercising due care when passing a standing vehicle or a vehicle proceeding in the same direction.

(8) Except as otherwise provided in subsection (9), an individual shall not operate a golf cart on a state trunk line highway. This subsection does not prohibit an individual from crossing a state trunk line highway when operating a golf cart on a street of a village, city, or township, using the most direct line of crossing.

(9) The legislative body of a local unit of government having a population of not more than 30,000 based on the most recent federal decennial census may request the state transportation department to authorize the local unit of government to adopt an ordinance authorizing the operation of golf carts on a state trunk line highway, other than an interstate highway or a freeway, located within the local unit of government. The request must describe how the authorization would meet the requirements of subsection (10). The state transportation department shall solicit comment on the request from the local units of government where the state trunk line highway is located. The state transportation department shall consider comments received on the request before making a decision on the request. The state transportation department shall grant the request in whole or in part or deny the request not more than 60 days after the request is received. If the state transportation department grants a request in whole or in part under this subsection, the local unit of government that submitted the request may adopt an ordinance authorizing the operation of golf carts on the state trunk line highway that was the subject of the request. A county may submit a request for authorization under this subsection on behalf of 1 or more local units of government located within that county if requested by those local units of government.

(10) The state transportation department shall authorize the operation of a golf cart under subsection (9) only on a state trunk line highway that is not an interstate highway or a freeway within a local unit of government having a population of not more than 30,000 based on the most recent federal decennial census that has already adopted an ordinance under subsection (1), that serves as a connector between portions of the local unit of government that only connect through the state trunk line highway, and that meets 1 or more of the following requirements:

(a) Provides access to tourist attractions, food service establishments, fuel, motels, or other services.

(b) Serves as a connector between 2 segments of the same county road that run along discontinuous town lines.

(c) Includes a bridge or culvert that allows a golf cart to cross a river, stream, wetland, or gully that is not crossed by a street or county road on which golf carts are authorized to operate under an ordinance adopted as provided in subsection (1).

(11) The state transportation department may permanently or temporarily close a state trunk line highway to the operation of golf carts otherwise authorized under subsection (9) after written notice to the clerk of the local unit of government that requested the authorization under subsection (9). The notice must be in writing and sent by first-class United States mail or personally delivered not less than 30 days before the adoption of the rule or order closing the state trunk line highway. The notice must set forth specific reasons for the closure. The state transportation department is not required to develop a plan for an alternate route for a state trunk line highway that it has temporarily closed to the operation of golf carts.

(12) Where a usable and designated path for golf carts is provided adjacent to a highway or street, an individual operating a golf cart may, by local ordinance, be required to use that path.

(13) An individual operating a golf cart shall not pass between lines of traffic, but may pass on the left of traffic moving in the individual's direction in the case of a 2-way street or on the left or right of traffic in the case of a 1-way street, in an unoccupied lane.

(14) A golf cart must not be operated on a sidewalk constructed for the use of pedestrians.

(15) A golf cart must be operated at a speed not to exceed 15 miles per hour and must not be operated on a state trunk line highway or a highway or street with a speed limit of more than 30 miles per hour except to cross that state trunk line highway or highway or street. A village, city, or township may, by resolution, designate roads or classifications of roads for use by golf carts under this subsection.

(16) A golf cart must not be operated on a state trunk line highway or the streets of a city, village, or township during the time period from 1/2 hour before sunset to 1/2 hour after sunrise.

(17) An individual operating a golf cart or who is a passenger in a golf cart is not required to wear a crash helmet.

(18) An individual operating a golf cart on a state trunk line highway shall ride as near to the right side of the roadway as practicable.

(19) This section does not apply to a police officer in the performance of the police officer's official duties.

(20) A golf cart operated on a street of a village, city, or township under this section is not required to be registered under this act for purposes of section 3101 of the insurance code of 1956, 1956 PA 218, MCL 500.3101.

(21) As used in this section, "golf cart" means a vehicle designed for transportation while playing the game of golf. A village, city, or township may require a golf cart registered within its jurisdiction to meet any or all of the following vehicle safety requirements of a low-speed vehicle for approval under this section:

(a) At least 2 headlamps that comply with section 685.

(b) At least 1 tail lamp that complies with section 686.

(c) At least 1 stop lamp and 1 lamp or mechanical signal device that comply with sections 697 and 697b.

(d) At least 1 red reflector on each side of the golf cart as far to the rear as practicable and 1 red reflector on the rear of the golf cart as required for low-speed vehicles by 49 CFR 571.500.

(e) One exterior mirror mounted on the driver's side of the golf cart and either 1 exterior mirror mounted on the passenger side of the golf cart or 1 interior mirror as required for low-speed vehicles by 49 CFR 571.500.

(f) Brakes and a parking brake that comply with section 705.

(g) A horn that complies with section 706.

(h) A windshield that complies with section 708a.

(i) A manufacturer's identification number permanently affixed to the frame of the golf cart.

(j) Safety belts that comply with section 710a and that are used as required by section 710e.

(k) The crash helmet requirements applicable to low-speed vehicles under section 658b.

History: Add. 2014, Act 491, Imd. Eff. Jan. 13, 2015 ;-- Am. 2018, Act 139, Eff. Aug. 8, 2018 ;-- Am. 2026, Act 73, Imd. Eff. July 27, 2026

257.658 Riding on seat of bicycle, motorcycle, moped, electric skateboard, or electric personal assistive mobility device; number of persons; wearing of crash helmet; conditions; rules; requirements for autocycle.

Sec. 658.

(1) A person propelling a bicycle or operating a motorcycle or moped shall not ride other than upon and astride a permanent and regular seat attached to that vehicle.

(2) A bicycle or motorcycle shall not be used to carry more persons at 1 time than the number for which it is designed and equipped.

(3) An electric personal assistive mobility device or an electric skateboard shall not be used to carry more than 1 person at a time.

(4) A person less than 19 years of age operating a moped on a public thoroughfare shall wear a crash helmet on his or her head. A person less than 19 years of age operating an electric skateboard shall wear a crash helmet on his or her head. Except as provided in subsection (5), a person operating or riding on a motorcycle shall wear a crash helmet on his or her head.

(5) The following conditions apply to a person 21 years of age or older operating or riding on a motorcycle, as applicable:

(a) A person who is operating a motorcycle is not required to wear a crash helmet on his or her head if he or she has had a motorcycle endorsement on his or her operator's or chauffeur's license for not less than 2 years or the person passes a motorcycle safety course conducted under section 811a or 811b and satisfies the requirements of subdivision (c).

(b) A person who is riding on a motorcycle is not required to wear a crash helmet on his or her head if the person or the operator of the motorcycle satisfies the requirements of subdivision (c).

(c) A person who is operating a motorcycle and a person who is riding on a motorcycle are not required to wear crash helmets on their heads if the operator of the motorcycle or the rider has in effect security for the first-party medical benefits payable in the event that he or she is involved in a motorcycle accident, as provided in section 3103 of the insurance code of 1956, 1956 PA 218, MCL 500.3103, in 1 of the following amounts, as applicable:

(i) A motorcycle operator without a rider, not less than $20,000.00.

(ii) A motorcycle operator with a rider, not less than $20,000.00 per person per occurrence. However, if the rider has security in an amount not less than $20,000.00, then the operator is only required to have security in the amount of not less than $20,000.00.

(6) Crash helmets shall be approved by the department of state police. The department of state police shall promulgate rules for the implementation of this section under the

administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328. Rules in effect on June 1, 1970, apply to helmets required by this act.

(7) The crash helmet requirements under this section do not apply to a person operating or riding in an autocycle if the vehicle is equipped with a roof that meets or exceeds standards for a crash helmet.

(8) A person operating or riding in an autocycle shall wear seat belts when on a public highway in this state.

(9) A person under the age of 12 shall not operate an electric skateboard on a public highway or street.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 260, Eff. Mar. 19, 1960 ;-- Am. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1968, Act 141, Imd. Eff. June 12, 1968 ;-- Am. 1969, Act 118, Eff. Sept. 1, 1969 ;-- Am. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1970, Act 24, Imd. Eff. June 1, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1983, Act 91, Imd. Eff. June 16, 1983 ;-- Am. 1984, Act 328, Imd. Eff. Dec. 26, 1984 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002 ;-- Am. 2012, Act 98, Imd. Eff. Apr. 13, 2012 ;-- Am. 2012, Act 589, Eff. Mar. 28, 2013 ;-- Am. 2018, Act 204, Eff. Sept. 18, 2018

Constitutionality: The legislature may reasonably require that helmets be worn with a view to mitigating potential civil and criminal liability of drivers who collide with motorcycles. People v Poucher, 398 Mich 316; 247 NW2d 798 (1976).

Popular Name: Helmet Law

Admin Rule: R 28.901 et seq. and R 28.951 et seq. of the Michigan Administrative Code.

257.658a Seats and foot rests; requirements; exception; violation as civil infraction.

Sec. 658a.

(1) In addition to the requirements of section 658, a motorcycle shall be equipped with adequate seats and foot rests or pegs for each designated seating position. Foot rests or pegs must be securely attached. A passenger shall not ride on a motorcycle unless his or her feet can rest on the assigned foot rests or pegs except that this requirement does not apply to a person who is unable to reach the foot rests or pegs due to a permanent physical disability.

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 1995, Act 68, Eff. Jan. 1, 1996

257.658b Crash helmet required; exception.

Sec. 658b.

(1) Except as provided in subsection (2), a person operating or riding in a low-speed vehicle shall wear a crash helmet on his or her head. The crash helmet shall meet the requirements of the rules promulgated by the department of state police under section 658.

(2) Subsection (1) does not apply to a person operating or riding in a low-speed vehicle equipped with a roof that meets or exceeds the standards for roof-crush resistance, provided under 49 C.F.R. 571.500.

History: Add. 2000, Act 82, Eff. July 1, 2000

257.659 Riding while attached to streetcar or vehicle.

Sec. 659.

A person riding upon a bicycle, moped or motorcycle, coaster, roller skates, sled, or toy vehicle shall not attach the same or himself to a streetcar or vehicle upon a roadway.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.660 Electric personal assistive mobility device, low-speed vehicle, commercial quadricycle; electric skateboard, or moped; operation; limitations; applicability to police officer; regulation by local government; prohibitions; regulation by department of natural resources.

Sec. 660.

(1) A person operating an electric personal assistive mobility device, low-speed vehicle, electric skateboard, or moped upon a roadway shall ride as near to the right side of the roadway as practicable, shall exercise due care when passing a standing vehicle or a vehicle proceeding in the same direction, and shall not block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track.

(2) A motorcycle is entitled to full use of a lane, and a motor vehicle must not be driven in such a manner as to deprive a motorcycle of the full use of a lane. This subsection does not apply to motorcycles operated 2 abreast in a single lane or to the operation of a motorcycle in a manner that blocks, delays, or otherwise interferes with the movement of a streetcar on a streetcar track.

(3) A person riding an electric personal assistive mobility device, motorcycle, electric skateboard, or moped upon a roadway shall not ride more than 2 abreast except on a path or part of a roadway set aside for the exclusive use of those vehicles.

(4) Where a usable and designated path for bicycles is provided adjacent to a highway or street, a person operating an electric personal assistive mobility device or electric skateboard may, by local ordinance, be required to use that path.

(5) A person operating a motorcycle, moped, low-speed vehicle, electric personal assistive mobility device, or electric skateboard shall not pass between lines of traffic, but may pass on the left of traffic moving in his or her direction in the case of a 2-way street or on the left or right of traffic in the case of a 1-way street, in an unoccupied lane.

(6) A person operating an electric personal assistive mobility device or electric skateboard on a sidewalk constructed for the use of pedestrians shall yield the right-of-way to a pedestrian and shall give an audible signal before overtaking and passing the pedestrian.

(7) A moped, low-speed vehicle, or commercial quadricycle must not be operated on a sidewalk constructed for the use of pedestrians.

(8) A low-speed vehicle or commercial quadricycle must not be operated at a speed of more than 25 miles per hour. A low-speed vehicle must not be operated on a highway or street with a speed limit of more than 35 miles per hour except for the purpose of crossing that highway or street. A commercial quadricycle must not be operated on a highway or street with a speed limit of more than 45 miles per hour except for the purpose of crossing that highway or street. An individual shall not operate a commercial quadricycle that is equipped with a motor unless he or she has a valid operator's license issued under this act. The state transportation department may prohibit the operation of a low-speed vehicle or commercial quadricycle on any highway or street under its jurisdiction if it determines that the prohibition is necessary in the interest of public safety.

(9) This section does not apply to a police officer in the performance of his or her official duties.

(10) An electric personal assistive mobility device must not be operated at a speed of more than 15 miles per hour and must not be operated on a highway or street with a speed limit of more than 25 miles per hour except to cross that highway or street.

(11) An electric skateboard must not be operated at a speed of more than 25 miles per hour. An electric skateboard that does not have handlebars must not be operated on a highway or street with a speed limit of more than 25 miles per hour except to cross that highway or street, and an electric skateboard equipped with handlebars must not be operated on a highway or street with a speed limit of more than 45 miles per hour except to cross that highway or street.

(12) The governing body of a county, a city, a village, an entity created under the urban cooperation act of 1967, 1967 (Ex Sess) PA 7, MCL 124.501 to 124.512, or a township may, by ordinance based on the health, safety, and welfare of the citizens, regulate the operation of electric personal assistive mobility devices, electric skateboards, or commercial quadricycles on sidewalks, highways or streets, or crosswalks. Except as otherwise provided in this subsection, a governing body of a county, city, village, entity created under the urban cooperation act of 1967, 1967 (Ex Sess) PA 7, MCL 124.501 to 124.512, or township may prohibit the operation of electric personal assistive mobility devices, electric skateboards or commercial quadricycles in an area open to pedestrian traffic adjacent to a waterfront or on a trail under its jurisdiction, in a downtown or central business district, or on a street that includes streetcar tracks. Signs indicating the regulation must be conspicuously posted in the area where the use of an electric personal assistive mobility device, electric skateboard, or commercial quadricycle is regulated.

(13) Operation of an electric personal assistive mobility device or electric skateboard is prohibited in a special charter city and a state park under the jurisdiction of the Mackinac Island State Park commission.

(14) Operation of an electric personal assistive mobility device or electric skateboard may be prohibited in a historic district.

(15) The department of natural resources may by order regulate the use of electric personal assistive mobility devices or electric skateboards on all lands under its control.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1975, Act 209, Imd. Eff. Aug. 25, 1975 ;-- Am. 1975, Act 273, Eff. Mar. 31, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1994, Act 348, Eff. Mar. 30, 1995 ;-- Am. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002 ;-- Am. 2006, Act 339, Imd. Eff. Aug. 15, 2006 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015 ;-- Am. 2018, Act 204, Eff. Sept. 18, 2018 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

Compiler's Notes: For transfer of powers and duties of department of natural resources to department of natural resources and environment, and abolishment of department of natural resources, see E.R.O. No. 2009-31, compiled at MCL 324.99919.For transfer of powers and duties of department of natural resources and environment to department of natural resources, see E.R.O. No. 2011-1, compiled at MCL 324.99921.

257.660a Operation of bicycle upon highway or street; riding close to right-hand curb or edge of roadway; exceptions.

Sec. 660a.

A person operating a bicycle upon a highway or street at less than the existing speed of traffic shall ride as close as practicable to the right-hand curb or edge of the roadway except as follows:

(a) When overtaking and passing another bicycle or any other vehicle proceeding in the same direction.

(b) When preparing to turn left.

(c) When conditions make the right-hand edge of the roadway unsafe or reasonably unusable by bicycles, including, but not limited to, surface hazards, an uneven roadway surface, drain openings, debris, parked or moving vehicles or bicycles, pedestrians, animals, or other obstacles, or if the lane is too narrow to permit a vehicle to safely overtake and pass a bicycle.

(d) When operating a bicycle in a lane in which the traffic is turning right but the individual intends to go straight through the intersection.

(e) When operating a bicycle upon a 1-way highway or street that has 2 or more marked traffic lanes, in which case the individual may ride as near the left-hand curb or edge of that roadway as practicable.

(f) When riding as close as practicable to the right-hand curb or edge of the roadway would block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track.

History: Add. 2006, Act 339, Imd. Eff. Aug. 15, 2006 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021
Compiler's Notes: Former MCL 257.660a, which pertained to operation of bicycle with motor, was repealed by Act 439 of 1976, Imd. Eff. Jan. 13, 1997.

257.660b Operation of bicycle upon highway or street; riding more than 2 abreast.

Sec. 660b.

Two or more individuals operating bicycles upon a highway or street shall not ride more than 2 abreast except upon a path or portion of the highway or street set aside for the use of bicycles.

History: Add. 2006, Act 339, Imd. Eff. Aug. 15, 2006

257.660c Operation of bicycle upon sidewalk or pedestrian crosswalk.

Sec. 660c.

(1) An individual operating a bicycle upon a sidewalk or a pedestrian crosswalk shall yield the right-of-way to pedestrians and shall give an audible signal before overtaking and passing a pedestrian.

(2) An individual shall not operate a bicycle upon a sidewalk or a pedestrian crosswalk if that operation is prohibited by an official traffic control device.

(3) An individual lawfully operating a bicycle upon a sidewalk or a pedestrian crosswalk has all of the rights and responsibilities applicable to a pedestrian using that sidewalk or crosswalk.

History: Add. 2006, Act 339, Imd. Eff. Aug. 15, 2006

257.660d Parking bicycle or electric skateboard on sidewalk, highway, or street.

Sec. 660d.

(1) An individual may park a bicycle or an electric skateboard equipped with handlebars on a sidewalk except as prohibited by an official traffic control device.

(2) An individual shall not park a bicycle or an electric skateboard equipped with handlebars on a sidewalk in such a manner that the bicycle or electric skateboard equipped with handlebars impedes the lawful movement of pedestrians or other traffic.

(3) An individual may park a bicycle or an electric skateboard equipped with handlebars on a highway or street at any location where parking is allowed for motor vehicles, may park at any angle to the curb or the edge of the highway, and may park abreast of another bicycle or electric skateboard equipped with handlebars.

(4) An individual shall not park a bicycle or an electric skateboard equipped with handlebars on a highway or street in such a manner as to obstruct the movement of a legally parked motor vehicle or as to block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track.

(5) Except as otherwise provided in this section, an individual parking a bicycle or an electric skateboard equipped with handlebars on a highway or street shall do so in compliance with this act and any local ordinance.

History: Add. 2006, Act 339, Imd. Eff. Aug. 15, 2006 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.661 Carrying package, bundle, or article on bicycle, electric personal assistive mobility device, moped, or motorcycle.

Sec. 661.

A person operating a bicycle, electric personal assistive mobility device, moped, or motorcycle shall not carry any package, bundle, or article that prevents the driver from keeping both hands upon the handlebars of the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 207, Eff. Mar. 10, 1967 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002

257.661a Handlebars of motorcycle or moped.

Sec. 661a.

A person shall not operate on a public highway of this state a motorcycle or moped equipped with handlebars that are higher than 30 inches from the lowest point of the undepressed saddle to the highest point of the handle grip of the operator.

History: Add. 1969, Act 134, Eff. June 1, 1970 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 2018, Act 160, Imd. Eff. May 23, 2018

257.662 Bicycle, electric personal assistive mobility device, electric skateboard, or commercial quadricycle; equipment; violation as civil infraction.

Sec. 662.

(1) A bicycle, electric personal assistive mobility device, electric skateboard, or commercial quadricycle being operated on a roadway between 1/2 hour after sunset and 1/2 hour before sunrise shall be equipped with a lamp on the front that emits a white light visible from a

distance of at least 500 feet to the front and with a red reflector on the rear that shall be visible from all distances from 100 feet to 600 feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector.

(2) A bicycle shall be equipped with a brake that enables the operator to make the braked wheels skid on dry, level, clean pavement.

(3) An electric personal assistive mobility device, electric skateboard, or commercial quadricycle shall enable the operator to bring it to a controlled stop.

(4) A person shall not sell, offer for sale, or deliver for sale in this state a bicycle or a pedal for use on a bicycle, either of which was manufactured after January 1, 1976, unless it is equipped with a type of reflex reflector located on the front and rear surfaces of the pedal. The reflector elements may be either integral with the construction of the pedal or mechanically attached, but shall be sufficiently recessed from the edge of the pedal, or of the reflector housing, to prevent contact of the reflector element with a flat surface placed in contact with the edge of the pedal. The pedal reflectors shall be visible from the front and rear of the bicycle during the nighttime from a distance of 200 feet when directly exposed to the lower beam head lamps of a motor vehicle.

(5) A person shall not sell, offer for sale, or deliver for sale in this state a bicycle manufactured after January 1, 1976 or an electric personal assistive mobility device unless it is equipped with either tires that have reflective sidewalls or with wide-angle prismatic spoke reflectors. If the bicycle or the electric personal assistive mobility device is manufactured with reflective sidewalls, the reflective portion of the sidewall shall form a continuous circle on the sidewall, and may not be removed from the tire without removal of tire material. If the bicycle is equipped with wide-angle prismatic spoke reflectors, the reflectors of the front wheel shall be essentially colorless or amber, and the reflectors on the rear wheel shall be essentially colorless or red. Reflective sidewalls or spoke reflectors shall cause the bicycle to be visible from all distances from 100 feet to 600 feet when viewed under lawful low beam motor vehicle head lamps under normal atmospheric conditions.

(6) A person who violates subsection (1) or (2) is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1975, Act 209, Imd. Eff. Aug. 25, 1975 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2000, Act 131, Imd. Eff. June 1, 2000 ;-- Am. 2002, Act 494, Imd. Eff. July 3, 2002 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015 ;-- Am. 2018, Act 204, Eff. Sept. 18, 2018

257.662a Electric bicycle; rights of individual; label to be affixed by manufacturer or distributor; tampering with or modification of electric bicycle prohibited; requirements applicable to class 3 electric bicycle; compliance with federal requirements; operation on highway or within city; operation of class 1, class 2, or class 3 electric bicycle on certain trails; compliance with Americans with disabilities act of 1990 and persons with disabilities civil rights act; public hearing; inapplicability of subsections (6) to (10) to use of electric bicycles on congressionally authorized public trail system.

Sec. 662a.

(1) Except as otherwise provided in this section, an individual riding an electric bicycle is subject to the same requirements under this act as an individual riding a bicycle.

(2) Beginning on January 1, 2018, a manufacturer or distributor of electric bicycles offered for sale or distribution in this state shall permanently affix in a prominent location on the electric bicycle a label that contains the classification number, top assisted speed, and motor

wattage of the electric bicycle. The label required under this subsection shall be printed in Arial font and shall be at least 9-point type.

(3) A person shall not tamper with or modify an electric bicycle so as to change the manufactured motor-powered speed capability or motor engagement of the electric bicycle without replacing the label required under subsection (2) with an appropriate label printed in Arial font and in at least 9-point type. For purposes of this act, a device shall not be considered an electric bicycle if the motor is modified in a manner that no longer meets the criteria described in section 13e, or if the motor exceeds 750 watts.

(4) All of the following apply to a class 3 electric bicycle:

(a) A class 3 electric bicycle shall not be operated by an individual less than 14 years of age. An individual less than 14 years of age may ride as a passenger on a class 3 electric bicycle that is designed to accommodate passengers.

(b) An individual less than 18 years of age who operates or rides as a passenger on a class 3 electric bicycle shall wear a properly fitted and fastened bicycle helmet that meets federal standards established by the United States Consumer Product Safety Commission or the American Society for Testing and Materials.

(5) An electric bicycle shall comply with applicable equipment and manufacturing requirements for electric bicycles established under federal law, including standards adopted by the United States Consumer Product Safety Commission and compiled in 16 CFR part 1512.

(6) Except as otherwise provided in subsection (7), an individual may operate an electric bicycle on any part of a highway that is open to a bicycle, including, but not limited to, a lane designated for the exclusive use of bicycles and the shoulder.

(7) An individual shall not operate an electric bicycle within a city that prohibits the use of nonemergency motor vehicles, unless the city council of that city, by majority vote, adopts a resolution allowing the operation of electric bicycles within city limits. An individual shall not operate an electric bicycle within the Mackinac Island State Park, unless he or she has obtained the required permit from the Mackinac Island State Park Commission created in part 767 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.76701 to 324.76709, or unless the Mackinac Island State Park Commission authorizes the operation of electric bicycles within its jurisdiction. If a city described in this subsection or the Mackinac Island State Park Commission authorizes the operation of electric bicycles within its jurisdiction, the city or the Mackinac Island State Park Commission may regulate the operation of electric bicycles within its jurisdiction.

(8) An individual may operate a class 1 electric bicycle on a linear trail that has an asphalt, crushed limestone, or similar surface, or a rail trail. A local authority or agency of this state having jurisdiction over a trail described in this subsection may regulate or prohibit the operation of a class 1 electric bicycle on that trail.

(9) An individual may operate a class 2 or class 3 electric bicycle on a linear trail that has an asphalt, crushed limestone, or similar surface, or a rail trail if authorized by the local authority or agency of this state having jurisdiction over the trail.

(10) Except as otherwise provided in this subsection, an individual shall not operate an electric bicycle on a trail that is designated as nonmotorized and that has a natural surface tread that is made by clearing and grading the native soil with no added surfacing materials. A local authority or agency of this state having jurisdiction over a trail described in this subsection may allow and regulate the operation of an electric bicycle on that trail.

(11) This state or a local authority or agency of this state shall administer the provisions of this section in a manner that complies with the Americans with disabilities act of 1990, Public

Law 101-336, and the persons with disabilities civil rights act, 1976 PA 220, MCL 37.1101 to 37.1607.

(12) Before an entity described in subsections (7) to (10) may prohibit, authorize, or regulate the use of electric bicycles within its jurisdiction, that entity shall hold a public hearing on the matter.

(13) Subsections (6) to (10) do not apply to the use of electric bicycles on a congressionally authorized public trail system.

History: Add. 2017, Act 139, Eff. Jan. 28, 2018

AUTOMATED VEHICLES

257.663 Repealed. 2016, Act 332, Imd. Eff. Dec. 9, 2016.

Compiler's Notes: The repealed section pertained to prohibition against operation of automated motor vehicle.

257.664 Repealed. 2000, Act 126, Imd. Eff. May 30, 2000.

257.665 Research or testing of automated motor vehicle, technology allowing motor vehicle to operate without human operator, or any automated driving system; proof of insurance; existence of certain circumstances; operation; provisions applicable to platoon.

Sec. 665.

(1) Before beginning research or testing on a highway or street in this state of an automated motor vehicle, technology that allows a motor vehicle to operate without a human operator, or any automated driving system installed in a motor vehicle under this section, the manufacturer of automated driving systems or upfitter performing that research or testing shall submit proof satisfactory to the secretary of state that the vehicle is insured under chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179.

(2) A manufacturer of automated driving systems or upfitter shall ensure that all of the following circumstances exist when researching or testing the operation, including operation without a human operator, of an automated motor vehicle or any automated technology or automated driving system installed in a motor vehicle upon a highway or street:

(a) The vehicle is operated only by an employee, contractor, or other person designated or otherwise authorized by that manufacturer of automated driving systems or upfitter. This subdivision does not apply to a university researcher or an employee of the state transportation department or the department described in subsection (3).

(b) An individual described in subdivision (a) has the ability to monitor the vehicle's performance while it is being operated on a highway or street in this state and, if necessary, promptly take control of the vehicle's movements. If the individual does not, or is unable to, take control of the vehicle, the vehicle must be capable of achieving a minimal risk condition.

(c) The individual operating the vehicle under subdivision (a) and the individual who is monitoring the vehicle for purposes of subdivision (b) may lawfully operate a motor vehicle in the United States.

(3) A university researcher or an employee of the state transportation department or the department who is engaged in research or testing of automated motor vehicles may operate an automated motor vehicle if the operation is in compliance with subsection (2).

(4) An automated motor vehicle may be operated on a street or highway in this state.

(5) When engaged, an automated driving system allowing for operation without a human operator is considered the driver or operator of a vehicle for purposes of determining conformance to any applicable traffic or motor vehicle laws and is deemed to satisfy electronically all physical acts required by a driver or operator of the vehicle. An automated vehicle roadway system provider is not an operator of a vehicle.

(6) A person may operate a platoon on a street or highway of this state if the person files a plan for general platoon operations with the department of state police and the state transportation department before starting platoon operations. If the plan is not rejected by either the department of state police or the state transportation department within 30 days after receipt of the plan, the person is allowed to operate the platoon.

(7) All of the following apply to a platoon:

(a) Vehicles in a platoon are not considered a combination of vehicles for purposes of this act.

(b) The lead vehicle in a platoon is not considered to draw the other vehicles.

(c) If the platoon includes a commercial motor vehicle, an appropriately endorsed driver who holds a valid commercial driver license shall be present behind the wheel of each commercial motor vehicle in the platoon.

History: Add. 2013, Act 231, Eff. Mar. 27, 2014 ;-- Am. 2016, Act 332, Imd. Eff. Dec. 9, 2016 ;-- Am. 2022, Act 179, Imd. Eff. July 25, 2022

Compiler's Notes: Former MCL 257.665, was repealed by Act 126 of 2000, Imd. Eff. May 30, 2000.For the type III transfer of the Michigan council on future mobility from the department of transportation to the department of labor and economic opportunity and the creation of the Michigan council on future mobility and electrification, see E.R.O. No. 2020-1, compiled at MCL 257.929.

257.665a Liability.

Sec. 665a.

A manufacturer of automated driving technology, an automated driving system, or a motor vehicle is immune from liability that arises out of any modification made to a motor vehicle, an automated motor vehicle, an automated driving system, or automated driving technology by another person without the manufacturer's consent, as provided in section 2949b of the revised judicature act of 1961, 1961 PA 236, MCL 600.2949b. Nothing in this section supersedes or otherwise affects the contractual obligations, if any, between a motor vehicle manufacturer and a manufacturer of automated driving systems or a manufacturer of automated driving technology.

History: Add. 2016, Act 332, Imd. Eff. Dec. 9, 2016

257.665b Participation of motor vehicle manufacturer in SAVE project.

Sec. 665b.

(1) A motor vehicle manufacturer may participate in a SAVE project if it self-certifies to all of the following:

(a) That it is a motor vehicle manufacturer. A person that is not a motor vehicle manufacturer may not participate in a SAVE project.

(b) That each vehicle in the participating fleet is owned or controlled by the motor vehicle manufacturer and is equipped with all of the following:

(i) An automated driving system.

(ii) Automatic crash notification technology.

(iii) A data recording system that has the capacity to record the automated driving system's status and other vehicle attributes including, but not limited to, speed, direction, and location during a specified time period before a crash as determined by the motor vehicle manufacturer.

(c) That the participating fleet complies with all applicable state and federal laws.

(d) That each vehicle in the participating fleet is capable of being operated in compliance with applicable traffic and motor vehicle laws of this state.

(2) A motor vehicle manufacturer's eligibility to participate in a SAVE project under this section is conditioned solely upon meeting the requirements of this section. A motor vehicle manufacturer shall verify its satisfaction of the requirements of this section using the self-certification described in subsection (1).

(3) All of the following apply to a motor vehicle manufacturer that participates in a SAVE project:

(a) The motor vehicle manufacturer may commence a SAVE project at any time after it notifies the department that it has self-certified as provided in subsection (1). The notification required by this subdivision shall also set forth the geographical boundaries for the SAVE project. A motor vehicle manufacturer may make multiple notifications under this subsection.

(b) The motor vehicle manufacturer may participate in a SAVE project under any terms it deems appropriate so long as the terms are consistent with this section and other applicable law.

(c) The motor vehicle manufacturer shall determine the geographical boundaries for a SAVE project, which may include, but are not limited to, any of the following:

(i) A designated area within a municipality.

(ii) An area maintained by a regional authority.

(iii) A university campus.

(iv) A development that caters to senior citizens.

(v) A geographic or demographic area that is similar to the areas described in subparagraphs (i) to (iv).

(d) Public operation of a participating fleet shall be confined to the boundaries selected by the motor vehicle manufacturer under subdivision (c).

(e) For the duration of a SAVE project, the motor vehicle manufacturer shall maintain incident records and provide periodic summaries related to the safety and efficacy of travel of the participating fleet to the department and the National Highway Traffic Safety Administration.

(f) An individual who participates in a SAVE project is deemed by his or her participation to have consented to the collection of the information described in subdivision (e) while he or she is in a vehicle that is part of the participating fleet and to the provision of the summaries to the department and the National Highway Traffic Safety Administration as described in subdivision (e). Before commencing a SAVE project, and for the duration of the SAVE project, the motor vehicle manufacturer shall make publicly available a privacy statement disclosing its data handling practices in connection with the applicable participating fleet.

(4) When engaged, an automated driving system or any remote or expert-controlled assist activity shall be considered the driver or operator of the vehicle for purposes of determining conformance to any applicable traffic or motor vehicle laws and shall be deemed to satisfy electronically all physical acts required by a driver or operator of the vehicle. A motor vehicle manufacturer shall insure each vehicle in a participating fleet as required under this act and chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179. For each SAVE project in which it participates, during the time that an automated driving system is in control of a vehicle in the participating fleet, a motor vehicle manufacturer shall assume liability for each incident in which the automated driving system is at fault, subject to chapter 31 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 to 500.3179.

History: Add. 2016, Act 333, Imd. Eff. Dec. 9, 2016

257.665c Departmental duties; automated vehicle roadways; local ordinances superseded.

Sec. 665c.

(1) The state transportation department may do all of the following:

(a) Designate a segment of a roadway under its jurisdiction as an automated vehicle roadway.

(b) Designate a lane or ramp of an automated vehicle roadway as an automated vehicle roadway lane.

(c) Require a user fee for the use of an automated vehicle roadway or automated vehicle roadway lane.

(d) Enter into an agreement with an automated vehicle roadway system provider for the design, construction, manufacture, operation, maintenance, or management of an automated vehicle roadway system for a designated automated vehicle roadway or automated vehicle roadway lane. As part of an agreement entered pursuant to this subdivision, the state transportation department may include provisions authorizing the automated vehicle roadway system provider to establish and collect user fees for the use of the automated vehicle roadway or automated vehicle roadway lane. An automated vehicle roadway system provider may use the fees collected pursuant to this subdivision to properly design, construct, manage, operate, or maintain its automated vehicle roadway system.

(2) If the state transportation department designates a segment of roadway as an automated vehicle roadway under subsection (1)(a) or a lane or ramp of an automated vehicle roadway as an automated vehicle roadway lane under subsection (1)(b), any of the following may apply:

(a) The roadway, lane, or ramp may be subject to requirements established by the state transportation department as a condition for use.

(b) The roadway, lane, or ramp may be reserved for the exclusive use of motor vehicles as determined by the state transportation department.

(3) This section supersedes all local ordinances that regulate automated vehicle roadway systems, automated vehicle roadways, automated vehicle roadway lanes, or automated vehicle roadway system providers, except that a local unit of government may adopt an ordinance or enforce an existing ordinance that does not conflict with this section.

History: Add. 2022, Act 179, Imd. Eff. July 25, 2022

257.665d Automated vehicle roadway system and infrastructure study.

Sec. 665d.

The Michigan council on future mobility and electrification created under Executive Reorganization Order No. 2020-1, MCL 257.929, may conduct or contract with a third-party vendor to conduct a study that analyzes the impact that the development, construction, or implementation of an automated vehicle roadway, automated vehicle roadway system, or related infrastructure will have on labor and employment in areas within this state where an automated vehicle roadway, automated vehicle roadway system, or related infrastructure is developed, constructed, or implemented.

History: Add. 2022, Act 179, Imd. Eff. July 25, 2022

257.665e Departmental report to legislature; progress of automated vehicle roadways.

Sec. 665e.

Within 1 year after the effective date of the amendatory act that added this section, the state transportation department shall submit a report to the transportation committee of the house of representatives and the transportation and infrastructure committee of the senate that includes an update on the progress of developing automated vehicle roadways or automated vehicle roadway lanes including, but not limited to, discussions on the exclusive and mixed-use of the automated vehicle roadway or automated vehicle roadway lane. The report required under this section must be submitted annually for 2 years after the initial report required under this section is submitted.

History: Add. 2022, Act 179, Imd. Eff. July 25, 2022

257.666 Violation; civil infraction; other violations arising from same transaction.

Sec. 666.

(1) A person who violates this division is responsible for a civil infraction and may be fined as provided in section 907.

(2) This division does not prohibit a person from being charged with, convicted of or being found responsible for, ordered to pay a fine or costs, or punished for any other violation of law arising out of the same transaction as the violation of this division.

History: Add. 2013, Act 231, Eff. Mar. 27, 2014
Compiler's Notes: Former MCL 257.666, was repealed by Act 126 of 2000, Imd. Eff. May 30, 2000.

257.666a Operation of motor vehicles on automated vehicle roadways; compliance with MCL 257.642(3); violation as civil infraction; limited use of data.

Sec. 666a.

(1) An operator of a motor vehicle or automated motor vehicle shall not operate a motor vehicle or automated motor vehicle on an automated vehicle roadway or automated vehicle

roadway lane without complying with section 642(3). A person that violates this subsection is responsible for a civil infraction and may be fined as provided in section 907.

(2) A sworn statement of an authorized agent of the state transportation department or a police officer from the department of state police, based upon the inspection of data produced by the automated vehicle roadway system, is prima facie evidence of the facts attested to in the sworn statement. Any data indicating a violation of subsection (1) must be available for inspection in any proceeding for a violation of subsection (1). Data of noncompliance with subsection (1) that contain personal identification information must be destroyed within 90 days after final disposition of the matter. Any data that does not indicate a violation of subsection (1) that contain personal identification information must be destroyed within 10 days of collection.

(3) Evidence obtained pursuant to subsection (2) that the operator of a motor vehicle or automated motor vehicle violated subsection (1), together with proof that the individual was at the time of the violation the registered owner of the motor vehicle or automated motor vehicle, creates a rebuttable presumption that the registered owner of the motor vehicle or automated motor vehicle is the person that did not comply with subsection (1). For purposes of this subsection, the owner of a leased or rental motor vehicle or automated motor vehicle shall provide the name and address of the person to whom the vehicle was leased or rented at the time of the noncompliance. The presumption under this subsection is rebutted if either of the following applies:

(a) The registered owner of the motor vehicle or automated motor vehicle files an affidavit with the clerk of the court that states that he or she was not the operator of the motor vehicle or automated motor vehicle at the time of the violation and provides reasonable proof to accompany the affidavit.

(b) A certified copy of a police report showing that the motor vehicle or automated motor vehicle had been reported to the police as stolen before the time of the violation is presented before the appearance date on the citation.

(4) Notwithstanding section 742, a citation for a violation of subsection (1) may be executed by mailing a copy of the citation by first-class mail to the address of the owner of the motor vehicle or automated motor vehicle as shown on the records of the secretary of state. If the summoned individual fails to appear on the date of return set out in the citation previously mailed by first-class mail pursuant to this subsection, a copy of the citation must be sent by certified mail, with return receipt requested. If the summoned individual fails to appear on either of the dates of return set out in the copies of the citation mailed pursuant to this subsection, the citation must be executed in the manner provided by law for personal service.

(5) The automated vehicle roadway system shall not produce data for any purpose other than the operation of the automated vehicle roadway system or noncompliance with subsection (1).

History: Add. 2022, Act 179, Imd. Eff. July 25, 2022

SPECIAL STOPS REQUIRED

257.667 Stopping at railroad grade crossing; driving through, around, or under crossing gate or barrier; violation as civil infraction.

Sec. 667.

(1) When a person driving a vehicle approaches a railroad grade crossing under any of the following circumstances, the driver shall stop the vehicle not more than 50 feet but not less than 15 feet from the nearest rail of the railroad, and shall not proceed until the driver can do so safely:

(a) A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train or other on-track equipment.

(b) A crossing gate is lowered or a flagman gives or continues to give a signal of the approach or passage of a railroad train or other on-track equipment.

(c) A railroad train or other on-track equipment approaching within approximately 1,500 feet of the highway crossing gives a signal audible from that distance, and the railroad train or on-track equipment by reason of its speed or nearness to the crossing is an immediate hazard.

(d) An approaching railroad train or other on-track equipment is plainly visible and is in hazardous proximity to the crossing.

(2) A person shall not drive a vehicle through, around, or under a crossing gate or barrier at a railroad crossing while the gate or barrier is closed or is being opened or closed or against the direction of a police officer.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019

257.667a Installation and use of unmanned traffic monitoring devices at railroad grade crossing; civil infraction; evidence; diagnostic study team review required where fatality at public railroad grade crossing; exception.

Sec. 667a.

(1) The department of state police or the state transportation department; the county board of commissioners, board of county road commissioners, or county sheriff; or other local authority having jurisdiction over a highway or street may authorize the installation and use of unmanned traffic monitoring devices at a railroad grade crossing with flashing signals and gates on a highway or street under their respective jurisdictions. Each device shall be sufficiently marked or identified or a sign shall be placed at the approach to the crossing indicating that the crossing is monitored by an unmanned traffic monitoring device.

(2) Beginning 31 days after the installation of an unmanned traffic monitoring device at a railroad grade crossing described in subsection (1), a person is responsible for a civil infraction as provided in section 667 if the person violates a provision of that section on the basis of evidence obtained from an unmanned traffic monitoring device. However, for the first 30 days after the installation of an unmanned traffic monitoring device, a person shall be issued a written warning only. It is an affirmative defense to a charge of violating section 667 that the mechanical warning devices at the crossing were malfunctioning.

(3) A sworn statement of a police officer from the state or local authority having jurisdiction over the highway or street upon which the railroad grade crossing described in subsection (1) is located, based upon inspection of photographs, microphotographs, videotape, or other recorded images produced by an unmanned traffic monitoring device, is prima facie evidence of the facts contained therein. Any photographs, microphotographs, videotape, or other recorded images indicating such a violation shall be available for inspection in any proceeding to adjudicate the responsibility for a violation of section 667. Any photographs, videotape, or digital images of the violation shall be destroyed 90 days after final disposition of the citation.

(4) In a prosecution for a violation of section 667 established by an unmanned traffic monitoring device under this section, prima facie evidence that the vehicle described in the citation issued was operated in violation of section 667, together with proof that the defendant was at the time of the violation the registered owner of the vehicle, shall constitute in evidence a rebuttable presumption that the registered owner of the vehicle was the person who committed the violation. The presumption is rebutted if the registered owner of the vehicle files an affidavit by regular mail with the clerk of the court that he or she was not the operator of the vehicle at the time of the alleged violation or testifies in open court under oath that he or she was not the operator of the vehicle at the time of the alleged violation. The presumption also is rebutted if a certified copy of a police report, showing that the vehicle had been reported to the police as stolen before the time of the alleged violation of this section, is presented before the appearance date established on the citation. For purposes of this subsection, the owner of a leased or rental vehicle shall provide the name and address of the person to whom the vehicle was leased or rented at the time of the violation.

(5) Notwithstanding section 742, a citation for a violation of section 667 on the basis of evidence obtained from an unmanned traffic monitoring device may be executed by mailing by first-class mail a copy to the address of the owner of the vehicle as shown on the records of the secretary of state. If the summoned person fails to appear on the date of return set out in the citation previously mailed by first-class mail under this subsection, a copy shall be sent by certified mail-return receipt requested. If the summoned person fails to appear on either of the dates of return set out in the copies of the citation mailed under this section, the citation shall be executed in the manner provided by law for personal service. The court may issue a warrant for the arrest of a person who fails to appear within the time limit established on the citation if a sworn complaint is filed with the court for that purpose.

(6) If there is a fatality resulting from a train-vehicle crash at a public railroad grade crossing, the state transportation department shall convene a diagnostic study team review, if there has not been a diagnostic study team review at the crossing in the last 2 years. However, a diagnostic study team review is not required if the initial law enforcement investigation of the fatality indicates that the motorist's consumption of alcohol or a controlled substance or his or her disregard of an existing traffic control device conveying a "stop" message contributed to the fatality, or that the fatality was a suicide. The diagnostic study team review shall be conducted within 120 days after the state transportation department is made aware of the fatality. If the diagnostic study team review reaches consensus that warning device enhancements are needed, the state transportation department shall order those improvements. The cost for the improvements shall be financed consistent with the financing of similar projects by the state transportation department according to its annual prioritization of grade crossing safety improvements.

History: Add. 2000, Act 367, Imd. Eff. Jan. 2, 2001 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2006, Act 600, Imd. Eff. Jan. 3, 2007

257.668 Designating certain grade crossings as "stop" crossings or "yield" crossings; signs; duties of driver; cost of yield sign installations; action for negligence; exception for on-track equipment; failure to stop or yield as civil infraction.

Sec. 668.

(1) The state transportation department with respect to highways under its jurisdiction and the county road commissions and local authorities with respect to highways under their jurisdiction may designate certain grade crossings of railways by highways as "stop"

crossings, and erect signs at the crossings notifying drivers of vehicles upon the highway to come to a complete stop before crossing the railway tracks. When a crossing is designated and signposted as provided in this subsection, the driver of a vehicle shall stop not more than 50 feet but not less than 15 feet from the railway tracks. The driver shall then traverse the crossing when it may be done in safety.

(2) The state transportation department with respect to highways under its jurisdiction and the county road commissions and local authorities with respect to highways under their jurisdiction may designate certain grade crossings of railways by highways as yield crossings, and erect signs at the crossings notifying drivers of vehicles upon the highway to yield. Yield signs may be mounted on the same post as the crossbuck sign. Drivers of vehicles approaching a yield sign at the grade crossing of a railway shall maintain a reasonable speed based upon existing conditions and shall yield the right-of-way. The cost of yield sign installations shall be borne equally by the railroad and the governmental authority under whose jurisdiction the highway rests. The erection of or failure to erect, replace, or maintain a stop or yield sign or other railroad warning device, unless the device or sign was ordered by public authority, is not a basis for an action of negligence against the state transportation department, county road commissions, the railroads, or local authorities.

(3) If other on-track equipment does not trigger the activation of an electric or mechanical signal device, and employees of the railroad have followed all applicable railroad operating rules, there is no basis for a civil action against the railroad that operated the other on-track equipment, the state transportation department, a county road commission, or a local authority, or an employee or agent of the railroad that operated the other on-track equipment, the state transportation department, a county road commission, or a local authority.

(4) A person who fails to stop or yield as required by this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 76, Eff. Oct. 2, 1953 ;-- Am. 1961, Act 179, Eff. Sept. 8, 1961 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 101, Imd. Eff. Apr. 27, 1980 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019

257.669 Vehicles required to activate hazard warning lights and stop at railroad track grade crossing; driver to listen and look in both directions; shifting gears prohibited; exceptions; "inactive railroad track" defined; violation as civil infraction.

Sec. 669.

(1) Except as provided in subsections (2), (3), and (4), the driver of a motor vehicle transporting 16 or more passengers including the driver, a motor vehicle carrying passengers for hire, or a motor vehicle that is required to be marked or placarded under 49 CFR parts 100 to 180, before crossing a railroad track at grade, shall activate the vehicle hazard warning lights and stop the vehicle within 50 feet but not less than 15 feet from the nearest rail. While stopped, the driver shall listen and look in both directions along the track for an approaching railroad train or other on-track equipment and for signals indicating the approach of a railroad train or other on-track equipment, and shall not proceed until the driver can do so safely. After stopping as required in this subsection, and upon proceeding when it is safe to do so, the driver of the vehicle shall cross only in a gear of the vehicle that does not require changing gears while traversing the crossing. The driver shall not shift gears while crossing the track or tracks.

(2) A stop need not be made at a railroad track grade crossing where a police officer or a traffic-control signal directs traffic to proceed.

(3) A stop need not be made at an inactive railroad track grade crossing. As used in this subsection, "inactive railroad track" means a railroad track that meets all of the following requirements:

(a) The track has been covered or removed.

(b) All signs, signals, and other warning devices are removed.

(4) A stop shall not be made at a railroad grade crossing marked with a sign reading "exempt". Exempt signs may be erected only by or with the consent of the state transportation department after notice to and an opportunity to be heard by the primary railroad operating over that crossing.

(5) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1965, Act 235, Imd. Eff. July 21, 1965 ;-- Am. 1967, Act 99, Eff. Sept. 1, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1978, Act 612, Imd. Eff. Jan. 6, 1979 ;-- Am. 1988, Act 383, Eff. Apr. 1, 1989 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990 ;-- Am. 1995, Act 248, Imd. Eff. Dec. 27, 1995 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2015, Act 128, Imd. Eff. July 15, 2015 ;-- Am. 2018, Act 394, Eff. Mar. 19, 2019

257.669a Federal motor carrier safety regulations; adoption; transportation of persons and property over railroad-highway grade crossings.

Sec. 669a.

(1) This state adopts motor carrier safety regulations 49 C.F.R. 392.10 and 392.11 on file with the office of the secretary of state, to provide for the safe transportation of persons and property over railroad-highway grade crossings with the intent of following the policies and procedures of the United States department of transportation's federal motor carrier safety administration as they relate to title 49 of the code of federal regulations. For purposes of this subsection, "commercial motor vehicle" means that term as defined in section 7a.

(2) The driver of a commercial motor vehicle shall comply with a lawful order or direction of a police officer guiding, directing, controlling, or regulating traffic at a railroad-highway grade crossing.

(3) The driver of a commercial motor vehicle shall not cross a railroad-highway grade crossing unless the vehicle has sufficient undercarriage clearance.

(4) The driver of a commercial motor vehicle shall not cross a railroad-highway grade crossing unless the vehicle can be driven completely through the crossing without stopping.

(5) A person who violates this section is responsible for a civil infraction.

History: Add. 2002, Act 534, Eff. Oct. 1, 2002

257.670 Operating or moving certain vehicles or equipment upon or across steam railroad tracks at grade level; notice of intended crossing; stopping, listening, and looking; warning; violation as civil infraction.

Sec. 670.

(1) A person shall not operate or move a caterpillar tractor, shovel, derrick, roller, boiler, machinery, or other structure or object upon rollers, or other equipment or structure, which, because of its limited power, or weight, character, or load, has a normal operating speed of 4 miles per hour or less, or which has a vertical load or body clearance of less than 9 inches above the level surface of the roadway, upon or across the tracks of a railroad at grade level

without first complying with this section, except this section shall not apply to the movement of electrically propelled cars on fixed rails or to their loads.

(2) Notice of the intended crossing described in subsection (1) shall be given to the nearest agent or officer of the railroad in time to afford protection to its locomotives, trains, or cars at the crossing.

(3) Before making the crossing, the person operating or moving the vehicle or equipment shall first stop not less than 15 feet or more than 50 feet from the nearest rail of the track and while stopped shall listen and look in both directions along the track for an approaching railroad train or other on-track equipment and for signals indicating the approach of a railroad train or other on-track equipment, and shall not proceed until the crossing can be made safely.

(4) A crossing shall not be made when warning is given by automatic signal or crossing gates or a flagman or otherwise of the immediate approach of a railroad train or car.

(5) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2018, Act 392, Eff. Mar. 19, 2019

257.671 Designation of through highways; designation of stop, yield, or merge intersections; stop, yield, or merge signs; violation as civil infraction.

Sec. 671.

(1) The state highway commission with respect to highways under its jurisdiction, the county road commission, and local authorities with reference to other highways under their jurisdiction, subject to the approval of the state highway commission if a state trunk line highway, may designate through highways and erect stop, yield, or merge signs at specified entrances thereto or may designate any intersection as a stop, yield, or merge intersection and erect like signs at 1 or more entrances to the intersections.

(2) Every stop, yield, or merge sign shall be reflectorized or illuminated at night. Every stop, yield, or merge sign shall be located as near as practicable at the nearest line of the crosswalk thereat, or, if none, at the nearest line of the roadway.

(3) A person who fails to obey a stop, yield, or merge sign erected pursuant to this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 75, Imd. Eff. Apr. 11, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

STOPPING, STANDING AND PARKING

257.672 Stopping, parking or leaving vehicle upon paved or main traveled part of highway or upon paved or unpaved part of limited access highway; violation as civil infraction.

Sec. 672.

(1) Outside of the limits of a city or village, a vehicle shall not be stopped, parked, or left standing, attended or unattended, upon the paved or main traveled part of a highway, when it is possible to stop, park, or to leave the vehicle off the paved or main traveled part of the highway. Inside or outside of the limits of a city or village, a vehicle shall not be stopped, parked, or left standing, attended or unattended, upon the paved or unpaved part of a limited

access highway, except in an emergency or mechanical difficulty. This section shall apply to the stopping of school buses pursuant to the pupil transportation act.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 151, Imd. Eff. July 16, 1959 ;-- Am. 1963, Act 207, Eff. Sept. 6, 1963 ;-- Am. 1968, Act 123, Imd. Eff. June 11, 1968 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990

257.673 Removal of illegally stopped bicycles or vehicles; costs.

Sec. 673.

(a) If a police officer finds a bicycle or vehicle standing on a highway in violation of the provisions of this chapter or standing on a highway in a manner that would block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track, the police officer may remove the bicycle or vehicle, or require the driver or other person in charge of the bicycle or vehicle to move the bicycle or vehicle, to a position off the paved or improved or main traveled part of the highway, including any portion that includes streetcar tracks.

(b) If a police officer finds a bicycle or vehicle unattended on any highway where the bicycle or vehicle is an obstruction to traffic or unattended on a highway in a manner that would block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track, the police officer may provide for the removal of that bicycle or vehicle to the nearest garage, storage facility, or other place of safety.

(c) The necessary costs for removal under this section are a lien on the bicycle or vehicle and the person into whose custody the bicycle or vehicle is given may retain the bicycle or vehicle until the expenses involved are paid.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.674 Prohibited parking; exceptions; bus loading zone; violation as civil infraction.

Sec. 674.

(1) A vehicle must not be parked, except if necessary to avoid conflict with other traffic or in compliance with the law or the directions of a police officer or traffic-control device, in any of the following places:

(a) On a sidewalk.

(b) In front of a public or private driveway.

(c) Within an intersection.

(d) Within 15 feet of a fire hydrant.

(e) On a crosswalk.

(f) Within 20 feet of a crosswalk, or if there is not a crosswalk, then within 15 feet of the intersection of property lines at an intersection of highways.

(g) Within 30 feet of the approach to a flashing beacon, stop sign, or traffic-control signal located at the side of a highway.

(h) Between a safety zone and the adjacent curb or within 30 feet of a point on the curb immediately opposite the end of a safety zone, unless a different length is indicated by an official sign or marking.

(i) Within 50 feet of the nearest rail of a railroad crossing.

(j) Within 20 feet of the driveway entrance to a fire station and on the side of a street opposite the entrance to a fire station within 75 feet of the entrance if properly marked by an official sign.

(k) Alongside or opposite a street excavation or obstruction, if the stopping, standing, or parking would obstruct traffic.

(l) On the roadway side of a vehicle stopped or parked at the edge or curb of a street.

(m) Upon a bridge or other elevated highway structure or within a highway tunnel.

(n) At a place where an official sign prohibits stopping or parking.

(o) Within 500 feet of an accident at which a police officer is in attendance, if the scene of the accident is outside of a city or village.

(p) In front of a theater.

(q) In a place or in a manner that blocks immediate egress from an emergency exit conspicuously marked as an emergency exit of a building.

(r) In a place or in a manner that blocks or hampers the immediate use of an immediate egress from a fire escape conspicuously marked as a fire escape providing an emergency means of egress from a building.

(s) In a parking space clearly identified by an official sign as being reserved for use by disabled persons that is on public property or private property available for public use, unless the individual is a disabled person as described in section 19a or unless the individual is parking the vehicle for the benefit of a disabled person. In order for the vehicle to be parked in the parking space the vehicle must display 1 of the following:

(i) A certificate of identification or windshield placard issued under section 675 to a disabled person.

(ii) A special registration plate issued under section 803d to a disabled person.

(iii) A similar certificate of identification or windshield placard issued by another state to a disabled person.

(iv) A similar special registration plate issued by another state to a disabled person.

(v) A special registration plate to which a tab for persons with disabilities is attached issued under this act.

(t) In a clearly identified access aisle or access lane immediately adjacent to a space designated for parking by persons with disabilities.

(u) On a street or other area open to the parking of vehicles that results in the vehicle interfering with the use of a curb-cut or ramp by persons with disabilities.

(v) Within 500 feet of a fire at which fire apparatus is in attendance, if the scene of the fire is outside a city or village. However, volunteer fire fighters responding to the fire may park within 500 feet of the fire in a manner not to interfere with fire apparatus at the scene. A vehicle parked legally previous to the fire is exempt from this subdivision.

(w) In violation of an official sign restricting the period of time for or manner of parking.

(x) In a space controlled or regulated by a meter on a public highway or in a publicly owned parking area or structure, if the allowable time for parking indicated on the meter has expired, unless the vehicle properly displays 1 or more of the items listed in section 675(8).

(y) On a street or highway in such a way as to obstruct the delivery of mail to a rural mailbox by a carrier of the United States Postal Service.

(z) In a place or in a manner that blocks the use of an alley.

(aa) In a place or in a manner that blocks access to a space clearly designated as a fire lane.

(bb) On a streetcar track or in a manner that blocks, delays, or otherwise interferes with the movement of a streetcar on a streetcar track.

(2) A person shall not move a vehicle not owned by the person into a prohibited area under subsection (1) or away from a curb a distance that makes the parking unlawful.

(3) A bus, for the purpose of taking on or discharging passengers, may be stopped at a place described in subsection (1)(b), (d), or (f) or on the roadway side of a vehicle illegally parked in a legally designated bus loading zone. A bus, for the purpose of taking on or discharging a passenger, may be stopped at a place described in subsection (1)(n) if the place is posted by an appropriate bus stop sign, except that a bus shall not stop at such a place if the stopping is specifically prohibited by the responsible local authority, the state transportation department, or the director of the department of state police.

(4) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1977, Act 19, Eff. Oct. 1, 1977 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1978, Act 546, Imd. Eff. Dec. 22, 1978 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1985, Act 69, Imd. Eff. July 1, 1985 ;-- Am. 1986, Act 69, Eff. Mar. 31, 1987 ;-- Am. 1986, Act 222, Eff. Oct. 1, 1986 ;-- Am. 1988, Act 150, Eff. Nov. 11, 1988 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2000, Act 76, Eff. Oct. 1, 2000 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.674a Clear vision areas; parking and commercial enterprises prohibited; violation as civil infraction.

Sec. 674a.

(1) A vehicle shall not be parked in an area purchased, acquired, or used as a clear vision area adjacent to or on a highway right of way. A person shall not conduct vending or other commercial enterprises in a clear vision area.

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981

257.675 Stopping, standing, or parking of vehicle; requirements; signs; traffic control orders as rules; hearing; use of windshield placard by disabled person; courtesy required; free parking sticker; display; confiscation; false statement, deception, or fraud as misdemeanor; penalty; violation as civil infraction; cancellation, revocation, or suspension; driver, chauffeur's, or state personal identification card number; signature of physician, physician assistant, certified nurse practitioner, or physical therapist; third party reimbursement or worker's compensation; "disabled person" defined.

Sec. 675.

(1) Except as otherwise provided in this section and this chapter, a vehicle stopped or parked upon a highway or street shall be stopped or parked with the wheels of the vehicle parallel to the roadway and within 12 inches of any curb existing at the right of the vehicle.

(2) A local authority may by ordinance permit parking of a vehicle on a 1-way roadway with the vehicle's left wheels adjacent to and within 12 inches of any curb existing at the left of the vehicle.

(3) A local authority may by ordinance permit angle parking on a roadway, except that angle parking is not permitted on a state trunk line highway unless authorized by the state transportation department.

(4) The state transportation commission with respect to state trunk line highways and a board of county road commissioners with respect to county roads, acting jointly with the director of the department of state police, may place signs prohibiting or restricting the stopping, standing, or parking of vehicles on a highway where, in the opinion of the officials as determined by an engineering survey, the stopping, standing, or parking is dangerous to those using the highway or where the stopping, standing, or parking of vehicles would unduly interfere with the free movement of traffic on the highway or street. The signs shall be official signs and a person shall not stop, stand, or park a vehicle in violation of the restrictions stated on the signs. The signs shall be installed only after a proper traffic order is filed with the county clerk. Upon the application to the state transportation commission by a home rule city affected by an order, opportunity shall be given to the city for a hearing before the state transportation commission, under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, except when an ordinance of the home rule city prohibits or restricts the parking of vehicles on a state trunk line highway; when the home rule city, by lawfully authorized official action, requests the state transportation department to prohibit or restrict parking on a state trunk line highway; or when the home rule city enters into a construction agreement with the state transportation department providing for the prohibition or restriction of parking on a state trunk line highway during or after the period of construction. Traffic control orders, so long as they affect parking upon a state trunk line highway within the corporate limits of a home rule city, are considered "rules" within the meaning of the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, and upon application for a hearing by a home rule city, the proceedings before the state transportation commission shall be considered a "contested case" within the meaning of that act.

(5) A disabled person may apply, on a form prescribed by the secretary of state, for a serially numbered nontransferable temporary or permanent windshield placard for the personal use of the disabled person. An individual who has a religious objection to having a medical examination may personally apply at a branch office of the secretary of state for a serially numbered nontransferable temporary or permanent windshield placard for the personal use of the disabled individual. If it appears obvious that the individual has a qualifying disability, the individual is not required to present a medical statement attesting to the disability. The application for and the issuance of the serially numbered nontransferable temporary or permanent windshield placard is subject to all of the following:

(a) The secretary of state may issue to a disabled person with a temporary disability a temporary windshield placard that is valid for a period of not more than 6 months.

(b) The secretary of state may issue to a disabled person with a permanent disability an original or renewal permanent windshield placard that is valid for a period of not more than 4 years.

(c) An original or permanent windshield placard expires on the disabled person's fifth birthday after the date of issuance.

(d) A renewal permanent windshield placard expires on the disabled person's fourth birthday after the date of renewal.

(e) Except as otherwise provided in this subsection, not more than 45 days immediately preceding the expiration of his or her certificate or placard, a person holding a permanent windshield placard may apply for a new or renewal placard as provided in this section. However, if the person will be out of state during the 45 days immediately preceding

expiration of the placard or for other good cause shown cannot apply for a placard within the 45-day period, the person may apply for a new or renewal placard not more than 6 months before the placard expires. A placard issued or renewed under this subdivision expires as provided in this subsection.

(f) Upon application in the manner prescribed by the secretary of state for replacement of a lost, stolen, or destroyed placard described in this section, a disabled person or organization that provides specialized services to disabled persons may be issued a placard that in substance duplicates the original certificate or placard for a fee of $10.00.

(g) A placard described in this section may be used by a person other than the disabled person for the sole purpose of transporting the disabled person. An organization that provides specialized services to disabled persons may apply for and receive a permanent windshield placard to be used in any motor vehicle actually transporting a disabled person. If the organization ceases to transport disabled persons, the placard shall be returned to the secretary of state for cancellation and destruction.

(h) The secretary of state shall not issue a permanent placard to an individual under this section unless that individual has provided proof of Michigan residency.

(6) A disabled person with a certificate of identification, windshield placard, special registration plates issued under section 803d, a special registration plate issued under section 803f that has a tab for persons with disabilities attached, a certificate of identification or windshield placard from another state, or special registration plates from another state issued for persons with disabilities is entitled to courtesy in the parking of a vehicle. The courtesy shall relieve the disabled person or the person transporting the disabled person from liability for a violation with respect to parking, other than in violation of this act. A local authority may by ordinance prohibit parking on a street or highway to create a fire lane or to provide for the accommodation of heavy traffic during morning and afternoon rush hours, and the privileges extending to veterans and physically disabled persons under this subsection do not supersede that ordinance.

(7) Except as otherwise provided in subsection (20), an application for an initial free parking sticker shall contain a certification by a physician, physician assistant, certified nurse practitioner, or physical therapist licensed to practice in this state attesting to the nature and estimated duration of the applicant's disabling condition and verifying that the applicant qualifies for a free parking sticker. An individual who has a religious objection to having a medical examination may personally apply at a branch office of the secretary of state for an initial free parking sticker. If it appears obvious that the individual is unable to do 1 or more of the acts listed in subdivisions (a) to (d), the individual is not required to present a certification by a physician, a physician assistant, a certified nurse practitioner, or a physical therapist attesting to the nature and estimated duration of the applicant's disabling condition or verifying that the applicant qualifies for a free parking sticker. The applicant qualifies for a free parking sticker if the applicant is a licensed driver and the physician, physician assistant, certified nurse practitioner, or physical therapist certifies or, if an individual is not required to have a certification by a physician, a physician assistant, a certified nurse practitioner, or a physical therapist, it is obvious that the applicant is unable to do 1 or more of the following:

(a) Manage, manipulate, or insert coins, or obtain tickets or tokens in parking meters or ticket machines in parking lots or parking structures, due to the lack of fine motor control of both hands.

(b) Reach above his or her head to a height of 42 inches from the ground, due to a lack of finger, hand, or upper extremity strength or mobility.

(c) Approach a parking meter due to his or her use of a wheelchair or other device.

(d) Walk more than 20 feet due to an orthopedic, neurological, cardiovascular, or lung condition in which the degree of debilitation is so severe that it almost completely impedes the ability to walk.

(8) To be entitled to free parking in a metered space or in a publicly owned parking structure or area, a vehicle must properly display 1 of the following:

(a) A windshield placard bearing a free parking sticker issued under this act.

(b) A valid windshield placard issued by another state.

(c) A certificate of identification issued by another state.

(d) A license plate for persons with disabilities issued by another state.

(e) A special registration plate with a tab for persons with disabilities attached issued by another state.

(9) A vehicle that does not properly display 1 of the items listed in subsection (8) is not entitled to free parking in a metered parking space or in a publicly owned parking area or structure, and the disabled person or vehicle operator shall pay all parking fees and may be responsible for a civil infraction.

(10) Blindness that is not accompanied by an incapacity described in subsection (7) does not entitle a person to a free parking sticker.

(11) The secretary of state shall attach a free parking sticker, in contrasting colors, to the windshield placard of a person certified as having an incapacity described in subsection (7).

(12) A windshield placard issued under this section shall be displayed on the interior rearview mirror of the vehicle or, if there is no interior rearview mirror, on the lower left corner of the dashboard while the vehicle is parked or being parked by or under the direction of a disabled person pursuant to this section.

(13) Upon conviction of an offense involving a violation of the special privileges conferred upon a holder of a windshield placard or free parking sticker, a magistrate or judge trying the case, as a part of any penalty imposed, may confiscate the windshield placard or free parking sticker and return the confiscated item or items to the secretary of state together with a certified copy of the sentence imposed. Upon receipt of a windshield placard or free parking sticker from a judge or magistrate, the secretary of state shall cancel and destroy the placard or sticker, and the disabled person to whom it was issued shall not receive another placard or sticker until he or she submits a completed application and presents a current medical statement attesting to his or her condition. A law enforcement officer who observes a misuse of a windshield placard or free parking sticker may immediately confiscate the placard or sticker and forward it with a copy of his or her report to the secretary of state.

(14) A person who intentionally makes a false statement of material fact or commits or attempts to commit a deception or fraud on a medical statement attesting to a disability, submitted in support of an application for a windshield placard, free parking sticker, special registration plate, or tab for persons with disabilities under this section, section 803d, or section 803f, is guilty of a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for not more than 30 days, or both.

(15) A person who commits or attempts to commit a deception or fraud by 1 or more of the following methods is guilty of a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for not more than 30 days, or both:

(a) Using a windshield placard or free parking sticker issued under this section or by another state to provide transportation to a disabled person, if the person is not providing transportation to a disabled person.

(b) Altering, modifying, or selling a windshield placard or free parking sticker issued under this section or by another state.

(c) Copying or forging a windshield placard or free parking sticker described in this section or selling a copied or forged placard or sticker described in this section. In the case of a violation of this subdivision, the fine described in this subsection shall be not less than $250.00.

(d) Using a copied or forged windshield placard or free parking sticker described in this section.

(e) Making a false statement of material fact to obtain or assist an individual in obtaining a placard or sticker described in this section, a special registration plate under section 803d, or a tab for persons with disabilities under section 803f.

(f) Knowingly using or displaying a placard or sticker described in this section that has been canceled by the secretary of state.

(16) Except as otherwise provided in this section, a person who violates this section is responsible for a civil infraction.

(17) The secretary of state may cancel, revoke, or suspend a windshield placard or free parking sticker under any of the following circumstances:

(a) The secretary of state determines that a windshield placard or free parking sticker was fraudulently or erroneously issued.

(b) The secretary of state determines that a person has made or is making an unlawful use of his or her windshield placard or free parking sticker.

(c) The secretary of state determines that a check or draft used to pay the required fee is not paid on its first presentation and is not paid upon reasonable notice or demand or that the required fee is paid by an invalid credit card.

(d) The secretary of state determines that the person is no longer eligible to receive or use a windshield placard or free parking sticker.

(e) The secretary of state determines that the owner has committed an offense under this act involving a windshield placard or free parking sticker.

(f) A person has violated this act and the secretary of state is authorized under this act to cancel, revoke, or suspend a windshield placard or free parking sticker for that violation.

(g) The secretary of state receives notice from another state or foreign country that a windshield placard or free parking sticker issued by the secretary of state has been surrendered by the owner or seized in conformity with the laws of that other state or foreign country or has been improperly used or displayed in violation of the laws of that other state or foreign country.

(18) Before a cancellation, revocation, or suspension under subsection (17), the person affected by that action shall be given notice and an opportunity to be heard.

(19) A windshield placard issued to a disabled person shall bear the first letter and the last 3 digits of the disabled person's driver or chauffeur's license number or official state personal identification card number.

(20) For purposes of this section only, the secretary of state may accept an application for a windshield placard, special registration plate, or free parking sticker from a disabled person that is signed by a physician, physician assistant, certified nurse practitioner, or physical therapist licensed or certified to practice in another state if the application is accompanied by a copy of that physician's, physician assistant's, certified nurse practitioner's, or physical therapist's current medical license or certification issued by that state.

(21) This section does not require new or additional third party reimbursement or worker's compensation benefits for services rendered.

(22) As used in this section, "disabled person" means a person who is determined by a physician, a physician assistant, a physical therapist, or an optometrist as specifically provided

in this section licensed to practice in this state to have 1 or more of the following physical characteristics:

(a) Blindness as determined by an optometrist, a physician, or a physician assistant.

(b) Inability to walk more than 200 feet without having to stop and rest.

(c) Inability to do both of the following:

(i) Use 1 or both legs or feet.

(ii) Walk without the use of a wheelchair, walker, crutch, brace, prosthetic, or other device, or without the assistance of another person.

(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.

(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American Heart Association and approved by the department of public health.

(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.

(g) The persistent reliance upon an oxygen source other than ordinary air.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 47, Imd. Eff. May 14, 1951 ;-- Am. 1952, Act 90, Eff. Sept. 18, 1952 ;-- Am. 1956, Act 71, Eff. Aug. 11, 1956 ;-- Am. 1957, Act 28, Eff. Sept. 27, 1957 ;-- Am. 1959, Act 234, Eff. Mar. 19, 1960 ;-- Am. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1974, Act 41, Imd. Eff. Mar. 13, 1974 ;-- Am. 1974, Act 138, Imd. Eff. June 5, 1974 ;-- Am. 1977, Act 19, Eff. Oct. 1, 1977 ;-- Am. 1978, Act 132, Imd. Eff. May 4, 1978 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 283, Imd. Eff. Oct. 7, 1982 ;-- Am. 1986, Act 222, Eff. Oct. 1, 1986 ;-- Am. 1987, Act 257, Eff. Apr. 1, 1988 ;-- Am. 1988, Act 150, Eff. Nov. 11, 1988 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1990, Act 272, Imd. Eff. Dec. 3, 1990 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1994, Act 432, Imd. Eff. Jan. 6, 1995 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 34, Eff. Oct. 1, 1999 ;-- Am. 2001, Act 18, Imd. Eff. June 12, 2001 ;-- Am. 2002, Act 618, Imd. Eff. Dec. 23, 2002 ;-- Am. 2004, Act 151, Imd. Eff. June 15, 2004 ;-- Am. 2013, Act 247, Imd. Eff. Dec. 26, 2013 ;-- Am. 2018, Act 62, Eff. June 12, 2018 ;-- Am. 2018, Act 179, Eff. Sept. 9, 2018
Admin Rule: R 257.801 et seq. of the Michigan Administrative Code.

257.675a Unlawful standing or parked vehicle; proof; presumption.

Sec. 675a.

Except as provided under section 675b for a leased vehicle and section 675e for a shared vehicle, in a proceeding for a violation of a local ordinance or state statute relating to a standing or parked vehicle, proof that the particular vehicle described in the citation, complaint, or warrant was parked in violation of the ordinance or state statute, together with proof from the secretary of state that the defendant named in the citation, complaint, or warrant was at the time of the violation the vehicle's registered owner, creates in evidence a presumption that the vehicle's registered owner was the person who parked or placed the vehicle at the point where and at the time that the violation occurred.

History: Add. 1974, Act 78, Imd. Eff. Apr. 9, 1974 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000 ;-- Am. 2024, Act 225, Eff. Oct. 17, 2025

257.675b Unlawful standing or parked leased or rented motor vehicle; liability proof; information to be provided by owner; definitions.

Sec. 675b.

(1) The lessee or renter of a motor vehicle and not the leased vehicle owner is liable for a violation of a local ordinance or state statute relating to a standing or parked vehicle involving the motor vehicle if the leased vehicle owner furnishes proof that the vehicle described in the citation, complaint, warrant, or notice was in the possession of, custody of, or was being operated or used by the lessee or renter of the vehicle at the time of the violation.

(2) If a leased vehicle is leased or rented for 30 days or less, the leased vehicle owner may avoid liability for a violation described in subsection (1) if the leased vehicle owner provides all of the following information to the clerk of the court or parking violations bureau issuing the violation not later than 30 days after the leased vehicle owner has received notice of the violation:

(a) The lessee's or renter's name, address, and operator's or chauffeur's license number.

(b) A copy of the signed rental or lease agreement or an expedited rental agreement without signature as part of a master rental agreement, including proof of the date and time the possession of the vehicle was given to the lessee or renter and the date and time the vehicle was returned to the leased vehicle owner or the leased vehicle owner's authorized agent under the agreement.

(3) If a leased vehicle is leased or rented for 30 days or less, the leased vehicle owner is liable for a violation of a local ordinance or state statute relating to a standing or parked vehicle if 1 or more of the following occur:

(a) The leased vehicle owner does not provide the information described in subsection (2) within the 30-day period specified in that subsection.

(b) The court or parking violations bureau issuing the violation proceeds against the lessee or renter of the vehicle and the lessee or renter of the vehicle is not convicted of or found responsible for the violation.

(4) As used in this section:

(a) "Affiliate" means a person that directly or indirectly through 1 or more intermediaries controls, is controlled by, or is under common control with another person.

(b) "Leased vehicle owner" means a person in the business of renting or leasing leased vehicles or an affiliate of the person, if the person or the affiliate is the registered owner of a standing or parked leased vehicle involved in a violation of a local ordinance or state statute.

History: Add. 1974, Act 78, Imd. Eff. Apr. 9, 1974 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000

257.675c Stopping, standing, or parking violations; registered owner as person prima facie responsible for violation; affirmative defense; civil action; written indemnification agreement; applicability of subsection (3) to leased vehicle; issuing citation to operator.

Sec. 675c.

(1) Except as provided in section 675b or 675e, if a vehicle is stopped, standing, or parked in violation of section 672, 674, 674a, 675, or 676, or other state statute, or a local ordinance prohibiting or restricting the stopping, standing, or parking of a vehicle and the violation is a civil infraction, the person in whose name that vehicle is registered in this state or another

state at the time of the violation is prima facie responsible for that violation and subject to section 907.

(2) The owner of a vehicle cited for a stopping, standing, or parking violation under subsection (1) may assert as an affirmative defense that the vehicle, at the time of the violation, was in the possession of an individual who the owner had not knowingly permitted to operate the vehicle.

(3) The registered owner of a vehicle who is found to be responsible for a civil infraction as the result of subsection (1) or a leased vehicle owner as that term is defined in section 675b that is found to be responsible for a civil infraction described in section 675b has the right to recover damages in a civil action against the person who parked or stopped the vehicle, or who left the vehicle standing, including, but not limited to, the amount of any civil fine or costs, or both, imposed under section 907. The registered owner of a vehicle or the leased vehicle owner may provide in a written agreement that the person who parked or stopped the vehicle, or who left the vehicle standing, in violation of a state statute or local ordinance, when the violation is a civil infraction, shall indemnify the registered owner or the leased vehicle owner for the damages incurred, including, but not limited to, any civil fine and costs imposed on the registered owner for that civil infraction. This subsection does not apply to a leased vehicle if the court or parking violations bureau issuing the violation finds that the lessee or renter of the vehicle is not responsible for the violation and it is determined that the lessee or renter did not violate the terms of the rental contract or lease agreement.

(4) A police officer who issues a citation for a vehicle that is stopped, standing, or parked in violation of a state statute or a local ordinance that prohibits or restricts the stopping, standing, or parking of a vehicle may issue the citation for the violation to the operator of the vehicle if the operator is present at the time of the violation.

History: Add. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000 ;-- Am. 2024, Act 225, Eff. Oct. 17, 2025

257.675d Authorizing and utilizing persons other than police officers to issue citations; violations; training program; definitions.

Sec. 675d.

(1) Except as provided in subsection (2), a law enforcement agency or a local unit of government may implement and administer a program to authorize and utilize persons other than police officers as volunteers to issue citations for the following violations:

(a) Parking on a sidewalk in violation of section 674(1)(a) or a local ordinance substantially corresponding to section 674(1)(a).

(b) Parking in front of a public or private driveway in violation of section 674(1)(b) or a local ordinance substantially corresponding to section 674(1)(b).

(c) Parking within 15 feet of a fire hydrant in violation of section 674(1)(d) or a local ordinance substantially corresponding to section 674(1)(d).

(d) Parking on a crosswalk in violation of section 674(1)(e) or a local ordinance substantially corresponding to section 674(1)(e).

(e) Parking within 20 feet of a crosswalk or, if there is not a crosswalk, within 15 feet of the intersection of property lines at an intersection of highways, in violation of section 674(1)(f) or a local ordinance substantially corresponding to section 674(1)(f).

(f) Parking at a place where an official sign prohibits stopping or parking in violation of section 674(1)(n) or a local ordinance substantially corresponding to section 674(1)(n). This subdivision does not authorize a volunteer to issue a citation for any other violation set forth in section 674 or a local ordinance substantially corresponding to section 674.

(g) Parking in a space reserved for use by disabled persons in violation of section 674(1)(s) or a local ordinance substantially corresponding to section 674(1)(s).

(h) Parking in an access aisle or access lane immediately adjacent to a space designated for parking by persons with disabilities in violation of section 674(1)(t) or a local ordinance substantially corresponding to section 674(1)(t).

(i) Parking in violation of an official sign restricting the period of time for or manner of parking in violation of section 674(1)(w) or a local ordinance substantially corresponding to section 674(1)(w). This subdivision does not authorize a volunteer to issue a citation for any other violation set forth in section 674 or a local ordinance substantially corresponding to section 674.

(j) Parking in a space or in a manner that blocks access to a fire lane in violation of section 674(1)(aa) or a local ordinance substantially corresponding to section 674(1)(aa).

(k) Parking in a manner that blocks, delays, or otherwise interferes with the movement of a streetcar on a streetcar track in violation of section 674(1)(bb) or a local ordinance substantially corresponding to section 674(1)(bb).

(2) Before authorizing and utilizing persons other than police officers to issue citations, the law enforcement agency or local unit of government shall implement a program to train the persons to properly issue citations as provided in this section, of which not less than 8 hours must be in parking enforcement, conducted by that law enforcement agency or the law enforcement agency for that local unit of government or, if the local unit of government does not have a law enforcement agency, by the county sheriff. A person who successfully completes a program of training implemented under this section may issue citations as provided in this section as authorized by the law enforcement agency or local unit of government. A law enforcement agency of a local unit of government shall not implement or administer a program under this section without the specific authorization of the governing body of that local unit of government. A law enforcement agency shall not implement or administer a program under this section that would allow volunteers to issue citations under subsection (1)(a), (b), (c), (d), (e), (f), or (i) for any violations for which the use of volunteers is prohibited under a collective bargaining agreement between that local unit of government and any law enforcement officers of that local unit of government.

(3) As used in this section:

(a) "Law enforcement agency" means any of the following:

(i) A police agency of a city, village, or township.

(ii) A sheriff's department.

(iii) The department of state police.

(iv) Any other governmental law enforcement agency in this state, including, but not limited to, the transit police unit of a public body corporate established and maintained pursuant to an interlocal agreement under the urban cooperation act of 1967, 1967 (Ex Sess) PA 7, MCL 124.501 to 124.512, between a city that is authorized by the laws of this state to appoint or employ law enforcement officers and an authority under the metropolitan transportation authorities act of 1967, 1967 PA 204, MCL 124.401 to 124.426.

(b) "Local unit of government" means a state university or college or a county, city, village, or township.

History: Add. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1992, Act 230, Imd. Eff. Oct. 16, 1992 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000 ;-- Am. 2004, Act 49, Imd. Eff. Apr. 1, 2004 ;-- Am. 2008, Act 171, Imd. Eff. July 2, 2008 ;-- Am. 2010, Act 211, Imd. Eff. Nov. 17, 2010 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.675e Liability of shared vehicle driver; violations; proof.

Sec. 675e.

(1) A shared vehicle driver and not the peer-to-peer car sharing program or the shared vehicle owner is liable for a violation of a local ordinance or state statute relating to a standing or parked vehicle involving the shared vehicle if the peer-to-peer car sharing program or the shared vehicle owner furnishes the proof required under subsection (2) to show that the vehicle described in the citation, complaint, warrant, or notice was in the possession of, was in the custody of, or was being operated or used by the shared vehicle driver at the time of the violation.

(2) A peer-to-peer car sharing program and shared vehicle owner may avoid liability for a violation described in subsection (1) if the peer-to-peer car sharing program or shared vehicle owner provides all of the following information to the clerk of the court or parking violations bureau issuing the violation not later than 30 days after the shared vehicle owner has received notice of the violation:

(a) The shared vehicle driver's name, address, and operator's license number.

(b) A copy of the car sharing program agreement, showing the car sharing start time and the car sharing termination time. The car sharing program agreement may be provided in electronic form.

(3) As used in this section, "car sharing program agreement", "car sharing start time", "car sharing termination time", "peer-to-peer car sharing program", "shared vehicle", "shared vehicle driver", and "shared vehicle owner" mean those terms as defined in section 3 of the peer-to-peer car sharing program act.

History: Add. 2024, Act 225, Eff. Oct. 17, 2025

MISCELLANEOUS RULES

257.676 Unattended vehicle; setting brakes, stopping motor, placing in park, removing ignition key, and turning front wheels; vehicle with remote starter; rescission of R 28.1458; violation as civil infraction.

Sec. 676.

(1) A person shall not allow a motor vehicle to stand on a highway unattended without engaging the parking brake or placing the vehicle in park, stopping the motor of the vehicle, and removing and taking possession of the ignition key. If the vehicle is standing upon a grade, the front wheels of the vehicle shall be turned to the curb or side of the highway. This section does not apply to a vehicle that is standing in place and is equipped with a remote start feature, if the remote start feature is engaged.

(2) R 28.1458 of the Michigan Administrative Code is rescinded.

(3) A person who violates subsection (1) is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 2003, Act 184, Imd. Eff. Oct. 17, 2003 ;-- Am. 2017, Act 61, Eff. Sept. 26, 2017

257.676a Sale or display for sale of produce or merchandise within right-of-way of highway; civil infraction; issuance of permit; conditions; exceptions; logo signage; disposition of revenue.

Sec. 676a.

(1) Except as otherwise provided in this section, a person, firm, or corporation who sells or offers for sale, or displays or attempts to display for sale, goods, wares, produce, fruit, vegetables, or merchandise within the right-of-way of a highway outside of the corporate limits of a city or village, or within the right-of-way of a state trunk line highway, is responsible for a civil infraction.

(2) The state transportation department may issue a permit to a person, firm, or corporation to conduct activities described in subsection (1) if the permitted activities do not create an unsafe situation and do not interfere with transportation along the state trunk line highway. As a condition of issuing a permit under this subsection, the state transportation department shall require the municipality having jurisdiction over the site to pass a resolution authorizing the activities described in subsection (1) and may require that the municipality having jurisdiction over the site of the permitted activities agree to enforce compliance with the permit. The issuance of a permit under this subsection does not confer any property right. The state transportation department may charge a fee for issuing a permit under this subsection in an amount not greater than the administrative cost of issuing the permit.

(3) A holder of a permit issued under subsection (2) that conducts activities in violation of that permit is responsible for a civil infraction. Each day during which the permit holder conducts activities in violation of the permit is a separate violation. The state transportation department may limit or revoke a permit issued under subsection (2) if the permit holder conducts activities that create an unsafe situation or interfere with transportation along the state trunk line highway, or if the permit holder is in violation of the conditions of the permit.

(4) This section does not interfere with a permanently established business that, as of September 27, 1957, was located on or partially on private property or grant to the owner of that business additional rights or authority that the owner did not possess on September 27, 1957, or diminish the legal rights or duties of the authority having jurisdiction of the right-of-way.

(5) In conjunction with the exemption granted by federal law from the restrictions contained in 23 USC 111, and described in the "manual on uniform traffic control devices for streets and highways", U.S. department of transportation and federal highway administration, part 2g (LOGOS), this section does not prohibit the use of a facility located in part on the right-of-way of I-94 in the vicinity of the interchange of I-94 and I-69 business loop/I-94 business loop for the sale of only those articles which are for export and consumption outside the United States.

(6) This section does not prohibit the use of logo signage within the right-of-way of limited access highways. For purposes of this subsection, "logo signage" means a sign containing the trademark or other symbol that identifies a business in a manner and at locations approved by the state transportation department. The state transportation department may enter into agreements to allow logo signage, and any revenue received by the state transportation department under this subsection shall be deposited into the state trunk line fund established under section 11 of 1951 PA 51, MCL 247.661.

History: Add. 1957, Act 269, Eff. Sept. 27, 1957 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1990, Act 87, Imd. Eff. May 30, 1990 ;-- Am. 1995, Act 92, Imd. Eff. June 20, 1995 ;-- Am. 1998, Act 224, Imd. Eff. July 1, 1998 ;-- Am. 1999, Act 46, Imd. Eff. June 15, 1999 ;-- Am. 2005, Act 1, Imd. Eff. Mar. 24, 2005

257.676b Interference with normal flow of vehicular, streetcar, or pedestrian traffic prohibited; public utility facilities; solicitation of contributions on behalf of charitable or civic organization; violation as civil infraction; local regulations; "charitable or civic organization" defined.

Sec. 676b.

(1) Subject to subsection (2), a person, without authority, shall not block, obstruct, impede, or otherwise interfere with the normal flow of vehicular, streetcar, or pedestrian traffic upon a public street or highway in this state, by means of a barricade, object, or device, or with his or her person. This section does not apply to persons maintaining, rearranging, or constructing public utility or streetcar facilities in or adjacent to a street or highway.

(2) Subsection (1) and any provision of the Michigan Administrative Code that prohibits a person from standing in a roadway other than a limited access highway for the purpose of soliciting a ride, employment, or business from the occupant of any vehicle do not apply to a person who is soliciting contributions on behalf of a charitable or civic organization during daylight hours, if all of the following are satisfied:

(a) The charitable or civic organization complies with applicable local government regulations. A local government may enact or enforce regulations restricting, but not prohibiting, the activity described in this subsection.

(b) The charitable or civic organization maintains at least $500,000.00 in liability insurance.

(c) The person is 18 years of age or older.

(d) The person is wearing high-visibility safety apparel that meets current American standards promulgated by the International Safety Equipment Association.

(e) The portion of the roadway upon which the solicitation occurs is not a work zone and is within an intersection where traffic control devices are present.

(f) The solicitation does not block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track.

(3) A local government or road authority that has jurisdiction over a roadway upon which solicitation occurs as described in subsection (2) is not liable for any claim for damages arising out of the use of the roadway as described in subsection (2).

(4) A person who violates this section is responsible for a civil infraction.

(5) A local government that, on July 27, 2017, has enacted or is enforcing regulations that are prohibited under subsection (2)(a) shall bring those regulations into compliance with subsection (2)(a) no later than September 25, 2017.

(6) As used in this section, "charitable or civic organization" means a nonprofit organization that is qualified under section 501(c)(3), 501(c)(4), 501(c)(7), 501(c)(8), or 501(c)(10) of the internal revenue code of 1986, 26 USC 501, or a veterans' organization that has tax-exempt status under the internal revenue code.

History: Add. 1968, Act 151, Eff. Nov. 15, 1968 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2017, Act 112, Imd. Eff. July 27, 2017 ;-- Am. 2018, Act 75, Imd. Eff. Mar. 19, 2018 ;-- Am. 2021, Act 43, Imd. Eff. July 1, 2021

257.676c Scene of motor vehicle accident or disabled vehicle; business solicitation by wrecker, recovery, or towing service; prohibition; violation; civil fine; exception; request by owner or operator of motor vehicle.

Sec. 676c.

(1) Except as provided in subsection (2), a person shall not travel to the scene of a motor vehicle accident or a disabled vehicle located on public property, property open to the public, or a state trunk line highway and solicit business for a wrecker, recovery, or towing service. A person who violates this subsection is responsible for a civil infraction and shall be ordered to pay a civil fine of $1,000.00.

(2) Subsection (1) does not apply if any of the following conditions apply:

(a) A law enforcement agency having jurisdiction over the scene of the accident or disabled vehicle, or an individual involved in that accident or disabled vehicle, requests the owner or operator of a wrecker or towing service to come to the scene.

(b) A wrecker, recovery truck, or tow truck operator, who does not travel to the scene of a motor vehicle accident or disabled vehicle as described in subsection (1) for the purpose of soliciting business for a wrecker, recovery, or towing service, offers assistance to a stranded motorist without creating a nuisance or interfering with management of a motor vehicle accident by law enforcement.

(3) Subject to section 252d, the law enforcement agency at the scene shall permit an owner or operator of a motor vehicle to request the towing, wrecker, or recovery service or roadside assistance service of his or her choice unless the vehicle is involved in a suspected criminal activity, fatality, or law enforcement investigation, if the vehicle is being impounded, or if the requested preference wrecker service is unavailable or cannot respond within a timely manner and the vehicle is creating a road or safety hazard as determined by law enforcement at the scene.

History: Add 2014, Act 303, Eff. Jan. 7, 2015

257.676d Contract between local unit of government and wrecker, recovery, or towing service; incentives prohibited.

Sec. 676d.

(1) A local unit of government shall not require as a term of a contract with a wrecker, recovery, or towing service that the wrecker, recovery, or towing service pay a fee to that local unit of government for responding to the scene of an impound, accident, disabled vehicle, or abandoned vehicle and providing wrecker, recovery, or towing services. A local unit of government shall not accept a payment, commission, or portion of wrecker, recovery, or towing service fees from a wrecker, recovery, or towing service in exchange for securing business for that wrecker, recovery, or towing service.

(2) A wrecker, recovery, or towing service shall not offer to a local unit of government a payment, fee, or commission to induce the local unit of government to enter into a contract with or secure business for the wrecker, recovery, or towing service.

(3) This section only applies to a contract between a local unit of government and a wrecker, recovery, or towing service that is entered into or renewed after January 7, 2015.

History: Add. 2014, Act 303, Eff. Jan. 7, 2015 ;-- Am. 2020, Act 141, Eff. Oct. 6, 2020

257.677 Interference with view or control of driver or operation; violation as civil infraction.

Sec. 677.

(1) A person shall not drive a vehicle when it is loaded, or when there are in the front seat a number of persons, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

(2) A passenger in a vehicle or streetcar shall not ride in a position as to interfere with the driver's or operator's view ahead or to the sides, or to interfere with the driver's or operator's control over the driving mechanism of the vehicle or streetcar.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.677a Obstruction of safety vision by removal or deposit of snow, ice, or slush prohibited.

Sec. 677a.

(1) As used in this section:

(a) "Person" does not include the state or a political subdivision of the state or an employee of the state or a political subdivision of the state operating within the scope of his duties.

(b) "Safety vision" means an unobstructed line of sight enabling a driver to travel upon, enter, or exit a roadway in a safe manner.

(2) A person shall not remove, or cause to be removed, snow, ice, or slush onto or across a roadway or the shoulder of the roadway in a manner which obstructs the safety vision of the driver of a motor vehicle other than off-road vehicles.

(3) A person shall not deposit, or cause to be deposited, snow, ice, or slush onto or across a roadway or the shoulder of the roadway in a manner which obstructs the safety vision of the driver of a motor vehicle.

(4) A person shall not deposit, or cause to be deposited, snow, ice or slush on any roadway or highway.

(5) A person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

History: Add. 1978, Act 82, Imd. Eff. Mar. 29, 1978 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.678 Coasting prohibited; violation as civil infraction.

Sec. 678.

(1) The driver of a motor vehicle when traveling upon a down grade shall not coast with the gears of the vehicle in neutral.

(2) The driver of a commercial motor vehicle when traveling upon a down grade shall not coast with the clutch disengaged.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.679 Following or parking within certain distance of fire apparatus; violation as civil infraction.

Sec. 679.

(1) The driver of a vehicle other than a vehicle on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than 500 feet or driver into or park the vehicle within 500 feet where fire apparatus has stopped in answer to a fire alarm.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979
Compiler's Notes: The words “driver into” in subsection (1) evidently should read “drive into”.

257.679a Limited access highway; pedestrians and certain vehicles prohibited; bicycles permitted on paths; violation as civil infraction.

Sec. 679a.

(1) A person shall not operate a motorcycle with less than a 125 cubic centimeter engine, moped, farm tractor, or other self-propelled farm implement, nor shall a pedestrian, bicycle, except as provided in this section, or other nonmotorized traffic be permitted on a limited access highway in this state. Bicycles shall be permitted on paths constructed separately from the roadway and designated for the exclusive use of bicycles.

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 1961, Act 164, Eff. Sept. 8, 1961 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1969, Act 134, Imd. Eff. June 1, 1970 ;-- Am. 1974, Act 212, Imd. Eff. July 19, 1974 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.680 Driving over unprotected fire hose; violation as civil infraction.

Sec. 680.

(1) A streetcar or vehicle shall not be driven over an unprotected hose of a fire department when laid down on a street, private driveway, or streetcar track, to be used at a fire or alarm of fire, without the consent of the fire department official in command.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.681 Bus; fire extinguisher required.

Sec. 681.

(1) A person, owner, or motor carrier shall not drive a bus or cause or permit a bus to be driven or moved, unless the bus is equipped with properly filled fire extinguishers as follows:

(a) If the bus is used to transport hazardous materials and required to be marked or placarded pursuant to 49 C.F.R. parts 100 to 199, a fire extinguisher having an underwriters laboratories rating of 10 B:C or more.

(b) If the bus is not used to transport hazardous materials, either a fire extinguisher having an underwriters laboratories rating of 5 B:C or more, or 2 fire extinguishers having an underwriters laboratories rating of 4 B:C or more.

(2) The fire extinguishers required by this section shall be securely mounted on the vehicle in a location readily accessible for use. The fire extinguishers shall be designed, constructed, and maintained to permit a determination of whether they are fully charged and in proper operating condition.

(3) A fire extinguisher, required under this section, must have an extinguishing agent that does not need protection from freezing.

(4) A fire extinguisher, required under this section, must not use a vaporizing liquid that gives off vapors more toxic than those shown as having toxicity rating of 5 or 6 in the underwriters' laboratories classification of comparative life hazard of gases and vapors.

(5) Each fire extinguisher required under this section must be labeled or marked with its underwriters' laboratories rating.

History: Add. 1988, Act 219, Imd. Eff. July 1, 1988
Compiler's Notes: Former MCL 257.681, which prohibited deposit of glass, nails, rubbish or garbage on highways and required any person removing damaged vehicle from highway to remove any glass or injurious substance dropped upon highway from such vehicle, was repealed by Act 106 of 1963, Eff. Sept. 6, 1963.

257.682 Stopping for school bus displaying flashing red lights; violation as civil infraction and civil fine; meeting stopped school bus on divided highway; proof; rebuttable presumption; use of stop-arm camera system; camera-based violations; definitions.

Sec. 682.

(1) The operator of a vehicle overtaking or meeting a school bus that has stopped and is displaying 2 alternately flashing red lights located at the same level shall bring the vehicle to a full stop not less than 20 feet from the school bus and shall not proceed until the school bus resumes motion or the visual signals are no longer actuated. The operator of a vehicle that fails to stop for a school bus as required by this subsection, that passes a school bus in violation of this subsection, or that fails to stop for a school bus in violation of an ordinance that is substantially similar to this subsection, is responsible for a civil infraction and must be ordered to pay a civil fine of not less than $100.00 and not more than $500.00. A citation issued under this subsection is not a citation for a camera-based violation under subsection (4), and a civil fine for a violation of this subsection must be applied as provided in section 909(1).

(2) Except where a crosswalk or pedestrian walkway is present, the operator of a vehicle on a highway that has been divided into 2 roadways by leaving a raised intervening space, or by a physical barrier, or clearly indicated dividing sections so constructed as to impede vehicular traffic, is not required to stop upon meeting a school bus that has stopped across the raised intervening space, physical barrier, or dividing section.

(3) In a proceeding for a violation of subsection (1), proof that the particular vehicle described in the citation was in violation of subsection (1), together with proof that the defendant named in the citation was, at the time of the violation, the registered owner of the vehicle, constitutes a rebuttable presumption that the registered owner of the vehicle was the driver of the vehicle at the time of the violation.

(4) Notwithstanding any provision of law to the contrary, if the operator of a vehicle fails to stop for a school bus as required under subsection (1), or passes a school bus in violation of subsection (1), or fails to stop for a school bus in violation of an ordinance that is substantially

similar to subsection (1), and the school bus is equipped with a stop-arm camera system under section 20 of the pupil transportation act, 1990 PA 187, MCL 257.1820, the photograph captured or video recorded by the stop-arm camera system may be used as evidence in a proceeding for a camera-based violation. A school district that uses a stop-arm camera system shall provide a photograph captured or video recorded by a stop-arm camera system for use as evidence in a proceeding for a camera-based violation if requested by an investigating law enforcement agency. A photograph or video recorded by a stop-arm camera system is admissible as evidence in a proceeding for a camera-based violation to the extent permitted by the rules of evidence of this state. However, a photograph captured or video recorded by a stop-arm camera system, is not required for the prosecution of a violation of subsection (1).

(5) For a camera-based violation, the operator of a vehicle is responsible for a civil infraction and must be ordered to pay a civil fine of not less than $100.00 and not more than $500.00.

(6) For a camera-based violation, by not later than 30 days after receiving stop-arm camera system information as described in section 20 of the pupil transportation act, 1990 PA 187, MCL 257.1820, a law enforcement agency may review that information to determine if there is sufficient evidence that a violation of subsection (1) occurred and, if there is sufficient evidence that a violation occurred, may issue a citation.

(7) For a camera-based violation, if a law enforcement agency determines that it has sufficient evidence that a violation of subsection (1) has occurred, the law enforcement agency may initiate an action by mailing via first-class mail a citation to the operator of the vehicle involved in the violation. The mailing must include all of the following information:

(a) A copy of the captured photograph or selected images from a recorded video showing the vehicle involved in the violation.

(b) If the violation is based on a recorded video, a method to review the recorded video on a website.

(c) The date, time, and location of the alleged violation.

(d) A statement of the facts inferred from the captured photograph or recorded video.

(8) Notwithstanding any provision of law to the contrary, a civil fine for a camera-based violation must be paid to the county treasurer or the county treasurer's designee, who shall distribute the paid civil fines not less than monthly to the school district that operates the school bus. A school district that receives money under this subsection must use that money for school transportation safety-related purposes.

(9) As used in this section:

(a) "Camera-based violation" means a violation of subsection (1) based solely on a photograph captured or a video recorded by a stop-arm camera system.

(b) "Law enforcement agency" means any of the following:

(i) The department of state police.

(ii) The county sheriff's office.

(iii) The police department of a local unit of government.

(iv) Any other governmental law enforcement agency in this state.

(c) "Local unit of government" means a state university or college or a county, city, village, or township.

(d) "School district" means that term as defined in section 6 of the revised school code, 1976 PA 451, MCL 380.6, and a public school academy as that term is defined in section 5 of the revised school code, 1976 PA 451, MCL 380.5.

(e) "Stop-arm camera system" means that term as defined in section 5 of the pupil transportation act, 1990 PA 187, MCL 257.1805.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1956, Act 48, Eff. Aug. 11, 1956 ;-- Am. 1957, Act 284, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 160, Eff. Sept. 13, 1958 ;-- Am. 1962, Act 92, Eff. Mar. 28, 1963 ;-- Am. 1963, Act 149, Eff. Sept. 6, 1963 ;-- Am. 1969, Act 240, Eff. Mar. 20, 1970 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1982, Act 65, Imd. Eff. Apr. 8, 1982 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990 ;-- Am. 2012, Act 263, Imd. Eff. July 3, 2012 ;-- Am. 2021, Act 50, Eff. Oct. 11, 2021 ;-- Am. 2024, Act 161, Eff. Apr. 2, 2025

257.682a Device causing emission of flame or smoke from vehicle; civil infraction.

Sec. 682a.

A person who installs, sells, or distributes a device for the purpose of causing flame or smoke to be emitted from a motor vehicle, except highway maintenance vehicles, or a person who uses such a device on a motor vehicle which is not a highway maintenance vehicle on a highway of this state is responsible for a civil infraction.

History: Add. 1952, Act 22, Imd. Eff. Mar. 14, 1952 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.682b Permitting person under 18 to ride in open bed of pickup truck prohibited; exceptions; civil infraction.

Sec. 682b.

(1) Except as provided in this section, an operator shall not permit a person less than 18 years of age to ride in the open bed of a pickup truck on a highway, road, or street in a city, village, or township at a speed greater than 15 miles per hour.

(2) Subsection (1) does not apply to the operator of any of the following:

(a) A motor vehicle operated as part of a parade pursuant to a permit issued by the governmental unit with jurisdiction over the highway or street.

(b) A military motor vehicle.

(c) An authorized emergency vehicle.

(d) A motor vehicle controlled or operated by an employer or an employee of a farm operation, construction business, or similar enterprise during the course of work activities.

(e) A motor vehicle used to transport a search and rescue team to and from the site of an emergency.

(3) A person who violates this section is responsible for a civil infraction.

History: Add. 2000, Act 434, Eff. Mar. 28, 2001
Compiler's Notes: Former MCL 257.682b, which pertained to persons authorized to be transported on school bus and to first aid kits, fire extinguishers, and traffic flares, was repealed by Act 188 of 1990, Eff. Aug. 15, 1990.

257.682c Operation of commercial snow removal vehicle; yellow or amber light required; civil infraction and fine; definitions.

Sec. 682c.

(1) A person shall not operate a commercial snow removal vehicle to remove snow or ice on a public street or highway or in a parking lot accessible for use by the public unless the vehicle

is operated with at least 1 flashing, rotating, or oscillating yellow or amber light that is clearly visible in a 360-degree arc from a distance of 500 feet when in use.

(2) A person who owns or leases a commercial snow removal vehicle shall not knowingly allow a person to operate that vehicle in violation of subsection (1).

(3) A person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

(4) As used in this section:

(a) "Commercial snow removal vehicle" means a vehicle equipped with a plow or other device that is used to remove snow or ice for payment or other remuneration.

(b) "Person" means an individual, partnership, corporation, association, governmental entity, or other legal entity.

History: Add. 2012, Act 262, Imd. Eff. July 2, 2012 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

EQUIPMENT

257.683 Driving or moving vehicle in unsafe condition; condition and adjustment of parts and equipment; stopping and inspecting vehicle; citation; training requirements as motor carrier enforcement officer; additional parts and accessories; exceptions; violation as civil infraction.

Sec. 683.

(1) A person shall not drive or move or the owner shall not cause or knowingly permit to be driven or moved on a highway a vehicle or combination of vehicles that is in such an unsafe condition as to endanger a person, or that does not contain those parts or is not at all times equipped with lamps and other equipment in proper condition and adjustment as required in sections 683 to 711, or that is equipped in a manner in violation of sections 683 to 711. A person shall not do an act forbidden or fail to perform an act required under sections 683 to 711.

(2) A police officer on reasonable grounds shown may stop a motor vehicle and inspect the motor vehicle, and if a defect in equipment is found, the officer may issue the driver a citation for a violation of a provision of sections 683 to 711.

(3) In order to be classified as a motor carrier enforcement officer, a police officer must have training equal to the minimum training requirements, including any annual training updates, established by the department of state police for an officer of the motor carrier division of the department of state police. A police officer who has received training equal to these minimum training requirements before the effective date of this section is considered a motor carrier enforcement officer for purposes of this act.

(4) Sections 683 to 711 shall not prohibit the use of additional parts and accessories on a vehicle that are not inconsistent with those sections.

(5) The provisions of sections 683 to 711 with respect to equipment on vehicles shall not apply to implements of husbandry, road machinery, road rollers, or farm tractors, except as specifically provided in sections 683 to 711.

(6) Except as otherwise provided in section 698 or 707d, a person who violates a provision of sections 683 to 711 with respect to equipment on vehicles is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 2000, Act 97, Imd. Eff. May 15, 2000 ;-- Am. 2005, Act 179, Imd. Eff. Oct. 20, 2005

257.684 Head lamps; lighting, distance, height.

Sec. 684.

(a) Every vehicle upon a highway within this state at any time from a half hour after sunset to a half hour before sunrise and at any other time when there is not sufficient light to render clearly discernible persons and vehicles on the highway at a distance of 500 feet ahead shall display lighted lamps and illuminating devices as hereinafter respectively required for different classes of vehicles, subject to exceptions with respect to parked vehicles as hereinafter stated. When lighted lamps and illuminated devices are required by law no vehicle shall be operated upon any highway of this state with only the parking lights illuminated on the front of the vehicle.

(b) Whenever requirement is hereinafter declared as to the distance from which certain lamps and devices shall render objects visible or within which such lamps or devices shall be visible, said provisions shall apply during the times stated in paragraph (a) of this section upon a straight, level, unlighted highway under normal atmospheric conditions unless a different time or condition is expressly stated.

(c) Whenever requirement is hereinafter declared as to the mounted height of lamps or devices, it shall mean from the center of such lamp or device to the level ground upon which the vehicle stands when such vehicle is without a load.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1961, Act 160, Eff. Sept. 8, 1961 ;-- Am. 1963, Act 58, Eff. Sept. 6, 1963

257.684a Implement of husbandry; sale; requirements; posting standards.

Sec. 684a.

(1) Beginning January 1, 2007, a person shall not sell an implement of husbandry that does not comply with this section. This section does not apply to an implement of husbandry that was manufactured before January 1, 2007.

(2) An implement of husbandry shall comply with the following, which are incorporated by reference:

(a) ANSI/ASAE S276.6 JAN2005, Slow-Moving Vehicle Identification Emblem.

(b) ANSI/ASAE S279.12 DEC02, Lighting and Marking of Agricultural Equipment on Highways.

(3) The secretary of state shall post, on its website, the standards incorporated by reference under subsection (2) not later than 30 days after enactment of the amendatory act that added this section.

History: Add. 2006, Act 14, Imd. Eff. Feb. 9, 2006

257.685 Head lamps; number; modulator; height; auxiliary, spot, or other lamp; exemption.

Sec. 685.

(1) Except as otherwise provided in subsection (2), a motor vehicle shall be equipped with at least 2 head lamps with at least 1 head lamp on each side of the front of the motor vehicle, in compliance with this chapter. An implement of husbandry manufactured on or after January 1, 2007 shall comply with section 684a.

(2) A motorcycle or moped shall be equipped with at least 1 and not more than 2 head lamps that comply with this chapter.

(3) A motorcycle or moped head lamp may be wired or equipped to allow either its upper beam or its lower beam, but not both, to modulate from a higher intensity to a lower intensity. A head lamp modulator installed on a motorcycle or moped with 2 head lamps shall be wired in a manner to prevent the head lamps from modulating at different rates or not in synchronization with each other. A head lamp modulator installed on a motorcycle or moped shall meet the standards prescribed in 49 CFR 571.108.

(4) Every head lamp upon a motor vehicle shall be located at a height measured from the center of the head lamp of not more than 54 inches nor less than 24 inches above the level surface upon which the vehicle stands.

(5) When a motor vehicle equipped with head lamps as required in this section is also equipped with auxiliary lamps or a spot lamp or any other lamp on the front of the motor vehicle projecting a beam of an intensity greater than 300 candlepower, not more than a total of 4 of those lamps on the front of a vehicle shall be lighted at a time when upon a highway.

(6) A motor vehicle licensed as an historic vehicle is exempt from the requirements of this section if the vehicle as originally equipped failed to meet these requirements. An historic vehicle shall not be operated in violation of section 684.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 22, Imd. Eff. Apr. 19, 1957 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978 ;-- Am. 2006, Act 14, Imd. Eff. Feb. 9, 2006 ;-- Am. 2006, Act 453, Imd. Eff. Dec. 14, 2006

257.686 Rear lamps; exemption; requirements for implement of husbandry; pickup camper.

Sec. 686.

(1) A motor vehicle, trailer, semitrailer, pole trailer, or vehicle which is being drawn in a train of vehicles shall be equipped with at least 1 rear lamp mounted on the rear, which, when lighted as required by this act, shall emit a red light plainly visible from a distance of 500 feet to the rear.

(2) Either a tail lamp or a separate lamp shall be constructed and placed so as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of 50 feet to the rear. A tail lamp or tail lamps, together with any separate lamp for illuminating the rear registration plate, shall be wired so as to be lighted whenever the head lamps or auxiliary driving lamps are lighted.

(3) A motor vehicle licensed as an historic vehicle is exempt from the requirements of this section if the vehicle as originally equipped failed to meet these requirements.

(4) When operated or moved on a highway at the times specified in section 684, an implement of husbandry shall meet either of the following requirements:

(a) For implements of husbandry manufactured before January 1, 2007, the following:

(i) Display lighted rear lamps which meet the requirements of subsection (1).

(ii) Be accompanied by a vehicle which follows behind the implement of husbandry at a distance of not more than 50 feet, illuminates the implement of husbandry with the vehicle's

headlights, and displays on the rear of the vehicle lighted rear lamps as required by this section.

(b) For implements of husbandry manufactured on or after January 1, 2007, the provisions of section 684a.

(5) A pickup camper shall be attached to the motor vehicle in a manner so that the registration plate of the motor vehicle is clearly visible.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978 ;-- Am. 1987, Act 90, Imd. Eff. July 1, 1987 ;-- Am. 1990, Act 98, Eff. Jan. 1, 1991 ;-- Am. 2006, Act 14, Imd. Eff. Feb. 9, 2006

257.687 Special lamps for passenger buses, trucks and trailers.

Sec. 687.

The sections of this chapter immediately following relating to clearance and marker lamps, reflectors and stop lights shall apply as stated in said sections to vehicles of the type therein enumerated, namely: Passenger busses, trucks, truck tractors, and certain trailers, semi-trailers, and pole-trailers, respectively, when operated upon any highway, and said vehicles shall be equipped as required and all lamp equipment required shall be lighted at the times mentioned in section 684 of this chapter except that clearance and side marker lamps need not be lighted on any said vehicle when operated within any municipality where there is sufficient light to render clearly discernible persons and vehicles on the highway at a distance of 500 feet.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.688 Additional lights or reflectors on vehicles.

Sec. 688.

(1) In addition to other equipment required in this chapter, the following vehicles shall be equipped as provided in this section under the conditions stated in section 687:

(a) On every bus or truck, whatever its size, there shall be on the rear, 2 red reflectors, 1 on each side, and 1 red or amber stop light.

(b) On every bus or truck 80 inches or more in overall width, in addition to the requirements in subdivision (a), the following:

(i) On the front, 2 clearance lamps, 1 at each side.

(ii) On the rear, 2 clearance lamps, 1 at each side.

(iii) On each side, 2 side marker lamps, 1 at or near the front and 1 at or near the rear.

(iv) On each side, 2 reflectors, 1 at or near the front and 1 at or near the rear.

(v) Three identification lamps, mounted on the vertical centerline of the vehicle or the vertical centerline of the cab where different from the centerline of the vehicle, except that, if the cab is not more than 42 inches wide at the front roofline, a single lamp at the center of the cab satisfies the requirements for identification lamps. The identification lamps or their mounts shall not extend below the top of the vehicle windshield.

(c) On every truck tractor, the following:

(i) On the front, 2 clearance lamps, 1 at each side.

(ii) On the rear, 1 stop light.

(d) On every trailer, pickup camper, or semitrailer having a gross weight in excess of 3,000 pounds, the following:

(i) On the front, 2 clearance lamps, 1 at each side.

(ii) On each side, 2 side marker lamps, 1 at or near the front and 1 at or near the rear.

(iii) On each side, 2 reflectors, 1 at or near the front and 1 at or near the rear.

(iv) On the rear, 2 clearance lamps, 1 at each side, also 2 reflectors, 1 at each side, and 1 stop light.

(e) On every poletrailer, the following:

(i) On each side, 1 side marker lamp and 1 clearance lamp which may be in combination, to show to the front, side, or rear.

(ii) On the rear of the poletrailer or load, 2 reflectors, 1 on each side.

(f) On every trailer, pickup camper, or semitrailer weighing 3,000 pounds gross or less, on the rear, 2 reflectors, 1 on each side if any trailer or semitrailer is so loaded or is of such dimensions as to obscure the stop light on the towing vehicle, then such vehicle shall also be equipped with 1 stop light.

(g) Subject to subsection (3), when operated on the highway, every vehicle that has a maximum potential speed of 25 miles an hour, implement of husbandry, farm tractor, modified agriculture vehicle, or special mobile equipment shall be identified with a reflective device as follows:

(i) An equilateral triangle in shape, at least 16 inches wide at the base and at least 14 inches in height: with a dark red border, at least 1-3/4 inches wide of highly reflective beaded material.

(ii) A center triangle, at least 12-1/4 inches on each side of yellow-orange fluorescent material.

(2) The device described in subsection (1)(g) shall be mounted on the rear of the vehicle, broad base down, not less than 3 feet nor more than 5 feet above the ground and as near the center of the vehicle as possible. The use of this reflective device is restricted to use on slow moving vehicles specified in this section, and use of such reflective device on any other type of vehicle or stationary object on the highway is prohibited. On the rear, at each side, red reflectors or reflectorized material visible from all distances within 500 to 50 feet to the rear when directly in front of lawful upper beams of headlamps.

(3) An implement of husbandry manufactured on or after January 1, 2007 shall comply with section 684a.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1963, Act 211, Eff. Sept. 6, 1963 ;-- Am. 1966, Act 163, Eff. Mar. 10, 1967 ;-- Am. 1988, Act 383, Eff. Apr. 1, 1989 ;-- Am. 1990, Act 98, Eff. Jan. 1, 1991 ;-- Am. 2006, Act 14, Imd. Eff. Feb. 9, 2006 ;-- Am. 2012, Act 252, Imd. Eff. July 2, 2012

257.689 Clearance and marker lamps and reflectors; color.

Sec. 689.

(a) Front clearance lamps and those marker lamps and reflectors mounted on the front or on the side near the front of a vehicle shall display or reflect an amber color.

(b) Rear clearance lamps and those marker lamps and reflectors mounted on the rear or on the sides near the rear of a vehicle shall display or reflect a red color.

(c) All lighting devices and reflectors mounted on the rear of any vehicle shall display or reflect a red color, except the stop light or other signal device, which may be red or amber, and except that the light illuminating the license plate shall be white.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.690 Reflectors, clearance lamps, and side marker lamps; mounting.

Sec. 690.

(1) Reflectors shall be mounted at a height not less than 15 inches and not higher than 60 inches above the ground on which the vehicle stands, except that if the highest part of the permanent structure of the vehicle is less than 15 inches, the reflector at such point shall be mounted as high as that part of the permanent structure will permit.

(2) The rear reflectors on a pole-trailer may be mounted on each side of the bolster or load.

(3) Any required red reflector on the rear of a vehicle may be incorporated with the tail lamp, but such reflector shall meet all the other reflector requirements of this chapter.

(4) Clearance lamps shall be mounted on the permanent structure of the vehicle in such a manner as to indicate its extreme width and as near the top thereof as practicable. Clearance lamps and side marker lamps may be mounted in combination if illumination is given as required herein with reference to both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1988, Act 383, Eff. Apr. 1, 1989

257.691 Clearance and marker lamps and reflectors; visibility.

Sec. 691.

(a) Every reflector upon any vehicle referred to in section 689 of this chapter shall be of such size and characteristics and so maintained as to be readily visible at nighttime from all distances within 500 feet to 50 feet from the vehicle when directly in front of lawful upper beams of headlamps. Reflectors required to be mounted on the sides of the vehicle shall reflect the required color of light to the sides, and those mounted on the rear shall reflect a red color to the rear.

(b) Front and rear clearance lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the times lights are required at a distance of 500 feet from the front and rear, respectively, of the vehicle.

(c) Side marker lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the times lights are required at a distance of 500 feet from the side of the vehicle on which mounted.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.692 Combination vehicles; obstructed lights, lighting requirements.

Sec. 692.

Whenever motor and other vehicles are operated in combination during the time that lights are required, any lamp (except tail lamps) need not be lighted which, by reason of its location on a vehicle of the combination, would be obscured by another vehicle of the combination, but this shall not affect the requirement that lighted clearance lamps be displayed on the front of the foremost vehicle required to have clearance lamps, nor that all lights required on the rear of the rearmost vehicle of any combination shall be lighted.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.693 Lamp or flag on projecting load.

Sec. 693.

Whenever the load upon any vehicle extends to the rear 4 feet or more beyond the bed or body of such vehicle there shall be displayed at the extreme rear end of the load, at the times specified in section 684 hereof, a red light or lantern plainly visible from a distance of at least 500 feet to the sides and rear. The red light or lantern required under this section shall be in addition to the red rear light required upon every vehicle. At any other time there shall be displayed at the extreme rear end of such load a red flag or cloth not less than 12 inches square and so hung that the entire area is visible to the driver of a vehicle approaching from the rear.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.694 Parked vehicles; lighting.

Sec. 694.

Whenever a vehicle is parked or stopped upon a highway whether attended or unattended during the times mentioned in section 684, there shall be displayed upon the left side of such vehicle 1 or more lamps projecting a white or amber light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle and projecting a red light visible under like conditions from a distance of 500 feet to the rear, except that local authorities may provide by ordinance that no lights need be displayed upon any such vehicle when parked in accordance with local ordinances upon a highway where there is sufficient light to reveal any person within a distance of 500 feet upon such highway.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 80, Imd. Eff. June 29, 1959

257.695 Minimum lighting for all vehicles.

Sec. 695.

All vehicles, including animal-drawn vehicles, implements of husbandry, road machinery, road rollers, and farm tractors, not otherwise required under this act to be equipped with head or rear lamps, shall at the times specified in section 684 be in compliance with either of the following:

(a) For implements of husbandry manufactured before January 1, 2007, be equipped with at least 1 lighted lamp exhibiting a white light visible from a distance of 500 feet to the front of the vehicle and with a lamp exhibiting a red light visible from a distance of 500 feet to the rear of the vehicle.

(b) For implements of husbandry manufactured on or after January 1, 2007, be in compliance with section 684a.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1987, Act 90, Imd. Eff. July 1, 1987 ;-- Am. 1995, Act 221, Eff. Jan. 1, 1996 ;-- Am. 2006, Act 14, Imd. Eff. Feb. 9, 2006

257.696 Spot lamps; fog lamps.

Sec. 696.

(a) A motor vehicle may be equipped with not more than 2 spot lamps, except that a motorcycle shall not be equipped with more than 1 spot lamp, and every lighted spot lamp shall be so aimed and used upon approaching another vehicle that no part of the beam will be directed into the eyes of the approaching driver. Spot lamps may not emit other than either a white or amber light.

(b) A motor vehicle may be equipped with not more than 2 fog lamps mounted on the front at a height of not less than 12 inches nor more than 30 inches above the level surface upon which the vehicle stands, which fog lamps shall be so aimed that when the vehicle is not loaded none of the high-intensity portion of the light to the left of the center of the vehicle shall at a distance of 25 feet ahead project higher than a level 4 inches below the level of the center of the lamp from which it comes. Lighted fog lamps meeting the requirements of this subsection may be used with lower head-lamp beams.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1977, Act 38, Imd. Eff. June 22, 1977

257.697 Signal lamps or devices; exemption.

Sec. 697.

(a) A motor vehicle may be equipped and when required under this chapter shall be equipped with the following signal lamps or devices:

(1) A stop lamp on the rear which shall emit a red or amber light and which shall be actuated upon application of the service or foot brake and which may but need not be incorporated with a tail lamp.

(2) A lamp or lamps or mechanical signal device which conveys an intelligible signal or warning to another driver approaching from the rear.

(b) A stop lamp shall be capable of being seen and distinguished from a distance of 100 feet to the rear both during normal sunlight and at nighttime and a signal lamp or lamps indicating intention to turn shall be capable of being seen and distinguished during daytime and nighttime from a distance of 100 feet both to the front and rear. When a vehicle is equipped with a stop lamp or other signal lamps, the lamp or lamps shall at all times be maintained in good working condition. A stop lamp or signal lamp shall not project a glaring or dazzling light.

(c) All mechanical signal devices shall be self-illuminated when in use at the times mentioned in section 684.

(d) A motor vehicle licensed as an historic vehicle is exempt from the requirements of this section if the vehicle as originally equipped failed to meet these requirements.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978

257.697a Sale or operation of certain vehicles unlawful; exception.

Sec. 697a.

No person shall sell or offer for sale or operate on the highways any vehicles manufactured or assembled after January 1, 1955, except those exempted from certificate of title requirements under the provisions of section 216 of chapter 2 of this act, as amended, unless it is equipped with mechanical or electrical turn signals meeting the requirements of section 697. This section shall not apply to any motorcycle or motor-driven cycle.

History: Add. 1954, Act 181, Eff. Aug. 13, 1954

257.697b Rear stop lamps.

Sec. 697b.

A person shall not sell or offer for sale or operate on the highways a vehicle manufactured or assembled after January 1, 1965, except those exempted from certificate of title requirements under the provisions of section 216, unless the vehicle is equipped with 2 rear stop lamps except on a motorcycle or moped meeting the requirements of section 697. A motorcycle or moped shall be required to have 1 rear stop lamp.

History: Add. 1964, Act 150, Eff. Aug. 28, 1964 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.698 Side cowl or fender lamps; running board courtesy lamp; backing lights; lamp or reflector; flashing, oscillating, or rotating lights; private motor vehicle of security guard agency or alarm company; use of lights authorized or required under MCL 257.697, 257.697a, and 257.698a; violation as civil infraction.

Sec. 698.

(1) A motor vehicle may be equipped with not more than 2 side cowl or fender lamps that emit an amber or white light without glare.

(2) A motor vehicle may be equipped with not more than 1 running board courtesy lamp on each side that emits a white or amber light without glare.

(3) Backing lights of red, amber, or white may be mounted on the rear of a motor vehicle if the switch controlling the light is so arranged that the light may be turned on only if the vehicle is in reverse gear. The backing lights when unlighted must be covered or otherwise arranged so as not to reflect objectionable glare in the eyes of an operator of a vehicle approaching from the rear.

(4) Unless both covered and unlit, a vehicle operated on the highways of this state must not be equipped with a lamp or a part designed to be a reflector unless expressly required or permitted by this chapter or that meets the standards prescribed in 49 CFR 571.108. Except as otherwise provided, a lamp or a part designed to be a reflector, if visible from the front, must display or reflect a white or amber light; if visible from either side, must display or reflect an amber or red light; and if visible from the rear, must display or reflect a red light.

(5) The use or possession of flashing, oscillating, or rotating lights of any color is prohibited except as otherwise provided by law or under the following circumstances:

(a) A police vehicle must be equipped with flashing, rotating, or oscillating red or blue lights, for use in the performance of police duties.

(b) A fire vehicle or ambulance available for public use or for use of the United States, this state, or any unit of this state, whether publicly or privately owned, must be equipped with flashing, rotating, or oscillating red lights and used as required for safety.

(c) An authorized emergency vehicle may be equipped with flashing, rotating, or oscillating red lights for use when responding to an emergency call if when in use the flashing, rotating, or oscillating red lights are clearly visible in a 360-degree arc from a distance of 500 feet.

(d) Flashing, rotating, or oscillating amber or green lights, placed in a position as to be visible throughout an arc of 360 degrees, must be used by a state, county, or municipal vehicle engaged in the removal of ice, snow, or other material from the highway and in other operations designed to control ice and snow, or engaged in other non-winter operations. This subdivision does not prohibit the use of a flashing, rotating, or oscillating green light by a fire service.

(e) A vehicle used for the cleanup of spills or a necessary emergency response action taken under state or federal law or a vehicle operated by an employee of the department of natural resources or the department of environment, Great Lakes, and energy that responds to a spill, emergency response action, complaint, or compliance activity may be equipped with flashing,

rotating, or oscillating amber or green lights. The lights described in this subdivision must not be activated unless the vehicle is at the scene of a spill, emergency response action, complaint, or compliance activity. This subdivision does not prohibit the use of a flashing, rotating, or oscillating green light by a fire service.

(f) A vehicle to perform public utility service, a vehicle owned or leased by and licensed as a business for use in the collection and hauling of refuse, an automobile service car or wrecker, a vehicle of a peace officer, a vehicle operated by a rural letter carrier or a person under contract to deliver newspapers or other publications by motor route, a vehicle utilized for snow or ice removal under section 682c, a private security guard vehicle as authorized in subsection (7), a motor vehicle while engaged in escorting or transporting an oversize load that has been issued a permit by the state transportation department or a local authority with respect to highways under its jurisdiction, a vehicle owned by the National Guard or a United States military vehicle while traveling under the appropriate recognized military authority, a motor vehicle while towing an implement of husbandry, or an implement of husbandry may be equipped with flashing, rotating, or oscillating amber lights. However, a wrecker may be equipped with flashing, rotating, or oscillating red lights that must be activated only when the wrecker is engaged in removing or assisting a vehicle at the scene of a traffic accident or disablement. The flashing, rotating, or oscillating amber lights must not be activated except when the warning produced by the lights is required for public safety. A vehicle engaged in authorized highway repair or maintenance may be equipped with flashing, rotating, or oscillating amber or green lights. This subdivision does not prohibit the operator of a vehicle utilized for snow or ice removal under section 682c that is equipped with flashing, rotating, or oscillating amber lights from activating the flashing, rotating, or oscillating amber lights when that vehicle is traveling between locations at which it is being utilized for snow or ice removal.

(g) A vehicle engaged in leading or escorting a funeral procession or any vehicle that is part of a funeral procession may be equipped with flashing, rotating, or oscillating purple or amber lights that must not be activated except during a funeral procession.

(h) An authorized emergency vehicle may display flashing, rotating, or oscillating white lights in conjunction with an authorized emergency light as prescribed in this section.

(i) A private motor vehicle of a physician responding to an emergency call may be equipped with and the physician may use flashing, rotating, or oscillating red lights mounted on the roof section of the vehicle either as a permanent installation or by means of magnets or suction cups and clearly visible in a 360-degree arc from a distance of 500 feet when in use. The physician shall first obtain written authorization from the county sheriff.

(j) A public transit vehicle may be equipped with a flashing, oscillating, or rotating light mounted on the roof of the vehicle approximately 6 feet from the rear of the vehicle that displays a white light to the front, side, and rear of the vehicle, which light may be actuated by the driver for use only in inclement weather such as fog, rain, or snow, when boarding or discharging passengers, from 1/2 hour before sunset until 1/2 hour after sunrise, or when conditions hinder the visibility of the public transit vehicle. As used in this subdivision, "public transit vehicle" means a motor vehicle, other than a station wagon or passenger van, with a gross vehicle weight rating of more than 10,000 pounds.

(k) A person engaged in the manufacture, sale, or repair of flashing, rotating, or oscillating lights governed by this subsection may possess the lights for the purpose of employment, but shall not activate the lights upon the highway unless authorized to do so under subsection (6).

(l) A vehicle used as part of a neighborhood watch program may be equipped with flashing, rotating, or oscillating amber lights, if the vehicle is clearly identified as a neighborhood watch vehicle and the neighborhood watch program is working in cooperation with local law

enforcement. The lights described in this subdivision must not be activated when the vehicle is not being used to perform neighborhood watch program duties.

(6) A person shall not sell, loan, or otherwise furnish a flashing, rotating, or oscillating blue or red light designed primarily for installation on an authorized emergency vehicle to a person except a police officer, sheriff, deputy sheriff, authorized physician, volunteer or paid fire fighter, volunteer ambulance driver, licensed ambulance driver or attendant of this state, a county or municipality within this state, a person engaged in the business of operating an ambulance or wrecker service, or a federally recognized nonprofit charitable organization that owns and operates an emergency support vehicle used exclusively for emergencies. This subsection does not prohibit an authorized emergency vehicle, equipped with flashing, rotating, or oscillating blue or red lights, from being operated by a person other than a person described in this section if the person receives authorization to operate the authorized emergency vehicle from a police officer, sheriff, deputy sheriff, authorized physician, volunteer or paid fire fighter, volunteer ambulance driver, licensed ambulance driver or attendant, a person operating an ambulance or wrecker service, or a federally recognized nonprofit charitable organization that owns and operates an emergency support vehicle used exclusively for emergencies, except that the authorization must not permit the person to operate lights as described in subsection (5)(a), (b), (c), (i), or (j), or to exercise the privileges described in section 603.

(7) A private motor vehicle of a security guard agency or alarm company licensed under the private security business and security alarm act, 1968 PA 330, MCL 338.1051 to 338.1092, may display flashing, rotating, or oscillating amber lights. The flashing, rotating, or oscillating amber lights must not be activated on a public highway when a vehicle is in motion.

(8) This section does not prohibit, restrict, or limit the use of lights authorized or required under sections 697, 697a, and 698a.

(9) A person who operates a vehicle in violation of this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1953, Act 206, Imd. Eff. June 10, 1953 ;-- Am. 1957, Act 19, Eff. Sept. 27, 1957 ;-- Am. 1959, Act 151, Imd. Eff. July 16, 1959 ;-- Am. 1964, Act 7, Imd. Eff. Mar. 20, 1964 ;-- Am. 1975, Act 100, Eff. July 1, 1976 ;-- Am. 1976, Act 347, Imd. Eff. Dec. 21, 1976 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 37, Imd. Eff. Mar. 12, 1980 ;-- Am. 1980, Act 270, Imd. Eff. Oct. 1, 1980 ;-- Am. 1984, Act 100, Imd. Eff. May 8, 1984 ;-- Am. 1984, Act 326, Imd. Eff. Dec. 26, 1984 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990 ;-- Am. 1990, Act 335, Imd. Eff. Dec. 21, 1990 ;-- Am. 1994, Act 101, Imd. Eff. Apr. 18, 1994 ;-- Am. 1997, Act 8, Imd. Eff. May 16, 1997 ;-- Am. 1998, Act 247, Imd. Eff. July 8, 1998 ;-- Am. 2012, Act 262, Imd. Eff. July 2, 2012 ;-- Am. 2016, Act 161, Eff. Sept. 7, 2016 ;-- Am. 2017, Act 37, Eff. Aug. 21, 2017 ;-- Am. 2018, Act 278, Eff. Sept. 27, 2018 ;-- Am. 2018, Act 342, Eff. Jan. 14, 2019 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.698a Vehicular traffic hazard; front and rear warning lamps.

Sec. 698a.

Any vehicle may be equipped with lamps which may be used for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing, and when so equipped may display such warning in addition to any other warning signals required by this act. The lamps used to display such warning to the front shall be mounted at the same level and as widely

spaced laterally as practicable, and shall display simultaneously flashing white or amber lights, or any shade of color between white and amber. The lamps used to display such warning to the rear shall be mounted at the same level and as widely spaced laterally as practicable, and shall show simultaneously flashing amber or red lights, or any shade of color between amber and red. These warning lights shall be visible from a distance of not less than 500 feet under normal atmospheric conditions at night.

History: Add. 1962, Act 166, Eff. Mar. 28, 1963

257.699 Multiple beam road lighting equipment; requirements and limitations.

Sec. 699.

Except as hereinafter provided, the head lamps, or the auxiliary driving lamps, or combinations thereof, on motor vehicles shall be so arranged that selection may be made between distributions of light projected to different elevations, subject to the following requirements and limitations:

(a) Head lamps shall in all cases emit a white light. Auxiliary lamps may emit either a white or amber light.

(b) There shall be an uppermost distribution of light, or composite beam, so aimed and of an intensity as to reveal persons and vehicles at a distance of at least 350 feet ahead for all conditions of loading.

(c) There shall be a lowermost distribution of light, or composite beam, so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least 100 feet ahead; and under any condition of loading none of the high intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

(d) Every new motor vehicle except motorcycles and mopeds registered in this state which has multiple beam road lighting equipment shall be equipped with a beam indicator, which shall be lighted when the uppermost distribution of light from the head lamps is in use and shall not otherwise be lighted. The indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1954, Act 101, Eff. Aug. 13, 1954 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.700 Multiple-beam road lighting equipment; oncoming traffic; intensity.

Sec. 700.

(a) Whenever a motor vehicle is being operated on a highway or shoulder adjacent thereto during the times specified in section 684, the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the following requirements and limitations:

(b) Whenever the driver of a vehicle approaches an oncoming vehicle within 500 feet, such driver shall use a distribution of light or composite beam so aimed that the glaring rays are not projected into the eyes of the oncoming driver.

The lowermost distribution of light, specified in section 699 paragraph (c), shall be deemed to avoid glare at all times regardless of road contour and loading.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1954, Act 101, Eff. Aug. 13, 1954

257.701 Single-beam road-lighting equipment; intensity.

Sec. 701.

Head lamps arranged to provide a single distribution of light not supplemented by auxiliary driving lamps shall be permitted on motor vehicles manufactured and sold prior to the effective date of this act in lieu of multiple-beam road-lighting equipment herein specified if the single distribution of light complies with the following requirements and limitations:

1. The head lamps shall be so aimed that when the vehicle is not loaded none of the high-intensity portion of the light shall at a distance of 25 feet ahead project higher than a level of 5 inches below the level of the center of the lamp from which it comes, and in no case higher than 42 inches above the level on which the vehicle stands at a distance of 75 feet ahead.

2. The intensity shall be sufficient to reveal persons and vehicles at a distance of at least 200 feet.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.702 Head lamps on mopeds; single beam or multiple beam type; requirements and limitations.

Sec. 702.

The head lamp or head lamps upon every moped may be of the single beam or multiple beam type, but in either event shall comply with the requirements and limitations as follows:

(1) Every head lamp or head lamps on a moped shall be of sufficient intensity to reveal a person or a vehicle at a distance of not less than 100 feet.

(2) If the moped is equipped with a multiple beam head lamp or head lamps, the upper beam shall meet the minimum requirements set forth above and shall not exceed the limitations set forth in section 699(b) and the lowermost beam shall meet the requirements applicable to a lowermost distribution of light, as set forth in section 699(c).

(3) If the moped is equipped with a single beam lamp or lamps, the lamp or lamps shall be so aimed that when the vehicle is loaded none of the high intensity portion of light, at a distance of 25 feet ahead, shall project higher than the level of the center of the lamp from which it comes.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.703 Slow-moving vehicles; reduced lighting power.

Sec. 703.

Any motor vehicle may be operated under the conditions specified in section 684 when equipped with 2 lighted lamps upon the front thereof capable of revealing persons and objects 75 feet ahead in lieu of lamps required in section 699 or section 701: Provided, however, That at no time shall it be operated at a speed in excess of 20 miles per hour.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.704 Special restriction as to direction of certain lights.

Sec. 704.

Any lighted lamp or illuminating device upon a motor vehicle other than head lamps, spot lamps, auxiliary lamps, or flashing front direction signals which projects a beam of light of an intensity greater than 300 candlepower shall be so directed that no part of the beam will strike the level of the roadway on which the vehicle stands at a distance of more than 75 feet from the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.705 Brake equipment.

Sec. 705.

(1) Brake equipment shall be required as follows:

(a) A motor vehicle, other than a motorcycle or moped, and a low-speed vehicle when operated upon a highway shall be equipped with brakes adequate to control the movement of and to stop and hold the vehicle, including 2 separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least 2 wheels. If these 2 separate means of applying the brakes are connected in any way, they shall be constructed in a way that failure of 1 part of the operating mechanism shall not leave the motor vehicle without brakes on at least 2 wheels.

(b) A motorcycle or moped when operated upon a highway shall be equipped with at least 2 brakes, 1 on the front wheel and 1 on the rear wheel, that may be operated by hand or foot.

(c) A trailer or semitrailer of a gross weight of 15,001 pounds or more when operated upon a highway shall be equipped with brakes operating on all wheels and designed to be applied by the driver of the towing motor vehicle from its cab.

(d) A new motor vehicle, trailer, or semitrailer sold in this state and operated upon the highways shall be equipped with brakes on all wheels, except a motorcycle or moped, and except that a semitrailer, pole trailer, or trailer of less than 3,000 pounds gross weight need not be equipped with brakes if the gross weight of a trailer or pole trailer, no part of the load of which rests upon the towing vehicle, does not exceed 40% of the gross weight of the towing vehicle, and if the gross weight of the towing vehicle and the gross weight of a semitrailer or pole trailer, part of the load of which rests upon the towing vehicle, does not exceed 40% of the gross weight of the towing vehicle when connected to the semitrailer or pole trailer. This subdivision does not apply to a trailer or semitrailer owned by a farmer and used exclusively in connection with the farming operations of the farmer and not used for hire.

(e) Every bus, school bus, truck, or truck tractor shall be equipped with brakes operating on all wheels, except that a truck or truck tractor that has 3 or more axles need not have brakes on the front wheels if the vehicle was manufactured before July 25, 1980.

(f) In any combination of motor driven vehicles, means shall be provided for applying the rearmost trailer brakes, for a trailer equipped with brakes, in approximate synchronism with the brakes on the towing vehicle and developing the required braking effort on the rearmost wheels at the fastest rate; or means shall be provided for applying braking effort first on the rearmost trailer equipped with brakes; or both of the above means capable of being used alternatively may be employed.

(g) A motor vehicle and combination of vehicles, except pole trailers, motorcycles, and mopeds, shall be equipped with parking brakes adequate to hold the vehicle on any grade on which it is operated, under all conditions of loading on a surface free from snow, ice, or loose material. The parking brakes shall be capable of being applied in conformance with the foregoing requirements by the driver's muscular effort or by spring action or by equivalent means. Their operation may be assisted by the service brakes or other source of power if

failure of the service brake actuation system or other power assisting mechanism will not prevent the parking brakes from being applied in conformance with the foregoing requirements. The parking brakes shall be designed in a manner that when once applied they shall remain applied with the required effectiveness despite exhaustion of any source of energy or leakage of any kind. The same brake drums, brake shoes, and lining assemblies, brake shoe anchors, and mechanical brake shoe actuation mechanism normally associated with the wheel brake assemblies may be used for both the service brakes and the parking brakes. If the means of applying the parking brakes and the service brakes are connected in any way, they shall be constructed in a manner that failure of 1 part shall not leave the vehicle without operative brakes.

(h) The brake shoes operating within or upon the drums of the vehicle wheels of a motor vehicle may be used for both service and hand operation.

(2) A motor vehicle or combination of motor-drawn vehicles shall be capable at all times and under all conditions of loading, of being stopped on a dry, smooth, level road free from loose material within the distances specified in this subsection, or shall be capable of being decelerated at a sustained rate corresponding to these distances upon initial application of the service (foot) brake.

	Feet to stop from 20 miles per hour	Deceleration in feet per second
Vehicles or combination of vehicles having brakes on all wheels	30	14
Vehicles or combination of vehicles not having brakes on all wheels	40	10.7

(3) Subsection (2) does not apply to a combination of motor-drawn vehicles under all of the following circumstances:

(a) The drawn vehicle is an implement of husbandry.

(b) The motor vehicle hauling the implement of husbandry does not exceed a maximum speed of 25 miles per hour if the implement of husbandry being drawn is not equipped with brakes that meet the standards set forth in 49 CFR 393.40 and this act.

(c) If the implement of husbandry being drawn does not exceed any other implement or component design maximum speed limitation, the combination of vehicles shall not exceed that maximum speed limitation.

(4) Nothing in this act or rules promulgated under this act requires a slasher saw table to be equipped with brakes.

(5) All brakes shall be maintained in good working order and shall be adjusted in a manner as to operate as equally as practicable with respect to the wheels on the opposite side of the vehicle.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1964, Act 29, Imd. Eff. May 1, 1964 ;-- Am. 1969, Act 134, Imd. Eff. June 1, 1970 ;-- Am. 1974, Act 60, Imd. Eff. Apr. 1, 1974 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1988, Act 357, Eff. Apr. 1, 1989 ;-- Am. 1995, Act 91, Imd. Eff. June 20, 1995 ;-- Am. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2000, Act 214, Imd. Eff. June 27, 2000 ;-- Am. 2011, Act 151, Imd. Eff. Sept. 21, 2011

Compiler's Notes: In subsection (2), the second column heading that reads “Deceleration in feet per second” evidently should read “Deceleration in feet per second per second.”

257.705a Brake fluid specifications.

Sec. 705a.

On and after January 1, 1961, no person shall have for sale, or sell or offer for sale, for use in motor vehicle brake systems in this state, any hydraulic brake fluid which does not meet the minimum specifications of the society of automotive engineers for heavy duty brake fluid, as prescribed March 1, 1960.

History: Add. 1960, Act 60, Eff. Aug. 17, 1960

257.706 Horn or other warning device; siren, whistle, air horn, or bell; theft alarm signal device.

Sec. 706.

(a) A motor vehicle, including a motorcycle or moped, when operated upon a highway shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than 200 feet but a horn or other warning device shall not emit an unreasonably loud or harsh sound or a whistle. The driver of a motor vehicle shall when reasonably necessary to insure safe operation give audible warning with his horn but shall not otherwise use the horn when upon a highway.

(b) A vehicle shall not be equipped with nor shall a person use upon a vehicle a siren, whistle, or bell, except as otherwise permitted in this section.

(c) A commercial vehicle may be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal.

(d) An authorized emergency vehicle may be equipped with a siren, whistle, air horn, or bell capable of emitting sound audible under normal conditions from a distance of not less than 500 feet, but the siren shall not be used except when the vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law. In those cases the driver of the vehicle shall sound the siren when necessary to warn pedestrians and other drivers of the approach of the vehicle.

(e) A motor vehicle licensed as an historic vehicle may be equipped with a siren, whistle, or bell which may be used when participating in a parade, exhibition, tour, or similar event.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1969, Act 134, Imd. Eff. June 1, 1970 ;-- Am. 1975, Act 100, Eff. July 1, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978

257.707 Muffler, engine, power mechanism, and exhaust system; requirements; prohibitions.

Sec. 707.

(1) A motor vehicle, including a motorcycle or moped, shall at all times be equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke. A person shall not remove, destroy, or damage any of the baffles contained in the muffler, nor shall a person use a muffler cutout, bypass, or similar device upon a motorcycle or moped on a highway or street.

(2) The engine and power mechanism of a motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.

(3) A motor vehicle shall at all times be equipped with a properly operating exhaust system which shall include a tailpipe and resonator on a vehicle where the original design included a tailpipe and resonator.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1969, Act 134, Imd. Eff. June 1, 1970 ;-- Am. 1976, Act 44, Imd. Eff. Mar. 17, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.707a Definitions used in MCL 257.707a to 257.707e.

Sec. 707a.

As used in sections 707a to 707e:

(a) "Decibel" means a unit of sound level on a logarithmic scale measured relative to the threshold of audible sound by the human ear, in compliance with American national standards institute standard S 1.1-1960.

(b) "Decibels on the a-weighted network" or "DBA" means decibels measured on the a-weighted network of a sound level meter, as specified in American national standards institute standard S 1.4-1971.

(c) "Fast meter response" means the meter ballistics of meter dynamic characteristics as specified by American national standard S 1.4-1971.

(d) "Maximum noise" means the noise emitted from a vehicle during that manner of operation which causes the highest DBA level possible from that vehicle.

(e) "Muffler" means a device for abating the sound of escaping gases of an internal combustion engine.

(f) "Exhaust system" means the system comprised of a combination of components which provides for enclosed flow of exhaust gas from engine parts to the atmosphere.

(g) "Noise" means any sound.

(h) "Total noise" means noises radiating from a vehicle but does not include noises emitted from a horn, siren, bell or other similar device of an authorized emergency vehicle.

(i) "Gross vehicle weight rating" means the value specified by the manufacturer as the loaded weight of a vehicle.

(j) "Combination vehicle" means any combination of truck, truck tractor, trailer, semi-trailer or pole trailer used upon the highways or streets in the transportation of passengers or property.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978 ;-- Am. 1978, Act 492, Imd. Eff. Dec. 1, 1978

257.707b Exhaust system; requirements.

Sec. 707b.

(1) A motor vehicle, while being operated on a highway or street, shall be equipped with an exhaust system in good working order to prevent excessive or unusual noise and shall be equipped to prevent noise in excess of the limits established in this act.

(2) For purposes of sections 707a to 707f, a motor vehicle does not include a special mobile equipment.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978

257.707c Noise limitations; prohibitions; violation as civil infraction.

Sec. 707c.

(1) A motor vehicle must not be operated or driven on a highway or street if the motor vehicle produces total noise exceeding 1 of the following limits at a distance of 50 feet except as provided in subdivisions (b)(iii) and (c)(iii):

(a) A motor vehicle with a gross weight or gross vehicle weight rating of 8,500 pounds or more, combination vehicle with gross weight or gross vehicle weight ratings of 8,500 pounds or more.

(i) Ninety DBA if the maximum lawful speed on the highway or street is greater than 35 miles per hour.

(ii) Eighty-six DBA if the maximum lawful speed on the highway or street is not more than 35 miles per hour.

(iii) Eighty-eight DBA under stationary run-up test.

(b) A motorcycle or a moped:

(i) Eighty-six DBA if the maximum lawful speed on the highway or street is greater than 35 miles per hour.

(ii) Eighty-two DBA if the maximum lawful speed on the highway or street is not more than 35 miles per hour.

(iii) Ninety-five DBA under stationary run-up test at 75 inches.

(c) A motor vehicle or a combination of vehicles towed by a motor vehicle not covered in subdivision (a) or (b):

(i) Eighty-two DBA if the maximum lawful speed on the highway or street is greater than 35 miles per hour.

(ii) Seventy-six DBA if the maximum lawful speed on the highway or street is not more than 35 miles per hour.

(iii) Ninety-five DBA under stationary run-up test 20 inches from the end of the tailpipe.

(2) A dealer shall not sell or offer for sale for use upon a street or highway in this state a new motor vehicle that produces a maximum noise exceeding the following limits:

(a) A motor vehicle with a gross vehicle weight rating of 8,500 pounds or more—83 DBA.

(b) A motorcycle or a moped—83 DBA.

(c) A motor vehicle not covered in subdivision (a) or (b)—80 DBA.

(3) A person shall not operate a vehicle on a highway or street if the vehicle has a defect in the exhaust system that affects sound reduction, is not equipped with a muffler or other noise dissipative device, or is equipped with a cutout, bypass, amplifier, or a similar device.

(4) A person, either acting for himself or herself or as the agent or employee of another, shall not sell, install, or replace a muffler or exhaust part that causes the motor vehicle to which the muffler or exhaust part is attached to exceed the noise limits established by this act or a rule promulgated under this act.

(5) A person shall not modify, repair, replace, or remove a part of an exhaust system causing the motor vehicle to which the system is attached to produce noise in excess of the levels established by this act, or operate a motor vehicle so altered on a street or highway.

(6) A dealer shall not sell a used or secondhand motor vehicle for use upon a street or highway that is not in compliance with this act.

(7) A person who violates this section is responsible for a civil infraction and shall be ordered to pay a civil fine of not more than $100.00.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978 ;-- Am. 1978, Act 492, Imd. Eff. Dec. 1, 1978 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021

257.707d Violations; penalties; liability; prima facie evidence.

Sec. 707d.

(1) A person who violates section 707c(2), (4), or (6) is guilty of a misdemeanor punishable by a fine of $100.00.

(2) A person who violates section 707b or 707c(1), (3), or (5) is responsible for a civil infraction.

(3) A person who, at the time of installation, knowingly installs a muffler or exhaust system which exceeds the decibel limits of this act shall be liable to the person who receives a citation for violation of 707c for the amount of not less than $100.00, plus reasonable attorney fees and court costs.

(4) If it is shown that the noise level of a motor vehicle is in excess of the DBA levels established in this act, that evidence shall be prima facie evidence that the motor vehicle was producing excessive noise in violation of this act.

(5) A violation of section 707c(4) or (6) by a dealer licensed under this act is prima facie evidence of a fraudulent act under section 249.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979

257.707e Test instrumentation and procedures; rules; local vehicle noise rules.

Sec. 707e.

(1) Test instrumentation and procedures used for implementation and enforcement of sections 707a to 707d shall substantially conform with applicable standards and recommended practices established by the society of automotive engineers, inc., and the American national standards institute, inc., for the measurement of motor vehicle sound levels. Rules establishing these test procedures shall be promulgated by the department of state highways and transportation. The rules may provide for measurement at other than the distance specified in section 707c, provided that the decibel limits applied at the other distances are adjusted accordingly, to meet the standards in section 707c. The rules shall be promulgated pursuant to Act No. 306 of the Public Acts of 1969, as amended, being sections 24.201 to 24.315 of the Michigan Compiled Laws.

(2) This act occupies the whole field of vehicle noise regulation. A city, county, village, or township shall not adopt or enforce vehicle noise rules unless the rules are identical to the requirements of this act.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978

257.707f Appropriation.

Sec. 707f.

Funds shall be appropriated annually from the motor vehicle highway fund to implement sections 707a to 707e.

History: Add. 1978, Act 73, Imd. Eff. Mar. 21, 1978

257.708 Mirrors.

Sec. 708.

A person shall not drive a motor vehicle on a highway which is so constructed or loaded as to prevent the driver from obtaining a view of the highway to the rear by looking backward from the driver's position, unless the vehicle is equipped with a mirror located so as to reflect

to the driver a view of the highway to the rear of the vehicle. In addition all motor vehicles shall be equipped with an outside rearview mirror on the driver's side which shall be positioned to give the driver a rearviewing angle from the driver's side of the vehicle, except a motor vehicle licensed as an historic vehicle if the vehicle was not originally equipped with an outside rearview mirror. Rearview mirrors may be positioned on the helmet or visor worn by the operator of a motorcycle if the helmet is securely attached to the head of the operator. Every commercial vehicle of 1/2 ton capacity or more, operating upon the public highways of this state, shall be equipped with 2 mirrors, 1 on each side, adjusted so that the operator shall have a clear view of the highway behind the commercial vehicle. The outside mirrors shall not be considered to be a part of the vehicle for the purpose of determining the maximum width under section 717.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1967, Act 90, Eff. Jan. 1, 1968 ;-- Am. 1970, Act 94, Imd. Eff. July 20, 1970 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978

257.708a Windshields; goggles, eyeglasses, or face shields.

Sec. 708a.

A motor vehicle shall not be operated on the public highways of this state unless it is equipped with a windshield of sufficient dimensions to protect the driver and occupants from insects, other airborne objects, and highway surface water and debris, when the motor vehicle is moving forward. A farm tractor, other implement of husbandry, and historic vehicles as defined in section 803a are exempt from this section. When a motorcycle operated on the public highways of this state in excess of 35 miles per hour is not equipped with a windshield, the operator shall wear goggles with transparent lenses or a transparent face shield or eyeglasses, which goggles, eyeglasses, or face shield shall be of shatter resistant material and of sufficient size to protect his eyes against insects, other airborne material, and highway surface water and debris.

History: Add. 1968, Act 142, Eff. Sept. 1, 1968 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977

257.708b Operating motor vehicle with television or similar electronic device viewable by operator prohibited; exceptions; location of permitted visual device; special permit for research vehicle; violation as civil infraction.

Sec. 708b.

(1) A person shall not operate a motor vehicle that is to be used upon the highways of this state with a television or other similar electronic device that displays a video image that can be viewed by the operator while the motor vehicle is in motion.

(2) This section does not apply to:

(a) An audio entertainment system, heating or air-conditioning controls, or other accessory controls in the motor vehicle.

(b) A vehicle information or navigation system for use in displaying only information pertaining to vehicle location, available routes and destinations, road layouts, weather conditions, traffic and road conditions, vehicle conditions, or traveler services.

(c) A research vehicle if the test plan for the vehicle has been approved by a process meeting federal guidelines established in 45 CFR part 46 for the protection of human beings and the vehicle has been issued a special registration permit by the secretary of state.

(d) A motor vehicle equipped with a video display to enhance or supplement the driver's view.

(e) A police vehicle, fire vehicle, or ambulance equipped with a monitor for use with a computer-aided dispatch system or emergency equipment controls.

(f) A police vehicle equipped with a monitor for use with recording equipment.

(g) A motor vehicle equipped with a video display to communicate vehicle, driver, or safety conditions.

(3) Except as otherwise provided in this subsection, a visual device permitted under subsection (2)(a) or (b) shall be built into the dashboard, center console, instrument panel, rearview mirror, or other control area of the vehicle and shall meet all applicable federal motor vehicle dash safety standards. An aftermarket visual device described in subsection (2)(a) or (b) may be installed or mounted on the windshield or above the dashboard, but shall not be mounted within the deployment profile of the vehicle airbags or in a manner that interferes with the operator's view or control. This subsection does not apply to a research vehicle described in subsection (2)(c).

(4) Upon receipt of a completed application, on a form prescribed by the secretary of state, and payment of a fee of $10.00, the secretary of state may issue a special permit authorizing a research vehicle to use the highways of this state. A copy of the authority received by the applicant under subsection (2)(c) shall be submitted as part of the application for the special permit. The special permit may be in a form as prescribed by, and shall be displayed on a research vehicle in a manner determined by, the secretary of state. The special permit shall expire upon completion of or expiration of the specific test plan approved under subsection (2)(c), whichever occurs first, and shall be immediately removed from the research vehicle and destroyed. A special permit shall not be transferred to another vehicle or person. The fee collected under this subsection shall be credited to the Michigan transportation fund and used to defray the expenses of the secretary of state in administering the special permit program. In addition to a special permit, the appropriate vehicle registration plate shall be displayed on a research vehicle to use a highway of this state.

(5) A person who violates this section is responsible for a civil infraction.

History: Add. 1991, Act 55, Imd. Eff. June 27, 1991 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2008, Act 19, Imd. Eff. Mar. 7, 2008

257.709 Windshields and windows; prohibitions; rearview mirrors; exceptions; windshield wipers; exemption; hot air windshield defroster or electrically heated windshield or other device; windshield device; definitions.

Sec. 709.

(1) A person shall not operate a motor vehicle with any of the following:

(a) A sign, poster, nontransparent material, window application, reflective film, or nonreflective film upon or in the front windshield, the side windows immediately adjacent to the driver or front passenger, or the sidewings adjacent to and forward of the driver or front passenger, except that a tinted film may be used along the top edge of the windshield and the side windows or sidewings immediately adjacent to the driver or front passenger if the material does not extend more than 4 inches from the top of the windshield, or lower than the shade band, whichever is closer to the top of the windshield.

(b) A rear window or side window to the rear of the driver composed of, covered by, or treated with a material that creates a total solar reflectance of 35% or more in the visible light range, including a silver or gold reflective film.

(c) An object that obstructs the vision of the driver of the vehicle, except as authorized by law.

(2) A person shall not drive a motor vehicle if driver visibility through the rear window is obstructed, unless the vehicle is equipped with 2 rearview mirrors, 1 on each side, adjusted so that the operator has a clear view of the highway behind the vehicle.

(3) This section does not apply to any of the following:

(a) The use of draperies, louvers, or other special window treatments, except those specifically designated in this section, on the rear window, or a side window to the rear of the driver if the vehicle is equipped with 2 outside rearview mirrors, 1 on each side, adjusted so that the driver has a clear view of the highway behind the vehicle.

(b) The use of a nonreflective, smoked or tinted glass, nonreflective film, perforated window screen, or other decorative window application on the rear window or a side window to the rear of the driver.

(c) The placement of a necessary certificate or sticker that does not obstruct the driver's clear view of the roadway or an intersecting roadway.

(d) A vehicle registered in another state, territory, commonwealth of the United States, or another country or province.

(e) A special window treatment or application determined necessary by a physician or optometrist, for the protection of a person who is light sensitive or photosensitive, if the owner or operator of a motor vehicle has in possession a letter signed by a physician or optometrist, indicating that the special window treatment or application is a medical necessity. However, the special window treatment or application shall not interfere with or obstruct the driver's clear vision of the highway or an intersecting highway.

(4) Except as provided in subsection (5), the windshield on each motor vehicle shall be equipped with a device for cleaning rain, snow, or other moisture from the windshield, which device shall be so constructed as to be controlled or operated by the driver of the vehicle. A vehicle licensed as an historical vehicle is exempt from this subsection if the vehicle was not originally equipped with such a device. Each windshield wiper upon a motor vehicle shall be maintained in good working order.

(5) A truck with a gross weight over 10,000 pounds, a truck tractor, a bus, or a truck regardless of weight carrying hazardous materials on which a placard is required to be posted pursuant to 49 CFR parts 100 to 199 having a windshield shall be equipped with not less than 2 automatically operating windshield wiper blades, 1 on each side of the centerline of the windshield, for cleaning rain, snow, or other moisture from the windshield. The blades shall be in such condition as to provide clear vision for the driver, unless 1 blade is so arranged as to clean an area of the windshield extending to within 1 inch of the limit of vision through the windshield at each side. However, in driveaway-towaway operations, this subsection applies only to the operated vehicle. In addition, 1 windshield wiper blade suffices under this subsection when the driven vehicle in a driveaway-towaway operation constitutes part or all of the property being transported and has no provision for 2 blades. A truck and truck tractor, manufactured after June 30, 1953, that depends upon vacuum to operate the windshield wipers, shall be so constructed that the operation of the wipers is not materially impaired by change in the intake manifold pressure.

(6) A truck with a gross weight over 10,000 pounds, a truck tractor, a bus, or a truck regardless of weight carrying hazardous materials on which a placard is required to be posted under 49 CFR parts 100 to 199 shall not be operated on the highways at any time unless it is equipped with a hot air windshield defroster or an electrically heated windshield or other device to heat and maintain the windshield in operable condition at all times.

(7) As used in this section:

(a) "Physician" means that term as defined in section 17001 or 17501 of the public health code, 1978 PA 368, MCL 333.17001 and 333.17501.

(b) "Optometrist" means that term as defined in section 17401 of the public health code, 1978 PA 368, MCL 333.17401.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 142, Eff. Sept. 28, 1951 ;-- Am. 1954, Act 167, Eff. Aug. 13, 1954 ;-- Am. 1955, Act 174, Eff. Oct. 14, 1955 ;-- Am. 1958, Act 23, Eff. Sept. 13, 1958 ;-- Am. 1978, Act 55, Imd. Eff. Mar. 10, 1978 ;-- Am. 1980, Act 220, Eff. Mar. 31, 1981 ;-- Am. 1988, Act 383, Eff. Apr. 1, 1989 ;-- Am. 1988, Act 470, Eff. Apr. 1, 1989 ;-- Am. 2000, Act 127, Imd. Eff. May 30, 2000 ;-- Am. 2010, Act 258, Imd. Eff. Dec. 14, 2010

257.710 Tires; studs or other traction devices; rules; exceptions; use or sale of unsafe tires prohibited.

Sec. 710.

(a) A person shall not operate on a public highway of this state a vehicle or special mobile equipment which has metal or plastic track or a tire which is equipped with metal that comes in contact with the surface of the road or which has a partial contact of metal or plastic with the surface of the road, except as provided in subsections (c), (d), and (e).

(b) A person shall not operate on a highway a vehicle which has a tire that has on its periphery a block, stud, flange, cleat, spike, or other protuberance of a material other than rubber which projects beyond the tread of the traction surface of the tire, except as provided in subsections (c), (d), and (e). A person may, however, use farm machinery with a tire having a protuberance which will not injure a highway. A person may also use a tire chain of reasonable proportion upon a vehicle when required for safety because of snow, ice, or other condition tending to cause a vehicle to skid.

(c) A person may operate on a highway a vehicle which has a pneumatic tire in which wire of .075 inches in diameter or less is embedded if the tire is constructed so that the percent of metal in contact with the highway does not exceed 5% of the total tire area in contact with the roadway, except that during the first 1,000 miles of use or operation of the tire the metal in contact with the highway shall not exceed 20% of the area.

(d) The department of state highways and transportation shall promulgate rules establishing acceptable standards to permit the use of a tire with studs or other traction devices to be used on a street or highway after April 1, 1975. The rules shall make separate provision for the extreme winter snow and ice conditions of the Upper Peninsula and the northern Lower Peninsula. The rules shall include a restriction on the amount and dimension of protrusions that may be allowed on a tire, the type of material that may be used in a stud, traction device, or tire, and the amount of road wear that a tire with studs or other traction devices may cause on a street or highway.

(e) A person may operate on a highway a vehicle which has a pneumatic tire in which are inserted ice grips or tire studs if the person is a law enforcement officer operating a vehicle owned by a law enforcement agency, a person operating an ambulance, or a United States postal service rural carrier driving a vehicle the rural carrier owns and maintains as a prerequisite to employment in the postal service.

(f) A person shall not operate a vehicle on a highway when a tire in use on that vehicle is unsafe as provided in subsection (h).

(g) A person in the business of selling tires shall not sell or offer for sale for highway use a tire which is unsafe as provided in subsection (h).

(h) A tire is unsafe if it is in any of the following conditions:

(i) Has a part of the belting material, tire cords, or plys exposed.

(ii) Has evidence of cord or tread separations.

(iii) Is worn to or below the minimum tread level in 2 or more adjacent major grooves at 3 or more locations spaced around the circumference of the tire. Minimum allowable tread levels are as follows:

motorcycles and moped	1/32 inch front and rear
passenger cars and vehicles weighing less than 10,000 pounds	2/32 inch front and rear
vehicles weighing 10,000 pounds or more	4/32 inch front and 2/32 rear

Measurements shall not be made at locations of tread wear indicators or tie bars. A motor vehicle licensed as an historic vehicle under section 803a is exempt from the tread depth requirements of this subsection.

(iv) Has a marking "not for highway use", "for racing purposes only", "for farm use only", or "unsafe for highway use".

(v) Has been regrooved or recut below the original tread design depth except in the case of special purpose designed tires having extra undertread rubber provided for this purpose and identified as those tires.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1962, Act 41, Eff. Mar. 28, 1963 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1967, Act 127, Imd. Eff. June 27, 1967 ;-- Am. 1973, Act 138, Eff. Mar. 29, 1974 ;-- Am. 1977, Act 119, Imd. Eff. Oct. 19, 1977
Compiler's Notes: In subdivision (h)(i), the word “plys” evidently should read “plies.”
Admin Rule: R 247.171 et seq. of the Michigan Administrative Code.

257.710a Safety belts and restraining devices; standards, rules and regulations.

Sec. 710a.

No person shall sell, offer or keep for sale, or install for use in any motor vehicle to be operated on the highways of this state, any safety belt, safety restraining device, or attachments thereto as referred to in this section, unless of a type conforming to standards and specifications established by rules and regulations which have been established by the commissioner of the Michigan state police.

The rules and regulations established pursuant to the authorization given in this section shall be promulgated in accordance with the provisions of Act No. 88 of the Public Acts of 1943, as amended, being sections 24.71 to 24.82, inclusive, of the Compiled Laws of 1948, and subject to Act No. 197 of the Public Acts of 1952, as amended, being sections 24.101 to 24.110, inclusive, of the Compiled Laws of 1948.

History: Add. 1955, 1st Ex. Sess., Act 2, Eff. Feb. 3, 1956
Popular Name: Seat Belt Law
Admin Rule: R 28.901 et seq. of the Michigan Administrative Code.

257.710b Safety belts; bolts and brackets.

Sec. 710b.

A private passenger vehicle manufactured after January 1, 1965 shall not be offered for sale in this state unless the vehicle is equipped with safety belts for the use of the driver and 1 other front seat passenger. All safety belts and bolts and brackets used in the installation of the safety belts shall meet the minimum specifications of the society of automotive engineers as prescribed on April 1, 1963. This section shall not apply to trucks, buses, hearses, motorcycles, or mopeds.

History: Add. 1961, Act 163, Eff. Sept. 8, 1961 ;-- Am. 1963, Act 212, Eff. Sept. 6, 1963 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977
Popular Name: Seat Belt Law

257.710c Bumpers; height limitations; lift blocks; prohibited modifications; construction of section; applicability; definitions.

Sec. 710c.

(1) A person shall not operate a motor vehicle on a public highway or street of this state unless the vehicle is equipped with a bumper or other energy absorption system with an analogous function which bumper or system is securely bolted or permanently attached on both the front and rear of the vehicle. The bumper or energy absorption system shall be maintained in good operational condition, except as provided in subsection (5). Notwithstanding subsection (6), a person shall not drive a vehicle having a raised or lifted body height unless the vehicle is equipped with bumpers that comply with this subsection and subsection (2).

(2) A person shall not operate a motor vehicle of a type defined in subsection (8) that exceeds either of the following limits:

Vehicle Type	Frame Height	Bumper Height
Passenger vehicle	12 inches	22 inches
Other motor vehicle:		
Less than 4,501 pounds GVWR	24 inches	26 inches
4,501 to 7,500 pounds GVWR	24 inches	28 inches
7,501 to 10,000 pounds GVWR	26 inches	30 inches

(3) If the GVWR cannot be determined on a motor vehicle other than a passenger vehicle, the limitations for a motor vehicle having less than 4,501 pounds GVWR shall apply.

(4) Notwithstanding subsection (2), a person shall not operate a motor vehicle having lift blocks between the front axle and springs, or with lift blocks that exceed 4 inches in height between the rear axle and springs in addition to those provided by the original manufacturer. Any body lift block shall be of single piece construction and shall not use more than a 3-inch spacer. Any suspension lift block shall use an alignment pin between the axle and the spring, and shall be of single piece construction. Spring shackle replacements shall not exceed the original equipment manufacture length by more than 2 inches, and coil spring spacers are prohibited. All steering components shall be geometrically arranged to function as original equipment manufacture. Welded pitman arms, drag links, and tie rods are prohibited. All parts used to modify the original suspension or height of a motor vehicle shall be factory manufactured and shall meet or exceed the original manufacturer's specifications.

(5) A person shall not modify a vehicle to be in violation of this section, alter or add to an original frame resulting in an increase in height of the vehicle, or cause the vehicle body or chassis to come in contact with the ground, expose the fuel tank to damage from collision, or

cause the wheels to come in contact with the body. No part of the suspension on a vehicle shall extend below the lowest portion of a wheel rim on the vehicle. A part of the original suspension system shall not be disconnected or modified to defeat the safe operation of the suspension system. This section does not prohibit the installation of heavy duty equipment including bumpers, shock absorbers, and overload springs within the limitations of this section, or the removal of a bumper when necessary to install a snowplow, lift ramp, or similar device while the device is in place and operational.

(6) This section shall not be construed to establish standards stricter than those formulated by the United States department of transportation for bumpers on a passenger motor vehicle sold within the United States.

(7) This section does not apply to a vehicle having a manufacturer's design which intrinsically precludes conformance with this section, a vehicle with a GVWR of 10,001 pounds or more, a vehicle designed to carry 16 or more passengers including the driver, implements of husbandry, or a road tractor, truck or truck tractor owned by a wood harvester or contractor and used exclusively in connection with wood harvesting and logging operations, or a vehicle which has an unaltered bumper or suspension system as supplied by the manufacturer. The operator of a vehicle cited for a violation of this section may assert as an affirmative defense that the vehicle in question, at the time of the violation, met original manufacturer's specifications for equipment which affected its bumper or frame height. The operator shall establish by a preponderance of this evidence the affirmative defense asserted pursuant to this subsection.

(8) As used in this section:

(a) "Bumper height" means the vertical distance between the ground and the highest point of the bottom of the bumper, as measured to a level surface when the vehicle is unladen with the vehicle tires inflated to the manufacturer's recommended pressure. If the bottom of the bumper cannot be determined due to vehicle design, the measurement shall be made from the lowest point on the rearmost portion of the rear horizontal bumper bar, or the vertical distance between the lowest point on the forwardmost portion of the front horizontal bumper bar, as measured to a level surface when the vehicle is unladen with the vehicle tires inflated to the manufacturer's recommended pressure.

(b) "Frame" means the main longitudinal structural members of the chassis of the vehicle as equipped from the factory or, for a vehicle with unitized body construction, the lowest main longitudinal structural members of the body of the vehicle.

(c) "Frame height" means the vertical distance between the ground and the lowest point on the frame, measured when the vehicle is unladen on a level surface at the lowest point on the frame midway between the front axle and the second axle on the vehicle with the vehicle tires inflated to the manufacturer's recommended pressure.

(d) "GVWR" means the original manufacturer's gross vehicle weight rating as defined in section 18b.

(e) "Multipurpose passenger motor vehicle" means a motor vehicle, other than a truck or passenger vehicle, designed to carry 10 passengers or less and constructed either on a truck chassis or with special features for occasional off-road operation.

(f) "Other motor vehicle" means any truck, multipurpose passenger motor vehicle, or other motor vehicle having a GVWR of 10,000 pounds or less, not including a passenger vehicle or motorcycle.

(g) "Passenger vehicle" means a motor vehicle with motive power designed to carry 10 passengers or less, or a van having a GVWR of 5,000 pounds or less, but not including a multipurpose passenger motor vehicle, motorcycle, or truck.

History: Add. 1978, Act 225, Eff. Mar. 30, 1979 ;-- Am. 1987, Act 19, Eff. Jan. 1, 1991 ;-- Am. 1991, Act 129, Eff. Mar. 30, 1992

257.710d Child restraint system required; position; exceptions; violation as civil infraction; points; abstract; exemption by rules; alternate means of protection.

Sec. 710d.

(1) Except as provided in this section, or as otherwise provided by law, a rule promulgated under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, or federal regulation, each driver transporting a child in a motor vehicle shall properly secure that child in a child restraint system that meets the standards prescribed in 49 CFR 571.213.

(2) A driver transporting a child as required under subsection (1) shall position the child in the child restraint system in a rear seat, if the vehicle is equipped with a rear seat. If all available rear seats are occupied by children, then a child may be positioned in the child restraint system in the front seat. A child in a rear-facing child restraint system may be placed in the front seat only if the front passenger air bag is deactivated. In addition, a child must be seated and positioned in a child restraint system as follows:

(a) A child must be restrained in a rear-facing child restraint system until the child meets either of the following conditions:

(i) The child has reached the weight or height limit of the rear-facing child restraint system set by the manufacturer.

(ii) The child is 2 years of age or older.

(b) A child who meets either of the conditions in subdivision (a)(i) or (ii) must be restrained in a forward-facing child restraint system with an internal harness until the child meets either of the following conditions:

(i) The child has reached the weight or height limit of the forward-facing child restraint system set by the manufacturer.

(ii) The child is 5 years of age or older.

(c) A child who meets either of the conditions in subdivision (b)(i) or (ii) must be restrained in a belt-positioning child booster seat secured with a lap-shoulder safety belt until the child meets either of the following conditions:

(i) The child has reached the height of 4 feet 9 inches.

(ii) The child is 8 years of age or older.

(3) If a child is secured in a child restraint system under subsection (2)(a) to (c), the child must be secured in a child restraint system that is appropriate for the child's weight and height and configured according to the child restraint system manufacturer's and vehicle manufacturer's instructions and the standards prescribed in 49 CFR 571.213.

(4) Except as otherwise provided in this subsection, a child who meets either of the conditions in subsection (2)(c)(i) or (ii) but is less than 13 years of age must be restrained with a properly adjusted and fastened safety belt that meets the standards prescribed in 49 CFR 571.209. In addition, the child must be positioned in a rear seat, if the vehicle is equipped with a rear seat. If all available rear seats are occupied by children, then the child may be positioned with a properly adjusted and fastened safety belt in the front seat. A child described in this subsection may be restrained in a belt-positioning child booster seat under subsection (2)(c) until the child has reached the weight or height limit of the child booster seat set by the manufacturer. To maximize safety, the legislature recommends that a child be secured in a

child restraint system for as long as the child is within the weight and height limits described in subsection (2)(a)(i), (b)(i), or (c)(i).

(5) A child who is 13 years of age or older but less than 16 years of age must be secured as required in section 710e.

(6) This section does not apply if the motor vehicle being driven is a bus, school bus, taxicab, moped, motorcycle, or other motor vehicle not required to be equipped with safety belts under federal law or regulations.

(7) A person who violates this section is responsible for a civil infraction.

(8) Points must not be assessed under section 320a for a violation of this section. An abstract required under section 732 must not be submitted to the secretary of state regarding a violation of this section.

(9) The secretary of state may exempt by rules promulgated under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, a class of children from the requirements of this section, if the secretary of state determines that the use of the child restraint system required under subsection (1) is impractical because of physical unfitness, a medical problem, or body size. The secretary of state may specify alternate means of protection for children exempted under this subsection.

History: Add. 1981, Act 117, Eff. Mar. 31, 1982 ;-- Am. 1990, Act 90, Eff. Mar. 28, 1991 ;-- Am. 1999, Act 29, Eff. Mar. 10, 2000 ;-- Am. 2009, Act 57, Imd. Eff. June 26, 2009 ;-- Am. 2024, Act 21, Eff. Apr. 2, 2025

Compiler's Notes: Enacting section 1 of 1999 PA 29, which amended this section, provides:"Enacting section 1. It is the intent of the legislature that the cost savings realized by insurance companies because of the changes made by this amendatory act shall be passed on to insurance policy holders."

Popular Name: Seat Belt Law

257.710e Safety belt required; driver or passenger to which section inapplicable; transporting child 13 years of age but less than 16 years of age; use of lap belt for purpose of road construction or maintenance; enforcement of section; violation as evidence of negligence; reduction of recovery for damages; violation as civil infraction; reports of inappropriate enforcement; intent; assessment of points prohibited.

Sec. 710e.

(1) This section does not apply to an operator or passenger of any of the following:

(a) A motor vehicle manufactured before January 1, 1965.

(b) A bus.

(c) A motorcycle.

(d) A moped.

(e) A motor vehicle, if the operator or passenger possesses a written verification from a physician that the operator or passenger is unable to wear a safety belt for physical or medical reasons.

(f) A motor vehicle that is not required to be equipped with safety belts under federal law.

(g) A commercial or United States Postal Service vehicle that makes frequent stops for the purpose of pickup or delivery of goods or services.

(h) A motor vehicle operated by a rural carrier of the United States Postal Service while serving the carrier's rural postal route.

(2) This section does not apply to a passenger of a school bus.

(3) Each operator and front seat passenger of a motor vehicle operated on a street or highway in this state shall wear a properly adjusted and fastened safety belt, except that a child who is less than 13 years of age must be protected as required in section 710d.

(4) If there are more passengers than safety belts available for use, and all safety belts in the motor vehicle are being utilized in compliance with this section, the operator of the motor vehicle is in compliance with this section.

(5) Except as otherwise provided in section 710d, each operator of a motor vehicle transporting a child 13 years of age or older but less than 16 years of age in a motor vehicle shall secure the child in a properly adjusted and fastened safety belt and seated as required under this section. If the motor vehicle is transporting more children than there are safety belts available for use, all safety belts available in the motor vehicle are being utilized in compliance with this section, and the operator and all front seat passengers comply with subsection (3), the operator of a motor vehicle transporting a child 13 years of age or older but less than 16 years of age for which there is not an available safety belt is in compliance with this subsection if that child is seated in other than the front seat of the motor vehicle. However, if that motor vehicle is a pickup truck without an extended cab or jump seats, and all safety belts in the front seat are being used, the operator may transport the child in the front seat without a safety belt.

(6) The operator of a motor vehicle shall wear a lap belt, but is not required to wear a shoulder harness, if the operator is operating the vehicle for the purpose of performing road construction or maintenance in a work zone.

(7) If the office of highway safety planning certifies that there has been less than 80% compliance with the safety belt requirements of this section during the preceding year, enforcement of this section by state or local law enforcement agencies must be accomplished only as a secondary action when an operator of a motor vehicle has been detained for a suspected violation of another section of this act.

(8) Failure to wear a safety belt in violation of this section may be considered evidence of negligence and may reduce the recovery for damages arising out of the ownership, maintenance, or operation of a motor vehicle. However, that negligence must not reduce the recovery for damages by more than 5%.

(9) A person who violates this section is responsible for a civil infraction.

(10) A law enforcement agency shall conduct an investigation for all reports of inappropriate enforcement that result from the enforcement of this section.

(11) The secretary of state shall promote compliance with the safety belt requirements of this section at the branch offices and through any print or visual media determined appropriate by the secretary of state.

(12) It is the intent of the legislature that the enforcement of this section be conducted in a manner calculated to save lives and not in a manner that results in the inappropriate enforcement of this section against the citizens of this state.

(13) Points must not be assessed under section 320a for a violation of this section.

History: Add. 1985, Act 1, Eff. July 1, 1985 ;-- Am. 1989, Act 3, Imd. Eff. Apr. 6, 1989 ;-- Am. 1990, Act 90, Eff. Mar. 28, 1991 ;-- Am. 1991, Act 25, Imd. Eff. May 20, 1991 ;-- Am. 1999, Act 29, Eff. Mar. 10, 2000 ;-- Am. 2008, Act 43, Eff. July 1, 2008 ;-- Am. 2016, Act 460, Eff. Apr. 5, 2017 ;-- Am. 2024, Act 21, Eff. Apr. 2, 2025

Compiler's Notes: Enacting section 1 of 1999 PA 29, which amended this section, provides:“Enacting section 1. It is the intent of the legislature that the cost savings realized by insurance companies because of

the changes made by this amendatory act shall be passed on to insurance policy holders."
Popular Name: Seat Belt Law

257.710f Adoption of program to encourage compliance.

Sec. 710f.

The secretary of state shall adopt a program to encourage compliance with the safety belt usage requirement, which shall inform all applicants for an operator license that safety belts are beneficial and that failure to use them properly is unlawful.

History: Add. 1985, Act 1, Eff. July 1, 1985
Popular Name: Seat Belt Law

257.710g Child car seat safety grant program; establishment.

Sec. 710g.

The department of community health shall establish a child car seat safety grant program for the purpose of providing grants for training, promotion, and education concerning the child restraint system use requirements under sections 710d and 710e. The child car seat safety grant program shall provide grants to persons that the department of community health considers eligible.

History: Add. 2000, Act 282, Imd. Eff. July 10, 2000 ;-- Am. 2000, Act 439, Imd. Eff. Jan. 9, 2001

257.711 Safety glass required; safety plastic on buses; "safety glass" defined; penalties.

Sec. 711.

(1) A person shall not sell a new motor vehicle nor shall a new motor vehicle be registered thereafter which is designed or used for the purpose of transporting passengers for compensation unless that vehicle is equipped with safety glass wherever glass is used in doors, windows, and windshields. Rigid safety plastic which meets the test requirements of American national standards institute standard Z26.1-1966, as supplemented and amended, may be used on buses in lieu of safety glass, except that front windshields shall be equipped with safety glass.

(2) A person shall not sell a new motor vehicle nor shall a new motor vehicle be registered thereafter unless that vehicle is equipped with safety glass wherever glass is used in the windshield, doors, and windows; nor shall any glass be replaced in the windshield, doors, and windows of a motor vehicle unless the glass is safety glass as herein defined.

(3) The term "safety glass" shall mean a product composed of glass, so manufactured, fabricated, or treated as substantially to prevent shattering and flying of the glass when struck or broken.

(4) In addition to the penalties imposed by this act, the permit issued by the Michigan public service commission to a person engaged in the passenger carrying business shall be subject to revocation or suspension in the discretion of the Michigan public service commission.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1974, Act 64, Imd. Eff. Apr. 1, 1974 ;-- Am. 1990, Act 188, Eff. Aug. 15, 1990

257.711a Repealed. 1990, Act 188, Eff. Aug. 15, 1990.

Compiler's Notes: The repealed section pertained to school bus gasoline tanks.

257.712, 257.713 Repealed. 2002, Act 282, Imd. Eff. May 9, 2002.

Compiler's Notes: The repealed sections pertained to flares, flags, reflector units, and flashing signals on stopped vehicles.

257.714 Repealed. 1980, Act 487, Imd. Eff. Jan. 21, 1981.

Compiler's Notes: The repealed section pertained to vehicles transporting explosives as cargo.

257.714a, 257.714b Repealed. 2005, Act 179, Imd. Eff. Oct. 20, 2005.

Compiler's Notes: The repealed sections pertained to preventing commercial vehicles from throwing road surface substances from rear wheel and to fuel systems for trucks over 10,000 pounds, truck tractors, road tractors, or buses.

INSPECTION OF VEHICLES

257.715 Maintenance of equipment on vehicles; stopping and inspecting vehicles; citation for defects in equipment; inspection of vehicles involved in accident; temporary vehicle check lanes.

Sec. 715.

(1) Equipment on motor vehicles as required under this act shall be maintained as provided in this act. A uniformed police officer may on reasonable grounds shown stop a motor vehicle to inspect the vehicle, and if any defects in equipment are found, issue an appropriate citation under section 728 or 742 to the driver and order the driver to have the defect or defects repaired immediately. In case of an accident a police officer may make an inspection of the vehicles involved in the accident.

(2) The director of the department of state police shall cause inspection to be made of motor vehicles operating on the public highways to detect defective equipment or other violations of law governing the use of public highways by motor vehicles, operators, and chauffeurs. For that purpose the director may establish temporary vehicle check lanes at appropriate locations throughout the state for checking for inadequacies and violations. A county, city, village, or township police department also may operate a temporary check lane within its limits with the express authorization of the director of the department of state police and under the direct supervision of a designated representative of the director.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 214, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979

257.715a Inspection of certain school buses, buses, or other motor vehicles with seating capacity of 12 or more; delegation of inspection; rules.

Sec. 715a.

(1) A school bus, bus, or other motor vehicle with a manufacturers rated seating capacity of 12 or more which is owned, leased or used by a nonpublic school, religious organization, nonprofit youth organization, nonprofit rehabilitation facility, or senior citizen center for the transportation of passengers shall not be operated on a highway unless the vehicle has been inspected as provided in this section.

(2) The department of state police shall inspect each school bus, bus, or other motor vehicle with a manufacturers rated seating capacity of 12 or more, which is owned, leased or used by a nonpublic school, religious organization, nonprofit youth organization, nonprofit rehabilitation facility, or senior citizen center for the transportation of passengers, annually, and more frequently if defects are found in the organization's vehicles, to determine if the vehicles meet the specifications of the department of state police. The department of state police may delegate the inspection of vehicles under this section to publicly employed inspectors if the inspections comply with this section.

(3) The department of state police shall promulgate rules for safety equipment for a school bus, bus, or other motor vehicle regulated under this section pursuant to Act No. 306 of the Public Acts of 1969, as amended, being sections 24.201 to 24.315 of the Michigan Compiled Laws.

History: Add. 1978, Act 547, Imd. Eff. Dec. 22, 1978 ;-- Am. 1984, Act 269, Imd. Eff. Dec. 18, 1984
Admin Rule: R 257.951 et seq. of the Michigan Administrative Code.

SIZE, WEIGHT AND LOAD

257.716 Exceeding size and weight limitations as misdemeanor; exceptions; rules; operation of wrecker, disabled vehicle, and trailer; noncompliance as civil infraction; fine.

Sec. 716.

(1) Unless specifically declared to be a civil infraction, it is a misdemeanor for a person to drive or move or for the owner to cause or permit to be driven or moved on a highway a vehicle or vehicles of a size or weight exceeding the limitations stated in this chapter or otherwise in violation of this chapter, and the maximum size and weight specified in this chapter are lawful throughout this state, and local authorities shall not alter those size and weight limitations except as express authority is granted in this chapter.

(2) The provision of this chapter governing size, weight, and load do not apply to a fire apparatus, to an implement of husbandry, a boat lift or oversized hydraulic boat trailer owned and operated by a marina or watercraft dealer used exclusively in a commercial boat storage operation and incidentally moved upon a highway, a combination of vehicles described in, and under the conditions provided by, subsection (4), or to a vehicle operated under the terms of a special permit issued as provided in this chapter.

(3) The state transportation department, under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, may promulgate rules permitting and regulating the operation of a vehicle or vehicles of a size or weight that exceeds the size or weight limitations in this chapter. The rules may restrict or proscribe the conditions of operation of a vehicle or vehicles of a size or weight that exceeds the size or weight limitations in this chapter, if the restriction or proscription is necessary to protect the public safety or to prevent undue damage to a road foundation or surface, a structure, or an installation. The rules may provide for a reasonable inspection fee for an inspection of a vehicle or vehicles to determine whether their

sizes and weights are in conformance with this act, and may require other security necessary to compensate for damage caused by the vehicle or vehicles described in this subsection.

(4) A wrecker and a disabled vehicle, or a wrecker and a combination of a disabled vehicle and 1 trailer, that exceeds the size and weight limitations in this chapter may be operated upon the highways of this state under the following conditions:

(a) The wrecker is specifically designed for such towing operations, is equipped with flashing, oscillating, or rotating amber or red lights as permitted under section 698, and is capable of utilizing the lighting and braking systems of the disabled vehicle or combination of disabled vehicles if those systems are operational.

(b) For a combination of disabled vehicles, the wrecker is issued a special permit under section 725 by the state transportation department. The special permit is valid for the entire towing distance, and the operator of the wrecker may remove the disabled vehicles from the roadway at any lawful point of his or her choosing within that distance.

(c) For a single disabled vehicle, the wrecker is issued a special permit under section 725 by the state transportation department for the transport of the disabled vehicle. A wrecker operator is not subject to mileage limitations for a special permit issued for purposes of this subdivision.

(d) The wrecker does not operate on any highway, road, street, or structure included on a list provided by the state transportation department unless the disabled vehicle or combination of vehicles is located on 1 of those roads or structures.

(5) The owner or operator of a wrecker that does not comply with subsection (4)(d) is responsible for a civil infraction and shall pay a civil fine of not less than $250.00 or more than $500.00. The civil fine imposed under this subsection is in addition to any fine that may be imposed under section 724 or 725.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1970, Act 177, Imd. Eff. Aug. 3, 1970 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 311, Imd. Eff. Dec. 4, 1980 ;-- Am. 1998, Act 427, Eff. Mar. 1, 1999 ;-- Am. 2006, Act 509, Imd. Eff. Dec. 29, 2006 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2016, Act 453, Eff. Apr. 5, 2017

257.717 Maximum permissible width of vehicle or load; extension beyond center line of highway; permit; designation of highway for operation of vehicle or vehicle combination; special permit; boat lift or trailer; snowplow blade; violation as civil infraction; charging owner.

Sec. 717.

(1) The total outside width of a vehicle or the load on a vehicle shall not exceed 96 inches, except as otherwise provided in this section.

(2) A person may operate or move an implement of husbandry of any width on a highway as required, designed, and intended for farming operations, including the movement of implements of husbandry being driven or towed and not hauled on a trailer, without obtaining a special permit for an excessively wide vehicle or load under section 725. The operation or movement of the implement of husbandry shall be in a manner so as to minimize the interruption of traffic flow. A person shall not operate or move an implement of husbandry to the left of the center of the roadway from a half hour after sunset to a half hour before sunrise, under the conditions specified in section 639, or at any time visibility is substantially diminished due to weather conditions. A person operating or moving an implement of husbandry shall follow all traffic regulations.

(3) The total outside width of the load of a vehicle hauling concrete pipe, ferrous pipe, agricultural products, or unprocessed logs, pulpwood, or wood bolts shall not exceed 108 inches.

(4) Except as provided in subsections (2) and (5) and this subsection, if a vehicle that is equipped with pneumatic tires is operated on a highway, the maximum width from the outside of 1 wheel and tire to the outside of the opposite wheel and tire shall not exceed 102 inches, and the outside width of the body of the vehicle or the load on the vehicle shall not exceed 96 inches. However, a truck and trailer or a tractor and semitrailer combination hauling pulpwood or unprocessed logs may be operated with a maximum width of not to exceed 108 inches in accordance with a special permit issued under section 725.

(5) The total outside body width of a school bus, a bus, a trailer coach, a trailer, a semitrailer, a truck camper, or a motor home shall not exceed 102 inches. However, an appurtenance of a school bus, a trailer coach, a truck camper, or a motor home that extends not more than 6 inches beyond the total outside body width does not violate this section.

(6) A vehicle shall not extend beyond the center line of a state trunk line highway except when authorized by law. Except as provided in subsection (2), if the width of the vehicle makes it impossible to stay away from the center line, a permit shall be obtained under section 725.

(7) The director of the state transportation department, a county road commission, or a local authority may designate a highway under the agency's jurisdiction as a highway on which a person may operate a vehicle or vehicle combination that is not more than 102 inches in width, including load, the operation of which would otherwise be prohibited by this section. The agency making the designation may require that the owner or lessee of the vehicle or of each vehicle in the vehicle combination secure a permit before operating the vehicle or vehicle combination. This subsection does not restrict the issuance of a special permit under section 725 for the operation of a vehicle or vehicle combination. This subsection does not permit the operation of a vehicle or vehicle combination described in section 722a carrying a load described in that section if the operation would otherwise result in a violation of that section.

(8) The director of the state transportation department, a county road commission, or a local authority may issue a special permit under section 725 to a person operating a vehicle or vehicle combination if all of the following are met:

(a) The vehicle or vehicle combination, including load, is not more than 106 inches in width.

(b) The vehicle or vehicle combination is used solely to move new motor vehicles or parts or components of new motor vehicles between facilities that meet all of the following:

(i) New motor vehicles or parts or components of new motor vehicles are manufactured or assembled in the facilities.

(ii) The facilities are located within 10 miles of each other.

(iii) The facilities are located within the city limits of the same city and the city is located in a county that has a population of more than 400,000 and less than 500,000 according to the most recent federal decennial census.

(c) The special permit and any renewals are each issued for a term of 1 year or less.

(9) A person may move or operate a boat lift of any width or an oversized hydraulic boat trailer owned and operated by a marina or watercraft dealer in a commercial boat storage operation on a highway under a multiple trip permit issued on an annual basis as specified under section 725. The operation or movement of the boat lift or trailer shall minimize the interruption of traffic flow. It shall be used exclusively to transport a boat between a place of storage and a marina or in and around a marina. A boat lift or oversized hydraulic boat trailer

may be operated, drawn, or towed on a street or highway only when transporting a vessel between a body of water and a place of storage or when traveling empty to or from transporting a vessel. A boat lift shall not be operated on limited access highways. A person moving or operating a boat lift or oversized hydraulic boat trailer shall follow all traffic regulations and shall ensure the route selected has adequate power and utility wire height clearance.

(10) A person may operate or move a truck to which a snowplow blade that is wider than 96 inches but no more than 132 inches wide is mounted without obtaining a special permit for an excessively wide vehicle or load under section 725. This subsection only applies between October 1 and May 1 of each year. A person operating a truck described in this subsection shall minimize the overwidth condition of the snowplow blade when not engaged in snow removal by angling the plow blade or any other method. This subsection does not apply to a person operating construction equipment for snow removal.

(11) A person who violates this section is responsible for a civil infraction. The owner of the vehicle may be charged with a violation of this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 68, Eff. Sept. 28, 1951 ;-- Am. 1952, Act 69, Imd. Eff. Apr. 8, 1952 ;-- Am. 1953, Act 206, Imd. Eff. June 10, 1953 ;-- Am. 1954, Act 92, Eff. Aug. 13, 1954 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1976, Act 320, Imd. Eff. Dec. 7, 1976 ;-- Am. 1978, Act 391, Eff. Jan. 15, 1979 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 16, Eff. Aug. 1, 1979 ;-- Am. 1982, Act 533, Eff. Mar. 30, 1983 ;-- Am. 1987, Act 90, Imd. Eff. July 1, 1987 ;-- Am. 1992, Act 257, Imd. Eff. Dec. 7, 1992 ;-- Am. 1999, Act 63, Imd. Eff. June 17, 1999 ;-- Am. 2000, Act 7, Imd. Eff. Feb. 25, 2000 ;-- Am. 2002, Act 453, Imd. Eff. June 21, 2002 ;-- Am. 2002, Act 552, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 511, Imd. Eff. Jan. 3, 2005 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2014, Act 391, Imd. Eff. Dec. 22, 2014 ;-- Am. 2018, Act 273, Eff. Sept. 27, 2018 ;-- Am. 2018, Act 342, Eff. Jan. 14, 2019

257.718 Width of load carried on passenger type vehicle; violation as civil infraction.

Sec. 718.

(1) A passenger type vehicle shall not be operated on a highway with a load carried on the vehicle extending beyond the line of the fenders on the left side of the vehicle nor extending more than 6 inches beyond the line of the fenders on the right side of the vehicle.

(2) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

***** 257.719 SUBSECTIONS (2)(a) AND (3)(b) MAY NOT APPLY: See subsection (9) *****

257.719 Height of vehicle; liability for damage to bridge or viaduct or resulting injury; normal length maximum; prohibitions; length of certain vehicles prohibited from operation on state highways; combination of truck and semitrailer transporting assembled motor vehicles or bodies; connecting assemblies and lighting devices; gross weight; violation as civil infraction; applicability of subsections (2)(a) and (3)(b); definitions.

Sec. 719.

(1) A vehicle unloaded or with load shall not exceed a height of 13 feet 6 inches. The owner of a vehicle that collides with a lawfully established bridge or viaduct is liable for all damage

and injury resulting from a collision caused by the height of the vehicle, whether the clearance of the bridge or viaduct is posted or not.

(2) Lengths described in this subsection shall be known as the normal length maximum. Except as provided in subsection (3), the following vehicles and combinations of vehicles shall not be operated on a highway in this state in excess of these lengths:

(a) Subject to subsection (9), any single vehicle: 40 feet; a crib vehicle on which logs are loaded lengthwise of the vehicle: 42.5 feet; any single bus or motor home: 45 feet.

(b) Articulated buses: 65 feet.

(c) Notwithstanding any other provision of this section, a combination of a truck and semitrailer or trailer, or a truck tractor, semitrailer, and trailer, or truck tractor and semitrailer or trailer, designed and used exclusively to transport assembled motor vehicles or bodies, recreational vehicles, or boats: 65 feet. A combination of a truck and semitrailer or trailer, or a truck tractor, semitrailer, and trailer, or a truck tractor and semitrailer or trailer designed and used to transport boats from the manufacturer: 75 feet. A stinger-steered combination: 80 feet. The load on the combinations of vehicles described in this subdivision may extend an additional 3 feet beyond the front and 4 feet beyond the rear of the combinations of vehicles, except that the load on a stinger-steered combination may extend an additional 4 feet beyond the front and 6 feet beyond the rear. Retractable extensions used to support and secure the load that do not extend beyond the allowable overhang for the front and rear shall not be included in determining length of a loaded vehicle or vehicle combination.

(d) Truck tractor and semitrailer combinations: no overall length, the semitrailer: 50 feet.

(e) Except as provided in subdivision (j), truck and semitrailer or trailer: 59 feet.

(f) Except as provided in subdivisions (g) and (k), truck tractor, semitrailer, and trailer, or truck tractor and 2 semitrailers: 59 feet.

(g) A truck tractor, semitrailer, and trailer, or a truck tractor and 2 semitrailers, in which no semitrailer or trailer is more than 28-1/2 feet long: 65 feet. This subdivision only applies while the vehicle is being used for a business purpose reasonably related to picking up or delivering a load and only if each semitrailer or trailer is equipped with a device or system capable of mechanically dumping construction materials or dumping construction materials by force of gravity.

(h) More than 1 motor vehicle, wholly or partially assembled, in combination, utilizing 1 tow bar or 3 saddle mounts with full mount mechanisms and utilizing the motive power of 1 of the vehicles in combination: 55 feet.

(i) A recreational vehicle that has its own motive power, in combination with a trailer: 65 feet or, if the operator of the recreational vehicle has a group commercial motor vehicle designation on his or her operator's or chauffeur's license, 75 feet.

(j) Truck and trailer combinations designed and used to transport agricultural drainage tubing: 75 feet.

(k) A towaway trailer transporter combination: 82 feet. As used in this subdivision, "towaway trailer transportation combination" means that term as defined in 49 USC 31111.

(3) Notwithstanding subsection (2), the following vehicles and combinations of vehicles shall not be operated on a designated highway of this state in excess of these lengths:

(a) Truck tractor and semitrailer combinations: no overall length limit, the semitrailer 53 feet. City, village, or county authorities may prohibit stops of vehicles with a semitrailer longer than 50 feet within their jurisdiction unless the stop occurs along appropriately designated routes, or is necessary for emergency purposes or to reach shippers, receivers, warehouses, and terminals along designated routes.

(b) Except as provided in subsection (2)(k), truck and semitrailer or trailer combinations: 65 feet, except that a person may operate a truck and semitrailer or trailer designed and used to transport saw logs, pulpwood, and tree length poles that does not exceed an overall length of 70 feet or a crib vehicle and semitrailer or trailer designed and used to transport saw logs that does not exceed an overall length of 75 feet. A crib vehicle and semitrailer or trailer designed to and used to transport saw logs shall not exceed a gross vehicle weight of 164,000 pounds. A person may operate a truck tractor and semitrailer designed and used to transport saw logs, pulpwood, and tree length wooden poles with a load overhang to the rear of the semitrailer which does not exceed 6 feet if the semitrailer does not exceed 50 feet in length.

(c) Notwithstanding subsection (5)(d), a truck tractor with a log slasher unit and a log saw unit: no overall limit if the length of each unit does not exceed 28-1/2 feet, or the overall length of the log slasher unit and the log saw unit, as measured from the front of the first towed unit to the rear of the second towed unit while the units are coupled together, does not exceed 58 feet. The coupling devices of the truck tractor and units set forth in this subdivision shall meet the requirements established under the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(d) Except as provided in subsection (2)(k), truck tractor and 2 semitrailers, or truck tractor, semitrailer, and trailer combinations: no overall length limit, if the length of each semitrailer or trailer does not exceed 28-1/2 feet each, or the overall length of the semitrailer and trailer, or 2 semitrailers as measured from the front of the first towed unit to the rear of the second towed unit while the units are coupled together does not exceed 58 feet.

(e) More than 1 motor vehicle, wholly or partially assembled, in combination, utilizing 1 tow bar or 3 saddle mounts with full mount mechanisms and utilizing the motive power of 1 of the vehicles in combination: 97 feet.

(f) Truck tractor and lowboy semitrailer combinations: no maximum overall length, if the lowboy semitrailer does not exceed 59 feet, except as otherwise permitted under this subdivision. A lowboy semitrailer more than 59 feet in length shall not operate with more than any combination of 4 axles on the lowboy unless an oversized load permit is issued by the state transportation department or a local authority with respect to highways under its jurisdiction. As used in this subdivision, "lowboy semitrailer" means a flatbed semitrailer with a depressed section that has the specific purpose of being lowered and raised for loading and unloading.

(4) Notwithstanding any other provision of this section, a combination of a truck and semitrailer, or truck tractor and semitrailer, used exclusively to transport assembled motor vehicles or bodies that have a trailer length of 53 feet may have a load that extends an additional 3 feet beyond the front of the trailer and 4 feet beyond the rear of the trailer. Retractable extensions used to support and secure the load that do not extend beyond the allowable overhang for the front and rear shall not be included in determining length of a loaded vehicle or vehicle combination. The total overall length loaded of the combination of vehicles described in this subsection shall not exceed 79 feet.

(5) The following combinations and movements are prohibited:

(a) A truck shall not haul more than 1 trailer or semitrailer, and a truck tractor shall not haul more than 2 semitrailers or 1 semitrailer and 1 trailer in combination at any 1 time, except that a farm tractor may haul 2 wagons or trailers, or garbage and refuse haulers may, during daylight hours, haul up to 4 trailers for garbage and refuse collection purposes, not exceeding in any combination a total length of 55 feet and at a speed limit not to exceed 15 miles per hour.

(b) A combination of vehicles or a vehicle shall not have more than 11 axles, except when operating under a valid permit issued by the state transportation department or a local authority with respect to a highway under its jurisdiction.

(c) Any combination of vehicles not specifically authorized under this section is prohibited.

(d) Except as provided in subsection (3)(c), a combination of 2 semitrailers pulled by a truck tractor, unless each semitrailer uses a fifth wheel connecting assembly that conforms to the requirements of the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(e) Except as provided in subsection (2)(c), a vehicle or a combination of vehicles shall not carry a load extending more than 3 feet beyond the front of the lead vehicle.

(f) A vehicle described in subsections (2)(e) and (3)(e) employing triple saddle mounts unless all wheels that are in contact with the roadway have operating brakes.

(6) All combinations of vehicles under this section shall employ connecting assemblies and lighting devices that are in compliance with the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(7) The total gross weight of a truck tractor, semitrailer, and trailer combination or a truck tractor and 2 semitrailers combination that exceeds 59 feet in length shall not exceed a ratio of 400 pounds per engine net horsepower delivered to clutch or its equivalent specified in the handbook published by the Society of Automotive Engineers, Inc. (SAE), 1977 edition.

(8) A person who violates this section is responsible for a civil infraction. The owner of the vehicle may be charged with a violation of this section.

(9) The provisions in subsections (2)(a) and (3)(b) prescribing the length of a crib vehicle on which logs are loaded lengthwise do not apply unless 23 USC 127(d) is amended to allow crib vehicles carrying logs to be loaded as described in this section.

(10) As used in this section:

(a) "Designated highway" means a highway approved by the state transportation department or a local authority with respect to a highway under its jurisdiction.

(b) "Length" means the total length of a vehicle, or combination of vehicles, including any load the vehicle is carrying. Length does not include devices described in 23 CFR 658.16 and 23 CFR part 658, appendix D, 23 CFR 658.16 and 23 CFR part 658, appendix D, as on file with the secretary of state are adopted by reference. A safety or energy conservation device shall be excluded from a determination of length only if it is not designed or used for the carrying of cargo, freight, or equipment. Semitrailers and trailers shall be measured from the front vertical plane of the foremost transverse load supporting structure to the rearmost transverse load supporting structure. Vehicle components not excluded by law shall be included in the measurement of the length, height, and width of the vehicle.

(c) "Stinger-steered combination" means a truck tractor and semitrailer combination in which the fifth wheel is located on a drop frame located behind and below the rearmost axle of the power unit.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 43, Eff. Sept. 28, 1951 ;-- Am. 1954, Act 111, Imd. Eff. Apr. 15, 1954 ;-- Am. 1955, Act 208, Imd. Eff. June 17, 1955 ;-- Am. 1956, Act 141, Imd. Eff. Apr. 16, 1956 ;-- Am. 1957, Act 291, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 88, Imd. Eff. Apr. 11, 1958 ;-- Am. 1964, Act 94, Eff. Aug. 28, 1964 ;-- Am. 1966, Act 79, Imd. Eff. June 14, 1966 ;-- Am. 1968, Act 43, Imd. Eff. May 21, 1968 ;-- Am. 1969, Act 59, Imd. Eff. July 21, 1969 ;-- Am. 1970, Act 70, Imd. Eff. July 12, 1970 ;-- Am. 1973, Act 207, Imd. Eff. Jan. 11, 1974 ;-- Am. 1974, Act 95, Imd. Eff. Apr. 25, 1974 ;-- Am. 1976, Act 201, Imd. Eff. July 23, 1976 ;-- Am. 1978, Act 225, Eff. Mar. 30, 1979 ;-- Am. 1978, Act 386, Imd. Eff. July 27, 1978 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1978, Act 565, Imd. Eff. Dec. 29, 1978 ;-- Am. 1980, Act 487, Imd. Eff. Jan. 21, 1981 ;-- Am. 1981, Act 147, Imd. Eff. Nov. 10, 1981 ;-- Am. 1982, Act 350, Imd. Eff. Dec. 21, 1982 ;-- Am. 1982, Act 533, Eff. Mar. 30, 1983 ;-- Am. 1984, Act 1, Imd. Eff. Jan. 24, 1984 ;-- Am. 1985, Act 174, Imd. Eff. Dec. 2, 1985 ;-- Am.

1986, Act 187, Imd. Eff. July 8, 1986 ;-- Am. 1988, Act 88, Eff. Apr. 15, 1988 ;-- Am. 1988, Act 356, Imd. Eff. Dec. 7, 1988 ;-- Am. 1990, Act 78, Imd. Eff. May 24, 1990 ;-- Am. 1992, Act 127, Imd. Eff. June 30, 1992 ;-- Am. 1995, Act 248, Imd. Eff. Dec. 27, 1995 ;-- Am. 1996, Act 136, Imd. Eff. Mar. 21, 1996 ;-- Am. 2000, Act 306, Imd. Eff. Oct. 16, 2000 ;-- Am. 2002, Act 78, Imd. Eff. Mar. 25, 2002 ;-- Am. 2002, Act 453, Imd. Eff. June 21, 2002 ;-- Am. 2003, Act 142, Imd. Eff. Aug. 5, 2003 ;-- Am. 2004, Act 420, Eff. Jan. 1, 2006 ;-- Am. 2009, Act 37, Imd. Eff. June 4, 2009 ;-- Am. 2012, Act 80, Imd. Eff. Apr. 11, 2012 ;-- Am. 2012, Act 282, Imd. Eff. July 5, 2012 ;-- Am. 2015, Act 208, Eff. Feb. 28, 2016 ;-- Am. 2017, Act 35, Eff. Aug. 21, 2017 ;-- Am. 2017, Act 170, Eff. Feb. 19, 2018 ;-- Am. 2018, Act 35, Eff. May 22, 2018

257.719a Operation of towing vehicle to which mobile home or park model trailer attached.

Sec. 719a.

(1) Notwithstanding any other provisions of this act, a person shall not operate a towing vehicle to which a mobile home or park model trailer is attached on a street or highway if that mobile home or park model trailer is more than 45 feet in length or more than 60 feet in length when combined with the towing vehicle, is more than 12-1/2 feet in height, and has an actual body width of more than 102 inches at base rail, unless that person possesses either of the following:

(a) A permit issued by the jurisdictional authority under this section.

(b) A special permit issued by the jurisdictional authority under section 725.

(2) A jurisdictional authority may issue to a mobile home or park model trailer transport company, a mobile home or park model trailer manufacturer, or a mobile home or park model trailer dealer an annual permit to move on a street or highway, in the ordinary course of that company's, manufacturer's, or dealer's business, a mobile home or park model trailer that conforms to each of the following:

(a) The mobile home or park model trailer is not more than 12 feet wide.

(b) The actual body length of the mobile home or park model trailer is not more than 80 feet and the combined length of the mobile home or park model trailer and towing vehicle is not more than 105 feet or the total length of a combination of mobile homes or park model trailers is not more than 80 feet and the total length of a combination of mobile homes or park model trailers and towing vehicle is not more than 105 feet.

(3) A jurisdictional authority under section 725 may issue a special permit for the movement of a mobile home or park model trailer on a street or highway within its jurisdiction if the width of that mobile home or park model trailer conforms to both of the following:

(a) The mobile home or park model trailer is not more than 16 feet wide plus normal appurtenances or eaves that extend not more than 6 inches from any side of the mobile home or park model trailer.

(b) The length of the mobile home or park model trailer complies with subsection (2)(b).

(4) A person operating a towing vehicle under subsection (3) shall transport a mobile home or park model trailer only on the lane farthest to the right of that person. A person shall not move a mobile home or park model trailer that is 14 or more feet in width including an eave of 2 feet when the wind velocity exceeds 25 miles per hour.

(5) A jurisdictional authority shall not issue a permit described in subsection (2) or (3) for the transport of a mobile home or park model trailer on a Saturday, Sunday, legal holiday, from the noon before until the noon after a holiday, or during the hours between sunset and sunrise.

(6) A jurisdictional authority shall provide and a person operating a towing vehicle shall comply with all of the following in a permit issued under this section:

(a) The date, day, and time period during which a mobile home or park model trailer subject to the permit may be moved on a highway.

(b) Notice that the permit is conditioned upon its holder's compliance with the permit's terms and with the law.

(c) Notice that the operator of a towing vehicle transporting the mobile home or park model trailer shall operate the towing vehicle on a highway as follows:

(i) At a safe speed and in a safe manner that will not impede motor traffic.

(ii) Only when the surface condition of the highway is not slippery.

(iii) In compliance with seasonal load restrictions.

(d) For a mobile home or park model trailer and towing vehicle that, when combined, are more than 80 feet in length or more than 12 feet wide, all of the following:

(i) Notice that the mobile home or park model trailer shall be equipped with 2 flashing amber lights on the rear of the mobile home or park model trailer and 1 flashing amber light on the top of the towing vehicle.

(ii) Notice that the mobile home or park model trailer shall be equipped with stop lights and directional lights on the rear of the mobile home or park model trailer.

(iii) Notice that signs with the words "oversize load" shall be displayed on the front bumper of the towing vehicle and the back of the mobile home or park model trailer or, in the case of mobile homes or park model trailers that are 16 feet wide, notice that signs with the words "16-ft wide load" shall be displayed on the front bumper of the towing vehicle and the back of the mobile home or park model trailer.

(iv) Notice that the signs identified in subparagraph (iii) shall be of durable material, in good condition, with black lettering on interstate yellow background, and that each letter shall be of block lettering not less than 12 inches high at the front and not less than 16 inches high at the rear of the unit.

(v) Notice that a vehicle escort is required on those roads where the state police consider escort vehicles necessary for highway safety.

(7) Signs and other special identification for escort vehicles shall conform to state transportation department requirements for all escort vehicles for oversized loads.

(8) For a mobile home or park model trailer being moved pursuant to this section or section 725, the distance between mobile home or park model trailer axle centers shall not be less than 34 inches. The axles and tires shall meet standards established by the state transportation department.

(9) This section does not grant or give authority to the state transportation department that did not exist on May 1, 1982, in accordance with 23 USC 127.

(10) A person that violates this section is responsible for a civil infraction and may be assessed a civil fine of not more than $500.00. The owner of the towing vehicle may be charged with a violation of this section.

(11) The state transportation commission may order the state transportation department to immediately cease issuing all special permits to move on the highways of the lower peninsula of this state a mobile home or park model trailer that is more than 14-1/3 feet wide plus normal appurtenances that extend no more than 6 inches, and an eave that extends no more than 2 feet from the width of that mobile home or park model trailer if the state transportation commission makes a determination that those permits create an unreasonable safety hazard or hazards. The state transportation commission shall notify all other jurisdictional authorities of a determination made under this subsection. The order shall not prohibit the issuance of a special permit for the movement of a mobile home or park model trailer if a binding contract

for the movement of that mobile home or park model trailer was executed before the commission determination of an unreasonable safety hazard or hazards.

(12) As used in this section:

(a) "Jurisdictional authority" means the state transportation department, a county road commission, or a local authority that has jurisdiction over a street or highway on which a mobile home is proposed to be moved.

(b) "Mobile home" means any of the following:

(i) A prebuilt housing module.

(ii) That term as defined in section 2 of the mobile home commission act, 1987 PA 96, MCL 125.2302.

(iii) A section of a mobile home as that term is defined in subparagraph (ii).

History: Add. 1954, Act 111, Imd. Eff. Apr. 15, 1954 ;-- Am. 1963, Act 84, Imd. Eff. May 8, 1963 ;-- Am. 1969, Act 156, Eff. Mar. 20, 1970 ;-- Am. 1971, Act 58, Imd. Eff. July 20, 1971 ;-- Am. 1972, Act 163, Imd. Eff. June 13, 1972 ;-- Am. 1973, Act 207, Imd. Eff. Jan. 11, 1974 ;-- Am. 1975, Act 336, Imd. Eff. Jan. 12, 1976 ;-- Am. 1980, Act 175, Imd. Eff. June 26, 1980 ;-- Am. 1982, Act 533, Eff. Mar. 30, 1983 ;-- Am. 1983, Act 224, Imd. Eff. Nov. 28, 1983 ;-- Am. 1986, Act 284, Imd. Eff. Dec. 22, 1986 ;-- Am. 1991, Act 19, Imd. Eff. May 8, 1991 ;-- Am. 1992, Act 128, Imd. Eff. June 30, 1992 ;-- Am. 1992, Act 257, Imd. Eff. Dec. 7, 1992 ;-- Am. 1993, Act 243, Imd. Eff. Nov. 22, 1993 ;-- Am. 1996, Act 136, Imd. Eff. Mar. 21, 1996 ;-- Am. 2009, Act 32, Eff. Dec. 1, 2009

257.719b Certain mobile homes transported in lower peninsula; additional requirements.

Sec. 719b.

All mobile homes transported on the highways of the Lower Peninsula of this state that are more than 14-1/3 feet wide, plus normal appurtenances that extend no more than 6 inches, and an eave that extends no more than 2 feet from the width of the mobile home, are subject to the following requirements in addition to the requirements of section 719a:

(a) Two escort vehicles shall escort the towing vehicle and mobile home on all 2-lane roads and on those roads where the state police consider 2 escort vehicles necessary for highway safety.

(b) Each towing vehicle shall be equipped with a radio or other device that allows for continuous communication between the towing vehicle and each escort vehicle.

(c) The person transporting the mobile home shall have in effect a liability insurance policy covering personal injury and property damage and having policy limits of not less than $1,000,000.00.

(d) The towing vehicle and mobile home shall not exceed a speed of 45 miles per hour or 10 miles per hour below the posted speed limit, whichever is lower.

History: Add. 1991, Act 19, Imd. Eff. May 8, 1991 ;-- Am. 1992, Act 128, Imd. Eff. June 30, 1992 ;-- Am. 1992, Act 257, Imd. Eff. Dec. 7, 1992 ;-- Am. 1993, Act 243, Imd. Eff. Nov. 22, 1993

257.719c Truck and semitrailers used for transporting passengers for sightseeing purposes.

Sec. 719c.

(1) Notwithstanding section 719, a truck may be used to haul not more than 4 semitrailers for the purpose of transporting passengers for sightseeing purposes with the approval of the local unit of government in which the truck is to be operated not to exceed 3 miles beyond the boundaries of the local unit and if the truck does not exceed a speed of 25 miles per hour.

(2) A truck and semitrailers described in this section shall meet the following requirements:

(a) Be equipped with hazard warning lights, and slow-moving vehicle emblems as described in section 688.

(b) Be equipped with safety belts as described in section 710e for each individual seat within 1 year after the effective date of this section.

(c) Any applicable federal safety standards.

(3) A driver of a truck regulated by this section shall secure the proper group vehicle designation and any endorsement required on his or her operator's or chauffeur's license before operating a truck regulated by this section.

(4) A truck and semitrailers used as described in this section shall be inspected annually by the department of state police.

History: Add. 1995, Act 105, Imd. Eff. June 23, 1995

257.720 Construction or loading of vehicles to prevent contents from escaping; exception; closing tailgates, faucets, and taps; exemption; proof of violation; loading of vehicles not completely enclosed; prima facie liability; exceptions; front end loading device; violation; penalty; "logs" defined.

Sec. 720.

(1) A person shall not drive or move a vehicle on a highway unless the vehicle is so constructed or loaded as to prevent its contents from dropping, sifting, leaking, blowing off, or otherwise escaping from the vehicle. This requirement does not apply to a vehicle transporting agricultural or horticultural products when hay, straw, silage, or residue from a product, but not including the product itself, or when materials such as water used to preserve and handle agricultural or horticultural products while in transportation, escape from the vehicle in an amount that does not interfere with other traffic on the highway. The tailgate, faucets, and taps on a vehicle shall be securely closed to prevent spillage during transportation whether the vehicle is loaded or empty, and the vehicle shall not have any holes or cracks through which material can escape. Any highway maintenance vehicle engaged in either ice or snow removal shall be exempt from this section.

(2) Actual spillage of material on the highway or proof of that spillage is not necessary to prove a violation of this section.

(3) Except as provided in this section, a vehicle carrying a load, other than logs or tubular products, which is not completely enclosed shall meet either of the following requirements:

(a) Have the load covered with firmly secured canvas or a similar type of covering. A device used to comply with the requirement of this subdivision shall not exceed a width of 108 inches nor by design or use have the capability to carry cargo by itself.

(b) Have the load securely fastened to the body or the frame of the vehicle with binders of adequate number and of adequate breaking strength to prevent the dropping off or shifting of the load.

(4) A company or individual who loads or unloads a vehicle or causes it to be loaded or unloaded, with knowledge that it is to be driven on a public highway, in a manner so as to cause a violation of subsection (1) shall be prima facie liable for a violation of this section.

(5) Subsection (3) does not apply to a person operating a vehicle to transport agricultural commodities or to a person operating a farm truck or implement of husbandry transporting sand, gravel, and dirt necessary in the normal operation of a farm. However, a person operating a vehicle to transport agricultural commodities or sand, gravel, and dirt in the

normal operation of the farm who violates subsection (1) or (4) is guilty of a misdemeanor and is subject to the penalties prescribed in subsection (9).

(6) Subsection (3)(a) does not apply to a motor vehicle transporting items of a load that because of their weight will not fall off the moving vehicle and that have their centers of gravity located at least 6 inches below the top of the enclosure nor to a motor vehicle carrying metal that because of its weight and density is so loaded as to prevent it from dropping or falling off the moving vehicle.

(7) Subsection (3)(a) does not apply to motor vehicles and other equipment engaged in work upon the surface of a highway or street in a designated work area.

(8) A person shall not drive or move on a highway a vehicle equipped with a front end loading device with a tine protruding parallel to the highway beyond the front bumper of the vehicle unless the tine is carrying a load designed to be carried by the front end loading device. This subsection does not apply to a vehicle designed to be used or being used to transport agricultural commodities, to a vehicle en route to a repair facility, or to a vehicle engaged in construction activity. As used in this subsection, "agricultural commodities" means that term as defined in section 722.

(9) A person who violates this section is guilty of a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for not more than 90 days, or both.

(10) As used in this section, "logs" means sawlogs, pulpwood, or tree length poles.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1959, Act 215, Imd. Eff. July 30, 1959 ;-- Am. 1976, Act 301, Eff. Mar. 31, 1977 ;-- Am. 1977, Act 111, Imd. Eff. Oct. 6, 1977 ;-- Am. 1987, Act 41, Eff. July 1, 1987 ;-- Am. 1988, Act 354, Eff. Apr. 1, 1989 ;-- Am. 1989, Act 37, Imd. Eff. June 5, 1989 ;-- Am. 1990, Act 67, Imd. Eff. Apr. 27, 1990 ;-- Am. 1994, Act 50, Imd. Eff. Mar. 25, 1994 ;-- Am. 1996, Act 136, Imd. Eff. Mar. 21, 1996 ;-- Am. 2002, Act 535, Imd. Eff. July 26, 2002 ;-- Am. 2003, Act 142, Imd. Eff. Aug. 5, 2003 ;-- Am. 2008, Act 131, Imd. Eff. May 21, 2008

257.721 Passenger vehicle or pickup truck towing vehicle or trailer; drawbar or other connection; coupling devices and safety chains; pickup truck with fifth wheel assembly; conditions for towing additional trailer or semitrailer; speed limit requirements; violation as civil infraction.

Sec. 721.

(1) Except as otherwise provided in subsection (5), a passenger vehicle or a pickup truck shall not be driven upon a highway drawing or having attached to the passenger vehicle or pickup truck more than 1 vehicle or trailer.

(2) The drawbar or other connection between 2 vehicles, 1 of which is towing or drawing the other on a highway, shall not exceed 15 feet in length from 1 vehicle to the other. If the connection consists of a chain, rope, or cable, there shall be displayed upon the connection a red flag or other signal or cloth not less than 12 inches both in length and width.

(3) A vehicle or trailer towed or drawn by a vehicle shall be attached to the vehicle with forms of coupling devices in a manner so that when the combination is operated in a linear alignment on a level, smooth, paved surface, the movement of the towed or drawn vehicle or trailer does not deviate more than 3 inches to either side of the path of the towing vehicle that tows or draws it. The vehicle or trailer shall also be connected to the towing vehicle by suitable safety chains or devices, 1 on each side of the coupling and at the extreme outer edge of the vehicle or trailer. Each chain or device and connection used shall be of sufficient strength to haul the vehicle or trailer when loaded. In the case of an implement of husbandry with a gross vehicle weight rating or gross combination weight rating of 10,000 pounds or

less, the safety chains or devices required under this subsection shall conform to the federal motor carrier safety regulations requirements contained in 49 CFR 393.70(d)(5).

(4) A pickup truck with a fifth wheel assembly shall not tow a semitrailer unless the fifth wheel assembly conforms to the standards prescribed in the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25.

(5) Notwithstanding subsection (1), a pickup truck with a towing rating equal to, or greater than, the weight being towed, equipped with a fifth wheel assembly that conforms with the standards prescribed in the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11 to 480.25, towing attached with a semitrailer designed for recreational living purposes may tow an additional trailer or semitrailer under the following conditions:

(a) The additional trailer or semitrailer shall be attached as provided in subsection (3). The safety chains described in subsection (3) shall be securely attached at the extreme outer edge of the attached trailer or semitrailer with a locking mechanism. The towing vehicle hitch shall be of substantial material and shall be attached in a proper and skillful manner to the frame of the towing vehicle.

(b) The total length of the pickup truck, semitrailer designed for recreational living purposes, and additional trailer or semitrailer, and load, shall not exceed 75 feet on any highways in this state.

(c) The gross weight of the additional trailer or semitrailer towed or drawn shall not exceed the empty weight of the pickup truck or the empty weight of the semitrailer.

(6) For the purposes of this section, a pickup truck towing a semitrailer and additional trailer shall be considered a passenger vehicle and shall comply with the speed limit requirements of section 627(5).

(7) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1990, Act 75, Imd. Eff. May 17, 1990 ;-- Am. 1995, Act 248, Imd. Eff. Dec. 27, 1995 ;-- Am. 1999, Act 24, Imd. Eff. May 13, 1999 ;-- Am. 2000, Act 154, Imd. Eff. June 14, 2000 ;-- Am. 2012, Act 80, Imd. Eff. Apr. 11, 2012

257.722 Maximum axle load; normal loading maximum; designating highways as adequate for heavier loading; restrictions as to tandem axle assemblies; exceptions; public utility vehicles; normal size of tires; maximum wheel load; reduction of maximum axle load on concrete pavements during March, April, and May; exemptions; suspension of restrictions; determination of gross vehicle weight and axle weights; designation of highways for operation of certain vehicles; increase in axle loading maximums; engine fueled by compressed or liquefied natural gas; electric batteries; definitions.

Sec. 722.

(1) Except as otherwise provided in this section, the maximum axle load must not exceed the number of pounds designated in the following provisions that prescribe the distance between axles:

(a) If the axle spacing is 9 feet or more between axles, the maximum axle load must not exceed 18,000 pounds for vehicles equipped with high pressure pneumatic or balloon tires.

(b) If the axle spacing is less than 9 feet between 2 axles but more than 3-1/2 feet, the maximum axle load must not exceed 13,000 pounds for high pressure pneumatic or balloon tires.

(c) If the axles are spaced less than 3-1/2 feet apart, the maximum axle load must not exceed 9,000 pounds per axle.

(d) Subdivisions (a), (b), and (c) shall be known as the normal loading maximum.

(2) When normal loading is in effect, the state transportation department, or a local authority with respect to highways under its jurisdiction, may designate certain highways, or sections of those highways, where bridges and road surfaces are adequate for heavier loading, and revise a designation as needed, on which the maximum tandem axle assembly loading must not exceed 16,000 pounds for any axle of the assembly, if there is no other axle within 9 feet of any axle of the assembly.

(3) A combination of vehicles may operate on designated highways with not more than 1 tandem axle assembly having a gross weight of 16,000 pounds per axle, if there is no other axle within 9 feet of the assembly. On a combination of truck tractor and semitrailer having not more than 5 axles, 2 consecutive tandem axle assemblies may operate on designated highways at a gross permissible weight of 16,000 pounds per axle, if there is no other axle within 9 feet of any axle of either assembly.

(4) Notwithstanding subsection (3), on a combination of truck tractor and semitrailer having not more than 5 axles, 2 consecutive sets of tandem axles may carry a gross permissible weight of not to exceed 17,000 pounds on any axle of the tandem axles if there is no other axle within 9 feet of any axle of the tandem axles and if the first and last axles of the consecutive sets of tandem axles are not less than 36 feet apart and the gross vehicle weight does not exceed 80,000 pounds to pick up and deliver agricultural commodities between the national truck network or special designated highways and any other highway. This subsection is not subject to the maximum axle loads of subsections (1), (2), and (3). For purposes of this subsection, a "tandem axle" means 2 axles spaced more than 40 inches but not more than 96 inches apart or 2 axles spaced more than 3-1/2 feet but less than 9 feet apart. This subsection does not apply during that period when reduced maximum loads are in effect under subsection (8).

(5) The seasonal reductions described under subsection (8) to the loading maximums and gross vehicle weight requirement of subsection (12) do not apply to a person hauling agricultural commodities if the person who picks up or delivers the agricultural commodity either from a farm or to a farm notifies the county road commission for roads under its authority not less than 48 hours before the pickup or delivery of the time and location of the pickup or delivery. The county road commission shall issue a permit to the person and charge a fee that does not exceed the administrative costs incurred. The permit must contain all of the following:

(a) The designated route or routes of travel for the load.

(b) The date and time period requested by the person who picks up or delivers the agricultural commodities during which the load may be delivered or picked up.

(c) A maximum speed limit of travel, if necessary.

(d) Any other specific conditions agreed to between the parties.

(6) The seasonal reductions described under subsection (8) to the loading maximums and gross vehicle weight requirements of subsection (12) do not apply to public utility vehicles under the following circumstances:

(a) For emergency public utility work on restricted roads, as follows:

(i) If required by the county road commission, the public utility or its subcontractor shall notify the county road commission, as soon as practical, of the location of the emergency public utility work and provide a statement that the vehicles that were used to perform the emergency utility work may have exceeded the loading maximums and gross vehicle weight requirements of subsection (12) as reduced under subsection (8). The notification may be made via facsimile or electronically.

(ii) The public utility vehicle travels to and from the site of the emergency public utility work while on a restricted road at a speed not greater than 35 miles per hour.

(b) For nonemergency public utility work on restricted roads, as follows:

(i) If the county road commission requires, the public utility or its subcontractor shall apply to the county road commission annually for a seasonal truck permit for roads under its authority before seasonal weight restrictions are effective. The county road commission shall issue a seasonal truck permit for each public utility vehicle or vehicle configuration the public utility or subcontractor anticipates will be utilized for nonemergency public utility work. The county road commission may charge a fee for a seasonal truck permit that does not exceed the administrative costs incurred for the permit. The seasonal truck permit must contain all of the following:

(A) The seasonal period requested by the public utility or subcontractor during which the permit is valid.

(B) A unique identification number for the vehicle and any vehicle configuration to be covered on the seasonal truck permit requested by the public utility or subcontractor.

(C) A requirement that travel on restricted roads during weight restrictions will be minimized and only utilized when necessary to perform public utility work using the public utility vehicle or vehicle configuration and that nonrestricted roads must be used for travel when available and for routine travel.

(D) A requirement that in the case of a subcontractor the permit is only valid while the subcontractor vehicle is being operated in the performance of public utility work.

(E) A requirement that a subcontractor vehicle or vehicle configuration must display signage on the outside of the vehicle to identify the vehicle as operating on behalf of the public utility.

(ii) If the county road commission requires notification, the county road commission shall provide a notification application for the public utility or its subcontractor to use when requesting access to operate on restricted roads and the public utility or its subcontractor shall provide notification to the county road commission, via facsimile or electronically, not later than 24 hours before the time of the intended travel. A subcontractor using a vehicle on a restricted road shall have a copy of any notification provided to a county road commission in the subcontractor's possession while performing the relevant nonemergency work. Notwithstanding this subsection or an agreement under this subsection, if the county road commission determines that the condition of a particular road under its jurisdiction makes it unusable, the county road commission may deny access to all or any part of that road. The denial must be made and communicated via facsimile or electronically to the public utility or its subcontractor within 24 hours after receiving notification that the public utility or subcontractors intends to perform nonemergency work that requires use of that road. Any notification that is not disapproved within 24 hours after the notice is received by the county road commission is considered approved. The notification application required under this subparagraph may include all of the following information:

(A) The address or location of the nonemergency work.

(B) The date or dates of the nonemergency work.

(C) The route to be taken to the nonemergency work site.

(D) The restricted road or roads intended to be traveled upon to the nonemergency work site or sites.

(E) In the case of a subcontractor, the utility on whose behalf the subcontractor is performing services.

(7) The normal size of tires must be the rated size as published by the manufacturers, and the maximum wheel load permissible for any wheel must not exceed 700 pounds per inch of width of tire.

(8) Except as provided in this subsection and subsection (9), during the months of March, April, and May in each year, the maximum axle load allowable on concrete pavements or pavements with a concrete base is reduced by 25% from the maximum axle load as specified in this chapter, and the maximum axle loads allowable on all other types of roads during these months are reduced by 35% from the maximum axle loads as specified. The maximum wheel load must not exceed 525 pounds per inch of tire width on concrete and concrete base or 450 pounds per inch of tire width on all other roads during the period the seasonal road restrictions are in effect. Subject to subsection (5), this subsection does not apply to vehicles transporting agricultural commodities or, subject to subsection (6), public utility vehicles on a highway, road, or street under the jurisdiction of a local road agency, or a school bus. In addition, this subsection does not apply to a vehicle delivering propane fuel to a residence if the vehicle's propane tank is filled to not more than 50% of its capacity and the vehicle is traveling at not more than 35 miles per hour. The state transportation department and each local authority with highways and streets under its jurisdiction to which the seasonal restrictions prescribed under this subsection apply shall post all of the following information on the homepage of its website or, if a local authority does not have a website, then on the website of a statewide road association of which it is a member:

(a) The dates when the seasonal restrictions are in effect.

(b) The names of the highways and streets and portions of highways and streets to which the seasonal restrictions apply.

(9) The state transportation department for roads under its jurisdiction and a county road commission for roads under its jurisdiction may grant exemptions from seasonal weight restrictions for milk on specified routes when requested in writing. Approval or denial of a request for an exemption must be given by written notice to the applicant within 30 days after the date of submission of the application. If a request is denied, the written notice must state the reason for denial and alternate routes for which the permit may be issued. The applicant may appeal to the state transportation commission or the county road commission. These exemptions do not apply on county roads in counties that have negotiated agreements with milk haulers or haulers of other commodities during periods of seasonal load limits before April 14, 1993. This subsection does not limit the ability of these counties to continue to negotiate such agreements.

(10) The state transportation department, or a local authority with respect to highways under its jurisdiction, may suspend the restrictions imposed by this section when and where conditions of the highways or the public health, safety, and welfare warrant suspension, and impose the restricted loading requirements of this section on designated highways at any other time that the conditions of the highway require.

(11) For the purpose of enforcing this act, the gross vehicle weight of a single vehicle and load or a combination of vehicles and loads must be determined by weighing individual axles or groups of axles, and the total weight on all the axles is the gross vehicle weight. In addition, the gross axle weight must be determined by weighing individual axles or by weighing a group of axles and dividing the gross weight of the group of axles by the number of axles in the group. For purposes of subsection (12), the overall gross weight on a group of 2 or more axles must be determined by weighing individual axles or several axles, and the total weight of all the axles in the group is the overall gross weight of the group.

(12) The loading maximum in this subsection applies to interstate highways, and the state transportation department, or a local authority with respect to highways under its jurisdiction, may designate a highway, or a section of a highway, for the operation of vehicles having a gross vehicle weight of not more than 80,000 pounds that are subject to the following load maximums:

(a) Twenty thousand pounds on any 1 axle, including all enforcement tolerances.

(b) A tandem axle weight of 34,000 pounds, including all enforcement tolerances.

(c) An overall gross weight on a group of 2 or more consecutive axles equaling:

$$W=500[(LN)/(N-1)+12N+36]$$

where W = overall gross weight on a group of 2 or more consecutive axles to the nearest 500 pounds, L = distance in feet between the extreme of a group of 2 or more consecutive axles, and N = number of axles in the group under consideration; except that 2 consecutive sets of tandem axles may carry a gross load of 34,000 pounds each if the first and last axles of the consecutive sets of tandem axles are not less than 36 feet apart. The gross vehicle weight must not exceed 80,000 pounds including all enforcement tolerances. Except for 5 axle truck tractor, semitrailer combinations having 2 consecutive sets of tandem axles, vehicles having a gross weight in excess of 80,000 pounds or in excess of the vehicle gross weight determined by application of the formula in this subsection are subject to the maximum axle loads of subsections (1), (2), and (3). As used in this subsection, "tandem axle weight" means the total weight transmitted to the road by 2 or more consecutive axles, the centers of which may be included between parallel transverse vertical planes spaced more than 40 inches but not more than 96 inches apart, extending across the full width of the vehicle. Except as otherwise provided in this section, vehicles transporting agricultural commodities have the weight load maximums under this subsection.

(13) The axle loading maximums under subsections (1), (2), (3), and (4) are increased by 10% for vehicles transporting agricultural commodities or raw timber, excluding farm equipment and fuel, from the place of harvest or farm storage to the first point of delivery on a road in this state. However, the axle loading maximums as increased under this subsection do not alter the gross vehicle weight restrictions under this act. This subsection does not apply to either of the following:

(a) A vehicle utilizing an interstate highway.

(b) A vehicle utilizing a road that is subject to seasonal weight restrictions under subsection (8) during the time that the seasonal weight restrictions are in effect.

(14) Notwithstanding any other provision of this section, a vehicle or combination of vehicles that have a gross weight of 82,000 pounds or less and that is operated by an engine that is fueled wholly or partially by compressed or liquefied natural gas may exceed the axle loading maximums under subsections (1), (2), (3), and (4) and the weight load maximums under subsection (12) by an amount equal to the difference between the weight of the vehicle attributable to the natural gas tank and fueling system carried by that vehicle and the weight of a comparable diesel tank and fueling system. A vehicle or combination of vehicles described in this subsection may exceed the axle loading maximums under subsections (1), (2), (3), and (4) and the weight load maximums under subsection (12) by a total of not more than 2,000 pounds for all axles of the truck, truck tractor, or power unit.

(15) Notwithstanding any other provision of this section, a vehicle or combination of vehicles that have a gross weight of 82,000 pounds or less and that are powered wholly or partially by electric batteries may exceed the axle loading maximums under subsections (1), (2), (3), and (4) and the weight load maximums under subsection (12) by a total of not more than 2,000 pounds for all axles of the truck, truck tractor, or power unit.

(16) As used in this section:

(a) "Agricultural commodities" means those plants and animals useful to human beings produced by agriculture and includes, but is not limited to, forages and sod crops, grains and feed crops, field crops, dairy and dairy products, poultry and poultry products, cervidae, livestock, including breeding and grazing, equine, fish, and other aquacultural products, bees and bee products, berries, herbs, fruits, vegetables, flowers, seeds, grasses, nursery stock, mushrooms, fertilizer, livestock bedding, farming equipment, fuel for agricultural use, and maple sap. Agricultural commodities do not include trees or lumber.

(b) "Emergency public utility work" means work performed to restore public utility service or to eliminate a danger to the public due to a natural disaster, an act of God, or an emergency situation, whether or not a public official has declared an emergency.

(c) "Farm storage" means any of the following:

(i) An edifice, silo, tank, bin, crib, interstice, or protected enclosed structure, or more than 1 edifice, silo, tank, bin, crib, interstice, or protected enclosed structure located contiguous to each other.

(ii) An open environment used for the purpose of temporarily storing a crop.

(d) "Public utility" means a public utility under the jurisdiction of the public service commission or a transmission company.

(e) "Public utility vehicle" means a vehicle owned or operated by a public utility or operated by a subcontractor on behalf of a public utility.

(f) "Transmission company" means either an affiliated transmission company or an independent transmission company as those terms are defined in section 2 of the electric transmission line certification act, 1995 PA 30, MCL 460.562.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1965, Act 36, Imd. Eff. May 19, 1965 ;-- Am. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1974, Act 348, Imd. Eff. Dec. 21, 1974 ;-- Am. 1975, Act 270, Imd. Eff. Nov. 10, 1975 ;-- Am. 1978, Act 385, Imd. Eff. July 27, 1978 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 217, Imd. Eff. July 18, 1980 ;-- Am. 1980, Act 487, Imd. Eff. Jan. 21, 1981 ;-- Am. 1982, Act 206, Imd. Eff. July 1, 1982 ;-- Am. 1984, Act 74, Imd. Eff. Apr. 18, 1984 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1989 ;-- Am. 1993, Act 22, Imd. Eff. Apr. 14, 1993 ;-- Am. 2000, Act 6, Imd. Eff. Feb. 24, 2000 ;-- Am. 2002, Act 41, Imd. Eff. Mar. 12, 2002 ;-- Am. 2006, Act 83, Imd. Eff. Mar. 29, 2006 ;-- Am. 2006, Act 658, Imd. Eff. Jan. 10, 2007 ;-- Am. 2008, Act 579, Imd. Eff. Jan. 16, 2009 ;-- Am. 2009, Act 146, Imd. Eff. Nov. 19, 2009 ;-- Am. 2012, Act 252, Imd. Eff. July 2, 2012 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2012, Act 522, Imd. Eff. Dec. 28, 2012 ;-- Am. 2016, Act 72, Eff. July 4, 2016 ;-- Am. 2017, Act 80, Eff. Oct. 9, 2017 ;-- Am. 2018, Act 273, Eff. Sept. 27, 2018 ;-- Am. 2018, Act 274, Eff. Sept. 27, 2018 ;-- Am. 2024, Act 106, Eff. Apr. 2, 2025

Compiler's Notes: Enacting section 1 of Act 522 of 2012 provides:"Enacting section 1. It is the intent of the legislature that the exception to the seasonal weight reductions in subsection (8) of section 722 of the Michigan vehicle code, 1949 PA 300, MCL 257.722, as added by this amendatory act, applies only to emergency deliveries of propane. As used in this enacting section, "emergency delivery" means a delivery to a customer whose residential fuel tank is estimated to contain no more than 25% of its heating fuel capacity on the date of delivery."

257.722a Transporting flammable liquid; violation as misdemeanor; penalty; enforcement; “in bulk” defined; vehicles transporting hazardous materials.

Sec. 722a.

(1) A truck pulling a trailer, a truck tractor pulling a semitrailer and trailer combination, or a truck tractor pulling 2 semitrailers shall not transport a flammable liquid, in bulk, which has a flash point at or below 70 degrees Fahrenheit within this state.

(2) A truck pulling a trailer, a truck tractor pulling a semitrailer and trailer combination, or a truck tractor pulling 2 semitrailers shall not transport a flammable gas or a compressed flammable gas, in bulk, as defined by 49 C.F.R. parts 100 to 180, within this state.

(3) A truck or a truck tractor pulling a semitrailer shall not transport a flammable liquid, in bulk, which has a flash point at or below 70 degrees Fahrenheit in this state, unless the truck or the semitrailer has a water capacity of less than 13,800 gallons. This subsection does not apply to those vehicles registered with the motor carrier division of the department of state police on or before January 1, 1986.

(4) A truck or truck tractor pulling a semitrailer shall not transport a flammable liquid, in bulk, which has a flash point at or below 70 degrees Fahrenheit in a quantity of more than 13,400 gallons.

(5) The owner or driver of a vehicle that transports, or a shipper who loads a vehicle with a flammable liquid, flammable gas, or compressed flammable gas in violation of this section is guilty of a misdemeanor, punishable by a fine of not more than $3,000.00, or imprisonment for not more than 90 days, or both.

(6) This section shall be enforced only by a police officer.

(7) For the purposes of this section, "in bulk" means an amount of product or material of 3,500 water gallons or more in a single containment system. Commercial motor vehicles transporting hazardous materials shall comply with the motor carrier safety act, Act No. 181 of the Public Acts of 1963, being sections 480.11 to 480.21 of the Michigan Compiled Laws.

History: Add. 1984, Act 74, Imd. Eff. Apr. 18, 1984 ;-- Am. 1985, Act 141, Imd. Eff. Oct. 31, 1985 ;-- Am. 1993, Act 249, Imd. Eff. Nov. 22, 1993 ;-- Am. 1995, Act 248, Imd. Eff. Dec. 27, 1995

257.723 Towing or platform bed wreckers or road service vehicles; compliance with federal identification requirements; violation as civil infraction.

Sec. 723.

(1) All towing or platform bed wreckers or road service vehicles in operation upon the public highways of this state shall have the name, city, and state or the registered logo or emblem of the registered owner of the vehicle, and lessee of the vehicle if the vehicle is being operated under lease, painted or permanently attached on each side of the vehicle in letters of not less than 3 inches in height, not lower than the bottom edge of the door. This information shall be in sharp color contrast to the background.

(2) A vehicle in compliance with the identification requirements of the federal motor carrier safety regulations, 49 CFR parts 390-399, is considered to be in compliance with this section.

(3) A person who violates this section is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1963, Act 185, Eff. Sept. 6, 1963 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1989 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2005, Act 179, Imd. Eff. Oct. 20, 2005 ;-- Am. 2014, Act 294, Eff. Mar. 31, 2015

257.724 Stopping vehicle for weighing; shifting or removing load; civil fine and costs; moving vehicle to place of safekeeping; impoundment; lien; foreclosure sale; powers of authorized agent; unlawful weight as civil infraction; fine; driving duly marked vehicle; failure to stop as misdemeanor.

Sec. 724.

(1) A police officer, a peace officer, or an authorized agent of the state transportation department or a county road commission having reason to believe that the weight of a vehicle and load is unlawful may require the driver to stop and submit to a weighing of the vehicle by either portable or stationary scales approved and sealed as a legal weighing device by a qualified person using testing equipment certified or approved by the department of agriculture and rural development as a legal weighing device and may require that the vehicle be driven to the nearest weigh station of the state transportation department for the purpose of allowing a police officer, peace officer, or agent of the state transportation department or county road commission to determine whether the vehicle is loaded in conformity with this chapter.

(2) When the officer or agent, upon weighing a vehicle and load, determines that the weight is unlawful, the officer or agent may require the driver to stop the vehicle in a suitable place and remain standing until that portion of the load is shifted or removed as necessary to reduce the gross axle load weight of the vehicle to the limit permitted under this chapter. All material unloaded as provided under this subsection shall be cared for by the owner or operator of the vehicle at the risk of the owner or operator. A judge or magistrate imposing a civil fine and costs under this section that are not paid in full immediately or for which a bond is not immediately posted in the amount of the civil fine and costs shall order the driver or owner to move the vehicle at the driver's own risk to a place of safekeeping within the jurisdiction of the judge or magistrate, inform the judge or magistrate in writing of the place of safekeeping, and keep the vehicle until the fine and costs are paid or sufficient bond is furnished or until the judge or magistrate is satisfied that the fine and costs will be paid. The officer or agent who has determined, after weighing a vehicle and load, that the weight is unlawful, may require the driver to proceed to a judge or magistrate within the county. If the judge or magistrate is satisfied that the probable civil fine and costs will be paid by the owner or lessee, the judge or magistrate may allow the driver to proceed, after the load is made legal. If the judge or magistrate is not satisfied that the owner or lessee, after a notice and a right to be heard on the merits is given, will pay the amount of the probable civil fine and costs, the judge or magistrate may order the vehicle to be impounded until trial on the merits is completed under conditions set forth in this section for the impounding of vehicles after the civil fine and costs have been imposed. Removal of the vehicle, and forwarding, care, or preservation of the load shall be under the control of and at the risk of the owner or driver. Vehicles impounded are subject to a lien, subject to a prior valid bona fide lien of prior record, in the amount of the civil fine and costs and if the civil fine and costs are not paid within 90 days after the seizure, the judge or magistrate must certify the unpaid judgment to the prosecuting attorney of the county in which the violation occurred, who shall proceed to enforce the lien by foreclosure sale in accordance with procedure authorized in the case of chattel mortgage foreclosures. When the duly authorized agent of the state transportation department or county road commission is performing duties under this chapter, the agent has all the powers conferred upon peace officers by the general laws of this state.

(3) Subject to subsection (4), an owner of a vehicle or a lessee of the vehicle of an owner-operator, or other person, who causes or allows a vehicle to be loaded and driven or moved on

a highway when the weight of that vehicle violates section 722 is responsible for a civil infraction and must pay a civil fine in an amount equal to 3 cents per pound for each pound of excess load over 1,000 pounds when the excess is 2,000 pounds or less; 6 cents per pound of excess load when the excess is over 2,000 pounds but not over 3,000 pounds; 9 cents per pound for each pound of excess load when the excess is over 3,000 pounds but not over 4,000 pounds; 12 cents per pound for each pound of excess load when the excess is over 4,000 pounds but not over 5,000 pounds; 15 cents per pound for each pound of excess load when the excess is over 5,000 pounds but not over 10,000 pounds; and 20 cents per pound for each pound of excess load when the excess is over 10,000 pounds. If a person operates a vehicle in violation of increased axle loading maximums provided for under section 722(13), the owner or lessee of the vehicle is responsible for a civil infraction and must pay the civil fine under this subsection that applies to the amount of weight by which the vehicle exceeds the original loading maximum.

(4) If the court determines that the motor vehicle or the combination of vehicles was operated in violation of this section, the court must impose a fine as follows:

(a) If the court determines that the motor vehicle or the combination of vehicles was operated in such a manner that the gross weight of the vehicle or the combination of vehicles would not be lawful by a proper distribution of the load upon all the axles of the vehicle or the combination of vehicles, the court must impose a fine for the violation according to the schedule provided for in subsection (3).

(b) If the court determines that the motor vehicle or the combination of vehicles would be lawful by a proper distribution of the load upon all of the axles of the vehicle or the combination of vehicles, but that 1 or more axles of the vehicle exceeded the maximum allowable axle weight by more than 1,000 pounds but less than 4,000 pounds, the court must impose a misload fine of $200.00 per axle. Not more than 3 axles shall be used in calculating the fine to be imposed under this subdivision. This subdivision does not apply to a vehicle subject to the maximum loading provisions of section 722(12) or to a vehicle for which a fine as calculated under the schedule in subsection (3) would be less than the fine as calculated under this subsection.

(c) If the court determines that the motor vehicle or the combination of vehicles would meet the loading conditions specified in a special permit that was issued under section 725 by a proper distribution of the load upon all of the axles of the vehicle or the combination of vehicles, but that 1 or more axles of the vehicle exceeded the permitted axle weight by 1,000 pounds or less, the court must impose a misload fine of $200.00 per axle. If the court determines that the motor vehicle or the combination of vehicles would meet the loading conditions specified in a special permit that was issued under section 725 by a proper distribution of the load upon all of the axles of the vehicle or the combination of vehicles, but that 1 or more axles of the vehicle exceeded the permitted axle weight by more than 1,000 pounds, the court must impose a fine for the violation according to the schedule provided in subsection (3) for the amount of pounds exceeding the permitted axle weight. Not more than 3 axles shall be used in calculating the fine to be imposed under this subdivision. If the court determines that the load was misloaded, the conditions of the special permit remain valid. The imposition of a fine does not void the special permit.

(d) If the court determines that the motor vehicle or the combination of vehicles would be lawful by a proper distribution of the load upon all of the axles of the vehicle or the combination of vehicles, but that 1 or more axles of the vehicle exceeded the permitted axle weight by at least 4,000 pounds but no more than 8,000 pounds, the court must impose a

misload fine of $400.00 per axle. Not more than 3 axles shall be used in calculating the fine to be imposed under this subdivision.

(e) If the court determines that the motor vehicle or the combination of vehicles would be lawful by a proper distribution of the load upon all of the axles of the vehicle or the combination of vehicles, but that 1 or more axles of the vehicle exceeded the permitted axle weight by more than 8,000 pounds, the court must impose a fine for the violation according to the schedule provided in subsection (3).

(5) A driver or owner of a truck or truck tractor, a truck or truck tractor with other vehicles in combination, or any special mobile equipment who fails to stop at or bypasses any scales or weighing station is responsible for a civil infraction.

(6) An agent or authorized representative of the state transportation department or a county road commission shall not stop a truck or vehicle in movement upon a road or highway within the state for any purpose, unless the agent or authorized representative is driving a duly marked vehicle, clearly showing and denoting the branch of government represented.

(7) A driver or owner of a vehicle who knowingly fails to stop when requested or ordered to do so and submit to a weighing by a police officer, a peace officer, or an authorized agent of the state transportation department, or a representative or agent of a county road commission, authorized to require the driver to stop and submit to a weighing of the vehicle and load by means of a portable scale, is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $100.00, or both. A driver or person who dumps his or her load when ordered to submit to a weigh or who otherwise attempts to commit or commits an act to avoid a vehicle weigh is in violation of this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 233, Eff. Sept. 28, 1951 ;-- Am. 1952, Act 13, Imd. Eff. Feb. 28, 1952 ;-- Am. 1955, Act 209, Imd. Eff. June 17, 1955 ;-- Am. 1964, Act 222, Eff. Aug. 28, 1964 ;-- Am. 1967, Act 277, Eff. Nov. 2, 1967 ;-- Am. 1968, Act 135, Imd. Eff. June 11, 1968 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1989 ;-- Am. 2004, Act 420, Eff. Jan. 1, 2006 ;-- Am. 2005, Act 179, Imd. Eff. Oct. 20, 2005 ;-- Am. 2009, Act 169, Imd. Eff. Dec. 14, 2009 ;-- Am. 2012, Act 252, Imd. Eff. July 2, 2012 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2016, Act 450, Eff. Apr. 5, 2017 ;-- Am. 2018, Act 651, Eff. Mar. 29, 2019

257.724a Axle weight requirements; exception; weight after lift axles lowered; "lift axle" defined.

Sec. 724a.

(1) The axle weight requirements of this chapter do not apply to a vehicle equipped with lift axles during the period in which axles are raised to negotiate an intersection, driveway, or other turn and until the lift axles are fully engaged after the period of time or the distance necessary to negotiate that intersection, driveway, or other turn.

(2) If a vehicle is to be weighed to determine whether the vehicle is being operated in violation of this act or a rule promulgated under this act or of a local ordinance substantially corresponding to this act or a rule promulgated under this act and the vehicle is equipped with lift axles that have been raised to allow the vehicle to negotiate an intersection, driveway, or other turn, the vehicle shall be weighed only after the lift axles have been fully lowered and are under operational pressure as provided in subsection (1).

(3) As used in this section, "lift axle" means an axle on a vehicle that can be raised or lowered by mechanical means.

History: Add. 2004, Act 420, Eff. Jan. 1, 2006

257.725 Special permit for certain vehicles and loads required; fees; violation as civil infraction; annual permit for movement of construction equipment; "jurisdictional authority" defined.

Sec. 725.

(1) Upon receipt of a written application and good cause being shown, a jurisdictional authority may issue a written special permit authorizing an applicant to operate upon or remove from a highway maintained by that jurisdictional authority a vehicle or combination of vehicles that are any of the following:

(a) Of a size, weight, or load exceeding the maximum specified in this chapter.

(b) Otherwise not in conformity with this chapter.

(2) The application for a special permit shall be on a form prescribed by the jurisdictional authority and shall specifically describe the vehicle or vehicles and load to be operated or moved and the particular highways upon which the special permit to operate is requested.

(3) A jurisdictional authority may issue a special permit and charge a fee that does not exceed the administrative costs incurred authorizing the operation of the following upon a highway:

(a) Traction engines or tractors having movable tracks with transverse corrugations upon the periphery of those movable tracks on farm tractors.

(b) Other farm machinery otherwise prohibited under this chapter.

(c) A vehicle of a size or weight otherwise prohibited under this chapter that is hauling farm machinery to or from a farm.

(4) A special permit shall specify the trip or trips and date or dates for which it is valid and the jurisdictional authority granting the special permit may restrict or prescribe conditions of operation of a vehicle or vehicles, if necessary, to protect the safety of the public or to ensure against undue damage to the road foundations, surfaces, structures, or installations, and may require a reasonable inspection fee and other security as that jurisdictional authority determines necessary to compensate for damages caused by the movement. A special permit may be issued on an annual basis. Except as otherwise provided in this section, the fee charged by the state transportation department for an intrastate or an out-of-state vehicle for a single trip shall be $50.00 and for multiple trips or on an annual basis shall be $100.00. Except as otherwise provided in this section, the fee charged by the state transportation department for an intrastate or an out-of-state vehicle for a permit issued under subsection (11) shall be $264.00. Except as otherwise provided in this section, the fee charged by a jurisdictional authority other than the state transportation department for an intrastate or an out-of-state vehicle for a single trip shall be not more than $50.00 and for multiple trips or on an annual basis shall be not more than $100.00. Effective October 1, 1998, the fee charged by a jurisdictional authority other than the state transportation department for a special permit under this subsection shall be the fee charged on September 30, 1997. The fee charged by a jurisdictional authority other than the state transportation department for a special permit under this subsection may be increased above the amount charged on September 30, 1997 subject to the maximums allowed by this subsection subject to a prior public hearing with reasonable notice. However, the fee charged by a jurisdictional authority other than the state transportation department for a special permit under this subsection that is more than $50.00 for a single trip or that is more than $100.00 for multiple trips or on an annual basis, or both, on September 30, 1997 shall not be increased.

(5) The fee charged by the state transportation department for an intrastate or an out-of-state vehicle or combination of vehicles that exceed the maximum size specified in this chapter but do not exceed the maximum weight or load specified in this chapter or are otherwise not in conformity with this chapter shall be $15.00 for a single trip and $30.00 for multiple trips or on an annual basis. The fee charged by the state transportation department for an intrastate or out-of-state vehicle or combination of vehicles that exceed the maximum size specified in this chapter but do not exceed the maximum weight or load specified in this chapter or are otherwise not in conformity with this chapter for a permit issued under subsection (11) shall be $264.00. The fees charged under this subsection may be increased not more than once each year based on the percentage increase in the United States consumer price index for all urban consumers for the immediately preceding 12-month period rounded to the nearest whole dollar. This subsection takes effect October 1, 1998.

(6) The fee charged by a jurisdictional authority other than the state transportation department for an intrastate or an out-of-state vehicle or combination of vehicles of a size exceeding the maximum specified in this chapter but not exceeding the maximum weight or load specified in this chapter shall not exceed the administrative costs incurred by that jurisdictional authority in issuing the permit. This subsection takes effect October 1, 1998.

(7) A special permit issued under this section shall be carried in the vehicle or combination of vehicles to which it refers and shall be open to inspection by a police officer or authorized agent of a jurisdictional authority granting the special permit. A person shall not violate any of the terms or conditions of the special permit.

(8) A person who violates this section is responsible for a civil infraction.

(9) A jurisdictional authority issuing a special permit to move a mobile home under this section and a person who is issued a special permit to move a mobile home under this section are subject to section 719a.

(10) Nothing in this section shall be construed to allow a jurisdictional authority to impose fees upon or enact regulations regarding a vehicle or combination of vehicles engaged in silvicultural operations if the vehicle or combination of vehicles is not in excess of the size, weight, or load maximums specified in this chapter and is otherwise in conformity with this chapter. This subsection does not excuse a vehicle or combination of vehicles engaged in silvicultural operations from the seasonal weight reductions described in section 722.

(11) Beginning no later than 2 years after the effective date of the 2018 amendatory act that added this subsection, the state transportation department shall allow an applicant to obtain an annual permit for the movement of construction equipment under this section to exceed the size, load, or size and load maximums specified in this chapter for a power unit without requiring a separate permit for each individual piece of equipment carried by that power unit.

(12) Beginning no later than 2 years after the effective date of the 2018 amendatory act that added this subsection, all of the following apply to an annual permit for the movement of construction equipment issued by the state transportation department under subsection (11):

(a) The permit may be stored and presented by the holder of the permit using a mobile device.

(b) The permit shall not contain any restrictions on daily operating hours and shall only include Memorial Day weekend, the Fourth of July holiday, and Labor Day weekend as restricted holidays. Except as otherwise provided in this subdivision, the permit shall not restrict travel on weekends. The permit may contain restrictions on travel when the permit holder is traveling within a county that has a population greater than 150,000. The restricted holidays described in this subdivision do not apply to a permit issued for a vehicle used to transport an implement of husbandry.

(c) The permit shall not require travel of more than 10 miles per hour below the posted speed limit.

(13) As used in this section, "jurisdictional authority" means the state transportation department, a county road commission, or a local authority having jurisdiction over a highway upon which a vehicle is proposed to be moved pursuant to a permit required under this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1952, Act 69, Imd. Eff. Apr. 8, 1952 ;-- Am. 1966, Act 237, Eff. Mar. 10, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 16, Eff. Aug. 1, 1979 ;-- Am. 1991, Act 19, Imd. Eff. May 8, 1991 ;-- Am. 1997, Act 80, Eff. Oct. 1, 1997 ;-- Am. 1998, Act 247, Imd. Eff. July 8, 1998 ;-- Am. 2016, Act 454, Eff. Apr. 5, 2017 ;-- Am. 2018, Act 17, Eff. May 14, 2018

257.725a Transportation of farm machinery or implements by dealer; annual permit; condition.

Sec. 725a.

Upon application, the state transportation department may issue an annual permit authorizing a farm implement dealer to transport by truck, truck tractor, semitrailer, or trailer upon a state highway during daylight hours, including Saturday, farm machinery or implements of a greater width or height than authorized by this act if the transportation is otherwise permitted under those rules promulgated pursuant to section 716 that do not conflict with this section.

History: Add. 1958, Act 132, Imd. Eff. Apr. 18, 1958 ;-- Am. 1959, Act 250, Imd. Eff. Aug. 21, 1959 ;-- Am. 1978, Act 581, Imd. Eff. Jan. 2, 1979 ;-- Am. 1980, Act 311, Imd. Eff. Dec. 4, 1980 ;-- Am. 2002, Act 653, Imd. Eff. Dec. 23, 2002

257.726 Prohibitions, limitations, or truck route designations by local authorities and county road commissions; signs; written objection by adjoining township; violation as civil infraction; exception for agricultural equipment.

Sec. 726.

(1) Subject to subsection (4), local authorities and county road commissions with respect to highways under their jurisdiction, except state trunk line highways, by ordinance or resolution, may do any of the following:

(a) Prohibit the operation of trucks or other commercial vehicles on designated highways or streets.

(b) Impose limitations as to the weight of trucks or other commercial vehicles on designated highways or streets.

(c) Provide that only certain highways or streets may be used by trucks or other commercial vehicles.

(2) Any prohibitions, limitations, or truck route designations established under subsection (1) shall be designated by appropriate signs placed on the highways or streets. The design and placement of the signs shall be consistent with the requirements of section 608.

(3) If a township has established a prohibition or limitation under subsection (1) on any county primary road that an adjoining township determines diverts traffic onto a border highway or street shared by the township and the adjoining township, the adjoining township may submit a written objection to the county road commission having jurisdiction over the county primary road, along with a copy to the township that established the prohibition or limitation, 60 days after the township approves the prohibition or limitation. The written

objection shall explain how the prohibition or limitation diverts traffic onto the border highway or street shared by the township and the adjoining township. The county road commission shall then investigate the objection. The township and adjoining township shall cooperate with that investigation and negotiate in good faith to resolve the objection. If the objection is not resolved within 60 days after the township receives the copy of the written objection, the county road commission shall either approve or void the prohibition or limitation that is the subject of the objection within 60 days after the 60-day period described in this subsection, and the decision shall be final. As used in this subsection, "county primary road" means a highway or street designated as a county primary road under 1951 PA 51, MCL 247.671 to 247.675.

(4) An ordinance or resolution described in subsection (1)(a) does not apply to a vehicle that is used to transport agricultural products, farm machinery, farm supplies, or a combination of these items, to or from a farm or as necessary for agricultural production.

(5) A person who violates a prohibition, limitation, or truck route designation established under subsection (1) is responsible for a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1983, Act 107, Imd. Eff. June 30, 1983 ;-- Am. 2008, Act 539, Imd. Eff. Jan. 13, 2009 ;-- Am. 2018, Act 533, Eff. Mar. 28, 2019

Constitutionality: This section was held unconstitutional insofar as it deprives a municipality of the right to reasonable control over its streets, including state trunk lines within its limits, in violation of Const 1963, art VII, § 29. City of Dearborn v Sugden and Sivier, Inc, 343 Mich 257; 72 NW2d 185 (1955).

Compiler's Notes: In the last sentence of subsection (3), the citation "1951 PA 51, MCL 247.671 to 247.675" evidently should read "1951 PA 51, MCL 247.651 to 247.675".

257.726a Enforcement of act on boundary streets or highways.

Sec. 726a.

A peace officer of any county, city, village or township of this state may exercise authority and powers outside his own county, city, village or township when he is enforcing this act on a street or highway which is on the boundary of the county, city, village or township the same as if he were in his own county, city, village or township.

History: Add. 1968, Act 47, Imd. Eff. May 28, 1968 ;-- Am. 1972, Act 122, Imd. Eff. Apr. 27, 1972

257.726b Violation as to load, weight, or height of vehicle or load; powers of police officer.

Sec. 726b.

Any police officer having reason to believe that the load, weight, or height of a vehicle or load is in violation of section 719, 720, 722a, or 724 which violation is a misdemeanor, may require the driver of the vehicle to stop, and the officer may investigate, weigh, or measure the vehicle or load. If after personally investigating, weighing, or measuring the vehicle or load, the officer determines that the load, weight, or height of a vehicle or load are in violation of the requirements of section 719, 720, 722a, or 724, the officer may temporarily detain the driver of the vehicle for purposes of making a record or vehicle check, may make an arrest for the violation, and may proceed as otherwise provided in this act.

History: Add. 1984, Act 74, Imd. Eff. Apr. 18, 1984

257.726c Duly authorized agent of county road commission; shoulder patch required; firearm.

Sec. 726c.

(1) A duly authorized agent of a county road commission when enforcing sections 215, 255, 631(1), 717, 719, 719a, 720, 722, 724, 725, and 726 shall wear a shoulder patch that is clearly visible and identifies the branch of government represented.

(2) A duly authorized agent of a county road commission shall not carry a firearm while enforcing sections 215, 255, 631(1), 717, 719, 719a, 720, 722, 724, 725, and 726 unless he or she is licensed or certified as a police officer under the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615.

History: Add. 1984, Act 74, Imd. Eff. Apr. 18, 1984 ;-- Am. 1989, Act 173, Imd. Eff. Aug. 22, 1989 ;-- Am. 2012, Act 529, Eff. Mar. 28, 2013 ;-- Am. 2016, Act 304, Eff. Jan. 2, 2017

257.727 Arrest without warrant; arraignment by magistrate or family division of circuit court.

Sec. 727.

If a person is arrested without a warrant in any of the following cases, the arrested person shall, without unreasonable delay, be arraigned by the magistrate who is nearest or most accessible within the judicial district as provided in section 13 of chapter IV of the code of criminal procedure, 1927 PA 175, MCL 764.13, or, if a minor, taken before the family division of circuit court within the county in which the offense charged is alleged to have been committed:

(a) The person is arrested under section 601d.

(b) The person is arrested under section 625(1), (3), (4), (5), (6), (7), or (8), or an ordinance substantially corresponding to section 625(1), (3), (6), or (8).

(c) A person is arrested under section 626 or an ordinance substantially corresponding to that section. If under the existing circumstances it does not appear that releasing the person pending the issuance of a warrant will constitute a public menace, the arresting officer may proceed as provided by section 728.

(d) A person arrested does not have in his or her immediate possession a valid operator's or chauffeur's license or the receipt described in section 311a. If the arresting officer otherwise satisfactorily determines the identity of the person and the practicability of subsequent apprehension if the person fails to voluntarily appear before a designated magistrate or the family division of circuit court as directed, the officer may release the person from custody with instructions to appear in court, given in the form of a citation as prescribed by section 728.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1965, Act 41, Imd. Eff. May 25, 1965 ;-- Am. 1983, Act 63, Eff. Mar. 29, 1984 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 301, Eff. June 30, 1994 ;-- Am. 1998, Act 348, Eff. Oct. 1, 1999 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010

257.727a Repealed. 1979, Act 66, Eff. Aug. 1, 1979.

Compiler's Notes: The repealed section pertained to citations for traffic violations.

257.727b Citation books; issuance; receipt.

Sec. 727b.

Each police chief, including the state police, and each sheriff shall issue citation books to each police officer of the department whose duties may or will include traffic duty or traffic law enforcement. Each police chief shall obtain a receipt from the officer to whom a citation book has been issued upon a form created by the secretary of state, the attorney general, the state court administrator, and the director of the department of state police.

History: Add. 1966, Act 235, Eff. July 1, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.727c "Citation" defined; numbering, form, and parts of citation; modification and optional use of citation; complaint signed by police officer as made under oath; conditions.

Sec. 727c.

(1) As used in this act, "citation" means a complaint or notice upon which a police officer shall record an occurrence involving 1 or more vehicle law violations by the person cited. Each citation shall be numbered consecutively, be in a form as determined by the secretary of state, the attorney general, the state court administrator, and the director of the department of state police and shall consist of the following parts:

(a) The original which shall be a complaint or notice to appear by the officer and shall be filed with the court in which the appearance is to be made.

(b) The first copy which shall be retained by the local traffic enforcement agency.

(c) The second copy which shall be delivered to the alleged violator if the violation is a misdemeanor.

(d) The third copy which shall be delivered to the alleged violator if the violation is a civil infraction.

(2) With the prior approval of the state officials enumerated in subsection (1), the citation may be appropriately modified as to content or number of copies to accommodate law enforcement and local court procedures and practices. Use of this citation for other than moving violations is optional.

(3) For purposes of this act, a complaint signed by a police officer shall be treated as made under oath if the violation alleged in the complaint is either a civil infraction or a misdemeanor or ordinance violation for which the maximum permissible penalty does not exceed 93 days in jail or a fine, or both, and occurred or was committed in the signing officer's presence or under circumstances permitting the officer's issuance of a citation under section 625a or 728(8), and if the complaint contains the following statement immediately above the date and signature of the officer:

"I declare under the penalties of perjury that the statements above are true to the best of my information, knowledge, and belief."

History: Add. 1967, Act 212, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1983, Act 172, Eff. Mar. 29, 1984 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999

257.728 Arrest without warrant; preparation and contents of citation; informing offender of violation; arraignment before magistrate or probate court; appearance; guaranteed appearance certificate or deposit; fees; violation by officer or magistrate; issuance of citation to operator involved in accident; issuance of citation to person operating commercial motor vehicle.

Sec. 728.

(1) When a person is arrested without a warrant for a violation of this act punishable as a misdemeanor, or an ordinance substantially corresponding to a provision of this act and punishable as a misdemeanor, under conditions not referred to in section 617, 619, or 727, the arresting officer shall prepare, as soon as possible and as completely as possible, an original and 3 copies of a written citation to appear in court containing the name and address of the person, the violation charged, and the time and place when and where the person shall appear in court. The officer shall inform the offender of the violation and shall give the second copy of the citation to the alleged offender. If the arrested person demands, he or she shall be arraigned by a magistrate or probate court as provided in section 727 in lieu of being given the citation.

(2) The time specified in the citation to appear shall be within a reasonable time after the arrest.

(3) The place specified in the citation to appear shall be before a magistrate or probate court within the county in which the violation charged is alleged to have been committed and who has jurisdiction of the violation.

(4) Appearance may be made in person, by representation, or by mail. If appearance is made by representation or mail, the magistrate may accept the plea of guilty or not guilty for purposes of arraignment, with the same effect as though the person personally appeared before him or her. The magistrate, by giving 5 days' notice of the date of appearance, may require appearance in person at the time and place designated in the citation.

(5) If a nonresident is arrested without warrant for a violation of this act that is punishable as a misdemeanor, or an ordinance substantially corresponding to a provision of this act and punishable as a misdemeanor, under conditions not referred to in section 727, the arresting officer, upon demand of the arrested person, immediately shall take the person for arraignment by a magistrate in the vicinity to answer to the complaint made against the person. If a magistrate is not available or an immediate trial cannot be had, the person arrested may recognize to the officer for his or her appearance by leaving with the officer a guaranteed appearance certificate or a sum of money not to exceed $100.00, in which case the following provisions apply:

(a) The officer making the arrest shall give a receipt to the person arrested for the guaranteed appearance certificate or the money deposited together with a written citation as provided in subsection (1).

(b) If the alleged offender fails to appear as required in the citation, the guaranteed appearance certificate or deposit shall be forfeited as in other cases of default in bail in addition to any other penalty provided in this chapter.

(c) At or before the completion of his or her tour of duty, a police officer taking a certificate or deposit of money shall deliver the certificate or deposit of money either to the magistrate named in the citation together with a report of the facts relating to the arrest, or to the police chief or person authorized by the police chief to receive certificates and deposits. The police chief or person authorized by the police chief shall deposit with the court the certificate or the money deposited and the citation in the same manner as prescribed for citations in section

728a. Failure to make a report and deliver the money deposited is embezzlement of public money.

(d) "Guaranteed appearance certificate" means a card or certificate containing a printed statement that a surety company authorized to do business in this state guarantees the appearance of the person whose signature appears on the card or certificate, and that the company, if the person fails to appear in court at the time of trial or sentencing or to pay any fines or costs imposed under this act, will pay any fine, costs, or bond forfeiture imposed on the person in a total amount not to exceed $200.00.

(6) An officer making an arrest under this chapter for a misdemeanor without a warrant, except under section 727, is not entitled to any fees for making the arrest or the issuance of a citation under this section.

(7) An officer or magistrate who violates this section is guilty of misconduct in office and subject to removal from office.

(8) A police officer may issue a citation to a person who is an operator of a motor vehicle involved in an accident if, based upon personal investigation, the officer has reasonable cause to believe that the person has committed a misdemeanor under this act in connection with the accident. The officer shall prepare an original and 3 copies of the citation, setting forth the name and address of the person, the violation that may be charged against the person, and the time and place of the appearance of the person in court. The citation shall inform the person of the office, bureau, or department to which requests for a change or adjournment of the court date may be made.

(9) If the citation is issued to a person who is operating a commercial motor vehicle, the citation shall contain the vehicle group designation and indorsement description of the vehicle operated by the person at the time of the alleged violation.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1955, Act 121, Eff. Oct. 14, 1955 ;-- Am. 1957, Act 47, Eff. Sept. 27, 1957 ;-- Am. 1962, Act 160, Imd. Eff. May 10, 1962 ;-- Am. 1965, Act 41, Imd. Eff. May 25, 1965 ;-- Am. 1965, Act 273, Eff. Mar. 31, 1966 ;-- Am. 1966, Act 235, Eff. July 1, 1967 ;-- Am. 1975, Act 267, Imd. Eff. Nov. 7, 1975 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1984, Act 331, Imd. Eff. Dec. 26, 1984 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1993, Act 301, Eff. June 30, 1994 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.728a Citation; delivery of copies to police chief or duly authorized person; deposit of original with court; mailing original to court; spoiled, mutilated, or voided citation; criminal complaint.

Sec. 728a.

(1) At or before the completion of his or her tour of duty a police officer to whom a citation book has been issued and who has recorded the occurrence of a vehicle law violation upon a citation shall deliver to his or her police chief or to a person duly authorized by the police chief to receive citations all copies of such citation duly signed. The police chief or a person duly authorized by the police chief shall deposit the original of the citation with the court having jurisdiction over the offense not later than 3 days after the date of the citation, excluding Saturdays, Sundays, and legal holidays.

(2) The citation shall be considered to have been deposited with the court as required under subsection (1) if the original of the citation is mailed not later than 2 days after the date of the citation as specified under this subsection. Mailing shall be accomplished by enclosing the original of the citation in a sealed envelope with first class postage fully prepaid, addressed to the court, and depositing the envelope and contents in the United States government mail.

(3) If a citation is spoiled, mutilated, or voided, it shall be endorsed with a full explanation thereof by the police officer voiding the citation, and shall be accounted for to the police officer's police chief or an authorized designee of the police chief.

(4) Nothing in this act shall prevent a person other than a police officer from applying for a criminal complaint for a vehicle law violation which is not a civil infraction, and that person need not show that the alleged offender has been issued a citation in connection with the offense.

History: Add. 1966, Act 235, Eff. July 1, 1967 ;-- Am. 1984, Act 331, Imd. Eff. Dec. 26, 1984

257.728b Establishment of procedures to insure accountability; maintenance of citation records.

Sec. 728b.

The state treasurer shall establish procedures to insure accountability which shall be maintained by all jurisdictions processing traffic violation citations. The record showing the issuance and subsequent disposition shall be maintained complete for at least the most recent 5-year period and such records and notices shall be available for public inspection.

History: Add. 1966, Act 235, Eff. July 1, 1967

257.728c Audit of citation records.

Sec. 728c.

A complete audit of such citation records shall be made at least annually by the appropriate fiscal officer of the governmental agency to which the traffic enforcement agency is responsible; and may be audited by the state treasurer if deemed by him to be necessary.

History: Add. 1966, Act 235, Eff. July 1, 1967

257.728d Falsification of citation or record of issuance; penalty.

Sec. 728d.

Whoever knowingly falsifies a citation or copies thereof or a record of the issuance of same, or disposes of such citation, copy or record, in a manner other than as required in this act, or attempts so to falsify or dispose, or attempts to incite or procure another so to falsify or

dispose shall be fined not more than $500.00 or imprisoned in the county jail for a term not to exceed 1 year, or both.

History: Add. 1966, Act 235, Eff. July 1, 1967

257.728e Accepting plea; signing of complaint; filing sworn complaint; warrant for arrest.

Sec. 728e.

When under section 728 an officer issues a citation for a misdemeanor punishable by imprisonment for not more than 90 days, a magistrate may accept a plea of guilty or not guilty upon the citation, without the necessity of a sworn complaint but the officer shall sign the complaint before the magistrate makes a docket return on the complaint. If the offender pleads not guilty, further proceedings may not be had until a sworn complaint is filed with the magistrate. A warrant for arrest shall not issue for an offense under this act until a sworn complaint is filed with the magistrate.

History: Add. 1967, Act 211, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.729 Fine and costs.

Sec. 729.

In addition to a fine assessed for the charge or civil infraction when found guilty or determined responsible, the magistrate may also add to any fine and costs levied additional costs incurred in compelling the appearance of the person, which additional costs shall be returned to the general fund of the unit of government incurring the costs.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1967, Act 129, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981

257.730 Provisions governing arrests without warrant and issuance of citations; execution of warrant.

Sec. 730.

This chapter shall govern all police officers in making arrests without a warrant and in issuing civil infraction citations for violations of this act, but this act shall not be construed as preventing the execution of a warrant for the arrest of a person for a misdemeanor as in other cases of misdemeanors when the same may be necessary.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.731 Evidence of conviction or civil infraction determination inadmissible in civil action.

Sec. 731.

Evidence of the conviction or civil infraction determination of a person for a violation of this chapter or of a local ordinance pertaining to the use of motor vehicles shall not be admissible in a court in a civil action.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 60, Eff. Oct. 2, 1953 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979

257.732 Record of cases; forwarding abstract of record or report to secretary of state; settlement; abstracts forwarded; "felony in which a motor vehicle was used" defined; statement; "felony in which a commercial motor vehicle was used" defined; certification that all abstracts forwarded; noncompliance as misconduct in office; location and public inspection of abstracts; entering abstracts on master driving record; exceptions; informing courts of violations; entering order of reversal in book or index; modifications; abstract as part of written notice to appear; immediate report; expunction prohibited.

Sec. 732.

(1) Each municipal judge and each clerk of a court of record shall keep a full record of every case in which an individual is charged with or cited for a violation of this act or a local ordinance substantially corresponding to this act regulating the operation of vehicles on highways and with those offenses pertaining to the operation of ORVs or snowmobiles for which points are assessed under section 320a(1)(c) or (i). Except as provided in subsection (16), the municipal judge or clerk of the court of record shall prepare and forward to the secretary of state an abstract of the court record as follows:

(a) Not more than 5 days after a conviction, forfeiture of bail, or entry of a civil infraction determination or default judgment upon a charge of or citation for violating or attempting to violate this act or a local ordinance substantially corresponding to this act regulating the operation of vehicles on highways.

(b) Immediately for each case charging a violation of section 625(1), (3), (4), (5), (6), (7), or (8) or section 625m or a local ordinance substantially corresponding to section 625(1), (3), (6), or (8) or section 625m in which the charge is dismissed or the defendant is acquitted.

(c) Immediately for each case charging a violation of section 82127(1) or (3) or 81134 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.82127 and 324.81134, or a local ordinance substantially corresponding to those sections.

(2) If a city or village department, bureau, or person is authorized to accept a payment of money as a settlement for a violation of a local ordinance substantially corresponding to this act, the city or village department, bureau, or person shall send a full report of each case in which an individual pays any amount of money to the city or village department, bureau, or person to the secretary of state upon a form prescribed by the secretary of state.

(3) The abstract or report required under this section must be made upon a form furnished by the secretary of state. An abstract must be certified by signature, stamp, or facsimile signature of the individual required to prepare the abstract as correct. An abstract or report must include all of the following:

(a) The name, address, and date of birth of the individual charged or cited.

(b) The number of the individual's operator's or chauffeur's license, if any.

(c) The date and nature of the violation.

(d) The type of vehicle driven at the time of the violation and, if the vehicle is a commercial motor vehicle, that vehicle's group designation.

(e) The date of the conviction, finding, forfeiture, judgment, or civil infraction determination.

(f) Whether bail was forfeited.

(g) Any license restriction, suspension, or denial ordered by the court as provided by law.

(h) The vehicle identification number and registration plate number of all vehicles that are ordered immobilized or forfeited.

(i) Other information considered necessary to the secretary of state.

(4) The clerk of the court also shall forward an abstract of the court record to the secretary of state upon an individual's conviction or, for the purposes of subdivision (d), a finding or admission of responsibility, involving any of the following:

(a) A violation of section 413, 414, or 479a of the Michigan penal code, 1931 PA 328, MCL 750.413, 750.414, and 750.479a.

(b) A violation of section 1 of former 1931 PA 214.

(c) Negligent homicide, manslaughter, or murder resulting from the operation of a vehicle.

(d) A violation of sections 701(1) and 703 of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1701 and 436.1703, or a local ordinance substantially corresponding to those sections.

(e) A violation of section 411a(2) of the Michigan penal code, 1931 PA 328, MCL 750.411a.

(f) A violation of motor carrier safety regulations 49 CFR 392.10 or 392.11 as adopted by section 1a of the motor carrier safety act of 1963, 1963 PA 181, MCL 480.11a.

(g) A violation of section 57 of the pupil transportation act, 1990 PA 187, MCL 257.1857.

(h) An attempt to violate, a conspiracy to violate, or a violation of part 74 of the public health code, 1978 PA 368, MCL 333.7401 to 333.7461, or a local ordinance that prohibits conduct prohibited under part 74 of the public health code, 1978 PA 368, MCL 333.7401 to 333.7461, unless the convicted individual is sentenced to life imprisonment or a minimum term of imprisonment that exceeds 1 year for the offense.

(i) An attempt to commit an offense described in subdivisions (a) to (g).

(j) A violation of chapter LXXXIII-A of the Michigan penal code, 1931 PA 328, MCL 750.543a to 750.543z.

(k) A violation of section 3101, 3102(1), or 3103 of the insurance code of 1956, 1956 PA 218, MCL 500.3101, 500.3102, and 500.3103.

(l) A violation listed as a disqualifying offense under 49 CFR 383.51.

(5) The clerk of the court shall also forward an abstract of the court record to the secretary of state if an individual has pled guilty to, or offered a plea of admission in a juvenile proceeding for, a violation of section 703 of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or a local ordinance substantially corresponding to that section, and has had further proceedings deferred under that section. If the individual is sentenced to a term of probation and terms and conditions of probation are fulfilled and the court discharges the individual and dismisses the proceedings, the court shall also report the dismissal to the secretary of state.

(6) As used in subsections (7) to (9), "felony in which a motor vehicle was used" means a felony during the commission of which the individual operated a motor vehicle and while operating the vehicle presented real or potential harm to individuals or property and 1 or more of the following circumstances existed:

(a) The vehicle was used as an instrument of the felony.

(b) The vehicle was used to transport a victim of the felony.

(c) The vehicle was used to flee the scene of the felony.

(d) The vehicle was necessary for the commission of the felony.

(7) If an individual is charged with a felony in which a motor vehicle was used, other than a felony specified in subsection (4) or section 319, the prosecuting attorney shall include the following statement on the complaint and information filed in district or circuit court:

"You are charged with the commission of a felony in which a motor vehicle was used. If you are convicted and the judge finds that the conviction is for a felony in which a motor vehicle was used, as defined in section 319 of the Michigan vehicle code, 1949 PA 300, MCL 257.319, your driver's license shall be suspended by the secretary of state.".

(8) If a juvenile is accused of an act, the nature of which constitutes a felony in which a motor vehicle was used, other than a felony specified in subsection (4) or section 319, the prosecuting attorney or family division of circuit court shall include the following statement on the petition filed in the court:

"You are accused of an act the nature of which constitutes a felony in which a motor vehicle was used. If the accusation is found to be true and the judge or referee finds that the nature of the act constitutes a felony in which a motor vehicle was used, as defined in section 319 of the Michigan vehicle code, 1949 PA 300, MCL 257.319, your driver's license shall be suspended by the secretary of state.".

(9) If the court determines as part of the sentence or disposition that the felony for which the individual was convicted or adjudicated and with respect to which notice was given under subsection (7) or (8) is a felony in which a motor vehicle was used, the clerk of the court shall forward an abstract of the court record of that conviction to the secretary of state.

(10) As used in subsections (11) and (12), "felony in which a commercial motor vehicle was used" means a felony during the commission of which the individual operated a commercial motor vehicle and while the individual was operating the vehicle 1 or more of the following circumstances existed:

(a) The vehicle was used as an instrument of the felony.

(b) The vehicle was used to transport a victim of the felony.

(c) The vehicle was used to flee the scene of the felony.

(d) The vehicle was necessary for the commission of the felony.

(11) If an individual is charged with a felony in which a commercial motor vehicle was used and for which a vehicle group designation on a license is subject to suspension or revocation under section 319b(1)(c)(iii), 319b(1)(d), 319b(1)(e)(iii), or 319b(1)(f)(i), the prosecuting attorney shall include the following statement on the complaint and information filed in district or circuit court:

"You are charged with the commission of a felony in which a commercial motor vehicle was used. If you are convicted and the judge finds that the conviction is for a felony in which a commercial motor vehicle was used, as defined in section 319b of the Michigan vehicle code, 1949 PA 300, MCL 257.319b, all vehicle group designations on your driver's license shall be suspended or revoked by the secretary of state.".

(12) If the judge determines as part of the sentence that the felony for which the defendant was convicted and with respect to which notice was given under subsection (11) is a felony in which a commercial motor vehicle was used, the clerk of the court shall forward an abstract of the court record of that conviction to the secretary of state.

(13) Every individual required to forward abstracts to the secretary of state under this section shall certify for the period from January 1 through June 30 and for the period from July 1 through December 31 that all abstracts required to be forwarded during the period have been forwarded. The certification must be filed with the secretary of state not later than 28 days after the end of the period covered by the certification. The certification must be made upon a form furnished by the secretary of state and must include all of the following:

(a) The name and title of the individual required to forward abstracts.

(b) The court for which the certification is filed.

(c) The time period covered by the certification.

(d) The following statement:

"I certify that all abstracts required by section 732 of the Michigan vehicle code, 1949 PA 300, MCL 257.732, for the period _____ through _____ have been forwarded to the secretary of state.".

(e) Other information the secretary of state considers necessary.

(f) The signature of the individual required to forward abstracts.

(14) The failure, refusal, or neglect of an individual to comply with this section constitutes misconduct in office and is grounds for removal from office.

(15) Except as provided in subsection (16), the secretary of state shall keep all abstracts received under this section at the secretary of state's main office and the abstracts must be open for public inspection during the office's usual business hours. Each abstract must be entered upon the master driving record of the individual to whom it pertains.

(16) Except for controlled substance offenses described in subsection (4), the court shall not submit, and the secretary of state shall discard and not enter on the master driving record, an abstract for a conviction or civil infraction determination for any of the following violations:

(a) The parking or standing of a vehicle.

(b) A nonmoving violation that is not the basis for the secretary of state's suspension, revocation, or denial of an operator's or chauffeur's license.

(c) A violation of chapter II that is not the basis for the secretary of state's suspension, revocation, or denial of an operator's or chauffeur's license.

(d) A pedestrian, passenger, or bicycle violation, other than a violation of section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or a local ordinance substantially corresponding to section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or section 624a or 624b or a local ordinance substantially corresponding to section 624a or 624b.

(e) A violation of section 710e or a local ordinance substantially corresponding to section 710e.

(f) A violation of section 328(1) if, before the appearance date on the citation, the individual submits proof to the court that the motor vehicle had insurance meeting the requirements of sections 3101 and 3102 of the insurance code of 1956, 1956 PA 218, MCL 500.3101 and 500.3102, at the time the citation was issued. Insurance obtained subsequent to the time of the violation does not make the violation an exception under this subsection.

(g) A violation described in section 319b(10)(b)(vii) if, before the court appearance date or date fines are to be paid, the individual submits proof to the court that the individual held a valid commercial driver license on the date the citation was issued.

(h) A violation of section 311 if the individual was driving a noncommercial vehicle and, before the court appearance date or the date fines are to be paid, the individual submits proof to the court that the individual held a valid driver license on the date the citation was issued.

(17) Except as otherwise provided in this subsection, the secretary of state shall discard and not enter on the master driving record an abstract for a bond forfeiture that occurred outside this state. The secretary of state shall enter on the master driving record an abstract for a conviction as defined in section 8a(b) that occurred outside this state in connection with the operation of a commercial motor vehicle or for a conviction of an individual licensed as a commercial motor vehicle driver.

(18) The secretary of state shall inform the courts of this state of the nonmoving violations and violations of chapter II that are used by the secretary of state as the basis for the suspension, restriction, revocation, or denial of an operator's or chauffeur's license.

(19) If a conviction or civil infraction determination is reversed upon appeal, the individual whose conviction or determination has been reversed may serve on the secretary of state a certified copy of the order of reversal. The secretary of state shall enter the order in the proper book or index in connection with the record of the conviction or civil infraction determination.

(20) The secretary of state may permit a city or village department, bureau, person, or court to modify the requirement as to the time and manner of reporting a conviction, civil infraction determination, or settlement to the secretary of state if the modification will increase the economy and efficiency of collecting and utilizing the records. If the permitted abstract of court record reporting a conviction, civil infraction determination, or settlement originates as a part of the written notice to appear, authorized in section 728(1) or 742(1), the form of the written notice and report must be as prescribed by the secretary of state.

(21) Notwithstanding any other law of this state, a court shall not take under advisement an offense committed by an individual while operating a motor vehicle for which this act requires a conviction or civil infraction determination to be reported to the secretary of state. A conviction or civil infraction determination that is the subject of this subsection must not be masked, delayed, diverted, suspended, or suppressed by a court. Upon a conviction or civil infraction determination, the conviction or civil infraction determination must immediately be reported to the secretary of state in accordance with this section.

(22) Except as provided in this act and notwithstanding any other provision of law, a court shall not order expunction of any violation reportable to the secretary of state under this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1965, Act 41, Imd. Eff. May 25, 1965 ;-- Am. 1965, Act 309, Eff. Mar. 31, 1966 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 518, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1985, Act 1, Eff. July 1, 1985 ;-- Am. 1988, Act 205, Eff. July 1, 1988 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1991, Act 99, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1993, Act 359, Eff. Sept. 1, 1994 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1996, Act 493, Eff. Apr. 1, 1997 ;-- Am. 1998, Act 348, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 21, Eff . Oct. 1, 2000 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2001, Act 103, Eff. Oct. 1, 2001 ;-- Am. 2001, Act 134, Eff. Feb. 1, 2002 ;-- Am. 2002, Act 259, Imd. Eff. May 1, 2002 ;-- Am. 2002, Act 422, Eff. Oct. 1, 2002 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2004, Act 495, Imd. Eff. Dec. 29, 2004 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2010, Act 59, Eff. July 1, 2010 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 592, Eff. Mar. 28, 2013 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2017, Act 160, Eff. Jan. 1, 2018 ;-- Am. 2023, Act 40, Eff. June 30, 2023

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”Section 2 of Act 205 of 1988 provides: “This amendatory act shall take effect July 1, 1988 and apply to violations which occur on or after that date.”Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989. “(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303,

257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.732a Fire protection fund; creation; disposition of funds; transmission of fees to state treasurer.

Sec. 732a.

(1) The fire protection fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year must remain in the fund and must not lapse to the general fund. The department of licensing and regulatory affairs shall expend money from the fund, upon appropriation, only for fire protection grants to cities, villages, and townships with state-owned facilities for fire services, as provided in 1977 PA 289, MCL 141.951 to 141.956.

(2) The secretary of state shall transmit the fees collected under this section to the state treasurer. The state treasurer shall credit fee money received under this section in each fiscal year as follows:

(a) The first $8,500,000.00 must be credited to the fire protection fund created in subsection (1).

(b) For fiscal year 2017 and for each fiscal year thereafter, after the amount specified in subdivision (a) is credited to the fire protection fund created under subsection (1), the next $1,000,000.00 must be credited to the department of state for necessary expenses incurred by the department of state in implementing and administering the requirements of sections 625k and 625q. Funds appropriated under this subdivision must be based upon an established cost allocation methodology that reflects the actual costs incurred or to be incurred by the secretary of state during the fiscal year. However, except as otherwise provided in this subdivision, funds appropriated under this subdivision must not exceed $1,000,000.00 during any fiscal year.

(c) Any amount collected after crediting the amounts under subdivisions (a) and (b) must be credited to the general fund.

(3) It is the intent of the legislature that beginning with the fiscal year ending September 30, 2018, and each fiscal year after that, $8,500,000.00 must be appropriated to the fire protection fund created under subsection (2).

History: Add. 2003, Act 165, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2008, Act 460, Eff. Apr. 1, 2009 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011 ;-- Am. 2011, Act 255, Eff. Oct. 1, 2012 ;-- Am. 2012, Act 203, Imd. Eff. June 27, 2012 ;-- Am. 2014, Act 250, Eff. Sept. 23, 2014 ;-- Am. 2016, Act 32, Eff. June 6, 2016 ;-- Am. 2018, Act 43, Imd. Eff. Mar. 1, 2018 ;-- Am. 2018, Act 45, Imd. Eff. Mar. 1, 2018 ;-- Am. 2018, Act 46, Imd. Eff. Mar. 1, 2018 ;-- Am. 2018, Act 50, Eff. Mar. 31, 2018 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025
Compiler's Notes: Enacting section 1 of Act 32 of 2016 provides:"Enacting section 1. R 257.1005 and R 257.1006 of the Michigan Administrative Code are rescinded."

257.732b Repealed. 2024, Act 113, Eff. Apr. 2, 2025.

Compiler's Notes: The repealed section pertained to participation in a workforce training payment program as alternative to paying driver responsibility fee.

257.732c Workforce training payment program; creation; development; administrator; definitions.

Sec. 732c.

(1) The department of treasury shall create a workforce training payment program.

(2) The department of treasury may work with a local workforce development board, a Michigan works one-stop service center, or a training program offered by the department of corrections to develop the workforce training payment program described in subsection (1).

(3) The department of treasury shall be the administrator of the workforce training payment program described in subsection (1).

(4) As used in this section:

(a) "Local workforce development board" means that term as defined in section 3 of the Michigan works one-stop service center system act, 2006 PA 491, MCL 408.113.

(b) "Michigan works one-stop service center" means that term as defined in section 3 of the Michigan works one-stop service center system act, 2006 PA 491, MCL 408.113.

History: Add. 2018, Act 49, Eff. Mar. 31, 2018

257.732d Repealed. 2024, Act 113, Eff. Apr. 2, 2025.

Compiler's Notes: The repealed section pertained to required education of certain individuals affected by changes to state law about driver responsibility fee obligations.

257.733 Release of accident information to nongovernmental agency; exception.

Sec. 733.

(1) The department shall not release information relating to an accident on the record of a driver to a nongovernmental agency unless the driver was subsequently convicted of or determined responsible for a violation of this act in connection with the accident.

(2) Except as otherwise provided in subsection (4), the department shall not release information relating to an accident on the record of any of the following to a nongovernmental agency if the accident occurred while the person was operating the vehicle during the course of his or her employment:

(a) A police officer.

(b) A firefighter.

(c) An employee of the state transportation department, a county road commission, or a local authority having jurisdiction over a highway who is authorized to operate a motor vehicle or equipment while working within the highway right-of-way.

(d) A person authorized to operate an ambulance or other emergency vehicle.

(3) The department shall not release information received under section 732(5) concerning a plea to and the discharge and dismissal of a violation of section 703 of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or a local ordinance substantially corresponding to section 703 of the Michigan liquor control code of 1998, 1998 PA 58, MCL

436.1703, except as provided in section 703(3) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703.

(4) Subsection (2) does not apply to a person described in subsection (2) who was convicted of a crime under this act in connection with the accident.

History: Add. 1974, Act 208, Imd. Eff. July 11, 1974 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1978, Act 545, Eff. Oct. 1, 1979 ;-- Am. 1994, Act 50, Imd. Eff. Mar. 25, 1994 ;-- Am. 2004, Act 62, Eff. Sept. 1, 2004 ;-- Am. 2006, Act 650, Eff. Oct. 1, 2010

257.741 Civil infraction action as civil action; commencement; plaintiff; jurisdiction; time and place for appearance; venue.

Sec. 741.

(1) A civil infraction action is a civil action in which the defendant is alleged to be responsible for a civil infraction. A civil infraction action is commenced upon the issuance and service of a citation as provided in section 742. The plaintiff in a civil infraction action must be either this state if the alleged civil infraction is a violation of this act, or a political subdivision if the alleged civil infraction is a violation of a local ordinance of that subdivision that substantially corresponds to a provision of this act.

(2) The following courts have jurisdiction over civil infraction actions:

(a) The district court.

(b) Any municipal court.

(3) The time specified in a citation for appearance must be within a reasonable time after the citation is issued pursuant to section 682 or 742.

(4) The place specified in the citation for appearance must be the court listed in subsection (2) that has territorial jurisdiction of the place where the civil infraction occurred. Venue in the district court is governed by section 8312 of the revised judicature act of 1961, 1961 PA 236, MCL 600.8312.

(5) If the individual cited is a minor, that individual may appear in court or admit responsibility for a civil infraction without the necessity of appointment of a guardian or next friend. The courts listed in subsection (2) have jurisdiction over the minor and may proceed in the same manner and in all respects as if that individual were an adult.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2024, Act 161, Eff. Apr. 2, 2025

257.742 Stopping, detaining, and issuing citation for civil infraction; pursuing, stopping, and detaining person outside village, city, township, or county; purpose; violation as to load, weight, height, length, or width of vehicle or load; powers of police officer; issuing citation to driver of motor vehicle; form of citation; informing person of alleged civil infraction; delivering copy of citation to alleged offender; issuing, serving, and processing citations for parking and standing violations; filing citation with court; camera-based violation citation by mail; “parking violation notice” and "parking violations bureau" defined.

Sec. 742.

(1) If a police officer witnesses an individual violating this act or a local ordinance substantially corresponding to this act and that violation is a civil infraction, that police officer may stop the individual, detain the individual temporarily for purposes of making a record of vehicle check, and prepare and subscribe, as soon as possible and as completely as possible, an original and 3 copies of a written citation, which must be a notice to appear in court for 1 or more civil infractions. If a police officer of a village, city, township, or county, or a police officer who is an authorized agent of a county road commission, witnesses an individual violating this act or a local ordinance substantially corresponding to this act within that village, city, township, or county and that violation is a civil infraction, that police officer may pursue, stop, and detain the individual outside the village, city, township, or county where the violation occurred for the purpose of exercising the authority and performing the duties prescribed in this section and section 749, as applicable.

(2) If a police officer has reason to believe that the load, weight, height, length, or width of a vehicle or load are in violation of section 717, 719, 719a, 722, 724, 725, or 726 and that violation is a civil infraction, that police officer may require the driver of the vehicle to stop, and the police officer may investigate, weigh, or measure the vehicle or load. If, after personally investigating, weighing, or measuring the vehicle or load, the police officer determines that the load, weight, height, length, or width of the vehicle or load are in violation of section 717, 719, 719a, 722, 724, 725, or 726, the police officer may temporarily detain the driver of the vehicle for purposes of making a record or vehicle check and issue a citation to the driver or owner of the vehicle as provided in those sections.

(3) A police officer may issue a citation to an individual who is a driver of a motor vehicle involved in an accident when, based upon personal investigation, the officer has reasonable cause to believe that the individual is responsible for a civil infraction in connection with the accident. A police officer may issue a citation to an individual who is a driver of a motor vehicle when, based upon personal investigation by the police officer of a complaint by someone who witnessed the individual violating this act or a local ordinance substantially corresponding to this act and that violation is a civil infraction, the officer has reasonable cause to believe that the individual is responsible for a civil infraction and if the prosecuting attorney or attorney for the political subdivision approves in writing the issuance of the citation.

(4) The form of a citation issued under subsection (1), (2), (3), or (9) shall be as prescribed in sections 727c and 743.

(5) The officer shall inform the individual of the alleged civil infraction or infractions and shall deliver the third copy of the citation to the alleged offender.

(6) In a civil infraction action involving the parking or standing of a motor vehicle, a copy of the citation is not required to be served personally upon the defendant but may be served upon the registered owner by attaching the copy to the vehicle. A city may authorize personnel other than a police officer to issue and serve a citation for a violation of its ordinance involving the parking or standing of a motor vehicle. A city may authorize a person other than personnel or a police officer to issue and serve a citation for parking violations described in section 675d if the city has complied with the requirements of section 675d. State security personnel receiving authorization under section 6c of 1935 PA 59, MCL 28.6c, may issue and serve citations for violations involving the parking or standing of vehicles on land owned by this state or land of which this state is the lessee when authorized to do so by the director of the department of state police.

(7) If a parking violation notice other than a citation is attached to a motor vehicle, and if an admission of responsibility is not made and the civil fine and costs, if any, prescribed by

ordinance for the violation are not paid at the parking violations bureau, a citation may be filed with the court described in section 741(4) and a copy of the citation may be served by first-class mail upon the registered owner of the vehicle at the owner's last known address. A parking violation notice may be issued by a police officer, including a limited duty officer, or other personnel duly authorized by the city, village, township, college, or university to issue that parking violation notice under its ordinance. The citation filed with the court pursuant to this subsection need not comply in all particulars with sections 727c and 743 but must consist of a sworn complaint containing the allegations stated in the parking violation notice and must fairly inform the defendant how to respond to the citation.

(8) A citation issued under subsection (6) or (7) for a parking or standing violation must be processed in the same manner as a citation issued personally to a defendant under subsection (1) or (3).

(9) A citation may be issued by mail to the registered owner of a vehicle as provided in section 682 for a camera-based violation as defined in section 682.

(10) As used in subsection (7):

(a) "Parking violation notice" means a notice, other than a citation, directing a person to appear at a parking violations bureau in the city, village, or township in which, or of the college or university for which, the notice is issued and to pay the fine and costs, if any, prescribed by ordinance for the parking or standing of a motor vehicle in violation of the ordinance.

(b) "Parking violations bureau" means a parking violations bureau established pursuant to section 8395 of the revised judicature act of 1961, 1961 PA 236, MCL 600.8395, or a comparable parking violations bureau established in a city or village served by a municipal court or established pursuant to law by the governing board of a state university or college.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 249, Imd. Eff. July 28, 1980 ;-- Am. 1980, Act 426, Imd. Eff. Jan. 13, 1981 ;-- Am. 1981, Act 104, Eff. Oct. 1, 1981 ;-- Am. 1984, Act 74, Imd. Eff. Apr. 18, 1984 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2000, Act 268, Eff. Oct. 1, 2000 ;-- Am. 2008, Act 171, Imd. Eff. July 2, 2008 ;-- Am. 2024, Act 161, Eff. Apr. 2, 2025

257.743 Contents of citation issued pursuant to MCL 257.742; timely appearance.

Sec. 743.

(1) A citation issued pursuant to section 742 shall contain the name of the state or political subdivision acting as plaintiff, the name and address of the person to whom the citation is issued, the civil infraction alleged, the place where the person shall appear in court, the telephone number of the court, the time at or by which the appearance shall be made, and the additional information required by this section.

(2) The citation shall inform the defendant to the effect that he or she, at or by the time specified for appearance, may:

(a) Admit responsibility for the civil infraction in person, by representation, or by mail.

(b) Admit responsibility for the civil infraction "with explanation" in person, by representation, or by mail.

(c) Deny responsibility for the civil infraction by doing either of the following:

(i) Appearing in person for an informal hearing before a district court magistrate or a judge without the opportunity of being represented by an attorney.

(ii) Appearing in court for a formal hearing before a judge, with the opportunity of being represented by an attorney.

(3) The citation shall inform the defendant that if the person desires to admit responsibility "with explanation" other than by mail or to have an informal hearing or a formal hearing, the person must apply to the court in person, by mail, or by telephone, within the time specified for appearance and obtain a scheduled date and time to appear for a hearing. A hearing date may be specified on the citation.

(4) The citation shall contain a notice in boldface type that the failure of a person to appear within the time specified in the citation or at the time scheduled for a hearing or appearance will result in entry of a default judgment against the person and in the immediate suspension of the person's operator's or chauffeur's license. Timely application to the court for a hearing or return of the citation with an admission of responsibility and with full payment of applicable civil fines and costs constitute a timely appearance.

(5) If the citation is issued to a person who is operating a commercial motor vehicle, the citation shall contain a vehicle group designation and indorsement description of the vehicle, which vehicle is operated by the person at the time of the alleged civil infraction.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006

Compiler's Notes: Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g, 312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990.“(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed.”

257.744 Admissions or denials; sworn complaint; warrant for arrest.

Sec. 744.

If an officer issues a citation under section 742 for a civil infraction or if a citation is issued under section 742 for a parking or standing violation, the court may accept an admission with explanation or an admission or denial of responsibility upon the citation without the necessity of a sworn complaint. If the person denies responsibility for the civil infraction, further proceedings shall not be had until a sworn complaint is filed with the court. A warrant for arrest under section 321a for failure to appear on the civil infraction citation shall not issue until a sworn complaint relative to the civil infraction is filed with the court.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979

257.744a Police officer knowingly making materially false statement in citation as perjury; felony; penalty; contempt of court.

Sec. 744a.

A police officer who, knowing the statement is false, makes a materially false statement in a citation issued under section 742 is guilty of perjury, a felony punishable by imprisonment for not more than 15 years, and in addition is in contempt of court.

History: Add. 1983, Act 172, Eff. Mar. 29, 1984

257.745 Responding to allegations in citation; appearance in person, by representation, or by mail; admission of responsibility; acceptance of admission; denial of responsibility; scheduling of informal or formal hearing.

Sec. 745.

(1) A person to whom a citation is issued under section 742 shall appear by or at the time specified in the citation and may respond to the allegations in the citation as provided in this section.

(2) If the person wishes to admit responsibility for the civil infraction, the person may do so by appearing in person, by representation, or by mail. If appearance is made by representation or mail, the court may accept the admission with the same effect as though the person personally appeared in court. Upon acceptance of the admission, the court may order any of the sanctions permitted under section 907.

(3) If the person wishes to admit responsibility for the civil infraction "with explanation", the person may do so in either of the following ways:

(a) By appearing by mail.

(b) By contacting the court in person, by mail, by telephone, or by representation to obtain from the court a scheduled date and time to appear, at which time the person shall appear in person or by representation.

(4) If a person admits responsibility for a civil infraction "with explanation" under subsection (3), the court shall accept the admission as though the person has admitted responsibility under subsection (2) and may consider the person's explanation by way of mitigating any sanction which the court may order under section 907. If appearance is made by representation or mail, the court may accept the admission with the same effect as though the person personally appeared in court, but the court may require the person to provide a further explanation or to appear in court.

(5) If the person wishes to deny responsibility for a civil infraction, the person shall do so by appearing for an informal or formal hearing. Unless the hearing date is specified on the citation, the person shall contact the court in person, by representation, by mail, or by telephone, and obtain a scheduled date and time to appear for an informal or formal hearing. The court shall schedule an informal hearing, unless the person expressly requests a formal hearing. If the hearing date is specified on the citation, the person shall appear on that date for an informal hearing unless the person contacts the court at least 10 days before that date in person, by representation, by mail, or by telephone to request a formal hearing. If the person expressly requests a formal hearing, the court shall schedule a formal hearing. If a hearing is scheduled by telephone, the court shall mail the defendant a confirming notice of that hearing by regular mail to the address appearing on the citation or to an address which may be furnished by the defendant. An informal hearing shall be conducted pursuant to section 746 and a formal hearing shall be conducted pursuant to section 747.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979

257.746 Informal hearing; procedure.

Sec. 746.

(1) An informal hearing shall be conducted by a district court magistrate when authorized by the judge or judges of the district court district or by a judge of a court listed in section 741(2). A district court magistrate may administer oaths, examine witnesses, and make findings of fact and conclusions of law at an informal hearing. The judge or district court magistrate shall conduct the informal hearing in an informal manner so as to do substantial justice according to the rules of substantive law but shall not be bound by the statutory provisions or rules of practice, procedure, pleading, or evidence, except provisions relating to privileged communications. There shall not be a jury at an informal hearing. A verbatim record of an informal hearing shall not be required.

(2) At an informal hearing the person cited may not be represented by an attorney nor may the plaintiff be represented by the prosecuting attorney or attorney for a political subdivision.

(3) Notice of a scheduled informal hearing shall be given to the citing police agency, which agency may subpoena witnesses for the plaintiff. The defendant may also subpoena witnesses. Witness fees need not be paid in advance to a witness. Witness fees for a witness on behalf of the plaintiff are payable by the district control unit of the district court for the place where the hearing occurs, by the city or village when the hearing involves an ordinance violation in a district where the district court is not functioning, or by the county when the hearing involves a violation of this act in a district where the district court is not functioning.

(4) If the judge or district court magistrate determines by a preponderance of the evidence that the person cited is responsible for a civil infraction, the judge or magistrate shall enter an order against the person as provided in section 907. Otherwise, a judgment shall be entered for the defendant, but the defendant shall not be entitled to costs of the action.

(5) The plaintiff and defendant shall be entitled to appeal an adverse judgment entered at an informal hearing. An appeal from a municipal judge shall be a trial de novo in the circuit court. In other instances an appeal shall be de novo in the form of a scheduled formal hearing as follows:

(a) The appeal from a judge of the district court shall be heard by a different judge of the district.

(b) The appeal from a district court magistrate shall be heard by a judge of the district.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 426, Imd. Eff. Jan. 13, 1981 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006

257.747 Formal hearing; procedure.

Sec. 747.

(1) A formal hearing shall be conducted only by a judge of a court having jurisdiction over civil infraction actions under section 741(2).

(2) In a formal hearing the person cited may be represented by an attorney, but is not entitled to appointed counsel at public expense.

(3) Notice of a formal hearing shall be given to the prosecuting attorney or attorney for the political subdivision who represents the plaintiff. That attorney shall appear in court for a formal hearing and that attorney shall be responsible for the issuance of a subpoena to each witness for the plaintiff. The defendant may also subpoena witnesses. Witness fees need not be paid in advance to a witness. Witness fees for a witness on behalf of the plaintiff are payable by the district control unit of the district court for the place where the hearing occurs, by the

city or village when the hearing involves an ordinance violation in a district where the district court is not functioning, or by the county when the hearing involves a violation of this act in a district where the district court is not functioning.

(4) There shall not be a jury trial in a formal hearing.

(5) If the judge determines by a preponderance of the evidence that the person cited is responsible for a civil infraction, the judge shall enter an order against the person as provided in section 907. Otherwise, a judgment shall be entered for the defendant, but the defendant shall not be entitled to costs of the action.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 426, Imd. Eff. Jan. 13, 1981

257.748 Default judgment; suspension of license.

Sec. 748.

If the person to whom a citation is issued for a civil infraction fails to appear as directed by the citation or other notice, at a scheduled appearance under section 745(3)(b) or (4), at a scheduled informal hearing, or at a scheduled formal hearing, the court shall enter a default judgment against that person and the person's license shall be suspended pursuant to section 321a until that person appears in court and all matters pertaining to the violation are resolved or until the default judgment is set aside.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979

257.749 Stopping nonresident for civil infraction; release personal recognizance; immediate hearing before magistrate; failure to appear; default judgment.

Sec. 749.

(1) When a nonresident is stopped under section 742 for a civil infraction, the police officer making the stop shall issue to that person a citation as provided in sections 727c and 742.

(2) The officer shall release the nonresident upon his or her personal recognizance.

(3) If a magistrate is available for an immediate appearance, upon demand of the person stopped, the officer immediately shall take the nonresident driver before the magistrate to answer to the civil infraction alleged. If the nonresident defendant requests a formal hearing, the hearing shall be scheduled as provided in section 747. .

(4) If the person who is released upon his or her personal recognizance as provided in subsection (2) fails to appear as required in the citation or for a scheduled formal hearing, the court having jurisdiction and venue over the civil infraction shall enter a default judgment against the person.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1984, Act 331, Imd. Eff. Dec. 26, 1984 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2018, Act 566, Eff. Mar. 28, 2019

257.750 Issuance of citations; number as factor in evaluation of police officer's performance prohibited; applicability of MCL 257.901; fees prohibited; violation of MCL 257.749 as misconduct in office; removal.

Sec. 750.

(1) A police officer shall not be required to issue a predetermined or specified number of citations for violations of this act or of local ordinances substantially corresponding to provisions of this act, including parking or standing violations. A police officer's performance evaluation system shall not require a predetermined or specified number of citations to be issued. Section 901 does not apply to a violation of this subsection.

(2) A police officer shall not be entitled to any fees for issuing a citation. A police officer, judge, district court magistrate, or other person employed by the state or by a local governmental unit who violates section 749 or this subsection is guilty of misconduct in office and subject to removal from office.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1988, Act 446, Imd. Eff. Dec. 27, 1988 ;-- Am. 2010, Act 226, Imd. Eff. Dec. 10, 2010

Chapter VIA
STREETCARS

257.790 Operation of bicycle or vehicle on streetcar track; removal, overtaking, and passing; requirements; violation as civil infraction.

Sec. 790.

(1) The driver of a bicycle or vehicle proceeding on a streetcar track in front of a streetcar shall remove the bicycle or vehicle from the streetcar track as soon as practicable after a signal from the operator of the streetcar.

(2) If a streetcar has started to cross an intersection, the driver of a bicycle or vehicle shall not drive on or cross the streetcar track within the intersection in front of the streetcar.

(3) The driver of a bicycle or vehicle, when overtaking and passing a streetcar, shall not turn in front of a streetcar so as to interfere with or impede the movement of the streetcar.

(4) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791 Use of street railway system or streetcar; prohibitions; violation as civil infraction.

Sec. 791.

(1) A person shall not do any of the following:

(a) Board or attempt to board a streetcar for a purpose other than purchasing a streetcar fare, unless the person has purchased or is in the process of purchasing the fare or fare medium required by the street railway for the use of the street railway system.

(b) Interfere with the collection or verification of a fare or fare medium for the use of a street railway system.

(c) While on a streetcar or in a station that is part of a street railway system, fail to carry or refuse to provide on request by an officer, employee, or agent of a street railway or police officer, proof of payment of the fare required by the street railway for the use of the street railway system.

(d) Aid another person in violating subdivision (a), (b), or (c).

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791a Occupancy and use of a street railway system station; violation as a civil infraction; "shared station" defined.

Sec. 791a.

(1) Subject to subsection (2), a person shall not enter, remain, occupy, or use a station that is part of a street railway system, including a shared station, for a purpose other than 1 or more of the following:

(a) Waiting for or boarding the next arriving streetcar or other public transit vehicle at a shared station.

(b) Disembarking from a streetcar or other public transit vehicle at a shared station.

(c) Purchasing a fare or fare medium for the use of the street railway system or other public transit system.

(d) Performing an activity that the person is licensed to perform or is authorized to perform under a state permit.

(e) Waiting for up to 10 minutes for another passenger to disembark from a streetcar.

(2) A person violates subsection (1) only after remaining, occupying, or using the station for a period of time that exceeds the period of time necessary for the person to engage in an activity described in subsection (1)(a) to (e).

(3) A person who violates this section is responsible for a civil infraction.

(4) As used in this section, "shared station" means a station that is part of a street railway system and that is used by both a street railway and a public transit provider pursuant to an agreement between the street railway and the public transit provider.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791b Smoking prohibited within or on streetcar or station; violation as civil infraction.

Sec. 791b.

(1) A person shall not smoke any substance, use an e-cigarette, carry lighted tobacco, or spit within or on a streetcar or station that is a part of a street railway system.

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791c Animals, other than service or qualified animals prohibited on or in streetcar or station; violation as civil infraction; definitions.

Sec. 791c.

(1) A person shall not bring, carry, or transport an animal other than a service animal or qualified animal on a streetcar or in any area of a station used by a street railway system.

(2) A person who violates this section is responsible for a civil infraction.

(3) As used in this section:

(a) "Qualified animal" means an animal that is not more than 25 pounds and is controlled in a cage.

(b) "Service animal" means that term as defined in section 502c of the Michigan penal code, 1931 PA 328, MCL 750.502c.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791d Food and beverages prohibited on or within a streetcar or station; exceptions; violation as civil infraction.

Sec. 791d.

(1) A person 2 years of age or older shall not eat, drink, or carry an open container of food or beverage on a streetcar or within a station that is part of a street railway system.

(2) Subsection (1) does not restrict or otherwise prohibit a nursing mother from nursing her child.

(3) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791e Disposal of garbage prohibited on or in a streetcar or station; violation as a civil infraction.

Sec. 791e.

(1) A person shall not dispose of garbage, papers, gum, refuse, or another form of trash, on a streetcar or in a station that is part of a street railway system, except in receptacles designated for that purpose on the streetcar or in the station.

(2) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791f Oversized baggage or commercial shopping cart prohibited on or within a streetcar or station.

Sec. 791f.

A person shall not bring or carry on a streetcar or into a station used by a street railway system either of the following:

(a) A package or other object of a size that cannot be positioned in a manner that permits the passage of persons in the aisle of a streetcar or the entry and exit of persons through the doors of a streetcar, or both.

(b) A commercial shopping cart.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.791g Disruptive conduct prohibited; live music permit; violation as civil infraction.

Sec. 791g.

(1) A person shall not engage in disruptive conduct that interferes with the operation or safe use of the street railway system, or negatively impacts the functions of officers, employees, or agents of the street railway, or of police officers.

(2) A street railway system may issue a permit for a person to play live music within a station. A person with a permit issued under this subsection may play live music as provided in the permit.

(3) A person who violates this section is responsible for a civil infraction.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.792 Removal of bicycle, vehicle, cargo, or other personal property blocking, delaying, or interfering with movement of streetcar; liability; "gross negligence" defined; reimbursement by owner or carrier; definitions.

Sec. 792.

(1) If a street authority determines that a bicycle, vehicle, cargo, or other personal property is parked or standing on a street in a manner that would block, delay, or otherwise interfere with the movement of a streetcar on a streetcar track, the street authority may immediately remove or cause to be removed the bicycle, vehicle, cargo, or personal property from the street to the nearest garage, storage facility, or other place of safety. If the street authority is a street railway, the street railway shall not remove a bicycle, vehicle, cargo, or personal property under this subsection without first obtaining authorization from a police officer or notifying a law enforcement agency. The street authority shall report the place to which a bicycle, vehicle, cargo, or personal property is removed under this subsection to the nearest law enforcement agency as soon as practicable.

(2) A street authority that removes or causes the removal of property under subsection (1), and any of the street authority's officers, employees, or agents, or anyone acting in good faith under subsection (1), and within the scope of, the authority conferred under subsection (1), is not liable for any damages or claims that may arise from the exercise or the failure to exercise any authority granted under subsection (1), except for an act or omission amounting to gross negligence. As used in this subsection, "gross negligence" means that term as defined in section 606a.

(3) The owner or carrier, if any, of a bicycle, vehicle, cargo, or personal property removed pursuant to subsection (1) shall reimburse the street authority for all documented reasonable costs incurred in the removal, storage, and return.

(4) As used in this section:

(a) "Law enforcement agency" means any of the following:

(i) The department of state police.

(ii) The county sheriff's office.

(iii) The police department of a local unit of government.

(iv) The transit police unit of a public body corporate created pursuant to an interlocal agreement under the urban cooperation act of 1967, 1967 (Ex Sess) PA 7, MCL 124.501 to 124.512, between a city and an authority under the metropolitan transportation authorities act of 1967, 1967 PA 204, MCL 124.401 to 124.426.

(b) "Local unit of government" means a state university or college or a county, city, village, or township.

(c) "Street authority" means a law enforcement agency or a street railway.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

257.793 Powers, immunities, and authority of law enforcement officers; sworn oath of office; monthly uniform crime reports.

Sec. 793.

(1) A law enforcement agency of a public body corporate described in section 792(4)(a)(iv) may grant to a law enforcement officer of that law enforcement agency the same powers, immunities, and authorities granted by law to a peace officer and a police officer to detect crime and to enforce the criminal laws of this state and to enforce state laws, including this act, local ordinances, and any authorized ordinances and regulations of the public body corporate. A copy of the documentation of a grant of authority under this subsection must be filed with the Michigan commission on law enforcement standards created under the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615.

(2) A law enforcement agency described in subsection (1) may administer a sworn oath of office to a law enforcement officer of that law enforcement agency conferring the power upon the law enforcement officer to administer the general criminal laws of this state.

(3) A law enforcement officer granted the authority of a peace officer and a police officer under subsections (1) and (2) is a peace officer of this state with the authority of a police officer of this state provided under this act and as provided under the code of criminal procedure, 1927 PA 175, MCL 760.1 to 777.69.

(4) A law enforcement agency described in subsection (1) shall submit monthly uniform crime reports pertaining to crimes occurring within the law enforcement agency's jurisdiction to the department of state police in the manner provided under section 1 of 1968 PA 319, MCL 28.251.

History: Add. 2021, Act 43, Imd. Eff. July 1, 2021

Chapter VII
REGISTRATION FEES

257.801 Registration taxes on vehicle; schedules; exemption from ad valorem taxes on vehicles in stock or bond; increase and disposition of certain taxes; late fee; waiver; taxes and revenues relating to regional transit authority; historic vehicle; fee increase on vehicle using 4 or more tires; increase in fees; definitions.

Sec. 801.

(1) The secretary of state shall collect the following taxes at the time of registering a vehicle, which exempts the vehicle from all other state and local taxation, except the fees and taxes to be paid by certain carriers operating motor vehicles and trailers under the motor carrier act, 1933 PA 254, MCL 475.1 to 479.42; the taxes imposed by the motor carrier fuel tax act, 1980 PA 119, MCL 207.211 to 207.234; and except as otherwise provided by this act:

(a) For a motor vehicle, including a motor home, except as otherwise provided by law, and a pickup truck or van that weighs not more than 8,000 pounds, except as otherwise provided by law, according to the following schedule of empty weights:

Empty weights		Tax
0 to 3,000 pounds	$	29.00
3,001 to 3,500 pounds		32.00
3,501 to 4,000 pounds		37.00
4,001 to 4,500 pounds		43.00
4,501 to 5,000 pounds		47.00
5,001 to 5,500 pounds		52.00
5,501 to 6,000 pounds		57.00
6,001 to 6,500 pounds		62.00
6,501 to 7,000 pounds		67.00
7,001 to 7,500 pounds		71.00
7,501 to 8,000 pounds		77.00
8,001 to 8,500 pounds		81.00
8,501 to 9,000 pounds		86.00
9,001 to 9,500 pounds		91.00
9,501 to 10,000 pounds		95.00
over 10,000 pounds	$ 0.90 per 100 pounds of empty weight	

On October 1, 1983 and October 1, 1984, the tax assessed under this subdivision must be annually revised for the registrations expiring on the appropriate October 1 or after that date by multiplying the tax assessed in the preceding fiscal year times the personal income of Michigan for the preceding calendar year divided by the personal income of Michigan for the calendar year that preceded that calendar year. In performing the calculations under this subdivision, the secretary of state shall use the spring preliminary report of the United States Department of Commerce or its successor agency. A passenger motor vehicle that has been modified with a permanently installed wheelchair lift mechanism or with permanently installed hand controls and that is owned by an individual who uses a wheelchair or by an individual who transports a member of the individual's household who uses a wheelchair and for which registration plates are issued under section 803d must be assessed at the rate of 50% of the tax provided for in this subdivision. As used in this subdivision, "permanently installed

hand controls" means a permanently installed device designed to replace the brake and gas pedals of a motor vehicle with hand controls.

(b) For a trailer coach attached to a motor vehicle, the tax must be assessed as provided in subdivision (l). A trailer coach not under 1959 PA 243, MCL 125.1035 to 125.1043, and while located on land otherwise assessable as real property under the general property tax act, 1893 PA 206, MCL 211.1 to 211.155, if the trailer coach is used as a place of habitation, and whether or not permanently affixed to the soil, is not exempt from real property taxes.

(c) For a road tractor, modified agricultural vehicle, truck, or truck tractor owned by a farmer and used exclusively in connection with a farming operation, including a farmer hauling livestock or farm equipment for other farmers for remuneration in kind or in labor, but not for money, or used for the transportation of the farmer and the farmer's family, and not used for hire, 74 cents per 100 pounds of empty weight of the road tractor, truck, or truck tractor. If the road tractor, modified agricultural vehicle, truck, or truck tractor owned by a farmer is also used for a nonfarming operation, the farmer is subject to the highest registration tax applicable to the nonfarm use of the vehicle but is not subject to more than 1 tax rate under this act.

(d) For a road tractor, truck, or truck tractor owned by a wood harvester and used exclusively in connection with the wood harvesting operations or a truck used exclusively to haul milk from the farm to the first point of delivery, 74 cents per 100 pounds of empty weight of the road tractor, truck, or truck tractor. A registration secured by payment of the tax prescribed in this subdivision continues in full force and effect until the regular expiration date of the registration. As used in this subdivision:

(i) "Wood harvester" includes the person or persons hauling and transporting raw materials in the form produced at the harvest site or hauling and transporting wood harvesting equipment. Wood harvester does not include a person or persons whose primary activity is tree-trimming or landscaping.

(ii) "Wood harvesting equipment" includes all of the following:

(A) A vehicle that directly harvests logs or timber, including, but not limited to, a processor or a feller buncher.

(B) A vehicle that directly processes harvested logs or timber, including, but not limited to, a slasher, delimber, processor, chipper, or saw table.

(C) A vehicle that directly processes harvested logs or timber, including, but not limited to, a forwarder, grapple skidder, or cable skidder.

(D) A vehicle that directly loads harvested logs or timber, including, but not limited to, a knuckle-boom loader, front-end loader, or forklift.

(E) A bulldozer or road grader being transported to a wood harvesting site specifically to build or maintain harvest site roads.

(iii) "Wood harvesting operations" does not include the transportation of processed lumber, Christmas trees, or processed firewood for a profit-making venture.

(e) For a hearse or ambulance used exclusively by a licensed funeral director in the general conduct of the licensee's funeral business, including a hearse or ambulance whose owner is engaged in the business of leasing or renting the hearse or ambulance to others, $1.17 per 100 pounds of the empty weight of the hearse or ambulance.

(f) For a vehicle owned and operated by this state, a state institution, a municipality, a privately incorporated, nonprofit volunteer fire department, or a nonpublic, nonprofit college or university, $5.00 per plate. A registration plate issued under this subdivision expires on June 30 of the year in which new registration plates are reissued for all vehicles by the secretary of state.

(g) For a bus including a station wagon, carryall, or similarly constructed vehicle owned and operated by a nonprofit parents' transportation corporation used for school purposes, parochial school or society, church Sunday school, or any other grammar school, or by a nonprofit youth organization or nonprofit rehabilitation facility; or a motor vehicle owned and operated by a senior citizen center, $10.00, if the bus, station wagon, carryall, or similarly constructed vehicle or motor vehicle is designated by proper signs showing the organization operating the vehicle.

(h) For a vehicle owned by a nonprofit organization and used to transport equipment for providing dialysis treatment to children at camp; for a vehicle owned by the Civil Air Patrol, as organized under 36 USC 40301 to 40307, $10.00 per plate, if the vehicle is designated by a proper sign that shows the Civil Air Patrol's name; for a vehicle owned and operated by a nonprofit veterans center; for a vehicle owned and operated by a nonprofit recycling center or a federally recognized nonprofit conservation organization; for a motor vehicle having a truck chassis and a locomotive or ship's body that is owned by a nonprofit veterans organization and used exclusively in parades and civic events; or for an emergency support vehicle used exclusively for emergencies and owned and operated by a federally recognized nonprofit charitable organization; or for a vehicle owned and operated by a nonprofit food pantry or nonprofit food bank, $10.00 per plate.

(i) For each truck owned and operated free of charge by a bona fide ecclesiastical or charitable corporation, or Red Cross, Girl Scout, or Boy Scout organization, 65 cents per 100 pounds of the empty weight of the truck.

(j) For each truck, weighing 8,000 pounds or less, and not used to tow a vehicle, for each privately owned truck used to tow a trailer for recreational purposes only and not involved in a profit-making venture, and for each vehicle designed and used to tow a mobile home or a trailer coach, except as provided in subdivision (b), $38.00 or an amount computed according to the following schedule of empty weights, whichever is greater:

Empty weights	Per 100 pounds
0 to 2,500 pounds	$ 1.40
2,501 to 4,000 pounds	1.76
4,001 to 6,000 pounds	2.20
6,001 to 8,000 pounds	2.72
8,001 to 10,000 pounds	3.25
10,001 to 15,000 pounds	3.77
15,001 pounds and over	4.39

If the tax required under subdivision (p) for a vehicle of the same model year with the same list price as the vehicle for which registration is sought under this subdivision is more than the tax provided under the preceding provisions of this subdivision for an identical vehicle, the tax required under this subdivision is not less than the tax required under subdivision (p) for a vehicle of the same model year with the same list price.

(k) For each truck weighing 8,000 pounds or less towing a trailer or any other combination of vehicles and for each truck weighing 8,001 pounds or more, road tractor, or truck tractor, except as provided in subdivision (j), according to the following schedule of elected gross weights:

Elected gross weight	Tax
0 to 24,000 pounds	$ 590.00
24,001 to 26,000 pounds	670.00

26,001 to 28,000 pounds	670.00
28,001 to 32,000 pounds	779.00
32,001 to 36,000 pounds	893.00
36,001 to 42,000 pounds	1,049.00
42,001 to 48,000 pounds	1,206.00
48,001 to 54,000 pounds	1,362.00
54,001 to 60,000 pounds	1,522.00
60,001 to 66,000 pounds	1,678.00
66,001 to 72,000 pounds	1,835.00
72,001 to 80,000 pounds	1,992.00
80,001 to 90,000 pounds	2,152.00
90,001 to 100,000 pounds	2,403.00
100,001 to 115,000 pounds	2,668.00
115,001 to 130,000 pounds	2,938.00
130,001 to 145,000 pounds	3,204.00
145,001 to 160,000 pounds	3,473.00
over 160,000 pounds	3,741.00

For each commercial vehicle registered under this subdivision or section 801g, $15.00 must be deposited in the truck safety fund to be expended as provided in section 25 of 1951 PA 51, MCL 247.675.

If a truck tractor or road tractor without trailer is leased from an individual owner-operator, the lessee, whether an individual, firm, or corporation, shall pay to the owner-operator 60% of the tax prescribed in this subdivision for the truck tractor or road tractor at the rate of 1/12 for each month of the lease or arrangement in addition to the compensation the owner-operator is entitled to for the rental of the owner-operator's equipment.

(l) For each pole trailer, semitrailer, trailer coach, or trailer, the tax must be assessed according to the following schedule of empty weights:

Empty weights	Tax
0 to 2,499 pounds	$ 75.00
2,500 to 9,999 pounds	200.00
10,000 pounds and over	300.00

The registration plate issued under this subdivision expires only when the secretary of state reissues a new registration plate for all trailers. Beginning October 1, 2005, if the secretary of state reissues a new registration plate for all trailers, a person who has once paid the tax as increased by 2003 PA 152 for a vehicle under this subdivision is not required to pay the tax for that vehicle a second time, but is required to pay only the cost of the reissued plate at the rate provided in section 804(2) for a standard plate. A registration plate issued under this subdivision is nontransferable.

(m) For each commercial vehicle used for the transportation of passengers for hire except for a vehicle for which a payment is made under 1960 PA 2, MCL 257.971 to 257.972, according to the following schedule of empty weights:

Empty weights	Per 100 pounds
0 to 4,000 pounds	$ 1.76

4,001 to 6,000 pounds	2.20
6,001 to 10,000 pounds	2.72
10,001 pounds and over	3.25

(n) For each motorcycle, as follows:

(i) Until February 18, 2019	$ 23.00
(ii) Beginning February 19, 2019	$ 25.00

On October 1, 1983, and October 1, 1984, the tax assessed under this subdivision must be annually revised for the registrations expiring on the appropriate October 1 or after that date by multiplying the tax assessed in the preceding fiscal year times the personal income of Michigan for the preceding calendar year divided by the personal income of Michigan for the calendar year that preceded that calendar year. In performing the calculations under this subdivision, the secretary of state shall use the spring preliminary report of the United States Department of Commerce or its successor agency.

Beginning January 1, 1984, the registration tax for each motorcycle is increased by $3.00. The $3.00 increase is not part of the tax assessed under this subdivision for the purpose of the annual October 1 revisions but is in addition to the tax assessed as a result of the annual October 1 revisions. Beginning January 1, 1984 and ending February 18, 2019, $3.00 of each motorcycle fee must be placed in a motorcycle safety fund in the state treasury and must be used only for funding the motorcycle safety education program as provided for under sections 312b and 811a. Beginning February 19, 2019, $5.00 of each motorcycle fee must be placed in the motorcycle safety fund and must be used only for funding the motorcycle safety education program as provided for under sections 312b and 811a.

(o) For each truck weighing 8,001 pounds or more, road tractor, or truck tractor used exclusively as a moving van or part of a moving van in transporting household furniture and household effects or the equipment or those engaged in conducting carnivals, at the rate of 80% of the schedule of elected gross weights in subdivision (k) as modified by the operation of that subdivision.

(p) After September 30, 1983, each motor vehicle of the 1984 or a subsequent model year as shown on the application required under section 217 that has not been previously subject to the tax rates of this section and that is of the motor vehicle category otherwise subject to the tax schedule described in subdivision (a), and each low-speed vehicle according to the following schedule based upon registration periods of 12 months:

(i) Except as otherwise provided in this subdivision, according to the following schedule based on the vehicle's list price:

List Price	Tax
$ 0 - $ 6,000.00	$ 36.00
More than $ 6,000.00 - $ 7,000.00	$ 40.00
More than $ 7,000.00 - $ 8,000.00	$ 46.00
More than $ 8,000.00 - $ 9,000.00	$ 52.00
More than $ 9,000.00 - $ 10,000.00	$ 58.00
More than $ 10,000.00 - $ 11,000.00	$ 64.00
More than $ 11,000.00 - $ 12,000.00	$ 70.00
More than $ 12,000.00 - $ 13,000.00	$ 76.00
More than $ 13,000.00 - $ 14,000.00	$ 82.00

More than $ 14,000.00 - $ 15,000.00 $ 88.00
More than $ 15,000.00 - $ 16,000.00 $ 94.00
More than $ 16,000.00 - $ 17,000.00 $ 100.00
More than $ 17,000.00 - $ 18,000.00 $ 106.00
More than $ 18,000.00 - $ 19,000.00 $ 112.00
More than $ 19,000.00 - $ 20,000.00 $ 118.00
More than $ 20,000.00 - $ 21,000.00 $ 124.00
More than $ 21,000.00 - $ 22,000.00 $ 130.00
More than $ 22,000.00 - $ 23,000.00 $ 136.00
More than $ 23,000.00 - $ 24,000.00 $ 142.00
More than $ 24,000.00 - $ 25,000.00 $ 148.00
More than $ 25,000.00 - $ 26,000.00 $ 154.00
More than $ 26,000.00 - $ 27,000.00 $ 160.00
More than $ 27,000.00 - $ 28,000.00 $ 166.00
More than $ 28,000.00 - $ 29,000.00 $ 172.00
More than $ 29,000.00 - $ 30,000.00 $ 178.00

More than $30,000.00, the tax of $178.00 is increased by $6.00 for each $1,000.00 increment or fraction of a $1,000.00 increment over $30,000.00. If a current tax increases or decreases as a result of 1998 PA 384, only a vehicle purchased or transferred after January 1, 1999 must be assessed the increased or decreased tax.

(ii) For the second registration, 90% of the tax assessed under subparagraph (i).

(iii) For the third registration, 90% of the tax assessed under subparagraph (ii).

(iv) For the fourth and subsequent registrations, 90% of the tax assessed under subparagraph (iii).

For a vehicle of the 1984 or a subsequent model year that has been previously registered by a person other than the person applying for registration or for a vehicle of the 1984 or a subsequent model year that has been previously registered in another state or country and is registered for the first time in this state, the tax under this subdivision is determined by subtracting the model year of the vehicle from the calendar year for which the registration is sought. If the result is zero or a negative figure, the first registration tax must be paid. If the result is 1, 2, or 3 or more, then, respectively, the second, third, or subsequent registration tax must be paid. A passenger motor vehicle that has been modified with a permanently installed wheelchair lift mechanism or with permanently installed hand controls and that is owned by an individual who uses a wheelchair or by an individual who transports a member of the individual's household who uses a wheelchair and for which registration plates are issued under section 803d must be assessed at the rate of 50% of the tax provided for in this subdivision. As used in this subdivision, "permanently installed hand controls" means a permanently installed device designed to replace the brake and gas pedals of a motor vehicle with hand controls.

(q) For a wrecker, $200.00.

(r) When the secretary of state computes a tax under this act, a computation that does not result in a whole dollar figure must be rounded to the next lower whole dollar if the computation results in a figure ending in 50 cents or less and must be rounded to the next higher whole dollar if the computation results in a figure ending in 51 cents or more, unless specific taxes are specified, and the secretary of state may accept the manufacturer's shipping

weight of the vehicle fully equipped for the use for which the registration application is made. If the weight is not correctly stated or is not satisfactory, the secretary of state shall determine the actual weight. Each application for registration of a vehicle under subdivisions (j) and (m) must have attached to the application a scale weight receipt of the vehicle fully equipped as of the time the application is made. The scale weight receipt is not necessary if there is presented with the application a registration receipt of the previous year that shows on its face the weight of the motor vehicle as registered with the secretary of state and that is accompanied by a statement of the applicant that there has not been a structural change in the motor vehicle that has increased the weight and that the previous registered weight is the true weight.

(2) A manufacturer is not exempted under this act from paying ad valorem taxes on vehicles in stock or bond, except on the specified number of motor vehicles registered. A dealer is exempt from paying ad valorem taxes on vehicles in stock or bond.

(3) Until October 1, 2027, the tax for a vehicle with an empty weight over 10,000 pounds imposed under subsection (1)(a) and the taxes imposed under subsection (1)(c), (d), (e), (f), (i), (j), (m), (o), and (p) are each increased as follows:

(a) A regulatory fee of $2.25, which must be credited to the traffic law enforcement and safety fund created in section 819a and used to regulate highway safety.

(b) A fee of $5.75, which must be credited to the transportation administration collection fund created in section 810b.

(4) Except as otherwise provided in this subsection, if a tax required to be paid under this section is not received by the secretary of state on or before the expiration date of the registration plate, the secretary of state shall collect a late fee of $10.00 for each registration renewed after the expiration date. An application for a renewal of a registration using the regular mail and postmarked before the expiration date of that registration must not be assessed a late fee. The late fee collected under this subsection must be deposited into the general fund. The secretary of state shall waive the late fee collected under this subsection if all of the following are satisfied:

(a) The registrant presents proof of storage insurance for the vehicle for which the late fee is assessed that is valid for the period of time between the expiration date of the most recent registration and the date of application for the renewal.

(b) The registrant requests in person at a department branch office that the late fee be waived at the time of application for the renewal.

(5) In addition to the registration taxes under this section, the secretary of state shall collect taxes charged under section 801j and credit revenues to a regional transit authority created under the regional transit authority act, 2012 PA 387, MCL 124.541 to 124.558, minus necessary collection expenses as provided in section 9 of article IX of the state constitution of 1963. Necessary collection expenses incurred by the secretary of state under this subsection must be based upon an established cost allocation methodology.

(6) This section does not apply to a historic vehicle.

(7) Beginning January 1, 2017, the registration fee imposed under this section for a vehicle using 4 or more tires is increased as follows:

(a) If the vehicle is a plug-in hybrid electric vehicle, the registration fee for that vehicle is increased by $30.00 for a vehicle with an empty weight of 8,000 pounds or less, and $100.00 for a vehicle with an empty weight of more than 8,000 pounds. As used in this subdivision and subsection (8)(a), "plug-in hybrid electric vehicle" means a vehicle that can use batteries to power an electric motor and use another fuel, such as gasoline or diesel, to power an internal combustion engine or other propulsion source, and that may use electricity from the grid to run the vehicle some or all of the time.

(b) If the vehicle is an electric vehicle, the registration fee for that vehicle is increased by $100.00 for a vehicle with an empty weight of 8,000 pounds or less, and $200.00 for a vehicle with an empty weight of more than 8,000 pounds. As used in this subdivision and subsection (8)(b), "electric vehicle" means a vehicle that is propelled solely by electrical energy and that is not capable of using gasoline, diesel fuel, or alternative fuel to propel the vehicle.

(8) Beginning January 1, 2017, if the tax on gasoline imposed under section 8 of the motor fuel tax act, 2000 PA 403, MCL 207.1008, is increased above 19 cents per gallon, the secretary of state shall increase the fees collected under subsection (7) as follows:

(a) For a plug-in hybrid electric vehicle, $2.50 per each 1 cent above 19 cents per gallon.

(b) For an electric vehicle, $5.00 per each 1 cent above 19 cents per gallon.

(9) As used in this section:

(a) "Alternative fuel" means that term as defined in section 151 of the motor fuel tax act, 2000 PA 403, MCL 207.1151.

(b) "Diesel fuel" means that term as defined in section 2 of the motor fuel tax act, 2000 PA 403, MCL 207.1002.

(c) "Gasoline" means that term as defined in section 3 of the motor fuel tax act, 2000 PA 403, MCL 207.1003.

(d) "Gross proceeds" means that term as defined in section 1 of the general sales tax act, 1933 PA 167, MCL 205.51, and includes the value of the motor vehicle used as part payment of the purchase price as that value is agreed to by the parties to the sale, as evidenced by the signed agreement executed under section 251.

(e) "List price" means the manufacturer's suggested base list price as published by the secretary of state, or the manufacturer's suggested retail price as shown on the label required to be affixed to the vehicle under 15 USC 1232, if the secretary of state has not at the time of the sale of the vehicle published a manufacturer's suggested retail price for that vehicle, or the purchase price of the vehicle if the manufacturer's suggested base list price is unavailable from the sources described in this subdivision.

(f) "Purchase price" means the gross proceeds received by the seller in consideration of the sale of the motor vehicle being registered.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 55, Eff. Dec. 1, 1951 ;-- Am. 1952, Act 161, Eff. Sept. 18, 1952 ;-- Am. 1953, Act 179, Imd. Eff. June 8, 1953 ;-- Am. 1954, Act 147, Eff. Aug. 13, 1954 ;-- Am. 1956, Act 130, Eff. Aug. 11, 1956 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1960, Act 104, Imd. Eff. Apr. 26, 1960 ;-- Am. 1962, Act 82, Eff. Mar. 28, 1963 ;-- Am. 1963, Act 41, Eff. Sept. 6, 1963 ;-- Am. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967 ;-- Am. 1969, Act 309, Imd. Eff. Aug. 14, 1969 ;-- Am. 1970, Act 106, Imd. Eff. July 23, 1970 ;-- Am. 1976, Act 26, Imd. Eff. Feb. 27, 1976 ;-- Am. 1976, Act 114, Imd. Eff. May 14, 1976 ;-- Am. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1976, Act 441, Eff. Mar. 31, 1977 ;-- Am. 1978, Act 427, Imd. Eff. Sept. 30, 1978 ;-- Am. 1979, Act 47, Imd. Eff. July 3, 1979 ;-- Am. 1980, Act 117, Imd. Eff. May 14, 1980 ;-- Am. 1980, Act 153, Imd. Eff. June 11, 1980 ;-- Am. 1980, Act 270, Imd. Eff. Oct. 1, 1980 ;-- Am. 1981, Act 58, Imd. Eff. June 4, 1981 ;-- Am. 1982, Act 187, Eff. Jan. 1, 1984 ;-- Am. 1982, Act 350, Imd. Eff. Dec. 21, 1982 ;-- Am. 1982, Act 439, Eff. Jan. 1, 1983 ;-- Am. 1983, Act 165, Eff. Oct. 1, 1983 ;-- Am. 1984, Act 173, Imd. Eff. June 29, 1984 ;-- Am. 1985, Act 32, Imd. Eff. June 13, 1985 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 1990, Act 181, Imd. Eff. July 18, 1990 ;-- Am. 1994, Act 50, Imd. Eff. Mar. 25, 1994 ;-- Am. 1994, Act 94, Imd. Eff. Apr. 13, 1994 ;-- Am. 1994, Act 95, Eff. June 1, 1994 ;-- Am. 1994, Act 395, Eff. Mar. 30, 1995 ;-- Am. 1995, Act 129, Imd. Eff. June 30, 1995 ;-- Am. 1995, Act 226, Imd. Eff. Dec. 14, 1995 ;-- Am. 1997, Act 80, Eff. Oct. 1, 1997 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999 ;-- Am. 2000, Act 47, Imd. Eff. Mar. 27, 2000 ;-- Am. 2000, Act 82, Eff. July 1, 2000 ;-- Am. 2000, Act 502, Imd. Eff. Jan. 11, 2001 ;-- Am. 2002, Act 417, Imd. Eff. June 5, 2002 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 427, Imd. Eff. Dec. 17, 2004 ;-- Am. 2006, Act 136, Imd. Eff.

May 12, 2006 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2012, Act 388, Eff. Mar. 28, 2013 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2015, Act 174, Eff. Apr. 1, 2016 ;-- Am. 2016, Act 148, Eff. Sept. 7, 2016 ;-- Am. 2017, Act 115, Eff. Oct. 25, 2017 ;-- Am. 2017, Act 238, Eff. Mar. 21, 2018 ;-- Am. 2018, Act 152, Eff. Aug. 14, 2018 ;-- Am. 2018, Act 656, Eff. Mar. 29, 2019 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2020, Act 103, Eff. Sept. 29, 2020 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

Compiler's Notes: Enacting section 2 of Act 470 of 2014 provides:"Enacting section 2. This amendatory act does not take effect unless House Joint Resolution UU of the 97th Legislature becomes a part of the state constitution of 1963 as provided in section 1 of article XII of the state constitution of 1963."House Joint Resolution UU was presented to the electors as Proposal 15-1 at the May 5, 2015 special election. The proposal to amend the constitution was not approved by the voters and Act 470 of 2014 does not go into effect.

257.801a Registration fees; portable feed mills or mixers.

Sec. 801a.

In computing the tax imposed by section 801 on portable feed mills or mixers used to grind or mix grain at the farm for use on the farm and not for resale, the secretary of state shall use the weight of the cab and chassis only.

History: Add. 1958, Act 3, Imd. Eff. Feb. 27, 1958

257.801b Refund of specific tax paid in error; refund of dealer license fees; refund on and return of registration plates or tabs; refund in case of original application for certain registration plates; refund or credit for plates issued under MCL 257.801g.

Sec. 801b.

(1) If a person, through error either on his or her own part or that of the secretary of state, pays the specific tax required by section 801 or 802 more than once on the same equipment, the secretary of state, upon application and satisfactory proof, shall refund the amount paid in error. A claim shall be filed within 1 year after the date of payment and verified by the secretary of state before a refund is made. If an application for a dealer license provided for in section 248 is withdrawn by the applicant or the applicant's heir, before issuance of the dealer license, the fees that accompanied the application under sections 803, 803a, and 807 may be refunded by the secretary of state upon application and satisfactory proof.

(2) If a person's license to drive a motor vehicle is revoked, suspended, or denied for medical or physical reasons, the person may return the registration plates and obtain a refund on the plates prorated on a monthly basis for the time period remaining in the registration year from the date the plates are returned. However, the refund shall not exceed the original registration fee.

(3) Upon the death of a spouse, the surviving spouse may return registration plates and obtain a refund on the plates prorated on a monthly basis for the time period remaining in the registration year from the date the plates are returned. However, the refund shall not exceed the original registration fee.

(4) The owner of a registered vehicle who transfers or assigns title or interest in that registered vehicle before placing upon the registered vehicle the registration plates or tabs issued for that registered vehicle may obtain a refund in full from the secretary of state for the registration plates or tabs. Registration plates, or tabs issued for 1978 and thereafter shall be returned by the owner within 30 days following the date of transfer or assignment.

(5) The owner of a vehicle registered pursuant to section 801d(2) who transfers or assigns title or interest in the vehicle may obtain a refund on the registration for each unused, whole registration period remaining on the registration from the date the plates are returned and the application for a refund is made.

(6) In the case of an original application for registration plates issued under section 217a or 803b, the secretary of state shall issue a refund prorated on a monthly basis from the date of application for the time period remaining in the previously issued registration, if an application for the refund is made and satisfactory proof is presented to the secretary of state. A refund shall not be made if the amount due is less than $5.00.

(7) In the case of an original application for the registration plates bearing the letters "SEN" or "REP", the secretary of state shall issue a refund prorated on a monthly basis from the date of application for the time period remaining in the previously issued registration.

(8) In the case of an original application and issuance of an international registration plan registration plate under section 801g, the secretary of state shall make a refund as a credit prorated on a monthly basis from the date of application for the months remaining for the previously issued registration on the same vehicle, if an application for the refund as a credit is made and satisfactory proof of eligibility is presented to the secretary of state. A refund as a credit shall not exceed the total amount of the Michigan apportioned fees assessed for the plates issued under section 801g nor be made if the amount due is less than $5.00. For the purpose of this subsection, a month shall mean 30 consecutive days and a partial month shall be considered as a whole month.

History: Add. 1959, Act 64, Imd. Eff. June 5, 1959 ;-- Am. 1974, Act 187, Imd. Eff. July 2, 1974 ;-- Am. 1978, Act 62, Imd. Eff. Mar. 14, 1978 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1978, Act 587, Imd. Eff. Jan. 3, 1979 ;-- Am. 1980, Act 46, Imd. Eff. Mar. 19, 1980 ;-- Am. 1980, Act 281, Imd. Eff. Oct. 9, 1980 ;-- Am. 1986, Act 311, Imd. Eff. Dec. 23, 1986

257.801c Nonpayment of check or draft for fee or tax on vehicle; liability; penalties; collection of delinquent accounts.

Sec. 801c.

(1) If a check or draft in payment of a fee or tax under this act is not paid on its first presentation, the fee or tax is delinquent as of the date the check or draft was tendered. The person tendering the check or draft remains liable for the payment of each fee or tax and a penalty. The penalty shall be assessed according to the following table and shall be deposited in the transportation administration collection fund established under section 801b:

Amount of Check or Draft	Penalty
$ .01 to 15.00	$ 5.00
15.01 to 50.00	10.00
50.01 to 100.00	20.00
100.01 to 300.00	60.00
300.01 and higher	20% of the check or draft

(2) An operator's or chauffeur's license shall not be issued or renewed for a person who has had outstanding against him or her a claim resulting from nonpayment of a check or draft used to pay a fee or tax to the secretary of state.

(3) The department shall suspend, until all fees, taxes, and penalties due are paid, the operator's or chauffeur's license of a person who has had outstanding against him or her for not

less than 60 days a claim resulting from nonpayment of a check or draft used to pay a fee or tax to the secretary of state. A person whose operator's or chauffeur's license has been suspended under this section shall not be subject to the examination provisions of section 320c.

(4) The collection of delinquent accounts remains the responsibility of the office of secretary of state.

History: Add. 1971, Act 8, Eff. July 1, 1971 ;-- Am. 1976, Act 315, Imd. Eff. Dec. 7, 1976 ;-- Am. 1980, Act 281, Imd. Eff. Oct. 9, 1980 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2012, Act 498, Eff. Mar. 28, 2013

Compiler's Notes: In subsection (1), the reference to "section 801b" evidently should be a reference to "section 810b."

257.801d Repealed. 2003, Act 152, Eff. Oct. 1, 2003.

Compiler's Notes: The repealed section pertained to taxes for pole trailer, semitrailer, or trailer, and issuance and registration fees for fleet vehicles.

257.801e Moped; application for registration; form; signature; fee; issuance and contents of certificate of registration; insurance; size, legibility, and inspection of certificate; issuance and display of decal; rules; certificate of registration for use in testing or demonstrating moped; duration of registration.

Sec. 801e.

(1) When a moped required to be registered under this act is sold by a retailer to a general purchaser, the certificate of registration shall be obtained in the name of the purchaser by the retailer. In other cases, the certificate of registration shall be obtained by the purchaser. The application shall be signed by the purchaser of the moped and shall be accompanied by a fee of $15.00. Upon receipt of the application in approved form, the secretary of state shall enter the application upon the secretary of state's records and issue to the applicant a certificate of registration containing the decal for the moped, the name and address of the owner, and other information the secretary of state considers necessary. A moped shall not be required to be insured in the manner specified for motor vehicles under chapter 31 of Act No. 218 of the Public Acts of 1956, as amended, being sections 500.3101 to 500.3179 of the Michigan Compiled Laws. The certificate of registration shall be pocket size, shall accompany the vehicle, shall be legible, and shall be made available for inspection upon demand by a law enforcement officer.

(2) A decal indicating that the certificate of registration is in full force and effect shall be issued. A registration certificate and decal shall not be issued earlier than 90 days preceding the commencement date of the new registration period. Display of the decal shall be as prescribed by rule promulgated by the secretary of state.

(3) A retailer or manufacturer of mopeds, upon application to the secretary of state upon forms provided by the secretary of state, may obtain certificates of registration for use in the testing or demonstrating of a moped upon payment of $10.00 for each of the first 2 registration certificates. Additional certificates may be issued at a cost of $5.00 each and used by the applicant only in the testing or demonstrating of mopeds by temporary placement of the

registration on the moped being tested or demonstrated. A certificate issued pursuant to this subsection may be used on only 1 moped at any given time.

(4) A moped registration shall be valid for a 3-year period which begins on May 1 and expires on April 30 of the third registration year. For purposes of this subsection, a registration year begins on May 1 and ends on April 30.

History: Add. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1978, Act 427, Imd. Eff. Sept. 30, 1978 ;-- Am. 1979, Act 120, Eff. Apr. 15, 1980 ;-- Am. 1983, Act 91, Imd. Eff. June 16, 1983

257.801f Moped; notice of destruction or abandonment; surrender and cancellation of certificate of registration; notice of change of address; transfer of certificate; fee; duration of registration; duplicate certificate.

Sec. 801f.

(1) The owner of a moped shall notify the secretary of state if the moped is destroyed or abandoned within 15 days after its destruction or abandonment. Notice shall consist of a surrender of the certificate of registration on which the proper information shall be noted on a place to be provided. The secretary of state shall cancel the certificate and enter that fact in the records of the secretary of state.

(2) The owner of a moped shall notify the secretary of state upon a change of address. The new address shall be recorded by the secretary of state and a certificate of registration bearing that information shall be returned to the owner.

(3) The transferee of a moped, within 15 days after acquiring it, shall make application to the secretary of state for transfer of the certificate of registration issued to the moped, giving the transferee's name, address, and the number of the moped and pay to the secretary of state a transfer fee of $10.00. A registration fee of $10.00 shall be assessed if the transferred registration would have remained valid for 1 year or less. If the transferred registration would have remained valid for more than 1 year but less than 2 years, a registration fee of $5.00 shall be assessed. A registration fee shall not be assessed if the transferred registration would have remained valid for 2 or more years. Upon receipt of the application and fees, the secretary of state shall transfer the certificate of registration issued for the moped to the new owner. The registration shall be valid for 3 registration years. Unless the application is made and the fee paid within 15 days, the moped shall be considered to be without certificate of registration and a person shall not operate the moped until a certificate is issued.

(4) If a certificate of registration is lost, mutilated, or becomes illegible, the owner of a moped shall obtain a duplicate of the certificate upon application and payment of a fee of $2.00.

History: Add. 1976, Act 439, Imd. Eff. Jan. 13, 1977 ;-- Am. 1979, Act 120, Eff. Apr. 15, 1980 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987
Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.801g Apportionment of fee under international registration plan if permitted by reciprocal compact, agreement, or other arrangement; definition; issuance of registration plate and cab card upon payment of apportioned fee; purchase of annual international registration plan plates; service fee; notice; effect of late payment; effect of surrendering or not surrendering registration plate; temporary registration.

Sec. 801g.

(1) Notwithstanding section 801(1)(j) or 801(1)(k), for a truck, truck tractor, or road tractor engaged in interstate commerce, for which a registration fee otherwise would be provided in section 801(1)(j) or 801(1)(k), the fee may be apportioned under the international registration plan according to the miles traveled in this state in relation to the total miles traveled by the vehicle, if the apportionment is permitted by a reciprocal compact, agreement, or other arrangement entered into by the Michigan highway reciprocity board.

(2) For the purposes of this section, "international registration plan" means a method of licensing trucks and bus fleets proportionally among 2 or more member jurisdictions and includes an apportioned fee that is determined according to the fleet's percentage of miles generated in the various jurisdictions. Upon payment of the apportioned fee there shall be issued 1 registration plate and 1 cab card for each vehicle with the cab card indicating the jurisdictions in which the unit is registered and the registered weight for each jurisdiction.

(3) If the apportionment is permitted, and if at the time of purchase a person elects to have the fees apportioned and the registration is valid for at least 12 months, the annual international registration plan plates may be purchased by paying any out of state portion and 1/2 the amount apportioned for Michigan fees and an extra $10.00 service fee per vehicle upon purchase and the balance within 180 days before the date of expiration. The secretary of state shall notify a person who has elected to use the installment option of this subsection informing the person of the amount due and of the penalties that shall be imposed if payment is not received within 180 days before the date of expiration. If a person is once late on paying the balance, a penalty of 25% of the outstanding balance shall be assessed and collected in addition to the fee. If a person is twice late in paying the balance within a 2-year period, then a penalty of 25% of the outstanding balance shall be assessed and collected in addition to the fee, and the person is ineligible to elect the apportionment payment plan for the next 2 registration years following the year of the delinquency. The secretary of state shall suspend the registration of any vehicle for which the registration fee is not paid in full and transmit a statement of the delinquent balance, including the penalty, to the department of treasury for collection.

(4) If a person surrenders a registration plate purchased under section 801(1)(j) or 801(1)(k) for a registration under this section for the same vehicle, the apportioned fee for the exchange registration shall bear the same relationship to the fee required under this section for a 12-month registration as the length of time the exchange registration bears to 12 months. Partial months shall be considered as whole months in the calculation of the required fee and in the determination of the length of time between the application for a registration and the last day of the month of expiration. The calculation shall include any refund as a credit provided for in section 801b(8). The fee required for the registration shall be rounded off to whole dollars as provided in section 801.

(5) If a person does not surrender a registration plate purchased under section 801(1)(j) or 801(1)(k) for a registration under this section, the apportioned fee shall be determined as provided for in this section except the apportioned fee for a registration purchased shall bear the same relationship to the fee required under this section for a 12-month registration as the length of time the registration bears to 12 months. Partial months shall be considered as whole months in the calculation of the required fee and in the determination of the length of time between the application for a registration and the last day of the month of expiration. The fee required for this registration shall be rounded off to whole dollars as provided in section 801. Fees under this subsection shall not be prorated for less than 6 months.

(6) Upon proper application for registration of a vehicle under this section, the secretary of state may issue a temporary registration which shall be valid for not more than 45 days from the date of issuance.

(7) The secretary of state may designate an owner or registrant having a fleet of motor vehicles currently registered under this section to act as an agent for the secretary of state for the purpose of issuing to himself or herself a temporary registration. Upon issuance of a temporary registration an agent shall make proper application for an international registration plan registration to the secretary of state within 5 days after issuance of the temporary registration.

(8) An owner issued a temporary registration under this section is liable for the fees provided in this section.

(9) If the owner of a vehicle for which a temporary registration is issued under this section fails to pay the registration fee as required in this section, the secretary of state shall suspend the registrations of all vehicles registered by that owner under this section. The registrations shall remain suspended until the fee is paid.

History: Add. 1980, Act 505, Imd. Eff. Jan. 22, 1981 ;-- Am. 1984, Act 330, Imd. Eff. Dec. 26, 1984 ;-- Am. 1986, Act 311, Imd. Eff. Dec. 23, 1986 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 1992, Act 29, Eff. Jan. 1, 1993 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011

257.801h Fleet registration; application; issuance and display of registration plates; tax; late fee; adding or deleting registration; ineligible vehicle; determination of owner's compliance.

Sec. 801h.

(1) Notwithstanding any other provision in this act, the owner or lessee of a fleet of 300 or more vehicles that are or will be registered under section 801 may apply to the secretary of state for special registration plates for any number of 300 or more vehicles in a fleet. An application shall be on a form prescribed by the secretary of state and include an agreement that, at a minimum, the applicant agrees to pay annual fleet registration taxes under this section in a manner determined by the secretary of state.

(2) Upon approval of the application and payment of the required registration taxes, the secretary of state may issue the applicant a registration plate under section 224 and a registration certificate under section 222 for each vehicle. The registration plate and certificate shall each be in a format as prescribed by the secretary of state.

(3) The name, emblem, trademark, or logo of the company issued fleet registration plates under this section shall be prominently displayed on the right and left sides of all vehicles registered under this section by that applicant. The name, emblem, trademark, or logo shall contain letters, figures, or numerals in sharp contrast to the background of the name, emblem, trademark, or logo and shall be of a size, shape, and color that is readily legible during daylight hours from a distance of 50 feet. This subsection does not apply to passenger vehicle rental fleets.

(4) The registration tax for each vehicle registered under this section shall be paid annually. Registration taxes under this section are payable in full not later than the due date provided in section 226. If the owner of a vehicle registered under this section fails to pay the annual registration tax for that vehicle, the secretary of state shall collect a late fee of $100.00 for the individual vehicle registration for that vehicle, in addition to the registration tax. If the owner of a vehicle registered under this section fails to comply with the terms of the fleet registration plate agreement provided in subsection (1), except as otherwise provided in this subsection,

the secretary of state shall immediately suspend the registration of all vehicles registered by that owner under this section. The registration shall remain suspended and the owner shall not apply for the registration or reregistration of a vehicle under this section until payment in full of the tax, and late fee, if applicable, owed is made. After providing notice to the owner, the secretary of state shall notify law enforcement of any plate suspended under this section. The secretary of state shall not suspend the registration of all vehicles registered under a fleet vehicle registration plate agreement under subsection (1) for failure to timely pay the annual registration tax for an individual vehicle registered under the fleet vehicle registration plate agreement.

(5) At any time an owner or lessee in good standing may add a vehicle to the list of vehicles registered under this section. To add a vehicle, the owner or lessee shall make application to the secretary of state, in a form prescribed by the secretary of state, accompanied by the registration taxes required under section 801.

(6) At any time an owner or lessee may delete the registration of a vehicle from the list of vehicles registered under this section. To delete a vehicle, the owner shall notify the secretary of state of the proposed deletion in a form prescribed by the secretary of state and, except as otherwise provided in this subsection, surrender to the secretary of state the registration plate assigned to the deleted vehicle. The secretary of state shall collect a late fee of $100.00 from a vehicle owner who does not return a fleet registration plate to the secretary of state within 30 days after deleting that vehicle's registration under this subsection. A vehicle owner is not required to surrender a fleet registration plate assigned to a deleted vehicle if the fleet registration plate is properly transferred to another vehicle in that fleet and the registration for the vehicle to which the fleet registration plate is transferred is transferred within 30 days after the deleted vehicle is removed from the fleet. A vehicle owner shall surrender to the secretary of state a fleet registration plate that has been transferred from a deleted vehicle to another vehicle in the same fleet as provided in this subsection when the registration for that vehicle expires or when that vehicle is deleted from the fleet.

(7) A vehicle not titled or leased in the name of the applicant is not eligible for registration under this section. A vehicle registered under section 801g is not eligible for registration under this section.

(8) The secretary of state or the authorized representative of the secretary of state may visit and examine the vehicle registration records of an owner whose vehicles are registered under this act. This authority only applies to visits during the regular business hours of the owner and to those vehicles and records necessary for the secretary of state to determine an owner's compliance with this section.

History: Add. 1996, Act 551, Eff. Oct. 1, 1997 ;-- Am. 2018, Act 425, Eff. Apr. 1, 2019

257.801i Issuance of registration for more than 1 period.

Sec. 801i.

(1) The secretary of state, upon request, may issue a vehicle registration under this act for more than 1 registration period in a manner determined by the secretary of state. The registration tax shall be prorated according to the taxes and expiration dates provided for under this act.

(2) If a registration is purchased under this section, an annual tax increase provided for under this act shall not be assessed during the remainder of the period that the registration was purchased.

History: Add. 2000, Act 36, Eff. Apr. 1, 2001

257.801j Additional tax charged by regional transit authority.

Sec. 801j.

(1) Except as otherwise provided in subsection (6), in addition to the required vehicle registration tax under section 801(1)(p), a regional transit authority created under the regional transit authority act, 2012 PA 387, MCL 124.541 to 124.558, may charge an additional tax on vehicle registrations issued to residents of a public transit region of not more than $1.20 for each $1,000.00 or fraction of $1,000.00 of the vehicle's list price as used in calculating the tax under section 801(1)(p). The authority may charge the additional tax only upon the approval of a majority of the electors in a public transit region voting on the tax at an election held on the regular November election date as provided in section 641(1)(d) of the Michigan election law, 1954 PA 116, MCL 168.641.

(2) In addition to any other requirements imposed by law, the ballot question proposing authorization of the tax under subsection (1) shall specify how the proceeds of the tax shall be expended.

(3) The tax collected under this section shall only be used by the regional transit authority for comprehensive transportation purposes as defined by law for purposes of section 9 of article IX of the state constitution of 1963.

(4) A proposal for a tax under this section shall not be placed on the ballot under subsection (1) unless the proposal is adopted by a resolution of the board of directors of the regional transit authority and certified by the board of directors not later than 70 days before the election to the county clerk of each county within the public transit region for inclusion on the ballot.

(5) Except as otherwise provided in subsection (6), if a majority of voters in a public transit region approve a tax under subsection (1), no later than 1 year after voter approval, the secretary of state shall collect the tax on all vehicles registered to residents of the public transit region under section 801(1)(p) and shall credit the tax collected to the regional transit authority, minus necessary collection expenses as provided in section 9 of article IX of the state constitution of 1963. Necessary collection expenses incurred by the secretary of state under this subsection shall be based upon an established cost allocation methodology.

(6) This section does not apply to a company test vehicle. As used in this subsection, "company test vehicle" means a vehicle that is owned by a manufacturer and that satisfies 1 or both of the following:

(a) The vehicle is part of a product testing program as defined by the United States department of treasury under treas. reg. 1.132-5(n)(2001).

(b) The vehicle is furnished by the manufacturer to an employee of the manufacturer for the purpose of testing, evaluating product quality and performance, reporting defects, or suggesting product or production improvements as an ordinary and necessary business expense of the manufacturer.

History: Add. 2012, Act 498, Eff. Mar. 28, 2013 ;-- Am. 2014, Act 171, Eff. Sept. 15, 2014
Compiler's Notes: Act 388 of 2012, effective March 28, 2013, added MCL 257.801j. Act 498 of 2012, effective March 28, 2013, also added MCL 257.801j. Because Act 498 of 2012 was filed after Act 388 of 2012, the text from MCL 257.801j, as added by Act 498 of 2012, appears.

257.801k Late fees; exception for certain vehicles in pandemic; adequate in-person services.

Sec. 801k.

(1) Notwithstanding any other provisions in this chapter and subject to subsection (3), late fees must not be assessed on the following vehicles:

(a) A vehicle registered under section 801(1)(j) or (k) or section 801g whose registration expires on or after March 1, 2020 and whose registration is renewed before March 31, 2021. A vehicle registered under section 801(1)(j) or (k) or 801g whose registration expires after March 31, 2021 but before August 1, 2021 and whose registration is renewed within 120 days after the date of the expiration. The secretary of state shall, upon an applicant's request, reimburse a late renewal fee assessed and collected for a vehicle registered under section 801(1)(j) or (k) or 801g whose registration expires after March 31, 2021 but before August 1, 2021 and whose registration is renewed within 120 days after the date of the expiration.

(b) All other vehicles registered under this chapter whose registration expires on or after March 1, 2020 and whose registration is renewed before March 31, 2021. All other vehicles registered under this chapter whose registration expires after March 31, 2021 but before August 1, 2021 and whose registration is renewed within 120 days after the date of the expiration. The secretary of state shall, upon an applicant's request, reimburse a late renewal fee assessed and collected for all other vehicles registered under this chapter whose registration expires after March 31, 2021 but before August 1, 2021 and whose registration is renewed within 120 days after the date of the expiration.

(2) Notwithstanding any other provisions in this chapter and subject to subsection (3), both of the following apply:

(a) The secretary of state shall not assess a late renewal fee for a registration under section 216(2), 226(11) or (13), or 255(4) if the registration expires after March 31, 2021 but before August 1, 2021 and is renewed within 120 days after the date of the expiration.

(b) The secretary of state shall, upon an applicant's request, reimburse a late renewal fee assessed and collected for a registration under section 216(2), 226(11) or (13), or 255(4) if the registration expires after March 31, 2021 but before August 1, 2021 and is renewed within 120 days after the date of the expiration.

(3) Notwithstanding any other provision of this chapter, if, on the effective date of the amendatory act that added this subsection, the secretary of state does not provide adequate in-person services, the secretary of state shall not assess a late renewal fee under this act until the secretary of state resumes providing adequate in-person services.

History: Add. 2020, Act 127, Imd. Eff. July 1, 2020 ;-- Am. 2020, Act 241, Eff. Oct. 28, 2020 ;-- Am. 2020, Act 304, Imd. Eff. Dec. 29, 2020 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021

Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."

257.802 Special registration; registration of commercial vehicles and special mobile equipment; temporary registration plates or markers; tax rates, fees, and service charges; deposit of service fees.

Sec. 802.

(1) For a special registration issued under section 226(8), the registrant shall pay 1/2 the tax imposed under section 801 and a service fee of $10.00.

(2) For all commercial vehicles registered after August 31 for the period expiring the last day of February, the secretary of state shall collect a tax of 1/2 the rate otherwise imposed under this act. This subsection does not apply to vehicles registered by manufacturers or dealers under sections 244 to 247.

(3) For each special registration under section 226(9), the secretary of state shall collect a service fee of $10.00.

(4) For temporary registration plates or markers under section 226a(1), the secretary of state shall collect a service fee in an amount determined by the secretary of state to reflect the actual cost of administering the temporary registration plates and markers program, or in the amount of $4.00 per plate or marker, whichever is less.

(5) For a temporary registration under section 226b, the fee is either of the following:

(a) For a 30-day temporary registration, 1/10 of the tax prescribed under section 801 or $20.00, whichever is greater, and an additional $10.00 service fee.

(b) For a 60-day temporary registration, 1/5 of the tax prescribed under section 801 or $40.00, whichever is greater, and an additional $10.00 service fee.

(6) For registration plates as provided for in section 226a(5), (6), and (7), the secretary of state shall collect a service fee of $40.00 for 2 registration plates and $20.00 for each additional registration plate.

(7) For special registrations issued for special mobile equipment as provided in section 216(1)(d), the secretary of state shall collect a service fee of $15.00 each for the first 3 special registrations and $5.00 for each subsequently issued special registration.

(8) The secretary of state, upon request, may issue a registration valid for 3 months for use on a vehicle with an elected gross weight of 24,000 pounds or greater on the payment of 1/4 the tax provided in section 801(1)(k) and a service fee of $10.00.

(9) Upon application to the secretary of state, an owner of a truck, truck tractor, or road tractor that is used exclusively to gratuitously transport farm crops or livestock bedding between the field where produced and the place of storage, feed from on-farm storage to an on-farm feeding site, or fertilizer, seed, or spray material from the farm location to the field may obtain a special registration. The service fee for each special registration issued under this subsection is $20.00. The special registration is valid for a period of up to 12 months and expires on December 31. As used in this subsection:

(a) "Feed" means hay or silage.

(b) "Livestock bedding" means straw, sawdust, or sand.

(10) Beginning on October 1, 2022, the secretary of state shall provide a system for applicants under subsection (9) or under section 801(1)(c) or (d) to renew their special registration at no additional charge in a branch office, by first-class mail, and online.

(11) The secretary of state, upon request, may issue a special registration valid for 3 or more months for a road tractor, truck, or truck tractor owned by a farmer, if the motor vehicle is used exclusively in connection with the farmer's farming operations or for the transportation of the farmer and the farmer's family and not used for hire. The fee for the registration is 1/10 of the tax provided in section 801(1)(c) times the number of months for which the special

registration is requested and, in addition, a service fee of $10.00. The secretary of state shall not issue a special registration for a motor vehicle for which the tax under section 801(1)(c) would be less than $50.00.

(12) The secretary of state, upon request, may issue a registration valid for 3 months or more for use on a vehicle with an elected gross weight of 24,000 pounds or greater. The fee for the registration is 1/12 of the tax provided in section 801(1)(k), times the number of months for which the special registration is requested and, in addition, a service fee of $10.00.

(13) The secretary of state shall deposit the service fees collected under subsections (1), (3), (4), (5), (6), (7), (8), (9), (11), and (12) in the transportation administration collection fund created in section 810b through October 1, 2027.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1953, Act 179, Imd. Eff. June 8, 1953 ;-- Am. 1957, Act 33, Eff. Sept. 27, 1957 ;-- Am. 1958, Act 55, Eff. July 1, 1958 ;-- Am. 1959, Act 155, Eff. Mar. 19, 1960 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1968, Act 278, Imd. Eff. July 1, 1968 ;-- Am. 1969, Act 309, Imd. Eff. Aug. 14, 1969 ;-- Am. 1978, Act 427, Imd. Eff. Sept. 30, 1978 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1980, Act 172, Imd. Eff. June 23, 1980 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1982, Act 19, Imd. Eff. Mar. 4, 1982 ;-- Am. 1983, Act 165, Eff. Oct. 1, 1983 ;-- Am. 1983, Act 186, Imd. Eff. Oct. 25, 1983 ;-- Am. 1984, Act 324, Imd. Eff. Dec. 26, 1984 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1989 ;-- Am. 1989, Act 286, Imd. Eff. Dec. 26, 1989 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 1992, Act 297, Eff. Jan. 1, 1993 ;-- Am. 1996, Act 551, Eff. Oct. 1, 1997 ;-- Am. 1997, Act 80, Eff. Oct. 1, 1997 ;-- Am. 1998, Act 396, Imd. Eff. Dec. 17, 1998 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 163, Imd. Eff. June 23, 2004 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2016, Act 425, Eff. Apr. 4, 2017 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2021, Act 110, Imd. Eff. Nov. 10, 2021 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

Compiler's Notes: For effective date of increases in certain fees, charges or taxes provided by this section, see MCL 257.817(1).

257.802a Temporary permits; collection and disposition of fee; bulk sales to agents.

Sec. 802a.

(1) For temporary permits, as provided for in section 243 of this act, a fee of $20.00 shall be collected. The fee shall be credited to the Michigan transportation fund and used to defray the expenses of such temporary permits.

(2) The secretary of state may sell temporary permits in bulk to vehicle owners or to persons who shall act as agents of the secretary of state for the purpose of issuing temporary permits.

History: Add. 1960, Act 98, Imd. Eff. Apr. 26, 1960 ;-- Am. 1984, Act 330, Imd. Eff. Dec. 26, 1984

257.803 Special plates for manufacturer, transporter, or dealer; fees.

Sec. 803.

Except as otherwise provided in section 245, the secretary of state shall charge a $10.00 fee for each special plate issued under section 244. The secretary of state shall determine the number of special plates reasonably needed by a manufacturer, transporter, or dealer.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1966, Act 216, Eff. Mar. 10, 1967 ;-- Am. 1967, Ex. Sess., Act 3, Imd. Eff. Nov. 15, 1967 ;-- Am. 2002, Act 490, Eff. Oct. 1, 2002 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.803a Issuance or renewal historic vehicle registration plate; fee; certification; registration certificate; registration transferable; expiration or revocation of registration.

Sec. 803a.

(1) The secretary of state may issue to the owner of a historic vehicle a historic vehicle registration plate that bears the inscription "historical vehicle - Michigan" and the registration number.

(2) The owner of a historic vehicle applying for a historic vehicle registration plate or a renewal of a historic vehicle registration plate under this section shall do all of the following:

(a) Pay a fee of either $30.00 or, for a personalized plate under section 803b, $150.00, as applicable.

(b) Certify that the vehicle for which the registration is requested is owned and operated solely as a historic vehicle.

(c) Certify that the vehicle has been inspected and found safe to operate on the highways of this state.

(3) A registration certificate for a historic vehicle need not specify the weight of the historic vehicle.

(4) A registration issued under this section is transferable to another historic vehicle upon completion of the application for transfer and payment of the fee in the manner described in section 809.

(5) A registration issued under this section expires on April 15 in the tenth year following the date of issuance of the registration.

(6) The secretary of state may revoke a registration issued under this section, for cause shown and after an opportunity to be heard, for failure of the applicant to comply with this section, for use of the vehicle for which the registration was issued for purposes other than those enumerated in section 20a, or because the vehicle is not safe to operate on the highways of this state.

History: Add. 1951, Act 144, Eff. Sept. 28, 1951 ;-- Am. 1961, Act 186, Eff. Sept. 8, 1961 ;-- Am. 1978, Act 427, Imd. Eff. Sept. 30, 1978 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 225, Imd. Eff. Jan. 6, 1982 ;-- Am. 1987, Act 190, Eff. Apr. 15, 1988 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1990, Act 347, Imd. Eff. Dec. 26, 1990 ;-- Am. 1996, Act 404, Eff. Dec. 21, 1996 ;-- Am. 2024, Act 133, Eff. Oct. 8, 2025

257.803b Personalized registration plate; use; letters and numbers; material; duplication prohibited; submission of application; payment, disposition, and use of service fee; expiration date; letters and numbers given to different person in subsequent year; other sequence of letters and numbers; temporary permit.

Sec. 803b.

(1) The secretary of state may issue 1 personalized vehicle registration plate that must be used on the passenger motor vehicle, pick-up truck, motorcycle, van, motor home, hearse, bus, trailer coach, or trailer for which the plate is issued instead of a standard plate. Personalized

plates must bear letters and numbers as the secretary of state prescribes. The personalized plates must be made of the same material as standard plates. A personalized plate must not duplicate another registration plate.

(2) An application for a personalized registration plate must be submitted to the secretary of state under section 217. Application for an original personalized registration plate must be accompanied with payment of a service fee of $8.00 for the first month and of $2.00 per month for each additional month of the registration period in addition to the regular vehicle registration fee. A second duplicate registration plate may be obtained by requesting that option on the application and paying an additional service fee of $5.00. The original and duplicate service fees must be deposited in the transportation administration collection fund created in section 810b through October 1, 2027. Application for the renewal of a personalized registration plate must be accompanied with payment of a service fee of $15.00 in addition to the regular vehicle registration fee. The service fee must be credited to the Michigan transportation fund established under, and must be allocated as prescribed under, section 10 of 1951 PA 51, MCL 247.660. The amount allocated to the state trunk line fund established under section 11 of 1951 PA 51, MCL 247.661, must be used by the state transportation department for litter pickup and cleanup on state roads and rights-of-way.

(3) The expiration date for a personalized registration plate is as prescribed under section 226. Upon the issuance or renewal of a personalized registration plate, the secretary of state may issue a tab or tabs designating the month and year of expiration. Upon the renewal of a personalized registration plate, the secretary of state shall issue a new tab or tabs for the rear plate designating the next expiration date of the plate. Upon renewal, the secretary of state shall not issue the owner a new exact duplicate of the expired plate unless the plate is illegible and the owner pays the service fee and registration fee for an original personalized registration plate.

(4) The sequence of letters or numbers or combination of letters and numbers on a personalized plate must not be given to a different person in a subsequent year unless the person to whom the plate was issued does not reapply before the expiration date of the plate.

(5) An applicant who applies for a registration plate under section 217d, 803a, 803e, 803f, 803j, 803k, 803l, 803n, or 803o is eligible to request, and the secretary of state may issue, the registration plate with a personalized sequence of letters and numbers authorized under this section.

(6) The secretary of state may issue a temporary permit to a person who has submitted an application and the proper fees for a personalized registration plate if the applicant's vehicle registration may expire before receipt of the applicant's personalized registration plate. The temporary registration is valid for not more than 60 days after the date of issuance. The temporary permit must be issued without a fee.

History: Add. 1972, Act 314, Imd. Eff. Jan. 2, 1973 ;-- Am. 1976, Act 49, Imd. Eff. Mar. 18, 1976 ;-- Am. 1978, Act 548, Imd. Eff. Dec. 22, 1978 ;-- Am. 1978, Act 549, Imd. Eff. Dec. 22, 1978 ;-- Am. 1980, Act 476, Eff. Mar. 31, 1981 ;-- Am. 1981, Act 225, Imd. Eff. Jan. 6, 1982 ;-- Am. 1988, Act 419, Eff. Mar. 30, 1989 ;-- Am. 1993, Act 295, Eff. Apr. 1, 1994 ;-- Am. 1996, Act 142, Imd. Eff. Mar. 25, 1996 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 426, Eff. Jan. 1, 2006 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023 ;-- Am. 2024, Act 133, Eff. Oct. 8, 2025

257.803c Personalized registration plates; confiscation for improper use.

Sec. 803c.

Use of personalized automobile registration plates on a vehicle other than the vehicle for which the plates were issued is a misdemeanor. The secretary of state shall confiscate the personalized automobile registration plates of any person who is in violation of this section.

History: Add. 1972, Act 314, Imd. Eff. Jan. 2, 1973

257.803d Special registration plates for disabled persons or for vehicles used to transport disabled persons; inscription; statements; fees; application; violation; penalty; "disabled person" defined.

Sec. 803d.

(1) A disabled person may make application to the secretary of state and the secretary of state may issue special registration plates inscribed with the official international wheelchair symbol or a reasonable facsimile of that symbol and special identification numbers. Vehicles registered under section 801(1)(a) may be issued special registration plates under this section. A vehicle that is used to transport disabled persons may qualify for these distinguishing plates when the registered owner of the vehicle resides at the same address as the disabled person, submits as part of his or her application for the plates a statement to the effect that the vehicle is used for that purpose, and provides the secretary of state with a medical statement attesting to the fact that the person being transported is a disabled person. The fees for the special registration plates shall correspond with the registration fees provided in section 801(1)(a). Application for the special plates shall be on a form prescribed by the secretary of state. As part of a penalty imposed for violation of the special privileges conferred by this section, a magistrate or judge may order the special plates confiscated and returned to the secretary of state together with a certified copy of the sentence imposed. The use of special plates on a vehicle other than the vehicle for which the plates are issued or by a person who does not qualify under this section is a misdemeanor.

(2) As used in this section, "disabled person" means a person who is determined by a physician, a physician assistant, a physical therapist, or an optometrist as specifically provided in this section licensed to practice in this state to have 1 or more of the following physical characteristics:

(a) Blindness as determined by an optometrist, a physician, or a physician assistant.

(b) Inability to walk more than 200 feet without having to stop and rest.

(c) Inability to do both of the following:

(i) Use 1 or both legs or feet.

(ii) Walk without the use of a wheelchair, walker, crutch, brace, prosthetic, or other device, or without the assistance of another person.

(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.

(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American heart association and approved by the department of public health.

(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.

(g) The persistent reliance upon an oxygen source other than ordinary air.

History: Add. 1974, Act 41, Imd. Eff. Mar. 13, 1974 ;-- Am. 1976, Act 279, Imd. Eff. Oct. 14, 1976 ;-- Am. 1977, Act 19, Eff. Oct. 1, 1977 ;-- Am. 1984, Act 175, Imd. Eff. July 3, 1984 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2018, Act 62, Eff. June 12, 2018

257.803e Special registration plate; inscription; application; form; proof; issuance of plate; exemption; misdemeanor; expiration of plate; application for renewal; "blue star family member" and "gold star family member" defined.

Sec. 803e.

(1) A person who was a prisoner of war or a person whose spouse was a prisoner of war may apply to the secretary of state for a special registration plate inscribed with special identification numbers preceded by the letters "EX-POW" and the words "ex-prisoner of war" beneath the registration number.

(2) A person who was a member of the United States Armed Forces during World War I may apply to the secretary of state for a special registration plate inscribed with special identification numbers preceded by the letters "WWI" and the words "World War I veteran" beneath the registration number.

(3) A person who was a member of the United States Armed Forces during 1941, was stationed at a United States military or naval establishment at Pearl Harbor in the Hawaiian Islands, and survived the attack by Japan on Pearl Harbor on December 7, 1941 may apply to the secretary of state for a special registration plate inscribed with special identification numbers and the words "Pearl Harbor survivor" beneath the registration number.

(4) A recipient of the Purple Heart Medal may apply to the secretary of state for a special registration plate inscribed with special identification numbers and the words "combat wounded veteran" beneath the registration number. In addition, the special registration plate described in this subsection must be inscribed with a vignette of the official Purple Heart Medal.

(5) Application for a special registration plate must be on a form prescribed by the secretary of state and must be accompanied by any proof of the applicant having been a prisoner of war, World War I veteran, Pearl Harbor survivor, or recipient of the Purple Heart Medal that the secretary of state may require. Application for a "Gold Star Family" special registration plate described in subsection (9) or a "Blue Star Family" special registration plate described in subsection (10) must be on a form prescribed by the secretary of state and must be accompanied by any proof of the applicant having been a gold star or blue star family member that the secretary of state may require. The application for the special registration plate must not require a service fee under section 804.

(6) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. A person who is disabled who applies for a special registration plate under this section must be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. One person in any household is entitled to 1 special registration plate issued under subsection (1) that is exempt from payment of the tax provided in section 801. The person who is issued an additional special registration plate under subsection (1) must be assessed the applicable tax provided for in section 801. A person issued 1 or more special registration plates under subsection (2), (3), (4), (9), or (10) must be assessed the applicable tax provided in section 801.

(7) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(8) The special registration plate issued under this section expires on the birthday of the vehicle owner in a year in which new plates are issued by the secretary of state. Application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (5).

(9) A gold star family member may apply to the secretary of state for a special registration plate inscribed with special identification numbers preceded by a gold star and the words "Gold Star Family" beneath the registration number.

(10) A blue star family member may apply to the secretary of state for a special registration plate inscribed with special identification numbers preceded by a Blue Star Families insignia and the words "Blue Star Family" beneath the registration number.

(11) As used in this section:

(a) "Blue star family member" means a person who is currently serving in the United States Armed Forces or in forces incorporated as part of the United States Armed Forces or a person who has an immediate family member serving in the United States Armed Forces or in forces incorporated as part of the United States Armed Forces. As used in this subdivision, "immediate family member" means a parent, stepparent, adoptive parent, foster parent standing in loco parentis, child, stepchild, adopted child, sibling, half-sibling, spouse, or grandparent.

(b) "Gold star family member" means a person who has had an immediate family member die while serving in the United States Armed Forces or in forces incorporated as part of the United States Armed Forces if the immediate family member meets any of the eligibility criteria specified in 10 USC 1126(a)(1) to (3) for a gold star lapel button.

History: Add. 1982, Act 152, Imd. Eff. May 17, 1982 ;-- Am. 1986, Act 260, Imd. Eff. Dec. 9, 1986 ;-- Am. 1988, Act 148, Eff. Nov. 11, 1988 ;-- Am. 1988, Act 149, Eff. Nov. 11, 1988 ;-- Am. 1988, Act 150, Eff. Nov. 11, 1988 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2003, Act 30, Imd. Eff. June 30, 2003 ;-- Am. 2011, Act 46, Eff. July 1, 2011 ;-- Am. 2020, Act 51, Imd. Eff. Mar. 3, 2020 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803f Special registration plates for disabled veterans and surviving spouses; inscription; application; form; service fee prohibited; proof; tax exemption; expiration of plates; renewal; tab for persons with disabilities; misdemeanor.

Sec. 803f.

(1) An individual who is a disabled veteran with an honorable discharge from the United States Armed Forces may apply to the secretary of state if the disabled veteran owns a private passenger motor vehicle, and the secretary of state may issue a special registration plate inscribed with special identification numbers preceded by the letters "DV" and the words "disabled veteran" beneath the registration number.

(2) An application for a special registration plate described in subsection (1) must be on a form prescribed by the secretary of state, must not require a service fee under section 804, and must be accompanied by proof that the applicant was honorably discharged from the United States Armed Forces and 1 of the following:

(a) If the applicant is a totally disabled veteran, that the applicant has been determined by the United States Department of Veterans Affairs to have a service-connected total or permanent total disability rating for compensation.

(b) If the applicant is a totally disabled veteran, that the applicant has been determined to have a service-connected total or permanent total disability rating and is receiving disability retirement pay from a branch of the United States Armed Forces.

(c) If the applicant is a partially disabled veteran, that the applicant has been determined by the United States Department of Veterans Affairs to have a service-connected disability rating of not less than 50%.

(3) A special registration plate issued to a totally disabled veteran described in subsection (2)(a) or (b) is exempt from the payment of the tax provided for in section 801.

(4) A special registration plate issued to a totally disabled veteran described in subsection (2)(a) or (b) expires on the birthday of the totally disabled veteran in a year in which new plates are issued by the secretary of state. Application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2) for renewal.

(5) A special registration plate issued to a partially disabled veteran described in subsection (2)(c) expires as provided in section 226, and a partially disabled veteran shall apply for renewal of the special registration plate as provided in section 226. The applicant is not required to furnish the proof provided in subsection (2) for renewal.

(6) The surviving spouse of an individual who is a disabled veteran with a service-connected disability rating from the United States Department of Veterans Affairs of not less than 50% and an honorable discharge from the United States Armed Forces may use a special registration plate issued under this section after the death of the disabled veteran. The surviving spouse may renew a special registration plate issued under this section after the death of the disabled veteran in the same manner as provided under this section for a disabled veteran with the same service-connected disability rating as the deceased disabled veteran. If applicable, a surviving spouse must apply for registration of the vehicle on which the surviving spouse wishes to place the disabled veteran plate before using or renewing the plate as described in this section.

(7) If applicable, the secretary of state may issue to a disabled veteran who has been issued a special registration plate under this section a tab for persons with disabilities. The tab for persons with disabilities must be an adhesive tab that displays the international wheelchair symbol or a reasonable facsimile of that symbol. The tab for persons with disabilities may be attached only to the special registration plate issued to the disabled veteran under this section.

(8) An application for a tab for persons with disabilities must be on a form prescribed by the secretary of state. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. If the surviving spouse of a disabled veteran is a disabled person, the surviving spouse may apply to the secretary of state for a tab for persons with disabilities in the same manner as provided for a disabled veteran under this subsection.

(9) A tab for persons with disabilities issued under subsection (7) must be issued free of charge.

(10) If a disabled veteran who has been issued a tab for persons with disabilities renews the disabled veteran's special registration plate under this section, the secretary of state shall issue a new tab for persons with disabilities to the disabled veteran, free of charge. The disabled veteran is not required to again furnish the proof required under subsection (8).

(11) The use of a special registration plate or a tab for persons with disabilities issued under this section on a motor vehicle other than the motor vehicle for which the special registration plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(12) As used in this section, "private passenger motor vehicle" means a motor vehicle that is personally owned by a disabled veteran and is used for the primary purpose of transporting the disabled veteran and family members of the disabled veteran, but does not include a motor home.

History: Add. 1985, Act 99, Imd. Eff. July 18, 1985 ;-- Am. 1986, Act 222, Eff. Oct. 1, 1986 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2018, Act 681, Eff. June 26, 2019 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022 ;-- Am. 2024, Act 149, Eff. Apr. 2, 2025

257.803g Special registration for member of congress from Michigan; issuance; expiration; fee.

Sec. 803g.

The secretary of state may issue a special registration to a member of the United States congress from Michigan. The expiration date of a registration issued under this section shall be January 31. The fee for the special registration shall correspond with the registration fees provided in section 801(a) or (q).

History: Add. 1987, Act 151, Imd. Eff. Oct. 29, 1987

257.803h Tab for persons with disabilities; "disabled person" defined.

Sec. 803h.

(1) The secretary of state may issue a tab for persons with disabilities to a disabled person who is issued or has been issued a Michigan motor vehicle registration plate other than a section 803d registration plate for persons with disabilities. The tab for persons with disabilities shall be an adhesive tab displaying the international wheelchair symbol or a reasonable facsimile of that symbol. The use of a tab for persons with disabilities on a registration plate other than the plate for which the tab was issued or by a person who does not qualify as a disabled person is a misdemeanor.

(2) A tab for persons with disabilities shall not be used on a registration plate attached to a motor vehicle owned and operated by this state; a state institution; a municipality; a governmental unit; a nonprofit organization; the civil air patrol; or a nonprofit, nonpublic college or university; or on a commercial motor vehicle. A tab for persons with disabilities shall not be placed on a registration plate used for intransit-repair or repossession of a motor vehicle.

(3) As used in this section, "disabled person" means a person who is determined by a physician, a physician assistant, a physical therapist, or an optometrist as specifically provided in this section licensed to practice in this state to have 1 or more of the following physical characteristics:

(a) Blindness as determined by an optometrist, a physician, or a physician assistant.

(b) Inability to walk more than 200 feet without having to stop and rest.

(c) Inability to do both of the following:

(i) Use 1 or both legs or feet.

(ii) Walk without the use of a wheelchair, walker, crutch, brace, prosthetic, or other device, or without the assistance of another person.

(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.

(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American heart association and approved by the department of public health.

(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.

(g) The persistent reliance upon an oxygen source other than ordinary air.

History: Add. 1988, Act 419, Eff. Mar. 30, 1989 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2018, Act 62, Eff. June 12, 2018

257.803i Special registration plate for member of National Guard, military reserve, or armed forces; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803i.

(1) A person who was or is a member of the National Guard may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the words "national guard" inscribed beneath the registration numbers for passenger vehicles only.

(2) A person who was or is a member of the United States Armed Forces Reserve may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers.

(3) A person who was a member of any branch of the United States Armed Forces who has retired or been granted an honorable discharge from that branch of the United States Armed Forces and who is not otherwise eligible for a special registration plate under this act may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers.

(4) Application for a special registration plate must be on a form prescribed by the secretary of state and must be accompanied by any proof of the applicant being or having been a member of the National Guard or the United States Armed Forces Reserve or a member as described in subsection (3) of the United States Armed Forces that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(5) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle or, for the purposes of subsection (1) or (3), for use on a motorcycle. A person who is disabled who applies for a special registration plate under this section must be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued 1 or more special registration plates under subsection (1), (2), or (3) must be assessed the applicable tax provided in section 801.

(6) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(7) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (4).

History: Add. 1989, Act 19, Eff. Nov. 11, 1989 ;-- Am. 1992, Act 280, Imd. Eff. Dec. 18, 1992 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1997, Act 12, Imd. Eff. May 28, 1997 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 2011, Act 73, Imd. Eff. July 12, 2011 ;-- Am. 2011, Act 74, Imd. Eff. July 12, 2011 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803j Special registration plate for member or spouse of member of armed forces during Korean War; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803j.

(1) A person who was a member of the United States Armed Forces or a person whose spouse was a member of the United States Armed Forces during the Korean War may make application to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(2) Application for a special registration plate must be on a form prescribed by the secretary of state, and must be accompanied by any proof of the applicant or the applicant's spouse having been a Korean War veteran that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. A person who is disabled who makes application for a special registration plate under this section shall be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued 1 or more special registration plates under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2).

History: Add. 1989, Act 17, Eff. Nov. 11, 1989 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 183, Imd. Eff. Nov. 24, 1999 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803k Special registration plate for member or spouse of member of armed forces during Vietnam War; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803k.

(1) A person who was a member of the United States Armed Forces during the Vietnam War or a person whose spouse was a member of the United States Armed Forces during the Vietnam War may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(2) Application for a special registration plate must be on a form prescribed by the secretary of state, and must be accompanied by any proof of the applicant or applicant's spouse having been a Vietnam War veteran that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. A person who is disabled who makes application for a special registration plate under this section shall be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued 1 or more special registration plates under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2).

History: Add. 1989, Act 18, Eff. Nov. 11, 1989 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 183, Imd. Eff. Nov. 24, 1999 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803l Special registration plate for member or spouse of member of armed forces during World War II; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803l.

(1) A person who was a member of the United States Armed Forces during World War II or a person whose spouse was a member of the United States Armed Forces during World War II may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(2) Application for a special registration plate must be on a form prescribed by the secretary of state, and must be accompanied by any proof of the applicant or applicant's spouse having

been a World War II veteran that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) Upon proper application, the secretary of state shall issue 1 special registration plate for each applicant for use on a passenger vehicle. A person who is disabled who makes application for a special registration plate under this section shall be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued a special registration plate under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2).

History: Add. 1989, Act 16, Eff. Nov. 11, 1989 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 183, Imd. Eff. Nov. 24, 1999 ;-- Am. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803m Special organization plates.

Sec. 803m.

(1) The secretary of state may issue 2 special organization motor vehicle registration plates to an applicant for use on a passenger motor vehicle, pickup truck, van, or motor home for which the plates are issued instead of standard plates. A special organization motor vehicle registration plate is a registration plate issued by the secretary of state that bears on its face the symbol or emblem of an organization.

(2) Special organization plates shall bear letters and numbers as the secretary of state prescribes. Special organization plates may contain the symbol of the organization to the left of the plate number. The secretary of state shall not issue a letter combination or permit the use of a symbol which might carry a connotation offensive to good taste and decency. The special organization plates shall be made of the same material as standard plates. Special organization plates shall not be a duplication of another registration plate.

(3) In order to qualify its members to receive special organization plates, an organization shall meet all of the following criteria:

(a) Be a nonprofit fraternal or public service organization.

(b) Certify that it consists of not less than 500 members and that not less than 500 members will apply for special organization registration plates.

(c) Have a recognizable state, national, or international symbol or emblem of the organization.

(d) Submit a service fee of $500.00 for the initial manufacture of the symbols or emblems for the special registration plates.

(e) Not practice or influence others to practice any form of discrimination prohibited by the Elliott-Larsen civil rights act, 1976 PA 453, MCL 37.2101 to 37.2804.

(4) If an organization meets the criteria set forth in subsection (3), the organization may request the secretary of state to manufacture special organization registration plates for its members. A request shall be accompanied by all of the following:

(a) A copy of the organization's charter and bylaws, if any.

(b) A statement of the organization's consent to use of the organization's symbol or emblem on special organization plates. The statement shall be signed by the president or chief executive officer of the organization.

(c) A sample of the organization's symbol or emblem.

(d) The name of the organization's representative who will serve as a contact person with the secretary of state.

(5) A member of an organization which has met the criteria set forth in subsection (3) shall individually make application for a special organization plate and submit with the application the organization's confirmation of membership on a form provided by the secretary of state.

(6) An application for a special organization registration plate shall be submitted to the secretary of state pursuant to the procedures prescribed in section 217. In addition to the regular registration fee, each application for a new special organization plate shall be accompanied by a service fee of $25.00. The service fee prescribed in this subsection shall not be charged in connection with an application for a renewal tab for an existing special organization plate. A special organization registration plate shall expire as provided in section 226.

(7) The secretary of state may issue a temporary registration permit to a person who submits an application and the proper fees for a special organization plate, if the applicant's current vehicle registration will expire before his or her receipt of an organization plate. The temporary registration shall expire upon the applicant's receipt of an organization plate or upon the expiration of 60 days after the date of issuance, whichever occurs first. A temporary permit issued under this subsection shall be issued without charge.

(8) This section shall apply to an organization described in section 811c only to the extent provided by section 811c.

History: Add. 1989, Act 111, Eff. Mar. 29, 1990 ;-- Am. 1994, Act 332, Imd. Eff. Oct. 18, 1994 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003

257.803n Special registration plate for member or spouse of member of National Guard, reserve, or branch of armed forces during Persian Gulf War or conflicts in Grenada, Panama, or Lebanon; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803n.

(1) A person who was a member or a person whose spouse was a member of the Michigan National Guard, the United States Armed Forces Reserve, or any branch of the United States Armed Forces and who was called to active duty during the Persian Gulf War may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(2) A person who was a member or a person whose spouse was a member of the United States Armed Forces during the conflict in Grenada, the conflict in Panama, or the conflict in Lebanon may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(3) Application for a special registration plate must be on a form prescribed by the secretary of state, and must be accompanied by any proof of the applicant or applicant's spouse having been a war or conflict veteran that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(4) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. A person who is disabled who applies for a special registration plate under this section shall be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued 1 or more special registration plates under subsection (1) or (2) must be assessed the applicable tax provided in section 801.

(5) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(6) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (3).

History: Add. 1992, Act 280, Imd. Eff. Dec. 18, 1992 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 183, Imd. Eff. Nov. 24, 1999 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803o Special registration plate for member or spouse of member of National Guard, reserve, or branch of armed forces called to active duty during declared war or armed conflict; display of vignette; inscription; application form; proof; issuance; tab for persons with disabilities; tax; misdemeanor; expiration; renewal.

Sec. 803o.

(1) A person who was a member or a person whose spouse was a member of the Michigan National Guard, the United States Armed Forces Reserve, or any branch of the United States Armed Forces and who was called to active duty during a declared war or an armed conflict in which the United States was a participant may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the word "veteran" inscribed beneath the registration numbers.

(2) Application for a special registration plate must be on a form prescribed by the secretary of state, and must be accompanied by any proof of the applicant or applicant's spouse having been a veteran of a declared war or an armed conflict in which the United States was a participant that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. A person who is disabled who applies for a special registration plate under this section shall be issued a tab for persons with disabilities as provided in section 803f for his or her special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. A person issued 1

or more special registration plates under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2).

History: Add. 1992, Act 280, Imd. Eff. Dec. 18, 1992 ;-- Am. 1994, Act 104, Eff. Oct. 1, 1994 ;-- Am. 1998, Act 68, Imd. Eff. May 4, 1998 ;-- Am. 1999, Act 183, Imd. Eff. Nov. 24, 1999 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022

257.803p Authentic Michigan registration plate; fee; certification; registration certificate; transferability; validity; revocation of registration.

Sec. 803p.

(1) The owner of an historic vehicle may use an authentic Michigan registration plate of the same year as the model year in which the vehicle was manufactured instead of an historic vehicle registration plate issued under section 803a by presenting the authentic plate number and year to the secretary of state at the time of registration. The owner of an historic vehicle may purchase an authentic Michigan registration plate from another person and restore the plate to its authentic condition for use pursuant to this section. An authentically restored plate shall be considered an authentic Michigan registration plate.

(2) The owner of an historic vehicle applying to use an authentic Michigan registration plate under this section shall pay a fee of $35.00, shall certify that the vehicle for which the registration is requested is owned and operated solely as an historic vehicle, and shall certify that the vehicle has been inspected and found safe to operate on the highways of this state. The registration certificate need not specify the weight of the historic vehicle. The registration issued under this section is not transferable to another historic vehicle.

(3) A registration issued under this section shall remain valid until the registrant either sells, transfers, or scraps the vehicle or modifies the vehicle in a manner that requires the issuance of a new certificate of title for the vehicle under this act.

(4) After a hearing and for cause shown, the secretary of state may revoke a registration issued under this section for failure of the applicant to comply with this section, for use of the vehicle for which the registration was issued for purposes other than those enumerated in section 20a, or because the vehicle is not safe to operate on the highways of this state.

History: Add. 1996, Act 404, Eff. Dec. 21, 1996

257.803q Special registration plate; "honorary consul" designation; fee; tax; prohibited use; violation as misdemeanor; expiration; status or immunity.

Sec. 803q.

(1) A person who is designated an honorary consul by a diplomatic corps of a nation other than the United States that is recognized by the government of the United States and who is

assigned or stationed in Michigan may make application to the secretary of state for a set of 2 special registration plates. Each special registration plate shall have the words "honorary consul" inscribed on the plate.

(2) Application for the set of 2 special registration plates described in subsection (1) shall be on a form prescribed by the secretary of state, and shall be accompanied by proof that the applicant is designated as an honorary consul. The application for the set of 2 special registration plates shall also be accompanied by payment of a $35.00 consulate identification fee for the set of 2 special registration plates. The consulate identification fee shall be deposited in the state treasury and be credited to the Michigan transportation fund. It shall be used first to defray the expenses of the secretary of state in issuing these plates.

(3) Upon proper application and payment of the appropriate consulate identification fee required under subsection (2), the secretary of state shall issue a set of 2 special registration plates described in subsection (1) for each applicant for use on a passenger vehicle. A person issued a set of 2 special registration plates under this section shall be assessed the applicable tax under section 801.

(4) The use of a special registration plate described in subsection (1) on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) A special registration plate issued under this section shall expire on the birthday of the vehicle owner.

(6) The issuance of a set of 2 special registration plates to an applicant under this section does not confer diplomatic status or diplomatic immunity upon the applicant.

History: Add. 2000, Act 119, Eff. Oct. 1, 2000

257.803r Service fees; deposit into transportation administration collection fund.

Sec. 803r.

The secretary of state shall deposit the service fees collected under sections 803e, 803f, 803i, 803j, 803k, 803l, 803m, 803n, 803o, and 803s(2)(a) into the transportation administration collection fund created under section 810b through October 1, 2027.

History: Add. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023 ;-- Am. 2023, Act 317, Eff. Feb. 13, 2024

257.803s Legacy registration plates; application; fees.

Sec. 803s.

(1) Not later than 1 year after the effective date of the amendatory act that added this section, the secretary of state shall develop and issue the following legacy registration plates:

(a) A blue registration plate that replicates a registration plate issued by this state during the years 1983 to 2007 as determined by the secretary of state.

(b) A black registration plate that replicates a registration plate issued by this state during the years 1979 to 1983 as determined by the secretary of state.

(c) Only available for issue in the year 2026 to celebrate the United States' semiquincentennial, a red, white, and blue registration plate that replicates a registration plate issued by this state during the year 1976 as determined by the secretary of state.

(2) An application for a legacy registration plate must be submitted to the secretary of state pursuant to the procedures prescribed in section 217. In addition to the regular registration fee, an application for a legacy registration plate under this section must be accompanied by the following, as applicable:

(a) For a new legacy registration plate, a service fee of $5.00.

(b) For a new legacy registration plate, an additional fee of $50.00. The additional fee must be deposited in the Michigan transportation fund established under section 10 of 1951 PA 51, MCL 247.660.

(c) For a registration renewal of an existing legacy registration plate, an additional fee of $10.00. The additional fee must be deposited in the Michigan transportation fund established under section 10 of 1951 PA 51, MCL 247.660.

(3) A legacy registration plate expires as provided in section 226.

(4) The secretary of state shall determine the number of each legacy registration plate to be manufactured and issued under this section.

(5) The secretary of state may, as determined necessary by the secretary of state, cease to issue legacy registration plates and duplicate replacements of legacy registration plates for use on vehicles. If the secretary of state ceases to issue legacy registration plates and duplicate replacements of legacy registration plates, the secretary of state may continue to renew legacy registration plates already issued.

History: Add. 2023, Act 317, Eff. Feb. 13, 2024

257.803t Special "Merchant Marine" registration plate.

Sec. 803t.

(1) An individual who was or is a member of the United States Merchant Marine may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the words "Merchant Marine" inscribed beneath the registration numbers.

(2) The application for a special registration plate must be on a form prescribed by the secretary of state and accompanied by any proof of the applicant being or having been a member of the United States Merchant Marine that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) Upon proper application, the secretary of state shall issue 1 or more special registration plates under this section for each applicant for use on a passenger vehicle. An individual who is a disabled person and applies for a special registration plate under this section must be issued a tab for persons with disabilities as provided in section 803h for the applicant's special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675. An individual issued 1 or more special registration plates under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate issued under this section on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. When new plates are issued by the secretary of state, application for renewal of the special registration plate must not require a service fee under section 804. The applicant is not required to furnish the proof provided in subsection (2).

(6) As used in this section, "member of the United States Merchant Marine" means an individual who holds a past or present Merchant Mariner license or credential issued by the United States Coast Guard.

History: Add. 2024, Act 88, Eff. Apr. 2, 2025

257.803u Special registration for woman veteran; issuance; expiration.

Sec. 803u.

(1) A woman who meets either of the following requirements may apply to the secretary of state for a special registration plate that displays an appropriate vignette preceding the registration numbers and has the words "woman veteran" inscribed beneath the registration numbers:

(a) Was a member of the Michigan National Guard, the United States Armed Forces Reserve, or any branch of the United States Armed Forces and was called to active duty during a declared war or an armed conflict in which the United States was a participant.

(b) Was a member of any branch of the United States Armed Forces, including reservists and National Guard, and has retired or been granted an honorable discharge from that branch of the United States Armed Forces.

(2) Application for a special registration plate must be on a form prescribed by the secretary of state and must be accompanied by any proof of the applicant meeting the requirements of subsection (1) that the secretary of state may require. The application for a special registration plate must not require a service fee under section 804.

(3) On proper application, the secretary of state shall issue 1 or more special registration plates for each applicant for use on a passenger vehicle. An individual who is disabled who applies for a special registration plate under this section must be issued a tab for persons with disabilities as provided in section 803f for the special registration plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuing a permanent windshield placard under section 675. A person issued 1 or more special registration plates under subsection (1) must be assessed the applicable tax provided in section 801.

(4) The use of a special registration plate on a vehicle other than the vehicle for which the plate is issued, or by a person who does not qualify under this section, is a misdemeanor.

(5) The special registration plate issued under this section expires on the birthday of the vehicle owner. The applicant is not required to furnish the proof provided in subsection (2) for an application for renewal of the special registration plate.

History: Add. 2024, Act 150, Eff. Nov. 10, 2025

257.804 Fee for distinctive or commemorative plate and duplicate or replacement license plate; deposit into transportation administration collection fund.

Sec. 804.

(1) Except as otherwise provided in this act, in addition to any other fees required under this act, the applicant shall pay a $5.00 service fee with each application for each distinctive or commemorative plate provided for in this act to cover manufacturing and issuance costs unless these costs are otherwise specifically provided for in this act.

(2) Except as otherwise provided in this act, an applicant for a duplicate or replacement license plate provided for in this act shall pay the following service fee to the secretary of state, in addition to any other fees required under this act:

(a) Five dollars for a standard or graphic standard plate, personalized registration plate, or other registration plate for which the duplicate or replacement fee has not been specified in this act.

(b) Ten dollars for a set of plates provided for in section 803m.

(c) Ten dollars for each fund-raising registration plate issued under section 811e or 811f, or collector plate described in section 811g.

(3) The secretary of state shall deposit the service fees collected under this section in the transportation administration collection fund created in section 810b through October 1, 2027.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1989, Act 111, Eff. Mar. 29, 1990 ;-- Am. 1995, Act 129, Imd. Eff. June 30, 1995 ;-- Am. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2022, Act 143, Imd. Eff. July 11, 2022 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.805 Application for issuance or renewal of motor vehicle registration or replacement registration tab or sticker; recreation passport fee; format and language of motor vehicle application; transfer of revenue; adjustment of amounts in subsection (1); annual review; registration tab or sticker; payment as personal information; definitions.

Sec. 805.

(1) An applicant for the issuance or renewal of a motor vehicle registration or for a replacement registration tab or sticker may submit a state park and state-operated public boating access site passport fee to the secretary of state with the application. Subject to subsection (7), the amount of the recreation passport fee is as follows:

(a) Except as provided in subdivision (b) or (c), $10.00.

(b) For an individual who obtains a 2-year vehicle registration under section 226(14), $20.00.

(c) For a motorcycle, $5.00.

(2) In addition to the requirements of section 217, an application for a motor vehicle registration must contain at least the following information, in substantially the following format and language, except that the amount of the recreation passport fee specified must be $20.00 for a vehicle registered for 2 years under section 226(14) and $5.00 for a motorcycle:

$[Amount] — Annual vehicle registration or renewal.

$10.00 — Annual authorization to use this vehicle for

unlimited entry into all Michigan state parks and recreation areas and DNR-operated state boating access sites. (Check one of the boxes below.)

____ I elect to pay this $10.00 fee.

____ I elect not to pay this $10.00 fee. This vehicle will not be used to enter the facilities described above.

$_____ — Total amount due.

(3) The secretary of state may revise the format and language of an application for motor vehicle registration to reflect the fact that, under sections 74116 and 78119 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.74116 and 324.78119, payment of the recreation passport fee authorizes entry into all state parks and recreation areas and designated state-operated public boating access sites until expiration of the motor vehicle registration.

(4) If the applicant applies by mail and, in addition to the registration fee, the applicant pays an amount equal to the recreation passport fee, the applicant shall be considered to have elected to pay the recreation passport fee regardless of whether such an election is indicated on the application.

(5) Subsections (1) and (2) do not apply to any of the following:

(a) An application submitted by a dealer under section 217 for a vehicle sold, leased, or exchanged by the dealer.

(b) The issuance or renewal of a motor vehicle registration described in section 803e(1) and exempt under section 803e(6) from the registration tax or the issuance or renewal of a motor vehicle registration described in section 217d or 803f.

(6) The secretary of state shall, at least monthly, transfer the revenue from recreation passport fees to the department of natural resources for deposit as provided in section 2045 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.2045.

(7) For each calendar year, the state treasurer shall adjust the amounts set forth in subsection (1) by an amount determined by the state treasurer to reflect the cumulative percentage change in the Consumer Price Index from October 1, 2010 to the October 1 immediately preceding that calendar year, using the most recent data available and rounded to the nearest dollar.

(8) The legislature shall annually review the amount of revenue raised by the recreation passport fee to ensure that the amount is appropriate for the purposes for which the recreation passport fee is assessed and in compliance with law.

(9) If the secretary of state issues a registration tab or sticker for a registration plate or personalized registration plate under section 224 or 803b for a motor vehicle that had a recreation passport fee paid under this section, the tab or sticker must be marked in a distinctive manner determined by the secretary of state after consultation with the director of the department of natural resources and the department of state police. Before discontinuing the issuance of a registration tab or sticker, the secretary of state shall consult with the director of the department of natural resources and establish an alternative method or procedure the department of natural resources can use to determine whether a recreation passport fee has been paid for a motor vehicle.

(10) Whether or not an individual paid or indicated that he or she elected to pay or not to pay a recreation passport fee under this section is personal information for purposes of section 40b.

(11) As used in this section:

(a) "Consumer Price Index" means the most comprehensive index of consumer prices available for this state from the Bureau of Labor Statistics of the United States Department of Labor.

(b) "Motor vehicle" does not include a commercial motor vehicle.

(c) "Recreation passport fee" means the state park and state-operated public boating access site recreation passport fee as provided for in subsection (1).

History: Add. 2010, Act 35, Eff. Oct. 1, 2010 ;-- Am. 2013, Act 82, Eff. May 1, 2014 ;-- Am. 2021, Act 96, Eff. Oct. 1, 2022

Compiler's Notes: Former MCL 257.805, which pertained to disposition of registration, special, and duplicate fees, was repealed by Act 51 of 1951, Eff. June 1, 1951.

CERTIFICATE OF TITLE, DEALER'S LICENSE AND LIENS

257.806 Certificate of title or duplicate certificate of title; fees; special expeditious treatment; additional fee; deposit in transportation administration collection fund; special identifying number; payment and disposition of tire disposal surcharge.

Sec. 806.

(1) Until October 1, 2027, an applicant for a certificate of title required by this act or an applicant for a duplicate of a certificate of title shall accompany the application with a fee of $10.00. An applicant that requests that the application be given special expeditious treatment shall accompany the application with an additional fee of $5.00. The secretary of state shall collect a $3.00 service fee, in addition to the other fees collected under this subsection, for each title issued and shall deposit the fee in the transportation administration collection fund created under section 810b through October 1, 2027. Until October 1, 2027, the $5.00 expeditious treatment fee must be deposited into the transportation administration collection fund created under section 810b.

(2) An applicant for a special identifying number under section 230 shall accompany the application with a fee of $10.00.

(3) In addition to paying the fees required by subsection (1), until December 31, 2027, each person that applies for a certificate of title, a salvage vehicle certificate of title, or a scrap certificate of title under this act shall pay a tire disposal surcharge of $1.50 for each certificate of title or duplicate of a certificate of title that person receives. The secretary of state shall deposit money received under this subsection into the scrap tire regulatory fund created in section 16908 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.16908.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1969, Act 93, Imd. Eff. July 24, 1969 ;-- Am. 1978, Act 492, Imd. Eff. Dec. 1, 1978 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1990, Act 148, Eff. Jan. 1, 1991 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 1995, Act 267, Imd. Eff. Jan. 8, 1996 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001 ;-- Am. 2001, Act 268, Imd. Eff. Jan. 11, 2002 ;-- Am. 2002, Act

497, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2005, Act 141, Imd. Eff. Sept. 29, 2005 ;-- Am. 2005, Act 179, Eff. Oct. 20, 2005 ;-- Am. 2006, Act 526, Imd. Eff. Dec. 29, 2006 ;-- Am. 2007, Act 70, Imd. Eff. Sept. 30, 2007 ;-- Am. 2008, Act 281, Imd. Eff. Sept. 29, 2008 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 70, Eff. Oct. 1, 2015 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.807 License fees.

Sec. 807.

(1) Except as provided in subsection (2), an applicant shall include with an application for a license under section 248 one of the following fees:

Full year's license	$ 160.00
Half year's license (after June 30)	80.00
Multiple year license	160.00 per year.

(2) An applicant shall include with an application for a used or secondhand vehicle parts dealer, an automotive recycler, or foreign salvage vehicle dealer license 1 of the following fees:

Full year's license	$ 160.00
Half year's license (after June 30)	80.00
Multiple year license	160.00 per year.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994 ;-- Am. 1998, Act 384, Eff. Jan. 1, 1999 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2022, Act 224, Eff. Jan. 23, 2023

257.808 Liens on motor vehicles; fees.

Sec. 808.

Any application for the placement or discharge of a lien on a motor vehicle under section 238 shall be accompanied by a fee of $1.00. Beginning on February 19, 2019, the fee collected under this section shall be credited to the transportation administration collection fund created in section 810b.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1962, Act 143, Eff. Mar. 28, 1963 ;-- Am. 2018, Act 342, Eff. Jan. 14, 2019

257.809 Application for transfer of registration; fee; payment of difference in fee; deposit into transportation administration collection fund.

Sec. 809.

(1) An applicant to transfer the registration from a vehicle subject to section 801 to another vehicle subject to section 801 shall accompany the application with a transfer of registration fee of $10.00. If the registration plates are transferred to another vehicle, as provided in

section 233, and if the registration plate fee for a 12-month registration for the vehicle to which the registration is transferred is greater than the registration plate fee paid upon registration of the vehicle from which the registration was removed, then, if applicable, in addition to the transfer of registration fee of $10.00, the secretary of state shall collect 1 of the registration difference fees as follows:

(a) If the application for transfer of registration is accompanied by an application for a vehicle title indicating a transfer of vehicle ownership and the application for vehicle title indicates the vehicle ownership transfer is not exempt from use tax collection under section 3(3)(a) or 4bb of the use tax act, 1937 PA 94, MCL 205.93 and 205.94bb, then $5.00 must be collected.

(b) If the vehicle to which the registration is being transferred has never previously been registered and the application for the last title issued was accompanied by a manufacturer certificate of origin, then $5.00 must be collected.

(c) If the application for transfer of registration is not accompanied by an application for a vehicle title indicating a transfer of ownership, then the difference for the new registration must be collected.

(2) If the registration plate fee for a 12-month registration for the vehicle to which the registration is transferred is less than the registration plate fee paid upon registration of the vehicle from which the registration was removed, the secretary of state shall collect a transfer of registration fee of $10.00 and a registration difference fee of $5.00 and shall not refund the difference.

(3) Until October 1, 2027, a transfer of registration fee collected under this section must be deposited into the transportation administration collection fund created under section 810b.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1957, Act 90, Eff. Sept. 27, 1957 ;-- Am. 1962, Act 166, Eff. Mar. 28, 1963 ;-- Am. 1978, Act 62, Imd. Eff. Mar. 14, 1978 ;-- Am. 1979, Act 25, Imd. Eff. June 6, 1979 ;-- Am. 1984, Act 324, Imd. Eff. Dec. 26, 1984 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 2005, Act 141, Imd. Eff. Sept. 29, 2005 ;-- Am. 2007, Act 71, Imd. Eff. Sept. 30, 2007 ;-- Am. 2008, Act 280, Imd. Eff. Sept. 29, 2008 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2019, Act 88, Imd. Eff. Sept. 30, 2019 ;-- Am. 2020, Act 102, Eff. Sept. 29, 2020 ;-- Am. 2023, Act 129, Imd. Eff. Sept. 29, 2023

257.810 Disposition of fees.

Sec. 810.

Except as otherwise provided, all fees received and money collected under sections 801 to 809 shall be deposited in the state treasury and shall be credited to the Michigan transportation fund.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 55, Eff. Dec. 1, 1951 ;-- Am. 1987, Act 238, Imd. Eff. Dec. 28, 1987 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003

257.810a Assessment; collection; disposition; purpose.

Sec. 810a.

The secretary of state shall collect an assessment of 50 cents in connection with the issuance of a salvage vehicle certificate of title, a certificate of title, or beginning July 1, 1994 a scrap certificate of title. The assessment shall be collected in the same manner and at the same time as fees collected by the secretary of state pursuant to sections 217c and 806. Each

assessment collected shall be deposited in a vehicle theft prevention account to be expended for purposes of developing a vehicle theft prevention program, including the administration, inspection, and enforcement of antitheft procedures, as described in this act.

History: Add. 1988, Act 255, Eff. Oct. 1, 1989 ;-- Am. 1992, Act 304, Imd. Eff. Dec. 21, 1992 ;-- Am. 1993, Act 300, Eff. Jan. 1, 1994

257.810b Transportation administration collection fund; creation; investment, disposition, and expenditure of money; payments under certain sections of law; report of itemized list of deposits and expenditures; review of funds to be used to leverage additional federal funds.

Sec. 810b.

(1) The transportation administration collection fund is created within the state treasury.

(2) Except as otherwise provided in subsection (9), the state treasurer may receive money from the collections authorized under this act for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall not lapse into the Michigan transportation fund.

(4) Except as provided in subsection (6), on appropriation, the department of state shall expend money from the fund that is credited to the fund from revenue collected under sections 801 to 810 only to pay the necessary collection expenses incurred by the department of state in the administration and enforcement of sections 801 to 810.

(5) The department of treasury shall expend money in the fund, upon appropriation, only to defray the costs of collecting motor fuel taxes.

(6) The department of state shall expend money as appropriated from the fund that is credited to the fund on or after October 1, 2005 under each of the following sections of law to pay either the necessary collection of expenses incurred by the department of state in the administration and enforcement of sections 801 to 810 or other necessary expenses:

(a) Sections 208b and 232.

(b) Section 7 of 1972 PA 222, MCL 28.297.

(c) Sections 80130, 80315, 81114, and 82156 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.80130, 324.80315, 324.81114, and 324.82156.

(7) The department of state shall, by January 1 of each year, file a report with the secretary of the senate and the clerk of the house of representatives providing an itemized list of deposits into and expenditures from the fund for the preceding fiscal year.

(8) The state transportation department shall review all funds received by the state transportation department from funding sources provided for under this act to determine whether those funds can be used to leverage additional federal funds.

(9) Beginning the fiscal year ending September 30, 2027, and through the fiscal year ending September 30, 2029, the amount under subsection (2) must be reduced annually by $1,700,000.00, and that $1,700,000.00 must be deposited in the general fund.

History: Add. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2005, Act 141, Imd. Eff. Sept. 29, 2005 ;-- Am. 2006, Act 549, Imd. Eff. Dec. 29, 2006 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2026, Act 96, Imd. Eff. Sept. 21, 2026

257.811 Fees for operator's license, chauffeur's license, or minor's restricted license; renewal; refund to county or municipality; traffic law enforcement and safety fund; operator's license issued to persons under 18 years of age or licensed in another state; person on active military service at time of expiration; renewal rate; exception for late fees during 2021.

Sec. 811.

(1) An application for an original operator's or an original or renewal chauffeur's license as provided in sections 307 and 312 and an application for an original minor's restricted license as provided in section 312 must be accompanied by the following fees:

Operator's license	$ 25.00
Chauffeur's license	35.00
Minor's restricted license	25.00

The renewal fee for an operator's license renewed under this section is $18.00. Except as otherwise provided in subsections (4) and (5), if an operator's license is expired at the time of the renewal, the fee is the same as the original fee. The date of an application for a renewal of an operator's license under this section that is delivered to the secretary of state by regular mail is the postmark date in determining the fee to be assessed.

(2) The secretary of state shall deposit the money received and collected under subsection (1) in the state treasury to the credit of the general fund. The secretary of state shall refund out of the fees collected to each county or municipality acting as an examining officer or examining bureau $2.50 for each applicant examined for an original license, $1.00 for each applicant examined for an original chauffeur's license, and $1.00 for every other applicant examined, if the application is not denied and the money refunded is paid to the county or local treasurer and is appropriated to the county, municipality, or officer or bureau receiving the money for the purpose of carrying out this act. The state treasurer shall deposit the sum of $4.00 in the traffic law enforcement and safety fund created in section 819a for each person examined for an original license, a renewal operator's license, an original chauffeur's license, or a renewal chauffeur's license, except that the sum deposited for each 2-year operator's or 2-year chauffeur's license is $2.00.

(3) Notwithstanding sections 306 and 308, an operator's license must not be issued to an individual under 18 years of age unless that person successfully passes a driver education course and examination given by a driver education provider that has been certified to provide teen driver training under the driver education provider and instructor act, 2006 PA 384, MCL 256.621 to 256.705. An individual who has been a holder of a motor vehicle operator's license issued by any other state, territory, or possession of the United States, or any other sovereignty for 1 year immediately before application for an operator's license under this act is not required to comply with this subsection. Restricted licenses may be issued under section 312 without compliance with this subsection.

(4) A person who is on active military service at the time his or her operator's license expires shall be charged the renewal rate for renewing his or her operator's license under this section if all of the following apply:

(a) He or she applies for renewal within 30 days of returning to this state from active duty.

(b) He or she held a valid, unexpired operator's license from this state immediately prior to leaving this state for active military service.

(c) He or she presents such documentation as the secretary of state requires to establish eligibility under this subsection.

(5) Notwithstanding any other provision of this act, both of the following apply:

(a) The secretary of state shall not assess a late renewal fee for a document described under section 301(6), 306(1), (2), (4), or (6), 306a(4), 309(11), 312k(1), or 314(7) that expires after March 31, 2021 but before August 1, 2021 and is renewed within 120 days of the date of the expiration.

(b) The secretary of state shall, upon an applicant's request, reimburse a late renewal fee assessed and collected for a document described under section 301(6), 306(1), (2), (4), or (6), 306a(4), 309(11), 312k(1), or 314(7) that expires after March 31, 2021 but before August 1, 2021 and is renewed within 120 days of the date of the expiration.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1953, Act 215, Eff. Oct. 2, 1953 ;-- Am. 1955, 1st Ex. Sess., Act 1, Imd. Eff. Nov. 10, 1955 ;-- Am. 1957, Act 235, Imd. Eff. June 6, 1957 ;-- Am. 1958, Act 217, Eff. Sept. 13, 1958 ;-- Am. 1959, Act 260, Eff. Mar. 19, 1960 ;-- Am. 1966, Act 327, Eff. Jan. 1, 1967 ;-- Am. 1967, Act 302, Eff. Sept. 1, 1967 ;-- Am. 1970, Act 124, Imd. Eff. July 23, 1970 ;-- Am. 1972, Act 244, Imd. Eff. Aug. 3, 1972 ;-- Am. 1975, Act 122, Imd. Eff. July 1, 1975 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1980, Act 308, Imd. Eff. Dec. 4, 1980 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1989, Act 299, Imd. Eff. Jan. 3, 1990 ;-- Am. 1991, Act 193, Imd. Eff. Dec. 30, 1991 ;-- Am. 1992, Act 235, Imd. Eff. Oct. 22, 1992 ;-- Am. 1996, Act 387, Eff. Apr. 1, 1997 ;-- Am. 2000, Act 456, Imd. Eff. Jan. 10, 2001 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 71, Imd. Eff. Apr. 20, 2004 ;-- Am. 2006, Act 589, Imd. Eff. Jan. 3, 2007 ;-- Am. 2021, Act 71, Imd. Eff. July 29, 2021
Compiler's Notes: Enacting section 1 of Act 71 of 2021 provides:"Enacting section 1. Sections 216(2), 217(11) and (12), 226(11) and (13), 255(4), 301(6), 306(1), (2), (4), and (6), 306a(4), 309(11), 312k(1), 314(7), 801k(1) and (2), and 811(5) of the Michigan vehicle code, 1949 PA 300, MCL 257.216, 257.217, 257.226, 257.255, 257.301, 257.306, 257.306a, 257.309, 257.312k, 257.314, 257.801k, and 257.811, as amended by this amendatory act, are intended to be retroactive and apply retroactively."
Admin Rule: R 388.301 et seq. of the Michigan Administrative Code.

257.811a Motorcycle safety course; conducting; amount and use of fees; duties of secretary of state; rules; designation, qualifications, and funding of state coordinator of motorcycle safety education program; annual inspections; fulfillment of waiver requirement; audit.

Sec. 811a.

(1) A motorcycle safety course required under section 312b conducted by a college or university, an intermediate school district, a local school district, a law enforcement agency, or any other governmental agency located in this state shall be conducted under this section.

(2) Except for motorcycle safety courses conducted under section 811b, an applicant for a motorcycle safety course shall pay not more than a $50.00 course fee. The course fees shall be used only for funding the administration and implementation of the motorcycle safety education program.

(3) The secretary of state is responsible for the establishment and administration of motorcycle safety courses and shall promulgate rules under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, regarding teacher qualifications, reimbursement procedures, the establishment of the courses, and other requirements under this section.

(4) The secretary of state shall designate a person to be the state coordinator of the motorcycle safety education program. The person designated under this subsection shall successfully complete a motorcycle safety rider coach course before being designated.

(5) The position of state coordinator of the motorcycle safety education program shall be funded by the motorcycle safety fund.

(6) The secretary of state shall designate a person who has successfully completed a motorcycle safety rider coach course to perform annual inspections of motorcycle course sites.

(7) An 8-hour motorcycle safety course that meets the standards established by the secretary of state may be offered to an applicant who has passed a motorcycle operator skill test that has been approved by the secretary of state. Successful completion of a motorcycle safety course under this subsection shall fulfill the waiver requirement of section 312b.

(8) An audit of the motorcycle safety fund shall be conducted by the office of the auditor general to determine compliance with the requirements of this act with regard to the collection and expenditure of fees authorized under this section. A copy of this audit shall be transmitted to the legislature upon completion.

History: Add. 1982, Act 187, Eff. Jan. 1, 1984 ;-- Am. 1987, Act 85, Imd. Eff. June 29, 1987 ;-- Am. 1992, Act 59, Imd. Eff. May 20, 1992 ;-- Am. 2003, Act 103, Eff. Oct. 1, 2003 ;-- Am. 2016, Act 22, Eff. May 23, 2016

Compiler's Notes: Effective dates of MCL 257.312b(2) and of 257.811a(3): Section 2 of Act 187 of 1982 provides:"(1) Except as provided in subsection (2), this amendatory act shall take effect January 1, 1984."(2) Sections 312b(2) and 811a(3) shall take effect July 1, 1982."

Admin Rule: R 257.1701 et seq. of the Michigan Administrative Code.

257.811b Motorcycle safety course conducted by private business enterprise; rules; fulfillment of waiver requirement.

Sec. 811b.

(1) A motorcycle safety course required in section 312b may be conducted by a private business enterprise.

(2) The secretary of state shall promulgate rules pursuant to the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328, to provide standards for the establishment and regulation of motorcycle safety courses conducted under this section.

(3) An 8-hour motorcycle safety course that meets the standards established by the secretary of state may be offered to an applicant who has passed a motorcycle operator skill test which has been approved by the secretary of state. Successful completion of a motorcycle safety course under this subsection shall fulfill the waiver requirement of section 312b.

History: Add. 1987, Act 85, Imd. Eff. June 29, 1987 ;-- Am. 2003, Act 103, Eff. Oct. 1, 2003

257.811c Repealed. 2006, Act 562, Eff. Jan. 1, 2007.

Compiler's Notes: The repealed section pertained to registration plate with olympic education-training center decal.

257.811d Definitions; fund-raising registration plate; requirements; design or logo by university or other person; written agreement.

Sec. 811d.

(1) As used in this chapter:

(a) "Fund-raising plate" means a registration plate authorized to raise funds for a specified goal.

(b) "Collector plate" means a collector plate that matches any registration plate developed and issued under this act.

(c) "Nonprofit" means that which is exempt from taxation under section 501(c)(3) of the internal revenue code, 26 USC 501.

(d) "Transportation administration collection fund" means the fund created under section 810b.

(2) A fund-raising plate shall contain all of the following as prescribed or approved by the secretary of state:

(a) The same generic background.

(b) Letters and numbers.

(c) The word "Michigan" and any other unique identifier specified by the secretary of state.

(d) A design or logo.

(3) If the design or logo of a fund-raising plate uses 1 or more designs, trade names, trademarks, service marks, emblems, symbols, or other images that are owned by a Michigan university or other person, the Michigan university or other person shall grant to or obtain for the secretary of state both of the following pursuant to a written agreement between the parties:

(a) A nonexclusive worldwide license to use those designs, trade names, trademarks, service marks, emblems, symbols, or other images on and in conjunction with the marketing, promotion, sale, or copyrighting of the registration plate or image of the fund-raising plate.

(b) The authority to merchandise the fund-raising plate or an image of the fund-raising plate.

(4) In using or employing a design, trade name, trademark, service mark, emblem, symbol, logo, or other image on and in conjunction with the marketing, promotion, sale, copyrighting, or merchandising of a fund-raising plate or image of the fund-raising plate, the secretary of state may alter the size of the design, trade name, trademark, service mark, emblem, symbol, logo, or other image but shall not change the color or design of the design, trade name, trademark, service mark, emblem, symbol, logo, or other image without the prior written consent of the respective Michigan university or other person. The secretary of state shall not use or employ a design, trade name, trademark, service mark, emblem, symbol, logo, or other image on and in conjunction with the marketing, promotion, sale, copyrighting, or merchandising of a fund-raising plate or an image of the fund-raising plate in any manner that is offensive to the Michigan university or other person that owns the design, trade name, trademark, service mark, emblem, symbol, logo, or other image that is the subject of a written agreement under subsection (3).

History: Add. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2005, Act 317, Imd. Eff. Dec. 27, 2005 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007

257.811e Fund-raising plate.

Sec. 811e.

(1) The secretary of state may develop a fund-raising plate as provided in this section.

(2) A start-up fee in an amount equal to a 3-year average of the cost to the secretary of state of developing a new fund-raising plate, as calculated by the secretary of state on January 1 of each year, shall be paid for any new fund-raising plate authorized under this section. The

secretary of state shall discount the start-up fee to reflect any cost savings realized by the secretary of state if multiple new fund-raising plates are developed at the same time. The secretary of state shall use the 3 most recent preceding years in which it developed at least 1 fund-raising plate when calculating the 3-year average required by this subsection. The secretary of state shall deposit the fee in the transportation administration collection fund to be used for the cost of creating, producing, and issuing fund-raising plates. If the fee described in this subsection is not paid within 18 months after the effective date of the public act that authorizes the development and issuance of a fund-raising plate, the secretary of state shall not create, produce, or issue the related fund-raising plate. A start-up fee paid under this subsection is nonrefundable.

(3) Not less than 3 years after the secretary of state first issues 1 of the fund-raising plates as described in subsection (1) and upon payment of $2,000.00, the Michigan university or other person sponsoring that fund-raising plate may redesign it as approved by the secretary of state. The secretary of state shall deposit the payment required under this subsection in the transportation administration collection fund created under section 810b to be used for the cost of creating, producing, and issuing fund-raising plates. A payment under this subsection is nonrefundable.

(4) The secretary of state may develop 1 or more limited term registration plates to recognize a Michigan university or an accomplishment or occasion of a Michigan university.

(5) Subject to section 811h(5), the secretary of state may, at any 1 time, develop, produce, issue, or make available for sale not more than 20 different fund-raising plates as described in this section, and matching collector plates as described in section 811g. This subsection does not apply to a plate described in subsection (4).

(6) The secretary of state shall not develop or issue a fund-raising plate unless a public act authorizing the fund-raising plate, at a minimum, does all of the following:

(a) Identifies the purpose of the fund-raising plate.

(b) Creates a nonprofit fund or designates an existing nonprofit fund to receive the money raised through the sale of fund-raising plates and matching collector plates. A nonprofit fund described in this subdivision shall not expend money received from the sale of a fund-raising plate and matching collector plate outside of this state.

(c) If a fund is created, names the person or entity responsible for administering the fund.

(7) The 2016 amendatory act that amended this section and section 811h shall be known and may be cited as the "Peter A. Pettalia Memorial Act".

History: Add. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2001, Act 124, Imd. Eff. Oct. 12, 2001 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 66, Eff. Jan 1, 2012 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2016, Act 327, Eff. Feb. 28, 2017 ;-- Am. 2018, Act 326, Eff. Sept. 30, 2018

257.811f Fund-raising plate; issuance; application; donation, tax, and fee; renewal; personalized fund-raising plate; disabled person's plate; expiration; temporary registration permit.

Sec. 811f.

(1) The secretary of state may, upon application, issue 1 fund-raising plate instead of a standard registration plate to a person for use on a passenger motor vehicle, motor home, pickup truck, or van.

(2) A person may be issued a fund-raising plate for use on a vehicle under this act by applying to the secretary of state under section 217. The applicant must accompany an

application for an original fund-raising plate by a $25.00 fund-raising donation, payment of the regular vehicle registration tax prescribed under this act, and a $10.00 service fee. The applicant must accompany an application for renewal of a fund-raising plate by payment of the vehicle registration tax required under section 801 and a $10.00 fund-raising donation. The applicant must accompany an application for a replacement fund-raising plate with payment of only the fee prescribed under section 804.

(3) The secretary of state may issue a personalized fund-raising plate upon application and the payment of the personalized registration plate fee prescribed under section 803b in addition to the fees and donations prescribed under subsection (2) and the regular vehicle registration tax prescribed under this act.

(4) A disabled person who applies for a fund-raising plate under this section and who pays the required service fees shall be issued, as determined by the secretary of state, a disabled person's plate as provided in section 803d for his or her fund-raising plate. The secretary of state shall require the same proof that the applicant is a disabled person as is required for issuance of a permanent windshield placard under section 675.

(5) A fund-raising plate expires as provided in section 226. The secretary of state may issue a tab or tabs designating the month and year of expiration for an original or renewal fund-raising plate.

(6) The secretary of state may issue a temporary registration permit to a person who submits an application and the proper fees and donation for a fund-raising plate, if the applicant's current vehicle registration will expire before his or her receipt of a fund-raising plate. The temporary registration expires upon the applicant's receipt of a fund-raising plate or upon the expiration of 60 days after the date of issuance, whichever occurs first. The secretary of state shall issue the temporary permit without a separate fee.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2017, Act 234, Eff. Feb. 19, 2019

257.811g Collector plate; display; purchase; ceasing sale.

Sec. 811g.

(1) Except as otherwise provided in this act, the secretary of state may develop, market, promote, and sell a collector plate. However, the secretary of state shall only develop, market, and promote a collector plate with funds available from the collection of service fees under this chapter.

(2) A collector plate shall not be attached to a motor vehicle in a manner prescribed in section 225. A collector plate may be used on a vehicle in any lawful manner, including, but not limited to, being displayed on the front bumper of a vehicle.

(3) A person may purchase 1 or more collector plates by making payment to the secretary of state of the $10.00 service fee and a $25.00 fund-raising donation.

(4) The secretary of state may, as determined necessary by the secretary of state, cease to sell a collector plate.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007

257.811h Disposition of service fee collections; separate accounts; disbursement; ceasing issuance of fund-raising plate; ownership of right, title, and interest; royalty fee; report

Sec. 811h.

(1) The secretary of state shall credit each service fee collected under sections 811f and 811g to the transportation administration collection fund created under section 810b.

(2) The secretary of state shall identify and segregate the fund-raising donations collected under sections 811f and 811g into separate accounts. The secretary of state shall create a separate account for each fund-raising plate and its matching collector plate issued or sold by the secretary of state.

(3) As determined necessary by the secretary of state but not more than 45 days after the end of each calendar quarter, the secretary of state shall not less than once each calendar quarter authorize the disbursement of fund-raising donations segregated under subsection (2) and, independent from any disbursement under subsection (2), report the number of each type of fund-raising and collector plates issued, sold, or renewed to the following, as appropriate:

(a) The treasurer of a Michigan university.

(b) The person or entity identified in a public act described in section 811e to administer a state-sponsored fund-raising registration plate fund.

(c) The sponsor of a fund-raising plate issued as prescribed under section 811e that was developed and issued after January 1, 2007.

(4) A fund-raising plate shall meet or exceed the following sales goals:

(a) In the first year, 2,000 plates.

(b) In the second and each subsequent year for 5 years, 500 original plates.

(c) For each subsequent consecutive 2-year period after the 5-year period described in subdivision (b), 500 original plates.

(5) Except as otherwise provided in this subsection, the secretary of state shall cease to issue a fund-raising plate or to issue a duplicate replacement of a fund-raising plate for use on a vehicle if that fund-raising plate fails to meet a sales goal described in subsection (4). The secretary of state shall not cease to issue a fund-raising plate that was available for sale on February 1, 2017 and that failed to meet a sales goal described in subsection (4) if the failure occurred before February 1, 2017. The secretary of state shall also cease to sell a collector plate that matches the discontinued fund-raising plate. However, the secretary of state may continue to renew fund-raising plates already issued and collect the renewal fund-raising donation for those plates.

(6) The state of Michigan, through the secretary of state, shall own all right, title, and interest in all fund-raising plates and collector plates, including the right to use, reproduce, or distribute a fund-raising or collector plate or the image of a fund-raising or collector plate in any form. The secretary of state may authorize the commercial or other use of a fund-raising or collector plate design, logo, or image if written consent is obtained from the pertinent Michigan university or other person that sponsored a fund-raising plate. However, the secretary of state shall not authorize the commercial or other use of a fund-raising or collector plate under this section unless the user first agrees in writing to the terms and conditions that the secretary of state considers necessary. Those terms and conditions may include the payment of royalty fees to 1 or more of the following:

(a) This state.

(b) A Michigan university.

(c) Another person that sponsored a fund-raising plate.

(7) The secretary of state shall credit a royalty fee paid to this state under a written agreement described in subsection (6) to the transportation administration collection fund created under section 810b.

(8) Beginning not later than February 1, 2007, and annually after that, an organization receiving fund-raising donations disbursed under this section shall report to the state treasurer.

A report under this subsection shall include a summary of expenditures during the preceding year of the money received under this section.

History: Add. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2009, Act 99, Imd. Eff. Sept. 30, 2009 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2015, Act 78, Eff. Oct. 1, 2015 ;-- Am. 2016, Act 327, Eff. Feb. 28, 2017 ;-- Am. 2018, Act 326, Eff. Sept. 30, 2018

257.811i Plates recognizing water quality; collection of donations; creation of water quality protection fund; definitions.

Sec. 811i.

(1) Fund-raising plate donations collected for plates recognizing the water quality of this state under section 811f and collector plate fund-raising donations collected under section 811g shall be disbursed under section 811h by the secretary of state to the state treasurer, who shall credit the donation money to the water quality protection fund created under subsection (3).

(2) The department of environmental quality shall establish and administer a "water quality protection fund grant program" and shall set policy and oversee this program. The program shall provide grants to local units of government for the purpose of protecting the water quality of the Michigan Great Lakes and inland lakes, rivers, and streams. The department of environmental quality may promulgate rules to implement this grant program under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

(3) The water quality protection fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund. Money from the fund shall be expended, upon appropriation, only for the purpose of protecting the water quality of the Michigan Great Lakes and inland lakes, rivers, and streams.

(4) For purposes of this chapter, "local unit of government" means any of the following:

(a) A county, city, village, or township.

(b) An agency of a county, city, village, or township.

(c) The office of a county drain commissioner.

(d) A soil conservation district established under part 93 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.9301 to 324.9313.

(e) A watershed council established under part 311 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.31101 to 324.31119.

(f) A local health department as that term is defined in section 1105 of the public health code, 1978 PA 368, MCL 333.1105.

(g) A community college or junior college established pursuant to section 7 of article VIII of the state constitution of 1963.

(h) A 4-year institution of higher education, public or private, located in this state.

(i) An authority or other public body created by or pursuant to state law.

History: Add. 2000, Act 74, Eff. Mar. 28, 2001 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007

257.811j Children's trust fund-raising plate or collector plate; collection of donations.

Sec. 811j.

(1) A fund-raising plate or collector plate recognizing children's trust must be of a design as determined by the secretary of state after consultation with the children trust Michigan board created in section 3 of the child abuse and neglect prevention act, 1982 PA 250, MCL 722.603.

(2) Fund-raising donations for plates recognizing children's trust collected under sections 811f and 811g must be transferred under section 811h by the secretary of state to the state treasurer, who shall credit the donation money to the children's trust fund created under section 1 of 1982 PA 249, MCL 21.171, for the support and benefit of the children of this state.

History: Add. 2000, Act 71, Eff. Mar. 28, 2001 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007 ;-- Am. 2026, Act 61, Imd. Eff. July 23, 2026

257.811k Michigan lighthouse preservation grant fund; creation and expenditure of fund; annual accounting; grant awards; transfer and disposition of collected donations; "state historic preservation office" defined.

Sec. 811k.

(1) The Michigan lighthouse preservation grant fund is created as a separate fund in the department of treasury. The fund shall be expended only as provided in this section. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. The state treasurer shall annually present to the state historic preservation office an accounting of the amount of money in the fund. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(2) The state historic preservation office shall administer the Michigan lighthouse preservation fund and may expend money from that fund through discretionary historical grants to preserve Michigan lighthouses. The state historic preservation office shall use not more than 10% of the funds for costs that occur from fund administration and grant project coordination.

(3) The state historic preservation office may award grants under subsection (2) for the preparation of plans and specifications for restoration and stabilization and for stabilization, rehabilitation, or other preservation work on a Michigan lighthouse, but grants shall not be awarded for operational purposes. The state historic preservation office shall allocate grant funds pursuant to eligibility and scoring requirements established by the state historic preservation office. To award grants under this section, the state historic preservation office shall solicit applications from eligible recipients, score applications based on the established criteria, and award grants through executed contracts. All plans and work performed under a grant shall be consistent with the United States secretary of the interior's standards for rehabilitation and guidelines for rehabilitating historic buildings, 36 CFR part 67, historic preservation certifications.

(4) Fund-raising donations for plates recognizing the historical lighthouses of this state under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall credit the donation money to the Michigan lighthouse preservation grant fund for the preservation of historic Michigan lighthouses.

(5) As used in this section, "state historic preservation office" means the state historic preservation office of the Michigan state housing development authority.

History: Add. 2000, Act 73, Eff. Mar. 28, 2001 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2012, Act 55, Eff. June 30, 2012
Compiler's Notes: For transfer of powers and duties of department of history, arts, and libraries or the Michigan historical center relating to the identification, certification, and preservation of historical sites to the Michigan state housing development authority, see E.R.O. No. 2009-26, compiled at MCL 399.752.For transfer of powers and duties of the state historic preservation office relating to the identification, certification, and preservation of historical sites from the Michigan state housing development authority to the Michigan strategic fund, see E.R.O. No. 2019-3, compiled at MCL 125.1998.

257.811l Critical nongame wildlife habitat fund-raising plate and collector plate; collection of donations; transfer and disposition.

Sec. 811l.

(1) A fund-raising plate or collector plate recognizing the critical nongame wildlife habitats of this state shall be of a design as determined by the secretary of state after consulting with the director of the department of natural resources.

(2) Fund-raising donations for plates described in subsection (1) collected under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall credit the donation money to the nongame fish and wildlife trust fund created under section 43902 of the natural resources and environmental protection act, 1994 PA 451, MCL 324.43902.

History: Add. 2000, Act 70, Eff. Mar. 28, 2001 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007

257.811m Plates recognizing Michigan veterans memorial; donations.

Sec. 811m.

Fund-raising donations for plates recognizing the Michigan veterans memorial collected under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall credit the donation money to the Vietnam veterans memorial monument fund created in section 3 of the Michigan Vietnam veterans memorial act, 1988 PA 234, MCL 35.1053. These donations shall be used exclusively for the purposes described in sections 5 and 7 of the Michigan Vietnam veterans memorial act, 1988 PA 234, MCL 35.1055 and 35.1057.

History: Add. 2006, Act 562, Eff. Jan. 1, 2007

257.811n Agricultural heritage; fund-raising donations; collection; transfer and disbursement.

Sec. 811n.

Fund-raising donations for plates recognizing the agricultural heritage of this state collected under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall disburse the donation money to Michigan state university development, designated for the FFA vision2000 endowment fund, for the purpose of providing grants for agri-science, natural resources, and environmental K-12 educational programs.

History: Add. 2000, Act 79, Eff. Mar. 28, 2001 ;-- Am. 2006, Act 562, Eff. Jan. 1, 2007

257.811o American pride; design; transfer and disbursement; proud to be American fund; report.

Sec. 811o.

(1) A fund-raising plate or collector plate recognizing American pride shall be of a design as determined by the secretary of state and contain the words "proud to be American" and "Michigan". Fund-raising donations for plates recognizing American pride collected under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall disburse the donation money to the proud to be American fund established under this section.

(2) The proud to be American fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) The state treasurer shall disburse money in the fund on a monthly basis as follows:

(a) Fifty percent to the American National Red Cross established under 36 USC 300101 as represented by the Michigan state service council.

(b) Fifty percent to the Salvation Army.

(5) The American National Red Cross and the Salvation Army shall expend the money received under this section for disaster preparedness and disaster relief in the United States of America.

(6) The American National Red Cross and the Salvation Army shall annually report to the department of treasury an accounting of money received and used under this section.

History: Add. 2006, Act 562, Eff. Jan. 1, 2007

257.811p Olympic education-training center; design; logo; transfer and disbursement.

Sec. 811p.

(1) A fund-raising plate or collector plate recognizing the Olympic education-training center in this state shall bear an appropriate logo, the design of which the Olympic education-training center shall submit to the secretary of state. The secretary of state shall confer with the department of state police to ensure that the design will not compromise the ability of law enforcement agencies to accurately identify specific vehicles.

(2) Registration plates bearing an Olympic education-training center logo shall not be a duplication of another registration plate. The Olympic education-training center shall comply with section 803m(2), (3)(c) and (d), and (4)(c) and (d).

(3) Fund-raising donations for plates recognizing the Olympic education-training center collected under section 811f or 811g shall be transferred by the secretary of state to the state treasurer, who shall credit the funds to the Olympic education-training center fund. The money in the Olympic education-training center fund shall, upon appropriation, be distributed to the Olympic education-training center.

History: Add. 2006, Act 562, Eff. Jan. 1, 2007

257.811q Support for our troops; design; transfer and disbursement; support our troops fund; report.

Sec. 811q.

(1) A fund-raising plate or collector plate recognizing support for our troops shall be of a design as determined by the secretary of state and contain the emblem or logo of Support Our Troops, Inc. of Michigan, displaying a soldier and a child and the words "support our troops" and "Michigan". Fund-raising donations for plates recognizing support for our troops collected under sections 811f and 811g shall be transferred under section 811h by the secretary of state to the state treasurer, who shall disburse the donation money to the support our troops fund established under this section.

(2) The support our troops fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) The state treasurer shall disburse money in the fund on a monthly basis to Support Our Troops, Inc. of Michigan, which shall expend the money received under this section for troops and their families in accordance with its articles of incorporation.

(5) Support Our Troops, Inc. of Michigan shall annually report to the department of treasury an accounting of money received and used under this section.

(6) An application for a support our troops fund-raising or collector plate by a motor vehicle owner or lessee constitutes prior written consent and instruction by that owner or lessee to the secretary of state to provide the owner's or lessee's name and address to Support Our Troops, Inc. of Michigan.

History: Add. 2006, Act 562, Eff. Jan. 1, 2007

257.811r Fund-raising plate; boy scouts of America; fund.

Sec. 811r.

(1) The secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing the boy scouts of America. The secretary of state in conjunction with the boy scouts of America shall design the fund-raising plates authorized in this section.

(2) The boy scouts of America fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the boy scouts of America to the state treasurer, who shall credit the donation money to the boy scouts of America fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the boy scouts of America.

History: Add. 2011, Act 66, Eff. Jan. 1, 2012

257.811s Thomas Daley gift of life fund; creation; deposit of money or other assets; money remaining at close of fiscal year; transfer; administration for auditing purposes; expenditures; "fund" defined.

Sec. 811s.

(1) The Thomas Daley gift of life fund is created within the state treasury.

(2) The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) Money in the organ and tissue donation education fund created in former section 217o shall be transferred to the fund.

(5) The department of state shall be the administrator of the fund for auditing purposes.

(6) The department of state shall expend money from the fund, upon appropriation, for the administration and maintenance of the state anatomical gift donor registry program under part 101 of the public health code, 1978 PA 368, MCL 333.10101 to 333.10123. Any money remaining in the fund may be expended for the ongoing development and administration of the department of state's public information campaign concerning the Michigan organ donation program.

(7) As used in this section, "fund" means the Thomas Daley gift of life fund created in subsection (1).

History: Add. 2012, Act 55, Eff. June 30, 2012

257.811t Fund-raising plate recognizing anatomical gift donation.

Sec. 811t.

(1) The secretary of state may issue a fund-raising plate recognizing anatomical gift donation. A fund-raising plate recognizing anatomical gift donation shall be of a design as determined by the secretary of state. Fund-raising donations for plates recognizing anatomical gift donation collected under section 811f shall be transferred under section 811h by the secretary of state to the state treasurer, who shall disburse the donation money to the Thomas Daley gift of life fund established in section 811s.

(2) The fund-raising plate issued under subsection (1) may be referred to as the "John J. Gleason gift of life plate".

History: Add. 2012, Act 54, Eff. June 30, 2012

257.811v Fund-raising plate and matching collector plate; ducks unlimited.

Sec. 811v.

No later than June 1, 2014, the secretary of state shall develop and may issue a fund-raising plate and a matching collector plate recognizing ducks unlimited. The words "ducks unlimited" shall be inscribed on the plates. The secretary of state shall transfer the fund-raising donations received from the sale of the plates described in this section to the state treasurer, who shall credit the donation money to the ducks unlimited fund created under section 811w.

History: Add. 2013, Act 6, Imd. Eff. Mar. 20, 2013

257.811w Ducks unlimited fund; creation; investment; disbursement.

Sec. 811w.

No later than June 1, 2014, the state treasurer shall create the ducks unlimited fund within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund. The department of treasury shall be the administrator of the fund for auditing purposes. The state treasurer shall disburse money in the fund on a quarterly basis to the Michigan chapter of ducks unlimited, incorporated. Except as otherwise provided in this section, the money disbursed to the Michigan chapter of ducks unlimited, incorporated shall only be expended to protect, enhance, restore, manage, and acquire wetlands and associated uplands in this state. A portion of the money disbursed to the Michigan chapter of ducks unlimited, incorporated may be used to fund education and outreach regarding wetlands conservation and to cover reasonable costs for advertising and administration. Money disbursed to the Michigan chapter of ducks unlimited, incorporated, under this section may only be expended in this state.

History: Add. 2013, Act 7, Imd. Eff. Mar. 20, 2013

257.811x Fund-raising plate recognizing Michigan breast and cervical cancer control program.

Sec. 811x.

No later than June 1, 2014, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing the Michigan breast and cervical cancer control program. The secretary of state in conjunction with the Michigan breast and cervical cancer control program shall design the fund-raising plates authorized in this section. The secretary of state shall transfer the fund-raising donations received from the sale of the plates described in this section to the state treasurer, who shall credit the donation money as provided in section 811y. As used in this section, "Michigan breast and cervical cancer control program" means the breast and cervical cancer control program as defined in section 2 of the Amanda's fund for breast cancer prevention and treatment act, 2007 PA 134, MCL 333.26232.

History: Add. 2013, Act 208, Eff. Mar. 14, 2014

257.811y Amanda's fund for breast cancer prevention and treatment; transfer of donation money from sale of fund-raising plates; summary of expenditures; "Michigan breast and cervical cancer control program" defined.

Sec. 811y.

(1) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the Michigan breast and cervical cancer control program created under section 811x to the state treasurer, who shall deposit the money on a quarterly basis to Amanda's fund for breast cancer prevention and treatment as provided in the Amanda's fund for breast cancer prevention and treatment act, 2007 PA 134, MCL 333.26231 to 333.26237.

(2) Beginning not later than February 1, 2014, the Michigan breast and cervical cancer control program shall submit to the state treasurer a summary of the expenditures during the preceding year of the money received under this section.

(3) As used in this section, "Michigan breast and cervical cancer control program" means the breast and cervical cancer control program as defined in section 2 of the Amanda's fund for breast cancer prevention and treatment act, 2007 PA 134, MCL 333.26232.

History: Add. 2013, Act 207, Eff. Mar. 14, 2014

257.811z Fund-raising plate recognizing be the match; be the match fund; creation; transfer of donation money; disbursement; state treasurer as administrator; expenditure.

Sec. 811z.

(1) No later than September 1, 2015, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing be the match. The secretary of state shall design the fund-raising plates authorized in this section.

(2) The be the match fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing be the match to the state treasurer, who shall credit the donation money to the be the match fund created under subsection (2).

(4) The state treasurer shall disburse money in the be the match fund created under subsection (2) on a quarterly basis to be the match.

(5) The state treasurer shall be the administrator of the be the match fund created under subsection (2) for auditing purposes.

(6) Money from the be the match fund shall be expended on research, technology, patient support, and education regarding bone marrow donation and transplantation and the testing of new be the match registrants.

History: Add. 2014, Act 390, Eff. Mar. 31, 2015

257.811aa Repealed. 2024, Act 81, Eff. Apr. 2, 2025.

Compiler's Notes: The repealed section pertained to the creation of the sickle cell anemia awareness fund and fund-raising plate.

257.811bb Plates recognizing Michigan veterans; donations; Michigan veterans engagement fund; creation; administrator; money remaining in fund at close of fiscal year; disbursement to Michigan veterans affairs agency; expenditures.

Sec. 811bb.

(1) No later than September 1, 2015, the secretary of state shall develop and may issue a fund-raising plate or collector plate recognizing Michigan veterans. A fund-raising plate or collector plate developed under this section shall be of a design as determined by the secretary

of state. The secretary of state shall transfer fund-raising donations for plates recognizing Michigan veterans collected under sections 811f and 811g to the state treasurer, who shall disburse the donation money to the Michigan veterans engagement fund established under this section.

(2) The Michigan veterans engagement fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. The Michigan veterans affairs agency shall be the administrator of the fund for auditing purposes.

(3) Money in the Michigan veterans engagement fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) The state treasurer shall disburse money in the Michigan veterans engagement fund on a monthly basis to the Michigan veterans affairs agency, which shall expend the money for outreach activities, including, but not limited to, education on the mental effects of war, post-traumatic stress disorder, and other service-related disabilities, with county veteran service offices, organizations providing local veteran services, or other veteran service providers. However, the Michigan veterans affairs agency shall dedicate at least 25% of the money disbursed under this subsection for tuition support for members of the Michigan national guard or the children of veterans tuition grant program created under the children of veterans tuition grant act, 2005 PA 248, MCL 390.1341 to 390.1346, at the discretion of the adjutant general of the Michigan national guard. The Michigan veterans affairs agency may spend up to 15% of the money received each month under this subsection on administrative expenses.

History: Add. 2014, Act 490, Eff. Mar. 31, 2015

257.811cc Fund-raising plate recognizing Detroit Red Wings.

Sec. 811cc.

(1) No later than August 1, 2019, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate or collector plate recognizing the Detroit Red Wings. The fund-raising plate or collector plate authorized in this section shall bear an appropriate logo, the design of which the Detroit Red Wings shall submit to the secretary of state.

(2) The Detroit Red Wings fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the Detroit Red Wings to the state treasurer, who shall credit the donation money to the Detroit Red Wings fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Detroit Red Wings Foundation.

(5) The state treasurer shall be the administrator of the fund created in subsection (2) for auditing purposes.

(6) Money disbursed to the Detroit Red Wings Foundation under this section shall be distributed to eligible nonprofit organizations that are exempt from taxation under section 501(c)(3) of the internal revenue code, 26 USC 501.

History: Add. 2018, Act 326, Eff. Sept. 30, 2018

257.811dd Fund-raising plate recognizing Detroit Tigers.

Sec. 811dd.

(1) No later than August 1, 2019, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate or collector plate recognizing the Detroit Tigers. The fund-raising plate or collector plate authorized in this section shall bear an appropriate logo, the design of which the Detroit Tigers shall submit to the secretary of state.

(2) The Detroit Tigers fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the Detroit Tigers to the state treasurer, who shall credit the donation money to the Detroit Tigers fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Detroit Tigers Foundation.

(5) The state treasurer shall be the administrator of the fund created in subsection (2) for auditing purposes.

(6) Money disbursed to the Detroit Tigers Foundation under this section shall be distributed to eligible nonprofit organizations that are exempt from taxation under section 501(c)(3) of the internal revenue code, 26 USC 501.

History: Add. 2018, Act 326, Eff. Sept. 30, 2018

257.811ee Fund-raising plate recognizing Detroit Lions.

Sec. 811ee.

(1) No later than August 1, 2019, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate or collector plate recognizing the Detroit Lions. The fund-raising plate or collector plate authorized in this section shall bear an appropriate logo, the design of which the Detroit Lions shall submit to the secretary of state.

(2) The Detroit Lions fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the Detroit Lions to the state treasurer, who shall credit the donation money to the Detroit Lions fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Detroit Lions Charities.

(5) The state treasurer shall be the administrator of the fund created in subsection (2) for auditing purposes.

(6) Money disbursed to the Detroit Lions Charities under this section shall be distributed to eligible nonprofit organizations that are exempt from taxation under section 501(c)(3) of the internal revenue code, 26 USC 501.

History: Add. 2018, Act 326, Eff. Sept. 30, 2018

257.811ff Fund-raising plate recognizing Detroit Pistons.

Sec. 811ff.

(1) No later than August 1, 2019, the secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate or collector plate recognizing the Detroit Pistons in this state. The fund-raising plate or collector plate authorized in this section shall bear an appropriate logo, the design of which the Detroit Pistons shall submit to the secretary of state.

(2) The Detroit Pistons fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing the Detroit Pistons to the state treasurer, who shall credit the donation money to the Detroit Pistons fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Come Together Foundation.

(5) The state treasurer shall be the administrator of the fund created in subsection (2) for auditing purposes.

(6) Money disbursed to the Come Together Foundation under this section shall be distributed to eligible nonprofit organizations that are exempt from taxation under section 501(c)(3) of the internal revenue code, 26 USC 501.

History: Add. 2018, Act 326, Eff. Sept. 30, 2018

257.811hh Fund-raising plate; recognizing sickle cell anemia education and treatment; sickle cell anemia awareness fund.

Sec. 811hh.

(1) The secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing sickle cell anemia education and treatment. The secretary of state, in conjunction with the Sickle Cell Disease Association of America, Inc., Michigan Chapter, shall design the fund-raising plate authorized in this section.

(2) The sickle cell anemia awareness fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year must remain in the fund and must not lapse to the general fund. The state treasurer shall be the administrator of the fund for auditing purposes.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates recognizing sickle cell anemia education and treatment to the state treasurer, who shall credit the donation money to the fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Sickle Cell Disease Association of America, Inc., Michigan Chapter.

History: Add. 2024, Act 81, Eff. Apr. 2, 2025

257.811ii Michigan 4-H fund-raising plate.

Sec. 811ii.

The secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing the Michigan 4-H. The secretary of state in conjunction with the Michigan 4-H shall design the fund-raising plates authorized in this section. The secretary of state shall transfer the donation money from the sale of the Michigan 4-H fund-raising plates to the state treasurer, who shall credit the donation money to the Michigan 4-H Foundation fund established in section 811jj.

History: Add. 2024, Act 90, Eff. Apr. 2, 2025

257.811jj Michigan 4-H Foundation fund.

Sec. 811jj.

(1) The Michigan 4-H Foundation fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal year must remain in the fund and must not lapse to the general fund. The state treasurer is the administrator of the fund for auditing purposes.

(2) The state treasurer shall disburse money in the fund established under subsection (1) on a quarterly basis to the Michigan 4-H Foundation.

History: Add. 2024, Act 89, Eff. Apr. 2, 2025

257.811kk Protecting Michigan's pets fund-raising plate.

Sec. 811kk.

(1) The secretary of state shall develop under section 811e and issue under section 811f a fund-raising plate recognizing the need to address the overpopulation of this state's companion animals and to support the humane care and health care of homeless and abused animals in this state's shelters and rescues. The secretary of state, in conjunction with the Michigan Pet Alliance, shall design the fund-raising plate authorized in this section.

(2) The protecting Michigan's pets fund is created within the state treasury. The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments. Money in the fund at the close of the fiscal

year must remain in the fund and must not lapse to the general fund. The state treasurer shall be the administrator of the fund for auditing purposes.

(3) The secretary of state shall transfer the donation money from the sale of fund-raising plates under subsection (1) to the state treasurer, who shall credit the donation money to the fund established under subsection (2).

(4) The state treasurer shall disburse money in the fund established under subsection (2) on a quarterly basis to the Michigan Pet Alliance.

History: Add. 2026, Act 85, Imd. Eff. July 27, 2026

257.812 Fee for duplicate or corrected license; renewal.

Sec. 812.

(1) Except as otherwise provided in subsection (2), for each duplicate license as provided in section 313, and for each correction of a license, a person may apply for renewal of the license and pay the renewal fee prescribed in this act or the person may, at his or her option and upon payment of the fee prescribed in this section, apply for a duplicate license which expires on the same date as the license which was lost, destroyed, mutilated, or became illegible. The secretary of state may check the applicant's driving record through the national driver register and the commercial driver license information system before issuing a license under this section. The fee for a duplicate chauffeur's license is $18.00. The fee for a duplicate operator's license is $9.00. A renewal fee shall not be charged for a change of address, a correction required to correct a department error, or, beginning January 1, 2007, to add or remove a heart insignia described in section 310.

(2) Except with regard to a person who is less than 21 years of age or a person with a license containing a hazardous material indorsement, for each duplicate license as provided in section 313, and for each correction of a license, a person shall apply for renewal of the license and pay the renewal fee prescribed in this act if the license was due to expire within the next 12 months. Except as otherwise provided in this act, a license renewed under this subsection shall be renewed for the combined period of the time remaining on the license before its renewal and the 4-year renewal period.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1975, Act 122, Imd. Eff. July 1, 1975 ;-- Am. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1989, Act 280, Imd. Eff. Dec. 26, 1989 ;-- Am. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2005, Act 142, Imd. Eff. Sept. 29, 2005

MISCELLANEOUS

257.813 Certified copies of records.

Sec. 813.

For each page of a certified copy of a record as provided in section 207, paragraph (b) of chapter 2 of this act, $1.00. All money collected under this section shall be deposited to the credit of the general fund.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.814 Use tax; collection; disposition; collection upon registration of nonresident vehicle in this state.

Sec. 814.

(a) If it appears to the secretary of state that a motor vehicle was purchased by an applicant in a state other than this state, unless the applicant produces a certificate of title issued to the applicant under the laws of that state, or a certificate of registration or registered bill of sale issued under the laws of another state showing the applicant for a Michigan certificate of title to have resided in the state that issued the certificate of title, certificate of registration, or registered bill of sale, the secretary of state shall conduct an investigation of the purchase and sale and of the title to the motor vehicle. If the secretary of state is satisfied that the applicant is the owner of the motor vehicle, or is otherwise entitled to register the motor vehicle in the applicant's name, the secretary of state shall issue to the applicant an appropriate certificate of title under section 217. Before the secretary of state issues the certificate of title, the applicant shall attach to the application a statement showing the amount of use tax due upon the motor vehicle described in the application on a form prescribed by the state treasurer, together with the amount of the use tax due upon the motor vehicle, under the use tax act, 1937 PA 94, MCL 205.91 to 205.111. However, if the motor vehicle is exempt by law from the payment of use tax, no use tax shall be paid.

(b) The secretary of state shall transmit the statement and the funds collected under subdivision (a) covering the payment of the use tax to the state treasurer. The secretary of state shall not issue a certificate of title for a motor vehicle until the requirements of this section are satisfied. An owner of a motor vehicle purchased outside of this state who paid the use tax to the secretary of state under this section is not required to comply with sections 6, 7, and 8 of the use tax act, 1937 PA 94, MCL 205.96, 205.97, and 205.98.

(c) An owner of a motor vehicle purchased from a Michigan dealer in this state without application of sales tax due to an exemption under section 4a of the general sales tax act, 1933 PA 167, MCL 205.54a, who later by reason of storage or use is required to register the vehicle in this state shall pay a use tax at the time of registration, computed on the retail dollar value of a like vehicle, except when the motor vehicle is exempt from the use tax. The secretary of state shall use as his or her guide the retail dollar value from the current issue of any nationally recognized used vehicle guide for financial institution appraisal purposes in this state.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1962, Act 80, Imd. Eff. Apr. 24, 1962 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008

257.815 Application for registration or for transfer of license; statement of sales tax due; form; copies; exemption; certification; transmitting statement and sales tax funds to department of treasury; issuing or transferring title or license plates on motor vehicle sold by dealer; conditions; compensation for collection of sales tax.

Sec. 815.

(1) Each application for registration, or for a transfer of the license, of a motor vehicle, shall be accompanied by a statement showing the amount of the sales tax due upon the sale of the motor vehicle, on a form prescribed by the department of treasury, together with the amount of the sales tax due upon the sale under Act No. 167 of the Public Acts of 1933, as amended, being sections 205.51 to 205.78 of the Michigan Compiled Laws, and the statement shall be in triplicate, 1 copy to be retained by the dealer and 1 copy to be delivered to the purchaser, except if the sale of a motor vehicle is exempt by law from the payment of the sales tax, a tax

shall not be paid. However, if the sale of a motor vehicle is exempt by law from the payment of the sales tax, a certification, on a form as the secretary of state shall prescribe, shall accompany the application for registration, signed and certified by the purchaser stating that the motor vehicle is exempt by law from the payment of the sales tax by virtue of the fact that the sale was an isolated transaction, pursuant to Act No. 167 of the Public Acts of 1933, as amended.

(2) The secretary of state shall transmit the statement and the funds covering the payment of the sales tax to the department of treasury. The secretary of state shall not issue a title, license plates or transfer a title or license plates on a motor vehicle sold by a dealer until the requirements of this section regarding the payment of the sales tax have been complied with. A dealer of new or secondhand vehicles selling motor vehicles at retail paying the sales tax to the secretary of state pursuant to this section shall not be required to include the sale of the motor vehicles on the dealer's reports to the department of treasury nor pay the tax on the sale as required by Act No. 167 of the Public Acts of 1933, as amended.

(3) The department of treasury shall determine and pay to the secretary of state reasonable compensation for the collection of the sales tax pursuant to this section.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981

257.816 Acceptance of credit cards for payment of tax or fee.

Sec. 816.

The secretary of state may accept a credit card, in lieu of cash or check, as payment of a tax or fee required under this act. The secretary of state shall determine which major credit cards may be accepted for payment.

History: Add. 1986, Act 129, Imd. Eff. June 16, 1986

257.817 Liability.

Sec. 817.

A manufacturer of automated technology is immune from civil liability for damages that arise out of any modification made by another person to a motor vehicle or an automated motor vehicle, or to any automated technology, as provided in section 2949b of the revised judicature act of 1961, 1961 PA 236, MCL 600.2949b.

History: Add. 2013, Act 231, Eff. Mar. 27, 2014
Compiler's Notes: Former MCL 257.817, which pertained to effective date for fee, charge, or tax increase, was repealed by Act 152 of 2003, Eff. Oct. 1, 2003.

257.818 Repealed. 2003, Act 152, Eff. Oct. 1, 2003.

Compiler's Notes: The repealed section pertained to signs and lists of transaction costs and fees.

257.819 Disposition and use of revenues from increases in fees.

Sec. 819.

(1) Except as otherwise provided in this section, revenue from the increases in fees provided in 1987 PA 232 must be deposited in the transportation economic development fund

established in section 2 of 1987 PA 231, MCL 247.902, and must not be appropriated for any other purpose in any act making appropriations of state funds.

(2) For the fiscal year ending September 30, 1989, and each fiscal year thereafter, of the revenue from the increases in fees provided in 1987 PA 232, $2,500,000.00 must be deposited in the state treasury and credited to the general fund, except that not more than $1,000,000.00 must be credited to the gasoline inspection and testing fund established in section 8 of the motor fuels quality act, 1984 PA 44, MCL 290.648.

(3) Except as provided in subsection (2), for the fiscal year ending September 30, 2008, of the revenue from the increases in fees provided in 1987 PA 232, $13,000,000.00 must be deposited in the state treasury and credited to the general fund.

(4) Except as provided in subsection (2), for the fiscal year ending September 30, 2009, of prior and current revenues from the increases in fees provided in 1987 PA 232, $18,000,000.00 must be deposited in the state treasury and credited to the general fund and for the fiscal year ending September 30, 2010, $12,000,000.00 must be deposited in the state treasury and credited to the general fund.

(5) Except as provided in subsection (2), for the fiscal year ending September 30, 2017, of the revenue from the increases in fees provided in 1987 PA 232, $9,423,700.00 must be deposited in the state treasury and credited to the general fund.

(6) Except as provided in subsection (2), for the fiscal year ending September 30, 2020 only, of the revenue from the increases in fees provided in 1987 PA 232, $13,000,000.00 must be deposited in the state treasury and credited to the general fund.

(7) Except as provided in subsection (2), for the fiscal year ending September 30, 2021 only, of the revenue from the increases in fees provided in 1987 PA 232, $13,000,000.00 must be deposited in the state treasury and credited to the general fund.

History: Add. 1987, Act 232, Imd. Eff. Dec. 28, 1987 ;-- Am. 1990, Act 168, Imd. Eff. July 2, 1990 ;-- Am. 2008, Act 7, Imd. Eff. Feb. 15, 2008 ;-- Am. 2008, Act 346, Imd. Eff. Dec. 23, 2008 ;-- Am. 2009, Act 137, Imd. Eff. Nov. 4, 2009 ;-- Am. 2016, Act 280, Eff. Sept. 29, 2016 ;-- Am. 2020, Act 203, Imd. Eff. Oct. 15, 2020

257.819a Traffic law enforcement and safety fund; creation; investment, disposition, transfer, and expenditure of money.

Sec. 819a.

(1) The traffic law enforcement and safety fund is created within the state treasury.

(2) The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund.

(4) The director of the department of state police may transfer any amount in the fund to the trooper recruit school fund created under section 819b.

(5) Except as otherwise provided in subsection (4), the department of state police shall expend money from the fund, upon appropriation, only for 1 or more of the following purposes:

(a) To enhance enforcement of traffic laws.

(b) To enhance the ability to provide safety on the streets and highways of this state.

History: Add. 2003, Act 152, Eff. Oct. 1, 2003 ;-- Am. 2005, Act 179, Imd. Eff. Oct. 20, 2005

257.819b Trooper recruit school fund; creation; investment, disposition, and expenditure of money.

Sec. 819b.

(1) The trooper recruit school fund is created within the state treasury.

(2) The state treasurer may receive money or other assets from any source for deposit into the fund. The state treasurer shall direct the investment of the fund. The state treasurer shall credit to the fund interest and earnings from fund investments.

(3) Money in an amount of not more than $5,000,000.00 in the fund at the close of the fiscal year shall remain in the fund and shall not lapse to the general fund. Any amount greater than $5,000,000.00 at the close of the fiscal year shall be credited to the traffic law enforcement and safety fund created under section 819a.

(4) The department of state police shall expend money from the fund, upon appropriation, only for 1 or more of the following purposes:

(a) Conduct a trooper recruit school to recruit and train new troopers.

(b) Conduct retraining schools for new troopers during the trooper probationary period.

History: Add. 2003, Act 152, Eff. Oct. 1, 2003

257.820 Repealed. 2003, Act 152, Eff. Oct. 1, 2003.

Compiler's Notes: The repealed section pertained to applicability of fee increases.

257.821 Disposition and use of fees.

Sec. 821.

For the fiscal year ending September 30, 1990 and each fiscal year thereafter, $120,000.00 or 5% of the revenue from the road test fees, whichever is greater, shall be deposited in the transportation economic development fund from behind-the-wheel road test fees collected pursuant to section 309 in connection with the issuance of a vehicle group designation or indorsement. The balance of the revenue from these fees shall be deposited in the state treasury and credited to the general fund and shall be used to cover administrative costs of the department of state associated with new duties imposed with respect to commercial vehicles pursuant to Act No. 346 of the Public Acts of 1988.

History: Add. 1989, Act 280, Imd. Eff. Dec. 26, 1989

Chapter VIII
PENALTIES

257.901 Violation as misdemeanor; penalty; civil infraction.

Sec. 901.

(1) Except as otherwise provided in subsection (3), it is a misdemeanor for a person to violate this act, unless that violation is by this act or other law of this state declared to be a felony or a civil infraction.

(2) Unless another penalty is provided in this act or by the laws of this state, a person convicted of a misdemeanor for the violation of this act shall be punished by a fine of not more than $100.00, or by imprisonment for not more than 90 days, or both.

(3) Except as otherwise provided in this act, a violation of this act by the owner of a commercial quadricycle arising out of the ownership or operation of the commercial quadricycle is a civil infraction.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1969, Act 240, Eff. Mar. 20, 1970 ;-- Am. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015

257.901a Violation of MCL 257.311; waiver of fine and costs; certification.

Sec. 901a.

If a person has received a citation for a violation of section 311, the court shall waive any fine and costs, upon receipt of certification by a law enforcement agency that the person, before the appearance date on the citation, has produced his or her operator's or chauffeur's license and that the license was valid on the date the violation of section 311 occurred.

History: Add. 1982, Act 433, Eff. Mar. 30, 1983

257.902 Violation of act; felony, penalty.

Sec. 902.

Any person who is convicted of a violation of any of the provisions of this act declared to constitute a felony, unless a different penalty is expressly provided herein, shall be punished by imprisonment for not less than 1 year nor more than 5 years, or by a fine of not less than $500.00 nor more than $5,000.00, or by both such fine and imprisonment.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.903 False certification as felony; penalty.

Sec. 903.

(1) A person who makes a false certification to a matter or thing required by the terms of this act to be certified, including but not limited to an application for any type of driver license, dealer license, vehicle certificate of title, vehicle registration, vehicle inspection, self-insurance, personal information, or commercial driver training school, is guilty of a felony. A person who uses personal information for a purpose other than a permissible purpose identified in section 208c or 232 is guilty of a felony.

(2) A person who is convicted of a second violation of this section shall be punished by imprisonment for not less than 2 years or more than 7 years, or by a fine of not less than $1,500.00 or more than $7,000.00, or both.

(3) A person who is convicted of a third or subsequent violation of this section shall be punished by imprisonment for not less than 5 years or more than 15 years, or by a fine of not less than $5,000.00 or more than $15,000.00, or both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1980, Act 398, Eff. Mar. 31, 1981 ;-- Am. 1992, Act 309, Eff. Mar. 31, 1993 ;-- Am. 1997, Act 101, Imd. Eff. Aug. 7, 1997

257.904 Operating vehicle if license, registration certificate, or vehicle group designation suspended, revoked, or denied; penalty; extending period of suspension or revocation; enhanced sentence; furnishing record to court; applicability.

Sec. 904.

(1) An individual whose operator's or chauffeur's license or registration certificate has been suspended or revoked, whose application for license has been denied, or who has never applied for a license, shall not operate a motor vehicle on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of motor vehicles, within this state.

(2) A person shall not knowingly permit a motor vehicle owned by the person to be operated on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state by an individual whose license or registration certificate is suspended or revoked, whose application for license has been denied, or who has never applied for a license, except as permitted under this act.

(3) Except as otherwise provided in this section, a person that violates subsection (1) or (2) is guilty of a misdemeanor punishable as follows:

(a) For a first violation, by imprisonment for not more than 93 days or a fine of not more than $500.00, or both. Unless the vehicle was stolen or used with the permission of a person who did not knowingly permit an unlicensed driver to operate the vehicle, the registration plates of the vehicle must be canceled by the secretary of state on notification by a peace officer.

(b) For a violation that occurs after a prior conviction, by imprisonment for not more than 1 year or a fine of not more than $1,000.00, or both. Unless the vehicle was stolen, the registration plates of the vehicle shall be canceled by the secretary of state on notification by a peace officer.

(4) An individual who operates a motor vehicle in violation of subsection (1) or an individual whose operator's or chauffeur's license or registration certificate has been suspended or revoked by another state who operates a motor vehicle during the period of suspension or revocation and who, by operation of that motor vehicle, causes the death of another individual is guilty of a felony punishable by imprisonment for not more than 15 years or a fine of not less than $2,500.00 or more than $10,000.00, or both. This subsection does not apply to an individual whose operator's or chauffeur's license was suspended because that individual failed to answer a citation or comply with an order or judgment under section 321a.

(5) An individual who operates a motor vehicle in violation of subsection (1) or an individual whose operator's or chauffeur's license or registration certificate has been suspended or revoked by another state who operates a motor vehicle during the period of suspension or revocation and who, by operation of that motor vehicle, causes the serious impairment of a body function of another individual is guilty of a felony punishable by imprisonment for not more than 5 years or a fine of not less than $1,000.00 or more than $5,000.00, or both. This subsection does not apply to an individual whose operator's or chauffeur's license was suspended because that individual failed to answer a citation or comply with an order or judgment under section 321a.

(6) In addition to being subject to any other penalty provided for in this act, if an individual is convicted under subsection (4) or (5), the court may impose the sanction permitted under section 625n. If the vehicle is not ordered forfeited under section 625n, the court shall order vehicle immobilization under section 904d in the judgment of sentence.

(7) A person shall not knowingly permit a motor vehicle owned by the person to be operated on a highway or other place open to the general public or generally accessible to motor vehicles, including an area designated for the parking of vehicles, within this state, by an individual whose license or registration certificate is suspended or revoked, whose application for license has been denied, or who has never been licensed except as permitted by this act. If an individual permitted to operate a motor vehicle in violation of this subsection causes the serious impairment of a body function of another individual by operation of that motor vehicle, the person that knowingly permitted the operation of that motor vehicle is guilty of a felony punishable by imprisonment for not more than 2 years, or a fine of not less than $1,000.00 or more than $5,000.00, or both. If an individual permitted to operate a motor vehicle in violation of this subsection causes the death of another individual by operation of that motor vehicle, the person that knowingly permitted the operation of that motor vehicle is guilty of a felony punishable by imprisonment for not more than 5 years, or a fine of not less than $1,000.00 or more than $5,000.00, or both.

(8) If the prosecuting attorney intends to seek an enhanced sentence under this section because the defendant has 1 or more prior convictions, the prosecuting attorney shall include on the complaint and information, or an amended complaint and information, filed in district court, circuit court, municipal court, or family division of circuit court, a statement that lists the defendant's prior convictions.

(9) A prior conviction under this section must be established at or before sentencing by 1 or more of the following:

(a) A copy of a judgment of conviction.

(b) An abstract of conviction.

(c) A transcript of a prior trial, plea, or sentencing.

(d) A copy of a court register of action.

(e) A copy of the defendant's driving record.

(f) Information contained in a presentence report.

(g) An admission by the defendant.

(10) On receiving a record of an individual's conviction or civil infraction determination for the unlawful operation of a motor vehicle or a moving violation reportable under section 732 while the individual's operator's or chauffeur's license is suspended or revoked, the secretary of state immediately shall impose an additional like period of suspension or revocation. This subsection applies only if the violation occurs during a suspension of definite length or if the violation occurs before the individual is approved for a license following a revocation.

(11) On receiving a record of an individual's conviction or civil infraction determination for the unlawful operation of a motor vehicle or a moving violation reportable under section 732 while the individual's operator's or chauffeur's license is indefinitely suspended or whose application for a license has been denied, the secretary of state immediately shall impose a 30-day period of suspension or denial.

(12) On receiving a record of the conviction, bond forfeiture, or a civil infraction determination of an individual for unlawful operation of a motor vehicle that requires a vehicle group designation while the designation is suspended or revoked under section 319b, or while the individual is disqualified from operating a commercial motor vehicle by the United States Secretary of Transportation or under 49 USC 31301 to 31317, the secretary of state immediately shall impose an additional like period of suspension or revocation. This subsection applies only if the violation occurs during a suspension of definite length or if the violation occurs before the individual is approved for a license following a revocation.

(13) If the secretary of state receives records of more than 1 conviction or civil infraction determination that results from the same incident, all of the convictions or civil infraction determinations must be treated as a single violation for purposes of imposing an additional period of suspension or revocation under subsection (10), (11), or (12).

(14) Before an individual is arraigned before a district court magistrate or judge on a charge of violating this section, the arresting officer shall obtain the individual's driving record from the secretary of state and shall furnish the record to the court. The driving record of the individual may be obtained from the secretary of state's computer information network.

(15) This section does not apply to an individual who operates a vehicle solely for the purpose of protecting human life or property if the life or property is endangered and summoning prompt aid is essential.

(16) An individual whose vehicle group designation is suspended or revoked and who has been notified as provided in section 212 of that suspension or revocation, or whose application for a vehicle group designation has been denied as provided in this act, or who has never applied for a vehicle group designation and who operates a commercial motor vehicle within this state, except as permitted under this act, while any of those conditions exist is guilty of a misdemeanor punishable, except as otherwise provided in this section, by imprisonment for not more than 93 days or a fine of not more than $100.00, or both.

(17) If an individual has a second or subsequent suspension or revocation under this section within 7 years as indicated on the individual's Michigan driving record, the court shall proceed as provided in section 904d.

(18) Any period of suspension or revocation required under subsection (10), (11), or (12) does not apply to an individual who has only 1 currently effective suspension or denial on the individual's Michigan driving record under section 321a and was convicted of or received a civil infraction determination for a violation that occurred during that suspension or denial. This subsection may only be applied once during the individual's lifetime.

(19) For purposes of this section, an individual who never applied for a license includes an individual who applied for a license, was denied, and never applied again.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 1967, Act 61, Eff. Nov. 2, 1967 ;-- Am. 1978, Act 380, Imd. Eff. July 27, 1978 ;-- Am. 1979, Act 66, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 174, Imd. Eff. June 23, 1980 ;-- Am. 1982, Act 310, Eff. Mar. 30, 1983 ;-- Am. 1988, Act 346, Imd. Eff. Oct. 25, 1988 ;-- Am. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1991, Act 100, Eff. Jan. 1, 1993 ;-- Am. 1994, Act 450, Eff. May 1, 1995 ;-- Am. 1998, Act 341, Eff. Oct. 1, 1999 ;-- 1998, Act 342, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999 ;-- Am. 2000, Act 77, Eff. Oct. 1, 2000 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2004, Act 362, Imd. Eff. Oct. 4, 2004 ;-- Am. 2008, Act 461, Eff. Oct. 31, 2010 ;-- Am. 2015, Act 11, Eff. July 8, 2015 ;-- Am. 2018, Act 50, Eff. Mar. 31, 2018 ;-- Am. 2018, Act 212, Eff. Sept. 24, 2018 ;-- Am. 2020, Act 383, Eff. Mar. 24, 2021 ;-- Am. 2024, Act 113, Eff. Apr. 2, 2025

Compiler's Notes: Section 2 of Act 310 of 1982 provides: “All proceedings pending and all rights and liabilities existing, acquired, or incurred at the time this amendatory act takes effect are saved and may be consummated according to the law in force when they are commenced. This amendatory act shall not be construed to affect any prosecution pending or initiated before the effective date of this amendatory act, or initiated after the effective date of this amendatory act for an offense committed before that effective date.”Section 2 of Act 346 of 1988 provides:“(1) Except as otherwise provided in this section, this amendatory act shall take effect October 1, 1989.“(2) Sections 634, 710g, 722, 723, 724, 802, and 907 of this amendatory act shall take effect January 1, 1989.“(3) Sections 4B and 801 of this amendatory act shall take effect upon the date of enactment of this amendatory act.”Section 2 of Act 173 of 1989 provides:“(1) The amendments made to sections 8b, 57, 67a, 301, 303, 305, 306, 307, 309, 310, 312d, 312e, 312f, 312g,

312h, 314, 314b, 319a, 321a, 323, 728, 732, 743, and 907 of Act No. 300 of the Public Acts of 1949, being sections 257.8b, 257.57, 257.67a, 257.301, 257.303, 257.305, 257.306, 257.307, 257.309, 257.310, 257.312d, 257.312e, 257.312f, 257.312g, 257.312h, 257.314, 257.314b, 257.319a, 257.321a, 257.323, 257.728, 257.732, 257.743, and 257.907 of the Michigan Compiled Laws, by Act No. 346 of the Public Acts of 1988 shall take effect January 1, 1990."(2) Enacting section 2 of Act No. 346 of the Public Acts of 1988 is repealed."

257.904a Operation of motor vehicle by unlicensed person as misdemeanor; penalty; second offense.

Sec. 904a.

Any person, not exempt from license under this act, who operates a motor vehicle on the highways of this state and who is unable to show that he or she has been issued a license to operate a motor vehicle by any state or foreign country valid within the last 3 years before operating the vehicle, is guilty of a misdemeanor punishable by imprisonment for not more than 90 days, or a fine of not less than $50.00 or more than $100.00, or both. Any person convicted of a second offense under this section is guilty of a misdemeanor punishable by imprisonment for not more than 90 days, or a fine of $100.00, or both.

History: Add. 1965, Act 264, Eff. Mar. 31, 1966 ;-- Am. 1985, Act 53, Imd. Eff. June 14, 1985 ;-- Am. 2020, Act 383, Eff. Mar. 24, 2021

257.904b Order of impoundment.

Sec. 904b.

(1) When a person is convicted of an offense punishable under section 904(1)(b) or (c) or a local ordinance substantially corresponding to section 904(1)(b) or (c) for operating a motor vehicle while his or her license to operate a motor vehicle is suspended, revoked, or denied, the court shall order the motor vehicle, if it is owned in whole or in part or leased by that person, impounded for not less than a period the court orders but not more than 120 days from the date of judgment.

(2) When a person is convicted of an offense punishable under section 904(1)(a) or a local ordinance substantially corresponding to section 904(1)(a) for operating a motor vehicle while his or her license to operate a motor vehicle is suspended, revoked, or denied, the court may order the motor vehicle, if it is owned in whole or in part or leased by that person, impounded for not more than 120 days from the date of judgment.

(3) An order for the impounding of a motor vehicle issued pursuant to this section is valid throughout the state. Any peace officer may execute the impoundment order. The order shall include the implied consent of the owner of the vehicle to the storage for insurance coverage purposes.

(4) The owner of a motor vehicle impounded pursuant to this section is liable for expenses incurred in the removal and storage of the vehicle whether or not the vehicle is returned to him or her. The vehicle shall be returned to the owner only if the owner pays the expenses for removal and storage. If redemption is not made or the vehicle is not returned as provided in this section within 30 days after the time set in the impoundment order for return of the vehicle, the vehicle shall be considered an abandoned vehicle and disposed of as provided in section 252a.

(5) This section does not affect the rights of a conditional vendor, chattel mortgagee, or lessor of a motor vehicle registered in the name of another person as owner who becomes subject to this act.

History: Add. 1968, Act 197, Eff. Nov. 15, 1968 ;-- Am. 1969, Act 83, Eff. Mar. 20, 1970 ;-- Am. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1993, Act 319, Eff. Apr. 1, 1994

257.904c Vehicle immobilization required; duties of peace officer; validity of temporary vehicle registration; duration.

Sec. 904c.

(1) When a peace officer detains the driver of a motor vehicle for a violation of a law of this state or local ordinance for which vehicle immobilization is required, the peace officer shall do all of the following:

(a) Immediately confiscate the vehicle's registration plate and destroy it.

(b) Issue a temporary vehicle registration plate for the vehicle in the same form prescribed by the secretary of state for temporary registration plates issued under section 226a or 226b.

(c) Place the temporary vehicle registration plate on the vehicle in the manner required by the secretary of state.

(d) Notify the secretary of state through the law enforcement information network in a form prescribed by the secretary of state that the registration plate was confiscated and destroyed, and a temporary plate was issued.

(2) A temporary vehicle registration plate issued under this section is valid until the charges against the person are dismissed, the person pleads guilty or nolo contendere to those charges, or the person is found guilty of or is acquitted of those charges.

History: Add. 1998, Act 359, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999

257.904d Vehicle immobilization; order; "vehicle immobilization" and "prior conviction" defined.

Sec. 904d.

(1) Vehicle immobilization applies as follows:

(a) For a conviction under section 625(1), (3), (7), or (8) or a local ordinance substantially corresponding to section 625(1) or (3) with no prior convictions, or, beginning October 31, 2010, for a conviction under section 626(3) or (4), the court may order vehicle immobilization for not more than 180 days.

(b) For a conviction under section 625(4) or (5) with no prior convictions, the court shall order vehicle immobilization for not more than 180 days.

(c) For a conviction under section 625(1), (3), (4), (5), (7), or (8) within 7 years after a prior conviction, or, beginning October 31, 2010, for a conviction under section 625l(2), the court shall order vehicle immobilization for not less than 90 days or more than 180 days.

(d) Before October 31, 2010, for a conviction under section 625(1), (3), (4), (5), (7), or (8) after 2 or more prior convictions within 10 years, or, beginning October 31, 2010, for a conviction under section 625(1), (3), (4), (5), (7), or (8) after 2 or more prior convictions, the court shall order vehicle immobilization for not less than 1 year or more than 3 years.

(2) For a conviction or civil infraction determination resulting from a violation that occurred during a period of suspension, revocation, or denial, the following apply:

(a) Except as provided in subdivision (b), for 1 prior suspension, revocation, or denial under section 904(10), (11), or (12) or former section 904(2) or (4) within the past 7 years, the court may order vehicle immobilization for not more than 180 days.

(b) Except as provided in subdivisions (c) and (d), if the person is convicted under section 904(4) or (5), the court shall order vehicle immobilization for not more than 180 days.

(c) For any combination of 2 or 3 prior suspensions, revocations, or denials under section 904(10), (11), or (12) or former section 904(2) or (4) within the past 7 years, the court shall order vehicle immobilization for not less than 90 days or more than 180 days.

(d) For any combination of 4 or more prior suspensions, revocations, or denials under section 904(10), (11), or (12) or former section 904(2) or (4) within the past 7 years, the court shall order vehicle immobilization for not less than 1 year or more than 3 years.

(3) The defendant shall provide to the court the vehicle identification number and registration plate number of the vehicle involved in the violation.

(4) The court may order vehicle immobilization under this section under either of the following circumstances:

(a) The defendant is the owner, co-owner, lessee, or co-lessee of the vehicle operated during the violation.

(b) The owner, co-owner, lessee, or co-lessee knowingly permitted the vehicle to be operated in violation of section 625(2) or section 904(2) regardless of whether a conviction resulted.

(5) Except as otherwise provided in subsections (11) and (13), an order required to be issued under this section shall not be suspended.

(6) If a defendant is ordered imprisoned for the violation for which immobilization is ordered, the period of immobilization shall begin at the end of the period of imprisonment.

(7) This section does not apply to any of the following:

(a) A suspension, revocation, or denial based on a violation of the support and parenting time enforcement act, 1982 PA 295, MCL 552.601 to 552.650.

(b) A vehicle that is registered in another state or that is a rental vehicle.

(c) A vehicle owned by the federal government, this state, or a local unit of government of this state.

(d) A vehicle not subject to registration under section 216.

(e) Any of the following:

(i) A violation of chapter II.

(ii) A violation of chapter V.

(iii) A violation for failure to change address.

(iv) A parking violation.

(v) A bad check violation.

(vi) An equipment violation.

(vii) A pedestrian, passenger, or bicycle violation, other than a violation of section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or a local ordinance substantially corresponding to section 703(1) or (2) of the Michigan liquor control code of 1998, 1998 PA 58, MCL 436.1703, or section 624a or 624b or a local ordinance substantially corresponding to section 624a or 624b.

(viii) A violation of a local ordinance substantially corresponding to a violation described in subparagraphs (i) to (vii).

(8) As used in this section:

(a) Subject to subsections (9) and (10), "prior conviction" means a conviction for any of the following, whether under a law of this state, a local ordinance substantially corresponding to a law of this state, or a law of another state substantially corresponding to a law of this state:

(i) Except as otherwise provided in subsection (10), a violation or attempted violation of any of the following:

(A) Section 625, except a violation of section 625(2), or a violation of any prior enactment of section 625 in which the defendant operated a vehicle while under the influence of intoxicating or alcoholic liquor or a controlled substance, or a combination of intoxicating or alcoholic liquor and a controlled substance, or while visibly impaired, or with an unlawful bodily alcohol content.

(B) Section 625m.

(C) Former section 625b.

(ii) Negligent homicide, manslaughter, or murder resulting from the operation of a vehicle or an attempt to commit any of those crimes.

(iii) Beginning October 31, 2010, a violation of section 601d or section 626(3) or (4).

(b) "Vehicle immobilization" means requiring the motor vehicle involved in the violation immobilized in a manner provided in section 904e.

(9) If 2 or more convictions described in subsection (8)(a) are convictions for violations arising out of the same incident, only 1 conviction shall be used to determine whether the person has a prior conviction.

(10) Only 1 violation or attempted violation of section 625(6), a local ordinance substantially corresponding to section 625(6), or a law of another state substantially corresponding to section 625(6) may be used as a prior conviction.

(11) Beginning October 31, 2010, if the person obtains a restricted operator's or chauffeur's license from the secretary of state and an ignition interlock device is properly installed in the vehicle, the court shall suspend the immobilization order issued under subsection (1)(c) for a conviction under section 625l(2).

(12) Beginning October 31, 2010, the court may reinstate vehicle immobilization issued under subsection (1)(c) for a conviction under section 625l(2) if an ignition interlock device is tampered with, circumvented, or disabled, or if the person's restricted operator's or chauffeur's license is suspended or revoked.

(13) Vehicle immobilization under this section is subject to section 304 if the defendant obtains a restricted license under section 304.

History: Add. 1998, Act 358, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 51, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 267, Imd. Eff. Dec. 29, 1999 ;-- Am. 2000, Act 460, Eff. Mar. 28, 2001 ;-- Am. 2001, Act 159, Imd. Eff. Nov. 6, 2001 ;-- Am. 2003, Act 61, Eff. Sept. 30, 2003 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 155, Eff. Jan. 1, 2011

257.904e Vehicle immobilization; manner; storage; removal; impoundment.

Sec. 904e.

(1) A court shall order a vehicle immobilized under section 904d by the use of any available technology approved by the court that locks the ignition, wheels, or steering of the vehicle or otherwise prevents any person from operating the vehicle or that prevents the defendant from operating the vehicle. If a vehicle is immobilized under this section, the court may order the vehicle stored at a location and in a manner considered appropriate by the court. The court may order the person convicted of violating section 625 or a suspension, revocation, or denial under section 904 to pay the cost of immobilizing and storing the vehicle.

(2) A vehicle subject to immobilization under this section may be sold during the period of immobilization, but shall not be sold to a person who is exempt from paying a use tax under section 3(3)(a) of the use tax act, 1937 PA 94, MCL 205.93, without a court order.

(3) A defendant who is prohibited from operating a motor vehicle by vehicle immobilization shall not purchase, lease, or otherwise obtain a motor vehicle during the immobilization period.

(4) A person shall not remove, tamper with, or bypass or attempt to remove, tamper with, or bypass a device that he or she knows or has reason to know has been installed on a vehicle by court order for vehicle immobilization or operate or attempt to operate a vehicle that he or she knows or has reason to know has been ordered immobilized.

(5) A person who violates this section is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than $100.00, or both.

(6) To the extent that a local ordinance regarding the storage or removal of vehicles conflicts with an order of immobilization issued by the court, the local ordinance is preempted.

(7) If a peace officer stops a vehicle that is being operated in violation of an immobilization order, the vehicle shall be impounded pending an order of a court of competent jurisdiction.

(8) The court shall require the defendant or a person who provides immobilization services to the court under this section to certify that a vehicle ordered immobilized by the court is immobilized as required.

History: Add. 1998, Act 358, Eff. Oct. 1, 1999 ;-- Am. 1999, Act 73, Eff. Oct. 1, 1999

257.904f Vehicle registration records; disclosure.

Sec. 904f.

The vehicle registration records of the secretary of state shall disclose which vehicles are assigned a temporary registration plate under section 904c or are immobilized under this act.

History: Add. 1998, Act 358, Eff. Oct. 1, 1999

257.905 Violation of financial responsibility chapter; penalty.

Sec. 905.

(1) Any person who forges or, without authority, signs any evidence of ability to respond in damages as required by the secretary of state under chapter 5, and any person who violates any provisions of chapter 5 for which no penalty is otherwise provided, is guilty of a misdemeanor punishable by a fine of not less than $100.00 or more than $1,000.00, or imprisonment for not more than 90 days, or both.

(2) Any person whose operator's or chauffeur's license or registration card or other privilege to operate a motor vehicle has been suspended or revoked and restoration or issuance of a new license or registration is contingent on the furnishing of proof of financial responsibility, and who during the suspension or revocation or in the absence of full authorization from the secretary of state drives any motor vehicle on any highway, or knowingly permits any motor vehicle owned by the person to be operated by another person on any highway except as permitted under this act, is guilty of a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for not more than 1 year, or both.

History: 1949, Act 300, Eff. Sept. 23, 1949 ;-- Am. 1951, Act 270, Eff. Sept. 28, 1951 ;-- Am. 2020, Act 383, Eff. Mar. 24, 2021

Compiler's Notes: Sections 2 and 4 of Act 510 of 1978 provide as follows:"Section 2. Sections 727a and 905 of Act No. 300 of the Public Acts of 1949, being sections 257.727a and 257.905 of the Compiled Laws of 1970, are repealed."Section 4. This amendatory act shall not take effect until August 1, 1979."Sections 2 and 4 of Act 66 of 1979 provide as follows:"Section 2. Section 2 of Act No. 510 of the Public Acts of 1978 is repealed."Section 4. Except for section 2 of this act, this act shall take effect August 1, 1979."Act 66 of 1979 was ordered to take immediate effect on July 25, 1979.

257.905[1] Repealed. 2020, Act 383, Eff. Mar. 24, 2021.

Compiler's Notes: Section 905, as added by Act 518 of 1980, was compiled as MCL 257.905[1] to distinguish it from another section 905, deriving from Act 300 of 1949 and pertaining to motor vehicle financial responsibility.The repealed section pertained to prohibited acts and penalties.

257.906 Right of police officer to enter upon private road.

Sec. 906.

Notwithstanding any other provision of law, a police officer may enter upon such a private road to enforce violations of this act.

History: Add. 1974, Act 138, Imd. Eff. June 5, 1974

257.907 Civil infraction; payment of civil fine and costs; certification of repair of defective equipment; collection of civil fines or costs; waiver of fine, cost, and assessment; civil infraction arising out of ownership or operation of commercial quadricycle; "moving violation" defined.

Sec. 907.

(1) A violation of this act, or a local ordinance that substantially corresponds to a provision of this act, that is designated a civil infraction must not be considered a lesser included offense of a criminal offense.

(2) Permission may be granted for payment of a civil fine and costs to be made within a specified period of time or in specified installments but, unless permission is included in the order or judgment, the civil fine and costs must be payable immediately. Except as otherwise provided, a person found responsible or responsible "with explanation" for a civil infraction must pay costs as provided in subsection (4) and 1 or more of the following civil fines, as applicable:

(a) Except as otherwise provided, for a civil infraction under this act or a local ordinance that substantially corresponds to a provision of this act, the person must be ordered to pay a civil fine of not more than $100.00.

(b) If the civil infraction was a moving violation that resulted in an at-fault collision with another vehicle, an individual, or any other object, the civil fine ordered under this section is increased by $25.00 but the total civil fine must not be more than $100.00.

(c) For a violation of section 240, the civil fine ordered under this section is $15.00.

(d) For a violation of section 312a(4)(a), the civil fine ordered under this section must not be more than $250.00.

(e) For a first violation of section 319f(1), the civil fine ordered under this section must not be less than $2,500.00 or more than $2,750.00; for a second or subsequent violation, the civil fine must not be less than $5,000.00 or more than $5,500.00.

(f) For a violation of section 319g(1)(a), the civil fine ordered under this section must not be more than $10,000.00.

(g) For a violation of section 319g(1)(g), the civil fine ordered under this section must not be less than $2,750.00 or more than $25,000.00.

(h) For a violation of section 602b, the civil fine ordered under this section must be as follows:

(i) For a violation of section 602b(1), either of the following:

(A) If the violation does not involve an accident, $100.00 for a first offense and $250.00 for a second or subsequent offense.

(B) If the violation involves an accident, $200.00 for a first offense and $500.00 for a second or subsequent offense.

(ii) For a violation of section 602b(2), either of the following:

(A) If the violation does not involve an accident, $200.00 for a first offense and $500.00 for a second or subsequent offense.

(B) If the violation involves an accident, $400.00 for a first offense and $1,000.00 for a second or subsequent offense.

(i) For a violation of section 627c, the civil fine ordered under this section must not be more than $150.00 for a second violation as described in section 627c(2)(b) and $300.00 for a third or subsequent violation described in section 627c(2)(c).

(j) For a violation of section 674(1)(s) or a local ordinance that substantially corresponds to section 674(1)(s), the civil fine ordered under this section must not be less than $100.00 or more than $250.00.

(k) For a violation of section 676a(3), the civil fine ordered under this section must not be more than $10.00.

(l) For a violation of section 676c, the civil fine ordered under this section is $1,000.00.

(m) For a violation of section 682 or a local ordinance that substantially corresponds to section 682, the civil fine ordered under this section must not be less than $100.00 or more than $500.00.

(n) For a violation of section 710d, the civil fine ordered under this section must not be more than $10.00, subject to subsection (11).

(o) For a violation of section 710e, the civil fine and court costs ordered under this subsection must be $25.00.

(3) Except as otherwise provided in this section, if an individual is determined to be responsible or responsible "with explanation" for a civil infraction under this act or a local ordinance that substantially corresponds to a provision of this act while driving a commercial motor vehicle, the individual must be ordered to pay costs as provided in subsection (4) and a civil fine of not more than $250.00.

(4) If a civil fine is ordered under subsection (2) or (3), the judge or district court magistrate shall summarily tax and determine the costs of the action, which are not limited to the costs taxable in ordinary civil actions, and may include all expenses, direct and indirect, to which the plaintiff has been put in connection with the civil infraction, up to the entry of judgment. Costs must not be ordered in excess of $100.00. A civil fine ordered under subsection (2) or (3) must not be waived unless costs ordered under this subsection are waived. Except as otherwise provided by law, costs are payable to the general fund of the plaintiff.

(5) In addition to a civil fine and costs ordered under subsection (2) or (3) and subsection (4) and the justice system assessment ordered under subsection (12), the judge or district court magistrate may order the individual to attend and complete a program of treatment, education, or rehabilitation.

(6) A district court magistrate shall impose the sanctions permitted under subsections (2), (3), and (5) only to the extent expressly authorized by the chief judge or only judge of the district court district.

(7) Each district of the district court and each municipal court may establish a schedule of civil fines, costs, and assessments to be imposed for civil infractions that occur within the respective district or city. If a schedule is established, it must be prominently posted and readily available for public inspection. A schedule need not include all violations that are designated by law or ordinance as civil infractions. A schedule may exclude cases on the basis of a defendant's prior record of civil infractions or traffic offenses, or a combination of civil infractions and traffic offenses.

(8) The state court administrator shall annually publish and distribute to each district and court a recommended range of civil fines and costs for first-time civil infractions. This recommendation is not binding on the courts that have jurisdiction over civil infractions but is intended to act as a normative guide for judges and district court magistrates and a basis for public evaluation of disparities in the imposition of civil fines and costs throughout this state.

(9) If a person has received a civil infraction citation for defective safety equipment on a vehicle under section 683, the court shall waive a civil fine, costs, and assessments on receipt of certification by a law enforcement agency that repair of the defective equipment was made before the appearance date on the citation.

(10) A default in the payment of a civil fine or costs ordered under subsection (2), (3), or (4) or a justice system assessment ordered under subsection (12), or an installment of the fine, costs, or assessment, may be collected by a means authorized for the enforcement of a judgment under chapter 40 of the revised judicature act of 1961, 1961 PA 236, MCL 600.4001 to 600.4065, or under chapter 60 of the revised judicature act of 1961, 1961 PA 236, MCL 600.6001 to 600.6098.

(11) Before the effective date of 2024 PA 22, the court may waive any civil fine, cost, or assessment against an individual who received a civil infraction citation for a violation of section 710d if the individual, before the appearance date on the citation, supplies the court with evidence of acquisition, purchase, or rental of a child seating system meeting the requirements of section 710d. Beginning on the effective date of 2024 PA 22, the court may waive any civil fine, cost, or assessment against an individual who received a civil infraction citation for a violation of section 710d if the individual, before the appearance date on the citation, supplies the court with evidence of acquisition of a child seating system that meets the requirements of section 710d and evidence that the individual has received education from a certified child passenger safety technician.

(12) In addition to any civil fines or costs ordered to be paid under this section, the judge or district court magistrate shall order the defendant to pay a justice system assessment of $40.00 for each civil infraction determination, except for a parking violation or a violation for which the total fine and costs imposed are $10.00 or less. On payment of the assessment, the clerk of the court shall transmit the assessment collected to the state treasury to be deposited into the justice system fund created in section 181 of the revised judicature act of 1961, 1961 PA 236, MCL 600.181. An assessment levied under this subsection is not a civil fine for purposes of section 909.

(13) If a person has received a citation for a violation of section 223, the court shall waive any civil fine, costs, and assessment on receipt of certification by a law enforcement agency that the person, before the appearance date on the citation, produced a valid registration certificate that was valid on the date the violation of section 223 occurred.

(14) If a person has received a citation for a violation of section 328(1) for failing to produce a certificate of insurance under section 328(2), the court may waive the fee described in section 328(3)(c) and shall waive any fine, costs, and any other fee or assessment otherwise authorized under this act on receipt of verification by the court that the person, before the appearance date on the citation, produced valid proof of insurance that was in effect when the violation of section 328(1) occurred. Insurance obtained after the violation occurred does not make the person eligible for a waiver under this subsection.

(15) If a person is determined to be responsible or responsible "with explanation" for a civil infraction under this act or a local ordinance that substantially corresponds to a provision of this act and the civil infraction arises out of the ownership or operation of a commercial quadricycle, the person must be ordered to pay costs as provided in subsection (4) and a civil fine of not more than $500.00.

(16) As used in this section, "moving violation" means an act or omission prohibited under this act or a local ordinance that substantially corresponds to this act that involves the operation of a motor vehicle and for which a fine may be assessed.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 1980, Act 459, Imd. Eff. Jan. 15, 1981 ;-- Am. 1981, Act 117, Eff. Mar. 31, 1982 ;-- Am. 1982, Act 51, Eff. Mar. 30, 1983 ;-- Am. 1982, Act 301, Imd. Eff. Oct. 12, 1982 ;-- Am. 1984, Act 30, Eff. Apr. 28, 1984 ;-- Am. 1984, Act 364, Eff. Mar. 29, 1985 ;-- Am. 1985, Act 1, Eff. July 1, 1985 ;-- Am. 1988, Act 346, Eff. Jan. 1, 1990 ;-- Am. 1989, Act 89, Eff. Sept. 19, 1989 ;-- Am. 1995, Act 287, Imd. Eff. Jan. 9, 1996 ;-- Am. 1998, Act 103, Eff. Aug. 15, 1998 ;-- Am. 2001, Act 214, Imd. Eff. Dec. 27, 2001 ;-- Am. 2002, Act 534, Eff. Oct. 1, 2002 ;-- Am. 2003, Act 34, Eff. Oct. 1, 2003 ;-- Am. 2003, Act 73, Eff. Oct. 1, 2003 ;-- Am. 2004, Act 52, Eff. May 1, 2004 ;-- Am. 2004, Act 62, Eff. May 3, 2004 ;-- Am. 2004, Act 493, Eff. Oct. 1, 2005 ;-- Am. 2005, Act 1, Imd. Eff. Mar. 24, 2005 ;-- Am. 2006, Act 298, Imd. Eff. July 20, 2006 ;-- Am. 2008, Act 463, Eff. Oct. 31, 2010 ;-- Am. 2010, Act 59, Eff. July 1, 2010 ;-- Am. 2011, Act 159, Imd. Eff. Sept. 30, 2011 ;-- Am. 2013, Act 35, Eff. Aug. 20, 2013 ;-- Am. 2014, Act 303, Eff. Jan. 7, 2015 ;-- Am. 2015, Act 126, Imd. Eff. July 15, 2015 ;-- Am. 2020, Act 382, Eff. Oct. 1, 2021 ;-- Am. 2023, Act 40, Eff. June 30, 2023 ;-- Am. 2024, Act 22, Eff. Apr. 2, 2025 ;-- Am. 2024, Act 164, Eff. Apr. 2, 2025

257.907a Work zone safety fund.

Sec. 907a.

(1) The work zone safety fund is created in the state treasury.

(2) The state treasurer shall deposit money and other assets received from any other source in the fund. The state treasurer shall direct the investment of money in the fund and credit interest and earnings from the investments to the fund.

(3) The state transportation department is the administrator of the fund for audits of the fund.

(4) Subject to subsection (5), the state transportation department shall expend money from the fund, on appropriation, only for any of the following expenses:

(a) Paying the third-party vendor contracted under section 627c(1) to install and use an automated speed detection system.

(b) Administering the fund.

(c) Paying the cost of mailing written warnings and citations in enforcing section 627c.

(5) At the end of each fiscal year, after paying the expenses described in subsection (4), any money remaining in the fund shall be applied to the support of public libraries and county law libraries under section 909(1).

(6) As used in this section, "fund" means the work zone safety fund created in subsection (1).

History: Add. 2024, Act 164, Eff. Apr. 2, 2025

257.908 Default as civil contempt; penalty.

Sec. 908.

(1) If a defendant defaults in the payment of a civil fine, costs, or both, or of any installment, as ordered pursuant to section 907(2), the court, upon the motion of the plaintiff or upon its own motion, may require the defendant to show cause why the default should not be treated as in civil contempt and may issue a summons or order to show cause or a bench warrant of arrest for the defendant's appearance.

(2) When a corporation or an association is ordered to pay a civil fine or costs, the persons authorized to make disbursement shall pay the fine or costs, and their failure to do so shall be civil contempt unless they make the showing required in this section.

(3) Unless the defendant shows that the default was not attributable to an intentional refusal to obey the order of the court or to a failure on his or her part to make a good faith effort to obtain the funds required for payment, the court shall find that the default constitutes a civil contempt and may order the defendant committed until the civil fine, costs, or both, or a specified part thereof, is paid.

(4) If it appears that the default in the payment of a civil fine or costs does not constitute civil contempt, the court may enter an order allowing the defendant additional time for payment, reducing the amount of payment or of each installment, or revoking the fine or costs or the unpaid portion thereof in whole or in part.

(5) The term of imprisonment on civil contempt for nonpayment of a civil fine or costs shall be specified in the order of commitment, and shall not exceed 1 day for each $10.00 of the fine and costs. A person committed for nonpayment of a civil fine or costs shall be given credit toward payment for each day of imprisonment and each day of detention in default of recognizance before judgment at the rate of $10.00 per day.

(6) A defendant committed to imprisonment for civil contempt for nonpayment of a civil fine or costs shall not be discharged from custody until 1 of the following occurs:

(a) The defendant has been credited with the amount due pursuant to subsection (5).

(b) The amount due has actually been collected through execution of process or otherwise.

(c) The amount due has been satisfied pursuant to a combination of subdivisions (a) and (b).

(7) The civil contempt shall be purged upon discharge of the defendant pursuant to subsection (6).

History: Add. 1978, Act 510, Eff. Aug. 1, 1979

257.909 Application and allocation of civil fines to public and county law libraries; allocation of civil fines under MCL 257.682 to school districts; allocation of civil fines under 257.907 to work zone safety fund.

Sec. 909.

(1) Except as provided in subsections (2), (3), and (6), a civil fine that is ordered under section 907 for a violation of this act or other state statute must be exclusively applied to the support of public libraries and county law libraries in the same manner as is provided by law for penal fines assessed and collected for violation of a penal law of this state. Except as provided in subsection (4), a civil fine ordered for a violation of a code or ordinance of a local authority regulating the operation of commercial motor vehicles and substantially corresponding to a provision of this act must be paid to the county treasurer and must be allocated as follows:

(a) Seventy percent to the local authority in which the citation is issued.

(b) Thirty percent for library purposes as provided by law.

(2) Subsection (1) is intended to maintain a source of revenue for public libraries that previously received penal fines for misdemeanor violations of this act that are now civil infractions.

(3) A civil fine ordered for a violation of section 682 that is a camera-based violation as defined in section 682 must be paid to the county treasurer or the county treasurer's designee and be distributed by the county treasurer or the county treasurer's designee to the school district that operates the school bus and be used for school transportation safety-related purposes as provided in section 682.

(4) A civil fine ordered for a violation of a code or ordinance of a local authority that substantially corresponds to section 682 that is a camera-based violation as defined in section 682 must be paid to the county treasurer or the county treasurer's designee and be distributed by the county treasurer or the county treasurer's designee to the school district that operates the school bus and be used for school transportation safety-related purposes as provided in section 682.

(5) A county treasurer may enter into a contract with and designate a private vendor to process a civil fine described in subsection (3) or (4). A private vendor described in this subsection may be a private vendor contracted by a school district to install, operate, and provide support to a stop-arm camera system on a school bus under section 20 of the pupil transportation act, 1990 PA 187, MCL 257.1820.

(6) A civil fine that is ordered under section 907 for a violation of section 627c must be paid to the state transportation department. The state transportation department shall deposit any civil fines described in this subsection into the work zone safety fund created in section 907a.

History: Add. 1978, Act 510, Eff. Aug. 1, 1979 ;-- Am. 2000, Act 94, Imd. Eff. May 15, 2000 ;-- Am. 2024, Act 161, Eff. Apr. 2, 2025 ;-- Am. 2024, Act 164, Eff. Apr. 2, 2025

257.910 Conviction based on plea of nolo contendere; treatment.

Sec. 910.

A conviction based on a plea of nolo contendere shall be treated in the same manner as a conviction based on a plea of guilty.

History: Add. 1991, Act 98, Eff. Jan. 1, 1992 ;-- Am. 1994, Act 450, Eff. May 1, 1995

Chapter IX
MISCELLANEOUS

257.921 Repeal.

Sec. 921.

Act No. 302 of the Public Acts of 1915, as amended, being sections 256.1 to 256.38, inclusive, of the Compiled Laws of 1948; Act No. 46 of the Public Acts of 1921, as amended, being sections 256.101 to 256.119, inclusive, of the Compiled Laws of 1948; Act No. 91 of the Public Acts of 1931, as amended, being sections 256.201 to 256.234, inclusive, of the Compiled Laws of 1948; Act No. 203 of the Public Acts of 1933, as amended, being sections 256.251 to 256.269, inclusive, of the Compiled Laws of 1948; Act No. 318 of the Public Acts of 1927, as amended, being sections 256.301 to 256.360, inclusive, of the Compiled Laws of 1948; Act No. 321 of the Public Acts of 1923, as amended, being sections 256.421 to 256.437, inclusive, of the Compiled Laws of 1948; Act No. 236 of the Public Acts of 1919, being sections 256.511 and 256.512 of the Compiled Laws of 1948; Act No. 80 of the Public Acts of 1929, as amended, being sections 256.521 to 256.523, inclusive, of the Compiled Laws of 1948; Act No. 186 of the Public Acts of 1937, being sections 247.301 to 247.306, inclusive, of the Compiled Laws of 1948; section 11 of chapter 21 of Act No. 283 of the Public Acts of 1909, being section 241.11 of the Compiled Laws of 1948; sections 498a, 499 and 500 of Act No. 328 of the Public Acts of 1931, as amended, being sections 750.498a, 750.499 and 750.500 of the Compiled Laws of 1948; and Act No. 94 of the Public Acts of 1943, being sections 752.501 to 752.503, inclusive, of the Compiled Laws of 1948; are hereby repealed.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.922 Saving clause.

Sec. 922.

No action or proceeding commenced before this code takes effect, and no right accrued, is affected by the provisions of this code, but all procedure thereafter taken therein shall conform to the provisions of this code so far as possible.

History: 1949, Act 300, Eff. Sept. 23, 1949

257.922a Act inapplicable to racing event.

Sec. 922a.

This act does not apply to a racing event conducted under the "city motor vehicle racing act of 1981".

History: Add. 1981, Act 174, Imd. Eff. Dec. 14, 1981

257.923 Short title.

Sec. 923.

This act shall be known as the "Michigan vehicle code."

History: 1949, Act 300, Eff. Sept. 23, 1949